GNAMMA RESEARCH · TEXTS IN CONTEXT

الضَّرُورِيّ فِي أُصُولِ الْفِقْهِ

Al-Ḍarūrī fī Uṣūl al-Fiqh

Ibn Rushd · Arabic–English · scholarly reference edition

Abū al-Walīd Ibn Rushd (d. 595 AH / 1198 CE)

Arabic reading text based on al-ʿAlawī (1994), controlled against the printed Bou Akl (2015) edition.
English translation and apparatus: Gnamma Research editorial reading version.
Technical text · dated dictionary testimony must not be confused with authorial usage.
October 2026

Guide to this edition

The Arabic text is on the physical left and the English translation on the right. The reading text derives from the al-ʿAlawī 1994 edition, with notes registering comparison with Bou Akl's printed 2015 edition, French translation and apparatus. The Escorial manuscript has not been independently inspected.

Numbering. R denotes the reading edition's 258 authorial section addresses; BA denotes Bou Akl's 311 numbered units. These are editorial reference systems, not numbering from two manuscripts. The copyist's colophon is separate. Editorial headings and vocalization are not attributed to Ibn Rushd's manuscript.

Full dictionary articles in the backmatter

The former short-excerpt register and nine-entry pilot have been replaced by **157 complete selected historical articles with full English translations**, arranged through 153 glossary-term dossiers. Each article retains its own author, dictionary and headword. Shared articles are printed once and cross-linked, not merged into a new fictitious entry.

Exact headwords, inflected or derived forms, internal technical discussions and related root evidence are distinguished. Some terms therefore have complete related articles rather than an exact compound entry. In particular, *ʿumūm al-balwā* has lexical support but no verified complete historical article under that exact compound in this release. The coverage audit identifies these limits.

Scope. "Complete" describes each selected article, not an exhaustive collection from every relevant dictionary. The eight source works are listed in the appendix. No full Tāʒ al-ʿArūs coverage or comprehensive Kashshāf/Lisān coverage is claimed. Digital transcription difficulties are marked; English translations are new editorial working translations, not independently peer-reviewed.

Navigation

The following four contents pages link to all 258 sections. Each running page also has links to Contents, Lexicon and Subject index in the footer. The lexicon has a term directory, links to occurrences, source links, and a headword-relation audit. The original analytical subject index and R/BA concordance are retained.

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Revision: 20 October 2026. Main text and existing notes are unchanged; running-text page addresses remain stable. The separate bilingual study edition is not expanded with this reference apparatus.

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Introduction المقدمة

Scope, method and the sciences · Why Ibn Rushd writes an abridgment and how legal theory relates to other kinds of knowledge.

1. Purpose, brevity, and the craft of legal reasoning

R 1 · Bou Akl 1 · 1994 Arabic p. 34 · Bou Akl 2015 Arabic p. 118

أَمَّا بَعْدُ حَمْدًا لِلَّهِ مُعَلِّمِ الْبَيَانِ، وَمُوجِبِ النَّظَرِ وَالِاسْتِدْلَالِ، وَمُخْتَصِّ الْإِنْسَانِ بِإِقَامَةِ الْحُجَجِ الْبَالِغَةِ وَضَرْبِ الْأَمْثَالِ، وَالصَّلَاةُ عَلَى مُحَمَّدٍ خَاتَمِ الرُّسُلِ وَنِهَايَةِ التَّمَامِ وَالْكَمَالِ، فَإِنَّ غَرَضِي فِي هَذَا الْكِتَابِ أَنْ أُثْبِتَ لِنَفْسِي، عَلَى جِهَةِ التَّذْكِرَةِ، مِنْ كِتَابِ أَبِي حَامِدٍ رَحِمَهُ اللَّهُ فِي أُصُولِ الْفِقْهِ الْمُلَقَّبِ بِالْمُسْتَصْفَى، جُمْلَةً كَافِيَةً بِحَسَبِ الْأَمْرِ الضَّرُورِيِّ فِي هَذِهِ الصِّنَاعَةِ، وَنَتَحَرَّى فِي ذَلِكَ أَوْجَزَ الْقَوْلِ وَأَخْصَرَهُ، وَمَا نَظُنُّ بِهِ أَنَّهُ أَكْثَرَ ذَلِكَ صِنَاعِيٌّ. وَقَبْلَ ذَلِكَ فَلْنُقَدِّمْ مُقَدِّمَةً نَافِعَةً فِي غَرَضِ الْعِلْمِ الْمَطْلُوبِ هَا هُنَا وَمَنْفَعَتِهِ فَنَقُولُ:

To proceed, after praising God, who teaches articulate expression, makes inquiry (النظر) and inference (الاستدلال) obligatory, and singles out the human being for establishing conclusive arguments and setting forth examples; and after invoking blessings upon Muḥammad, the seal of the messengers and the culmination of completeness and perfection: my purpose in this book is to set down for myself, as a reminder, a sufficient account of what is necessary in this craft (الصناعة), drawn from Abū Ḥāmid's book on the principles of jurisprudence entitled al-Mustaṣfā—may God have mercy upon him. In doing so we shall seek the briefest and most concise expression, and what seems to us most technically appropriate to this disciplined art. Before this, let us offer a useful introduction concerning the purpose and benefit of the knowledge sought here. We say:

N001 · grammar. Grammatical note: ḥamdan is editorially read as an accusative expression of praise, whereas wa-l-ṣalātu introduces the blessing. Bou Akl 2015 (Arabic p.118, French p.119, §1) renders akthara dhālika ṣināʿī as what is most technically appropriate. The reading is interpretive; neither French nor the proposed English is an independent manuscript witness.

BA15-I01 · interpretive. Book title and method. The 2015 textual introduction (pp.107–116) documents the historical titles Mukhtaṣar al-Mustaṣfā and al-Ḍarūrī, an Escorial unique manuscript, and a 552 AH authorial colophon. The French introduction pp.3–9 situates this among Ibn Rushd's early compendia; neither "abridgement" nor "necessary" reduces the project to simple summary.

G-B2-0001 · grammar. «التمام والكمال، فإن غرضي في هذا الكتاب أن» — «الفاء الاستئنافية مع «إنَّ/إنْ/إنّما». [The initial فـ links the reasoning. Distinguish إنَّ (assertion), إنْ (condition) and إنّما (restriction) from the words and vowelled context.]

2. Three kinds of knowledge: belief, action, and rules of inquiry

R 2 · Bou Akl 2 · 1994 Arabic p. 34, 35 · Bou Akl 2015 Arabic p. 118

إِنَّ الْمَعَارِفَ وَالْعُلُومَ ثَلَاثَةُ أَصْنَافٍ: إِمَّا مَعْرِفَةٌ غَايَتُهَا الِاعْتِقَادُ الْحَاصِلُ عَنْهَا فِي النَّفْسِ فَقَطْ، كَالْعِلْمِ بِحَدَثِ الْعَالَمِ، وَالْقَوْلِ بِالْجُزْءِ الَّذِي لَا يَتَجَزَّأُ وَأَشْبَاهِ ذَلِكَ. وَإِمَّا مَعْرِفَةٌ غَايَتُهَا الْعَمَلُ، وَهَذِهِ مِنْهَا كُلِّيَّةٌ وَبَعِيدَةٌ فِي كَوْنِهَا مُفِيدَةً لِلْعَمَلِ، وَمِنْهَا جُزْئِيَّةٌ وَقَرِيبَةٌ فِي كَوْنِهَا مُفِيدَةً لِلْعَمَلِ. فَالْجُزْئِيَّةُ كَالْعِلْمِ بِأَحْكَامِ الصَّلَاةِ وَالزَّكَاةِ وَمَا أَشْبَهَهُمَا مِنْ جُزْئِيَّاتِ الْفَرَائِضِ وَالسُّنَنِ. وَالْكُلِّيَّةُ كَالْعِلْمِ بِالْأُصُولِ الَّتِي تُبْنَى عَلَيْهَا هَذِهِ الْفُرُوعُ مِنَ الْكِتَابِ وَالسُّنَّةِ وَالْإِجْمَاعِ، وَالْعِلْمِ بِالْأَحْكَامِ الْحَاصِلَةِ عَنْ هَذِهِ الْأُصُولِ عَلَى الْإِطْلَاقِ وَأَقْسَامِهَا، وَمَا يَلْحَقُهَا مِنْ حَيْثُ هِيَ أَحْكَامٌ.

Forms of knowledge and the sciences are of three kinds. There is knowledge whose end is simply the belief it produces in the soul: for example, knowledge that the world has come into being, the doctrine of the indivisible part, and similar matters. There is knowledge whose end is action. Some of this is universal (كلية), and its benefit for action is indirect, while another part is particular (جزئية) and its benefit for action is more direct. Particular knowledge includes knowledge of the rulings governing prayer and almsgiving, and similar particular obligatory and customary observances. Universal knowledge includes knowledge of the principles on which these branches are built—the Book, the Sunna, and consensus—and knowledge of the rulings derived from these principles in general, their divisions, and what attaches to them insofar as they are rulings (أحكام).

وَإِمَّا مَعْرِفَةٌ تُعْطِي الْقَوَانِينَ وَالْأَحْوَالَ الَّتِي بِهَا يَتَسَدَّدُ الذِّهْنُ نَحْوَ الصَّوَابِ فِي هَاتَيْنِ الْمَعْرِفَتَيْنِ، كَالْعِلْمِ بِالدَّلَائِلِ وَأَقْسَامِهَا، وَبِأَيِّ أَحْوَالٍ تَكُونُ دَلَائِلَ وَبِأَيِّهَا لَا، وَفِي أَيِّ الْمَوَاضِعِ تُسْتَعْمَلُ النُّقْلَةُ مِنَ الشَّاهِدِ إِلَى الْغَائِبِ وَفِي أَيِّهَا لَا. وَهَذِهِ فَلْنُسَمِّهَا سِبَارًا وَقَانُونًا، فَإِنَّ نِسْبَتَهَا إِلَى الذِّهْنِ كَنِسْبَةِ الْبَرْكَارِ وَالْمِسْطَرَةِ إِلَى الْحِسِّ فِي مَا لَا يُؤْمَنُ أَنْ يُغْلَطَ فِيهِ.

There is also knowledge that provides the rules and conditions through which the mind is guided towards correctness in these two forms of knowledge: for example, knowledge of indications (الدلائل) and their divisions, of the conditions under which they are indications and those under which they are not, and of the cases in which the passage from the observed to the unobserved is employed and those in which it is not. Let us call this a probe and a rule. Its relation to the mind is like that of the compass and straightedge to sense perception in matters where error cannot be ruled out.

N002 · textual. Escorial manuscript as recorded and printed by Bou Akl (2015, BA §2, Arabic p.118; manuscript [أ] versus al-ʿAlawī [ع] in the apparatus) preserves ومنها جزئية وقريبة في كونها مفيدة للعمل after the universal class. The al-ʿAlawī 1994 edition omitted this entire balancing clause. The present revised Arabic restores the manuscript-attested words, not a conjecture. Editorial vocalization follows the restored syntax.

N003 · lexical. سِبَار, "probe," follows the classical instrument sense recorded under سبر in Ibn Manẓūr's Lisān al-ʿArab; the adjoining compass and straightedge comparison supports that sense. It is not the name of philosophy. Lexical control: https://www.islamweb.net/ar/library/content/122/3680/سبر

BA001 · scholarship. Rudolph's examination of this passage, explicitly indebted to Bou Akl's 2015 edition, proposes a double disciplinary reading: theoretical/practical/instrumental knowledge is meaningful both for kalām/uṣūl/fiqh and for natural-theoretical/practical/logical arts. The comparison does not turn Ibn Rushd's instrumental knowledge into demonstrative logic exclusively. Control: Ulrich Rudolph, "Al-Ghazālī on Philosophy and Jurisprudence," in Adamson (ed.), Philosophy and Jurisprudence in the Islamic World (2019), p. 72, referring to Bou Akl 2015, Arabic p. 118, French p. 119. No independent 2015 page collation has been performed.

BA15-I02 · interpretive. Scientific architecture. Bou Akl 2015 intro pp.7–9 distinguishes theoretical, practical-universal, practical-particular and instrumental knowledge. The instrumental third book guides interpretation of already given discourse; it is comparable to logic but is not identical with demonstrative syllogistic.

BA15-V002 · textual. 2015 full-edition control completed for R §2 = Bou Akl §2, Arabic p.118, French p.119. Distinguish manuscript-attested changes as detailed in the preceding notes. See the source-verified change ledger for exact old and new Arabic/English strings.

G-B2-0003 · grammar. «من حيث» — «وما يلحقها من حيث هي أحكام. وإما معرفة تعطي». [Insofar as / in the respect that; limits the scope of the assertion.]

G-B2-0004 · grammar. «إنَّ/إنْ/إنّما» مع الفاء الاستئنافية». [The initial فـ links the reasoning. Distinguish إنَّ (assertion), إنْ (condition) and إنّما (restriction) from the words and vowelled context.]

3. Why later jurists need an explicit method

R 3 · Bou Akl 3 · 1994 Arabic p. 35 · Bou Akl 2015 Arabic p. 120

وَبَيِّنٌ أَنَّ كُلَّمَا كَانَتِ الْعُلُومُ أَكْثَرَ تَشَعُّبًا، وَالنَّاظِرُونَ فِيهَا مُضْطَرُّونَ فِي الْوُقُوفِ عَلَيْهَا إِلَى أُمُورٍ لَمْ يُضْطَرَّ إِلَيْهَا مَنْ تَقَدَّمَهُمْ، كَانَتِ الْحَاجَةُ فِيهَا إِلَى قَوَانِينَ تَحُوطُ أَذْهَانَهُمْ عِنْدَ النَّظَرِ فِيهَا أَكْثَرَ.

It is clear that the more ramified the sciences become, and the more those investigating them must resort, in order to apprehend them, to matters to which their predecessors did not have to resort, the greater their need for rules that protect their minds during inquiry.

وَبَيِّنٌ أَنَّ الصِّنَاعَةَ الْمَوْسُومَةَ بِصِنَاعَةِ الْفِقْهِ فِي هَذَا الزَّمَانِ وَفِي مَا سَلَفَ مِنْ لَدُنْ وَفَاةِ رَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ وَتَفَرُّقِ أَصْحَابِهِ عَلَى الْبِلَادِ وَاخْتِلَافِ النَّقْلِ عَنْهُ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ بِهَاتَيْنِ الْحَالَتَيْنِ، وَلِذَلِكَ لَمْ يَحْتَجِ الصَّحَابَةُ رَضِيَ اللَّهُ عَنْهُمْ إِلَى هَذِهِ الصِّنَاعَةِ كَمَا لَمْ تَحْتَجِ الْأَعْرَابُ إِلَى قَوَانِينَ تَحُوطُهُمْ فِي كَلَامِهِمْ وَلَا فِي أَوْزَانِهِمْ.

It is also clear that the craft called jurisprudence (الفقه), both at present and in the past since the death of God's Messenger—God bless him and grant him peace—the dispersal of his Companions through the lands, and the divergence of what was transmitted from him—God bless him and grant him peace—exhibits these two conditions. For this reason the Companions—may God be pleased with them—had no need of this craft, just as the Bedouin Arabs had no need of rules to protect them in their speech or their metres.

G-B2-0006 · grammar. «وبين أن كلما كانت العلوم أكثر تشعبا، والناظرون — أداة شرط غير جازمة للتكرار». [Whenever / the more … the more …; recurrent conditional relation.]

BA-SRC-001 · textual. مقابلة النص: «كما لم تحتج الأعراب» [أ] مقابل «كما لم يحتج الأعراب» [ع]. إسناد الفعل مؤنثًا مفردًا إلى اسم الجماعة «الأعراب». [Bou Akl, printed Arabic p. 120, manuscript reading as reported in his apparatus, not a separate inspection of the Escorial manuscript.]

SC2015-002 · textual. أ «وبين أن كلما»؛ ع «وبين أنه كلما». أنّ [direct causal/comparative clause without resumptive pronoun] [Bou Akl 2015, Arabic p. 120, critical apparatus].

4. Implicit competence and induction from early legal opinions

R 4 · Bou Akl 4 · 1994 Arabic p. 36 · Bou Akl 2015 Arabic p. 120

وَبِهَذَا الَّذِي قُلْنَاهُ يَنْفَهِمُ غَرَضُ هَذِهِ الصِّنَاعَةِ، وَيَسْقُطُ الِاعْتِرَاضُ عَلَيْهَا بِأَنْ لَمْ يَكُنْ أَهْلُ الصَّدْرِ الْمُتَقَدِّمِ نَاظِرِينَ فِيهَا، وَإِنْ كُنَّا لَا نُنْكِرُ أَنَّهُمْ كَانُوا يَسْتَعْمِلُونَ قُوَّتَهَا، وَأَنْتَ تَتَبَيَّنُ ذَلِكَ مِنْ فَتَاوَاهُمْ رَضِيَ اللَّهُ عَنْهُمْ، بَلْ كَثِيرٌ مِنَ الْمَعَانِي الْكُلِّيَّةِ الْمَوْضُوعَةِ فِي هَذِهِ الصِّنَاعَةِ إِنَّمَا صُحِّحَتْ بِالِاسْتِقْرَاءِ مِنْ فَتَاوَاهُمْ فِي مَسْأَلَةٍ مَسْأَلَةٍ.

What we have said makes the purpose of this craft intelligible and disposes of the objection that the people of the earliest generation did not investigate it. We do not, however, deny that they employed its capacity: you can discern this from their legal opinions—may God be pleased with them. Indeed, many of the universal notions (المعاني الكلية) laid down in this craft were established only by induction (الاستقراء) from their legal opinions, case by case.

G-B2-0009 · grammar. «هذه الصناعة إنما صححت بالاستقراء من فتاواهم في — أسلوب القصر بـ«إنّما»». [Restriction: only / nothing but; identify what is being limited by the construction.]

5. The four parts of the discipline

R 5 · Bou Akl 5 · 1994 Arabic p. 36 · Bou Akl 2015 Arabic p. 120

فَأَمَّا أَجْزَاءُ هَذِهِ الصِّنَاعَةِ بِحَسَبِ مَا قُسِّمَتْ إِلَيْهِ فِي هَذَا الْكِتَابِ فَأَرْبَعَةُ أَجْزَاءٍ: فَالْجُزْءُ الْأَوَّلُ يَتَضَمَّنُ النَّظَرَ فِي الْأَحْكَامِ، وَالثَّانِي فِي أُصُولِ الْأَحْكَامِ، وَالثَّالِثُ فِي الْأَدِلَّةِ الْمُسْتَعْمَلَةِ فِي اسْتِنْبَاطِ حُكْمٍ حُكْمٍ عَنْ أَصْلٍ أَصْلٍ، وَكَيْفَ اسْتِعْمَالُهَا. وَالرَّابِعُ يَتَضَمَّنُ النَّظَرَ فِي شُرُوطِ الْمُجْتَهِدِ وَهُوَ الْفَقِيهُ.

The parts of this craft, according to its division in this book, are four. The first part comprises inquiry into rulings (الأحكام); the second, into the sources of rulings; the third, into the proofs (الأدلة) employed to derive each ruling from its respective source, and how they are employed. The fourth comprises inquiry into the qualifications of the practitioner of independent judgement (المجتهد), who is the jurist.

N004 · translation. ‘This book’ here refers to al-Mustaṣfā, as the editor explains on printed p. 36.

6. The proper subject of uṣūl and a comparative method

R 6 · Bou Akl 5–7 · 1994 Arabic p. 36, 37 · Bou Akl 2015 Arabic p. 120

وَأَنْتَ تَعْلَمُ مِمَّا تَقَدَّمَ مِنْ قَوْلِنَا فِي غَرَضِ هَذِهِ الصِّنَاعَةِ، وَفِي أَيِّ جِنْسٍ مِنْ أَجْنَاسِ الْعُلُومِ هِيَ دَاخِلَةٌ، أَنَّ النَّظَرَ الْخَاصَّ بِهَا إِنَّمَا هُوَ فِي الْجُزْءِ الثَّالِثِ مِنْ هَذَا الْكِتَابِ، لِأَنَّ الْأَجْزَاءَ الْأُخَرَ مِنْ جِنْسِ الْمَعْرِفَةِ الَّتِي غَايَتُهَا الْعَمَلُ، وَلِذَلِكَ لَقَّبُوا هَذِهِ الصِّنَاعَةَ بِاسْمِ بَعْضِ مَا جَعَلُوهُ جُزْءًا لَهَا، فَدَعَوْهَا بِأُصُولِ الْفِقْهِ. وَالنَّظَرُ الصِّنَاعِيُّ يَقْتَضِي أَنْ يُفْرَدَ الْقَوْلُ فِي هَذَا الْجُزْءِ الثَّالِثِ إِذْ هُوَ مُبَايِنٌ بِالْجِنْسِ لِتِلْكَ الْأَجْزَاءِ الْأُخَرِ، وَيُقْتَصَرَ مِنْ تِلْكَ عَلَى أَحَدِ أَمْرَيْنِ: إِمَّا أَنْ تُوضَعَ بِحَسَبِ أَشْهَرِ الْمَذَاهِبِ فِيهَا، وَهُوَ مَا يَرَاهُ مَثَلًا أَهْلُ السُّنَّةِ.

From our preceding account of the purpose of this craft and the genus of sciences to which it belongs, you know that its proper inquiry lies only in the third part of this book. The other parts belong to the kind of knowledge whose end is action. Hence they named this craft after some of what they made a part of it, calling it ‘the principles of jurisprudence’ (أصول الفقه). Inquiry conducted according to the requirements of the craft demands that this third part receive a separate treatment, since it differs in genus from those other parts, and that, concerning those, one of two courses alone be adopted. Either they should be posited according to the most widely accepted doctrines concerning them—for example, the views of the People of the Sunna.

وَإِمَّا أَنْ ترسم وَيُعَدَّدَ الِاخْتِلَافُ الْوَاقِعُ فِيهَا، وَتُعْطَى الْأَحْوَالُ وَالْقَوَانِينُ الَّتِي بِهَا تُسْتَنْبَطُ الْأَحْكَامُ بِحَسَبِ رَأْيٍ رَأْيٍ فِي تِلْكَ الْأُصُولِ. وَبِالْجُمْلَةِ كَيْفَ لُزُومُ بَعْضِ تِلْكَ الْآرَاءِ فِيهَا عَنْ بَعْضٍ، وَمُنَاسَبَتُهَا لِلْفُرُوعِ، حَتَّى يُقَالَ مَثَلًا كَيْفَ يَكُونُ الِاسْتِنْبَاطُ عَلَى رَأْيِ الظَّاهِرِيَّةِ وَعَلَى رَأْيِ الْقَائِلِينَ بِالْقِيَاسِ. وَبِالْجُمْلَةِ بِحَسَبِ رَأْيٍ رَأْيٍ مِنَ الْآرَاءِ الْمَشْهُورَةِ. وَهَذَا الْوَجْهُ هُوَ الْأَنْفَعُ فِي هَذِهِ الصِّنَاعَةِ، وَبِهَذَا النَّظَرِ تَكُونُ لِهَذَا الْجِنْسِ مِنَ الْمَعَارِفِ صِنَاعَةٌ تَامَّةٌ وَكُلِّيَّةٌ وَكَافِيَةٌ فِي نَظَرِ الْجَمِيعِ مِنْ أَهْلِ الِاجْتِهَادِ.

Or the disagreements concerning them should be outlined and enumerated, and the conditions and rules provided through which rulings are derived according to each opinion about those principles. This would explain, generally, how some of those opinions follow from others and how they correspond to the branches: one would explain, for example, how derivation proceeds according to the Ẓāhirīs (أهل الظاهر, commonly called Literalists) and according to those who affirm analogy (القياس)—in general, according to each of the widely accepted opinions. This course is more useful in this craft. Through such inquiry this kind of knowledge would possess a craft that is complete, universal, and sufficient for the inquiry of all who practise independent judgement (الاجتهاد).

BA-T003 · textual. قراءة الإسكوريال كما أثبتها بو عقل: «ترسم»، مقابل «يرسم» في طبعة العلوي. (Escorial reading as reported by Bou Akl, 2015, Arabic p. 122; variant against al-ʿAlawī.)

G-B2-0011 · grammar. أسلوب القصر بـ«إنّما» — «الخاص بها إنما هو في الجزء الثالث من». [Restriction: only / nothing but; identify what is being limited by the construction.]

SC2015-004 · textual. أ «لأن الأجزاء الأخر»؛ ع «لأن الأجزاء الأخرى». الأُخَر [irregular plural adjective modifying الأجزاء] [Bou Akl 2015, Arabic p. 122, critical apparatus].

SC2015-005 · textual. أ «لتلك الأجزاء الأخر»؛ ع «لتلك الأجزاء الأخرى». الأُخَر [agreement in the genitive with الأجزاء] [Bou Akl 2015, Arabic p. 122, critical apparatus].

SC2015-007 · textual. أ «وبهذا النظر تكون»؛ ع «وبهذا النظر يكون». تكون [feminine agreement with صناعة] [Bou Akl 2015, Arabic p. 122, critical apparatus].

7. Retaining al-Ghazālī's arrangement

R 7 · Bou Akl 8 · 1994 Arabic p. 37 · Bou Akl 2015 Arabic p. 122

لَكِنْ رَأَيْنَا أَنْ نَجْرِيَ فِي ذَلِكَ عَلَى عَادَةِ الْمُتَكَلِّمِينَ فِي هَذِهِ الصِّنَاعَةِ، وَنَتَحَرَّى فِي تَقْسِيمِهَا التَّرْتِيبَ الْوَاقِعَ فِي هَذَا الْكِتَابِ، إِذْ هُوَ أَحْسَنُهَا نَظَرًا وَأَحْرَى أَنْ يَكُونَ صِنَاعِيًّا، غَيْرَ أنا سَنُشِيرُ إِلَى شَيْءٍ مِنْ ذَلِكَ الْغَرَضِ.

We have nevertheless decided to follow the customary practice of those who discuss this craft and, in dividing it, to seek the arrangement found in this book, since it is the best considered and the most likely to conform to the requirements of the craft. We shall, however, indicate something of that purpose.

N005 · translation. 'This book' refers to al-Mustaṣfā; printed p. 37, editor's note. المتكلمين here denotes those discussing the discipline, rather than necessarily theologians as a group.

BA-T006 · textual. قراءة الإسكوريال كما أثبتها بو عقل: «أنا»، مقابل «أننا» في طبعة العلوي. (Escorial reading as reported by Bou Akl, 2015, Arabic p. 122; variant against al-ʿAlawī.)

G-B2-0014 · grammar. الاستدراك بـ«غير أنّ» — «يكون صناعيا، غير أنا سنشير إلى شيء من ذلك». [Nevertheless / except that; introduces a qualification to what precedes.]

8. The introductory questions a learner needs

R 8 · Bou Akl 9 · 1994 Arabic p. 37 · Bou Akl 2015 Arabic p. 122

وَمِمَّا تَقَدَّمَ مِنْ قَوْلِنَا يَتَبَيَّنُ غَرَضُ هَذَا الْكِتَابِ، وَنِسْبَتُهُ إِلَى سَائِرِ الْعُلُومِ، وَمَرْتَبَتُهُ، وَمَا يَدُلُّ عَلَيْهِ اسْمُهُ، وَأَقْسَامُهُ. وَهِيَ الْجُمَلُ النَّافِعُ تَقْدِيمُهَا لِلْمُتَعَلِّمِ عِنْدَ شُرُوعِهِ فِي الصِّنَاعَةِ. وَلْنَبْدَأْ مِنْ حَيْثُ بَدَأَ.

Our preceding account makes clear this book's purpose, its relation to the other sciences, its rank, what its name signifies, and its divisions. These are the general matters that it is useful to present to the learner when beginning the craft. Let us begin where he began.

G-B2-0016 · grammar. الظرفية المكانية — «وَلْنَبْدَأْ مِنْ حَيْثُ بَدَأَ». [Here "from where" refers to the place or point at which the earlier author began; it is not the qualifying expression "insofar as".]

9. Why the logical prolegomenon is omitted

R 9 · Bou Akl 10 · 1994 Arabic p. 37, 38 · Bou Akl 2015 Arabic p. 122

وَأَبُو حَامِدٍ قَدَّمَ قَبْلَ ذَلِكَ مُقَدِّمَةً مَنْطِقِيَّةً زَعَمَ أَنَّهُ أَدَّاهُ إِلَى الْقَوْلِ فِي ذَلِكَ نَظَرُ الْمُتَكَلِّمِينَ فِي هَذِهِ الصِّنَاعَةِ فِي أُمُورٍ مَا مَنْطِقِيَّةٍ، كَنَظَرِهِمْ فِي حَدِّ الْعِلْمِ وَغَيْرِ ذَلِكَ. وَنَحْنُ فَلْنَتْرُكْ كُلَّ شَيْءٍ إِلَى مَوْضِعِهِ، فَإِنَّ مَنْ رَامَ أَنْ يَتَعَلَّمَ أَشْيَاءَ أَكْثَرَ مِنْ وَاحِدٍ فِي وَقْتٍ وَاحِدٍ لَمْ يُمْكِنْهُ أَنْ يَتَعَلَّمَ وَلَا وَاحِدًا مِنْهَا.

Before this, Abū Ḥāmid placed a logical introduction. He stated that he was led to discuss it by the inquiry of those treating this craft into certain logical matters, such as their inquiry into the definition of knowledge and other things. For our part, let us leave each thing to its proper place. Anyone who attempts to learn more than one thing at a time will be unable to learn even one of them.

G-B2-0017 · grammar. الفاء الاستئنافية مع «إنَّ/إنْ/إنّما» — «إلى موضعه، فإن من رام أن يتعلم أشياء». [The initial فـ links the reasoning. Distinguish إنَّ (assertion), إنْ (condition) and إنّما (restriction) from the words and vowelled context.]

Part I · Legal judgements القسم الأول: الأحكام الشرعية

Rulings, obligation and legal responsibility · The categories of acts, legal accountability, causes, validity and concessions.

10. Definition, divisions, elements, and manifestation of rulings

R 10 · Bou Akl 11 · 1994 Arabic p. 39, 41 · Bou Akl 2015 Arabic p. 124

وَهَذَا الْجُزْءُ الْأَوَّلُ يَنْقَسِمُ إِلَى أَرْبَعَةِ أَجْزَاءٍ: وَهِيَ النَّظَرُ فِي حَدِّ الْحُكْمِ، وَفِي أَقْسَامِهِ، وَفِي أَرْكَانِهِ، وَفِي مُظْهِرِهِ.

This first part is divided into four parts: inquiry into the definition of a ruling (الحكم), its divisions, its constituent elements, and what manifests it.

BA-SRC-008 · textual. مقابلة النص: «أربعة أجزاء» [أ] مقابل «أربعة أقسام» [ع]. «الأجزاء» تقسيم الكتاب؛ فلا تُخلط بالأقسام الفرعية للحكم المذكورة في الجملة التالية. [Bou Akl, printed Arabic p. 124, manuscript reading as reported in his apparatus, not a separate inspection of the Escorial manuscript.]

11. Revealed judgement and intrinsic or relational goodness

R 11 · Bou Akl 12–14 · 1994 Arabic p. 41, 42 · Bou Akl 2015 Arabic p. 124

أَمَّا حَدُّ الْحُكْمِ عِنْدَ أَهْلِ السُّنَّةِ فَهُوَ عِبَارَةٌ عَنْ خِطَابِ الشَّرْعِ إِذَا تَعَلَّقَ بِأَفْعَالِ الْمُكَلَّفِينَ بِطَلَبٍ أَوْ تَرْكٍ. فَإِذَا لَمْ يَرِدْ هَذَا الْخِطَابُ لَمْ تَتَعَلَّقْ بِالْأَفْعَالِ صِفَةُ تَحْسِينٍ أَوْ تَقْبِيحٍ، فَيَكُونُ الْحُسْنُ وَالْقُبْحُ عَلَى هَذَا لَيْسَ وَصْفًا ذَاتِيًّا لِلْأَفْعَالِ.

According to the People of the Sunna, a ruling (الحكم) is defined as the address of the Law (خطاب الشرع) when it concerns the acts of legally responsible persons by requiring an act or its omission. Where this address has not occurred, no characterization as good or bad attaches to acts; on this account, goodness and badness are not intrinsic attributes of acts.

وَذَهَبَتِ الْمُعْتَزِلَةُ إِلَى أَنَّ الْحُسْنَ وَالْقُبْحَ وَصْفٌ ذَاتِيٌّ لِلْأَفْعَالِ، فَبَعْضُ ذَلِكَ مُدْرَكٌ بِضَرُورَةِ الْعَقْلِ كَالْكَذِبِ وَشُكْرِ الْمُنْعِمِ، وَبَعْضُهُ بِانْضِمَامِ الشَّرْعِ كَالطَّهَارَةِ وَالصَّلَاةِ لِمَا فِيهِمَا مَثَلًا مِنَ اللَّفْظِ الْمَانِعِ مِنَ الْفَحْشَاءِ وَمِنَ النَّظَافَةِ. وَفَائِدَةُ مَعْرِفَةِ هَذَا الِاخْتِلَافِ فِي هَذِهِ الصِّنَاعَةِ تَتَصَوَّرُ عِنْدَ النَّظَرِ فِي الْقِيَاسِ الْمُنَاسِبِ وَالْمُخَيِّلِ وَجَمِيعِ أَنْوَاعِهِ، وَعِنْدَ النَّظَرِ فِي تَصْوِيبِ الْمُجْتَهِدِينَ وَتَخْطِئَتِهِمْ.

The Muʿtazilites held that goodness and badness are intrinsic attributes of acts. Some are apprehended through rational necessity, as with lying and thanking a benefactor; others, with the Law's assistance, as with ritual purification and prayer, because of, for example, the utterance that restrains indecency and the cleanliness they involve. The benefit of knowing this disagreement within this craft becomes apparent when investigating analogy from a suitable, plausible ground (القياس المناسب والمخيل), with all its kinds, and when investigating whether those exercising independent judgement are correct or mistaken.

أَمَّا أَهْلُ السُّنَّةِ فَحُجَّتُهُمْ أَنَّ الْحُسْنَ وَالْقُبْحَ يُطْلَقُ فِي عُرْفِ الْمُتَكَلِّمِينَ عَلَى مَعَانٍ: أَوَّلُهَا وَأَشْهَرُهَا مَا يُوَافِقُ غَرَضَ الْمُسْتَحْسِنِ أَوْ يُخَالِفُهُ، حَتَّى يَسْتَحْسِنَ سُمْرَةَ اللَّوْنِ مَثَلًا وَاحِدٌ وَيَسْتَقْبِحَهَا آخَرُ. وَهَذَا أَمْرٌ إِضَافِيٌّ لَا كَالسَّوَادِ وَالْبَيَاضِ الْمَوْجُودَيْنِ لِلْأَشْيَاءِ بِذَاتِهَا. وَالثَّانِي مَا حَسَّنَهُ الشَّرْعُ أَوْ قَبَّحَهُ. وَالثَّالِثُ مِنْ مَعَانِي الْحُسْنِ مَا كَانَ لِلْإِنْسَانِ مُبَاحًا فِعْلُهُ. وَكُلُّ هَذِهِ أَوْصَافٌ إِضَافِيَّةٌ لَا ذَاتِيَّةٌ. وَمَعْنَى ذَلِكَ أَنْ لَيْسَ لِلْحُسْنِ وَالْقُبْحِ وُجُودٌ خَارِجَ الْعَيْنِ.

The argument of the People of the Sunna is that ‘good’ and ‘bad’ have several meanings in the usage of speakers. The first and most familiar is what accords with or opposes the purpose of the person judging it good: one person, for instance, may find a dark complexion good and another find it bad. This is a relational matter, unlike the blackness and whiteness belonging to things in themselves. The second is what the Law has declared good or bad. The third meaning of ‘good’ is what a person is permitted to do. All these are relational, not intrinsic, attributes. This means that goodness and badness have no existence ‘outside the concrete entity.’

N006 · textual. Printed pp. 41–42 read اللفظ and خارج العين. The latter is unusual; it has been rendered literally rather than silently changed to خارج الذهن (‘outside the mind’).

N007 · translation. المناسب والمخيل concern the suitability and apparently purposive rationale of a legal analogy; ‘imaginal’ would obscure the juridical use here. The following argument distinguishes intrinsic from relational evaluation.

12. Why general acceptance does not establish rational necessity

R 12 · Bou Akl 15 · 1994 Arabic p. 42 · Bou Akl 2015 Arabic p. 126

وَأَمَّا الْمُعْتَزِلَةُ فَاسْتَدَلُّوا عَلَى أَنَّ الْحُسْنَ وَالْقُبْحَ وَصْفٌ ذَاتِيٌّ لِلْأَشْيَاءِ باتفاق العقلاء على القول بهما مِنْ غَيْرِ إِضَافَةٍ كَحُسْنِ الصِّدْقِ وَقُبْحِ الْكَذِبِ، وَبِالْجُمْلَةِ مِنْ حَيْثُ هَذِهِ الْقَضَايَا مَشْهُورَةٌ وَمُتَّفَقٌ عَلَيْهَا. وَظَاهِرٌ أَنَّ الْأُمُورَ الْمَعْقُولَةَ قَدْ يَلْحَقُهَا أَنْ تَكُونَ مَشْهُورَةً، وَأَنَّ ذَلِكَ غَيْرُ مُنْعَكِسٍ.

The Muʿtazilites, for their part, argued that goodness and badness are intrinsic attributes of things from the agreement of rational persons in affirming them without qualification by a relation—for example, the goodness of truthfulness and the badness of lying; in general, from these propositions' being widely accepted and agreed upon. It is evident that intelligible matters may also happen to be widely accepted, but that the converse does not hold.

BA-M012-45 · textual. Escorial [Ì] العقلاء; al-ʿAlawī [ع] العقل. Distinguishes common assent among rational persons from agreement of reason as a faculty. (Bou Akl 2015, Arabic p. 126; §15.)

G-B2-0022 · grammar. «قيد الجهة بـ«من حيث» — «الكذب، وبالجملة من حيث هذه القضايا مشهورة ومتفق عليها». [Insofar as / in the respect that; limits the scope of the assertion.]

G-B2-0023 · grammar. «على أنَّ» بين التعلّق النحوي والاستدراك — «المعتزلة فاستدلوا على أن الحسن والقبح وصف ذاتي للأشياء». [The phrase may complete a preceding verb such as “argue that”, or introduce a qualification; check its governing clause rather than assuming “although”.]

13. The obligation to inquire and the challenge to revealed authority

R 13 · Bou Akl 16–17 · 1994 Arabic p. 42 · Bou Akl 2015 Arabic p. 126

وَالْقَوْلُ فِي هَذِهِ الْمَسْأَلَةِ لَيْسَ مِنْ هَذَا الْعِلْمِ الَّذِي نَحْنُ بِسَبِيلِهِ. وَيُشْبِهُ أَلَّا يَكُونَ فِي وَاحِدٍ مِنْ هَذَيْنِ الْقَوْلَيْنِ كِفَايَةٌ فِي الْوُقُوفِ عَلَى هَذِهِ الْمَسْأَلَةِ. وَقَدِ احْتَجَّتِ الْمُعْتَزِلَةُ عَلَى أَنَّ مُدْرَكَ الْوُجُوبِ فِي بَعْضِ الْأُمُورِ بِالْعَقْلِ كَشُكْرِ الْمُنْعِمِ وَغَيْرِ ذَلِكَ، فَإِنَّ حَصْرَهَا فِي الشَّرْعِ يُفْضِي إِلَى إِفْحَامِ الرُّسُلِ عِنْدَ دُعَائِهِمْ إِلَى النَّظَرِ، لِأَنَّا مَا لَمْ نَعْلَمْ وُجُوبَ النَّظَرِ لَمْ نَنْظُرْ، وَمَا لَمْ نَنْظُرْ لَمْ نَتَحَقَّقْ دَعْوَى الشَّارِعِ فِيمَا دَعَا إِلَيْهِ، وَمَا لَمْ نَتَحَقَّقْ دَعْوَاهُ فَلَا سَبِيلَ إِلَى الْإِيمَانِ بِمَا دَعَا إِلَيْهِ، سَوَاءٌ كَانَ الْمَدْعُوُّ إِلَيْهِ، فِي نَفْسِهِ حَقًّا أَوْ لَمْ يَكُنْ، لَا سَبِيلَ لَنَا عَلَى هَذَا الْوَجْهِ إِلَى حُصُولِ الْعِلْمِ بِهِ.

Discussion of this question does not belong to the science with which we are engaged. Neither of these two arguments seems sufficient to settle it. The Muʿtazilites argued that obligation in certain matters—thanking a benefactor and the like—is apprehended by reason. Restricting its apprehension to the Law would leave the messengers unable to answer when they call people to inquiry (النظر). Unless we know that inquiry is obligatory, we shall not inquire; unless we inquire, we shall not establish the Lawgiver's claim concerning that to which he calls us; and unless we establish his claim, there is no way to believe what he calls us to. Whether what we are called to is true in itself or not, on this account there is no way for us to attain knowledge of it.

N008 · lexical. مُدْرَك is retained with ḍamma on mīm in its sense of a ground or means of apprehension. Al-Fayyūmī, al-Miṣbāḥ al-munīr, s.v. درك, explicitly prefers this regular form while reporting jurists' مَدْرَك. In §14 the same consonants also form the passive participle, "apprehended"; the construction determines the sense. Lexical control: https://ar.wikisource.org/wiki/المصباح_المنير/كتاب_الدال#درك

G-B2-0026 · grammar. أسلوب التسوية — «دعا إليه، سواء كان المدعو إليه، في نفسه». [Whether one alternative or another; both possibilities fall under the same assessment.]

G-B2-0027 · grammar. «على أنَّ» بين التعلّق النحوي والاستدراك — «احتجت المعتزلة على أن مدرك الوجوب في بعض الأمور». [The phrase may complete a preceding verb such as "argue that", or introduce a qualification; check its governing clause rather than assuming "although".]

14. An objection from infinite regress

R 14 · Bou Akl 18 · 1994 Arabic p. 42 · Bou Akl 2015 Arabic p. 126

وَقَدْ أَلْزَمَ الْمُتَكَلِّمُونَ الْمُعْتَزِلَةَ فِي كَوْنِ مُدْرَكِ وُجُوبِ النَّظَرِ عَقْلًا شَكًّا مَا، وَهُوَ أَنَّ وُجُوبَ النَّظَرِ إِنْ كَانَ مُدْرَكًا عَقْلًا فَلَا يَخْلُو أَنْ يَكُونَ ذَلِكَ ضَرُورَةً أَوِ اكْتِسَابًا، فَإِنْ كَانَ ضَرُورَةً لَمْ يَغْفُلْ أَحَدٌ عَنْ عِلْمِ اللَّهِ، وَإِنْ كَانَ مُكْتَسَبًا بِنَظَرٍ انْعَكَسَ عَلَيْهِمُ الْقَوْلُ فِي مُدْرَكِ وُجُوبِ النَّظَرِ الْمُؤَدِّي إِلَى وُجُوبِ النَّظَرِ فِي دَعْوَى الشَّرْعِ، وَذَلِكَ إِلَى غَيْرِ نِهَايَةٍ.

The theologians pressed a difficulty upon the Muʿtazilites concerning their claim that the obligation to inquire is apprehended rationally. If this obligation is rationally apprehended, that must be either necessarily or through acquisition. If necessarily, no one would be heedless of the knowledge of God. If acquired by inquiry, the question turns back upon them: how is the obligation to undertake the inquiry leading to the obligation to inquire into the Law's claim apprehended? And so on without end.

G-B2-0028 · grammar. الشرط الوصلي بـ«وإن كان» — «علم الله، وإن كان مكتسبا بنظر انعكس عليهم القول». [Even if / although; the condition does not overturn the principal judgement.]

G-B2-0029 · grammar. الفاء الرابطة مع «إنْ» الشرطية — «أو اكتسابا، فإن كان ضرورة لم يغفل أحد». [The fāʾ connects the argument, and in here introduces a condition (if it is said / if it is / if he does); read its response as the result, not as an assertion with إنَّ.]

15. Miracles, assent, and necessary knowledge

R 15 · Bou Akl 19 · 1994 Arabic p. 42, 43 · Bou Akl 2015 Arabic p. 126

وَالَّذِي يَنْبَغِي عِنْدِي أَنْ يُقَالَ فِي هَذَا الْمَوْضِعِ فَهُوَ أَنَّ التَّصْدِيقَ بِدَعْوَى الشَّارِعِ عِنْدَ ظُهُورِ الْمُعْجِزَةِ وَفْقَ دَعْوَاهُ هُوَ مِنْ جِنْسِ الْمَعَارِفِ الضَّرُورِيَّةِ، وَأَنَّ التَّصْدِيقَ يَقَعُ بِمُشَاهَدَةِ ذَلِكَ اضْطِرَارًا أَوْ بِوُجُودِهَا تَوَاتُرًا، وَإِنَّمَا يُتَصَوَّرُ وُجُوبُ النَّظَرِ أَوْ لَا وُجُوبُهُ فِي مَعْرِفَتِهِ بِنَظَرٍ وَاسْتِدْلَالٍ. وَتَكَلُّفُ مَا سِوَى هَذَا مِنَ الْقَوْلِ فِي هَذَا الْمَوْضِعِ تَشْوِيشٌ لِلْعَقَائِدِ أَوْ عَنَاءٌ. وَلَوْ أَنَّ وَاحِدًا وَاحِدًا مِنَ الْمَدْعُوِّينَ لِلشَّرْعِ تَكَلَّفَ مِثْلَ هَذِهِ الشُّكُوكِ عِنْدَ النَّظَرِ فِيمَا دَعَا إِلَيْهِ الشَّرْعُ لَكَانَ إِيمَانُ كَثِيرٍ مِنَ النَّاسِ مِمَّا لَا يَقَعُ، وَلَوْ وَقَعَ لَكَانَ فِي النَّادِرِ.

What should be said here, in my judgement, is that assent (التصديق) to the Lawgiver's claim when a miracle appears in accordance with it belongs to the kind of necessary knowledge. Assent arises necessarily from witnessing this, or through the miracle's being established by recurrent transmission (تواتر). The question whether inquiry is obligatory or not arises only where knowledge is gained through inquiry and inference (النظر والاستدلال). Straining after any further account here merely confuses beliefs or causes needless trouble. If each person called to the Law were to take upon himself such difficulties when considering what the Law calls him to, the faith of many people would never arise, or would arise only rarely.

وَبِالْجُمْلَةِ فَكَأَنْ يَكُونَ دُعَاءُ اللَّهِ النَّاسَ إِلَى الْإِيمَانِ بِالشَّرْعِ بِمِثْلِ هَذِهِ الطُّرُقِ فِي حَقِّ الْأَكْثَرِ مِنْ بَابِ تَكْلِيفِ مَا لَا يُطَاقُ. وَلَيْسَ يَلْزَمُ مِنْ كَوْنِ الْمَعْرِفَةِ بِذَلِكَ ضَرُورِيَّةً أَلَّا يَنْفَكَّ عَنِ الْإِقْرَارِ بِهَا أَحَدٌ، فَإِنَّهُ كَمَا أَنَّهُ لَيْسَ مِنْ شَرْطِ الْمُتَّفَقِ عَلَيْهِ أَنْ يَكُونَ ضَرُورِيًّا كَذَلِكَ لَيْسَ مِنْ شَرْطِ الضَّرُورِيِّ أَنْ يَكُونَ مُتَّفَقًا عَلَيْهِ. وَهَذَا كُلُّهُ لَيْسَ مِنْ هَذَا الْعِلْمِ.

In general, God's calling people to faith in the Law by such paths would, for most people, amount to imposing what is beyond their capacity. That knowledge of this is necessary does not entail that no one can fail to acknowledge it. Just as being necessary is not a condition of what is agreed upon, so being agreed upon is not a condition of what is necessary. None of this belongs to the present science.

N009 · translation. ضروري here is ‘necessary’ in the epistemic sense, not simply ‘essential’ or ‘important’; the passage distinguishes necessity from universal acknowledgement.

G-B2-0031 · grammar. «بوجودها تواترا، وإنما يتصور وجوب النظر أو لا» — «إنّما» بـأسلوب القصر». [Restriction: only / nothing but; identify what is being limited by the construction.]

G-B2-0033 · grammar. «أحد، فإنه كما أنه ليس من شرط المتفق عليه» — «كما أنّ» بـالقياس أو الموازنة». [Just as / likewise: coordinates the two sides of the comparison.]

16. The status of acts before revelation

R 16 · Bou Akl 20 · 1994 Arabic p. 43 · Bou Akl 2015 Arabic p. 128

أَمَّا مَنْ ذَهَبَ مِنَ الْمُعْتَزِلَةِ إِلَى أَنَّ الْأَفْعَالَ قَبْلَ وُرُودِ الشَّرْعِ عَلَى الْإِبَاحَةِ فَإِنَّمَا أَرَادُوا بِذَلِكَ مَا لَا يَقْضِي الْعَقْلُ فِيهِ بِحُسْنٍ وَلَا قُبْحٍ. وَمَنْ قَالَ مِنْهُمْ إِنَّهَا عَلَى الْوَقْفِ فَأُرَاهُمْ رَأَوْا ذَلِكَ فِيمَا لَا يُدْرَكُ مِنَ الْأَفْعَالِ الْحُسْنُ وَالْقُبْحُ فِيهِ إِلَّا بِانْضِمَامِ الشَّرْعِ إِلَى الْعَقْلِ، كَمَا تَقَدَّمَ مِنْ آرَائِهِمْ. وَأَمَّا مَنْ قَالَ مِنَ النَّاسِ إِنَّهَا قَبْلَ وُرُودِ الشَّرْعِ عَلَى الْحَظْرِ فَقَوْلٌ لَا مَعْنَى لَهُ، وَهُوَ بَيِّنُ السُّقُوطِ بِنَفْسِهِ.

Those Muʿtazilites who held that acts are permissible before the advent of the Law intended by this only acts concerning which reason judges neither goodness nor badness. Those among them who spoke of suspension of judgement seem to me to have had in view acts whose goodness or badness is apprehended only when the Law is joined to reason, as previously stated among their opinions. As for those who say that acts are prohibited before the advent of the Law, this assertion has no meaning and is manifestly untenable in itself.

G-B2-0034 · grammar. أسلوب القصر بـ«إنّما» — «على الإباحة فإنما أرادوا بذلك ما لا يقضي». [Restriction: only / nothing but; identify what is being limited by the construction.]

G-B2-0035 · grammar. القصر بالنفي والاستثناء — «والقبح فيه إلا بانضمام الشرع إلى العقل، كما». [Exclusivity through negation followed by an exception; not merely two independent clauses.]

G-B2-0036 · grammar. الفاء الرابطة مع «إنَّما» للحصر — «على الإباحة فإنما أرادوا بذلك ما لا يقضي». [The conjunction fāʾ links this point; innamā restricts the assertion (“only / rather”), rather than introducing a conditional.]

17. The five rulings and the distinction between farḍ and wājib

R 17 · Bou Akl 21–24 · 1994 Arabic p. 44 · Bou Akl 2015 Arabic p. 128

وَهُوَ يَتَضَمَّنُ النَّظَرَ فِي أَقْسَامِ الْأَحْكَامِ وَحُدُودِهَا وَمَسَائِلَ تَلْحَقُهَا فَنَقُولُ: إِنَّ الْحُكْمَ، وَهُوَ الَّذِي تَقَدَّمَ رَسْمُهُ، يَنْقَسِمُ إِلَى طَلَبٍ وَتَرْكٍ أَوْ تَخْيِيرٍ فِيهِمَا وَهُوَ الْمُسَمَّى مُبَاحًا. وَالطَّلَبُ يَنْقَسِمُ إِلَى وَاجِبٍ وَنَدْبٍ، وَالتَّرْكُ يَنْقَسِمُ إِلَى مَحْظُورٍ وَمَكْرُوهٍ.

This section comprises inquiry into the divisions of rulings (الأحكام), their definitions, and questions attaching to them. We say: the ruling whose description was given above is divided into a demand to act, a demand to omit, or a choice between the two; the last is called permissible (مباح). The demand to act is divided into obligation and recommendation; omission, into prohibition and disapproval.

وَحَدُّ الْوَاجِبِ أَنَّهُ مَا وَرَدَ خِطَابُ الشَّرْعِ بِتَرْجِيحِ فِعْلِهِ مَعَ تَوَعُّدٍ بِالْعِقَابِ عَلَى تَرْكِهِ مِنْ حَيْثُ هُوَ تَرْكٌ لَهُ بِإِطْلَاقٍ، وَإِنَّمَا زِدْنَا فِي الْحَدِّ قَوْلَنَا: مَعَ تَوَعُّدٍ بِالْعِقَابِ عَلَى تَرْكِهِ، لِأَنَّ الْوَاجِبَ عَلَى مَذْهَبِ أَهْلِ السُّنَّةِ لَا يُتَصَوَّرُ دُونَ الضَّرَرِ أَوِ النَّفْعِ، وَزِيَادَتُنَا فِيهِ أَيْضًا: مِنْ حَيْثُ هُوَ تَرْكٌ لَهُ بِإِطْلَاقٍ، تَحَفُّظًا مِنَ الْوَاجِبِ الْمُخَيَّرِ.

The obligatory (الواجب) is defined as that whose performance the address of the Law prefers, with a threat of punishment for omitting it insofar as this constitutes its unqualified omission. We added ‘with a threat of punishment for omitting it’ because, according to the People of the Sunna, obligation cannot be conceived apart from harm or benefit. We further added ‘insofar as this constitutes its unqualified omission’ as a precaution concerning an obligation that permits a choice.

وَالتَّوَعُّدُ بِالْعِقَابِ رُبَّمَا وَرَدَ قَطْعًا وَرُبَّمَا وَرَدَ ظَنًّا. وَأَصْحَابُ أَبِي حَنِيفَةَ يَخُصُّونَ الْأَوَّلَ بِاسْمِ الْفَرْضِ وَالثَّانِيَ بِاسْمِ الْوَاجِبِ، وَلَا مُشَاحَّةَ فِي الْأَسْمَاءِ إِذَا فُهِمَتِ الْمَعَانِي.

The threat of punishment may be established with certainty or by probable judgement (ظنا). Abū Ḥanīfa's followers reserve the name farḍ for the first and wājib for the second. There is no dispute over names once their meanings are understood.

وَحَدُّ النَّدْبِ أَنَّهُ الْمُرَجَّحُ فِعْلُهُ مِنْ غَيْرِ تَوَعُّدٍ بِالْعِقَابِ عَلَى تَرْكِهِ. وَمِنْ حَدِّ الْوَاجِبِ نَقِفُ عَلَى حَدِّ الْمَحْظُورِ لِأَنَّهُ مُقَابِلُهُ، وَكَذَلِكَ مِنْ حَدِّ النَّدْبِ نَقِفُ عَلَى حَدِّ الْمَكْرُوهِ. وَحَدُّ الْمُبَاحِ مَا دَلَّ الشَّرْعُ عَلَى التَّسْوِيَةِ بَيْنَ فِعْلِهِ وَتَرْكِهِ، وَذَلِكَ إِمَّا أَنْ يَرِدَ الْخِطَابُ بِالتَّخْيِيرِ فِيهِمَا، أَوْ بِرَفْعِ الْحَرَجِ عَنْهُمَا، أَوْ يَدُلَّ دَلِيلُ الْعَقْلِ أَنَّهُ عَلَى الْبَرَاءَةِ الْأَصْلِيَّةِ بِعَدَمِ الدَّلِيلِ الشَّرْعِيِّ عَلَى تَعَلُّقِ حُكْمٍ بِهِ، عَلَى مَا سَيَأْتِي بَعْدُ.

The recommended (الندب) is defined as that whose performance is preferred without a threat of punishment for its omission. From the definition of the obligatory we apprehend that of the prohibited, its opposite; likewise, from that of the recommended we apprehend that of the disapproved. The permissible is that concerning which the Law indicates equality between performance and omission. This occurs either through an address allowing a choice between them, through removal of blame from both, or through a rational indication that original freedom from liability (البراءة الأصلية) remains because there is no legal proof attaching a ruling to it, as will be explained later.

G-B2-0037 · grammar. أسلوب القصر بـ«إنّما» — «له بإطلاق، وإنما زدنا في الحد قولنا: مع». [Restriction: only / nothing but; identify what is being limited by the construction.]

G-B2-0039 · grammar. «قيد الجهة بـ«من حيث» — «على تركه من حيث هو ترك له بإطلاق، وإنما». [Insofar as / in the respect that; limits the scope of the assertion.]

18. Obligations with alternatives and extended times

R 18 · Bou Akl 25 · 1994 Arabic p. 44, 45 · Bou Akl 2015 Arabic p. 130

وَالْوَاجِبُ يَنْقَسِمُ إِلَى مُعَيَّنٍ وَإِلَى مُخَيَّرٍ بَيْنَ أَقْسَامٍ مَحْدُودَةٍ، وَذَلِكَ إِمَّا فِي الْفِعْلِ وَإِمَّا فِي الزَّمَانِ.
وَيُسَمُّونَ الْغَيْرَ مُعَيَّنِ الْفِعْلِ بَيْنَ أَقْسَامٍ مَحْدُودَةٍ الْوَاجِبَ الْمُخَيَّرَ، وَالْغَيْرَ مُعَيَّنِ الزَّمَانِ الْوَاجِبَ الْمُوَسَّعَ.

The obligatory is divided into what is determinate and what allows a choice among a limited set of alternatives, either concerning the act or concerning the time. They call an obligation whose act is not fixed, but admits a limited set of alternatives, an obligation allowing a choice (الواجب المخير); one whose time is not fixed, an obligation with an extended time (الواجب الموسع).

19. Alternative duties, welfare, and divine foreknowledge

R 19 · Bou Akl 26 · 1994 Arabic p. 45 · Bou Akl 2015 Arabic p. 130

وَقَدْ أَنْكَرَتِ الْمُعْتَزِلَةُ جَوَازَ مِثْلِ هَذَا الْوَاجِبِ عَقْلًا وَوُقُوعَهُ شَرْعًا، وَقَالُوا إِنْ كَانَتِ الْخِصَالُ الثَّلَاثُ فِي الْكَفَّارَةِ مُسْتَوِيَةً فِي الصِّفَةِ بِالْإِضَافَةِ إِلَى صَلَاحِ الْعَبْدِ، فَيَنْبَغِي أَنْ يُوجِبَ الْجَمِيعَ لِتَسَاوِيهَا فِي صَلَاحِ الْعَبْدِ، وَهَذَا مَبْنِيٌّ عَلَى رَأْيِهِمْ فِي الصَّلَاحِ وَالْأَصْلَحِ.

The Muʿtazilites denied both the rational possibility of such an obligation and its occurrence in the Law. They said: if the three alternatives in expiation are equal in their character with respect to the servant's welfare, all ought to be made obligatory because they are equally conducive to it. This is based on their doctrine of welfare and the best possible welfare.

وَأَيْضًا فَلَوْ سُلِّمَ لَهُمْ هَذِهِ الْقَاعِدَةُ الزمهم نَقِيضُ مَا وَضَعُوا، وَهُوَ أَنَّهُ إِذَا كَانَ كُلُّ وَاحِدٍ منها مُسَاوِيًا لِصَاحِبِهِ فِي وُقُوعِ الصَّلَاحِ بِهِ فَاسْتِعْمَالُ جَمِيعِهَا عَبَثٌ، وَكَذَلِكَ اسْتِعْمَالُ وَاحِدَةٍ مِنْهَا عَلَى التَّعْيِينِ، وَهُمْ لَا يُجَوِّزُونَ مِثْلَ هَذَا عَلَى اللَّهِ، وَكَأَنَّهُمْ لَمْ يَتَحَفَّظُوا بِأُصُولِهِمْ فِي هَذِهِ الْمَسْأَلَةِ، وَاحْتَجُّوا أَيْضًا بِأَنَّ عِلْمَ اللَّهِ مُتَعَلِّقٌ بِالَّذِي يَأْتِي الْعَبْدُ مِنْهَا فَهُوَ مُتَعَيِّنٌ ضَرُورَةً فِي نَفْسِهِ، وَلَا يُتَصَوَّرُ فِي مِثْلِ هَذَا تَخْيِيرٌ.

Yet, even if this principle were granted, the contrary of what they posit would follow: if each alternative equals the others in bringing about welfare, employing all of them is pointless, as is selecting one particular alternative; and they do not allow such purposelessness in God. They appear not to have guarded their own principles in this question. They also argued that God's knowledge concerns the alternative the servant will perform, which is therefore necessarily determinate in itself; no choice is conceivable in such a case.

BA-T012 · textual. قراءة الإسكوريال كما أثبتها بو عقل: «الزمهم»، مقابل «للزمهم» في طبعة العلوي. (Escorial reading as reported by Bou Akl, 2015, Arabic p. 132; variant against al-ʿAlawī.)

BA-X013 · textual. قراءة [أ] عند بو عقل «منها» في موضع «منهما» من طبعة [ع]. [Escorial reading according to Bou Akl 2015, Arabic p. 132; the earlier edition reads differently.]

BA-F014 · textual. طبعة بو عقل، شاهد الإسكوريال [أ]: «فلو سلم لهم»؛ مقابل قراءة العلوي [ع]: «فلو سلمت لهم». إنّ الشرط هنا مبنيّ للمجهول؛ الفاعل ليس هو المتكلم. [Bou Akl 2015, facing Arabic–French edition; this is a reported manuscript reading, not an independent examination of Escorial 1235.]

GRAM-BA-014 · grammar. الفعل المبني للمجهول بعد «لو» [Passive conditional: the principle is granted, not personally conceded by a named speaker.]

20. Legal examples suffice without resolving the metaphysics

R 20 · Bou Akl 27 · 1994 Arabic p. 45 · Bou Akl 2015 Arabic p. 132

وَالْكَلَامُ فِي هَذِهِ الْمَسْأَلَةِ لَيْسَ مِنْ هَذَا الْعِلْمِ الَّذِي نَحْنُ بِسَبِيلِهِ، بَلْ يَكْفِي مِنْ ذَلِكَ هَهُنَا أَنْ نَقُولَ: إِنَّ وُقُوعَ مِثْلِ هَذَا شَرْعًا مَوْجُودٌ كَخِصَالِ الْكَفَّارَةِ، وَانْعِقَادِ الْإِجْمَاعِ عَلَى اتِّسَاعِ أَوْقَاتِ أَكْثَرِ الصَّلَوَاتِ. وَالَّذِي أَنْكَرَتِ الْمُعْتَزِلَةُ يَلْزَمُهُمْ مِثْلُ ذَلِكَ فِي الْمُبَاحِ، وَبِالْجُمْلَةِ يَلْحَقُ هَذَا الِاعْتِرَاضُ الْمُمْكِنَ بِمَا هُوَ مُمْكِنٌ.

Discussion of this question does not belong to the science with which we are engaged. Here it is enough to say that such a thing does occur in the Law, as with the alternatives in expiation and the established consensus that most prayers have extended performance periods. The Muʿtazilites are bound to encounter the same difficulty they raised here in the case of the permissible. In general, this objection attaches to the possible insofar as it is possible.

N010 · textual. Printed p. 45 reads اتباع أوقات (‘observing the times’); the context concerns the extended time allowed for prayer. No conjectural replacement of اتباع by اتساع has been made.

BA15-V020 · textual. 2015 full-edition control completed for R §20 = Bou Akl §27, Arabic p.132, French p.133. Distinguish manuscript-attested changes as detailed in the preceding notes. See the source-verified change ledger for exact old and new Arabic/English strings.

21. When does an extended-time obligation become binding?

R 21 · Bou Akl 28–29 · 1994 Arabic p. 45, 46 · Bou Akl 2015 Arabic p. 132

وَقَدْ دَفَعَ بَعْضُ الْفُقَهَاءِ تَسْمِيَةَ مِثْلِ هَذَا وَاجِبًا، وَقَالُوا إِنَّمَا يَتَّصِفُ بِالْوُجُوبِ فِي الزَّمَانِ آخِرَ الْوَقْتِ، إِذْ فِيهِ يَقَعُ الْعِقَابُ عَلَى تَرْكِ إِيقَاعِ الصَّلَاةِ فِيهِ. وَأَمَّا أَوَّلُ الْوَقْتِ فَهُوَ نَدْبٌ إِذْ لَيْسَ يَلْحَقُ عِقَابٌ عَنْ تَرْكِ إِيقَاعِ الصَّلَاةِ فِيهِ. وَمِثْلُ هَذَا الِاعْتِرَاضِ يَلْحَقُ الْوَاجِبَ الْمُخَيَّرَ، إِلَّا أَنَّهُ لَا يُتَصَوَّرُ مِنْهَا وُجُوبُ وَاحِدٍ كَمَا تُصُوِّرَ فِي آخِرِ الْوَقْتِ إِلَّا أَنْ تُعْدَمَ الْخَصْلَتَانِ فَحِينَئِذٍ يُتَصَوَّرُ وُجُوبُ الثَّالِثَةِ. وَالَّذِي يَنْبَغِي أَنْ يُقَالَ فِي مِثْلِ هَذَا أَنَّهُ يُشْبِهُ الْوُجُوبَ مِنْ جِهَةٍ، وَالنَّدْبَ مِنْ أُخْرَى. أَمَّا شَبَهُهُ لِلْوُجُوبِ فَلِأَنَّهُ يَرْتَفِعُ الْفَرْضُ بِالصَّلَاةِ فِي أَوَّلِ الْوَقْتِ، وَأَمَّا شَبَهُهُ بِالنَّدْبِ فَمَا ذُكِرَ فِي الِاعْتِرَاضِ.

Some jurists rejected calling such a thing obligatory. They said that, with respect to time, it is characterized by obligation only at the end of the period, since punishment attaches to failing to perform the prayer then. At the beginning of the period, however, they call it recommended, since omitting the prayer at that point incurs no penalty. A similar objection applies to an obligation offering a choice: no individual alternative can be considered obligatory, as the final moment of the prayer period can, unless the other two alternatives become unavailable; only then does the obligation of the third become conceivable. What should be said of such a case is that it resembles obligation in one respect and recommendation in another. Its resemblance to obligation lies in the discharge of the duty by praying at the beginning of the period; its resemblance to recommendation is that mentioned in the objection.

BA15-V021 · textual. 2015 full-edition control completed for R §21 = Bou Akl §28, Arabic p.132, French p.133. Distinguish manuscript-attested changes as detailed in the preceding notes. See the source-verified change ledger for exact old and new Arabic/English strings.

G-B2-0046 · grammar. «واجبا، وقالوا إنما يتصف بالوجوب في الزمان آخر» — أسلوب القصر بـ«إنّما». [Restriction: only / nothing but; identify what is being limited by the construction.]

G-B2-0048 · grammar. «الواجب المخير، إلا أنه لا يتصور منها وجوب واحد» — استثناء أو استدراك بـ«إلّا أنّ». [Except that / however; the contextual function determines which qualification is intended.]

22. Intention distinguishes postponement from abandonment

R 22 · Bou Akl 29 · 1994 Arabic p. 46 · Bou Akl 2015 Arabic p. 132

وَهَذِهِ الْمُنَازَعَةُ لَفْظِيَّةٌ، وَلِذَلِكَ سُمِّيَ الْوَاجِبَ الْمُوَسَّعَ، وَهُوَ أَيْضًا يُفَارِقُ النَّدْبَ مِنْ جِهَةِ أَنَّ تَرْكَهُ إِنَّمَا يَكُونُ بِشَرْطِ الْعَزْمِ عَلَى إِتْيَانِهِ مَعَ الذِّكْرِ، إِذْ كَانَ اعْتِقَادُ التَّرْكِ مُطْلَقًا حَرَامًا.

This dispute is verbal; hence it was called an obligation with an extended time. It also differs from recommendation in that its omission is allowed only on condition of resolving to perform it while mindful of it, since resolving to omit it altogether is forbidden.

G-B2-0049 · grammar. أسلوب القصر بـ«إنّما». «أن تركه إنما يكون بشرط العزم على إتيانه — [Restriction: only / nothing but; identify what is being limited by the construction.]

G-B2-0050 · grammar. القيد الشرطي بـ«بشرط». «إنما يكون بشرط العزم على إتيانه مع الذكر — [On condition that; distinguishes the rule from its qualifying condition.]

23. Necessary means and the minimum sufficient performance

R 23 · Bou Akl 30–31 · 1994 Arabic p. 46 · Bou Akl 2015 Arabic p. 134

وَكَذَلِكَ اخْتَلَفُوا فِيمَا لَا يَتِمُّ الْوَاجِبُ إِلَّا بِهِ هَلْ يُسَمَّى وَاجِبًا. وَوَجْهُ الْقَوْلِ فِيهِ أَنَّ هَذَا يَنْقَسِمُ إِلَى مَا لَيْسَ لِلْعَبْدِ فِي فِعْلِهِ اخْتِيَارٌ كَالْقُدْرَةِ عَلَى الْمَشْيِ مَثَلًا، فَهَذَا لَا يُوصَفُ بِالْوُجُوبِ بَلْ هُوَ مِنْ شَرْطِ تَكْلِيفِ الْوُجُوبِ، أَوْ إِلَى مَا لِلْعَبْدِ فِي فِعْلِهِ اخْتِيَارٌ، وَهَذَا فَيَنْبَغِي أَنْ يَتَّصِفَ بِالْوُجُوبِ كَالطَّهَارَةِ الْمُشْتَرَطَةِ فِي الصَّلَاةِ. وَكَأَنَّ وُجُوبَ مِثْلِ هَذَا إِنَّمَا هُوَ مِنْ أَجْلِ غَيْرِهِ لَا مِنْ أَجْلِ ذَاتِهِ، فَتَنْشَأُ هَهُنَا قِسْمَةٌ أُخْرَى لِلْوَاجِبِ وَهُوَ أَنَّ مِنْهُ مَا هُوَ وَاجِبٌ مِنْ أَجْلِ غَيْرِهِ وَمِنْهُ مَا هُوَ وَاجِبٌ لِذَاتِهِ.

They likewise disagreed whether that without which an obligation cannot be fulfilled should itself be called obligatory. The proper account is that this is divided into what the servant has no choice in producing—for example, the capacity to walk—which is not characterized as obligatory but is a condition of imposing an obligation; and what the servant can produce by choice, which should be characterized as obligatory, such as the ritual purity required for prayer. The obligation of such a thing seems to be for the sake of something else, not for its own sake. Another division of the obligatory therefore emerges: some things are obligatory for the sake of something else, and some are obligatory in themselves.

وَالْوَاجِبُ أَيْضًا يَنْقَسِمُ إِلَى مَا يَتَقَدَّرُ بِقَدْرٍ مَحْدُودٍ وَإِلَى مَا لَا يَتَقَدَّرُ بِقَدْرٍ مَحْدُودٍ، كَمَسْحِ الرَّأْسِ وَالطُّمَأْنِينَةِ فِي الرُّكُوعِ، وَالْوَاجِبُ مِنْ هَذَا هُوَ أَقَلُّ مَا يَنْطَلِقُ عَلَيْهِ الِاسْمُ وَيَبْقَى الْبَاقِي نَدْبًا، وَهَذَا إِنَّمَا يُتَصَوَّرُ فِيمَا وَقَعَ مِنَ الْأَفْعَالِ مُتَتَابِعًا أَوْ مُتَشَافِعًا، وَبِالْجُمْلَةِ مَا لَمْ تَقَعْ أَجْزَاؤُهُ مَعًا.

The obligatory is also divided into what is measured by a determinate amount and what is not, such as wiping the head and remaining still in bowing. In the latter case, the obligatory amount is the least to which the name applies; what remains is recommended. This is conceivable only for acts occurring successively or following one upon another—in general, where their parts do not occur simultaneously.

G-B2-0052 · grammar. أسلوب القصر بـ«إنّما». «مثل هذا إنما هو من أجل غيره لا — [Restriction: only / nothing but; identify what is being limited by the construction.]

G-B2-0054 · grammar. القصر بالنفي والاستثناء. «يتم الواجب إلا به هل يسمى واجبا. ووجه — [Exclusivity through negation followed by an exception; not merely two independent clauses.]

BA-F016 · textual. طبعة بو عقل، شاهد الإسكوريال [أ]: «واجب لذاته»؛ مقابل قراءة العلوي [ع]: «واجب بذاته». اللام للتعليل والذات هي المقصودة في مقابلة الواجب لغيره. [Bou Akl 2015, facing Arabic–French edition; this is a reported manuscript reading, not an independent examination of Escorial 1235.]

24. From definitions to universal questions

R 24 · Bou Akl 32 · 1994 Arabic p. 46 · Bou Akl 2015 Arabic p. 134

فَهَذَا هُوَ الْقَوْلُ فِي تَحْدِيدِ أَنْوَاعِ الْأَحْكَامِ وَتَقْسِيمِهَا، وَقَدْ بَقِيَ الْقَوْلُ فِي مَسَائِلَ كُلِّيَّةٍ تَلْحَقُهَا.

Such is the account of the definition and division of the kinds of rulings (الأحكام). There remains the discussion of universal questions attaching to them.

25. Death during the time and reasonable postponement

R 25 · Bou Akl 33 · 1994 Arabic p. 47 · Bou Akl 2015 Arabic p. 134

فَأَوَّلُ مَسْأَلَةٍ مِنْهَا أَنَّا نَقُولُ، إِذَا مَاتَ الْمُكَلَّفُ فِي أَثْنَاءِ الْوَقْتِ وَلَمْ يَقْضِ لَمْ يَمُتْ عَاصِيًا بِإِجْمَاعِ السَّلَفِ عَلَى ذَلِكَ. وَقَوْلُ مَنْ أَثَّمَهُ خَطَأٌ، فَإِنَّا نَعْلَمُ قَطْعًا أَنَّهُمْ كَانُوا لَا يُؤَثِّمُونَ مَنْ مَاتَ وَقَدْ مَضَى مِنَ الْوَقْتِ مِقْدَارُ مَا تَقَعُ فِيهِ الصَّلَاةُ.

The first question is this. If the legally responsible person dies during the allotted period without having discharged the duty, he does not die disobedient: the early generations agreed on this. Whoever declares him sinful is mistaken, for we know with certainty that they did not declare sinful someone who died after enough time had elapsed to perform the prayer.

فَإِنْ قِيلَ فَكَيْفَ يَجُوزُ التَّرْكُ مَعَ الْعَزْمِ وَهُوَ لَا يَعْرِفُ سَلَامَةَ الْعَاقِبَةِ، قُلْنَا لَا يَجُوزُ التَّرْكُ مَعَ الْعَزْمِ إِلَّا إِلَى مُدَّةٍ يَغْلِبُ عَلَى ظَنِّهِ الْبَقَاءُ إِلَيْهَا، كَمَا يَجُوزُ لِلْمُعَزِّرِ أَنْ يَضْرِبَ إِلَى حَدٍّ لَا يَغْلِبُ عَلَى ظَنِّهِ الْهَلَاكُ. وَلِذَلِكَ قَالَ أَبُو حَنِيفَةَ رَحِمَهُ اللَّهُ لَا يَجُوزُ تَأْخِيرُ الْحَجِّ إِلَى سَنَةٍ لِأَنَّ الْبَقَاءَ إِلَيْهَا لَا يَغْلِبُ عَلَى الظَّنِّ. وَأَمَّا تَأْخِيرُ الصَّوْمِ وَالزَّكَاةِ إِلَى شَهْرٍ أَوْ شَهْرَيْنِ فَجَائِزٌ. وَالشَّافِعِيُّ رَحِمَهُ اللَّهُ يَرَى الْبَقَاءَ إِلَى سَنَةٍ غَالِبًا عَلَى ظَنِّ الشَّبَابِ.

If it is asked how omission with a resolve to act can be allowed when he does not know whether the outcome will be safe, we answer: such omission is allowed only until a time he judges it more probable than not that he will survive to, just as one administering discretionary punishment may strike up to a point at which death is not the predominant probability. Hence Abū Ḥanīfa—may God have mercy upon him—said that pilgrimage may not be postponed for a year, since survival until then is not predominantly probable; fasting and almsgiving, however, may be postponed for one or two months. Al-Shāfiʿī—may God have mercy upon him—regards survival for a year as predominantly probable for young people.

G-B2-0056 · grammar. الفاء الاستئنافية مع «إنَّ/إنْ/إنّما» — «أثمه خطأ، فإنا نعلم قطعا أنهم كانوا لا». [The initial فـ links the reasoning. Distinguish إنَّ (assertion), إنْ (condition) and إنّما (restriction) from the words and vowelled context.]

26. Abrogation of obligation and the logic of opposites

R 26 · Bou Akl 34 · 1994 Arabic p. 47 · Bou Akl 2015 Arabic p. 136

الْأَحْكَامُ تَنْقَسِمُ إِلَى وَاجِبٍ كَمَا تَقَدَّمَ، وَمُقَابِلِهِ فِي الطَّرَفِ الْأَقْصَى الْمَحْظُورِ، وَهُوَ الْحَرَامُ، وَبَيْنَهُمَا مُتَوَسِّطَانِ، وَهُمَا النَّدْبُ وَالْمَكْرُوهُ. وَبَيِّنٌ أَنَّ الْمُتَقَابِلَاتِ الَّتِي بَيْنَهَا مُتَوَسِّطٌ لَيْسَ يَلْزَمُ عَنْ رَفْعِ أَحَدِهَا وُجُودُ الْآخَرِ، فَلِذَلِكَ أَخْطَأَ مَنْ زَعَمَ أَنَّ الْوُجُوبَ إِذَا نُسِخَ رَجَعَ إِلَى مَا كَانَ قَبْلُ مِنْ حَظْرٍ. وَإِنَّمَا كَانَ يَكُونُ ذَلِكَ لَوْ لَمْ يَكُنْ بَيْنَ الْوَاجِبِ وَالْحَرَامِ وَاسِطَةٌ. وَأَبْيَنُ مِنْ هَذَا أَنْ يَرْجِعَ إِلَى مَا كَانَ قَبْلُ مِنْ إِبَاحَةٍ، إِذْ لَيْسَ يَتَضَمَّنُهَا جِنْسُ هَذِهِ الْمُتَقَابِلَاتِ الَّذِي هُوَ الطَّلَبُ.

Rulings are divided, as previously explained, into the obligatory and, at the opposite extreme, the prohibited, which is the forbidden. Between them lie two intermediates: the recommended and the disapproved. It is clear that where opposites admit an intermediate, removing one does not entail the existence of the other. Whoever claimed that when obligation is abrogated a thing returns to its previous prohibition was therefore mistaken. That would follow only if there were no intermediate between the obligatory and the forbidden. More evident still [is the error of supposing] that it returns to its previous permissibility, since permissibility is not contained within the genus of these opposites, namely demand (الطلب).

N011 · translation. The demonstrative in وأبين من هذا (printed p. 47) is taken to refer to the error just discussed; the explanatory bracket makes that syntactic interpretation visible.

G-B2-0058 · grammar. أسلوب القصر بـ«إنّما» — «من حظر. وإنما كان يكون ذلك لو لم». [Restriction: only / nothing but; identify what is being limited by the construction.]

G-B2-0059 · grammar. الشرط بـ«لو» — «يكون ذلك لو لم يكن بين الواجب والحرام». [Hypothetical or counterfactual condition; read the answer rather than treating لو as a simple past marker.]

27. Is the permissible commanded or legally burdensome?

R 27 · Bou Akl 35 · 1994 Arabic p. 47, 48 · Bou Akl 2015 Arabic p. 136

وَهُنَا يَبِينُ سُقُوطُ قَوْلِ مَنْ قَالَ الْمُبَاحُ مَأْمُورٌ بِهِ. وَكَذَلِكَ يَتَبَيَّنُ أَنَّهُ لَيْسَ مِنَ التَّكْلِيفِ، إِذِ التَّكْلِيفُ طَلَبُ مَا فِيهِ كُلْفَةٌ. وَمَنْ سَمَّاهُ تَكْلِيفًا وَذَهَبَ فِي ذَلِكَ إِلَى أَنَّهُ الَّذِي كُلِّفْنَا اعْتِقَادَ إِبَاحَتِهِ فِي الشَّرْعِ، أَوْ أَنَّهُ الَّذِي كُلِّفْنَا اعْتِقَادَ كَوْنِهِ مِنَ الشَّرْعِ، فَهُوَ مُسْتَكْرَهٌ فِي التَّسْمِيَةِ. وَبِالْجُمْلَةِ فَهَذَا النَّظَرُ لُغَوِيٌّ وَهُوَ أَلْيَقُ بِغَيْرِ هَذَا الْمَوْضِعِ، وَمِمَّا تَقَدَّمَ أَيْضًا مِنْ هَذَا الْقَوْلِ تَبَيَّنَ أَنَّ الْمَنْدُوبَ مَأْمُورٌ بِهِ إِذْ هُوَ طَلَبٌ مَا وَاقْتِضَاءٌ. فَأَمَّا مَنْ زَعَمَ أَنَّ الْأَمْرَ إِنَّمَا يُطْلَقُ عَلَى مَا فِي تَرْكِهِ عِقَابٌ، فَهِيَ دَعْوَى لُغَوِيَّةٌ، وَعَلَى مُدَّعِيهَا إِثْبَاتُ ذَلِكَ عُرْفًا شَرْعِيًّا أَوْ وَضْعًا لُغَوِيًّا.

Here the untenability of the claim that the permissible is commanded becomes clear. It is likewise clear that it does not belong to the imposition of legal responsibility (التكليف), since this is the demand for something involving a burden. Whoever calls it an imposition of responsibility, meaning that we are obliged to believe it permissible in the Law or obliged to believe that it belongs to the Law, strains the terminology. In general, this is a linguistic inquiry more suited to another place. The preceding account also makes clear that the recommended is commanded, since it involves a certain demand and requisition. As for the claim that ‘command’ applies only where omission incurs punishment, that is a linguistic claim; its proponent must establish it through either legal usage or linguistic convention.

G-B2-0061 · grammar. أسلوب القصر بـ«إنّما» — «أن الأمر إنما يطلق على ما في تركه». [Restriction: only / nothing but; identify what is being limited by the construction.]

SC2015-017 · textual. تبيّن. أ «ومما تقدم أيضا من هذا القول تبين أن المندوب»؛ ع «ومما تقدم أيضا من هذا القول يتبين أن المندوب» [perfect verb with the preceding argument serving as the basis of the conclusion] [Bou Akl 2015, Arabic p. 136, critical apparatus].

SC2015-018 · textual. يبين. أ «وهنا يبين سقوط قول»؛ ع «وهنا يتبين سقوط قول» [the invalidity of the assertion becomes manifest] [Bou Akl 2015, Arabic p. 136, critical apparatus].

28. Can one act be obligatory and forbidden in different respects?

R 28 · Bou Akl 36–37 · 1994 Arabic p. 48, 49 · Bou Akl 2015 Arabic p. 136

وَإِذَا كَانَ حَدُّ الْمُتَضَادَّيْنِ أَنَّهُمَا اللَّذَانِ لَا يَجْتَمِعَانِ فِي شَيْءٍ وَاحِدٍ بِالْعَدَدِ فِي وَقْتٍ وَاحِدٍ مِنْ جِهَةٍ وَاحِدَةٍ، فَلَا يَجُوزُ فِي الشَّرْعِ تَعَلُّقُ الْحَظْرِ وَالْإِيجَابِ بِشَيْءٍ وَاحِدٍ مِنْ جِهَةٍ وَاحِدَةٍ فِي وَقْتٍ وَاحِدٍ. فَأَمَّا تَعَلُّقُهُمَا بِشَيْئَيْنِ أَوْ فِي وَقْتَيْنِ فَذَلِكَ مَا لَا خِلَافَ فِيهِ، وَلَا يَرْجِعُ النَّهْيُ عَنْ أَحَدِهِمَا عَلَى الثَّانِي بِالْفَسَادِ، سَوَاءٌ كَانَ ذَلِكَ فِي شَيْئَيْنِ أَوْ فِي زَمَانَيْنِ. وَكَذَلِكَ يَلْزَمُ إِذَا تَعَلَّقَ النَّهْيُ وَالْإِيجَابُ بِشَيْءٍ وَاحِدٍ مِنْ جِهَتَيْنِ مِثْلَ أَنْ يَرِدَ الْأَمْرُ بِشَيْءٍ مُطْلَقًا، ثُمَّ يَرِدَ النَّهْيُ عَنْ ذَلِكَ الشَّيْءِ بِعَيْنِهِ مُقَيَّدًا بِصِفَةٍ أَوْ لِعِلَّةٍ مُصَرَّحٍ بِهَا.

If contraries are defined as two things that cannot coexist in one numerically identical thing, at one time and in one respect, then prohibition and obligation cannot in the Law attach to one thing in one respect at one time. Their attachment to two things or at two times is, however, undisputed; prohibiting one does not invalidate the other, whether the distinction concerns two things or two times. The same must hold when prohibition and obligation attach to one thing in two respects —for example, when something is commanded without qualification, and then that very thing is prohibited as qualified by an attribute or on account of an expressly stated cause.

إِلَّا أَنَّهُمُ اخْتَلَفُوا فِي مِثْلِ هَذَا الْجِنْسِ هَلْ يَعُودُ النَّهْيُ بِالْفَسَادِ عَلَى الْأَصْلِ الْمُوجَبِ مِنْ جِهَةِ مَا قُيِّدَ؟ فَزَعَمَ أَبُو حَامِدٍ رَحِمَهُ اللَّهُ أَنَّ هَذَا يَنْقَسِمُ عِنْدَهُمْ إِلَى مَا يَرْجِعُ إِلَى غَيْرِ الْمَنْهِيِّ لِسَبَبٍ مِنْ خَارِجٍ، وَإِلَى مَا يَرْجِعُ إِلَى صِفَةٍ فِي الشَّيْءِ. فَمَا يَرْجِعُ إِلَى غَيْرِ الْمَنْهِيِّ فَلَا يَرْجِعُ عَلَى الْأَصْلِ بِالْفَسَادِ، وَأَمَّا الَّذِي يَرْجِعُ إِلَى صِفَةٍ فِي الْمَنْهِيِّ عَنْهُ فَذَهَبَ الشَّافِعِيُّ إِلَى أَنَّهُ يَعُودُ عَلَى الْأَصْلِ بِالْفَسَادِ، وَحَيْثُ أَوْقَعَ الطَّلَاقَ فِي الْحَيْضِ صَرَفَ ذَلِكَ إِلَى الْإِضْرَارِ وَأَلْحَقَهُ بِالْقِسْمِ الْأَوَّلِ.

In cases of this kind, however, they disagreed whether the prohibition invalidates the originally obligatory act insofar as it is qualified. Abū Ḥāmid —may God have mercy upon him—stated that they divide this into what concerns something other than the prohibited act, owing to an external cause, and what concerns an attribute of the thing itself. What concerns something other than the prohibited act does not invalidate the original act. Concerning what relates to an attribute of the prohibited act, al-Shāfiʿī held that it invalidates the original act; where he gave effect to divorce during menstruation, he referred the prohibition to the infliction of harm and included it in the first division.

وَأَبُو حَنِيفَةَ لَا يَرَى فِي الْمَوْضِعَيْنِ النَّهْيَ يَعُودُ بِفَسَادِ الْأَصْلِ، سَوَاءٌ وَرَدَ الْمَنْهِيُّ عَنْهُ مُقَيَّدًا بِصِفَةٍ أَوْ سَبَبٍ مِنْ خَارِجٍ، وَزَعَمَ أَنَّ كَوْنَ الْحَدَثِ مُبْطِلًا لِلصَّلَاةِ إِنَّمَا ثَبَتَ بِدَلِيلِ الْإِجْمَاعِ.

Abū Ḥanīfa does not consider the prohibition to invalidate the original act in either case, whether the prohibited act is qualified by an attribute or by an external cause. He held that ritual impurity's invalidation of prayer was established only by the proof of consensus.

G-B2-0064 · grammar. أسلوب القصر بـ«إنّما» — «مبطلا للصلاة إنما ثبت بدليل الإجماع». [Restriction: only / nothing but; identify what is being limited by the construction.]

G-B2-0066 · grammar. أسلوب التسوية — «الثاني بالفساد، سواء كان ذلك في شيئين أو». [Whether one alternative or another; both possibilities fall under the same assessment.]

29. Prohibitive wording versus a qualified prohibition’s meaning

R 29 · Bou Akl 38 · 1994 Arabic p. 49 · Bou Akl 2015 Arabic p. 138

وَأَنَا أَرَى أَنَّ النَّظَرَ فِي هَذِهِ الْمَسْأَلَةِ إِنَّمَا هُوَ مِنْ جِهَةِ صِيغَةِ لَفْظِ النَّهْيِ، فَإِنَّ مَنْ يَدُلُّ عِنْدَهُ لَفْظَةُ ⟨النَّهْيِ عَلَى الْحَظْرِ جَعَلَ وُرُودَهُ فِي شَيْءٍ مُقَيَّدًا بِصِفَةٍ بَعْدَ⟩ إِيجَابِهِ مُطْلَقًا قَرِينَةٌ تُخْرِجُ النَّهْيَ عَنِ الْحَظْرِ إِلَى الْكَرَاهَةِ، وَأَكْثَرُ مِنْ ذَلِكَ وُرُودُهُ فِي شَيْءٍ لِأَمْرٍ مَا مِنْ خَارِجٍ بَعْدَ إِيجَابِ ذَلِكَ الشَّيْءِ مُطْلَقًا، وَسَنَتَكَلَّمُ فِي هَذَا فِيمَا بَعْدُ.

I consider that inquiry into this question concerns only the verbal form of prohibition. For one who understands the form of prohibition to signify that an act is forbidden, a prohibition applying to that act under a particular qualification, after its unconditional obligation has been established, is a contextual indicator (qarīna) that turns the apparent prohibition from strict forbiddance into disapproval. This is more clearly so if a prohibition attaches to the act on account of some external matter after the act has been enjoined without qualification. We shall discuss this later.

وَأَمَّا إِذَا نُظِرَ فِيهَا مِنْ حَيْثُ الْمَعْنَى، فَإِنَّ وُرُودَ النَّهْيِ عَنِ الشَّيْءِ مُقَيَّدًا بِأَمْرٍ مَا، سَوَاءٌ كَانَ سَبَبًا أَوْ صِفَةً، بَعْدَ إِيجَابِهِ مُطْلَقًا فَإِنَّهُ يَعُودُ عَلَى الْأَصْلِ بِالْفَسَادِ مِنْ جِهَةِ مَا هُوَ مُقَيَّدٌ. وَالَّذِي فَهِمْتَ هَهُنَا مِنْ وُرُودِ النَّهْيِ عَنِ الشَّيْءِ مُقَيَّدًا بَعْدَ إِيجَابِهِ مُطْلَقًا، هُوَ بِعَيْنِهِ يَنْبَغِي أَنْ تَفْهَمَهُ فِي وُرُودِ الْإِيجَابِ بِشَيْءٍ مَا مُقَيَّدًا بَعْدَ النَّهْيِ عَنْهُ مُطْلَقًا.

If, however, the question is considered from the standpoint of meaning, prohibiting a thing as qualified by some matter—whether a cause or an attribute—after making it obligatory without qualification invalidates the original act insofar as it is qualified. Precisely what you have understood here concerning a qualified prohibition issued after an unqualified obligation should be understood concerning a qualified obligation issued after an unqualified prohibition.

N012 · textual. REVISED after direct examination of Bou Akl 2015 Arabic p.138 §38 and French p.139: the originally dangling phrase is a copyist omission. The brackets ⟨…⟩ now restore the syntactic subject and conditional clause as Bou Akl proposes. Restoration is conjectural, not witnessed wording.

N013 · crux. Bou Akl 2015 prints an extended supplement from the prohibition-signifies-forbiddance position through the qualified prohibition after an unconditional duty. Without it, the prior English made the relation between wording, qualification and prohibition unclear. This edition accepts the restoration provisionally (Arabic p.138; French p.139; commentary §38).

N014 · textual. Bou Akl 2015 §38 supplies a conjectural restoration of the compressed construction. It must be distinguished from a directly transmitted Escorial reading. Compare the following contrast between verbal form (ṣīgha) and operative meaning (maʿnā).

BA15-R01 · textual. Qualified prohibitions; more than a gloss. The restoration supplies the predicate distinguishing a form normally taken as strict prohibition from a prohibition concerning a qualified act after its unconditional obligation. Bou Akl 2015, Arabic p.138, French p.139, commentary on §38. Compare the preceding / following source text; the angle-bracket segment is an editor’s conjecture.

G-B2-0067 · grammar. «هذه المسألة إنما هو من جهة صيغة لفظ — «أسلوب القصر بـ«إنّما». [Restriction: only / nothing but; identify what is being limited by the construction.]

G-B2-0069 · grammar. «بأمر ما، سواء كان سببا أو صفة، بعد — «أسلوب التسوية». [Whether one alternative or another; both possibilities fall under the same assessment.]

30. A methodological objection to the placement of the question

R 30 · Bou Akl 38 · 1994 Arabic p. 49 · Bou Akl 2015 Arabic p. 138

وَالْعَجَبُ مِنْ أَبِي حَامِدٍ كَيْفَ جَعَلَ النَّظَرَ فِي هَذِهِ الْمَسْأَلَةِ مِنْ هَذَا الْجُزْءِ مِنْ هَذَا الْكِتَابِ.

It is surprising that Abū Ḥāmid treated inquiry into this question as belonging to this part of this book.

BA-F019 · textual. طبعة بو عقل، شاهد الإسكوريال [أ]: «جعل النظر في هذه المسألة من هذا الجزء»؛ مقابل قراءة العلوي [ع]: «جعل النظر في هذه المسألة في هذا الجزء». من هذا الجزء: نسبة المسألة إلى الجزء، لا مجرد وقوعها فيه. [Bou Akl 2015, facing Arabic–French edition; this is a reported manuscript reading, not an independent examination of Escorial 1235.]

31. Forbidden places of prayer and prayer on usurped land

R 31 · Bou Akl 39–40 · 1994 Arabic p. 49, 50 · Bou Akl 2015 Arabic p. 140

وَأَمَّا مَنْ أَجَازَ الصَّلَاةَ فِي الْوَادِي وَالْحَمَّامِ وَأَعْطَانِ الْإِبِلِ فَإِنَّمَا يَنْبَغِي لَهُ أَنْ يَصْرِفَ النَّهْيَ الْوَارِدَ فِيهَا عَنِ التَّحْرِيمِ إِلَى الْكَرَاهَةِ، عَلَى مَذْهَبِ مَنْ يَرَى أَنَّ وُرُودَ النَّهْيِ عَنِ الشَّيْءِ مُقَيَّدًا بِأَمْرٍ مَا مِنْ خَارِجٍ بَعْدَ إِبَاحَتِهِ، أَوِ الْأَمْرِ بِهِ مُطْلَقًا، قَرِينَةٌ يُخْرَجُ بِهَا لَفْظُ النَّهْيِ عَنِ التَّحْرِيمِ إِلَى الْكَرَاهَةِ، هَذَا إِذَا كَانَ مِمَّنْ يَرَى أَنَّ صِيغَةَ النَّهْيِ تَقْتَضِي التَّحْرِيمَ، وَأَمَّا مَنْ لَا يَرَى ذَلِكَ فَالْأَمْرُ عَلَيْهِ سَهْلٌ.

Whoever permits prayer in a valley, a bathhouse, or camels' resting places should interpret the prohibition concerning these as disapproval rather than forbiddance, following the doctrine that prohibiting something as qualified by an external matter, after permitting or commanding it without qualification, supplies a contextual indicator shifting the expression of prohibition from forbiddance to disapproval. This applies if he holds that the form of prohibition entails forbiddance. For someone who does not hold this, the matter is easy.

وَأَمَّا مَنْ أَبْطَلَ الصَّلَاةَ فِي الْأَرْضِ الْمَغْصُوبَةِ لِكَوْنِهَا حَرَكَاتٍ وَأَكْوَانًا مَنْهِيًّا عَنْهَا، فَلِجَهْلِهِ بِحُدُودِ الْمُتَضَادَّةِ، لِأَنَّ الْإِيجَابَ وَالنَّهْيَ تَعَلَّقَ بِهَا مِنْ جِهَتَيْنِ مُخْتَلِفَتَيْنِ. وَلِذَلِكَ مَا وَقَعَ إِجْمَاعُ الصَّحَابَةِ رَضِيَ اللَّهُ عَنْهُمْ عَلَى تَرْكِ أَمْرِ الظَّلَمَةِ بِإِعَادَةِ الصَّلَوَاتِ عِنْدَ التَّوْبَةِ. وَتِلْكَ الْحَرَكَاتُ وَالْأَكْوَانُ هِيَ مِنْ جِهَةٍ مَأْمُورٌ بِهَا، وَمِنْ جِهَةٍ مَنْهِيٌّ عَنْهَا. وَكَذَلِكَ السُّجُودُ بَيْنَ يَدَيِ الصَّنَمِ عَلَى غَيْرِ جِهَةِ الْقَصْدِ هُوَ مِنْ جِهَةٍ حَرَامٌ، وَمِنْ جِهَةٍ مُتَقَرَّبٌ بِهِ.

Whoever invalidates prayer on usurped land because it consists of prohibited movements and spatial positions does so through ignorance of the definitions of contraries: obligation and prohibition attach to it in two different respects. That is why the Companions—may God be pleased with them—agreed not to command wrongdoers to repeat their prayers upon repentance. These movements and spatial positions are commanded in one respect and prohibited in another. Similarly, prostration before an idol without intending [worship of it] is forbidden in one respect and an act of drawing near [to God] in another.

N015 · translation. The bracketed objects in the final sentence clarify the contrast implied by القصد and متقرب به; the Arabic does not state them expressly (printed p. 50).

G-B2-0070 · grammar. «وأعطان الإبل فإنما ينبغي له أن يصرف النهي — أسلوب القصر بـ«إنّما». [Restriction: only / nothing but; identify what is being limited by the construction.]

G-B2-0072 · grammar. «وأعطان الإبل فإنما ينبغي له أن يصرف النهي — الفاء الرابطة مع «إنَّما» للحصر. [The conjunction fāʾ links this point; innamā restricts the assertion ("only / rather"), rather than introducing a conditional.]

32. Does a ruling about an act determine its contrary?

R 32 · Bou Akl 41 · 1994 Arabic p. 50 · Bou Akl 2015 Arabic p. 140

اخْتَلَفَ النَّاسُ فِي وُجُوبِ الشَّيْءِ هَلْ هُوَ حَظْرٌ لِضِدِّهِ، وَحَظْرِهِ وُجُوبٌ لِضِدِّهِ، فَنَقُولُ:

People have disagreed whether making something obligatory prohibits its contrary, and whether prohibiting it makes its contrary obligatory. We say:

33. Legal contrariety versus physical incompatibility

R 33 · Bou Akl 41 · 1994 Arabic p. 50 · Bou Akl 2015 Arabic p. 140

أَمَّا إِذَا حُدَّ الْمُتَضَادَّانِ بِحَسَبِ حَدِّهِمَا، وَلَمْ يُسَامَحْ فِي تَسْمِيَتِهِمَا، فَوُجُوبُ الشَّيْءِ حَظْرٌ لِضِدِّهِ، لِأَنَّ مَا لَا يَتِمُّ الْوَاجِبُ إِلَّا بِهِ فَهُوَ وَاجِبٌ كَمَا تَقَدَّمَ، وَسَوَاءٌ كَانَ ذَلِكَ فِعْلًا أَوْ تَرْكًا. وَهَذِهِ الْمَسْأَلَةُ إِنَّمَا تَتَصَوَّرُ فِي التَّضَادِّ الشَّرْعِيِّ. وَأَمَّا التَّضَادُّ الْمَحْسُوسُ فَهُوَ مِمَّا لَا يصح التَّكْلِيفُ إِلَّا بِتَرْكِهِ، وَهُوَ مِنْ شُرُوطِ الْفِعْلِ.

As for when the two contraries are defined according to their proper definition and the term is not used loosely, making a thing obligatory prohibits its contrary. For, as previously explained, whatever is indispensable to fulfilling an obligation is obligatory, whether it is an act or an omission. This question is conceivable only in legal contrariety (التضاد الشرعي). As for perceptible contrariety, abandoning the contrary is indispensable for the imposition of responsibility to be possible: it belongs to the conditions of the act.

BA-T021 · textual. قراءة الإسكوريال كما أثبتها بو عقل: «يصح»، مقابل «يصلح» في طبعة العلوي. (Escorial reading as reported by Bou Akl, 2015, Arabic p. 140; variant against al-ʿAlawī.)

G-B2-0073 · grammar. أسلوب القصر بـ«إنّما». وأما «وهذه المسألة إنما تتصور في التضاد الشرعي» — [Restriction: only / nothing but; identify what is being limited by the construction.]

G-B2-0075 · grammar. أسلوب التسوية — «كما تقدم، وسواء كان ذلك فعلا أو تركا». [Whether one alternative or another; both possibilities fall under the same assessment.]

BA-F020 · textual. طبعة بو عقل، شاهد الإسكوريال [أ]: «أما إذا حد المتضادان»؛ مقابل قراءة العلوي [ع]: «إنه إذا حد المتضادان». أمّا شرطٌ تفصيليّ يُجيب «فوجوب» بالفاء في «عنه». [Bou Akl 2015, facing Arabic–French edition; this is a reported manuscript reading, not an independent examination of Escorial 1235.]

GRAM-BA-020 · grammar. أمّا التفصيلية وفاء الجواب [Topic-setting “as for …”: the answer is introduced by فـ; not a simple declarative إنّ.]

34. When prohibiting one contrary obliges the other

R 34 · Bou Akl 42 · 1994 Arabic p. 50 · Bou Akl 2015 Arabic p. 142

وَأَمَّا الْمَحْظُورُ فَإِذَا كَانَ مِمَّا كَانَ لَيْسَ لَهُ ضِدٌّ، أَوْ مِمَّا لَهُ ضِدٌّ إِلَّا أَنَّ بَيْنَهُمَا مُتَوَسِّطًا، فَلَيْسَ يَلْزَمُ عَنْ حَظْرِهِ إِيجَابُ شَيْءٍ مَا. وَأَمَّا إِذَا كَانَ لَا يَخْلُو الشَّيْءُ مِنْ أَحَدِهِمَا، وَلَمْ يَكُنْ بَيْنَهُمَا مُتَوَسِّطٌ، فَحَظْرُهُ إِيجَابٌ لِضِدِّهِ، هَذَا أَيْضًا إِذَا كَانَ التَّضَادُّ شَرْعِيًّا، وَأَمَّا إِذَا كَانَ حِسِّيًّا فَهُوَ مِنْ شَرْطِ التَّكْلِيفِ.

As for the prohibited, if it has no contrary, or has a contrary but admits an intermediate between them, prohibiting it does not entail making anything obligatory. If, however, the thing cannot be without one of the two and there is no intermediate between them, prohibiting it makes its contrary obligatory. This too applies where the contrariety is legal; if it is perceptible, it belongs to the conditions of legal responsibility.

G-B2-0078 · grammar. استثناء أو استدراك بـ«إلّا أنّ». «له ضد إلا أن بينهما متوسطا، فليس يلزم عن» — [Except that / however; the contextual function determines which qualification is intended.]

35. Conclusion of the classification of rulings

R 35 · Bou Akl 43 · 1994 Arabic p. 50 · Bou Akl 2015 Arabic p. 142

فَعَلَى هَذَا يَنْبَغِي أَنْ يتأو ل السُّؤَالُ وَالْجَوَابُ فِي هَذِهِ الْمَسْأَلَةِ. وَهُنَا انْقَضَى الْقَوْلُ فِي الْقِسْمِ الثَّانِي مِنْ هَذَا الْجُزْءِ.

This is how the question and its answer should be interpreted. Here the discussion of the second section of this part ends.

BA-T023 · textual. قراءة الإسكوريال كما أثبتها بو عقل: «يتأو ل»، مقابل «يتناول» في طبعة العلوي. (Escorial reading as reported by Bou Akl, 2015, Arabic p. 142; variant against al-ʿAlawī.)

36. The three elements of a legal judgement

R 36 · Bou Akl 44 · 1994 Arabic p. 51 · Bou Akl 2015 Arabic p. 142

هَذَا الْقِسْمُ يَتَضَمَّنُ النَّظَرَ فِي أَرْكَانِ الْحُكْمِ، وَهِيَ ثَلَاثَةٌ: الْحَاكِمُ، وَالْمَحْكُومُ عَلَيْهِ، وَالْمَحْكُومُ فِيهِ.

This section comprises inquiry into the constituent elements of a ruling (الحكم). They are three: the one who rules, the person subject to the ruling, and that concerning which the ruling is made.

37. Divine authority and delegated human obedience

R 37 · Bou Akl 45 · 1994 Arabic p. 51 · Bou Akl 2015 Arabic p. 142

أَمَّا الْحَاكِمُ فَهُوَ الْمُخَاطِبُ بِالْإِيجَابِ. وَمِنْ شُرُوطِهِ، مَعَ كَوْنِهِ مُتَكَلِّمًا، نُفُوذُ الْحُكْمِ عَلَى الْإِطْلَاقِ. وَإِنَّمَا يَصِحُّ ذَلِكَ بَيْنَ الْمَالِكِ وَالْمَمْلُوكِ وَالْخَالِقِ وَالْمَخْلُوقِ، وَهُوَ اللَّهُ تَعَالَى. وَكُلُّ مَنْ لَزِمَتْ طَاعَتُهُ فَإِنَّمَا لَزِمَتْ بِإِيجَابِ اللَّهِ تَعَالَى كَالسُّلْطَانِ وَالْأَبِ وَمَا أَشْبَهَهُمَا. وَهُوَ الْقَادِرُ عَلَى الْعِقَابِ وَالثَّوَابِ إِذْ لَا يُتَصَوَّرُ الْإِيجَابُ أَوِ النَّهْيُ مِنْ غَيْرِ قَادِرٍ عَلَيْهِمَا. وَتَثْبِيتُ هَذَا فِي عِلْمِ الْكَلَامِ.

The one who rules is the speaker whose address imposes obligation. In addition to being a speaker, he must possess unrestricted authority for the ruling to take effect. This holds only between owner and owned, creator and created; the ruler is God Most High. Everyone whose obedience is obligatory—the ruler, the father, and the like—is owed obedience only because God Most High has made it obligatory. He has the power to punish and reward, since obligation or prohibition cannot be conceived as proceeding from one without power over them. This is established in theology (علم الكلام).

G-B2-0080 · grammar. أسلوب القصر بـ«إنّما» — «على الإطلاق. وإنما يصح ذلك بين المالك والمملوك». [Restriction: only / nothing but; identify what is being limited by the construction.]

G-B2-0081 · grammar. أداة شرط غير جازمة للتكرار — «مع كونه متكلما، نفوذ الحكم على الإطلاق. وإنما». [Whenever / the more … the more …; recurrent conditional relation.]

G-B2-0082 · grammar. الفاء الرابطة مع «إنّما» للحصر — «لزمت طاعته فإنما لزمت بإيجاب الله تعالى كالسلطان». [The conjunction fā’ links this point; innamā restricts the assertion (“only / rather”), rather than introducing a conditional.]

38. Understanding the address: children and impaired reason

R 38 · Bou Akl 46–48 · 1994 Arabic p. 51, 52 · Bou Akl 2015 Arabic p. 142

وَأَمَّا الْمَحْكُومُ عَلَيْهِ فَلَهُ شَرْطَانِ مِنْهُمَا أَنْ يَفْهَمَ الْخِطَابَ الْوَارِدَ بِأَمْرٍ أَوْ نَهْيٍ، إِذْ مَنْ لَيْسَ يَفْهَمُ الْخِطَابَ لَا يَصِحُّ مِنْهُ اقْتِضَاءُ وُجُوبِ الطَّلَبِ. فَإِنْ قِيلَ فَقَدْ وَجَبَتِ الزَّكَوَاتُ وَالْغَرَامَاتُ عَلَى الصِّبْيَانِ، قُلْنَا الْمُكَلَّفُ هُوَ الْوَلِيُّ بِشَرْطِ الِاسْتِعْدَادِ لِقَبُولِ الْعَقْلِ. وَكَذَلِكَ أَخْذُهُمْ بِالصَّلَاةِ قَبْلَ الْبُلُوغِ، الْأَبُ هُوَ الْمَأْمُورُ بِذَلِكَ، لِأَنَّهُ لَا يَفْهَمُ خِطَابَ الشَّرْعِ إِلَّا مَنْ يَعْرِفُ الشَّارِعَ، وَلَا يَعْرِفُ الشَّارِعَ إِلَّا مَنْ يَعْرِفُ اللَّهَ، وَهَذَا الشَّرْطُ مُدْرَكُهُ الْعَقْلُ.

Two conditions apply to the addressee; one is understanding the address containing a command or prohibition, since an obligatory demand cannot properly be directed to someone who does not understand the address. If it is objected that alms and financial liabilities have been imposed upon children, we answer: the legally responsible person is the guardian, subject to readiness to receive reason. Likewise, in requiring children to pray before puberty, it is the father who is commanded. For only one who knows the Lawgiver (الشارع) understands the Law's address, and only one who knows God knows the Lawgiver. This condition is apprehended by reason.

وَمِنْ هُنَا يَتَبَيَّنُ سُقُوطُ تَكْلِيفِ النَّاسِي وَالْغَافِلِ وَالْمَجْنُونِ وَالسَّكْرَانِ. فَإِنْ قِيلَ فَكَيْفَ يَقَعُ طَلَاقُ السَّكْرَانِ عِنْدَ مَنْ يُجَوِّزُهُ؟ قُلْنَا ذَلِكَ عَلَى جِهَةِ التَّغْلِيظِ، إِذْ كَانَ هُوَ الَّذِي جَنَى عَلَى نَفْسِهِ بِاخْتِيَارِهِ بَعْدَ شَرْطِ التَّكْلِيفِ وَهُوَ الْعَقْلُ. وَلَيْسَ يُتَصَوَّرُ مِثْلُ هَذَا فِي الْمَجْنُونِ، وَتَعَلُّقُ مَنْ تَعَلَّقَ فِي جَوَازِ خِطَابِهِ بِقَوْلِهِ تَبَارَكَ وَتَعَالَى: {لَا تَقْرَبُوا الصَّلَاةَ وَأَنْتُمْ سُكَارَى} فَإِنَّهُ إِنْ سُلِّمَ ظُهُورُ ذَلِكَ فِي الْآيَةِ فَلَيْسَ يُصَادَمُ بِالظَّوَاهِرِ الْقَطْعِيَّاتُ. وَلَهَا تَأْوِيلَاتٌ:

From this it becomes clear that legal responsibility lapses for the forgetful, the heedless, the insane, and the intoxicated. If it is asked why an intoxicated person's divorce takes effect according to those who allow it, we answer that this is a measure of severity: he has brought the harm upon himself by his own choice, after [possessing] reason, the condition of legal responsibility. Such a case cannot be conceived for an insane person. As for appealing, in support of the possibility of addressing the intoxicated, to His words—blessed and exalted is He—‘Do not approach prayer while you are intoxicated’: even if this apparent meaning is conceded in the verse, apparent meanings (الظواهر) are not set against certainties. The verse admits interpretations:

N016 · textual. Printed p. 51 has the compressed constructions الولي بشرط الاستعداد لقبول العقل and بعد شرط التكليف وهو العقل. The former is retained without silently assigning the readiness clause to a different subject; the latter is rendered with an explicit explanatory supplement.

G-B2-0084 · grammar. «الفاء الرابطة مع «إنْ» الشرطية — «وجوب الطلب. فإن قيل فقد وجبت الزكوات والغرامات». [The fāʾ connects the argument, and in here introduces a condition (if it is said / if it is / if he does); read its response as the result, not as an assertion with إنَّ.]

G-B2-0085 · grammar. «القيد الشرطي بـ«بشرط» — «هو الولي بشرط الاستعداد لقبول العقل. وكذلك أخذهم». [On condition that; distinguishes the rule from its qualifying condition.]

SC2015-022 · textual. أ «فله شرطان منهما أن يفهم الخطاب»؛ ع «فله شرطان هما أن يفهم الخطاب». منهما [one among the addressee’s two prerequisites, rather than identifying both as this one condition] [Bou Akl 2015, Arabic p. 142, critical apparatus].

39. Capacity to receive an address in the early stages of intoxication

R 39 · Bou Akl 48 · 1994 Arabic p. 52 · Bou Akl 2015 Arabic p. 144

أَحَدُهَا أَنَّهَا خِطَابٌ مَعَ الْمُنْتَشِي.

One interpretation is that the address is directed to a person in the early stages of intoxication.

N017 · textual. At R §39 the 1994 edition p. 52 prints «المستثنى» (“the excepted person”), while Bou Akl 2015 (Arabic p. 144) reports the Escorial reading «المنتشي» (“a person in the early stages of intoxication”). Bou Akl’s facing French p. 145 and the corresponding passage of al-Ghazālī’s Mustaṣfā support this reading. The Arabic and English here follow the manuscript reading as reported by Bou Akl; this is not an independent inspection of the Escorial folio.

BA-T025 · textual. قراءة الإسكوريال كما أثبتها بو عقل: «المنتشي»، مقابل «المستثنى» في طبعة العلوي. (Escorial reading as reported by Bou Akl, 2015, Arabic p. 144; variant against al-ʿAlawī.)

40. Addressing the sober about later intoxication

R 40 · Bou Akl 48 · 1994 Arabic p. 52 · Bou Akl 2015 Arabic p. 144

وَالْآخَرُ أَنَّهُ إِنَّمَا وَقَعَ الْمَنْعُ مِنْ إِفْرَاطِ الشُّرْبِ فِي أَوْقَاتِ الصَّلَاةِ، وَذَلِكَ خِطَابٌ فِي وَقْتِ الصِّحَّةِ، وَقَبْلَ أَنْ تُحَرَّمَ الْخَمْرُ.

Another is that what was prohibited was excessive drinking at the times of prayer: the address was issued while the hearers were in a sound state, before wine was prohibited.

G-B2-0086 · grammar. «والآخر أنه إنما وقع المنع من إفراط الشرب — «أسلوب القصر بـ«إنّما». [Restriction: only / nothing but; identify what is being limited by the construction.]

41. Eternal command and the limits of the present discipline

R 41 · Bou Akl 49 · 1994 Arabic p. 52 · Bou Akl 2015 Arabic p. 144

فَأَمَّا الِاعْتِرَاضُ الَّذِي يُلْحِقُونَ هَهُنَا وَهُوَ كَيْفَ يَكُونُ اللَّهُ آمِرًا فِي الْأَزَلِ لِعِبَادِهِ وَمِنْ شَرْطِ الْأَمْرِ أَنْ يَكُونَ الْمَأْمُورُ مَوْجُودًا، وَكَذَلِكَ كَوْنُهُ آمِرًا لِلسَّكْرَانِ فِي حَالِ سُكْرِهِ وَلِلْمَجْنُونِ وَالصَّبِيِّ، عَلَى شَرْطِ أَنْ يُفِيقَ ذَلِكَ وَيَصِحَّ ذَلِكَ وَيَبْلُغَ هَذَا، فَالْجَوَابُ عَنْهُ لَيْسَ مِمَّا يُمْكِنُ فِي هَذَا الْمَوْضِعِ، وَلَا هُوَ خَاصٌّ بِهَذَا النَّظَرِ. وَالْقَوْلُ فِيهِ مَبْنِيٌّ عَلَى قَوَاعِدَ تَحْتَاجُ إِلَى تَمْهِيدٍ طَوِيلٍ وَفَحْصٍ كَثِيرٍ. وَكَمَا قُلْنَا أَنَّهُ لَيْسَ يَنْبَغِي أَنْ نَفْحَصَ عَنْ كُلِّ شَيْءٍ وَلَا عَنْ أَشْيَاءَ كَثِيرَةٍ فِي مَوْضِعٍ وَاحِدٍ، بَلْ يَنْبَغِي أَنْ يُفْرَدَ بِالْقَوْلِ كُلُّ وَاحِدٍ مِنْهَا فِي الْمَوْضِعِ اللَّائِقِ بِهِ، وَالَّذِي يَحْمِلُ عَلَى هَذَا حُبُّ التكثر بِمَا لَيْسَ يُفِيدُ شَيْئًا.

They append the objection: how can God eternally command His servants, when a condition of commanding is that the commanded person exist? Similarly, how can He command the intoxicated while intoxicated, or the insane and the child, on condition that the first recover consciousness, the second become sound, and the third reach puberty? An answer is not possible in this place, nor is the question peculiar to this inquiry. Discussing it rests on principles requiring lengthy preparation and extensive examination. As we have said, we should not investigate everything, or many things, in a single place; each should receive its own treatment in the place appropriate to it. What prompts this practice is a love of multiplying material that serves no purpose.

> **BA-T024 · textual.** قراءة الإسكوريال كما أثبتها بو عقل: «التكثر»، مقابل «التكثير» في طبعة العلوي. (Escorial reading as reported by Bou Akl, 2015, Arabic p. 144; variant against al-ʿAlawī.)

42. Puberty as a practical legal sign

R 42 · Bou Akl 50 · 1994 Arabic p. 52 · Bou Akl 2015 Arabic p. 146

وَأَمَّا الشَّرْطُ الثَّانِي فَهُوَ الْبُلُوغُ، وَهَذَا الشَّرْطُ مُدْرَكُهُ الشَّرْعُ. فَإِنْ قِيلَ فَقَبْلَ أَنْ يَحْتَلِمَ الصَّبِيُّ بِزَمَانٍ يَسِيرٍ أَلَيْسَ هُوَ عَاقِلًا؟ فَإِنَّ انْفِصَالَ النُّطْفَةِ عَنْهُ لَا تَزِيدُهُ عَقْلًا؟ قُلْنَا: لَمَّا كَانَ ذَلِكَ مِمَّا يَخْفَى دَرْكُهُ فِي شَخْصٍ شَخْصٍ، وَيَخْتَلِفُ وَقْتُهُ، نَصَبَ الشَّرْعُ لِذَلِكَ عَلَامَةً تُوجَدُ عَلَى الْأَكْثَرِ دَالَّةً عَلَيْهِ.

The second condition is puberty, and this condition is apprehended through the Law. If it is asked whether a boy is not rational shortly before his first nocturnal emission, since the emission of semen does not add to his reason, we answer: because the attainment of reason is difficult to discern in each individual and its timing varies, the Law appointed a sign that indicates it in most cases.

> **G-B2-0092 · grammar.** «الفاء الرابطة مع «إنْ» الشرطية — «مدركه الشرع. فإن قيل فقبل أن يحتلم الصبي». [The fāʾ connects the argument, and in here introduces a condition (if it is said / if it is / if he does); read its response as the result, not as an assertion with إنَّ.]
>
> **G-B2-0093 · grammar.** «لَمَّا» للتعليل أو الزمن — «عقلا؟ قلنا: لما كان ذلك مما يخفى دركه». [When / since / because; identify whether this occurrence introduces a temporal clause or a reason.]

43. The voluntary act and intention of obedience

R 43 · Bou Akl 51 · 1994 Arabic p. 52 · Bou Akl 2015 Arabic p. 146

وَأَمَّا الْمَحْكُومُ فِيهِ وَهُوَ الْفِعْلُ فَإِنَّهُ مَا جَازَ كَوْنُهُ مُكْتَسَبًا لِلْعَبْدِ بِاخْتِيَارِهِ مَعَ اعْتِقَادِ اكْتِسَابِهِ طَاعَةً وَامْتِثَالًا.

That concerning which the ruling is made, namely the act, is what can be acquired by the servant through his choice, while believing that its acquisition is obedience and compliance.

> **G-B2-0094 · grammar.** «الفاء الاستئنافية مع «إنَّ/إنْ/إنّما» — «وهو الفعل فإنه ما جاز كونه مكتسبا للعبد». [The initial فـ links the reasoning. Distinguish إنَّ (assertion), إنْ (condition) and إنّما (restriction) from the words and vowelled context.]

44. Choice, necessary assent, and the will to obey

R 44 · Bou Akl 51–53 · 1994 Arabic p. 52, 53 · Bou Akl 2015 Arabic p. 146

وَيَنْبَغِي أَنْ يُعْلَمَ أَنَّ الْأُمُورَ الْمُكْتَسَبَةَ لِلْإِنْسَانِ هِيَ الَّتِي لَهُ أَنْ يَأْتِيَ مِنْهَا أَيَّ الضِّدَّيْنِ شَاءَ، مِثْلَ أَنَّ الْقِيَامَ مُكْتَسَبٌ لَهُ وَلَهُ أَنْ يَقُومَ أَوْ يَقْعُدَ. وَإِذَا كَانَ مَعْنَى الِاكْتِسَابِ هَذَا فَلَا مَعْنَى لِاسْتِثْنَائِهِمْ مِنْ هَذَا، كَمَا زَعَمُوا، وُجُوبَ النَّظَرِ الْمُعَرِّفِ، إِذْ لَا يُمْكِنُ فِيمَا زَعَمُوا قَصْدُ إِيقَاعِهِ طَاعَةً قَبْلَ الْمَعْرِفَةِ بِوُجُوبِهِ، لِأَنَّ وُجُوبَ النَّظَرِ كَمَا سَلَفَ مِنْ قَوْلِنَا يَحْصُلُ ضَرُورَةً لِكَوْنِ الْمَنْظُورِ فِيهِ مَعْلُومًا بِالضَّرُورَةِ. وَلَيْسَ لِإِنْسَانٍ اخْتِيَارٌ فِي وُقُوعِ التَّصْدِيقِ بِوُجُوبِهِ عِنْدَ ظُهُورِ الْمُعْجِزَةِ.

It should be understood that the things a human being acquires are those in which he may perform whichever of two contraries he wishes: standing, for example, is acquired by him, and he may stand or sit. If this is the meaning of acquisition (الاكتساب), there is no point in their purported exception for the obligation of inquiry that leads to knowledge, on the ground that one cannot intend to perform it as obedience before knowing it to be obligatory. For, as we have said, the obligation to inquire arises necessarily because the object of inquiry is necessarily known. A person has no choice in assenting to its obligatoriness when the miracle appears.

وَكَذَلِكَ أَيْضًا لَا مَعْنَى لِاسْتِثْنَائِهِمْ مِنْ ذَلِكَ إِرَادَةَ الطَّاعَةِ، وَقَوْلِهِمْ إِنَّ الْإِرَادَةَ لَوِ افْتَقَرَتْ إِلَى إِرَادَةٍ لَافْتَقَرَتِ الْإِرَادَةُ إِلَى إِرَادَةٍ وَتَسَلْسَلَ الْأَمْرُ، فَإِنَّ الْإِرَادَةَ شَوْقٌ، وَحُدُوثُ الشَّوْقِ لِلْإِنْسَانِ كَالضَّرُورِيِّ، إِذْ كَانَ فَاعِلُهُ التَّصْدِيقَ بِالرَّغْبَةِ وَالرَّهْبَةِ، فَشَرْطُ الْفِعْلِ الشَّرْعِيِّ أَنْ يَكُونَ مُكْتَسَبًا أَوَّلًا، ثُمَّ ثَانِيًا أَنْ يَكُونَ السَّبَبُ فِي اكْتِسَابِهِ اعْتِقَادَ وُجُوبِ الْأَمْرِ لِأَشْيَاءَ أُخَرَ مِمَّا يَجُوزُ لَهُ أَنْ يَفْعَلَ.

Nor is there any point in their exception for the will to obey, or their saying that if willing required a will, that will would require another will, producing an infinite regress. Will is desire (شوق), and the arising of desire in a human being is something like a necessary occurrence, since its producer is assent involving hope and fear. Thus the condition of a legally prescribed act is, first, that it be acquired; and second, that the cause in acquiring [the act] be belief in the command's obligatoriness, [rather than] other things he may do.

N018 · textual. The final clause on printed p. 53 is syntactically defective or compressed: السبب في اكتساب اعتقاد وجوب الأمر لأشياء أخر مما يجوز له أن يفعل. The context (§43 and the immediately preceding account of motivation) suggests contrasting belief in obligation with other motives. The English marks this contextual interpretation with brackets; no manuscript correction or missing negative is asserted, and the printed Arabic is retained.

G-B2-0095 · grammar. إن الإرادة لو افتقرت إلى إرادة لافتقرت الإرادة — «لو» بـ«الشرط». [Hypothetical or counterfactual condition; read the answer rather than treating لو as a simple past marker.]

SC2015-026 · textual. أ «أن يكون السبب في اكتسابه اعتقاد وجوب الأمر»؛ ع «أن يكون السبب في اكتساب اعتقاد وجوب الأمر». ضمير الغائب واتصال المصدر [belief in obligation is the cause of acquiring the action, not the object of acquisition] [Bou Akl 2015, Arabic p. 146, critical apparatus].

45. Human agency and the impossibility of burdens beyond capacity

R 45 · Bou Akl 54–55 · 1994 Arabic p. 53, 54 · Bou Akl 2015 Arabic p. 148

وَأَمَّا الشَّيْخُ أَبُو الْحَسَنِ فَلَيْسَ مِنْ شَرْطِ الْفِعْلِ عِنْدَهُ أَنْ يَكُونَ مُكْتَسَبًا، بَلْ يَرَى أَنْ لَيْسَ هَهُنَا فِعْلٌ مُكْتَسَبٌ لِلْإِنْسَانِ أَصْلًا، وَأَنَّ مَا يُظْهِرُ كَوْنَ الْإِنْسَانِ فَاعِلًا لِلشَّيْءِ فَأَمْرٌ مُصَاحِبٌ وَلَاحِقٌ لَا أَنَّ الْإِنْسَانَ لِذَلِكَ الْفِعْلِ سَبَبٌ لَا قَرِيبٌ وَلَا بَعِيدٌ، حَتَّى تَكُونَ نِسْبَةُ ذِي الْقَدَمَيْنِ مَثَلًا إِلَى الْمَشْيِ هِيَ بِعَيْنِهَا نِسْبَةَ الْعَادِمِ لِلْقَدَمَيْنِ. وَهَذِهِ مُخَالَفَةٌ لِلْحِسِّ وَرَأْيٌ غَرِيبٌ جِدًّا عَنْ طِبَاعِ الْإِنْسَانِ. وَقَدْ بَيَّنَ أَبُو الْمَعَالِي فِي «الرِّسَالَةِ النِّظَامِيَّةِ» الْوَجْهَ الَّذِي بِهِ يصح فِي الشَّرْعِ أَنْ يُقَالَ إِنَّ لِلْإِنْسَانِ اقْتِدَارًا وَاكْتِسَابًا.

For the shaykh Abū al-Ḥasan, however, being acquired is not a condition of an act. He holds that there is no act acquired by the human being at all: what makes the human being appear to be an agent of something is an accompanying and incidental matter, without the human being being either its proximate or its remote cause. Thus, for example, the relation of someone with two feet to walking would be exactly that of someone without feet. This contradicts sense perception and is a view exceedingly foreign to human nature. Abū al-Maʿālī, in al-Risāla al-Niẓāmiyya, explained the respect in which one may properly say, within the Law, that human beings possess capacity and acquisition (اقتدارا واكتسابا).

وَمَنْ لَمْ يَكُنْ عِنْدَهُ لِلْإِنْسَانِ اقْتِدَارٌ عَلَى شَيْءٍ مَا، جَازَ عِنْدَهُ تَكْلِيفُ مَا لَا يُطَاقُ، وَبِحَقٍّ مَا فَعَلَ ذَلِكَ لِأَنَّهُ لَيْسَ عَلَى رَأْيِهِ هَهُنَا شَيْءٌ يُطَاقُ. وَالَّذِي يَنْبَغِي أَنْ نَقُولَ هَهُنَا أَنَّ تَكْلِيفَ مَا لَا يُطَاقُ مُمْتَنِعٌ عَقْلًا وَشَرْعًا. أَمَّا شَرْعًا فبقوله: {لَا يُكَلِّفُ اللَّهُ نَفْسًا إِلَّا وُسْعَهَا}. وَأَمَّا عَقْلًا فَلِامْتِنَاعِ قِيَامِ الْمُحَالِ بِالنَّفْسِ، وَأَنَّ مِنَ الشَّرْطِ الْمَأْمُورِ بِهِ أَنْ يَكُونَ مَفْهُومًا وَمُتَصَوَّرًا مَكَانُهُ عِنْدَ الْآمِرِ وَالْمَأْمُورِ.

Whoever denies human beings capacity for anything allows the imposition of what is beyond their capacity; he is right to do so on his own account, since on his view nothing is within their capacity. What we should say here is that imposing what is beyond capacity is impossible both rationally and legally. Legally, because of His saying, ‘God charges no soul beyond its capacity.’ Rationally, because the impossible cannot be present in the soul, and because a condition of what is commanded is that it be understood and its possibility conceived by both the commander and the commanded.

N019 · textual. At the close of §45, printed p. 54 has ومتصورا مكانه; ‘its possibility conceived’ reads مكانه contextually as إمكانه. The visible printed form is retained in Arabic.

N020 · translation. Abū al-Ḥasan is al-Ashʿarī; Abū al-Maʿālī is al-Juwaynī. This paragraph reports and criticizes theological accounts of human agency.

N021 · grammar. In the first segment يُظْهِرُ is read transitively: “what makes [him] appear to be an agent”; كَوْنَ is its object. This supplies a grammatical reading without altering the consonants. The description is Ibn Rushd’s criticism of Abū al-Ḥasan’s position, not an independent reconstruction of al-Ashʿarī’s doctrine. In the last segment the printed مَكَانُهُ is preserved, although the English follows the likely sense of إِمْكَانُهُ.

BA-T028 · textual. قراءة الإسكوريال كما أثبتها بو عقل: «فبقوله»، مقابل «فلقوله» في طبعة العلوي. (Escorial reading as reported by Bou Akl, 2015, Arabic p. 148; variant against al-ʿAlawī.)

BA-T029 · textual. قراءة الإسكوريال كما أثبتها بو عقل: «يصح»، مقابل «يصلح» في طبعة العلوي. (Escorial reading as reported by Bou Akl, 2015, Arabic p. 148; variant against al-ʿAlawī.)

G-B2-0099 · grammar. القصر بالنفي والاستثناء — «الله نفسا إلا وسعها}. وأما عقلا فلامتناع قيام». [Exclusivity through negation followed by an exception; not merely two independent clauses.]

46. Further questions concerning responsible action

R 46 · Bou Akl 56 · 1994 Arabic p. 54 · Bou Akl 2015 Arabic p. 148

وَقَدْ تَلْحَقُ آخِرَ هَذَا الْجُزْءِ مَسَائِلُ:

Several questions may be appended to the end of this part:

SC2015-027 · textual. تلحق. أ «وقد تلحق آخر»؛ ع «وقد يلحق آخر». [feminine concord with following plural مسائل] [Bou Akl 2015, Arabic p. 148, critical apparatus].

47. Coercion, intention, and degrees of harm

R 47 · Bou Akl 57–58 · 1994 Arabic p. 54, 55 · Bou Akl 2015 Arabic p. 148

فَمِنْهَا هَلِ الْمُكْرَهُ عَلَى وَفْقِ التَّكْلِيفِ أَوْ خِلَافِهِ مُخْتَارٌ حَتَّى يُثَابَ عَلَى الْوَاجِدِ وَيُعَاقَبَ عَلَى الْآخَرِ؟ وَنَحْنُ نَقُولُ فِي ذَلِكَ: أَمَّا الْمُكْرَهُ عَلَى وَفْقِ التَّكْلِيفِ فَقَدْ يُشْبِهُ أَنْ يُظَنَّ بِهِ أَنَّهُ مُخْتَارٌ مِنْ جِهَةِ أَنَّ لَهُ أَنْ يَأْتِيَ بِخِلَافِ مَا أُكْرِهَ عَلَيْهِ مُحْتَمِلًا لِمَا بِهِ أُكْرِهَ. وَهَذَا يَتَفَاوَتُ بِحَسَبِ مَا يَلْحَقُ الْمُكْرَهَ مِنَ الْأَذَى. لَكِنْ إِنْ لَمْ يَأْتِ ذَلِكَ مُعْتَقِدًا إِتْيَانَهُ طَاعَةً وَامْتِثَالًا لَمْ يُثَبْ عَلَيْهِ، فَإِنِ اعْتَقَدَ ذَلِكَ أُثِيبَ عَلَيْهِ. وَإِنْ كَانَ سَبَبُ تَحْرِيكِهِ إِلَى الْفِعْلِ الْإِكْرَاهَ، فَإِنَّهُ إِذَا أَخَذَ فِي الْفِعْلِ وَاعْتَقَدَ وُقُوعَهُ طَاعَةً أُثِيبَ عَلَيْهِ.

One question is whether someone coerced into compliance with, or violation of, a legal requirement (التكليف) acts by choice, so as to be rewarded for the one and punished for the other. We say: someone coerced into compliance may reasonably be thought to act by choice insofar as he can do otherwise and endure the means of coercion. This varies with the harm inflicted upon him. Yet if he does not perform the act believing it to be obedience and compliance, he receives no reward; if he does believe this, he is rewarded. Even when coercion initially moves him to act, if, upon undertaking the act, he believes its performance to be obedience, he is rewarded.

وَعَلَى هَذَا الْوَجْهِ جَاءَ إِكْرَاهُ الْكُفَّارِ عَلَى الْإِيمَانِ بِالْقَتْلِ فِي الشَّرْعِ. وَبِالْجُمْلَةِ فَالتَّوَعُّدُ بِالْعِقَابِ هُوَ إِكْرَاهٌ مَا عَلَى هَذَا الْوَجْهِ. وَمِثْلُ هَذَا يُتَصَوَّرُ فِي أَنْ يَكُونَ الْإِنْسَانُ يَصُدُّهُ عَنِ الِامْتِثَالِ عِنَادٌ أَوْ غَيْرُ ذَلِكَ مِنَ الْأَسْبَابِ الْمَانِعَةِ. وَبِالْجُمْلَةِ الْأَمَّارَةُ بِالسُّوءِ كَثِيرًا مَا تَصُدُّ الْإِنْسَانَ عَنِ الْوَاجِبِ مَعَ اعْتِقَادِ وُجُوبِهِ.

It is in this respect that coercing unbelievers to faith by [the threat of] killing occurs in the Law. In general, threatening punishment is a kind of coercion in this respect. Such a case is conceivable when obstinacy or some other impediment prevents a person from complying. In general, the soul that commands evil often turns a person away from a duty even while he believes it obligatory.

وَأَمَّا الْمُكْرَهُ عَلَى مُخَالَفَةِ الشَّرْعِ مِثْلِ الْإِكْرَاهِ عَلَى قَتْلِ مُسْلِمٍ، أَوْ تَرْكِ الصَّلَاةِ، فَالسُّؤَالُ فِيهِ فِي مَوْضِعَيْنِ: أَحَدُهُمَا: هَلْ إِذَا فَعَلَ بِمُقْتَضَى الْإِكْرَاهِ أَثِمَ أَمْ لَا؟ وَالثَّانِي: إِنِ احْتَمَلَ الْإِكْرَاهَ وَلَمْ يَفْعَلْ بِمُقْتَضَاهُ هَلْ يُثَابُ أَوْ يَأْثَمُ، فَإِنَّ لِنَفْسِ الْمَرْءِ عَلَيْهِ حَقًّا،

As for someone coerced into violating the Law—for example, into killing a Muslim or omitting prayer—there are two questions. First, does he sin if he acts as the coercion demands? Second, if he endures the coercion and does not act as it demands, is he rewarded or does he sin, given that a person's own life has a claim upon him?

وَالَّذِي يَنْبَغِي أَنْ يُقَالَ فِي ذَلِكَ هُوَ أَنَّ الْإِكْرَاهَ تَتَفَاوَتُ مَرَاتِبُهُ لِتَفَاوُتِ مَا بِهِ يَقَعُ الْإِكْرَاهُ، وَمُدْرَكُ مَرَاتِبِ هَذَا التَّفَاوُتِ، وَالْمُقَايَسَةِ بَيْنَهُ وَبَيْنَ مُخَالَفَةِ الْأَمْرِ وَتَرْجِيحِ أَحَدِهِمَا عَلَى الْآخَرِ، مُدْرَكٌ شَرْعِيٌّ، وَلَاسِيَّمَا إِذَا كَانَ مَا بِهِ يَقَعُ الْإِكْرَاهُ مِنْ نَوْعِ الْمُكْرَهِ عَلَيْهِ، مِثْلَ أَنْ يُكْرَهَ بِالْقَتْلِ عَلَى الْقَتْلِ، وَبِالْجُمْلَةِ فَهَذِهِ الْمَسْأَلَةُ اجْتِهَادِيَّةٌ.

What should be said is that coercion varies in degree according to its means. Apprehending these degrees, comparing them with violation of the command, and preferring one over the other are matters apprehended through the Law, especially when the means of coercion is of the same kind as the act demanded—for example, coercion by killing into killing. In general, this question is a matter of independent judgement (اجتهادية).

N022 · translation. ‘The threat of’ in the second segment makes explicit the coercive context established by التوعد بالعقاب; the Arabic phrase is بالقتل. The passage presents the author's historical legal argument.

G-B2-0102 · grammar. «الشرط الوصلي بـ«وإن كان» — «أثيب عليه. وإن كان سبب تحريكه إلى الفعل الإكراه». [Even if / although; the condition does not overturn the principal judgement.]

SC2015-030 · textual. يتفاوت بحسب». أ «وهذا يتفاوت بحسب»؛ ع «وهذا التفاوت بحسب». [verbal predicate, rather than nominative noun التفاوت] [Bou Akl 2015, Arabic p. 148, critical apparatus].

48. Active restraint and mere non-performance

R 48 · Bou Akl 59 · 1994 Arabic p. 55 · Bou Akl 2015 Arabic p. 150

وَمِنْهَا: هَلِ الْمُقْتَضَى بِالتَّكْلِيفِ الْكَفُّ كَمَا يُقْتَضَى الْفِعْلُ. وَالْجَوَابُ أَنَّ التَّرْكَ صِنْفَانِ: صِنْفٌ يَلْحَقُ الْإِنْسَانَ عِنْدَ تَرْكِهِ التَّلَبُّسُ بِضِدٍّ، فَهَذَا يُثَابُ عَلَيْهِ كَالصِّيَامِ. وَصِنْفٌ لَا يَلْحَقُ الْإِنْسَانَ عِنْدَ تَرْكِهِ التَّلَبُّسُ بِضِدٍّ، فَهَذَا لَا يُثَابُ عَلَيْهِ. وَإِلْحَاقُ مَسْأَلَةٍ مَسْأَلَةٍ بِهَذَيْنِ الصِّنْفَيْنِ نَظَرٌ فُرُوعِيٌّ.

Another question is whether the imposition of legal responsibility (التكليف) requires restraint just as action is required. The answer is that omission is of two kinds. In one, a person, when omitting something, engages in its contrary; this is rewarded, as in fasting. In the other, omitting something does not involve engagement in a contrary; this is not rewarded. Assigning each individual case to one of these two kinds belongs to inquiry into the branches of law.

BA-F031 · textual. طبعة بو عقل، شاهد الإسكوريال [أ]: «كما يقتضى الفعل»؛ مقابل قراءة العلوي [ع]: «كما يقتضي الفعل». يُقْتَضَى بصيغة المجهول؛ الفعل نفسه مطلوب، لا أن الفعل هو الذي يطلب. [Bou Akl 2015, facing Arabic–French edition; this is a reported manuscript reading, not an independent examination of Escorial 1235.]

GRAM-BA-031 · grammar. المضارع المبني للمجهول «يُقْتَضَى» [Passive imperfect: what is demanded is the act, so the comparison is between two obligations.]

49. Commands before fulfilment of their conditions

R 49 · Bou Akl 60–61 · 1994 Arabic p. 55 · Bou Akl 2015 Arabic p. 150

وَمِنْهَا: هَلْ يَتَوَجَّهُ الْأَمْرُ بِالشَّيْءِ قَبْلَ حُصُولِ شَرْطِهِ، كَالْأَمْرِ بِالصَّلَاةِ، فَيُعَاقَبُ عَلَى تَرْكِهِ مِنْ غَيْرِ حُصُولِ شَرْطِهِ، هَذَا إِذَا كَانَ الشَّرْطُ شَرْعِيًّا كَأَمْرِ الْمُحْدِثِ بِالصَّلَاةِ فِي حِينِ إِحْدَاثِهِ، أَوْ لَا يَتَوَجَّهُ الْأَمْرُ بِالشَّيْءِ إِلَّا بَعْدَ حُصُولِ شَرْطِهِ كَالْأَمْرِ بِالصَّلَاةِ فِي حِينِ الطَّهَارَةِ؟

Another question is whether the command to do something, such as the command to pray, applies before its condition is fulfilled, so that omission is punishable even without fulfilment of the condition. This concerns a legal condition: for example, commanding a ritually impure person to pray while impure. Or does the command apply only after the condition is fulfilled, as when prayer is commanded in a state of purity?

وَنَحْنُ نَقُولُ: إِذَا كَانَ الشَّرْطُ مُكْتَسَبًا لِلْإِنْسَانِ بِاخْتِيَارِهِ فَجَائِزٌ أَنْ يُؤْمَرَ الْإِنْسَانُ بِالشَّيْءِ عَلَى تَقْدِيرِ حُصُولِ شَرْطِهِ وَيُعَاقَبَ عَلَى تَرْكِهِ، وَإِنْ لَمْ يَأْتِ بِشَرْطِهِ كَتَارِكِ الصَّلَاةِ يُعَاقَبُ عَلَيْهَا وَإِنْ لَمْ يَتَوَضَّأْ قَطُّ، وَبِذَلِكَ وَرَدَ الشَّرْعُ.

We say: if a person can acquire the condition by choice, he may be commanded to perform the act on the supposition that its condition is fulfilled and punished for omitting it even if he has not fulfilled the condition. Someone who omits prayer is punished for it even if he has never performed ablution. So the Law has prescribed.

وَقَدْ دَلَّ دَلِيلُ الْإِجْمَاعِ عَلَى لُحُوقِ الْعِقَابِ لِلْمُكَذِّبِ بِالرُّسُلِ، قَبْلَ الْمَعْرِفَةِ بِاللَّهِ وَإِنْ كَانَتْ شَرْطًا لِلْإِيمَانِ بِالرُّسُلِ، وَقَدْ تَمَسَّكَ قَوْمٌ فِي هَذَا بِقَوْلِهِ عَزَّ وَجَلَّ: {مَا سَلَكَكُمْ فِي سَقَرَ قَالُوا لَمْ نَكُ مِنَ الْمُصَلِّينَ}، وَرَامُوا أَنْ يبي نوا أَنَّهُ نَصٌّ فِي الْآيَةِ، وَهِيَ وَإِنْ لَمْ تَكُنْ نَصًّا فَهِيَ ظَاهِرَةٌ، لِأَنَّهُ مُحْتَمَلٌ أَنْ يراد هَهُنَا بِالْمُصَلِّينَ الْمُؤْمِنِينَ كَمَا قَالَ عَلَيْهِ السَّلَامُ: «نُهِيتُ عَنْ قَتْلِ الْمُصَلِّينَ». وَمَا امْتَنَعَ وُقُوعُ مِثْلِ هَذَا عِنْدَهُ عَقْلًا صَرَفَ الظَّاهِرَ إِلَى التَّأْوِيلِ كَالْعَادَةِ فِي الظَّاهِرِ الْمُحْتَمِلِ.

The proof of consensus indicates that punishment attaches to one who denies the messengers even before knowing God, although such knowledge is a condition of faith in the messengers. Some appealed here to His words—mighty and exalted—‘What brought you into Saqar? They said: We were not among those who pray.’ They sought to establish that the verse contains unambiguous wording (نص) on this. Although it is not unambiguous, this is its apparent meaning (ظاهرة), since ‘those who pray’ may here mean believers, as in his saying—peace be upon him—‘I have been forbidden to kill those who pray.’ Anyone who considers such a case rationally impossible interprets the apparent meaning otherwise, as is usual with an apparent expression that admits alternatives.

BA-T033 · textual. قراءة الإسكوريال كما أثبتها بو عقل: «يراد»، مقابل «يريد» في طبعة العلوي. (Escorial reading as reported by Bou Akl, 2015, Arabic p. 152; variant against al-ʿAlawī.)

BA-T034 · textual. قراءة الإسكوريال كما أثبتها بو عقل: «يبي نوا»، مقابل «يثبتوا» في طبعة العلوي. (Escorial reading as reported by Bou Akl, 2015, Arabic p. 152; variant against al-ʿAlawī.)

G-B2-0106 · grammar. «المعرفة بالله وإن كانت شرطا للإيمان بالرسل، وقد تمسك» — «وإن كان» بـ«الشرط الوصلي». [Even if / although; the condition does not overturn the principal judgement.]

G-B2-0107 · grammar. «لم يأت بشرطه كتارك الصلاة يعاقب عليها وإن» — «بشرط» بـ«القيد الشرطي». [On condition that; distinguishes the rule from its qualifying condition.]

50. Legal conditions are not conditions of physical possibility

R 50 · Bou Akl 62 · 1994 Arabic p. 56 · Bou Akl 2015 Arabic p. 152

وَقَدِ احْتَجَّ مَنْ مَنَعَ التَّكْلِيفَ بِمِثْلِ هَذَا بِأَنَّهُ لَا مَعْنَى لِوُجُوبِ الزَّكَاةِ وَقَضَاءِ الصَّلَاةِ مَعَ اسْتِحَالَةِ وُقُوعِهِمَا فَكَيْفَ يَجِبُ مَا لَا يُمْكِنُ امْتِثَالُهُ. وَهَؤُلَاءِ الْقَوْمُ اشْتَبَهَ عَلَيْهِمُ الشَّرْطُ الشَّرْعِيُّ بِالشَّرْطِ الْوُجُودِيِّ. وَلَيْسَ الْأَمْرُ كَذَلِكَ فإن الْمُكَلَّفُ إِنَّمَا يَتَوَجَّهُ إِلَيْهِ الْأَمْرُ بِالشَّيْءِ قَبْلَ حُصُولِ شَرْطِهِ عَلَى تَقْدِيرِ حُصُولِ شَرْطِهِ، وَهُوَ مُسْتَطَاعٌ لَهُ وَمُكْتَسَبٌ بِخِلَافِ الشَّرْطِ الْوُجُودِيِّ.

Those who disallow imposing responsibility in such a case argued that there is no meaning in obliging almsgiving and the discharge of prayer when their occurrence is impossible: how can something be obligatory when it cannot be complied with? These people have confused a legal condition (الشرط الشرعي) with a condition of actual existence (الشرط الوجودي). The matter is otherwise. The command applies to this responsible person before its condition is fulfilled only on the supposition that the condition will be fulfilled; this is within his capacity and can be acquired, unlike a condition of actual existence.

G-B2-0108 · grammar. «فإن المكلف إنما يتوجه إليه الأمر بالشيء قبل» — «إنّما» بـ«أسلوب القصر». [Restriction: only / nothing but; identify what is being limited by the construction.]

BA-X032 · textual. قراءة [أ] عند بو عقل «فإن» في موضع «فهذا» من طبعة [ع]. [Escorial reading according to Bou Akl 2015, Arabic p. 152; the earlier edition reads differently.]

51. Conversion, apostasy, and a distinct command to make up acts

R 51 · Bou Akl 63 · 1994 Arabic p. 56 · Bou Akl 2015 Arabic p. 152

وَأَمَّا احْتِجَاجُهُمْ بِأَنَّ الْكَافِرَ إِذَا أَسْلَمَ انْتَفَى وُجُوبُ الصَّلَاةِ وَالزَّكَاةِ عَنْهُ، فَلَا حُجَّةَ فِيهِ، لِأَنَّ مَصِيرَنَا إِلَى سُقُوطِ وُجُوبِهَا بِالْإِسْلَامِ إِنَّمَا هُوَ بِدَلِيلِ الشَّرْعِ وَإِنَّمَا أَوْجَبْنَا الْقَضَاءَ عَلَى الْمُرْتَدِّ دُونَ الْكَافِرِ، لِأَنَّ الْقَضَاءَ إِنَّمَا يَجِبُ بِأَمْرٍ مُجَرَّدٍ فَلْيُتَّبَعْ فِيهِ الدَّلِيلُ الشَّرْعِيُّ، وَلِذَلِكَ قَدْ يُؤْمَرُ بِالْقَضَاءِ مَنْ لَا يُؤْمَرُ بِالْأَدَاءِ، وَقَدْ يُؤْمَرُ بِالْأَدَاءِ مَنْ لَا يُؤْمَرُ بِالْقَضَاءِ.

Their argument that, when an unbeliever becomes Muslim, the obligation concerning [past] prayer and almsgiving falls away contains no proof. We hold that this obligation lapses upon conversion only on the basis of a legal proof. We require make-up performance (القضاء) from an apostate but not from an unbeliever because make-up performance becomes obligatory only through a separate command; the legal proof must therefore be followed. Thus someone not commanded to perform an act within its time (الأداء) may be commanded to make it up, while someone commanded to perform it within its time may not be commanded to make it up.

G-B2-0110 · grammar. «وجوبها بالإسلام إنما هو بدليل الشرع وإنما أوجبنا» — «إنّما» بـ«أسلوب القصر». [Restriction: only / nothing but; identify what is being limited by the construction.]

SC2015-036 · textual. واو العطف. «وأما احتجاجهم بأن الكافر»؛ ع «أما احتجاجهم بأن الكافر» أ [connecting this objection to the preceding argument] [Bou Akl 2015, Arabic p. 152, critical apparatus].

52. No demand to combine or abandon exhaustive contraries

R 52 · Bou Akl 64 · 1994 Arabic p. 56 · Bou Akl 2015 Arabic p. 154

وَمِمَّا يُلْحِقُونَ بِهَذَا الْبَابِ مَسْأَلَةٌ رَابِعَةٌ وَهِيَ: كَمَا أَنَّهُ لَا يَجُوزُ إِتْيَانُ الْأَمْرِ بِالْجَمْعِ بَيْنَ الضِّدَّيْنِ كَذَلِكَ لَا يَجُوزُ إِتْيَانُ الْأَمْرِ بِالتَّخَلِّي عَنْهُمَا، إِذَا لَمْ يَكُنْ بَيْنَهُمَا وَسَطٌ.

They append a fourth question to this topic: just as a command to combine two contraries is inadmissible, so is a command to abstain from both when there is no intermediate between them.

G-B2-0113 · grammar. «رابعة وهي: كما أنه لا يجوز إتيان الأمر بالجمع — «كما أنّ» بـ«القياس أو الموازنة». [Just as / likewise: coordinates the two sides of the comparison.]

53. Hard cases: usurped fields and unavoidable injury

R 53 · Bou Akl 64–66 · 1994 Arabic p. 56, 57 · Bou Akl 2015 Arabic p. 154

وَلَكِنْ هَا هُنَا فِيمَا زَعَمُوا مَسَائِلُ جُزْئِيَّةٌ تُوقِعُ شَكًّا فِي هَذِهِ الْمَسْأَلَةِ الْكُلِّيَّةِ وَهِيَ: مَنْ تَوَسَّطَ أَرْضًا مُزْدَرَعَةً مَغْصُوبَةً فَيَحْرُمُ عَلَيْهِ الْمَكْثُ وَيَحْرُمُ عَلَيْهِ الْخُرُوجُ، إِذْ فِي كُلِّ وَاحِدٍ فَسَادُ زَرْعِ الْغَيْرِ، فَهُوَ عَاصٍ بِأَيِّهِمَا فَعَلَ. وَكَذَلِكَ مَنْ سَقَطَ عَلَى صَدْرِ صَبِيٍّ مَحْفُوفٍ بِصِبْيَانٍ، وَعَلِمَ إِنَّهُ إِنْ مَكَثَ قَتَلَ مَنْ تَحْتَهُ وَإِنِ انْتَقَلَ قَتَلَ مَنْ حَوَالَيْهِ.

They claim, however, that certain particular cases cast doubt on this universal proposition. One concerns someone in the middle of a usurped cultivated field: both remaining and leaving are forbidden, since each damages another person's crop, and whichever he does he is disobedient. Another concerns someone who falls on the chest of a child surrounded by children, knowing that if he remains he will kill the child beneath him, and if he moves he will kill those around him.

وَمِثْلُ هَذِهِ الْمَسَائِلِ فَهِيَ اجْتِهَادِيَّةٌ، وَلَيْسَتْ مِمَّا يُوقِعُ شَكًّا فِي أَنَّهُ لَا يَجُوزُ وُرُودُ الْأَمْرِ بِالتَّخَلِّي عَنِ الضِّدَّيْنِ. وَيُشْبِهُ أَنْ يُقَالَ فِيهَا هُوَ غَيْرُ مُكَلَّفٍ فِي هَذَا الْحَالِ، وَيُشْبِهُ أَنْ يُقَالَ فِي الْمَسْأَلَةِ الْأُولَى يَخْرُجُ لِتَقْلِيلِ الضَّرَرِ وَفِي الثَّانِيَةِ يَمْكُثُ، فَإِنَّ الِانْتِقَالَ فِعْلٌ مُسْتَأْنَفٌ لَا يَصِحُّ إِلَّا مِنْ حَيٍّ. وَيَحْتَمِلُ أَنْ يُقَالَ يَتَخَيَّرُ، وَلَاسِيَّمَا إِذَا لَمْ يَتَرَجَّحْ أَحَدُ الْفِعْلَيْنِ فِي قِلَّةِ الضَّرَرِ عَلَى الثَّانِي. وَهُنَا انْقَضَى الْقَوْلُ فِي الْفِعْلِ وَهُوَ الْقِسْمُ الثَّالِثُ مِنَ الْجُزْءِ الْأَوَّلِ مِنْ هَذَا الْكِتَابِ.

Such questions are matters of independent judgement. They cast no doubt on the inadmissibility of a command to abstain from both contraries. It may plausibly be said that the person is not legally responsible in this condition. Or it may be said that in the first case he should leave to reduce the harm, and in the second remain, since moving is a new act that can proceed only from a living person. It is also possible to say that he has a choice, especially if neither act is preferable to the other in causing less harm. Here the discussion of the act, the third section of this book's first part, ends.

G-B2-0116 · grammar. الفاء الاستئنافية مع «إنَّ/إنْ/إنّما» — «الثانية يمكث، فإن الانتقال فعل مستأنف لا يصح». [The initial فـ links the reasoning. Distinguish إنَّ (assertion), إنْ (condition) and إنّما (restriction) from the words and vowelled context.]

54. Manifesting causes and the attributes of rulings

R 54 · Bou Akl 67 · 1994 Arabic p. 58 · Bou Akl 2015 Arabic p. 156

هَذَا الْقِسْمُ يَتَضَمَّنُ الْقَوْلَ فِي أَنَّ هَا هُنَا أَسْبَابًا مُظْهِرَةً لِلْأَحْكَامِ وَلِصِفَاتٍ تَتَّصِفُ بِهَا الْأَحْكَامُ، كَالصِّحَّةِ وَالْفَسَادِ، وَيَتَضَمَّنُ شَرْحَ مَا تَدُلُّ عَلَيْهِ هَذِهِ الْأَسْمَاءُ، وَهُوَ أَرْبَعَةُ فُصُولٍ:

This section discusses the existence of causes that manifest both rulings and attributes characterizing rulings (أسبابا مظهرة للأحكام ولصفات), such as validity and invalidity. It also explains what these names signify. It consists of four chapters.

SC2015-039 · textual. القسم] [agreement with the preceding singular masculine أ «ويتضمن شرح»؛ ع «وتتضمن شرح». يتضمن] [Bou Akl 2015, Arabic p. 156, critical apparatus].

55. Legal signs and perceptible causes

R 55 · Bou Akl 68 · 1994 Arabic p. 58 · Bou Akl 2015 Arabic p. 156

اعْلَمْ أَنَّ الشَّرْعَ قَدْ نَصَبَ لِلْأَحْكَامِ عَلَامَاتٍ تَتَضَمَّنُ وُقُوعَهَا كَمَا تَتَضَمَّنُ الْعِلَلُ الْحِسِّيَّةُ مَعْلُولَاتِهَا، وَبِهَذِهِ الْأَسْبَابِ نَتَوَصَّلُ إِلَى مَعْرِفَةِ وُقُوعِ الْأَحْكَامِ، وَإِلَّا كَانَ إِثْبَاتُهَا مُحَالًا. وَالْقَوْلُ فِي تَفْصِيلِ الْأَحْوَالِ الَّتِي بِهَا تَكُونُ مُقْتَضِيَةً لِلْأَحْكَامِ هُوَ فِي الْجُزْءِ الثَّالِثِ مِنْ هَذَا الْكِتَابِ.

Know that the Law has appointed signs for rulings that entail their occurrence as perceptible causes entail their effects. Through these causes we come to know that rulings obtain; otherwise establishing them would be impossible. The detailed account of the conditions under which they entail rulings belongs to the third part of this book.

G-B2-0119 · grammar. «وَإِلَّا» للاستدراك على شرط مفهوم من السياق — «وإلا كان إثباتها محالا». [“Otherwise / if not”: the previously described means must be available, or establishing the ruling would be impossible. This is not a restrictive exception after a negation.]

56. Validity in worship and the validity of contracts

R 56 · Bou Akl 69–70 · 1994 Arabic p. 58, 59 · Bou Akl 2015 Arabic p. 156

اعْلَمْ أَنَّ هَذَا يُطْلَقُ فِي الْعِبَادَاتِ عَلَى أَوْجُهٍ مُخْتَلِفَةٍ، فَالصِّحَّةُ تَنْطَلِقُ عِنْدَ الْمُتَكَلِّمِينَ عَلَى مَا وَقَعَ عَلَى وَفْقِ الشَّرْعِ، وَجَبَ الْقَضَاءُ أَوْ لَمْ يَجِبْ؛ وَعِنْدَ الْفُقَهَاءِ عَمَّا أَجْزَأَ وَأَسْقَطَ الْقَضَاءَ، حَتَّى أَنَّ صَلَاةَ مَنْ ظَنَّ أَنَّهُ مُتَطَهِّرٌ صَحِيحَةٌ فِي اصْطِلَاحِ الْمُتَكَلِّمِينَ، لِأَنَّ الْقَضَاءَ لَازِمٌ بِأَمْرٍ مُتَجَدِّدٍ. وَهَذِهِ الاصطلاحات لَا مُشَاحَّةَ فِيهَا إِذَا فُهِمَ الْغَرَضُ.

Know that these terms are applied to acts of worship in different ways. For theologians, validity (الصحة) applies to what occurs in conformity with the Law, whether make-up performance is obligatory or not; for jurists, it applies to what suffices and removes the requirement of make-up performance. Thus the prayer of someone who thought himself ritually pure is valid in the theologians' terminology, since make-up performance is required by a renewed command. These are terminological conventions about which there is no dispute once the intended meaning is understood.

وَأَمَّا فِي الْعُقُودِ فَيَنْطَلِقُ الْفَسَادُ عَلَى كُلِّ حُكْمٍ لَمْ يَتَضَمَّنْ أَحَدَ مَا بِهِ يَتِمُّ الْحُكْمُ، سَوَاءٌ كَانَ ذَلِكَ شَرْطًا أَوْ سَبَبًا، وَالصِّحَّةُ مُقَابِلُ هَذَا. اللَّهُمَّ إِلَّا أَنَّ أَصْحَابَ أَبِي حَنِيفَةَ فَإِنَّهُمْ يَخُصُّونَ بِاسْمِ الْفَاسِدِ مَا كَانَ مَشْرُوعًا فِي أَصْلِهِ مَمْنُوعًا فِي وَصْفِهِ. لَكِنْ قَدْ تَقَدَّمَ مِنْ قَوْلِنَا أَنَّ كُلَّ مَمْنُوعٍ بِوَصْفِهِ مَمْنُوعٌ بِأَصْلِهِ وَعَائِدٌ عَلَيْهِ بِالْفَسَادِ مِنْ جِهَةِ مَا هُوَ مُتَّصِفٌ. وَبِالْجُمْلَةِ فَالْأَحْكَامُ إِنَّمَا تَتَّصِفُ بِالصِّحَّةِ إِذَا فُعِلَتْ بِالْأُمُورِ وَالْأَحْوَالِ الَّتِي اشْتَرَطَ الشَّرْعُ فِي فِعْلِهَا، وَالْفَسَادُ بِخِلَافِ ذَلِكَ.

In contracts, invalidity (الفساد) applies to every legal determination lacking something indispensable to its completion, whether a condition or a cause; validity is its opposite. Abū Ḥanīfa's followers, however, reserve ‘defective’ (الفاسد) for what is authorized in its foundation but prohibited in its attribute. We have already said that everything prohibited through its attribute is prohibited in its foundation and invalidated insofar as it bears that attribute. In general, rulings are characterized by validity only when carried out with the matters and conditions that the Law requires for their performance; invalidity is the contrary.

BA-T040 · textual. قراءة الإسكوريال كما أثبتها بو عقل: «الاصطلاحات»، مقابل «اصطلاحات» في طبعة العلوي. (Escorial reading as reported by Bou Akl, 2015, Arabic p. 156; variant against al-ʿAlawī.)

G-B2-0121 · grammar. «أسلوب القصر بـ«إنّما» — «وبالجملة فالأحكام إنما تتصف بالصحة إذا فعلت بالأمور». [Restriction: only / nothing but; identify what is being limited by the construction.]

G-B2-0123 · grammar. «أسلوب التسوية — «يتم الحكم، سواء كان ذلك شرطا أو سببا». [Whether one alternative or another; both possibilities fall under the same assessment.]

57. Timely performance, repetition, and making up

R 57 · Bou Akl 71–72 · 1994 Arabic p. 59 · Bou Akl 2015 Arabic p. 158

اعْلَمْ أَنَّ الْوَاجِبَ إِذَا أُدِّيَ فِي وَقْتِهِ سُمِّيَ أَدَاءً، وَإِذَا فُعِلَ مَرَّةً عَلَى نَحْوٍ مِنَ الْخَلَلِ ثُمَّ فُعِلَ ثَانِيًا سُمِّيَ إِعَادَةً، وَإِنْ أُدِّيَ بَعْدَ خُرُوجِ وَقْتِهِ الضَّيِّقِ أَوِ الْمُوَسَّعِ مَعَ تَرْكِهِ عَمْدًا سُمِّيَ قَضَاءً. وَقَدْ يُطْلَقُ اسْمُ الْقَضَاءِ عَلَى مَعَانٍ غَيْرِ هَذِهِ بَعْضُهَا أَقْرَبُ إِلَى هَذَا الْمَعْنَى، وَبَعْضُهَا أَبْعَدُ. فَمِنْهَا مَا يُتْرَكُ سَهْوًا حَتَّى يَخْرُجَ وَقْتُهُ فَهَذَا أَيْضًا يُسَمَّى قَضَاءً حَقِيقَةً، لَكِنْ يُفَارِقُ الْأَوَّلَ بِحَطِّ الْإِثْمِ عَنْ فَاعِلِهِ.

Know that when an obligation is discharged within its time, it is called timely performance (أداء). If performed once with some defect and then performed again, it is called repetition (إعادة). If discharged after its restricted or extended time has elapsed, having been deliberately omitted, it is called make-up performance (قضاء). The name qaḍāʾ is also applied to other meanings, some closer to this meaning and some more remote. One concerns what is omitted inadvertently until its time elapses. This too is properly called make-up performance, but differs from the first case in that its performer is relieved of sin.

وَمِنْهَا أَلَّا يَجِبَ الْأَدَاءُ كَالصِّيَامِ فِي حَقِّ الْحَائِضِ. وَقَدْ أَشْكَلَ هَذَا عَلَى طَائِفَةٍ حَتَّى أَلْزَمُوا وُجُوبَ الصَّوْمِ عَلَى الْحَائِضِ بِدَلِيلِ وُجُوبِ الْقَضَاءِ، وَالْإِجْمَاعُ يَرُدُّ هَذَا فَإِنَّهَا لَوْ مَاتَتْ قَبْلَ أَنْ تَطْهُرَ لَمْ تَأْثَمْ، وَمِنْهَا حَالَةُ الْمَرِيضِ وَالْمُسَافِرِ فَإِنَّهُمَا مِنْ حَيْثُ لَهُمَا أَنْ يَصُومَا أَشْبَهَ فَرْضُهُمَا الْوَاجِبَ الْمُوَسَّعَ. وَقَدْ كَانَ يَنْبَغِي أَلَّا يُسَمَّى هَذَا قَضَاءً، كَمَا لَا يُسَمَّى إِتْيَانُ الصَّلَاةِ فِي آخِرِ الْوَقْتِ قَضَاءً. لَكِنْ تَسْمِيَةُ مِثْلِ هَذَا قَضَاءً مَجَازٌ، لِمَا فِي ذَلِكَ مِنْ فَوَاتِ الْوَقْتِ الْأَوَّلِ الْمَشْهُورِ.

Another concerns cases where timely performance is not obligatory, such as fasting for a menstruating woman. This puzzled some people to the point that they inferred an obligation to fast during menstruation from the obligation to make up the fast. Consensus refutes this: if she died before becoming ritually pure, she would not have sinned. Another concerns the sick person and the traveller. Since they are permitted to fast, their duty resembles an obligation with an extended time. This ought not to be called make-up performance, just as praying at the end of the allotted period is not called make-up performance. Such usage is figurative, because the familiar first period has been missed.

G-B2-0124 · grammar. الشرط بـ«لو» — «هذا فإنها لو ماتت قبل أن تطهر لم». [Hypothetical or counterfactual condition; read the answer rather than treating لو as a simple past marker.]

G-B2-0126 · grammar. قيد الجهة بـ«من حيث» — «والمسافر فإنهما من حيث لهما أن يصوما أشبه فرضهما». [Insofar as / in the respect that; limits the scope of the assertion.]

58. The traveller’s fast: concession or an alternative duty?

R 58 · Bou Akl 73 · 1994 Arabic p. 59, 60 · Bou Akl 2015 Arabic p. 160

وَفِي الْمُسَافِرِ وَالْمَرِيضِ مَذْهَبَانِ غَيْرُ هَذَا: أَحَدُهُمَا مَذْهَبُ أَهْلِ الظَّاهِرِ أَنَّهُمَا لَوْ صَامَا لَمْ يَصِحَّ صَوْمُهُمَا لِقَوْلِهِ عَزَّ وَجَلَّ: {فَعِدَّةٌ مِنْ أَيَّامٍ أُخَرَ} وَالثَّانِي مَذْهَبُ الْكَرْخِيِّ أَنَّ الْوَاجِبَ أَيَّامٌ أُخَرُ، وَلَكِنْ لَوْ صَامَا رَمَضَانَ صَحَّ، كَمَنْ قدم الزَّكَاةَ عَلَى الْحَوْلِ. وَكِلَا هَذَيْنِ الْقَوْلَيْنِ إِنَّمَا ينبنيان عَلَى مَنْ لَا يَرَى أَنَّ فِي الْآيَةِ حَذْفًا، وَأَنَّ التَّقْدِيرَ: فَأَفْطَرَ فَعِدَّةٌ مِنْ أَيَّامٍ أُخَرَ، وَأَنَّ ذَلِكَ مَحْمُولٌ عَلَى الرُّخْصَةِ. وَسَتَبِينُ هَذِهِ الْمَسْأَلَةُ مِمَّا يُقَالُ فِي الْجُزْءِ الثَّالِثِ مِنْ هَذَا الْكِتَابِ.

There are two other doctrines concerning the traveller and the sick person. The Ẓāhirīs hold that if they fast, their fast is invalid, because of His words —mighty and exalted—‘then a number of other days.’ Al-Karkhī holds that the obligation concerns other days, but that fasting during Ramaḍān is valid, like advancing the alms before the year's completion. Both doctrines rest upon declining to recognise an ellipsis in the verse, whose understood wording is ‘and he breaks the fast, then a number of other days,’ and to construe it as a concession (رخصة). This question will become clear from the discussion in the third part of this book.

فَأَمَّا مَا يَحْتَمِلُ أَنْ يُسْأَلَ عَنْهُ مَنْ يَرَى ذَلِكَ مَحْمُولًا عَلَى الرُّخْصَةِ مِنْ جَوَازِ وُقُوعِ صِيَامِ الْمَرِيضِ الَّذِي يَخَافُ عَلَى نَفْسِهِ الْهَلَاكَ وَالضَّرَرَ الْعَظِيمَ، فَتِلْكَ مَسْأَلَةٌ اجْتِهَادِيَّةٌ تَحْتَمِلُ الْوَجْهَيْنِ، وَهِيَ خَارِجَةٌ عَنْ هَذَا الْغَرَضِ.

Someone who construes it as a concession might be asked about the validity of fasting by a sick person who fears death or severe harm to himself. That is a matter of independent judgement admitting either answer, and lies outside the present purpose.

N023 · textual. Printed p. 59 reads قوم الزكاة على الحول. ‘Advancing the alms before the year's completion’ renders the evident comparative sense, conjecturally taking قوم for قدّم; the printed Arabic is retained.

BA-T043 · textual. قراءة الإسكوريال كما أثبتها بو عقل: «ينبنيان»، مقابل «ينبنيان» في طبعة العلوي. (Escorial reading as reported by Bou Akl, 2015, Arabic p. 160; variant against al-ʿAlawī.)

BA-T044 · textual. قراءة الإسكوريال كما أثبتها بو عقل: «قدم»، مقابل «قوم» في طبعة العلوي. (Escorial reading as reported by Bou Akl, 2015, Arabic p. 160; variant against al-ʿAlawī.)

G-B2-0127 · grammar. أسلوب القصر بـ«إنّما» — «هذين القولين إنما ينبنيان على من لا يرى». [Restriction: only / nothing but; identify what is being limited by the construction.]

G-B2-0128 · grammar. الشرط بـ«لو» — «الظاهر أنهما لو صاما لم يصح صومهما لقوله». [Hypothetical or counterfactual condition; read the answer rather than treating لو as a simple past marker.]

59. Does an expectation of death shorten the prescribed time?

R 59 · Bou Akl 74 · 1994 Arabic p. 60 · Bou Akl 2015 Arabic p. 160

وَقَدْ أَطْلَقَ الْقَاضِي رَحِمَهُ اللَّهُ اسْمَ الْقَضَاءِ عَلَى مَا يَتْرُكُهُ الْإِنْسَانُ مُتَعَمِّدًا مَعَ غَلَبَةِ ظَنِّهِ بِالِاخْتِرَامِ قَبْلَ أَدَائِهِ الْفِعْلَ إِذَا انْكَشَفَ خِلَافُ مَا ظَنَّ، لِأَنَّهُ يُقَدِّرُ الْوَقْتَ بِحَسَبِ غَلَبَةِ الظَّنِّ. وَهَذَا لَا مَعْنَى لَهُ، لِأَنَّهُ لَيْسَ يَكُونُ ظَنُّهُ بِالِاخْتِرَامِ سَبَبًا لِخُرُوجِ الْوَقْتِ فِي نَفْسِهِ.

The Qāḍī—may God have mercy upon him—applied the name ‘make-up performance’ to what a person deliberately omits while predominantly expecting death before performing it, if events subsequently contradict that expectation. His reason is that the time is assessed according to the predominant probability. This is meaningless, since expecting death does not cause the allotted time itself to elapse.

60. Original requirements and concessions under necessity

R 60 · Bou Akl 75 · 1994 Arabic p. 60 · Bou Akl 2015 Arabic p. 160

اعْلَمْ أَنَّ الْعَزْمَ فِي الشَّرْعِ عِبَارَةٌ عَمَّا لَزِمَ الْعِبَادَ بِإِيجَابِ اللَّهِ تَعَالَى، وَالرُّخْصَةُ عِبَارَةٌ عَمَّا وُسِّعَ لِلْمُكَلَّفِ فِي فِعْلِهِ لِعُذْرٍ أَوْ عَجْزٍ عَنْهُ، مَعَ قِيَامِ السَّبَبِ الْمُحَرِّمِ، كَتَحْلِيلِ جُرْعَةِ خَمْرٍ لِلشَّرِقِ، وَالْمَيْتَةِ لِلْمُضْطَرِّ. وَقَدْ تُطْلَقُ الرُّخْصَةُ عَلَى مَعَانٍ غَيْرِ هَذِهِ بَعْضُهَا أَقْرَبُ إِلَى هَذَا وَبَعْضُهَا أَبْعَدُ.

Know that the original requirement (العزم) in the Law designates what binds servants through God's imposition of obligation. A concession (الرخصة) designates the latitude granted to a legally responsible person in acting because of an excuse or incapacity, while the prohibiting cause remains in place: for example, permitting a draught of wine to someone choking, or carrion to someone compelled by necessity. ‘Concession’ may also be applied to other meanings, some closer to this meaning and some more remote.

61. The first part concluded

R 61 · Bou Akl 76 · 1994 Arabic p. 60 · Bou Akl 2015 Arabic p. 162

وَهُنَا انْتَهَى النَّظَرُ فِي الْجُزْءِ الْأَوَّلِ مِنْ هَذَا الْمُخْتَصَرِ، وَيَتْلُوهُ كِتَابُ أُصُولِ الْأَحْكَامِ.

Here inquiry into the first part of this abridgement ends. The book on the sources of rulings follows.

Part II · Sources of proof القسم الثاني: الأدلة الشرعية

Revelation, reports, abrogation and consensus · The Qurʾān, Sunna and transmission, abrogation, consensus and further disputed evidence.

62. The four sources and original negation

R 62 · Bou Akl 77 · 1994 Arabic p. 61, 63 · Bou Akl 2015 Arabic p. 164

وَهُوَ يَتَضَمَّنُ النَّظَرَ فِي الْأُصُولِ الَّتِي تَسْتَنِدُ إِلَيْهَا هَذِهِ الْأَحْكَامُ وَعَنْهَا تُسْتَنْبَطُ، وَهِيَ أَرْبَعَةٌ: الْكِتَابُ، وَالسُّنَّةُ، وَإِجْمَاعُ الْأُمَّةِ، وَدَلِيلُ الْعَقْلِ عَلَى النَّفْيِ الْأَصْلِيِّ، وَتَسْمِيَةُ مِثْلِ هَذَا أَصْلًا تَجَوُّزٌ، إِذْ لَيْسَ يَدُلُّ عَلَى الْأَحْكَامِ بَلْ عَلَى نَفْيِهَا. فَأَمَّا قَوْلُ الصَّحَابَةِ وَشَرِيعَةُ مَنْ قَبْلَنَا فَمُخْتَلَفٌ فِيهِ. فَلْنَبْدَأْ مِنْ ذَلِكَ في الكتاب، وَنَنْظُرْ أَوَّلًا فِي حَقِيقَتِهِ، ثُمَّ فِيمَا يَحْصُرُهُ، ثُمَّ فِي أَلْفَاظِهِ، ثُمَّ فِي أَحْكَامِهِ.

This part comprises inquiry into the sources on which these rulings rest and from which they are derived. They are four: the Book, the Sunna, the community's consensus, and reason's indication of original negation (النفي الأصلي). Calling the last a source is figurative, since it indicates the absence of rulings rather than rulings themselves. The status of a Companion's statement and the law of those before us is disputed. Let us begin with the Book, examining first its reality, then what delimits it, then its expressions, and then its rulings.

BA-T046 · textual. قراءة الإسكوريال كما أثبتها بو عقل: «في الكتاب»، مقابل «بالكتاب» في طبعة العلوي. (Escorial reading as reported by Bou Akl, 2015, Arabic p. 164; variant against al-ʿAlawī.)

63. Divine speech and the bounds of theological inquiry

R 63 · Bou Akl 78 · 1994 Arabic p. 63 · Bou Akl 2015 Arabic p. 164

فَأَمَّا حَقِيقَتُهُ وَمَعْنَاهُ «فَهُوَ الْكَلَامُ الْقَائِمُ بِذَاتِ اللَّهِ تَعَالَى، وَهُوَ صِفَةٌ قَدِيمَةٌ مِنْ صِفَاتِهِ»، وَالْقَوْلُ فِي إِثْبَاتِ هَذِهِ الصِّفَةِ وَتَخْلِيصِهَا بِمَا يَخُصُّهَا مِنْ غَيْرِهَا مِنَ الصِّفَاتِ هُوَ مِنْ عِلْمِ الْكَلَامِ.

As for its reality and meaning, ‘it is the speech subsisting in the essence of God Most High, an eternal attribute among His attributes.’ Establishing this attribute and distinguishing it from the other attributes by what is peculiar to it belongs to theology (علم الكلام).

N024 · translation. The definition in this passage is marked as a quotation. Its formulation is also found in al-Ghazālī’s al-Mustaṣfā; compare the wording بِمَا يَخُصُّهَا and the distinction between the source’s formulation and the author’s discussion.

64. The Qurʾānic corpus, variant additions, and the basmala

R 64 · Bou Akl 79–81 · 1994 Arabic p. 63, 64 · Bou Akl 2015 Arabic p. 164

فَأَمَّا مَا يَحْصُرُهُ فَهُوَ مَا نُقِلَ إِلَيْنَا بَيْنَ دَفَّتَيِ الْمُصْحَفِ عَلَى الْأَحْرُفِ السَّبْعَةِ الْمَشْهُورَةِ نَقْلًا مُتَوَاتِرًا. وَإِنَّمَا قَيَّدْنَاهُ بِالْمَصَاحِفِ لِأَنَّ الصَّحَابَةَ رَضِيَ اللَّهُ عَنْهُمْ بالغوا فِي الِاحْتِيَاطِ فِي نَقْلِهِ بِالْكُتُبِ. وَاشْتَرَطْنَا فِي نَقْلِهِ التَّوَاتُرَ لِأَنَّهُ الْمُفِيدُ لِلْيَقِينِ. وَلْيُعْلَمْ أَيْضًا أَنَّ مَا هُوَ خَارِجٌ عَنْهُ مِمَّا لَمْ يُنْقَلْ نَقْلَ تَوَاتُرٍ فَلَيْسَ مِنْهُ، إِذْ يَسْتَحِيلُ فِي عُرْفِ الْعَادَةِ أَنْ يُهْمَلَ بَعْضُهُ أَوْ يُنْقَلَ نَقْلَ آحَادٍ مَعَ اسْتِفَاضَتِهِ فِي الْجَمَاعَةِ الَّتِي لَا يَصِحُّ عَلَيْهَا الْإِغْفَالُ وَالْإِهْمَالُ وَهُمُ الَّذِينَ يَقَعُ بِنَقْلِهِمُ التَّوَاتُرُ.

Its limits comprise what has been transmitted to us between the two covers of the codex in the seven well-known aḥruf (الأحرف السبعة, modes of recitation), through recurrent transmission (نقلا متواترا, tawātur), also called mass transmission. We specified the codices because the Companions—may God be pleased with them—took the utmost precaution in transmitting it in writing. We required recurrent transmission because it yields certainty. What lies outside this and has not been recurrently transmitted is not part of it. It is impossible according to ordinary experience that any portion should be neglected or transmitted only by isolated reports, despite its wide circulation within a community incapable of such neglect or omission, whose transmission establishes recurrence.

وَلِهَذَا مَا كَانَتِ الزِّيَادَاتُ الَّتِي لَمْ تُنْقَلْ نَقْلَ تَوَاتُرٍ لَيْسَتْ تُوجِبُ عِنْدَ الْأَكْثَرِ عَمَلًا، خِلَافًا لِأَبِي حَنِيفَةَ، كَالتَّتَابُعِ فِي الْكَفَّارَةِ وَمَا أَشْبَهَهُ. وَلَيْسَتْ هَذِهِ مُتَنَزِّلَةً مَنْزِلَةَ أَخْبَارِ الْآحَادِ، لِأَنَّ الْخَبَرَ لَا مُعَارِضَ لَهُ وَلَا دَلِيلَ عَلَى كَوْنِهِ كَذِبًا. وَإِذَا لَمْ تُجْعَلْ هَذِهِ الزِّيَادَاتُ مِنَ الْقُرْآنِ احْتَمَلَتْ أَنْ تَكُونَ مَذْهَبًا لِصَاحِبٍ، وَاحْتَمَلَتِ الْخَبَرَ وَمَا يَتَرَدَّدُ بَيْنَ هَذَيْنِ الِاحْتِمَالَيْنِ فَلَا يَجُوزُ الْعَمَلُ بِهِ.

Hence, contrary to Abū Ḥanīfa, most scholars hold that additions not recurrently transmitted do not require action—for example, consecutiveness in expiation and similar matters. These additions do not stand in the position of solitary reports (أخبار الآحاد), since a report has neither a contrary indication nor evidence that it is false. If these additions are not considered Qurʾān, they may represent a Companion's doctrine or may be a report; action may not be based on something hovering between these two possibilities.

وَلِهَذَا قَطَعَ الْقَاضِي رَحِمَهُ اللَّهُ بِتَخْطِئَةِ الشَّافِعِيِّ رَحِمَهُ اللَّهُ فِي جَعْلِهِ بِاسْمِ اللَّهِ الرَّحْمَانِ الرَّحِيمِ آيَةً مِنْ كُلِّ سُورَةٍ، مَعَ كَوْنِهَا آيَةً مِنَ النَّمْلِ، إِذْ لَوْ كَانَ ذَلِكَ كَذَلِكَ لَنُقِلَ إِلَيْنَا تَصْرِيحًا كَوْنُهَا مِنَ الْقُرْآنِ، وَلَمْ يَقَعْ فِي ذَلِكَ خِلَافٌ. وَلِلشَّافِعِيِّ أَنْ يَتَمَسَّكَ بِأَنَّ جَعْلَهَا فِي أَوَّلِ سُورَةٍ بِأَمْرِ رَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ وَنُزُولَهَا فِي أَوَّلِ كُلِّ سُورَةٍ قَرَائِنُ تُوهِمُ أَنَّهَا مِنَ الْقُرْآنِ، فَلَوْ لَمْ تَكُنْ مِنْهُ لَصُرِّحَ بِذَلِكَ.

For this reason the Qāḍī—may God have mercy upon him—declared al-Shāfiʿī—may God have mercy upon him—definitely mistaken in treating ‘In the name of God, the Merciful, the Compassionate’ as a verse of every sūra, although it is a verse of al-Naml. Had that been so, an explicit statement of its being Qurʾān would have been transmitted to us and no disagreement would have arisen. Al-Shāfiʿī can argue that its placement at a sūra's beginning by the command of God's Messenger—God bless him and grant him peace— and its revelation at the beginning of each sūra, are contextual indicators suggesting that it belongs to the Qurʾān; if it did not, this would have been stated expressly.

وَلَيْسَ كَذَلِكَ التَّعَوُّذُ وَالْقُنُوتُ وَمَا أَشْبَهَ ذَلِكَ مِمَّا لَمْ يُصَرَّحْ بِكَوْنِهِ مِنْ غَيْرِ الْقُرْآنِ. وَبِالْجُمْلَةِ فَهِيَ مَسْأَلَةُ اجْتِهَادِيَّةٌ وَلِذَلِكَ لَمْ يُكَفِّرِ الْقَاضِي بِهَا وَمَعَ ذَلِكَ فَهِيَ قَلِيلَةُ الْغَنَاءِ فِي الِاسْتِنْبَاطِ عَنْهَا. وَالشَّافِعِيُّ إِنَّمَا أَوْجَبَ قِرَاءَةَ بِسْمِ اللَّهِ الرَّحْمَانِ الرَّحِيمِ فِي الصَّلَاةِ لِلْأَخْبَارِ الْوَارِدَةِ بِذَلِكَ.

The invocation of refuge, the qunūt supplication, and similar expressions whose being outside the Qurʾān was not expressly stated are not in the same position. In general, this is a question for independent judgement, which is why the Qāḍī did not pronounce unbelief on its account. Even so, it has little usefulness for deriving rulings. Al-Shāfiʿī required recitation of ‘In the name of God, the Merciful, the Compassionate’ in prayer only because of reports transmitted to that effect.

N025 · translation. The term aḥruf is retained as written (printed p. 63), without silently identifying it with a particular classification of canonical readings.

BA-T047 · textual. قراءة الإسكوريال كما أثبتها بو عقل: «بالغوا»، مقابل «بلغوا» في طبعة العلوي. (Escorial reading as reported by Bou Akl, 2015, Arabic p. 164; variant against al-ʿAlawī.)

G-B2-0135 · grammar. أسلوب القصر بـ«إنّما» — «نقلا متواترا. وإنما قيدناه بالمصاحف لأن الصحابة رضي». [Restriction: only / nothing but; identify what is being limited by the construction.]

G-B2-0136 · grammar. الشرط بـ«لو» — «النمل، إذ لو كان ذلك كذلك لنقل إلينا». [Hypothetical or counterfactual condition; read the answer rather than treating لو as a simple past marker.]

65. Literal, figurative, arabicized, and ambiguous expressions

R 65 · Bou Akl 82–84 · 1994 Arabic p. 64, 65 · Bou Akl 2015 Arabic p. 166

وَأَمَّا النَّظَرُ فِي أَلْفَاظِهِ فَمِنْهَا حَقِيقَةٌ وَمَجَازٌ، وَوُجُودُ ذَلِكَ فِيهِ بَيِّنٌ مِنْ حَيْثُ هُوَ بِلُغَةِ الْعَرَبِ وَلِسَانِهَا. وَبِالْجُمْلَةِ فَمَا أَظُنُّ لِسَانًا وَلَا لُغَةً يَعْرَى مِنْ ذَلِكَ، وَإِنْ كَانَتِ الْأَلْسِنَةُ تَتَفَاوَتُ فِي ذَلِكَ. وَأَمَّا نَفْيُ بَعْضِهِمْ مِنْ أَنْ يَكُونَ فِي أَلْفَاظِهِ شَيْءٌ لَيْسَ فِي لُغَةِ الْعَرَبِ وَجَوَّزَهُ بَعْضُهُمْ فَالْوُقُوفُ عَلَى ذَلِكَ قَلِيلُ الْغَنَاءِ فِيمَا نَحْنُ بِسَبِيلِهِ. وَبِالْجُمْلَةِ إِنْ كَانَ فِي لِسَانِ الْعَرَبِ شَيْءٌ مِنْ غَيْرِ أَلْفَاظِهَا فَقَدْ عَرَّبَتْهُ الْعَرَبُ تَعْرِيبًا وَغَيَّرَتْهُ تَغْيِيرًا اسْتَوْجَبَ بِهِ اللَّفْظُ كَوْنَهُ مِنْ لُغَتِهَا وَمَنْسُوبًا إِلَيْهَا.

As for its expressions, some are literal (حقيقة) and some figurative (مجاز). Their presence is evident, since it is in the Arabs' language and tongue. In general, I do not think any tongue or language lacks them, though languages differ in this regard. Some deny, and others allow, that its vocabulary contains anything outside Arabic; determining this contributes little to our present undertaking. In general, if Arabic contains an expression originally foreign to it, the Arabs have Arabized and altered it in a manner entitling it to count as part of their language and to be attributed to it.

وَفِي أَلْفَاظِهِ مُحْكَمٌ وَمُتَشَابِهٌ كَمَا قَالَ عَزَّ وَجَلَّ، وَقَدِ اخْتَلَفَ النَّاسُ فِي الْمُتَشَابِهِ، وَالْأَوْلَى أَنْ يُظَنَّ أَنَّ الْأَلْفَاظَ الْمُتَشَابِهَةَ هِيَ الَّتِي يُمْكِنُ حَمْلُهَا عَلَى مَعْنًى أَكْثَرَ مِنْ وَاحِدٍ، أَوِ الَّتِي يُوهِمُ حَمْلُهَا عَلَى الظَّاهِرِ تَعَارُضًا فِيهَا، أَوِ الْأَلْفَاظَ الَّتِي لَمْ تَتَقَدَّمْ لِلْعَرَبِ مُوَاضَعَةٌ وَلَا اصْطِلَاحٌ عَلَى مَعَانِيهَا كَالْحُرُوفِ الَّتِي فِي أَوَائِلِ السُّوَرِ، أَوْ جَمِيعَ هَذِهِ.

Its expressions include determinate and ambiguous wording (محكم ومتشابه), as He—mighty and exalted—has said. People have disagreed about the ambiguous. It is preferable to consider ambiguous expressions to be those capable of bearing more than one meaning; or those whose apparent interpretation suggests a contradiction among them; or expressions for whose meanings the Arabs had no prior convention or established usage, such as the letters at the beginnings of sūras; or all of these.

G-B2-0139 · grammar. قيد الجهة بـ«من حيث» — «فيه بين من حيث هو بلغة العرب ولسانها. وبالجملة». [Insofar as / in the respect that; limits the scope of the assertion.]

G-B2-0140 · grammar. الشرط الوصلي بـ«وإن كان» — «من ذلك، وإن كانت الألسنة تتفاوت في ذلك. وأما». [Even if / although; the condition does not overturn the principal judgement.]

SC2015-048 · textual. أ «ولا لغة يعرى من»؛ ع «ولا لغة تعرى من». يعرى [Escorial masculine agreement; the editor should not silently normalize this to feminine تعرى] [Bou Akl 2015, Arabic p. 166, critical apparatus].

66. The authority of the Sunna and the routes of transmission

R 66 · Bou Akl 85 · 1994 Arabic p. 66 · Bou Akl 2015 Arabic p. 168

وَقَوْلُ رَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ حُجَّةٌ لِدَلَالَةِ الْمُعْجِزَةِ عَلَى صِدْقِهِ، وَهُوَ حُجَّةٌ بِنَفْسِهِ عَلَى مَنْ سَمِعَهُ مُشَافَهَةً. فَأَمَّا نَحْنُ فَلَمْ يَبْلُغْنَا قَوْلُهُ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ إِلَّا عَلَى لِسَانِ الْمُخْبِرِينَ، إِمَّا بِطَرِيقِ التَّوَاتُرِ، وَإِمَّا بِطَرِيقِ الْآحَادِ. وَلِذَلِكَ يَنْقَسِمُ الْقَوْلُ فِي الْأَخْبَارِ إِلَى هَذَيْنِ الْقِسْمَيْنِ، وَيَعُمُّهُمَا بَيَانُ مَرَاتِبِ أَلْفَاظِ الصَّحَابَةِ رَضِيَ اللَّهُ عَنْهُمْ فِي نَقْلِ الْأَخْبَارِ عَنْهُ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ، وَهِيَ مَرَاتِبُ:

The saying of God's Messenger—God bless him and grant him peace—is an authoritative proof (حجة), because the miracle indicates his truthfulness. It is a proof in itself for anyone who heard him directly. We, however, receive his sayings—God bless him and grant him peace—only through transmitters, either by recurrent transmission (التواتر) or through solitary reports (الآحاد). The discussion of reports therefore divides into these two sections. Common to both is an explanation of the ranks of the expressions used by the Companions—may God be pleased with them—in transmitting reports from him—God bless him and grant him peace. These ranks are as follows:

G-B2-0141 · grammar. «القصر بالنفي والاستثناء — «عليه وسلم إلا على لسان المخبرين، إما بطريق. [Exclusivity through negation followed by an exception; not merely two independent clauses.]

67. First rank: explicit attestation of direct hearing

R 67 · Bou Akl 86 · 1994 Arabic p. 66 · Bou Akl 2015 Arabic p. 168

فَأَوَّلُهَا أَنْ يَقُولَ الصَّحَابِيُّ سَمِعْتُ رَسُولَ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ، أَوْ حَدَّثَنِي، أَوْ أَخْبَرَنِي أَوْ شَافَهَنِي، فَهَذَا لَا يَتَطَرَّقُ إِلَيْهِ احْتِمَالٌ.

The first is for the Companion to say, ‘I heard God's Messenger—God bless him and grant him peace,’ ‘He related to me,’ ‘He informed me,’ or ‘He spoke to me directly.’ This admits no alternative possibility.

68. Second rank: “The Messenger said”

R 68 · Bou Akl 87 · 1994 Arabic p. 66 · Bou Akl 2015 Arabic p. 170

الْمَرْتَبَةُ الثَّانِيَةُ: أَنْ يَقُولَ: قَالَ رَسُولُ اللَّهِ كَذَا أَوْ حَدَّثَ بِكَذَا. فَهَذَا ظَاهِرُهُ النَّقْلُ، إِذَا صَدَرَ عَنِ الصَّحَابِيِّ وَلَيْسَ نَصًّا صَرِيحًا، إِذْ مُمْكِنٌ أَنْ يَكُونَ حُدِّثَ بِهِ عَنْ رَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ. لَكِنْ رَأَى أَكْثَرُهُمُ الْعَمَلَ بِمِثْلِ هَذَا جَائِزًا لِلْقَرَائِنِ الدَّالَّةِ عَلَى ذَلِكَ، لَاسِيَّمَا إِذَا صَدَرَ ذَلِكَ عَنْ مَنْ كَثُرَتْ صُحْبَتُهُ.

The second rank is to say, ‘God's Messenger said such-and-such,’ or ‘He related such-and-such.’ When this comes from a Companion, its apparent meaning is direct transmission, but it is not explicit, unambiguous wording (نصا صريحا), since the Companion may have been told it on the authority of God's Messenger—God bless him and grant him peace. Most nevertheless regard acting on such a report as permissible because of the contextual indicators supporting it, especially when it comes from someone whose companionship with him was extensive.

SC2015-052 · textual. أ «لكن رأى أكثرهم العمل بمثل هذا جائزا»؛ ع «لكن رأي أكثرهم العمل بمثل هذا جائز». فعل رأى وفاعله [a verbal judgement made by most jurists, rather than a nominal definition of their opinion] [Bou Akl 2015, Arabic p. 170, critical apparatus].

69. Third rank: reporting a command rather than its wording

R 69 · Bou Akl 88 · 1994 Arabic p. 66, 67 · Bou Akl 2015 Arabic p. 170

الْمَرْتَبَةُ الثَّالِثَةُ: أَنْ يَقُولَ الصَّحَابِيُّ أَمَرَ رَسُولُ اللَّهِ بِكَذَا، وَنَهَى عَنْ كَذَا، أَوْ فَرَضَ كَذَا، وَأَوْجَبَ كَذَا. فَهَذَا يَتَطَرَّقُ إِلَيْهِ احْتِمَالَانِ: أَحَدُهُمَا فِي سَمَاعِهِ كَمَا فِي قَوْلِهِ تَعَالَى، وَالثَّانِي فِي فَهْمِهِ عَنِ الْخِطَابِ الْأَمْرَ أَوِ الْوُجُوبَ، إِذْ صِيغَةُ الْأَمْرِ مُخْتَلَفٌ فِيهَا. وَلِذَلِكَ رَأَى دَاوُودُ وَمَنْ تَبِعَهُ مِنْ أَهْلِ الظَّاهِرِ أَلَّا حُجَّةَ فِي قَوْلِهِ مَا لَمْ يَنْقُلْ لَفْظَهُ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ.

The third rank is for the Companion to say, ‘God's Messenger commanded such-and-such,’ ‘prohibited such-and-such,’ ‘prescribed such-and-such,’ or ‘made such-and-such obligatory.’ Two possibilities arise: one concerns whether he heard it, as with the expression ‘he said’ [the printed cross-reference is defective]; the second concerns his understanding the address as command or obligation, since the imperative form is disputed. Hence Dāwūd and those Ẓāhirīs who followed him held that the Companion's statement is no authoritative proof unless he transmits the actual words of the Messenger—God bless him and grant him peace.

وَقَدِ احْتُجَّ عَلَيْهِمْ أَنَّ هَذَا نَظَرٌ مِنْ حَيْثُ فَهْمُ الْأَلْفَاظِ. وَإِنَّمَا وَقَعَ الْخِلَافُ فِيهَا بَيْنَنَا مِنْ حَيْثُ أَنَّا لَسْنَا بِفُصَحَاءَ وَلَا بِحُجَّةٍ عَلَى الْكَلَامِ الْعَرَبِيِّ. وَأَمَّا الصَّحَابِيُّ مِنْ حَيْثُ أَنَّهُ عَرَبِيٌّ فَكَيْفَ يُتَوَهَّمُ عَلَيْهِ الْغَلَطُ فِي صِيغَةِ الْأَمْرِ، مَعَ أَنَّ بِهِ تَقُومُ الْحُجَّةُ عِنْدَ الِاخْتِلَافِ فِيهَا.

It has been argued against them that this is an inquiry into understanding expressions. Disagreement about them arises among us because we are neither masters of eloquent Arabic nor authorities for Arabic speech. But since the Companion is an Arab, how could he be suspected of error concerning the imperative form, when his usage itself supplies authoritative evidence in a dispute about it?

N026 · textual. Printed p. 66 reads كما في قوله تعالى. The context refers back to قال رسول الله in §68; the English gives that contextual cross-reference and marks the defect, without silently altering the Arabic.

G-B2-0146 · grammar. «فهم الألفاظ. وإنما وقع الخلاف فيها بيننا من — «إنّما» بـأسلوب القصر». [Restriction: only / nothing but; identify what is being limited by the construction.]

G-B2-0147 · grammar. «هذا نظر من حيث فهم الألفاظ. وإنما وقع الخلاف — «من حيث» بـقيد الجهة». [Insofar as / in the respect that; limits the scope of the assertion.]

G-B2-0148 · grammar. «مَا لَمْ يَنْقُلْ لَفْظَهُ» — «ما» الموصولة مع «لَمْ» النافية الجازمة». [“What has not had its wording transmitted”; ما functions as a relative pronoun, and لم negates the following passive verb. It does not mean “unless”.]

70. How linguistic usage is established

R 70 · Bou Akl 89 · 1994 Arabic p. 67 · Bou Akl 2015 Arabic p. 170

وأنا أرى أَنَّ تَصْحِيحَ الْأَلْفَاظِ فِي لِسَانٍ مَا عِنْدَ مَنْ لَمْ يَكُنْ مِنْ أَهْلِ ذَلِكَ اللِّسَانِ إِنَّمَا يَحْصُلُ بِأَحَدِ أَمْرَيْنِ: إِمَّا بِاسْتِقْرَاءِ كَلَامِهِمْ، أَوِ النَّقْلِ عَنْهُمْ إِذَا اسْتَفَاضَ ذَلِكَ فِيهِمْ. وَعَلَى هَذَا لَا يَصِحُّ الِاحْتِجَاجُ بِقَوْلِ الْوَاحِدِ حَتَّى يَسْتَفِيضَ قَوْلُهُ. وَأَمَّا هَلْ يُشْتَرَطُ فِي نَقْلِ اللُّغَةِ التَّوَاتُرُ أَوْ تَكْفِي فِيهِ الْآحَادُ؟ فَذَلِكَ مُخْتَلَفٌ فِيهِ. وَيُشْبِهُ أَنْ يَكْفِيَ فِي كَثِيرٍ مِنْهَا نَقْلُ الْآحَادِ، وَإِلَّا لَمْ يَكُنْ سَبِيلٌ إِلَى الْوُقُوفِ عَلَى أَكْثَرِ دَلَالَاتِ الْأَلْفَاظِ لَوِ اشْتُرِطَ فِي نَقْلِ كُلِّ وَاحِدَةٍ مِنْهَا التَّوَاتُرُ.

We consider that establishing correct expressions in a language for someone who is not a native speaker occurs in one of two ways: by induction from its speakers' discourse, or by transmission from them where the usage is widespread among them. Accordingly, one person's statement cannot serve as authoritative evidence until it becomes widely circulated. Whether recurrent transmission is required in transmitting a language, or solitary reports suffice, is disputed. It seems that solitary transmission suffices for much of it; otherwise there would be no way to ascertain most verbal significations if recurrent transmission were required for each expression.

BA-T050 · textual. قراءة الإسكوريال كما أثبتها بو عقل: «وأنا أرى»، مقابل «وإنا نرى» في طبعة العلوي. (Escorial reading as reported by Bou Akl, 2015, Arabic p. 170; variant against al-ʿAlawī.)

G-B2-0149 · grammar. «أسلوب القصر بـ«إنّما» — «ذلك اللسان إنما يحصل بأحد أمرين: إما باستقراء». [Restriction: only / nothing but; identify what is being limited by the construction.]

G-B2-0150 · grammar. «دلالات الألفاظ لو اشترط في نقل كل واحدة الشرط بـ«لو»». [Hypothetical or counterfactual condition; read the answer rather than treating لو as a simple past marker.]

71. Fourth rank: “We were commanded” and “It is Sunna”

R 71 · Bou Akl 90 · 1994 Arabic p. 67 · Bou Akl 2015 Arabic p. 172

الْمَرْتَبَةُ الرَّابِعَةُ: أَنْ يَقُولَ أُمِرْنَا بِكَذَا أَوْ نُهِينَا عَنْ كَذَا. فَهَذَا يَتَطَرَّقُ إِلَيْهِ، مَعَ مَا سَبَقَ مِنَ الِاحْتِمَالَاتِ، احْتِمَالٌ آخَرُ وَهُوَ أَنَّ الْأَمْرَ بِذَلِكَ عَسَاهُ أَنْ يَكُونَ غَيْرَ النَّبِيِّ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ مِنَ الْأَئِمَّةِ وَالْأُمَرَاءِ، وَفِي مَعْنَى هَذَا قَوْلُهُمْ: مِنَ السُّنَّةِ كَذَا، وَالسُّنَّةُ جَارِيَةٌ بِكَذَا.

The fourth rank is to say, ‘We were commanded to do such-and-such,’ or ‘We were prohibited from such-and-such.’ Besides the preceding possibilities, this admits another: the person issuing the command may have been someone other than the Prophet—God bless him and grant him peace—among the leaders and rulers. Their expressions ‘Such-and-such belongs to the Sunna’ and ‘The Sunna proceeds in such-and-such a way’ have the same import.

N027 · crux. The print has الْأَمْر (“the command”) where the contrast with the Prophet and other rulers requires الْآمِر (“the commander”). The consonantal form is preserved; the English follows the agent-sense demanded by the sentence.

72. Fifth rank: practices in the Prophet’s lifetime

R 72 · Bou Akl 91 · 1994 Arabic p. 67 · Bou Akl 2015 Arabic p. 172

الْمَرْتَبَةُ الْخَامِسَةُ: أَنْ يَقُولَ الصَّحَابِيُّ كَانُوا يَفْعَلُونَ كَذَا، فَأَضَافَ الْفِعْلَ إِلَى عَهْدِ رَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ. فَهَذَا أَيْضًا يَحْتَمِلُ أَنْ يَكُونَ بَلَغَ ذَلِكَ رَسُولَ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ، وَهُوَ الْأَظْهَرُ، فَأَقَرَّهُ. وَيَحْتَمِلُ أَنْ يَكُونَ لَمْ يَبْلُغْهُ.

The fifth rank is for a Companion to say, ‘They used to do such-and-such,’ relating the practice to the time of God's Messenger—God bless him and grant him peace. This too admits the possibility that the practice reached the notice of God's Messenger—God bless him and grant him peace—and he approved it, which is the more apparent possibility; it also admits the possibility that it did not reach him.

73. The reporting formulas concluded

R 73 · Bou Akl 92 · 1994 Arabic p. 67 · Bou Akl 2015 Arabic p. 172

فَقَدْ ظَهَرَ مِنْ هَذَا مَا هُوَ إِخْبَارٌ عَنْ رَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ، وَمَا لَيْسَ بِإِخْبَارٍ.

From this it has become clear what constitutes reporting from God's Messenger—God bless him and grant him peace—and what does not.

74. The degrees of assent yielded by transmission

R 74 · Bou Akl 93 · 1994 Arabic p. 67 · Bou Akl 2015 Arabic p. 172

وَالْآنَ فَقَدْ بَقِيَ تَبْيِينُ طرق انْتِهَاءِ الْأَخْبَارِ إِلَيْنَا، وَذَلِكَ إِمَّا أَنْ يَكُونَ نَقْلَ تَوَاتُرٍ أَوْ آحَادٍ. وَلْنَقُلْ فِيهِمَا وَفِي مَرْتَبَةِ التَّصْدِيقِ الْحَاصِلِ عَنْهُمَا، وَلْنَبْدَأْ مِنْ ذَلِكَ بِالتَّوَاتُرِ، فَنَقُولُ:

It remains now to explain how reports reach us: either through recurrent transmission or through solitary transmission. Let us discuss both and the rank of the assent (التصديق) arising from each, beginning with recurrent transmission. We say:

BA-T053 · textual. قراءة الإسكوريال كما أثبتها بو عقل: «طرق»، مقابل «طريق» في طبعة العلوي. (Escorial reading as reported by Bou Akl, 2015, Arabic p. 172; variant against al-ʿAlawī.)

75. Recurrent transmission: certainty without a fixed number

R 75 · Bou Akl 94–95 · 1994 Arabic p. 67, 68 · Bou Akl 2015 Arabic p. 172

إِنَّ التَّوَاتُرَ هُوَ خَبَرٌ مُسْتَفِيضٌ يَحْصُلُ عَنْهُ الْيَقِينُ فِي أُمُورٍ مَا وَعِنْدَ أَحْوَالٍ مَا مِنْ غَيْرِ أَنْ نَدْرِيَ مِنْ أَيْنَ حَصَلَ وَلَا كَيْفَ حَصَلَ وَلَا مَتَى حَصَلَ. وَإِنَّمَا قُلْنَا: فِي أُمُورٍ مَا، لِأَنَّهُ لَيْسَ يَحْصُلُ فِيمَا لَيْسَ شَأْنُهُ أَنْ يُحَسَّ مِمَّا هُوَ مَعْقُولٌ، أَوْ مِمَّا شَأْنُ مُنَاسِبِهِ أَنْ يُحَسَّ، إِلَّا أَنَّهُ غَيْرُ مُمْكِنِ الْوُجُودِ، كَعَنْزٍ أَيِّلٍ وَغَيْرِ ذَلِكَ مِمَّا لَيْسَ لَهُ وُجُودٌ خَارِجَ النَّفْسِ، وَلَا فِيمَا شَأْنُهُ أَنْ يُحَسَّ بَعْدُ مِمَّا هُوَ مُمْكِنُ الْوُجُودِ.

Recurrent transmission (التواتر) is a widely circulated report from which certainty arises about certain matters and under certain conditions, without our knowing whence, how, or when it arose. We said ‘about certain matters’ because it does not arise concerning intelligibles that are not by nature perceptible, or things whose analogues are perceptible but which cannot exist—such as a goat-stag and other things having no existence outside the soul. Nor does it arise concerning something possibly existent that is to be perceived in the future.

بَلْ إِنَّمَا يَحْصُلُ الْيَقِينُ بِهِ فِيمَا هُوَ مُحَصَّلُ الْوُجُودِ فِي الزَّمَانِ الْحَاضِرِ، أَوْ كَانَ مُحَصَّلَ الْوُجُودِ فِي الزَّمَانِ الْمَاضِي مِمَّا لَمْ نُحِسَّهُ بَعْدُ، لِأَنَّ مَا أَحْسَسْنَاهُ أَوْ كَانَ لَنَا سَبِيلٌ إِلَى إِدْرَاكِهِ بِقِيَاسٍ يَقِينِيٍّ، كَحَدَثِ الْعَالَمِ، وَغَيْرِ ذَلِكَ، فَلَا غَنَاءَ لِلتَّوَاتُرِ فِيهِ، لِأَنَّهُ إِمَّا أَنْ يَتَوَاتَرَ عِنْدَنَا بِحَسَبِ مَا أَحْسَسْنَا أَوْ وَقَفْنَا عَلَيْهِ بِالْقِيَاسِ، فَذَلِكَ فِي حَقِّنَا فَضْلٌ، وَأَمَّا إِنْ تَوَاتَرَ خِلَافُهُ، فَلَا يَقَعُ لَنَا بِهِ تَصْدِيقٌ.

Rather, it yields certainty only about what has determinate existence now, or had determinate existence in the past, among things we have not yet ourselves perceived. Recurrent transmission has no use concerning what we have perceived or can apprehend through a certain syllogism (قياس يقيني), such as the world's coming into being and other matters. For if what is recurrently reported accords with what we perceived or established syllogistically, it is superfluous for us; if the contrary is recurrently reported, no assent arises in us from it.

وَقَوْلُنَا: وَعِنْدَ أَحْوَالٍ مَا، تَحَفُّظٌ مِمَّا تَوَاتَرَ وَلَمْ يَقَعِ الْيَقِينُ بِهِ، وَلِذَلِكَ رَامَ قَوْمٌ لَمَّا شَعَرُوا بِهَذَا أَنْ يَشْتَرِطُوا فِي التَّوَاتُرِ عَدَدًا يَلْزَمُ عَنْهُ بِالذَّاتِ وَأَوَّلًا الْيَقِينُ، حَتَّى يَكُونَ هُوَ السَّبَبَ فِي وُقُوعِ الْيَقِينِ عَنْهُ، وَمُقْتَضِيًا لَهُ عَلَى جِهَةِ مَا تَقْتَضِي الْأَسْبَابُ مُسَبَّبَاتِهَا. فَلَمَّا لَمْ يَتَحَصَّلْ لَهُمْ حَدُّوهُ بِأَنَّهُ الَّذِي يَحْصُلُ عَنْهُ الْيَقِينُ عَلَى أَنَّهُ مُحَصَّلُ الْوُجُودِ فِي نَفْسِهِ، وَإِنْ كَانَ مَجْهُولًا عِنْدَنَا.

Our phrase ‘under certain conditions’ guards against cases where reports are recurrent but certainty does not arise. On recognising this, some sought to require a number of transmitters from which certainty follows essentially and primarily, so that the number itself causes certainty and necessitates it as causes necessitate their effects. When they could not ascertain such a number, they defined it as that from which certainty arises, supposing that it has a determinate existence in itself even though it remains unknown to us.

وَالْمُشَاهَدَةُ بِخِلَافِ ذَلِكَ، فَإِنَّهُ يَظْهَرُ أَنَّ الْعَدَدَ الَّذِي يَحْصُلُ عَنْهُ الْيَقِينُ يَزِيدُ وَيَنْقُصُ فِي نَازِلَةٍ نَازِلَةٍ، وَلَوْ كَانَ هَهُنَا عَدَدٌ مَا بِالطَّبْعِ يَحْصُلُ عَنْهُ الْيَقِينُ بِالذَّاتِ وَأَوَّلًا لَكُنَّا سَنُحِسُّهُ وَنَقِفُ عَلَيْهِ. وَبِالْجُمْلَةِ فَإِنَّ كَثْرَةَ الْمُخْبِرِينَ أَحَدُ الْقَرَائِنِ الَّتِي تُفِيدُ التَّصْدِيقَ، وَلِذَلِكَ يَلْزَمُ أَنْ يَزِيدَ وَيَنْقُصَ بِحَسَبِ مَا تَنْضَافُ إِلَيْهِ مِنَ الْقَرَائِنِ الْأُخَرِ.

Observation shows otherwise. The number from which certainty arises evidently increases and decreases from one case to another. If there were some number that by nature produced certainty essentially and primarily, we would perceive and identify it. In general, a multiplicity of informants is one of the contextual indicators (القرائن) producing assent. The number must therefore increase or decrease according to the other contextual indicators joined to it.

N028 · translation. عنز أيل is retained as the traditional composite example ‘goat-stag’; قياس يقيني here is logical syllogism, not juristic analogy.

G-B2-0156 · grammar. أسلوب القصر بـ«إنّما» — «متى حصل. وإنما قلنا: في أمور ما، لأنه». [Restriction: only / nothing but; identify what is being limited by the construction.]

G-B2-0158 · grammar. «مِنْ غَيْرِ أَنْ» مع المصدر المؤوَّل — «ما من غير أن ندري من أين حصل ولا». [“Without” a further act, fact, or condition being present. The أَنْ-clause is a verbal-noun complement of غَيْر, not an adversative “nevertheless”.]

SC2015-055 · textual. أ «تحفظ مما تواتر»؛ ع «تحفظ فيما تواتر». ممّا [restriction regarding those widely transmitted reports which nevertheless lack certainty] [Bou Akl 2015, Arabic p. 174, critical apparatus].

76. How premises produce assent, even when unarticulated

R 76 · Bou Akl 96–97 · 1994 Arabic p. 68, 69 · Bou Akl 2015 Arabic p. 174

وَإِذَا كَانَ هَذَا هَكَذَا، فَلَسْنَا نَقْدِرُ أَنْ نَقُولَ إِنَّ فَاعِلَ ذَلِكَ التَّصْدِيقِ بِالنَّتِيجَةِ يَحْصُلُ عَنِ الْمُقَدِّمَاتِ ⟨أَوَّلًا، بَلْ⟩ عَلَى جِهَةِ مَا نَقُولُ إِنَّ الْمَعْقُولَاتِ الْأُوَلَ تَحْصُلُ عَنِ الْحِسِّ. وَمَنْ ظَنَّ أَنَّ الْحَالَ فِي التَّوَاتُرِ كَالْحَالِ فِي الْمُقَدِّمَاتِ التَّجْرِيبِيَّةِ، وَهِيَ الَّتِي يَحْصُلُ الْيَقِينُ بِكُلِّيَّتِهَا عِنْدَ التَّعَمُّدِ لِإِحْسَاسِ جُزْئِيَّاتِهَا، فَمُخْطِئٌ قَطْعًا. بَلِ التَّصْدِيقُ الْحَاصِلُ عَنِ التَّوَاتُرِ مِنْ فِعْلِ النَّفْسِ، وَكَأَنَّ نِسْبَتَهُ إِلَيْهَا نِسْبَةُ ⟨الْمَعْقُولَاتِ الْأُوَلِ إِلَى الْحِسِّ⟩.

If this is so, we cannot say that assent to this conclusion is produced, in the primary sense, by premises; rather, it comes about in the manner in which the first intelligibles are said to arise from sense perception. Anyone who supposes that recurrent transmission is like experiential premises —whose universality becomes certain through deliberately perceiving their particulars—is definitely mistaken. Rather, the assent arising from recurrent transmission is an act of the soul, and its relation to the soul resembles that of ⟨the first intelligibles to sense perception⟩.

وَبِالْجُمْلَةِ [فَلَمْ يَقَعْ خِلَافٌ فِي التَّوَاتُرِ يُوقِعُ الْيَقِينَ إِلَّا مِمَّنْ لَا يُؤْبَهُ بِهِ، وَهُمُ السُّفَسْطَائِيُّونَ. وَجَاحِدُ ذَلِكَ يَحْتَاجُ إِلَى عُقُوبَةٍ، لِأَنَّهُ كَاذِبٌ بِلِسَانِهِ عَلَى مَا فِي نَفْسِهِ. وَإِنَّمَا الْخِلَافُ فِي جِهَةِ وُقُوعِ الْيَقِينِ عَنْهُ، فَقَوْمٌ رَأَوْهُ بِالذَّاتِ، وَقَوْمٌ رَأَوْهُ بِالْعَرَضِ، وَقَوْمٌ رَأَوْهُ مُكْتَسَبًا] مِثْلَ مَا رَآهُ أَبُو حَامِدٍ هَهُنَا وَمَنْ نَحَا نَحْوَهُ مِنْ أَنَّ الْيَقِينَ بِهِ إِنَّمَا يَحْصُلُ بَعْدَ مُقَدِّمَتَيْنِ: إِحْدَاهُمَا أَنَّ هَؤُلَاءِ مَعَ اخْتِلَافِ أَحْوَالِهِمْ لَا يَجْمَعُهُمْ عَلَى الْكَذِبِ جَامِعٌ. والثانية أَنَّهُمْ قَدِ اتَّفَقُوا عَلَى الْإِخْبَارِ عَنْ هَذِهِ الْوَاقِعَةِ.

In general, [no one has disputed that recurrent transmission produces certainty except those who deserve no consideration, namely the sophists. Someone who denies it needs punishment, since his tongue lies about what is in his soul. The disagreement concerns only how certainty arises from it: some hold that it arises essentially (بالذات), some incidentally (بالعرض), and some through acquisition.] Such is the view held here by Abū Ḥāmid and those following him: certainty arises only after two premises. The first is that, despite their differing circumstances, nothing unites these informants in falsehood; the second, that they have agreed in reporting this event.

لَكِنْ أَبُو حَامِدٍ يُسَلِّمُ أَنَّ هَاتَيْنِ الْمُقَدِّمَتَيْنِ لَمْ تُشَكَّلَا قَطُّ فِي الذِّهْنِ بِالْفِعْلِ، وَلَا احْتَاجَ الْإِنْسَانُ إِلَى إِحْضَارِهِمَا عِنْدَ وُقُوعِ التَّصْدِيقِ بِالتَّوَاتُرِ.

Abū Ḥāmid nevertheless concedes that these two premises were never actually formed in the mind, and that a person did not need to summon them when assent arose through recurrent transmission.

N029 · textual. Bou Akl 2015 Arabic pp.174–175 §96 supplies two separate conjectural restorations: ⟨awwan bal⟩ and ⟨al-maʿqūlāt al-uwal ilā al-ḥiss⟩. His French pp.175–176 confirms the contrast between syllogistic premises and formation of first intelligibles. The older 1994 witness prints a gap and must not be represented as already containing these words.

N030 · textual. The crucial comparison is NO longer "premises OR first intelligibles". Bou Akl reads it as: not produced by premises in a primary way, BUT as first intelligibles arise through sense. His introduction pp.31–38 interprets this as genuine knowledge through recurrent testimony with a causally accidental route; not as illusory certainty.

BA15-R02 · textual. Tawātur and assent. Two restored sequences distinguish an implicit logical deduction from the non-voluntary formation of first intelligibles. See Bou Akl 2015 Arabic p.174, French p.175, intro pp.19–38, commentary §96. Neither the missing causal words nor the comparison is an independently attested manuscript reading.

BA15-I03 · interpretive. Tawātur and reality. Bou Akl 2015 intro pp.10–40 rejects a reading, associated with Maroun Aouad, under which the epistemic effect of tawātur is illusory. The production of certainty may be accidental in causal mode yet real in its result. Transmission establishes that a report was uttered; prophetic miracle grounds the message's religious authority, a logically different question.

BA-T056 · textual. قراءة الإسكوريال كما أثبتها بو عقل: «والثانية»، مقابل «والثاني» في طبعة العلوي. (Escorial reading as reported by Bou Akl, 2015, Arabic p. 176; variant against al-ʿAlawī.)

G-B2-0159 · grammar. «أسلوب القصر بـ«إنّما» — «في نفسه. وإنما الخلاف في جهة وقوع اليقين». [Restriction: only / nothing but; identify what is being limited by the construction.]

77. Sensory actuality, contextual evidence, and common legal knowledge

R 77 · Bou Akl 97–98 · 1994 Arabic p. 69, 70 · Bou Akl 2015 Arabic p. 174

وَإِذَا وُضِعَ هَذَا، فِيمَا لَا شَكَّ، هُوَ الْمُشَاهَدُ مِنْ أَمْرِ التَّوَاتُرِ، فَمِنَ الْبَيِّنِ أَنَّهُ لَيْسَ لِهَاتَيْنِ الْمُقَدِّمَتَيْنِ فِي إِيقَاعِ الْيَقِينِ غَنَاءٌ، لِأَنَّ مَا لَيْسَ مَوْجُودًا فِي النَّفْسِ بِالْفِعْلِ فَلَيْسَ يَكُونُ سَبَبًا لِوُجُودِ مَا هُوَ فِيهَا بِالْقُوَّةِ حَتَّى تُخْرِجَهُ إِلَى الْفِعْلِ. وَلَوْلَا كَوْنُ حُصُولِ الْمُقَدِّمَةِ الْكُبْرَى فِي الشَّكْلِ الْأَوَّلِ فِي النَّفْسِ بِالْفِعْلِ مَا كَانَتْ سَبَبًا لِحُصُولِ النَّتِيجَةِ عَنْهَا الَّتِي كَانَتْ مُنْطَوِيَةً فِيهَا بِالْقُوَّةِ.

If this is posited—and it is undoubtedly what is observed in recurrent transmission—it is evident that these two premises play no useful part in producing certainty. What does not actually exist in the soul cannot cause what is potential in it to exist by bringing it into actuality. If the major premise in the first figure were not actually present in the soul, it would not cause the conclusion to arise from it, although that conclusion was potentially contained within it.

فَأَيُّ فَائِدَةٍ لِاشْتِرَاطِ مَا وُجُودُهُ مِثْلُ هَذَا الْوُجُودِ فِي إِيقَاعِ التَّصْدِيقِ. وَلِهَذَا اشْتَرَطْنَا فِي حَدِّ التَّوَاتُرِ مِنْ غَيْرِ أَنْ نَدْرِيَ كَيْفَ حَصَلَ وَلَا مِنْ أَيْنَ حَصَلَ. وَبِالْجُمْلَةِ فَالْأَخْبَارُ وَالشَّهَادَاتُ عَلَى الْأَكْثَرِ لَا تُفِيدُ إِلَّا ظَنًّا، وَذَلِكَ يَتَفَاوَتُ بِحَسَبِ تَفَاوُتِ الْقَرَائِنِ، حَتَّى يَحْصُلَ فِي بَعْضِهَا الْيَقِينُ. وَلِذَلِكَ اخْتَلَفَ النَّاسُ فِي مَرَاتِبِ التَّصْدِيقَاتِ الْوَاقِعَةِ عَنِ الْأَخْبَارِ بِحَسَبِ مَا يَقْتَرِنُ بِهَا، كَمَنْ يَجْعَلُ خَبَرَ الْوَاحِدِ بَيْنَ يَدَيِ الْجَمَاعَةِ، إِذَا أَمْسَكُوا عَنْ تَكْذِيبِهِ مَعَ أَنَّهُمْ عَدَدٌ يَمْتَنِعُ فِي عُرْفِ الْعَادَةِ تَوَاطُؤُهُمْ عَلَى تَسْوِيغِ الْكَذِبِ، يَتَنَزَّلُ مَنْزِلَةَ التَّوَاتُرِ إِذَا كَانَ مَا أَخْبَرَ عَنْهُ مُدْرَكًا لَهُمْ بِالْحِسِّ.

What benefit, then, is there in requiring something that exists in this manner to produce assent? Hence we stipulated in the definition of recurrent transmission that we do not know how or whence it arose. In general, reports and testimonies generally yield only probable judgement (ظنا), varying with the contextual indicators until, in some cases, certainty arises. People therefore differ about the ranks of assent produced by reports according to their accompaniments. For example, some place a single person's report before a group at the level of recurrent transmission if the group refrains from contradicting him, its numbers ordinarily preclude collusion in sanctioning falsehood, and they have apprehended the reported matter through sense perception.

وَكَذَلِكَ هَهُنَا قَرَائِنُ تُضْعِفُ الظَّنَّ الْوَاقِعَ بِالْأَخْبَارِ حَتَّى يَكَادَ فِي بَعْضِ الْمَوَاضِعِ يُقْطَعُ بِكَذِبِهَا؛ كَمَنْ أَخْبَرَ بِقَتْلِ مَلِكِ الْبَلْدَةِ فِي السُّوقِ ثُمَّ مَرَّ أَهْلُ السُّوقِ وَلَمْ يَتَحَدَّثُوا بِذَلِكَ. وَمِنْ هَذَا الْجِنْسِ رَدُّ أَبِي حَنِيفَةَ رَحِمَهُ اللَّهُ أَخْبَارَ الْآحَادِ فِيمَا تَعُمُّ بِهِ الْبَلْوَى مِنَ الْأَحْكَامِ، لِأَنَّهُ يَرَى أَنَّ حَقَّ مَا تَعُمُّ بِهِ الْبَلْوَى أَنْ يُنْقَلَ نَقْلًا مُسْتَفِيضًا. وَكَذَلِكَ رَدُّ مَالِكٍ لِكَثِيرٍ مِنَ الْأَحَادِيثِ إِذَا لَمْ يَصْحَبْهَا الْعَمَلُ.

There are also contextual indicators that weaken the probable judgement arising from reports until, in some cases, their falsehood becomes almost certain. An example is someone reporting that the city's king was killed in the marketplace, after which the people of the market pass by without speaking of it. Of this kind is Abū Ḥanīfa's rejection—may God have mercy upon him—of solitary reports concerning rulings of widespread practical concern: he considers that matters of such concern ought to be widely transmitted. Likewise, Mālik rejected many reports when practice did not accompany them.

N031 · translation. بالفعل and بالقوة are the logical and psychological distinction of actuality and potentiality, retained explicitly in the first segment.

G-B2-0162 · grammar. الشرط الامتناعي بـ«لولا» — «إلى الفعل. ولولا كون حصول المقدمة الكبرى في». [Were it not for …; the absence of the condition would prevent the result.]

BA-F058 · textual. طبعة بو عقل، شاهد الإسكوريال [أ]: «فالأخبار والشهادات على الأكثر لا تفيد إلا ظنا»؛ مقابل قراءة العلوي [ع]: «فالأخبار والشهادات على الأخبار لا تفيد إلا ظنا». «على الأكثر» قيد غالبيّ؛ الشهادة ليست «على الأخبار» في هذا السياق. [Bou Akl 2015, facing Arabic–French edition; this is a reported manuscript reading, not an independent examination of Escorial 1235.]

78. The conditions of certainty from mass transmission

R 78 · Bou Akl 99 · 1994 Arabic p. 70 · Bou Akl 2015 Arabic p. 178

فَهَذَا مَا يَنْبَغِي أَنْ يُقَالَ فِي مَرْتَبَةِ التَّصْدِيقِ الْحَاصِلِ عَنِ الْأَخْبَارِ، وَفِي أَيِّ مَوْضِعٍ غَنَاؤُهَا، وَفِي أَيِّهَا لَا.

This is what should be said about the rank of assent arising from reports, and about the cases in which they are useful and those in which they are not.

79. Can a solitary report ever produce certainty?

R 79 · Bou Akl 100 · 1994 Arabic p. 70 · Bou Akl 2015 Arabic p. 178

فَأَمَّا خَبَرُ الْآحَادِ بِحَسَبِ مَا حُدَّ فِي هَذِهِ الصِّنَاعَةِ فَهُوَ مِمَّا لَمْ يَنْتَهِ أَنْ يُفِيدَ الْيَقِينَ فِي مَوْضِعٍ مَا بِخَبَرِ الْوَاحِدِ بِحَسَبِ مَا تقترن بِذَلِكَ مِنْ قَرَائِنَ، قُلْنَا هَذَا وَإِنْ كَانَ غَيْرَ مُمْتَنِعٍ فَهُوَ مِمَّا يَقِلُّ وُجُودُهُ وَلَعَلَّ ذَلِكَ يَقَعُ فِي حَقِّ شَخْصٍ مَا وَنَازِلَةٍ مَا. وَلِتَفَاوُتِ هَذَا الظَّنِّ الْوَاقِعِ فِي النَّفْسِ عِنْدَ اقْتِرَانِ الْقَرَائِنِ بِأَخْبَارِ الْآحَادِ رَأَى بَعْضُهُمْ أَنَّ خَبَرَ الْوَاحِدِ قَدْ يُفِيدُ الْيَقِينَ.

As for a solitary report (خبر الآحاد), according to its definition in this craft, it is what has not reached the point of yielding certainty … [the construction is defective] … in some case through a single person's report, according to the contextual indicators accompanying it. We answer: although this is not impossible, it occurs rarely, perhaps for a particular person in a particular case. Because the probable judgement arising in the soul varies when contextual indicators accompany solitary reports, some held that a single person's report may yield certainty.

N032 · textual. The editor explicitly notes a defect in the construction on printed p. 70. The English marks the disrupted transition between the definition and the reply قلنا; no missing objection has been reconstructed.

G-B2-0166 · grammar. الشرط الوصلي بـ«وإن كان» — «قلنا هذا وإن كان غير ممتنع فهو مما يقل». [Even if / although; the condition does not overturn the principal judgement.]

BA-X059 · textual. قراءة [أ] عند بو عقل «تقترن» في موضع «يقترن» من طبعة [ع]. [Escorial reading according to Bou Akl 2015, Arabic p. 178; the earlier edition reads differently.]

80. Four questions governing solitary reports

R 80 · Bou Akl 101 · 1994 Arabic p. 70, 71 · Bou Akl 2015 Arabic p. 178

وَيَلْحَقُ بِخَبَرِ الْوَاحِدِ بَعْدَ التَّكَلُّمِ فِي حَدِّهِ التَّكَلُّمُ فِي جَوَازِ الْعَمَلِ بِهِ شَرْعًا، وَالتَّكَلُّمُ فِي شُرُوطِ النَّاقِلِينَ لَهُ، وَالْجَرْحِ وَالتَّعْدِيلِ، وَكَيْفِيَّةِ نَقْلِ الرَّاوِي عَنْ مَرْوِيِّهِ.

After defining a solitary report, its discussion also includes whether the Law permits acting upon it, the conditions of its transmitters, criticism and accreditation (الجرح والتعديل), and the manner in which a transmitter reports from his source.

81. The rational and legal warrant for acting on a solitary report

R 81 · Bou Akl 102–104 · 1994 Arabic p. 71 · Bou Akl 2015 Arabic p. 178

أَمَّا الْعَمَلُ بِأَخْبَارِ الْآحَادِ فَهُوَ جَائِزٌ عَقْلًا وَوَاقِعٌ شَرْعًا. أَمَّا جَوَازُ وُقُوعِهِ شَرْعًا، فَإِنَّهُ غَيْرُ مُمْتَنِعٍ أَنْ يَنْصِبَ اللَّهُ تَعَالَى غَلَبَةَ الظَّنِّ عَلَامَةً لِلْحُكْمِ، كَنَصْبِهِ سَائِرَ الْأَشْيَاءِ عَلَامَاتٍ. وَعَلَى هَذَا يُتَصَوَّرُ الْقَضَاءُ بِالشُّهُودِ، وَالْحُكْمُ بِالْفَتْوَى، وَاسْتِقْبَالُ الْكَعْبَةِ إِذَا لَمْ تُعَايَنْ. وَقَدْ رَأَى بَعْضُهُمْ أَنَّ نَصْبَ غَلَبَةِ الظَّنِّ عَلَامَةً لِلْحُكْمِ فِي الشَّرْعِ وَاجِبٌ عَقْلًا، وَلَوْلَا ذَلِكَ لَسَقَطَتْ أَكْثَرُ الْأَحْكَامِ عَنْ مَنْ لَمْ يُشَافِهْ رَسُولَ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ.

Acting upon solitary reports is rationally possible and actually occurs in the Law. As for its admissibility in the Law, it is not impossible for God Most High to appoint predominant probability (غلبة الظن) as a sign of a ruling, just as He appoints other things as signs. On this basis one can conceive adjudication through witnesses, judgement by legal opinion, and facing the Kaʿba when it is not visible. Some held that appointing predominant probability as a sign of a legal ruling is rationally necessary; otherwise most rulings would lapse for anyone who had not heard God's Messenger—God bless him and grant him peace—directly.

وَقَوْلُ أَبِي حَامِدٍ إِنَّ هَذَا لَيْسَ بِقَوِيٍّ لِأَنَّ لِقَائِلٍ أَنْ يَقُولَ تَسْقُطُ الْأَحْكَامُ فِي حَقِّ مَنْ لَمْ يَبْلُغْهُ تَوَاتُرُهَا كَمَا تَسْقُطُ فِي حَقِّ مَنْ لَمْ يَسْمَعْ بِالشَّرْعِ وَلَا تَوَاتَرَ عِنْدَهُ، فَلَيْسَ عِنْدِي بِمَرْضِيٍّ. لِأَنَّ انْطِوَاءَ الشَّرْعِ نَادِرٌ وَقَلِيلٌ جِدًّا حَتَّى لَا يَكَادُ يَقَعُ هَذَا مَعَ تَطَاوُلِ الزَّمَانِ، بَلْ بِاضْطِرَارٍ وَقَعَ نَقْلُهُ إِلَى جَمِيعِ الْمَعْمُورَةِ تَوَاتُرًا. وَإِنَّمَا يُشْبِهُ أَنْ يَقَعَ مِثْلُ هَذَا فِي أَوَّلِ الْإِسْلَامِ، وَلَيْسَ كَذَلِكَ الْعَمَلُ بِأَخْبَارِ الْآحَادِ، لِأَنَّهُ لَيْسَ مِنْ ضَرُورَةِ كُلِّ خَبَرٍ أَنْ يُنْقَلَ تَوَاتُرًا، فَلَوِ اشْتُرِطَ فِي الْعَمَلِ بِهِ التَّوَاتُرُ لَأَدَّى ذَلِكَ إِلَى تَعْطِيلِ أَكْثَرِ الْأَحْكَامِ عَنْ أَكْثَرِ الْمُكَلَّفِينَ.

Abū Ḥāmid says this argument is not strong, since one could say that rulings lapse for those whom recurrent transmission has not reached, just as they lapse for those who have neither heard of the Law nor received it by recurrent transmission. I do not find this satisfactory. The Law's remaining hidden is exceedingly rare, scarcely occurring over a long period; its recurrent transmission to the entire inhabited world has necessarily taken place. Such concealment might plausibly have occurred at the beginning of Islam. Acting on solitary reports is different: not every report must necessarily be recurrently transmitted, and requiring recurrence before acting would suspend most rulings for most legally responsible persons.

وَبِالْجُمْلَةِ لَوْ لَمْ يَجِبِ الْقَضَاءُ بِالشُّهُودِ وَالْأَيْمَانِ وَالْحُكْمُ بِالِاجْتِهَادِ لَمَا كَانَ سَبِيلٌ إِلَى رَدِّ الْمَظَالِمِ وَالْأَخْذِ بِالْحُقُوقِ. وَقَدْ يُسْتَدَلُّ أَيْضًا عَلَى وُقُوعِهِ شَرْعًا بِإِجْمَاعِ الصَّحَابَةِ عَلَى الْعَمَلِ بِهِ، وَتَوَقُّفُهُمْ فِي بَعْضِ الْأَخْبَارِ إِنَّمَا كَانَ اجْتِهَادًا مِنْهُمْ فِي طُرُقِهَا. وَإِنْفَاذُ رَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ الْوُلَاةَ إِلَى الْبِلَادِ، وَتَكْلِيفُ النَّاسِ تَصْدِيقَهُمْ، مِمَّا يُقْطَعُ بِهِ عَلَى وُقُوعِهِ شَرْعًا.

In general, if adjudicating through witnesses and oaths, and judging by independent judgement, were not obligatory, there would be no way to redress wrongs and secure rights. Its occurrence in the Law can also be inferred from the Companions' consensus on acting upon such reports. Their hesitation concerning some reports was merely their independent assessment of the routes of transmission. The fact that God's Messenger—God bless him and grant him peace—sent governors to the provinces and charged people to accept their reports establishes its occurrence in the Law with certainty.

G-B2-0169 · grammar. أسلوب القصر بـ«إنّما». [Restriction: only / nothing but; identify what is being limited by the construction.]

G-B2-0170 · grammar. الشرط بـ«لو». [Hypothetical or counterfactual condition; read the answer rather than treating لو as a simple past marker.]

G-B2-0171 · grammar. الشرط الامتناعي بـ«لولا». [Were it not for …; the absence of the condition would prevent the result.]

82. Does the command to warn establish the duty to accept a report?

R 82 · Bou Akl 105–106 · 1994 Arabic p. 72 · Bou Akl 2015 Arabic p. 182

فَأَمَّا قَوْلُ اللَّهِ عَزَّ وَجَلَّ: {فَلَوْلَا نَفَرَ مِنْ كُلِّ فِرْقَةٍ مِنْهُمْ طَائِفَةٌ لِيَتَفَقَّهُوا فِي الدِّينِ وَلِيُنْذِرُوا قَوْمَهُمْ إِذَا رَجَعُوا إِلَيْهِمْ} فَرَأَى بَعْضُهُمْ أَنَّهَا قَاطِعَةٌ فِي الْعَمَلِ بِأَخْبَارِ الْآحَادِ، إِذِ الطَّائِفَةُ تَقَعُ عَلَى النَّفَرِ الْيَسِيرِ الَّذِينَ لَا يَحْصُلُ الْيَقِينُ بِقَوْلِهِمْ. وَأَبُو حَامِدٍ يَرَى أَنَّهَا لَيْسَتْ بِقَاطِعَةٍ إِلَّا فِي وُجُوبِ الْإِنْذَارِ. قَالَ: وَلَيْسَ يَلْزَمُ مِنْ وُجُوبِهِ عَلَيْهِمْ وُجُوبُ الْعَمَلِ بِهِ، كَمَا يَجِبُ عَلَى الشَّاهِدِ الْوَاحِدِ، إِذِ الشَّهَادَةُ لَا يُعْمَلُ بِهَا.

Some regard His words—mighty and exalted—‘Why should not a group from every division of them go forth, to gain understanding in religion and warn their people when they return to them?’ as decisive concerning acting upon solitary reports. A ‘group’ can mean a few people whose statements do not yield certainty. Abū Ḥāmid considers the verse decisive only concerning the obligation to warn. He says that their obligation to warn does not entail an obligation to act upon it, just as a single witness must testify although his testimony is not acted upon.

قَالَ: وَبِمِثْلِ هَذَا الِاعْتِرَاضِ يَضْعُفُ التَّمَسُّكُ بِقَوْلِهِ عَزَّ وَجَلَّ: {إِنَّ الَّذِينَ يَكْتُمُونَ مَا أَنْزَلْنَا مِنَ الْبَيِّنَاتِ وَالْهُدَى}، وَبِقَوْلِهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ: «نَضَّرَ اللَّهُ امْرَأً سَمِعَ مَقَالَتِي فَوَعَاهَا وَأَدَّاهَا كَمَا سَمِعَهَا» الْحَدِيثَ. وَهَذَا الْقَوْلُ مِنْهُ لَا مَعْنَى لَهُ، لِأَنَّهُ مَا فَائِدَةُ وُجُوبِ الْإِنْذَارِ إِذَا لَمْ يَجِبِ الْعَمَلُ بِنَقْلِهِمْ. وَلَيْسَ يُشْبِهُ هَذَا الشَّاهِدَ فَإِنَّهُ إِنَّمَا وَجَبَ عَلَيْهِ أَدَاءُ الشَّهَادَةِ رَجَاءَ أَنْ يَأْتِيَ مَنْ عِنْدَهُ مِثْلُ شَهَادَتِهِ فَيَقَعَ الْعَمَلُ بِهَا.

He adds that the same objection weakens appeals to His words—mighty and exalted— ‘Those who conceal what We have sent down of clear proofs and guidance,’ and to the saying of the Messenger —God bless him and grant him peace— ‘May God make radiant one who hears my words, retains them, and conveys them as he heard them,’ and the rest of the report. This statement of his has no meaning. What is the benefit of requiring warning if acting on their transmission is not obligatory? It is not like a witness's case: he is obliged to testify in the hope that another person with matching testimony will come forward, allowing it to be acted upon.

اللَّهُمَّ إِلَّا أَنْ يَقُولَ الْقَائِلُ عَسَى إِنْ وُجِدَ الْإِنْذَارُ إِنَّمَا لَزِمَ الْآحَادَ لِيَتَكَثَّرُوا حَتَّى يَقَعَ الْعِلْمُ الضَّرُورِيُّ بِقَوْلِهِمْ، لَكِنْ هَذَا يَنْكَسِرُ مِمَّا تَقَدَّمَ مِنْ أَنَّ ذَلِكَ كَانَ يُؤَدِّي إِلَى تَعْطِيلِ أَكْثَرِ الْأَحْكَامِ. وَإِنَّمَا يُشْبِهُ أَنْ يُظَنَّ أَنَّ الْآيَةَ لَيْسَتْ بِقَاطِعَةٍ وَلَا نَصًّا فِي الْعَمَلِ بِأَخْبَارِ الْآحَادِ مِنْ جِهَةِ أَنَّ الطَّائِفَةَ اسْمٌ يَقَعُ عَلَى النَّفَرِ الْيَسِيرِ وَالْعَدَدِ الْكَثِيرِ الَّذِي يُمْكِنُ أَنْ يَقَعَ الْيَقِينُ بِقَوْلِهِمْ بِدَلِيلِ قَوْلِهِ: «لَا تَزَالُ طَائِفَةٌ مِنْ أُمَّتِي» الْحَدِيثَ. لَكِنِ الْآيَةُ أَظْهَرُ فِي أَنَّهُ لَيْسَ الْمُرَادُ بِالطَّائِفَةِ هَهُنَا مَنْ يَحْصُلُ الْعِلْمُ بِنَقْلِهِمْ.

One might reply that warning was perhaps required of individuals only so that their numbers would increase until their statements produced necessary knowledge. But this is refuted by the preceding point: it would suspend most rulings. It is more plausible to regard the verse as neither decisive nor unambiguous wording (نصا) for acting upon solitary reports because ‘group’ applies both to a few people and to a large number whose statements can yield certainty, as indicated by the saying, ‘A group of my community will continue …’ and the rest of the report. The verse's more apparent meaning, however, is that ‘group’ here does not mean people whose transmission produces knowledge.

N033 · textual. The printed construction عسى إن وجد الإنذار إنما لزم الآحاد (p. 72) is compressed or defective. The English gives the contextual sense of the proposed reply without supplying new Arabic wording.

G-B2-0172 · grammar. «الشاهد فإنه إنما وجب عليه أداء الشهادة رجاء — «إنّما» بـأسلوب القصر». [Restriction: only / nothing but; identify what is being limited by the construction.]

G-B2-0173 · grammar. «فَلَوْلَا تَفَرَ مِنْ كُلِّ فِرْقَةٍ مِنْهُمْ طَائِفَةٌ» — «فَلَوْلَا» للتحضيض والحث». [In Qurʾān 9:122, “Why should not a group go forth?” This is an exhortative (لولا تحضيض), not the counterfactual “were it not for”.]

83. One transmitter need not satisfy the numerical rules of testimony

R 83 · Bou Akl 107–108 · 1994 Arabic p. 72, 73 · Bou Akl 2015 Arabic p. 184

وَإِذْ قَدْ ثَبَتَ الْعَمَلُ بِخَبَرِ الْوَاحِدِ فَلَا بُدَّ مِنْ ذِكْرِ الشُّرُوطِ الَّتِي يُقْبَلُ بِهَا وَيَجِبُ الْعَمَلُ بِهِ، إِذْ لَيْسَ كُلُّ خَبَرٍ يَجِبُ الْعَمَلُ بِهِ. فَأَوَّلُهَا أَنَّ خَبَرَ الْوَاحِدِ يُعْمَلُ بِهِ وَإِنْ لَمْ يُعْمَلْ بِشَهَادَتِهِ، لِأَنَّ اشْتِرَاطَ الْعَدَدِ إِذَا ثَبَتَ الْعَمَلُ بِهِ مِمَّا يَجِبُ عَلَى مُدَّعِي ذَلِكَ إِثْبَاتُهُ شَرْعًا، وَلَا يَصِحُّ فِي مِثْلِ هَذَا حَمْلُهُ عَلَى الشَّهَادَةِ قِيَاسًا. وَاسْتِظْهَارُ الصَّحَابَةِ رَضِيَ اللَّهُ عَنْهُمْ بِالْعَدَدِ فِي وَاقِعَتَيْنِ أَوْ ثَلَاثٍ فَذَلِكَ اجْتِهَادٌ مِنْهُمْ لِأَحْوَالٍ خَاصَّةٍ بِتِلْكَ النَّوَازِلِ. وَبِالْجُمْلَةِ فَاشْتِرَاطُ الْعَدَدِ لَيْسَ بِشَرْطٍ عِنْدَنَا.

Since acting on a solitary report has been established, the conditions under which it is accepted and must be acted upon must be stated, for not every report requires action. First, a single person's report is acted upon even where his testimony is not. Once acting on such a report is established, whoever requires a plurality must prove that requirement from the Law; it cannot properly be assimilated to testimony by analogy (قياسا). The Companions—may God be pleased with them—sought corroboration through numbers on two or three occasions as their independent judgement in circumstances particular to those cases. In general, we do not require a plurality as a condition.

BA15-I04 · interpretive. The practical need for probability. Bou Akl 2015 intro pp.77–87 distinguishes possible uncertainty about the reliability of transmission and uncertainty about intended verbal meaning. Acting on strongly probable evidence in law is not claiming probable information has become theoretically certain.

G-B2-0177 · grammar. القيد الشرطي بـ«بشرط» — «العدد ليس بشرط عندنا». [On condition that; distinguishes the rule from its qualifying condition.]

84. Hearing in childhood and transmitting after puberty

R 84 · Bou Akl 109 · 1994 Arabic p. 73 · Bou Akl 2015 Arabic p. 184

وَأَوَّلُ الشُّرُوطِ أَنَّا لَا نَقْبَلُ خَبَرَ الصَّبِيِّ، لِأَنَّهُ لَا يَخَافُ اللَّهَ، فَلَا نَأْمَنُ عَلَيْهِ الْكَذِبَ. وَأَمَّا إِذَا كَانَ طِفْلًا عِنْدَ السَّمَاعِ، ثُمَّ نَقَلَ الْحَدِيثَ بَعْدَ بُلُوغِهِ، فَهُوَ مَقْبُولٌ بِدَلِيلِ إِجْمَاعِ الصَّحَابَةِ عَلَى الْعَمَلِ بِالْأَحَادِيثِ مِنْ غَيْرِ فَرْقٍ بَيْنَ مَنْ سَمِعَ فِي الصِّغَرِ أَوْ بَعْدَ الْبُلُوغِ. وَقَوْلُ مَنْ قَالَ تُقْبَلُ شَهَادَةُ الصِّبْيَانِ فِي الْجِنَايَاتِ الَّتِي تَقَعُ بَيْنَهُمْ، فَإِنَّمَا حَمَلَهُ عَلَى ذَلِكَ الِاسْتِدْلَالُ بِالْقَرَائِنِ لِكَثْرَتِهِمْ، وَلِذَلِكَ اشْتَرَطَ فِي شَهَادَتِهِمْ قَبْلَ أَنْ يَتَفَرَّقُوا.

The first condition is that we do not accept a child's report, because he does not fear God and we cannot be assured against his lying. If, however, he was a child when he heard the report and transmits it after puberty, it is accepted. The proof is the Companions' consensus on acting upon reports without distinguishing whether they were heard in childhood or after puberty. Those who accept children's testimony concerning injuries occurring among them are led to do so by inference from contextual indicators arising from their numbers; hence they require their testimony to be given before they disperse.

G-B2-0178 · grammar. أسلوب القصر بـ«إنّما» — «تقع بينهم، فإنما حمله على ذلك الاستدلال بالقرائن». [Restriction: only / nothing but; identify what is being limited by the construction.]

G-B2-0180 · grammar. الفاء الرابطة مع «إنَّما» للحصر — «تقع بينهم، فإنما حمله على ذلك الاستدلال بالقرائن». [The conjunction fāʾ links this point; innamā restricts the assertion (“only / rather”), rather than introducing a conditional.]

85. Accurate retention, religious identity, and transmission

R 85 · Bou Akl 110–111 · 1994 Arabic p. 73 · Bou Akl 2015 Arabic p. 186

وَمِنَ الشُّرُوطِ أَنْ يَكُونَ ضَابِطًا، فَإِنَّ مَنْ كَانَ مُغَفَّلًا يَقَعُ مِنْهُ فِي الْأَكْثَرِ الْغَلَطُ. وَأَمَّا كَوْنُهُ مُسْلِمًا فَلَا خِلَافَ فِي اشْتِرَاطِ ذَلِكَ، لِأَنَّ الْكَافِرَ لَا تُقْبَلُ رِوَايَتُهُ لِأَنَّهُ مُتَّهَمٌ فِي الدِّينِ. وَإِنْ كَانَتْ تُقْبَلُ شَهَادَةُ بَعْضِهِمْ عَلَى بَعْضٍ عِنْدَ أَبِي حَنِيفَةَ، فَلَا مُخَالِفَ فِي رَدِّ رِوَايَتِهِ، وَبِالْجُمْلَةِ فَالِاعْتِمَادُ فِي رَدِّهَا عَلَى الْإِجْمَاعِ.

Another condition is accurate retention (ضابطا), since someone inattentive will usually fall into error. There is no disagreement about requiring the transmitter to be Muslim: an unbeliever's transmission is not accepted because he is suspect concerning religion. Although Abū Ḥanīfa accepts unbelievers' testimony concerning one another, there is no dissent from rejecting their transmission. In general, the basis for rejecting it is consensus.

G-B2-0181 · grammar. الشرط الوصلي بـ«وإن كان» — «في الدين. وإن كانت تقبل شهادة بعضهم على بعض». [Even if / although; the condition does not overturn the principal judgement.]

G-B2-0182 · grammar. الفاء الاستئنافية مع «إنَّ/إنْ/إنّما» — «يكون ضابطا، فإن من كان مغفلا يقع منه». [The initial فـ links the reasoning. Distinguish إنَّ (assertion), إنْ (condition) and إنّما (restriction) from the words and vowelled context.]

86. Probity as a disposition rather than a mere label

R 86 · Bou Akl 112 · 1994 Arabic p. 73 · Bou Akl 2015 Arabic p. 186

وَأَمَّا اشْتِرَاطُ الْعَدَالَةِ فَغَيْرُ مُخْتَلَفٍ فِيهِ، لَكِنْ مَا يَدُلُّ عَلَيْهِ اسْمُهَا مُخْتَلَفٌ فِيهِ فَذَهَبَ قَوْمٌ، وَهُمُ الْأَكْثَرُونَ، أَنَّ الْعَدَالَةَ حَالَةٌ فِي النَّفْسِ يَلْزَمُ عَنْهَا اجْتِنَابُ مَا نُهِيَ عَنْهُ فِي الشَّرْعِ نَهْيَ تَحْرِيمٍ أَوْ نَهْيَ كَرَاهَةٍ وَإِتْيَانُ مَا أُمِرَ بِهِ فِي الشَّرْعِ أَمْرَ وُجُوبٍ أَوْ أَمْرَ نَدْبٍ مِنْ غَيْرِ أَنْ يُخِلَّ بِذَلِكَ.

The requirement of probity (العدالة) is undisputed, but what its name signifies is disputed. Some, who are the majority, hold that probity is a state of the soul (حالة في النفس) from which follows avoidance of what the Law prohibits, whether by forbiddance or disapproval, and performance of what the Law commands, whether by obligation or recommendation, without falling short in this.

G-B2-0184 · grammar. مِنْ غَيْرِ أَنْ» مع المصدر المؤوَّل — «ندب من غير أن يخل بذلك». ["Without" a further act, fact, or condition being present. The أَنْ-clause is a verbal-noun complement of غَيْر, not an adversative "nevertheless".]

87. How much moral integrity must a transmitter possess?

R 87 · Bou Akl 112 · 1994 Arabic p. 73, 74 · Bou Akl 2015 Arabic p. 186

وَبِالْجُمْلَةِ فَيُشْتَرَطُ فِيهِ تَجَنُّبُ كُلِّ مَا يَقْدَحُ فِي دِينِهِ مِمَّا لَا يَمْتَنِعُ عَلَيْهِ الْكَذِبُ مَعَ إِتْيَانِهِ وَهَذَا يَخْتَلِفُ بِحَسَبِ نَظَرِ الْمُجْتَهِدِينَ. وَلَكِنْ لَا خِلَافَ فِي أَنَّهُ لَا تُشْتَرَطُ فِيهِ الْعِصْمَةُ، كَمَا لَا يَكْفِي فِي ذَلِكَ اجْتِنَابُ الْكَبَائِرِ. وَذَهَبَ قَوْمٌ إِلَى أَنَّ الْعَدَالَةَ عِبَارَةٌ عَنْ إِظْهَارِ الْإِسْلَامِ مَعَ أَنَّهُ لَا يُعْلَمُ فَاسِقًا دُونَ بَحْثٍ عَنْ سِيرَتِهِ وَسَرِيرَتِهِ.

In general, he must avoid everything that impugns his religion and whose commission leaves lying open to him. This varies according to the assessments of those exercising independent judgement. There is, however, no disagreement that sinlessness is not required, just as avoiding grave sins is not sufficient. Some hold that probity consists in manifesting Islam while not being known as morally transgressive, without investigation into one's conduct or inward condition.

N034 · textual. Paragraph number 87 and its opening are confirmed on printed p. 73; the paragraph continues onto p. 74.

88. Unknown character and the presumption of trustworthiness

R 88 · Bou Akl 113 · 1994 Arabic p. 74 · Bou Akl 2015 Arabic p. 186

أَمَّا أَصْحَابُ الْمَذْهَبِ الْأَوَّلِ فَاحْتَجُّوا بِأَنْ قَالُوا: كَمَا أَنَّ الْمَجْهُولَ الْكُفْرِ لَا يَجُوزُ نَقْلُهُ، كَذَلِكَ الْمَجْهُولُ الْفِسْقِ. وَلِأُولَئِكَ أَنْ يَقُولُوا إِنَّ الْمَجْهُولَ الْكُفْرِ لَيْسَ تُعْرَفُ مِنْهُ حَالَةٌ يَغْلِبُ بِهَا عَلَى الظَّنِّ حُسْنُ الثِّقَةِ بِهِ، وَلَيْسَ كَذَلِكَ الْمَعْرُوفُ مِنْهُ إِظْهَارُ الْإِسْلَامِ. وَقَدِ احْتَجُّوا أَيْضًا لِذَلِكَ بِرَدِّ الصَّحَابَةِ أَخْبَارَ الْمَجَاهِيلِ كَرَدِّ عُمَرَ رَضِيَ اللَّهُ عَنْهُ خَبَرَ فَاطِمَةَ بِنْتِ قَيْسٍ، وَرَدِّ عَلِيٍّ قَوْلَ الْأَشْجَعِيِّ، وَمَا ظَهَرَ مِنْ طَلَبِ رَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ الْعَدَالَةَ وَالثِّقَةَ فِيمَنْ كَانَ يُنْفِذُهُ إِلَى الْبِلَادِ.

The proponents of the first doctrine argued: just as transmission is inadmissible from someone whose status concerning unbelief is unknown, so it is from someone whose status concerning moral transgression is unknown. Their opponents may reply that, in the former case, no state is known that produces predominant confidence in his trustworthiness, whereas a person known to manifest Islam is different. The first group also appealed to the Companions' rejection of reports from unknown persons—ʿUmar's rejection—may God be pleased with him—of Fāṭima bt. Qays's report and ʿAlī's rejection of al-Ashjaʿī's statement—and to the evident demand of God's Messenger—God bless him and grant him peace—for probity and trustworthiness in those he sent to the provinces.

> **G-B2-0188 · grammar.** القياس أو الموازنة بـ«كما أنّ» — «بأن قالوا: كما أن المجهول الكفر لا يجوز نقله». [Just as / likewise: coordinates the two sides of the comparison.]

89. The Bedouin’s testimony to the new crescent

R 89 · Bou Akl 113 · 1994 Arabic p. 74 · Bou Akl 2015 Arabic p. 186

وَأَمَّا مَا احْتَجَّ بِهِ أَهْلُ الْفِرْقَةِ الثَّانِيَةِ فَقَبُولُهُ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ شَهَادَةَ الْأَعْرَابِيِّ فِي رُؤْيَةِ الْهِلَالِ، مَعَ أَنَّهُ لَمْ يُعْرَفْ مِنْهُ إِلَّا الْإِسْلَامُ، وَلِأُولَئِكَ أَلَّا يُسَلِّمُوا أَنَّهُ كَانَ مَجْهُولًا عِنْدَهُ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ، وَاحْتَجُّوا أَيْضًا بِأَنَّ الصَّحَابَةَ قَبِلُوا قَوْلَ مَنْ لَمْ يَعْرِفُوهُمْ بِالْفِسْقِ وَعَرَفُوهُمْ بِالْإِسْلَامِ.

The second group appealed to the fact that the Messenger—God bless him and grant him peace—accepted a Bedouin's testimony that he had seen the crescent, although nothing was known of him except his Islam. Their opponents need not concede that he was unknown to the Prophet himself. They also argued that the Companions accepted the statements of people whom they knew as Muslims and did not know to be morally transgressive.

> **N035 · textual.** Bou Akl (2015), Arabic p. 188, §113, prints «عنده صلى الله عليه وسلم» (“unknown to him, God bless him and grant him peace”), referring to the Prophet. Al-ʿAlawī (1994), p. 74, has «عند الله». The French facing text (p. 189) confirms the personal referent. The revised translation follows Bou Akl’s reading; this is not an independent inspection of Escorial 1235.
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> **G-BA-113 · grammar.** لام الاستحقاق مع «أَنْ» المصدرية — «وَلِأُولَئِكَ أَلَّا يُسَلِّمُوا أَنَّهُ كَانَ مَجْهُولًا عِنْدَهُ». [The lām marks whose response is available; an + subjunctive forms the nominalized act of not conceding. The pronominal suffix in ʿindahu refers to the Prophet, not to God.]

90. Probity aims at probable truthfulness, not an arbitrary threshold

R 90 · Bou Akl 114 · 1994 Arabic p. 74, 75 · Bou Akl 2015 Arabic p. 188

وَبِالْجُمْلَةِ فَقَدِ احْتَجَّ كُلُّ فَرِيقٍ مِنْهُمْ بِحُجَجٍ، وَهِيَ وَإِنْ كَانَتْ ظَاهِرَةً بِحَسَبِ دَعْوَاهُ فَهِيَ مَعَ هَذَا مُحْتَمِلَةٌ لِلتَّأْوِيلِ، وَالْمَسْأَلَةُ اجْتِهَادِيَّةٌ لَا قَطْعِيَّةٌ. وَبِالْجُمْلَةِ فَالْمَقْصُودُ فِيمَا يَظْهَرُ مِنَ الْعَدَالَةِ إِنَّمَا هُوَ غَلَبَةُ الظَّنِّ بِالصِّدْقِ، وَذَلِكَ يَخْتَلِفُ بِحَسَبِ اخْتِلَافِ قَرَائِنِ الْأَحْوَالِ.

In general, each group has advanced arguments that, although apparently supporting its claim, still admit interpretation. The question concerns independent judgement, not certainty. What is intended by probity, it appears, is simply a predominant probability of truthfulness; this varies with the contextual indicators supplied by the circumstances.

فَيَنْبَغِي إِذَنْ فِيمَا لَمْ يَنْصِبِ الشَّرْعُ فِيهِ عَلَامَةً مَحْدُودَةً بِطَرِيقٍ قَطْعِيٍّ لِغَلَبَةِ الظَّنِّ بِالصِّدْقِ أَلَّا نَحُدَّ فِيهَا حَدًّا، بَلْ يُوكَلُ ذَلِكَ إِلَى نَظَرِ الْمُجْتَهِدِينَ، فَإِنَّهُ رُبَّ مُجْتَهِدٍ تَجْتَمِعُ عِنْدَهُ قَرَائِنُ يَغْلِبُ بِهَا عَلَى ظَنِّهِ صِدْقُ إِنْسَانٍ مَا لَيْسَ تَجْتَمِعُ لِإِنْسَانٍ آخَرَ.

Where the Law has not established with certainty a determinate sign of predominant probability concerning truthfulness, we should therefore impose no fixed limit. The matter should be entrusted to the inquiry of those exercising independent judgement. Contextual indicators may come together for one such jurist that make a person's truthfulness predominantly probable to him, while they do not come together for another.

G-B2-0190 · grammar. أسلوب القصر بـ«إنّما» — «من العدالة إنما هو غلبة الظن بالصدق، وذلك». [Restriction: only / nothing but; identify what is being limited by the construction.]

G-B2-0192 · grammar. الشرط الوصلي بـ«وإن كان» — «بحجج، وهي وإن كانت ظاهرة بحسب دعواه فهي مع». [Even if / although; the condition does not overturn the principal judgement.]

91. Wrongdoing based on interpretation and the acceptance of reports

R 91 · Bou Akl 115 · 1994 Arabic p. 75 · Bou Akl 2015 Arabic p. 188

وَأَمَّا الْفَاسِقُ الْمُتَأَوِّلُ، وَهُوَ الَّذِي لَا يَعْرِفُ فِسْقَ نَفْسِهِ، فَقَدِ اخْتَلَفُوا فِيهِ. فَمَنْ رَأَى أَنَّ الْفِسْقَ إِنَّمَا يَمْنَعُ الْقَبُولَ لِلتُّهْمَةِ، فَلَا يُتَصَوَّرُ عِنْدَهُ رَدُّهُ، إِلَّا أَنْ يَكُونُوا فَسَقُوهُ فِي إِجَازَةِ الْكَذِبِ. وَمَنْ رَأَى أَنَّ الْفِسْقَ بِنَفْسِهِ هَادِمٌ لِلْقَبُولِ ⟨لَا⟩ لِمَوْضِعِ التُّهْمَةِ أَجَازَ شَهَادَةَ بَعْضِهِمْ عَلَى بَعْضٍ. وَالْأَوَّلُ مَذْهَبُ الشَّافِعِيِّ وَالثَّانِي مَذْهَبُ الْقَاضِي. وَيُشْبِهُ أَنْ يَكُونَ مَذْهَبُ الشَّافِعِيِّ أَقْيَسَ، وَيَشْهَدُ لَهُ قَبُولُ الصَّحَابَةِ رَضِيَ اللَّهُ عَنْهُمْ أَخْبَارَ الْخَوَارِجِ.

They have disagreed about a morally transgressive person who acts on an interpretation (الفاسق المتأول), meaning someone who does not recognise his own transgression. Whoever holds that transgression prevents acceptance only because it arouses suspicion cannot conceive rejecting him unless his transgression consists in permitting lying. Whoever holds that transgression in itself defeats acceptance, ⟨not⟩ because it arouses suspicion, permits their testimony concerning one another. The first is al-Shāfiʿī's doctrine; the second, the Qāḍī's. Al-Shāfiʿī's doctrine seems more consistent with the reasoning, and is supported by the Companions' acceptance—may God be pleased with them—of reports from the Khārijites.

N036 · textual. Bou Akl 2015 §115 (Arabic p.188, French p.189) conjecturally supplies ⟨lā⟩ before li-mawḍiʿ al-tuhma, reversing the second position: exclusion due to transgression per se, NOT just suspicion. He also prints a form equivalent to yakūnū fusaqa, differing from this reader's 1994 wording yakūnū fisquhu. That additional variant is flagged, not silently assimilated.

BA15-R03 · textual. Reports from a disputant who does not recognize his own transgression: al-Shāfiʿī ties admissibility to suspicion of lying; the other account treats sinfulness as disqualifying in itself. Bou Akl 2015 Arabic p.188, French p.189, commentary §115. The restored lā is conjectural and affects the English meaning.

G-B2-0193 · grammar. أسلوب القصر بـ«إنّما» — «أن الفسق إنما يمنع القبول للتهمة، فلا يتصور». [Restriction: only / nothing but; identify what is being limited by the construction.]

G-B2-0194 · grammar. استثناء أو استدراك بـ«إلّا أنّ» — «عنده رده، إلا أن يكونوا فسقه في إجازة الكذب». [Except that / however; the contextual function determines which qualification is intended.]

G-B2-0195 · grammar. الاستثنائية مع المضارع — «عنده رده، إلا أن يكونوا فسقه في إجازة» «إِلَّا أَنْ». [“Except if / unless”: introduces the exceptional case in which the person is thought to permit lying; not an absolute restriction using negation and exception.]

92. Probable wrongdoing: the example of disputed nabīdh

R 92 · Bou Akl 115 · 1994 Arabic p. 75 · Bou Akl 2015 Arabic p. 188

وَالْفَاسِقُ الْمُتَأَوِّلُ رُبَّمَا عُلِمَ فِسْقُهُ بِدَلِيلٍ قَطْعِيٍّ وَرُبَّمَا عُلِمَ فِسْقُهُ بِدَلِيلٍ ظَنِّيٍّ. وَيَنْبَغِي أَنْ يَكُونَ قَبُولُ رِوَايَةِ مَنْ عُلِمَ فِسْقُهُ بِدَلِيلٍ ظَنِّيٍّ أَوْلَى، وَلِذَلِكَ يَقُولُ الشَّافِعِيُّ أُفَسِّقُ الْحَنَفِيَّ الشَّارِبَ لِلنَّبِيذِ وَلَا أَرُدُّ شَهَادَتَهُ.

The transgression of someone acting on an interpretation may be known through a certain proof or through a probable proof. Acceptance of the transmission of someone whose transgression is established by a probable proof should be more appropriate. Hence al-Shāfiʿī says: ‘I judge the Ḥanafī who drinks nabīdh morally transgressive, but I do not reject his testimony.’

N037 · translation. Nabīdh is left as the specific disputed beverage named by the author rather than assimilated to every alcoholic drink.

93. Minimum conditions differ from grounds of preference

R 93 · Bou Akl 116 · 1994 Arabic p. 75 · Bou Akl 2015 Arabic p. 190

فَهَذِهِ هِيَ الْأَشْيَاءُ الَّتِي تُشْتَرَطُ فِي الرَّاوِي وَأَمَّا الْأَشْيَاءُ الَّتِي يَقَعُ بِهَا التَّرْجِيحُ فَتَكَادُ لَا تَتَنَاهَى.

These are the conditions required in a transmitter. As for the considerations through which preference (الترجيح) is established, they are almost without limit.

94. Four questions about criticism and attestation

R 94 · Bou Akl 117 · 1994 Arabic p. 75 · Bou Akl 2015 Arabic p. 190

فِيهِ أَرْبَعَةُ فُصُولٍ:

This comprises four sections.

95. How many people must attest a narrator’s probity?

R 95 · Bou Akl 117 · 1994 Arabic p. 75 · Bou Akl 2015 Arabic p. 190

اشْتَرَطَ قَوْمٌ الْعَدَدَ فِي الْمُزَكِّي قِيَاسًا عَلَى الشَّهَادَةِ، وَبَعْضٌ لَمْ يَشْتَرِطْهُ قِيَاسًا عَلَى قَبُولِ رِوَايَةِ الْعَدْلِ، وَهُوَ الْأَظْهَرُ.

Some require more than one person to attest a transmitter’s probity, by analogy with testimony; others do not, by analogy with the acceptance of a report transmitted by a person of probity. The latter is the more evident view.

96. Stating grounds and resolving conflicting evaluations

R 96 · Bou Akl 118 · 1994 Arabic p. 75, 76 · Bou Akl 2015 Arabic p. 190

قَالَ الشَّافِعِيُّ يَجِبُ ذِكْرُ سَبَبِ الْجَرْحِ دُونَ التَّعْدِيلِ. إِذْ قَدْ يَرَى وَاحِدٌ جَرْحَةً مَا لَا يَرَاهُ الْآخَرُ. وَأَمَّا الْعَدَالَةُ فَلَيْسَ لَهَا إِلَّا سَبَبٌ وَاحِدٌ. وَرَأَى قَوْمٌ نَقِيضَ هَذَا لِتَسَارُعِ النَّاسِ إِلَى الثَّنَاءِ عَلَى الظَّاهِرِ. وَقَالَ الْقَاضِي لَا يَجِبُ ذِكْرُ السَّبَبِ فِيهِمَا تَعْوِيلًا عَلَى الْمُزَكِّي. وَقَالَ قَوْمٌ لَا بُدَّ مِنْ ذِكْرِ السَّبَبِ فِيهِمَا جَمِيعًا، وَهُوَ الْأَحْوَطُ عِنْدِي، إِذِ الْعَدَالَةُ وَوالترجيح مُخْتَلَفٌ فِيهِمَا كَمَا تَقَدَّمَ.

Al-Shāfiʿī says that the grounds for criticism must be stated, whereas the grounds for attesting probity need not be: one person may regard as a fault something that another does not, while probity has only one basis. Some hold the reverse, because people are quick to praise on the strength of appearances. The Qāḍī says that the grounds need not be stated in either case, reliance being placed on the person giving the attestation. Others say that the grounds must be stated in both cases. This is, in my view, the more cautious course, since assessments of probity and the weighing of evidence are both disputed, as was explained earlier.

وَأَمَّا إِذَا تَعَارَضَ الْجَرْحُ وَالتَّعْدِيلُ فَالْجَرْحُ هُوَ الْمُقَدَّمُ لِأَنَّهُ اطِّلَاعٌ عَلَى زِيَادَةٍ لَمْ يَطَّلِعْ عَلَيْهَا الْمُعَدِّلُ، إِلَّا أَنْ يَكُونَ يَعْنِي تَشْخِيصَ مَا أَثْبَتَهُ الْجَارِحُ فَحِينَئِذٍ يَتَعَارَضُ الْجَرْحُ وَالتَّعْدِيلُ.

When criticism conflicts with an attestation of probity, criticism takes precedence, because it discloses additional information unknown to the person attesting probity—unless the latter specifically addresses the very matter asserted by the critic. In that case, criticism and attestation stand in conflict.

N038 · textual. At p. 76 the edition reads يعني تشخيص ما أثبته الجارح; the English preserves its reference to the specific allegation rather than silently emending يعني to ينفي.

BA-T065 · textual. قراءة الإسكوريال كما أثبتها بو عقل: «والترجيح»، مقابل «التجريح» في طبعة العلوي. (Escorial reading as reported by Bou Akl, 2015, Arabic p. 190; variant against al-ʿAlawī.)

G-B2-0200 · grammar. «استثناء أو استدراك بـ«إلّا أنّ» — «عليها المعدل، إلا أن يكون يعني تشخيص ما أثبته». [Except that / however; the contextual function determines which qualification is intended.]

97. What conduct counts as an attestation of probity?

R 97 · Bou Akl 119 · 1994 Arabic p. 76 · Bou Akl 2015 Arabic p. 190

وَذَلِكَ يُتَصَوَّرُ وُقُوعُهُ عَلَى أَرْبَعَةِ أَنْحَاءٍ: إِمَّا بِالْقَوْلِ، أَوْ بِالرِّوَايَةِ عَنْهُ، أَوْ بِالْعَمَلِ بِخَبَرِهِ، أَوْ بِالْحُكْمِ بِشَهَادَتِهِ. وَأَعْلَاهَا صَرِيحُ الْقَوْلِ بِتَعْرِيفِ وَجْهِ عَدَالَتِهِ، وَدُونَ ذَلِكَ أَنْ يَرْوِيَ عَنْهُ خَبَرًا. وَهَذَا إِنَّمَا يَصِحُّ عَلَى رَأْيِ مَنْ يَكْفِي عِنْدَهُ فِي التَّعْدِيلِ نَفْسُ التَّزْكِيَةِ، هَذَا إِذَا فُهِمَ مِنْ حَالِهِ التَّصْرِيحُ عَنِ الثِّقَاتِ عِنْدَهُ. وَأَمَّا الْعَمَلُ بِالْخَبَرِ فَلَيْسَ بِتَعْدِيلٍ، إِذْ قَدْ يُمْكِنُ أَنْ يَعْمَلَ بِدَلِيلٍ آخَرَ، إِلَّا إِنْ عَلِمْنَا أَنَّهُ عَمِلَ بِذَلِكَ الْخَبَرِ مِنْ طَرِيقِ ذَلِكَ النَّاقِلِ. وَهَذَا أَيْضًا عَلَى رَأْيِ مَنْ لَا يَشْتَرِطُ ذِكْرَ سَبَبِ الْجَرْحِ وَالتَّعْدِيلِ.

This can take four forms: through an explicit statement, through transmitting a report from someone, through acting upon his report, or through giving judgement on his testimony. The highest is an explicit statement explaining the basis of his probity; below this is transmitting a report from him. The latter is valid only on the view that an attestation by itself suffices to establish probity, and only when the transmission is understood as an explicit declaration of the narrator's confidence in the person from whom he reports. Acting upon a report, however, does not attest the transmitter's probity, since the action may rest on another proof—unless we know that he acted on that report as received through that particular transmitter. This, too, follows the view that the grounds for criticism and attestation need not be stated.

وَأَمَّا الْحُكْمُ بِشَهَادَتِهِ فَذَلِكَ أَقْوَى مِنْ تَزْكِيَتِهِ. وَأَمَّا تَرْكُهُ الْحُكْمَ بِشَهَادَتِهِ أَوْ خَبَرِهِ، فَلَيْسَ جَرْحًا، إِذْ قَدْ يَتَوَقَّفُ فِي شَهَادَةِ الْعَدْلِ أَوْ رِوَايَتِهِ لِأَسْبَابٍ سِوَى الْجَرْحِ. وَبِالْجُمْلَةِ مَتَى لَمْ يَنْقَدِحْ لِرَدِّ شَهَادَتِهِ وَرِوَايَتِهِ سَبَبٌ آخَرُ، فَهُوَ كَالْجَرْحِ الْمُطْلَقِ.

Giving judgement on someone's testimony is stronger than merely attesting his probity. Declining to give judgement on his testimony or report is not, however, a criticism of him: one may withhold acceptance of an upright person's testimony or report for reasons other than an objection to his probity. In general, when no other reason presents itself for rejecting his testimony and transmission, the rejection is equivalent to an unspecified criticism.

N039 · textual. At §119 (Arabic p. 192; French p. 193) Bou Akl prints «التصريح عن الثقات» ("explicitly declaring someone trustworthy") instead of the transmitted «التجريح عن الثقات». Both Escorial [أ] and al-ʿAlawī [ع] have «التجريح»; Bou Akl's «التصريح» is an editorial emendation informed by the parallel in al-Ghazālī's al-Mustaṣfā, not an independently witnessed manuscript variant. In the same paragraph Bou Akl prints «شهادة العدل» ("the upright person's testimony") on the basis of the Mustaṣfā parallel, against «شهادة العبد» ("the slave's testimony") in [أ] and [ع]. The Arabic and English here adopt both emendations with their status disclosed.

BA-T064 · textual. قراءة الإسكوريال كما أثبتها بو عقل: «بالقول»، مقابل «بالقبول» في طبعة العلوي. (Escorial reading as reported by Bou Akl, 2015, Arabic p. 190; variant against al-ʿAlawī.)

G-B2-0201 · grammar. «أسلوب القصر بـ«إنّما» — «خبرا. وهذا إنما يصح على رأي من يكفي». [Restriction: only / nothing but; identify what is being limited by the construction.]

G-BA-119 · grammar. «المصدر «التَّصْرِيح» مع الجار والمجرور «عَنْ» — «هَذَا إِذَا فُهِمَ مِنْ حَالِهِ التَّصْرِيحُ عَنِ الثِّقَاتِ عِنْدَهُ». [The passive "if it is understood from his conduct" is followed by the nominal subject "an explicit declaration." The declaration concerns whom he regards as trustworthy; it is not "discrediting" them (التجريح).]

98. The majority position on the Companions' probity

R 98 · Bou Akl 120 · 1994 Arabic p. 76, 77 · Bou Akl 2015 Arabic p. 192

وَالَّذِي عَلَيْهِ جَمَاهِيرُ الْأُمَّةِ وَالْمُعْتَمَدُ عَلَيْهِمْ أَنَّ عَدَالَتَهُمْ مَقْطُوعٌ بِهَا بِتَعْدِيلِ اللَّهِ جَلَّ وَعَزَّ لَهُمْ وَتَعْدِيلِ رَسُولِهِ، فِي غَيْرِ مَا آيَةٍ مِنْ كِتَابِ اللَّهِ جَلَّ وَعَزَّ وَغَيْرِ مَا حَدِيثٍ عَنْهُ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ.

The position of the great majority of the community and its acknowledged authorities is that the Companions' probity is established with certainty, through God's attestation of it—majestic and mighty is He—and that of His Messenger, in numerous verses of the Book of God, majestic and mighty, and numerous reports from the Messenger, God bless him and grant him peace.

BA-F066 · textual. طبعة بو عقل، شاهد الإسكوريال [أ]: «وغير ما حديث عنه»؛ مقابل قراءة العلوي [ع]: «وفي غير ما حديث عنه». العطف على «في غير ما آية» دون تكرار حرف الجرّ؛ لا يتغير المقصود. [Bou Akl 2015, facing Arabic–French edition; this is a reported manuscript reading, not an independent examination of Escorial 1235.]

99. The civil wars and interpretive error

R 99 · Bou Akl 121 · 1994 Arabic p. 77 · Bou Akl 2015 Arabic p. 192

وَقَدْ ذَهَبَتْ طَوَائِفُ مِنَ الْخَوَارِجِ وَالْمُعْتَزِلَةِ وَالْقَدَرِيَّةِ، وَبِالْجُمْلَةِ أَهْلِ الْبِدَعِ وَالزَّيْغِ، إِلَى رَدِّ شَهَادَتِهِمْ وَرِوَايَتِهِمْ بَعْدَ مَا شَجَرَ بَيْنَهُمُ الشَّتَاتُ وَظَهَرَتِ الْحُرُوبُ بَيْنَهُمْ وَالْخُصُومَاتُ، وَذَلِكَ عِنْدَ أَهْلِ السُّنَّةِ مَحْمُولٌ عَلَى أَنَّ كُلَّ مُجْتَهِدٍ إِمَّا غَيْرُ مَأْثُومٍ وَإِمَّا مُصِيبٌ بِحَسَبِ الرَّأْيَيْنِ. وَذَهَبَ قَوْمٌ مِنْ أَهْلِ السُّنَّةِ أَنَّ قَتَلَةَ عُثْمَانَ مُخْطِئُونَ قَطْعًا، لَكِنْ جَهِلُوا خَطَأَهُمْ، وَكَانُوا مُتَأَوِّلِينَ. وَالْفَاسِقُ الْمُتَأَوِّلُ لَا تُرَدُّ شَهَادَتُهُ عَلَى رَأْيِ الْأَكْثَرِ.

Groups among the Khārijites, Muʿtazilites, and Qadarites—in general, the people of innovation and deviation—have rejected the Companions' testimony and transmission after dissension arose among them and wars and disputes broke out. The people of the Sunna understand these events on the basis that every practitioner of independent judgement is either free of sin or correct, according to the two respective positions. Some of the people of the Sunna maintain that ʿUthmān's killers were certainly mistaken, but did not recognise their error and were acting on an interpretation. According to the majority, the testimony of a wrongdoer acting on an interpretation is not rejected.

G-B2-0206 · grammar. «السنة محمول على أن كل مجتهد إما غير مأثوم» — «على أنَّ» بين التعلّق النحوي والاستدراك. [The phrase may complete a preceding verb such as "argue that", or introduce a qualification; check its governing clause rather than assuming "although".]

100. Five levels of receiving a report

R 100 · Bou Akl 122 · 1994 Arabic p. 77 · Bou Akl 2015 Arabic p. 194

وَقَدْ بَقِيَ عَلَيْنَا مِنَ الْقَوْلِ فِي الْخَبَرِ الْوَاحِدِ الْقَوْلُ فِي كَيْفِيَّةِ نَقْلِ الرَّاوِي عَنْ مَرْوِيِّهِ، وَذَلِكَ يُتَصَوَّرُ وُقُوعُهُ عَلَى خَمْسِ مَرَاتِبَ:

Our account of the solitary report still requires a discussion of the manner in which a transmitter reports from the person who is his source. This can occur at five levels.

101. Hearing the teacher read

R 101 · Bou Akl 123 · 1994 Arabic p. 77 · Bou Akl 2015 Arabic p. 194

قِرَاءَةُ الشَّيْخِ عَلَيْهِ لِيُحَدِّثَ عَنْهُ، وَبِذَلِكَ يَصِحُّ قَوْلُهُ عَلَى الْحَقِيقَةِ حَدَّثَنَا وَأَخْبَرَنَا وَسَمِعْتُهُ، وَهِيَ أَعْلَى الْمَرَاتِبِ.

The teacher reads to him so that he may transmit from the teacher. He may then truthfully say, in the literal sense, ‘He related to us,’ ‘He informed us,’ and ‘I heard him.’ This is the highest level.

102. Reading before a silent teacher

R 102 · Bou Akl 124 · 1994 Arabic p. 77 · Bou Akl 2015 Arabic p. 194

أَنْ يُقْرَأَ عَلَى الشَّيْخِ وَهُوَ سَاكِتٌ. فَهَذَا خَالَفَ فِيهِ بَعْضُ أَهْلِ الظَّاهِرِ، لَكِنْ عِنْدَ الْأَكْثَرِ سُكُوتُهُ وَإِقْرَارُهُ إِيَّاهُ يَتَنَزَّلُ مَنْزِلَةَ قَوْلِهِ. هَذَا إِن كَانَ بِحَيْثُ لَا يُخَالُ سُكُوتُهُ لِغَفْلَةٍ أَوْ إِكْرَاهٍ أَوْ مَا أَشْبَهَ ذَلِكَ. إِلَّا أَنَّهُمُ اخْتَلَفُوا هَلْ يَقُولُ حَدَّثَنَا مُطْلَقًا، أَوْ سَمِعْتُ فُلَانًا. وَالصَّحِيحُ أَنَّهُ لَا يَجُوزُ، لِأَنَّ ذَلِكَ كَذِبٌ مَحْضٌ، إِلَّا أَنْ يُعْلَمَ بِقَرِينَةِ حَالٍ مِنْهُ أَوْ تَصْرِيحٍ أَنَّهُ يُرِيدُ بِذَلِكَ الْقِرَاءَةَ عَلَى الشَّيْخِ.

The report is read to the teacher while he remains silent. Some Literalists dispute this, but the majority consider his silence and approval equivalent to his speaking, provided there is no reason to suppose that his silence results from inattention, coercion, or the like. They disagree, however, about whether the transmitter may say without qualification, ‘He related to us,’ or ‘I heard so-and-so.’ The correct position is that he may not, since this is plainly false—unless a contextual indication (قرينة حال) or an explicit statement makes it known that he means a reading before the teacher.

G-B2-0209 · grammar. «أشبه ذلك. إلا أنهم اختلفوا هل يقول حدثنا مطلقا — «استثناء أو استدراك بـ«إلّا أنّ». [Except that / however; the contextual function determines which qualification is intended.]

BA-X069 · textual. [ع] عند بو عقل «إن» في موضع «إذا» من طبعة [أ] قراءة. [Escorial reading according to Bou Akl 2015, Arabic p. 196; the earlier edition reads differently.]

103. Authorization without a reading

R 103 · Bou Akl 125 · 1994 Arabic p. 77 · Bou Akl 2015 Arabic p. 194

وَهُوَ أَنْ يَقُولَ أُجِيزُ لَكَ أَنْ تَرْوِيَ عَنِّي الْكِتَابَ الْفُلَانِيَّ، أَوْ مَا صَحَّ عِنْدَكَ مِنْ تَعْيِينِ مَسْمُوعَاتِي. وَلَا يَجُوزُ فِي مِثْلِ هَذَا إِطْلَاقُ الْقَوْلِ بِحَدَّثَنَا أَوْ أَخْبَرَنَا إِلَّا تَجَوُّزًا.

This is for the teacher to say, ‘I authorize you to transmit from me such-and-such a book,’ or ‘Whatever you have reliably identified among the reports I have heard.’ In such a case, ‘He related to us’ or ‘He informed us’ may be used without qualification only in an extended sense.

104. Handing over a book with permission to transmit it

R 104 · Bou Akl 126 · 1994 Arabic p. 77, 78 · Bou Akl 2015 Arabic p. 194

وَصُورَتُهَا أَنْ يَقُولَ الشَّيْخُ خُذْ هَذَا الْكِتَابَ وَحَدِّثْ بِهِ عَنِّي. وَمُجَرَّدُ الْمُنَاوَلَةِ دُونَ اللَّفْظِ لَا مَعْنَى لَهُ، فَهِيَ زِيَادَةُ تَكَلُّفٍ، وَهِيَ فِي الْحَقِيقَةِ إِجَازَةٌ. وَهِيَ وَإِنْ لَمْ تُفِدْ مَعْرِفَةَ عَيْنِ الطَّرِيقِ الْمُوصِلِ، فَهِيَ تُفِيدُ مَعْرِفَةَ صِحَّةِ الْخَبَرِ.

Its form is for the teacher to say, ‘Take this book and transmit it from me.’ Merely handing it over without speaking has no significance; the physical handing over is therefore an additional formality, and the transaction is in reality an authorization. Although it does not yield knowledge of the precise route of transmission, it does yield knowledge of the report’s authenticity.

105. Handwriting, accurate copies, and acting without direct hearing

R 105 · Bou Akl 127 · 1994 Arabic p. 78 · Bou Akl 2015 Arabic p. 196

بِأَنْ يَجِدَ بِخَطِّهِ مَكْتُوبًا إِنِّي رَوَيْتُ عَنْ فُلَانٍ كَذَا وَكَذَا. فَهَذَا لَا يَجُوزُ أَنْ يُرْوَى عَنْهُ لِأَنَّ الْخَطَّ يَشْتَبِهُ. وَأَمَّا إِذَا قَالَ الشَّيْخُ: هَذَا خَطِّي، قُبِلَ قَوْلُهُ، وَلَكِنْ لَا يَرْوِي عَنْهُ مَا لَمْ يَأْذَنْ لَهُ بِالْقَوْلِ أَوْ بِقَرِينَةِ حَالٍ.

He finds a statement in the teacher's handwriting: 'I transmitted such-and-such from so-and-so.' He may not transmit it from the teacher, because handwriting can be confused with other handwriting. If the teacher says, 'This is my handwriting,' his statement is accepted, but one may not transmit from him unless he gives permission verbally or by a contextual indication.

وَأَمَّا إِذَا قَالَ عَدْلٌ: هَذِهِ نُسْخَةٌ صَحِيحَةٌ مِنْ كِتَابِ الْبُخَارِيِّ فَرَأَى فِيهَا حَدَّثَنَا، فَلَيْسَ لَهُ أَنْ يَرْوِيَ عَنْهُ. وَلَكِنْ هَلْ يَلْزَمُهُ الْعَمَلُ بِهِ؟ أَمَّا إِذَا كَانَ مُقَلِّدًا فَعَلَيْهِ أَنْ يَسْأَلَ الْمُجْتَهِدَ فلا خِلَافَ، وَإِنْ كَانَ مُجْتَهِدًا فَقَالَ قَوْمٌ لَا يَجُوزُ الْعَمَلُ لَهُ بِهِ مَا لَمْ يَسْمَعْهُ. وَقَالَ قَوْمٌ إِذَا عُلِمَ صِحَّةُ النُّسْخَةِ جَازَ الْعَمَلُ بِهِ، لِأَنَّ أَصْحَابَ الرَّسُولِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ كَانُوا يَحْمِلُونَ الصُّحُفَ إِلَى الْبِلَادِ، وَكَانَ النَّاسُ يَعْتَمِدُونَ عَلَيْهَا بِشَهَادَةِ حَامِلِ الصُّحُفِ.

If a person of probity says, 'This is an accurate copy of al-Bukhārī's book,' and one sees in it 'He related to us,' one still may not transmit from its author. But must one act upon it? If one follows another's judgement, one must ask a practitioner of independent judgement; this is undisputed. If one exercises independent judgement oneself, some say that one may not act upon it without having heard it. Others say that one may act upon it once the copy's accuracy is known, since the Messenger's Companions, God bless him and grant him peace, carried written sheets to the provinces, and people relied upon them on the testimony of their bearers.

وَلَكِنْ عَلَى الْجُمْلَةِ فَلَا يَنْبَغِي أَنْ يَرْوِيَ إِلَّا مَا سَمِعَ بَعْدَ الْمَعْرِفَةِ، فَإِنَّ الَّذِي رَوَّاهُمْ لَمْ يَشُكَّ فِي شَيْءٍ مِمَّا أَخَذُوهُ عَنْهُ، فَإِنْ شَكَّ فِي شَيْءٍ تُرِكَتْ رِوَايَتُهُ.

In general, however, one should transmit only what one has heard and ascertained: the person who transmitted to them entertained no doubt about anything they received from him. If he doubted anything, its transmission was abandoned.

N040 · translation. Two reported positions must be distinguished: one denies reliance on what the recipient has not heard; another permits acting upon a written copy once its authenticity is established (إِذَا عُلِمَ صِحَّةُ النُّسْخَةِ جَازَ الْعَمَلُ بِهِ). This is not an unqualified permission asserted by Ibn Rushd.

G-B2-0215 · grammar. الشرط الوصلي بـ«وإن كان» — «فلا خلاف، وإن كان مجتهدا فقال قوم لا يجوز». [Even if / although; the condition does not overturn the principal judgement.]

BA-X068 · textual. قراءة [أ] عند بو عقل «فلا» في موضع «ولا» من طبعة [ع]. [Escorial reading according to Bou Akl 2015, Arabic p. 196; the earlier edition reads differently.]

106. The narrator’s certainty is not the recipient’s probability

R 106 · Bou Akl 128–129 · 1994 Arabic p. 78 · Bou Akl 2015 Arabic p. 196

وَقَدْ تتفرع عَنْ هَذَا مَسَائِلُ مِنْهَا: إِذَا كَانَ فِي مَسْمُوعَاتِهِ حَدِيثٌ يَغْلِبُ عَلَى ظَنِّهِ أَنَّهُ سَمِعَهُ هَلْ يَجُوزُ لَهُ أَنْ يَرْوِيَهُ؟ أَمَّا إِذَا شَكَّ فَلَا خِلَافَ فِي أَنَّهُ لَا يَجُوزُ لَهُ، وَأَمَّا إِذَا غَلَبَ عَلَى ظَنِّهِ أَنَّهُ سَمِعَهُ فَقَدْ قَالَ قَوْمٌ يَجُوزُ أَخْذُهُ عَنْهُ، لِأَنَّ الِاعْتِمَادَ فِي هَذَا الْبَابِ عَلَى غَلَبَةِ الظَّنِّ، وَهُوَ بَعِيدٌ، لِأَنَّ غَلَبَةَ الظَّنِّ إِنَّمَا تَتَصَوَّرُ فِي كَوْنِ الشَّيْخِ صَادِقًا. وَكَذَلِكَ غَلَبَةُ الظَّنِّ فِي الشَّهَادَةِ إِنَّمَا تَتَصَوَّرُ فِي حَقِّ الْحَاكِمِ، وَأَمَّا الشَّاهِدُ فَيَنْبَغِي أَنْ يَشْهَدَ عَلَى الْقَطْعِ فِيمَا الْقَطْعُ فِيهِ مُمْكِنٌ، وَكَذَلِكَ الرَّاوِي.

Several questions branch from this. Suppose that among the reports recorded as having been heard by a transmitter there is one that he strongly believes he heard: may he transmit it? If he is in doubt, there is no disagreement that he may not. If he strongly believes that he heard it, some say that it may be received from him, since this field rests on predominant probability. This is implausible: predominant probability concerns the teacher’s truthfulness. Likewise, in testimony, predominant probability concerns the judge; the witness, however, should testify with certainty wherever certainty is possible. The same applies to a transmitter.

BA-T067 · textual. قراءة الإسكوريال كما أثبتها بو عقل: «تتفرع»، مقابل «يتفرع» في طبعة العلوي. (Escorial reading as reported by Bou Akl, 2015, Arabic p. 196; variant against al-ʿAlawī.)

G-B2-0216 · grammar. أسلوب القصر بـ«إنّما» — «غلبة الظن إنما تتصور في كون الشيخ صادقا». [Restriction: only / nothing but; identify what is being limited by the construction.]

107. When a teacher denies or forgets a report

R 107 · Bou Akl 130 · 1994 Arabic p. 78, 79 · Bou Akl 2015 Arabic p. 198

وَمِنْهَا إِذَا أَنْكَرَ الشَّيْخُ الْحَدِيثَ إِنْكَارَ جَاحِدٍ قَاطِعٍ بِكَذِبِ الرَّاوِي فَإِنَّهُ لَا يُعْمَلُ بِهِ، وَلَكِنْ لَا يَصِيرُ الرَّاوِي مُجَرَّحًا، لِأَنَّهُمَا عَدْلَانِ تَعَارَضَ قَوْلُهُمَا. وَأَمَّا إِذَا أَنْكَرَ إِنْكَارَ مُتَوَقِّفٍ فَيُعْمَلُ بِالْخَبَرِ، لِأَنَّ الرَّاوِيَ جَازِمٌ فِي أَنَّهُ سَمِعَهُ، وَالشَّيْخُ لَيْسَ هُوَ قَاطِعًا بِتَكْذِيبِهِ وَهُمَا عَدْلَانِ.

Another question arises when the teacher denies the report categorically, affirming that the transmitter has spoken falsely. The report is then not acted upon, but the transmitter is not thereby discredited, because they are two persons of probity whose statements conflict. If, however, the teacher’s denial expresses uncertainty, the report is acted upon: the transmitter is certain that he heard it, while the teacher does not categorically declare him false, and both possess probity.

وَذَهَبَ الْكَرْخِيُّ إِلَى أَنَّ نِسْيَانَ الشَّيْخِ الْحَدِيثَ يُبْطِلُهُ، وَاحْتَجَّ بِأَنَّ الشَّيْخَ لَيْسَ يَجِبُ عَلَيْهِ الْعَمَلُ إِذَا رَوَاهُ لَهُ الْعَدْلُ عَنْهُ وَهُوَ لَا يَذْكُرُهُ، وَهَذَا لَا يَتَصَوَّرُ فِي الرَّاوِي، لِأَنَّهُ قَاطِعٌ، وَأَمَّا غَيْرُهُمَا فَحَالَتُهُ بَيْنَ حَالَتَيْهِمَا.

Al-Karkhī holds that the teacher’s forgetting the report invalidates it. He argues that the teacher is not obliged to act upon it when a person of probity transmits it back to him from him and he does not remember it. The transmitter cannot be in this position, since he is certain; the position of someone other than these two lies between theirs.

وَيُشْبِهُ أَنْ يَكُونَ أَغْلَبَ عَلَى ظَنِّهِ صِدْقُ الرَّاوِي لِلنِّسْيَانِ الْغَالِبِ عَلَى الْإِنْسَانِ، مَعَ أَنَّ الشَّيْخَ لَيْسَ بِقَاطِعٍ بِكَذِبِهِ. وَإِلَى هَذَا ذَهَبَ مَالِكٌ وَالشَّافِعِيُّ وَجَمَاهِيرُ الْمُتَكَلِّمِينَ، وَهُوَ يُشْبِهُ عِنْدَهُمْ شَكَّ الشَّيْخِ فِي زِيَادَةٍ فِي الْحَدِيثِ أَوْ إِعْرَابٍ فِيهِ.

It seems that the report’s recipient is more likely to believe the transmitter truthful, given how commonly people forget and the fact that the teacher does not categorically declare him false. This is the position of Mālik, al-Shāfiʿī, and the great majority of the theologians. In their view, it resembles the teacher’s uncertainty about an addition to a report or its grammatical inflection.

G-B2-0221 · grammar. «الفاء الاستئنافية مع «إنَّ/إنْ/إنّما — «بكذب الراوي فإنه لا يعمل به، ولكن لا». [The initial فـ links the reasoning. Distinguish إنَّ (assertion), إنْ (condition) and إنّما (restriction) from the words and vowelled context.]

108. An addition reported by one reliable narrator

R 108 · Bou Akl 131 · 1994 Arabic p. 79 · Bou Akl 2015 Arabic p. 198

وَمِنْهَا إِذَا انْفَرَدَ ثِقَةٌ بِزِيَادَةٍ فِي الْحَدِيثِ عَنْ جَمَاعَةٍ ثِقَاتٍ حُفَّاظٍ فَقِيلَ: تُقْبَلُ الزِّيَادَةُ، لِأَنَّهُ لَوِ انْفَرَدَ دُونَهُمْ بِحَدِيثٍ قُبِلَ. وَكَذَلِكَ الزِّيَادَةُ. وَأَنْتَ تَعْلَمُ أَنَّ الْأَمْرَ لَيْسَ كَذَلِكَ، لِأَنَّ انْفِرَادَهُ دُونَهُمْ بِزِيَادَةٍ، فِي حَدِيثٍ رَوَوْهُ، مَعَ أَنَّهُمْ حُفَّاظٌ قَرِينَةٌ تُضْعِفُ الظَّنَّ الْوَاقِعَ بِالزِّيَادَةِ، وَلَيْسَ كَذَلِكَ إِذَا انْفَرَدَ بِحَدِيثٍ دُونَهُمْ،

Another question concerns a trustworthy transmitter who alone reports an addition to a report transmitted by a group of trustworthy persons with exact memories. Some say that the addition is accepted: if he alone had transmitted an entire report, it would have been accepted, and the addition is no different. You know that this is not so. His being alone in reporting an addition to a report they have also transmitted, despite their exact memories, is an indication (قرينة) weakening the probability of the addition's authenticity. This does not apply when he alone transmits an entire report.

فَلِذَلِكَ رَأَى بَعْضُهُمْ أَلَّا تُقْبَلَ الزِّيَادَةُ، وَرَأَى بَعْضُهُمْ أَنْ تُقْبَلَ، لَكِنْ لَيْسَ لِهَذِهِ الْعِلَّةِ الَّتِي تَقَدَّمَتْ بَلْ لِأَنَّ أُولَئِكَ لَيْسُوا بِقَاطِعِينَ عَلَى نَفْيِ الزِّيَادَةِ، وَيُمْكِنُ أَنْ يَكُونُوا دَخَلُوا فِي الْمَجْلِسِ وَقَدْ مَضَى مِنَ الْحَدِيثِ شَيْءٌ، وَيُمْكِنُ أَنْ يَكُونُوا حَاضِرِينَ وَيَفُوتَ أَسْمَاعَهُمْ لِشَاغِلٍ أَوْ عَارِضٍ. وَبِالْجُمْلَةِ فَهِيَ مَسْأَلَةٌ اجْتِهَادِيَّةٌ، وَيَتَفَاوَتُ الظَّنُّ فِيهَا بِحَسَبِ نَازِلَةٍ نَازِلَةٍ وَحَدِيثٍ حَدِيثٍ.

Accordingly, some reject the addition; others accept it, though not for the reason just given. Their reason is that the others do not categorically deny the addition. They may have entered the gathering after part of the report had already been related, or they may have been present but failed to hear it because of some distraction or accident. In general, this is a matter for independent judgement, and its probability varies from case to case and report to report.

G-B2-0222 · grammar. «الشرط بـ«لو — «الزيادة، لأنه لو انفرد دونهم بحديث قبل. وكذلك». [Hypothetical or counterfactual condition; read the answer rather than treating لو as a simple past marker.]

109. Reporting meaning: synonymy and translation

R 109 · Bou Akl 132 · 1994 Arabic p. 79, 80 · Bou Akl 2015 Arabic p. 200

وَمِنْهَا نَقْلُ الْحَدِيثِ بِالْمَعْنَى دُونَ اللَّفْظِ، فَقَوْمٌ أَجَازُوهُ لِلْعَالِمِ الْعَارِفِ بِمَوَاقِعِ الْخِطَابِ، وَقَالَ قَوْمٌ لَا يَجُوزُ لَهُ إِلَّا بِإِبْدَالِ الْقَوْلِ بِمَا يُرَادِفُهُ وَيُسَاوِيهِ فِي الْمَعْنَى، كَمَا نُبْدِلُ الْقُعُودَ مَثَلًا بِالْجُلُوسِ مِمَّا لَا يُشَكُّ فِي تَرَادُفِهِمَا لَا فِيمَا يُحْتَاجُ فِي ذَلِكَ إِلَى اسْتِدْلَالٍ.

Another question is the transmission of a report's meaning without its wording. Some permit this for a learned person who understands the applications of speech. Others allow only the substitution (الإبدال) of an expression synonymous with and equal in meaning to the original: for example, replacing quʿūd with julūs, both meaning 'sitting,' where their synonymy is beyond doubt, and not where establishing it requires inference.

وَقَدِ احْتَجَّ الْفَرِيقُ الْأَوَّلُ بِالْإِجْمَاعِ عَلَى جَوَازِ شَرْحِ الْمَعَانِي الَّتِي فِي الشَّرْعِ لِلْعَجَمِ بِلِسَانِهِمْ، قَالُوا فَإِذَا جَازَ إِبْدَالُ الْعَرَبِيَّةِ بِعَجَمِيَّةٍ تُرَادِفُهَا فَلَأَنْ يَجُوزَ بِالْعَرَبِيَّةِ أَوْلَى وَأَحْرَى، وَلَمْ يُفَصِّلُوا بَيْنَ مَا كَانَ إِبْدَالُ اللَّفْظِ بِغَيْرِهِ بَيِّنًا بِنَفْسِهِ وَبَيْنَ مَا يُحْتَاجُ فِي ذَلِكَ إِلَى اسْتِدْلَالٍ. قَالُوا وَكَذَلِكَ كَانَ سُفَرَاءُ رَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ يُبَلِّغُونَ أَوَامِرَهُ إِلَى غَيْرِ الْعَرَبِ.

The first group appeals to the consensus permitting the meanings contained in the Law to be explained to non-Arabs in their own languages. They say that if Arabic may be replaced by synonymous non-Arabic wording, replacing it with Arabic wording is all the more permissible. They do not distinguish between a substitution whose validity is self-evident and one requiring inference. They add that the Messenger of God's emissaries, God bless him and grant him peace, likewise conveyed his commands to non-Arabs.

SC2015-072 · textual. أ «فإذا جاز إبدال العربية بعجمية ترادفها فلأن يجوز بالعربية أولى»؛ ع «فإذا جاز إبدال العربية بعجمية ترادفها أن يجوز بالعربية أولى». الفاء ولام التوكيد في الأولى [an a fortiori inference from translation between languages to paraphrase within Arabic] [Bou Akl 2015, Arabic p. 200, critical apparatus].

110. Why an independent jurist needs the Lawgiver's wording

R 110 · Bou Akl 133–134 · 1994 Arabic p. 80 · Bou Akl 2015 Arabic p. 200

وَأَنَا أَرَى أَنَّ فَهْمَ مَا تَدُلُّ عَلَيْهِ الْأَلْفَاظُ إِذَا كَانَ فِي مَحَلِّ الِاجْتِهَادِ فَلَا يَجُوزُ لِلْمُجْتَهِدِ الْعَمَلُ بِهِ حَتَّى يُنْقَلَ إِلَيْهِ لَفْظُ الشَّارِعِ، وَإِلَّا عَادَ الْمُجْتَهِدُ مِنْ حَيْثُ هُوَ مُجْتَهِدٌ مُقَلِّدًا، اللَّهُمَّ إِلَّا أَنْ يَقُولَ ذَلِكَ الْمَعْنَى صَحَابِيٌّ فَهَذَا يَرْجِعُ الْقَوْلُ فِيهِ إِلَى مَا تَقَدَّمَ مِنَ الْخِلَافِ الْمَذْكُورِ فِي ذَلِكَ. وَأَمَّا الْمُجْتَهِدُ الْمُقَلَّدُ فَيَجُوزُ لَهُ عِنْدِي إِبْدَالُ اللَّفْظِ بِلَفْظٍ غَيْرِهِ عِنْدَ مَنْ يُقَلِّدُهُ لِأَنَّ ذَلِكَ اجْتِهَادٌ مَا، وَعَلَى هَذَا جَازَ شَرْحُ الْعَرَبِيَّةِ وَتَبْدِيلِهَا بِالْعَجَمِيَّةِ.

I hold that when understanding what expressions signify is a matter for independent judgement, a practitioner of independent judgement may not act upon a reported meaning until the Lawgiver's wording has been transmitted to him. Otherwise, in the very capacity in which he exercises independent judgement, he becomes a follower of someone else's judgement. An exception might be made where that meaning is stated by a Companion; discussion of this returns to the disagreement mentioned earlier. A practitioner of independent judgement whose judgement others follow may, in my view, substitute one expression for another for those who follow him, since this itself is a kind of independent judgement. Consequently, explaining Arabic expressions and rendering them in another language are permissible.

وَأَمَّا تَجْوِيزُ نَقْلِ بَعْضِ الْخَبَرِ فَهُوَ [عِنْدِي جَائِزٌ، إِذَا كَانَ مُفِيدًا وَمُكْتَفِيًا بِنَفْسِهِ وَغَيْرَ مُحْتَاجٍ فِي فَهْمِهِ إِلَى مَا قَبْلَهُ، أَوْ كَانَ لَيْسَ يُوجِبُ حَذْفُ مَا حُذِفَ مِنْهُ تَرَدُّدَ الْمَفْهُومِ عَنْهُ بَيْنَ مَعْنَيَيْنِ أَوْ أَكْثَرَ مِنْ ذَلِكَ، وَسَوَاءٌ [جَوَّزْنَا] الْأَمْرَ فِي هَذَا عِنْدَ مَنْ أَجَازَ نَقْلَ الْحَدِيثِ بِالْمَعْنَى دُونَ اللَّفْظِ أَوْ لَمْ يُجِزْهُ].

As for permitting the transmission of only part of a report, [I consider this permissible if that part conveys a meaning, is self-sufficient, and does not require what precedes it in order to be understood, or if omitting the excised portion does not leave what remains susceptible to two or more meanings. This applies equally whether [we permit] the procedure on the view of those who allow transmission of a report's meaning without its wording, or of those who do not].

N041 · textual. The bracketed passage supplements the defective base witness and is connected with the quotation preserved by al-Zarkashī, al-Baḥr al-muḥīṭ IV 364. For this clause the Escorial text, as reported by Bou Akl 2015 (Arabic p.200, BA §134), reads حذف, "omission," against al-ʿAlawī's صدق, "truth." The issue is whether truncation produces ambiguity in the remaining report. Square brackets do not establish direct manuscript attestation for the whole supplement.

N042 · translation. المجتهد المقلد is read al-mujtahid al-muqallad, 'the practitioner of independent judgement whom others follow,' as confirmed by عند من يقلده later in the sentence; reading al-muqallid would reverse the point.

G-B2-0230 · grammar. الأمر في هذا عند [جوزنا] وسواء، من ذلك» — «أسلوب التسوية». [Whether one alternative or another; both possibilities fall under the same assessment.]

BA-T070 · textual. الحذف والتردّد: حذف ما حُذِف منه هو الفاعل المعنوي لـ«يوجب»؛ والمقصود احتمال المعنى الباقي بعد الاختصار. [A verbal-noun subject: omission, not the truth of omitted wording, is what might cause ambiguity.] Bou Akl, Arabic p.200, §134.

SC2015-071 · textual. أ «وعلى هذا جاز شرح العربية»؛ ع «وعلى هذا حال شرح العربية». جاز [permissibility of explanation and translation, not the mere circumstance of their use] [Bou Akl 2015, Arabic p. 200, critical apparatus].

111. Omitted links, connected chains, and “from” formulae

R 111 · Bou Akl 135 · 1994 Arabic p. 80, 81 · Bou Akl 2015 Arabic p. 202

وَمِنْهَا النَّقْلُ الْمُرْسَلُ وَالْمُسْنَدُ. وَهَذَا قَدِ اخْتَلَفُوا فِيهِ، فَذَهَبَ مَالِكٌ وَأَبُو حَنِيفَةَ وَالْجَمَاهِيرُ إِلَى أَنَّ الْمُرْسَلَ مَقْبُولٌ وَمَعْمُولٌ بِهِ، وَذَهَبَ الشَّافِعِيُّ وَالْقَاضِي إِلَى أَنَّهُ غَيْرُ مَقْبُولٍ. وَصُورَتُهُ أَنْ يَقُولَ: قَالَ رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ مَنْ لَمْ يُعَاصِرْهُ، أَوْ قَالَ أَبُو هُرَيْرَةَ مَنْ لَمْ يُعَاصِرْهُ.

Another question concerns transmission with an omitted link and transmission with a connected chain. Opinions differ: Mālik, Abū Ḥanīfa, and the majority accept and act upon a report with an omitted link, whereas al-Shāfiʿī and the Qāḍī reject it. Its form is for someone who was not his contemporary to say, ‘The Messenger of God said’—God bless him and grant him peace—or for someone who was not Abū Hurayra’s contemporary to say, ‘Abū Hurayra said.’

أَمَّا الْفَرِيقُ الْأَوَّلُ فَاحْتَجُّوا بِأَنَّ رِوَايَةَ الْعَدْلِ تَعْدِيلٌ، لَا سِيَّمَا فِيمَا يُصَرِّحُ بِهِ، كَقَوْلِهِ عَنِ الثِّقَةِ عنده، فَرُوجِعُوا بِأَنَّ رِوَايَةَ الْعَدْلِ لَيْسَتْ بِتَعْدِيلٍ إِلَّا أَنْ يُعْلَمَ مِنْ قَرِينَةِ حَالِهِ أَنَّهُ لَا يَجْرَحُ إِلَّا عَنْ عَدْلٍ أَوْ يُصَرِّحَ بِعَدَالَتِهِ، ثُمَّ إِذَا عُلِمَ مِنْ قَرِينَةِ حَالِهِ أَنَّهُ لَا يَجْرَحُ إِلَّا عَنْ عَدْلٍ أَوْ صَرَّحَ بِعَدَالَتِهِ فَلَيْسَ بِتَعْدِيلٍ مَا لَمْ يَذْكُرْ مَا الْعَدَالَةُ عِنْدَهُ. وَهَذَا عِنْدِي غَيْرُ لَازِمٍ عَلَى مَذْهَبِ الشَّافِعِيِّ وَالْقَاضِي عَلَى مَا تَقَدَّمَ لَكِنْ عَسَاهُمْ لَا يُسَلِّمُونَ التَّعْدِيلَ الْمُطْلَقَ إِلَّا فِيمَنْ عُرِفَتْ عَيْنُهُ، إِذْ مَنْ لَمْ تُعْرَفْ عَيْنُهُ مُمْكِنٌ أَنْ لَوْ سُمِّيَ عَرَفْنَاهُ بِفِسْقٍ.

The first group argues that transmission by a person of probity attests his source’s probity, especially when he states this explicitly, as in ‘from a trustworthy person,’ in their usage. The reply is that his transmission does not attest probity unless his circumstances indicate that he transmits only from persons of probity, or he expressly attests his source’s probity; and even then it does not establish probity unless he states what probity means to him. In my view, this last requirement does not follow from the positions of al-Shāfiʿī and the Qāḍī, as explained earlier. Perhaps, however, they concede unspecified attestation only where the person is identified: an unidentified person might, if named, be someone we know to be morally unreliable.

وَقَدِ احْتَجَّ الْفَرِيقُ الْأَوَّلُ أَيْضًا فِي قَبُولِ الْمَرَاسِلِ بِإِجْمَاعِ الصَّحَابَةِ وَالتَّابِعِينَ عَلَى جَوَازِ الْعَمَلِ بِالْمَرَاسِلِ. لَكِنْ نُوزِعُوا فِي نَفْسِ الْإِجْمَاعِ، إِذْ لَمْ يَتَّصِلْ ذَلِكَ عَنْ جَمِيعِهِمْ، وَسُكُوتُ مَنْ سَكَتَ مِنْهُمْ لَيْسَ يَتَنَزَّلُ مَنْزِلَةَ مَنْ قَالَ، لَا سِيَّمَا فِيمَا كَانَ فِي مَحَلِّ الِاجْتِهَادِ كَمَا سَيَأْتِي مِنْ بَعْدُ.

The first group also argues for accepting reports with omitted links from the consensus of the Companions and Successors permitting action upon them. But the alleged consensus itself is disputed, because this position has not been transmitted from all of them, and the silence of those who said nothing does not have the standing of an express statement, especially in matters open to independent judgement, as will be explained later.

وَأَيْضًا فَإِنَّ مِنَ الْمُنْكِرِينَ لِلْمُرْسَلِ مَنْ قَبِلَ مُرْسَلَ الصَّحَابِيِّ لِأَنَّهُ فِي الْأَكْثَرِ لَا يُحَدِّثُ إِلَّا عَنْ صَحَابِيٍّ، وَكُلُّهُمْ عَدْلٌ، وَكَذَلِكَ مَرَاسِلُ التَّابِعِينَ إِذْ فِي الْأَكْثَرِ إِنَّمَا يَرْوُونَ عَنْ صَحَابِيٍّ. لَكِنَّ الْمُخْتَارَ عِنْدَ مَنْ لَا يَقْبَلُ الْمَرَاسِلَ أَنْ لَا يَقْبَلَ مُرْسَلَ الصَّحَابِيِّ أَوِ التَّابِعِيِّ حَتَّى يَعْلَمَ بِصَرِيحِ لَفْظِهِ أَوْ قَرِينَةِ حَالٍ أَنَّهُ لَا يَرْوِي إِلَّا عَنْ صَحَابِيٍّ.

Some who reject reports with omitted links nevertheless accept such a report from a Companion, because he generally relates only from another Companion, and all of them possess probity. The same is said of the Successors' reports with omitted links, since they generally transmit from a Companion. The preferred position among those who reject such reports, however, is to accept one from neither a Companion nor a Successor until his explicit wording or a contextual indication makes it known that he transmits only from a Companion.

وَأَمَّا مَا يُمْكِنُ أَنْ يُحْتَجَّ بِهِ عَلَى مَنْ مَنَعَ قَبُولَ الْمَرَاسِلِ مِنَ الْعَنْعَنَةِ وَإِجْرَائِهَا مَجْرَى الْمُسْنَدِ مَعَ إِمْكَانِ أَنْ يَكُونَ بَيْنَ الرَّاوِي وَالْمَرْوِيِّ غَيْرُهُ، فَلَهُمْ أَنْ يُجِيبُوا عَنْ ذَلِكَ بِأَنَّ الْعَنْعَنَةَ إِنَّمَا أُجْرِيَتْ مَجْرَى الْمُسْنَدِ حَيْثُ تَقْتَرِنُ قَرَائِنُ تَدُلُّ عَلَى أَنَّهُ سَمِعَ مِنْهُ، أَوْ يُصَرِّحُ بِذَلِكَ، وَمَتَى لَمْ يُصَرِّحْ بِذَلِكَ وَلَا دَلَّتْ عَلَى ذَلِكَ قَرَائِنُ فَهُوَ مُتَرَدِّدٌ بَيْنَ الْمُرْسَلِ وَالْمُسْنَدِ.

An argument might be brought against those who refuse such reports from chains expressed simply by 'from,' which are treated as connected despite the possibility of an intermediary between the transmitter and his source. They may reply that a chain expressed by 'from' is treated as connected only where accompanying indications show that the transmitter heard directly from his source, or where he explicitly says so. In the absence of either an explicit statement or such indications, the report remains uncertain between an omitted-link report and a connected report.

N043 · textual. At p. 81 the print twice has لا يجرح إلا عن عدل. The argument concerns transmission from a source, and the English renders that contextual sense; the anomalous printed verb is retained in the Arabic.

N044 · translation. Mursal and musnad are rendered according to Ibn Rushd's own broad definition here: a report with an omitted intermediary versus a report with a connected chain, rather than imposing a narrower later definition of mursal.

G-B2-0231 · grammar. لكن المختار. «في الأكثر إنما يروون عن صحابي» — «أسلوب القصر بـ«إنّما»». [Restriction: only / nothing but; identify what is being limited by the construction.]

G-B2-0232 · grammar. وقد احتج. «ممكن أن لو سمي عرفناه بفسق» — «الشرط بـ«لو»». [Hypothetical or counterfactual condition; read the answer rather than treating لو as a simple past marker.]

BA-X074 · textual. [ع] من طبعة «عندهم» في موضع «عنده» عند بو عقل [أ] قراءة. [Escorial reading according to Bou Akl 2015, Arabic p. 202; the earlier edition reads differently.]

SC2015-073 · textual. المراسل. أ «قبول المراسل»؛ ع «قبول المراسيل». [the manuscript form of the plural referring to mursal reports] [Bou Akl 2015, Arabic p. 202, critical apparatus].

112. Solitary reports concerning matters of widespread need

R 112 · Bou Akl 136 · 1994 Arabic p. 81, 82 · Bou Akl 2015 Arabic p. 204

وَأَمَّا قَبُولُ خَبَرِ الْوَاحِدِ فِيمَا تَعُمُّ بِهِ الْبَلْوَى كَحَدِيثِ مَسِّ الذَّكَرِ وَمَا أَشْبَهَهُ فَقَدْ تَقَدَّمَ الْقَوْلُ فِي وَجْهِ الِاسْتِرَابَةِ بِهِ، لِأَنَّ مَا تَعُمُّ بِهِ الْبَلْوَى يَنْتَشِرُ وَيَسْتَفِيضُ بِحَسَبِ عُرْفِ الْعَادَةِ. وَقَدْ رَدَّ هَذِهِ الْقَرِينَةَ مَنْ أَجَازَ الْعَمَلَ بِأَخْبَارِ الْآحَادِ فِيمَا تَعُمُّ بِهِ الْبَلْوَى بِأَنَّ الِاسْتِفَاضَةَ إِنَّمَا تَلْزَمُ فِيمَا تَعَبَّدَ فِيهِ رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ بِإِشَاعَتِهِ فِي الْجَمِيعِ، وَأَمَّا مَا تَعَبَّدَ بِهِ بِاتِّصَالِهِ إِلَى الْآحَادِ وَرَدِّ الْخَلْقِ إِلَى أَخْبَارِهِمْ فَلَا يَلْزَمُ ذَلِكَ فِيهِ.

As for accepting a solitary report about something of widespread occurrence, such as the report concerning touching the penis and similar reports, the grounds for suspecting it have already been explained: what commonly affects people normally becomes widely circulated and known. Those who permit acting on solitary reports in such matters reject this indication. They say that widespread transmission is required only for what the Messenger of God, God bless him and grant him peace, was charged to disseminate among everyone; it is not required for what he was charged to convey to individuals while referring others to their reports.

وَيَحْتَجُّونَ لِتَجْوِيزِ رَدِّهِمْ إِلَى أَخْبَارِ الْآحَادِ فِي بَعْضِ النَّوَازِلِ مَعَ إِمْكَانِ اسْتِفَاضَةِ ذَلِكَ بِتَجْوِيزِ رَدِّهِمْ إِلَى الْقِيَاسِ فِيمَا يُمْكِنُ أَنْ يَنُصَّ عَلَيْهِ كَمَسْأَلَةِ الرِّبَا وَأَشْبَاهِهَا. قَالُوا وَلَيْسَ عُمُومُ الْبَلْوَى عِلَّةَ الْإِشَاعَةِ وَالِاسْتِفَاضَةِ، بَلْ عِلَّةُ ذَلِكَ جِهَةُ التَّكْلِيفِ.

To justify referring people to solitary reports in some cases even though widespread transmission would be possible, they invoke the permissibility of referring them to analogy where an express ruling could have been given, as in the question of usury and similar matters. They say that widespread occurrence is not the cause of dissemination and wide transmission; the cause is the manner in which the duty is imposed.

G-B2-0234 · grammar. أسلوب القصر بـ«إنّما» — «بأن الاستفاضة إنما تلزم فيما تعبد فيه رسول». [Restriction: only / nothing but; identify what is being limited by the construction.]

113. Neither universal acceptance nor universal rejection is justified

R 113 · Bou Akl 137 · 1994 Arabic p. 82, 83 · Bou Akl 2015 Arabic p. 204

وَأَنَا أَرَى أَنَّ تَبْلِيغَهُ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ فَرْضًا مِنْ فُرُوضِ اللَّهِ مِمَّا هُوَ وَاجِبٌ عَلَى الْأَعْيَانِ وَاحِدًا، وَسُكُوتَهُ عَنْ تَبْلِيغِهِ لِمَنْ يُرَاوِحُهُ وَيُغَادِيهِ مِنْ أَصْحَابِهِ صَلَّى اللَّهُ عَلَيْهِمْ وَسَلَّمَ اتِّكَالًا مِنْهُ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ عَلَى أَنَّهُ إِنْ وَصَلَهُمْ ذَلِكَ الْخَبَرُ عَمِلُوا بِهِ، وَإِنْ لَمْ يَصِلْهُمْ فَهُوَ سَاقِطٌ فِي حَقِّهِمْ غَيْرُ مَعْلُومٍ مِنْ قَرَائِنِ أَحْوَالِهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ مَعَ حِرْصِهِ عَلَى التَّعْلِيمِ وَالتَّبْيِينِ.

I hold that his conveying, God bless him and grant him peace, one of God's individually binding obligations to a single person, while refraining from conveying it to the Companions who attended him morning and evening—may God bless them and grant them peace—would involve his relying, God bless him and grant him peace, on their acting upon the report if it reached them and on the obligation's lapsing for them if it did not. Nothing in his circumstances, God bless him and grant him peace, indicates this, given his eagerness to teach and explain.

وَسَوَاءٌ جَازَ وُقُوعُ مِثْلِ هَذَا عَقْلًا أَوْ لَمْ يَجُزْ هُوَ مِمَّا يَكَادُ يُقْطَعُ بِامْتِنَاعِ وُقُوعِهِ شَرْعًا عِنْدَ تَصَفُّحِ أَحْوَالِهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ فِي الْبَيَانِ وَالتَّبْيِينِ.

Whether or not such a thing is rationally possible, examining his conduct, God bless him and grant him peace, in explaining and clarifying the Law brings one close to certainty that it could not have occurred in the revealed dispensation.

وَإِنَّمَا الْحَقُّ أَنَّ بَعْضَ الْأَخْبَارِ لَيْسَ يُمْكِنُ فِيهَا أَنْ تَصِلَ إِلَيْنَا إِلَّا بِطُرُقِ الْآحَادِ، وَإِنْ عَمَّتْ بِهَا الْبَلْوَى فِيمَا سَلَفَ وَاسْتَفَاضَتْ، وَبَعْضَهَا يُمْكِنُ أَنْ تَصِلَ بِهَذَا وَهَذَا، وَبَعْضَهَا مُمْتَنِعٌ أَنْ تَصِلَ بِغَيْرِ التَّوَاتُرِ، وَذَلِكَ يَخْتَلِفُ فِي نَازِلَةٍ نَازِلَةٍ وَقَضِيَّةٍ قَضِيَّةٍ، وَذَلِكَ بِحَسَبِ الزَّمَانِ وَالْمَكَانِ وَغَيْرِ ذَلِكَ مِنَ الْعَوَائِقِ.

The truth is that some reports can reach us only through solitary routes, even if their subject was formerly widespread and the reports widely circulated. Others can reach us by either route, and still others cannot reach us except through mass transmission. This varies from case to case and issue to issue, according to time, place, and other obstacles.

وَلِذَلِكَ رُبَّمَا انْقَدَحَ لِلْمُجْتَهِدِ فِي بَعْضِ الْأَخْبَارِ الْقَوْلُ بِرَدِّهِ لِعُمُومِ الْبَلْوَى، وَرُبَّمَا لَمْ يَنْقَدِحْ لَهُ رَدُّهُ، وَلَا سِيَّمَا فِي فُرُوضِ الْكِفَايَاتِ. وَيَنْبَغِي أَنْ يُقَالَ فِي كُلِّ مَوْضِعٍ بِحَسَبِ مَا يَحْتَمِلُ الْأَمْرُ الْمَقُولُ فِيهِ، فَإِنَّ رَدَّ الْإِنْسَانِ طُرُقَ الْآحَادِ فِيمَا تَعُمُّ بِهِ الْبَلْوَى فِي كُلِّ مَوْضِعٍ غَيْرُ صَوَابٍ، إِذْ يَتَفَاوَتُ ذَلِكَ بِحَسَبِ الْقَرَائِنِ وَكَذَلِكَ الْعَمَلُ بِهَا عَلَى الْإِطْلَاقِ.

Accordingly, in some reports a practitioner of independent judgement may find grounds for rejection because of widespread occurrence, while in others he may find no such grounds, especially in collective obligations. In each instance one should judge according to what the matter under discussion admits. Rejecting solitary routes in every case of widespread occurrence is incorrect, since the matter varies with the accompanying indications; acting upon them without qualification is likewise incorrect.

وَلَيْسَ لِهَذَا التَّقْسِيمِ طَبِيعَةُ التَّقَابُلِ حَتَّى يُجْعَلَ طَرَفَيْ نَقِيضٍ وَيَتَكَلَّمَ عَلَيْهَا كُلُّ وَاحِدٍ مِنَ الْفَرِيقَيْنِ عَلَى أَنَّ الصِّدْقَ مُنْحَصِرٌ فِي أَحَدِهِمَا. وَأَنْتَ تَعْلَمُ أَنَّ كَثِيرًا مَا يَفْعَلُونَ هَذَا فِي كَثِيرٍ مِنْ هَذِهِ الْمَسَائِلِ.

This division does not have the nature of logical opposition, so that its two sides could be made contradictories and each party discuss them as though truth were confined to one side. You know how often they proceed in this way in many of these questions.

N045 · textual. The unusual blessing on the Companions, صلى الله عليهم وسلم, is the wording printed at p. 82 and is translated as such.

G-B2-0237 · grammar. أسلوب القصر بـ«إنّما» — «البيان والتبيين. وإنما الحق أن بعض الأخبار ليس». [Restriction: only / nothing but; identify what is being limited by the construction.]

G-B2-0239 · grammar. أسلوب التسوية — «التعليم والتبيين. وسواء جاز وقوع مثل هذا عقلا». [Whether one alternative or another; both possibilities fall under the same assessment.]

114. Both Qurʾān and Sunna are subject to abrogation

R 114 · Bou Akl 138 · 1994 Arabic p. 83 · Bou Akl 2015 Arabic p. 206

وَهُنَا انْتَهَى النَّظَرُ فِي الْأَصْلِ الثَّانِي وَهُوَ السُّنَّةُ، وَيَنْبَغِي أَنْ تَعْلَمَ أَنَّ هَذَيْنِ الْأَصْلَيْنِ يَلْحَقُهُمَا النَّسْخُ، وَلْنَقُلْ فِي ذَلِكَ.

Here the examination of the second source, the Sunna, comes to an end. You should know that both these sources are subject to abrogation; let us now discuss it.

115. Does abrogation remove a ruling or reveal its time limit?

R 115 · Bou Akl 139 · 1994 Arabic p. 84 · Bou Akl 2015 Arabic p. 206

وَقَدِ اخْتُلِفَ فِي حَدِّ النَّسْخِ فَحَدَّهُ الْمُتَكَلِّمُونَ بِأَنَّهُ الْخِطَابُ الدَّالُّ عَلَى رَفْعِ الْحُكْمِ الثَّابِتِ بِالْخِطَابِ الْمُتَقَدِّمِ عَلَى وَجْهٍ لَوْلَاهُ كَانَ الْحُكْمُ ثَابِتًا مَعَ تَرَاخِي الْخِطَابِ الدَّالِّ عَلَى ارْتِفَاعِهِ. وَإِنَّمَا اشْتَرَطُوا فِيهِ هَذِهِ الْفُصُولَ لِأَنَّهُمْ يُجَوِّزُونَ عَلَى اللَّهِ تَعَالَى رَفْعَ الْحُكْمِ فِي وَقْتٍ مَا بَعْدَ الْأَمْرِ بِهِ عَلَى التَّأْبِيدِ مَثَلًا، وَبِالْجُمْلَةِ فَيَجُوزُ عِنْدَهُمُ النَّسْخُ قَبْلَ التَّمَكُّنِ مِنَ الْفِعْلِ. وَحَدَّهُ آخَرُونَ بِأَنَّهُ الْخِطَابُ الْكَاشِفُ عَنْ مُدَّةِ انْقِضَاءِ الْعِبَادَةِ، اعْتِقَادًا مِنْهُمْ أَنَّ النَّسْخَ إِنَّمَا يَرِدُ مُبَيِّنًا فِيمَا لَمْ يُقْصَدْ بِهِ مِنْ أَوَّلِ الْأَمْرِ عُمُومُ جَمِيعِ الزَّمَانِ وَلَا اسْتِغْرَاقُهُ.

There is disagreement over the definition of abrogation. The theologians define it as discourse indicating the removal of a ruling established by earlier discourse, such that the ruling would remain in force without it, with the discourse indicating its removal occurring later. They include these qualifications because they allow that God Most High may remove a ruling at some time after, for example, commanding it in perpetuity. In general, they allow abrogation before performance has become possible. Others define it as discourse disclosing when the term of an act of worship expires, because they believe that abrogation merely clarifies a prescription that was never intended from the outset to apply generally to, or encompass, all time.

وَحَدَّهُ أَيْضًا آخَرُونَ بِأَنَّهُ الْخِطَابُ الدَّالُّ عَلَى أَنَّ مِثْلَ الْحُكْمِ الثَّابِتِ بِالنَّصِّ زَائِلٌ عَلَى وَجْهٍ لَوْلَاهُ لَكَانَ ثَابِتًا. وَهَذَا الْحَدُّ وَإِنْ كَانَ فِيهِ تَثْبِيجٌ، لِأَنَّهُمْ جَعَلُوا الْمَرْفُوعَ مِثْلَ الْحُكْمِ وَلَمْ يَجْعَلُوهُ الْحُكْمَ نَفْسَهُ، فَإِنَّمَا اضْطَرَّهُمْ إِلَى ذَلِكَ أَنَّهُمْ لَا يُجَوِّزُونَ عَلَى اللَّهِ تَعَالَى النَّهْيَ عَنِ الشَّيْءِ الْوَاحِدِ بِعَيْنِهِ بَعْدَ الْأَمْرِ بِهِ.

Still others define it as discourse indicating that a ruling like the one established by the text ceases to hold, such that it would remain in force without that discourse. This definition is somewhat clumsy, because it makes what is removed a ruling like the original rather than the ruling itself. They were driven to this formulation only because they do not allow that God Most High may prohibit the very same thing after commanding it.

G-B2-0241 · grammar. أسلوب القصر بـ«إنّما» — «على ارتفاعه. وإنما اشترطوا فيه هذه الفصول لأنهم». [Restriction: only / nothing but; identify what is being limited by the construction.]

G-B2-0242 · grammar. الشرط الامتناعي بـ«لولا» — «على وجه لولاه كان الحكم ثابتا مع تراخي». [Were it not for …; the absence of the condition would prevent the result.]

G-B2-0243 · grammar. «على أنَّ» بين التعلّق النحوي والاستدراك — «الخطاب الدال على أن مثل الحكم الثابت بالنص زائل». [The phrase may complete a preceding verb such as “argue that”, or introduce a qualification; check its governing clause rather than assuming “although”.]

BA-F078 · textual. «على وجه لولاه لكان الحكم ثابتا [ع]: مقابل قراءة العلوي [أ]: «على وجه لولاه كان الحكم ثابتا»؛ طبعة بو عقل، شاهد الإسكوريال». يحذف لام الجواب في هذا الموضع؛ وتبقى اللام في تعريف آخر لاحق. [Bou Akl 2015, facing Arabic–French edition; this is a reported manuscript reading, not an independent examination of Escorial 1235.]

116. What the jurist needs to know about abrogation

R 116 · Bou Akl 140–141 · 1994 Arabic p. 84 · Bou Akl 2015 Arabic p. 208

وَبِالْجُمْلَةِ فَالنَّظَرُ فِيمَا يَجُوزُ مِنْ هَذَا عَلَى اللَّهِ تَعَالَى وَمَا لَا يَجُوزُ لَا يَخُصُّ الْفَقِيهَ بِمَا هُوَ فَقِيهٌ. وَالَّذِي يَكْفِي الْفَقِيهَ مِنْ هَذَا أَنْ يُسَلِّمَ أَنَّ فِي الشَّرْعِ أَحْكَامًا رُفِعَتْ بَعْدَ الْأَمْرِ بِهَا وَيَعْتَقِدَ ذَلِكَ سَوَاءٌ كَانَ ذَلِكَ كَشْفًا عَنِ انْقِضَاءِ مُدَّةِ الْعِبَادَةِ أَوْ لَمْ يَكُنْ، وَأَنَّ وُقُوعَ مِثْلِ هَذَا شَرْعًا مِمَّا ثَبَتَ تَوَاتُرًا. وَأَمَّا تَجْوِيزُ وُقُوعِهِ عَقْلًا فَلَيْسَ يَخُصُّهُ النَّظَرُ فِيهِ وَلَا فِي جِهَةِ جَوَازِهِ، فَلْنَبْدَأْ مِنْ ذَلِكَ بِالضَّرُورِيِّ فِي هَذِهِ الصِّنَاعَةِ، وَالْقَوْلُ فِي ذَلِكَ يَشْتَمِلُ عَلَى مَسَائِلَ:

In general, inquiry into which of these things may or may not be attributed to God Most High does not belong to the jurist as jurist. It is sufficient for the jurist to concede and believe that the Law contains rulings removed after they had been commanded, whether or not this removal disclosed the expiry of the term of an act of worship, and that the occurrence of such abrogation in the Law is established by mass transmission. Inquiry into its rational possibility, or the manner of that possibility, does not belong specifically to him. Let us therefore begin with what is necessary in this discipline. The discussion comprises several questions.

G-B2-0245 · grammar. أسلوب التسوية — «وبعتقد ذلك سواء كان ذلك كشفا عن انقضاء». [Whether one alternative or another; both possibilities fall under the same assessment.]

117. Removing a part, a condition, or a recommended observance

R 117 · Bou Akl 142 · 1994 Arabic p. 84, 85 · Bou Akl 2015 Arabic p. 208

إِذَا نُسِخَ بَعْضُ الْعِبَادَةِ أَوْ شَرْطٌ مِنْ شُرُوطِهَا أَوْ سُنَّةٌ مِنْ سُنَنِهَا هَلْ هُوَ نَسْخٌ لِأَصْلِ الْعِبَادَةِ أَمْ لَا؟ وَهَذِهِ الْمَسْأَلَةُ قَدِ اخْتَلَفُوا فِيهَا، وَالْحَقُّ أَنَّ رَفْعَ الْبَعْضِ رَفْعٌ لِلْكُلِّ، لِأَنَّ الْكُلَّ إِنَّمَا هُوَ كُلٌّ بِبَعْضِهِ، وَالْعِبَادَةُ إِنَّمَا هِيَ مَأْمُورٌ بِهَا مِنْ جِهَةِ مَا تَحْتَوِي عَلَى جَمِيعِ أَجْزَائِهَا. وَبِالْجُمْلَةِ فَرَفْعُ الْجُزْءِ رَفْعٌ لِلْكُلِّ، لِأَنَّهُ لَا يَبْقَى كُلًّا وَذَلِكَ فِيمَا لَا يَتَبَعَّضُ. وَيُشْبِهُ أَنْ يَكُونَ كَذَلِكَ رَفْعُ الشَّرْطِ، لِأَنَّهُ الَّذِي بِهِ تَتِمُّ الْعِبَادَةُ. وَأَمَّا رَفْعُ السُّنَّةِ فَلَيْسَ يَلْزَمُ عَنْهَا رَفْعُ وُجُوبِ الْعِبَادَةِ.

If part of an act of worship, one of its conditions, or one of its recommended observances is abrogated, does this abrogate the act of worship itself? Opinions differ. The truth is that removing a part removes the whole, because a whole is a whole through its parts, and an act of worship is commanded insofar as it comprises all its parts. In general, removing a part removes the whole, since it no longer remains a whole; this applies to what cannot be divided into independent parts. Removing a condition seems to have the same effect, since it is through that condition that the act of worship is complete. Removing a recommended observance, however, does not entail removing the act's obligatory character.

G-B2-0247 · grammar. أسلوب القصر بـ«إنّما» — «لأن الكل إنما هو كل ببعضه، والعبادة إنما». [Restriction: only / nothing but; identify what is being limited by the construction.]

SC2015-079 · textual. فاء التفريع. أ «وبالجملة فرفع الجزء»؛ ع «وبالجملة رفع الجزء» [the abolition of a part entails abolition of the whole] [Bou Akl 2015, Arabic p. 208, critical apparatus].

118. When an addition changes the identity of an obligation

R 118 · Bou Akl 143 · 1994 Arabic p. 85 · Bou Akl 2015 Arabic p. 208

مَسْأَلَةٌ: الزِّيَادَةُ عَلَى النَّصِّ نَسْخٌ عِنْدَ قَوْمٍ، وَلَيْسَتْ بِنَسْخٍ عِنْدَ قَوْمٍ. وَالْمُخْتَارُ أَنَّ الزِّيَادَةَ إِذَا صَارَ بِهَا الْمَزِيدُ غَيْرَ مَا كَانَ قَبْلُ وَثَانِيًا بِالْعَدَدِ فَهِيَ نَسْخٌ، مِثْلَ الصَّلَاةِ إِنْ صَحَّ فِيهَا أَنَّهَا فُرِضَتْ أَوَّلًا رَكْعَتَيْنِ ثُمَّ زِيدَ فِيهَا.

Question. Some regard an addition to a text as abrogation; others do not. The preferred position is that an addition constitutes abrogation when it makes what receives the addition different from what it was before and numerically a second thing. An example is prayer, if it is correct that two cycles were originally prescribed and further cycles were then added.

فَأَمَّا إِذَا كَانَتِ الزِّيَادَةُ مُبَايِنَةً لِلْعِبَادَةِ الْمَزِيدِ عَلَيْهَا بِالنَّوْعِ فَبَيِّنٌ أَنَّهَا لَيْسَتْ بِنَسْخٍ، كَإِيجَابِ الصَّلَاةِ مَثَلًا، ثُمَّ إِيجَابِ الزَّكَاةِ. وَكَذَلِكَ إِنْ كَانَتِ الزِّيَادَةُ مَعَ الْمَزِيدِ عَلَيْهِ وَاحِدَةً بِالنَّوْعِ وَلَمْ يَصِرِ الْمَزِيدُ عَلَيْهِ بِهَا غَيْرًا بِالشَّخْصِ فَلَيْسَتْ أَيْضًا بِنَسْخٍ، كَزِيَادَةِ عِشْرِينَ جَلْدَةً فِي الْحَدِّ مَثَلًا عَلَى ثَمَانِينَ، وَإِنْ كَانَ أَبُو حَنِيفَةَ رَحِمَهُ اللَّهُ يَرَى مِثْلَ هَذَا نَسْخًا.

If, however, the addition differs in kind from the act of worship to which it is added, it clearly is not abrogation—for example, prescribing prayer and then prescribing almsgiving. Likewise, if the addition and what receives it are one in kind, but the addition does not make the latter a different individual thing, it is not abrogation: for example, adding twenty lashes to a prescribed punishment of eighty. Abū Ḥanīfa, God have mercy on him, nevertheless regards such a case as abrogation.

G-B2-0252 · grammar. الشرط الوصلي بـ«وإن كان» — «على ثمانين، وإن كان أبو حنيفة رحمه الله يرى». [Even if / although; the condition does not overturn the principal judgement.]

119. Abrogation without a substitute

R 119 · Bou Akl 144 · 1994 Arabic p. 85 · Bou Akl 2015 Arabic p. 210

مَسْأَلَةٌ: لَيْسَ مِنْ شَرْطِ النَّسْخِ إِثْبَاتُ بَدَلٍ لِلْمَنْسُوخِ يَقُومُ مَقَامَهُ وَيَتَنَزَّلُ مَنْزِلَتَهُ، وَذَلِكَ جَائِزٌ عَلَى مَذْهَبِ أَهْلِ السُّنَّةِ، وَوَاقِعٌ شَرْعًا، كَنَسْخِ ادِّخَارِ لُحُومِ الْأَضَاحِيِّ، وَتَقْدِمَةِ الصَّدَقَةِ أَمَامَ الْمُنَاجَاةِ.

Question. Abrogation does not require establishing a substitute for the abrogated ruling to take its place and occupy its position. Abrogation without such a substitute is permissible according to the people of the Sunna and has occurred in the Law, as in the abrogation concerning storing sacrificial meat and giving charity before private consultation.

وَأَمَّا قَوْلُ اللَّهِ عَزَّ وَجَلَّ: {مَا نَنْسَخْ مِنْ آيَةٍ أَوْ نُنْسِهَا نَأْتِ بِخَيْرٍ مِنْهَا} فَإِنَّهَا وَإِنْ كَانَتْ ظَاهِرَةً فِي إِثْبَاتِ بَدَلٍ لِلْمَنْسُوخِ الْمُتَنَزِّلِ مَنْزِلَتَهُ فَيُمْكِنُ أَنْ يُتَأَوَّلَ قَوْلُهُ عَزَّ وَجَلَّ: {نَأْتِ بِخَيْرٍ مِنْهَا} أَيْ نَأْتِي بِآيَةٍ أُخْرَى، وَإِنْ لَمْ تَتَضَمَّنْ بَدَلَهَا الْآيَةُ الْمَنْسُوخَةُ فِي الْحُكْمِ، بَلْ تَتَضَمَّنُ حُكْمًا آخَرَ لَيْسَ بِبَدَلٍ لِلْحُكْمِ الْمَرْفُوعِ.

As for God’s saying, mighty and majestic, ‘Whatever verse We abrogate or cause to be forgotten, We bring one better than it,’ although its apparent meaning establishes a substitute taking the abrogated verse’s place, ‘We bring one better than it’ may be interpreted to mean ‘We bring another verse,’ even if this does not contain a replacement for the abrogated verse in respect of its ruling, but instead contains another ruling that is not a substitute for the one removed.

N046 · translation. The quotation is Qurʾān 2:106. The elliptical example نسخ ادخار لحوم الأضاحي is retained as ‘the abrogation concerning storing sacrificial meat’; the Arabic does not expressly repeat ‘the prohibition of’ storing it.

G-B2-0254 · grammar. الشرط الوصلي بـ«وإن كان» — «منها} فإنها وإن كانت ظاهرة في إثبات بدل للمنسوخ». [Even if / although; the condition does not overturn the principal judgement.]

G-B2-0255 · grammar. الفاء الاستئنافية مع «إنَّ/إنْ/إنّما» — «بخير منها} فإنها وإن كانت ظاهرة في إثبات». [The initial فـ links the reasoning. Distinguish إنَّ (assertion), إنْ (condition) and إنّما (restriction) from the words and vowelled context.]

120. Replacing a lighter duty with a heavier one

R 120 · Bou Akl 145 · 1994 Arabic p. 85, 86 · Bou Akl 2015 Arabic p. 210

مَسْأَلَةٌ: يَجُوزُ النَّسْخُ بِالْأَخَفِّ وَالْأَثْقَلِ، وَذَلِكَ جَائِزٌ عَقْلًا وَوَاقِعٌ شَرْعًا. مِثَالُ نَسْخِ الْأَخَفِّ بِالْأَثْقَلِ نَسْخُ التَّخْيِيرِ بَيْنَ الصَّوْمِ وَالْفِدْيَةِ بِالْإِطْعَامِ بِتَعْيِينِ الصِّيَامِ، وَتَحْرِيمُ الْخَمْرِ وَنِكَاحِ الْمُتْعَةِ، وَنَسْخُ صَوْمِ عَاشُورَاءَ بِإِيجَابِ رَمَضَانَ.

Question. Abrogation may replace a ruling with a lighter or a heavier one. This is rationally possible and has occurred in the Law. Examples of replacing a lighter requirement with a heavier one are replacing the choice between fasting and feeding others as compensation with fasting alone; prohibiting wine and temporary marriage; and replacing the fast of ʿĀshūrāʾ with the obligation to fast Ramaḍān.

121. Abrogating recitation, ruling, or both—and the demand for proof

R 121 · Bou Akl 146 · 1994 Arabic p. 86 · Bou Akl 2015 Arabic p. 210

مَسْأَلَةٌ: الْآيَةُ إِذَا تَضَمَّنَتْ حُكْمًا يَجُوزُ نَسْخُ تِلَاوَتِهَا دُونَ حُكْمِهَا وَنَسْخُ حُكْمِهَا دُونَ تِلَاوَتِهَا وَنَسْخُهُمَا جَمِيعًا، وَذَلِكَ جَائِزٌ عَقْلًا وَوَاقِعٌ شَرْعًا. أَمَّا جَوَازُهُ عَقْلًا فَإِنَّ التِّلَاوَةَ تَتَضَمَّنُ مَعْنَيَيْنِ: أَحَدُهُمَا قِرَاءَتُهَا وَكَتْبُهَا فِي الْمُصْحَفِ وَالصَّلَاةُ بِهَا. وَالثَّانِي مَا فِيهَا مِنَ الْأَحْكَامِ. وَكُلُّ وَاحِدٍ مِنْ هَذَيْنِ الْمَعْنَيَيْنِ جَائِزٌ أَنْ يُكَلَّفَهُ الْإِنْسَانُ دُونَ الثَّانِي، وَجَائِزٌ أَنْ يُرْفَعَا مَعًا بِحَسَبِ مَا تَقْتَضِيهِ مَذَاهِبُ أَهْلِ السُّنَّةِ.

Question. When a verse contains a ruling, its recitation may be abrogated while its ruling remains, its ruling may be abrogated while its recitation remains, or both may be abrogated. This is rationally possible and has occurred in the Law. Its rational possibility follows because recitation comprises two aspects: first, reading the verse, writing it in the codex, and reciting it in prayer; second, the rulings it contains. A person may be charged with either aspect without the other, and both may be removed together, according to what the doctrines of the people of the Sunna entail.

وَأَمَّا الَّذِي يَدُلُّ عَلَى وُقُوعِهِ سَمْعًا فَقَوْلُهُ تَعَالَى: {وَعَلَى الَّذِينَ يُطِيقُونَهُ فِدْيَةٌ طَعَامُ مَسَاكِينَ} الْآيَةَ. وَقَدْ نُسِخَ حُكْمُهَا بِتَعْيِينِ الصَّوْمِ وَبَقِيَتْ تِلَاوَتُهَا. وَكَذَلِكَ قَوْلُهُ عَزَّ وَجَلَّ: {الْوَصِيَّةُ لِلْوَالِدَيْنِ وَالْأَقْرَبِينَ} مَنْسُوخٌ بِقَوْلِهِ عَلَيْهِ السَّلَامُ: «لَا وَصِيَّةَ لِوَارِثٍ» لَكِنْ فِي هَذَا نَظَرٌ، لِأَنَّ مِنَ النَّاسِ مَنْ لَا يُجَوِّزُ نَسْخَ الْقُرْآنِ بِالسُّنَّةِ.

Evidence from revelation that this has occurred is God's saying, 'For those who are able to bear it, a compensation: food for needy people,' and the rest of the verse. Its ruling was abrogated by making fasting the sole requirement, while its recitation remained. Likewise, 'A bequest for parents and close relatives' is abrogated by his saying, peace be upon him, 'No bequest for an heir.' This requires examination, however, because some do not permit the Qurʾān to be abrogated by the Sunna.

وَأَمَّا نَسْخُ التِّلَاوَةِ وَبَقَاءُ الْحُكْمِ فَقَدْ تَظَاهَرَتِ الْأَخْبَارُ بِنَسْخِ تِلَاوَةِ آيَةِ الرَّجْمِ مَعَ بَقَاءِ حُكْمِهَا، لَكِنْ عِنْدِي فِي هَذَا نَظَرٌ، لِأَنَّهُ يَنْبَغِي أَلَّا يُقْبَلَ أَنَّ مِثْلَ هَذَا كَانَ مِنَ الْقُرْآنِ حَتَّى يَتَوَاتَرَ وَلَا يُقْبَلُ ذَلِكَ بِطُرُقِ الْآحَادِ.

As for abrogating recitation while retaining the ruling, reports corroborate one another that the recitation of the stoning verse was abrogated while its ruling remained. Yet this, too, requires examination in my view: it should not be accepted that such wording was once part of the Qurʾān until it is established by mass transmission, and this should not be accepted through solitary routes.

N047 · textual. At p. 86 the print reads ينبغي أن يقبل ... حتى يتواتر ولا يقبل ذلك بطرق الآحاد, apparently lacking a negative in its first clause. The Arabic reproduces it; the English adopts the negative sense required by حتى يتواتر and the explicit rejection of solitary transmission, making this interpretive correction explicit here.

N048 · translation. The quotations are Qurʾān 2:184 and 2:180. The plural مساكين in the edition's first quotation is retained as 'needy people.'

N049 · quotation. The vocalisation فِدْيَةُ طَعَامِ مَسَاكِينَ is a transmitted construct reading, not a mistaken attempt to reproduce the familiar Ḥafṣ wording. Compare al-Ṭabarī, commentary on Q 2:184, and Ibn Ḥajar, Fatḥ al-bārī, commentary on al-Bukhārī no. 4506, who identifies the construct and plural reading with Nāfiʿ and Ibn Dhakwān. The printed plural is therefore retained. Sources: https://quran.ksu.edu.sa/tafseer/tabary/sura2-aya184.html ; https://hdith.com/encyclopedia/book/b-1/h/6726/service/6

G-B2-0258 · grammar. جوازه عقلا فإن التلاوة تتضمن معنيين: أحدهما قراءتها — «إنَّ/إنْ/إنّما» مع «الفاء الاستئنافية». [The initial فـ links the reasoning. Distinguish إنَّ (assertion), إنْ (condition) and إنّما (restriction) from the words and vowelled context.]

SC2015-082 · textual. أ «لأنه ينبغي ألا يقبل أن مثل هذا كان من القرآن»؛ ع «لأنه ينبغي أن يقبل أن مثل هذا كان من القرآن». النفي بألّا [reject the assertion that wording belonged to the Qurʾān unless established by recurrent transmission] [Bou Akl 2015, Arabic p. 212, critical apparatus].

122. Consensus reveals earlier abrogation but cannot itself abrogate

R 122 · Bou Akl 147 · 1994 Arabic p. 86 · Bou Akl 2015 Arabic p. 212

مَسْأَلَةٌ: الْإِجْمَاعُ لَا يُنْسَخُ بِهِ، إِذْ لَا نَسْخَ بَعْدَ انْقِطَاعِ الْوَحْيِ، فَإِنْ تُوُهِّمَ أَنَّ شَيْئًا مَا مَنْسُوخٌ بِالْإِجْمَاعِ فَذَلِكَ دَلِيلٌ عَلَى نَاسِخٍ سَبَقَ لَمْ يَبْلُغْنَا.

Question. Consensus (الإجماع) does not abrogate, because there is no abrogation after revelation has ceased. If something is supposed to have been abrogated by consensus, that consensus is evidence of an earlier abrogating text that has not reached us.

SC2015-080 · textual. أ «فإن توهم أن شيئا ما منسوخ»؛ ع «وإن توهم أن شيئا ما منسوخ». فاء الشرط [a case apparently abrogated by consensus points to an earlier abrogating communication] [Bou Akl 2015, Arabic p. 212, critical apparatus].

123. The unequal force of reports during and after the Prophet's life

R 123 · Bou Akl 148 · 1994 Arabic p. 86, 87 · Bou Akl 2015 Arabic p. 212

مَسْأَلَةٌ: نَسْخُ السُّنَّةِ الْمُتَوَاتِرَةِ بِالسُّنَّةِ الْمُتَوَاتِرَةِ، وَالْآحَادِ بِالْآحَادِ، وَالْآحَادِ بِالْمُتَوَاتِرِ، مِمَّا لَا خِلَافَ فِيهِ. فَأَمَّا نَسْخُ الْمُتَوَاتِرِ بِالْآحَادِ فَقَدِ اخْتَلَفُوا فِيهِ، وَالْمُخْتَارُ أَنَّهُ جَائِزٌ عَقْلًا وَوَاقِعٌ شَرْعًا فِي زَمَنِ النَّبِيِّ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ بِتَحَوُّلِ أَهْلِ مَسْجِدِ قُبَاءَ إِلَى الْكَعْبَةِ بِخَبَرِ الْوَاحِدِ، وَقَدْ كَانَ ثَابِتًا عَنْهُمُ التَّوَجُّهُ إِلَى بَيْتِ الْمَقْدِسِ بِطَرِيقٍ قَطْعِيٍّ، وَبِالْجُمْلَةِ فَإِنْفَاذُ رَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ رُسُلَهُ إِلَى الْأَطْرَافِ بِالنَّاسِخِ وَالْمَنْسُوخِ مِمَّا تَوَاتَرَ.

Question. There is no disagreement over abrogating a Sunna established by mass transmission through another such Sunna, solitary reports through solitary reports, or solitary reports through mass transmission. Opinions differ about abrogating what is established by mass transmission through solitary reports. The preferred position is that this is rationally possible and occurred in the Law during the Prophet's lifetime, God bless him and grant him peace: the people of the mosque at Qubāʾ turned toward the Kaʿba on a solitary report, although their facing Jerusalem had been established by a decisive route. In general, the Messenger of God's sending emissaries to the outlying regions with abrogating and abrogated rulings, God bless him and grant him peace, is itself established by mass transmission.

فَأَمَّا وُقُوعُ ذَلِكَ بَعْدَهُ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ فَمُمْتَنِعٌ بِإِجْمَاعِ الصَّحَابَةِ عَلَى أَنَّ الْقُرْآنَ لَا يُرْفَعُ بِخَبَرِ الْوَاحِدِ، وَبِالْجُمْلَةِ التَّوَاتُرُ. وَيُشْبِهُ أَنْ تَكُونَ الْعِلَّةُ فِي ذَلِكَ قَرَائِنَ تَقْتَرِنُ بِخَبَرِ الْمُخْبِرِينَ عَنْ رَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ فِي حَيَاتِهِ لَيْسَ تَقْتَرِنُ بِالْمُخْبِرِينَ عَنْهُ بَعْدَ مَوْتِهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ مِنْ إِمْكَانِ مُرَاجَعَتِهِ وَاسْتِفْهَامِهِ وَغَيْرِ ذَلِكَ.

Its occurrence after his death, God bless him and grant him peace, is excluded by the Companions' consensus that the Qurʾān—and, in general, what is established by mass transmission—is not set aside by a solitary report. The reason seems to be indications accompanying reports from the Messenger of God during his lifetime, God bless him and grant him peace, which do not accompany reports from him after his death, God bless him and grant him peace: the possibility of going back to him, questioning him, and the like.

G-B2-0261 · grammar. «على أنَّ» بين التعلّق النحوي والاستدراك — «بإجماع الصحابة على أن القرآن لا يرفع بخبر الواحد». [The phrase may complete a preceding verb such as “argue that”, or introduce a qualification; check its governing clause rather than assuming “although”.]

G-B2-0262 · grammar. «الفاء الاستئنافية مع المصدر «إِنْفَاذ» — «وبالجملة فإنفاذ رسول الله صلى الله عليه وسلم الولاة إلى البلاد». [The opening فـ links the reason; إنفاذ (“dispatching”) is a verbal noun (مصدر), referring to the Prophet’s dispatch of representatives, not the particle إنَّ followed by an assertion.]

124. May mass-transmitted Sunna abrogate the Qurʾān?

R 124 · Bou Akl 149 · 1994 Arabic p. 87 · Bou Akl 2015 Arabic p. 214

وَأَمَّا نَسْخُ الْمُتَوَاتِرِ مِنَ الْقُرْآنِ بِالْمُتَوَاتِرِ مِنَ السُّنَّةِ فَإِنَّهُ قَدْ نُقِلَ عَنِ الشَّافِعِيِّ وَعَنْ قَوْمٍ مِنْ أَهْلِ الظَّاهِرِ أَنَّهُمْ كَانُوا لَا يُجَوِّزُونَ ذَلِكَ بِدَلِيلِ قَوْلِهِ عَزَّ وَجَلَّ: {مَا نَنْسَخْ مِنْ آيَةٍ أَوْ نُنْسِهَا نَأْتِ بِخَيْرٍ مِنْهَا أَوْ مِثْلِهَا}. وَهَذِهِ الْآيَةُ وَإِنْ كَانَتْ ظَاهِرَةً فِيمَا رَأَوْا فَقَدْ قُلْنَا فِيمَا سَلَفَ إِنَّهُ يُمْكِنُ أَنْ لَا تَتَضَمَّنَ الْآيَةُ الْوَارِدَةُ بَدَلَ الْآيَةِ الْمَنْسُوخَةِ فِي الْحُكْمِ، وَتَكُونَ السُّنَّةُ هِيَ الْمُتَضَمِّنَةَ بَدَلَ حُكْمِ الْمَنْسُوخَةِ.

As for abrogating the mass-transmitted Qurʾān through a mass-transmitted Sunna, it is reported that al-Shāfiʿī and some Ẓāhirīs did not permit this, on the evidence of God’s saying, mighty and majestic, ‘Whatever verse We abrogate or cause to be forgotten, We bring one better than it or like it.’ Although the apparent meaning of this verse supports their view, we have already said that the new verse may contain no replacement for the abrogated verse’s ruling, while the Sunna supplies the replacement for that ruling.

وَمَنْ يُجَوِّزُ ذَلِكَ فَقَدِ احْتَجَّ بِنَسْخِ قَوْلِهِ تَعَالَى: {الْوَصِيَّةُ لِلْوَالِدَيْنِ وَالْأَقْرَبِينَ} بِقَوْلِهِ عَلَيْهِ السَّلَامُ: «لَا وَصِيَّةَ لِوَارِثٍ». وَكَذَلِكَ احْتَجُّوا بِقَوْلِهِ عَلَيْهِ السَّلَامُ أَيْضًا: «قَدْ جَعَلَ اللَّهُ لَهُنَّ سَبِيلًا الْبِكْرُ بِالْبِكْرِ جَلْدُ مِائَةٍ وَتَغْرِيبُ عَامٍ. وَالثَّيِّبُ بِالثَّيِّبِ جَلْدُ مِائَةٍ وَالرَّجْمُ» وَهُوَ نَسْخُ {لإمساكهن فِي الْبُيُوتِ}. وَهَذِهِ الِاحْتِجَاجَاتُ قَدْ يَتَمَكَّنُ أَنْ يَتَطَرَّقَ إِلَيْهَا الِاحْتِمَالُ وَلَيْسَتْ قَاطِعَةً.

Those who permit this invoke the abrogation of God’s saying, ‘A bequest for parents and close relatives,’ by the Prophet’s saying, peace be upon him, ‘No bequest for an heir.’ They also invoke his saying, peace be upon him, ‘God has now appointed a way for them: for the never-married with the never-married, a hundred lashes and a year’s banishment; and for the previously married with the previously married, a hundred lashes and stoning.’ This abrogates ‘Confine them in the houses.’ These arguments admit possible alternative interpretations and are not decisive.

N050 · translation. The Qurʾānic quotations are 2:106, 2:180, and 4:15. The report’s wording is translated as printed on p. 87; the editor’s longer quotation from Bidāyat al-mujtahid is not substituted for it.

BA-T083 · textual. قراءة الإسكوريال كما أثبتها بو عقل: «لإمساكهن»، مقابل «فأمسكوهن» في طبعة العلوي. (Escorial reading as reported by Bou Akl, 2015, Arabic p. 214; variant against al-ʿAlawī.)

G-B2-0264 · grammar. «الشرط الوصلي بـ«وإن كان» — «وهذه الآية وإن كانت ظاهرة فيما رأوا فقد قلنا». [Even if / although; the condition does not overturn the principal judgement.]

G-B2-0265 · grammar. «الفاء الاستئنافية مع «إنَّ/إنْ/إنّما» — «من السنة فإنه قد نقل عن الشافعي وعن». [The initial فـ links the reasoning. Distinguish إنَّ (assertion), إنْ (condition) and إنّما (restriction) from the words and vowelled context.]

125. Certainty itself can admit degrees

R 125 · Bou Akl 149 · 1994 Arabic p. 87, 88 · Bou Akl 2015 Arabic p. 214

وَيُشْبِهُ أَنْ يَكُونَ الَّذِي أَصَارَ الْقَائِلِينَ بِهَذَا إِلَى امْتِنَاعِ ذَلِكَ، مَعَ مَا تَقَدَّمَ مِنْ حُجَّتِهِمْ، مَا نَجِدُ فِي أَنْفُسِهِمْ مِنْ تَرْجِيحِ التَّصْدِيقِ الْوَاقِعِ عَنْ تَوَاتُرِ الْكِتَابِ، إِذْ هُوَ أَرْفَعُ مَرَاتِبِ التَّوَاتُرِ، وَأَنَّ مَا عَدَا ذَلِكَ مِنَ الْأَحَادِيثِ فَإِنَّهَا وَإِنْ تَوَاتَرَتْ فَلَا يَمْتَنِعُ أَنْ يَكُونَ التَّصْدِيقُ بِهَا مُقَصِّرًا عَنِ التَّصْدِيقِ بِالْكِتَابِ. وَلَيْسَ بِمُحَالٍ عَلَى مَا يَرَى كَثِيرٌ مِنَ النَّاسِ أَنْ يَتَفَاضَلَ التَّصْدِيقُ الْيَقِينِيُّ لَا سِيَّمَا فِيمَا سَبِيلُهُ النَّقْلُ، فَأَمَّا مَا نُقِلَ عَنِ الشَّافِعِيِّ رَحِمَهُ اللَّهُ أَنَّهُ كَانَ لَا يُجَوِّزُ نَسْخَ السُّنَّةِ الْمُتَوَاتِرَةِ بِالْقُرْآنِ، فَلَا مَعْنَى لَهُ، إِذَا أُخِذَ عَلَى ظَاهِرِهِ، اللَّهُمَّ إِلَّا أَنْ يُتَأَوَّلَ ذَلِكَ، فَإِنَّ وُجُوهَ التَّأْوِيلِ لَا تَضِيقُ.

Besides the argument already mentioned, what seems to have led those holding this position to exclude such abrogation is the greater weight we find them giving to the assent (التصديق) produced by the Book's mass transmission: this is the highest degree of mass transmission. As for other reports, even when mass-transmitted, assent to them may fall short of assent to the Book. Contrary to what many think, it is not impossible for certain assent to admit degrees, especially where it rests on transmission. As for the report that al-Shāfiʿī, God have mercy on him, did not permit a mass-transmitted Sunna to be abrogated by the Qurʾān, this has no intelligible basis if taken in its apparent sense—unless it is interpreted otherwise, for the possibilities of interpretation are ample.

N051 · translation. At p. 88 على ما يرى كثير من الناس can attach to محال within the negation, yielding "contrary to what many think," as translated, or to the entire negative assertion, yielding "as many hold, it is not impossible." The attachment is uncertain; either reading preserves Ibn Rushd's assertion that certain assent can admit degrees.

G-B2-0268 · grammar. «إلّا أنّ» — «ظاهره، اللهم إلا أن يتأول ذلك، فإن وجوه التأويل استثناء أو استدراك». [Except that / however; the contextual function determines which qualification is intended.]

126. Analogy may clarify a text but may not repeal it

R 126 · Bou Akl 150–151 · 1994 Arabic p. 88 · Bou Akl 2015 Arabic p. 216

مَسْأَلَةٌ: لَا يَجُوزُ نَسْخُ النَّصِّ الْقَاطِعِ الْمُتَوَاتِرِ بِالْقِيَاسِ الْمَظْنُونِ، كَمَا لَا يَجُوزُ بِخَبَرِ الْوَاحِدِ. وَقَدِ احْتَجَّ مَنْ أَجَازَ ذَلِكَ بِجَوَازِ تَخْصِيصِ الْقِيَاسِ لِلنَّصِّ الْمُتَوَاتِرِ. وَهَذَا إِذَا سُلِّمَ فَلَيْسَ بِحُجَّةٍ، إِذِ التَّخْصِيصُ بَيَانٌ وَالنَّسْخُ رَفْعٌ.

Question. A decisive, mass-transmitted text may not be abrogated by probable analogy, just as it may not be abrogated by a solitary report. Those who permit this argue from the permissibility of restricting the scope of a mass-transmitted text through analogy. Even if conceded, this is no proof: specification clarifies, whereas abrogation removes.

وَبِالْجُمْلَةِ فَالْحُجَّةُ فِي ذَلِكَ إِجْمَاعُ الصَّحَابَةِ عَلَى إِبْطَالِ كُلِّ رَأْيٍ مُخَالِفٍ لِلنَّصِّ، فَكَيْفَ لِلنَّصِّ الْمُتَوَاتِرِ. وَحَدِيثُ مُعَاذٍ إِذْ قَالَ أَجْتَهِدُ رَأْيِي عِنْدَ عَدَمِ النَّصِّ وَتَزْكِيَةُ رَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ لَهُ عَلَى ذَلِكَ. فَأَمَّا إِذَا تَنَاقَضَ نَصَّانِ قَاطِعَانِ وَأَشْكَلَ فَهَلْ يُقْضَى بِتَأَخُّرِ أَحَدِهِمَا بِخَبَرِ الْآحَادِ؟ فَفِيهِ نَظَرٌ، وَالْمَسْأَلَةُ فِي مَحَلِّ الِاجْتِهَادِ.

The proof here is the Companions' consensus invalidating every opinion contrary to a text, all the more a mass-transmitted text; and the report of Muʿādh, when he said, 'I exercise my judgement' in the absence of a text, and the Messenger of God, God bless him and grant him peace, commended him for it. If two decisive texts contradict one another and the matter is unclear, may a solitary report determine that one is later? This requires examination; the question is open to independent judgement.

SC2015-084 · textual. أ «بخبر الآحاد؟ ففيه نظر»؛ ع «بخبر الآحاد؟ فيه نظر». فاء الجواب [whether a solitary report can establish chronology remains a question requiring examination] [Bou Akl 2015, Arabic p. 216, critical apparatus].

127. A Companion’s assertion of abrogation needs a transmitted basis

R 127 · Bou Akl 152 · 1994 Arabic p. 88 · Bou Akl 2015 Arabic p. 216

مَسْأَلَةٌ: لَا يُنْسَخُ الْحُكْمُ بِقَوْلِ الصَّحَابِيِّ نُسِخَ حُكْمُ كَذَا مَا لَمْ يَقُلْ سَمِعْتُ رَسُولَ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ يَقُولُ ذَلِكَ. هَذَا إِذَا كَانَ الْحُكْمُ ثَابِتًا بِخَبَرِ الْوَاحِدِ، لِأَنَّ كَثِيرًا مَا يُظَنُّ بِمَا لَيْسَ بِنَسْخٍ أَنَّهُ نَسْخٌ، كَمَا ظَنَّ قَوْمٌ أَنَّ الزِّيَادَةَ عَلَى النَّصِّ نَسْخٌ. وَأَمَّا إِذَا كَانَ الْحُكْمُ ثَابِتًا بِطَرِيقِ التَّوَاتُرِ فَلَيْسَ قَوْلُ الصَّحَابِيِّ بِنَسْخٍ وَإِنْ نَقَلَ أَلْفَاظَ رَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ، لِأَنَّ الْآحَادَ لَا يُنْسَخُ بِهِ التَّوَاتُرُ كَمَا تَقَدَّمَ.

Question. A ruling is not abrogated by a Companion’s saying, ‘Such-and-such a ruling was abrogated,’ unless he says, ‘I heard the Messenger of God, God bless him and grant him peace, say this.’ That applies when the ruling was established by a solitary report, because what is not abrogation is often thought to be abrogation, as some have regarded an addition to a text as abrogation. If the ruling was established through mass transmission, a Companion’s statement does not abrogate it even if he transmits the Messenger of God’s own words, God bless him and grant him peace, since solitary transmission does not abrogate mass transmission, as explained earlier.

G-B2-0273 · grammar. «حكم كذا ما لم يقل سمعت رسول الله صلى» — «ما لم» أداة الشرط والنفي. [Negative limiting condition: “unless / so long as not”; distinguish independent ما لم from relative ما and from forms inside another word.]

128. Conditions implicit in the definition of abrogation

R 128 · Bou Akl 153 · 1994 Arabic p. 88, 89 · Bou Akl 2015 Arabic p. 218

وَبِالْجُمْلَةِ فَيَنْبَغِي أَنْ تَعْلَمَ أَنَّ لِلنَّسْخِ شَرَائِطَ يَتَضَمَّنُهَا الْحَدُّ الْمُتَقَدِّمُ وَهِيَ مَنْطَوِيَةٌ فِيهِ. أَوَّلُهَا: أَنْ يَكُونَ الْمَرْفُوعُ حُكْمًا شَرْعِيًّا لَا عَقْلِيًّا كَالْبَرَاءَةِ الْأَصْلِيَّةِ الَّتِي تَرْتَفِعُ بِإِيجَابِ الْعِبَادَاتِ. وَالثَّانِي أَنْ يَكُونَ النَّسْخُ بِخِطَابٍ لَا أَنْ يَكُونَ الْخِطَابُ الْمَرْفُوعُ حُكْمُهُ مُقَيَّدًا بِوَقْتٍ يَقْتَضِي دُخُولَهُ. وَبِالْجُمْلَةِ فَتَلْحَقُهُ شَرَائِطُ تُعْتَبَرُ فِيهِ بِحَسَبِ حَدٍّ حَدٍّ مِنْ حُدُودِ النَّسْخِ الَّتِي عَدَدْنَاهَا وَتَخْرُجُ عَنْهُ شَرَائِطُ.

In general, you should know that abrogation has conditions contained implicitly in the definition given earlier. First, what is removed must be a revealed ruling, not a rational judgement such as original freedom from liability (البراءة الأصلية), which is removed by the prescription of acts of worship. Second, abrogation must take place through discourse, rather than the discourse whose ruling is removed being limited by a time whose arrival itself entails this. In general, according to each of the definitions of abrogation we have enumerated, some conditions apply and must be considered, while others fall outside it.

129. How the later of two conflicting texts is established

R 129 · Bou Akl 154 · 1994 Arabic p. 89 · Bou Akl 2015 Arabic p. 218

مَسْأَلَةٌ: إِذَا تَعَارَضَ نَصَّانِ قَاطِعَانِ فَلَمْ يُعْلَمْ أَيُّهُمَا نَاسِخٌ لِصَاحِبِهِ، فَالْوُقُوفُ عَلَى ذَلِكَ لَيْسَ يَكُونُ بِشَيْءٍ سِوَى النَّقْلِ. وَذَلِكَ يُمْكِنُ بِطُرُقٍ: أَحَدُهَا أَنْ يَكُونَ فِي لَفْظِ أَحَدِهِمَا مَا يَدُلُّ عَلَى نَسْخِ الْآخَرِ، كَقَوْلِهِ عَلَيْهِ السَّلَامُ «كُنْتُ نَهَيْتُكُمْ عَنْ كَذَا فَافْعَلُوهُ». الثَّانِي أَنْ يُعْلَمَ التَّارِيخُ فِيهِمَا. وَقَدْ تَقَعُ مَعْرِفَةُ ذَلِكَ بِأَنْ تَجْتَمِعَ الْأُمَّةُ عَلَى نَسْخِ أَحَدِهِمَا. وَمَا سِوَى هَذَا مِمَّا يُظَنُّ أَنَّهُ نَسْخٌ فَلَيْسَ بِنَسْخٍ، مِثْلَ تَأَخُّرِ الرَّاوِي فِي الْإِسْلَامِ، وَتَأَخُّرِهِ فِي السِّنِّ أَوِ انْقِطَاعِ صُحْبَتِهِ.

Question. If two decisive texts conflict and it is unknown which abrogates the other, this can be established only by transmission. There are several possible routes. First, the wording of one may indicate the abrogation of the other, as in his saying, peace be upon him, ‘I used to forbid you such-and-such; now do it.’ Second, their respective dates may be known. This may also be known through the community’s consensus that one of them has been abrogated. Other circumstances thought to establish abrogation do not do so, such as a transmitter’s later conversion to Islam, his younger age, or the ending of his companionship with the Prophet.

تَمَّ الْقَوْلُ فِي النَّاسِخِ وَالْمَنْسُوخِ.

This concludes the discussion of the abrogating and the abrogated.

130. Consensus as certainty beyond surviving explicit texts

R 130 · Bou Akl 156 · 1994 Arabic p. 90 · Bou Akl 2015 Arabic p. 218

وَالْإِجْمَاعُ هُوَ اتِّفَاقُ الْمُجْتَهِدِينَ مِنْ أُمَّةِ مُحَمَّدٍ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ عَلَى حُكْمٍ شَرْعِيٍّ وَسَوَاءٌ كَانَ ذَلِكَ الْحُكْمُ مِمَّا صَرَّحَ بِهِ صَاحِبُ الشَّرْعِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ فَدَثَرَ وَلَمْ يُنْقَلْ، أَوْ لَمْ يُصَرِّحْ بِهِ، فَوَقَعَ الْإِجْمَاعُ مِنْهُمْ عَلَى ذَلِكَ لِقَرِينَةِ حَالٍ أَوْ دَلِيلٍ أَوْ غَيْرِ ذَلِكَ مِمَّا يُوجِبُ الِاتِّفَاقَ. أَمَّا مَا صَرَّحَ بِهِ النَّبِيُّ عَلَيْهِ السَّلَامُ وَنُقِلَ نَقْلَ تَوَاتُرٍ فَلَا غَنَاءَ لِلْإِجْمَاعِ فِي تَصْحِيحِهِ. وَأَمَّا مَا نُقِلَ نَقْلَ آحَادٍ فَإِنَّ الْإِجْمَاعَ يَنْقُلُهُ مِنْ رُتْبَةِ الظَّنِّ إِلَى رُتْبَةِ الْقَطْعِ.

Consensus (الإجماع) is the agreement of the practitioners of independent judgement within Muḥammad’s community, God bless him and grant him peace, on a revealed ruling. This applies whether the bearer of the Law, God bless him and grant him peace, expressly stated the ruling but it was lost and not transmitted, or did not expressly state it, and they reached agreement through a contextual indication, a proof, or something else producing agreement. Consensus adds nothing to the authentication of what the Prophet, peace be upon him, expressly stated and which was transmitted by mass transmission. What was transmitted through solitary routes, however, consensus raises from the level of probability to that of certainty.

وَأَمَّا مَا لَمْ يُصَرِّحْ بِهِ أَوْ صَرَّحَ بِهِ وَلَمْ يَبْلُغْنَا فَإِنَّ الْإِجْمَاعَ يُسْتَعْمَلُ دَلِيلًا قَاطِعًا فِي تَثْبِيتِهِ. أَمَّا وُقُوعُ مِثْلِ هَذَا شَرْعًا فَمَوْجُودٌ وَأَمَّا اطِّلَاعُنَا عَلَيْهِ فَذَلِكَ يُمْكِنُ بِأَحَدِ وَجْهَيْنِ: أَمَّا إِنْ كَانَ الْمُجْمِعُونَ مُعَاصِرِينَ لَنَا فَبِلِقَائِهِمْ. وَأَمَّا إِنْ كَانُوا مِمَّنْ سَلَفَ فَبِالنَّقْلِ الْمُسْتَفِيضِ الَّذِي يُوقِعُ التَّصْدِيقَ.

Where a ruling was not expressly stated, or was expressly stated but has not reached us, consensus is used as a decisive proof establishing it. Such consensus has in fact occurred in the Law. We can learn of it in one of two ways: if those agreeing are our contemporaries, by meeting them; if they belong to earlier generations, through widespread transmission that produces assent (التصديق).

G-B2-0279 · grammar. «حكم شرعي وسواء كان ذلك الحكم مما صرح — أسلوب التسوية». [Whether one alternative or another; both possibilities fall under the same assessment.]

G-B2-0280 · grammar. «نقل آحاد فإن الإجماع ينقله من رتبة الظن — الفاء الاستئنافية مع «إنَّ/إنْ/إنّما». [The initial فـ links the reasoning. Distinguish إنَّ (assertion), إنْ (condition) and إنّما (restriction) from the words and vowelled context.]

G-B2-0281 · grammar. «مَا لَمْ يُصَرَّحْ بِهِ» — «ما» الموصولة مع «لَمْ» النافية الجازمة. [“What has not been expressly stated”; ما functions as a relative pronoun, and لم negates the following passive verb. It does not mean “unless”.]

131. Cumulative scriptural evidence for the authority of consensus

R 131 · Bou Akl 157 · 1994 Arabic p. 90, 91 · Bou Akl 2015 Arabic p. 220

وَأَمَّا الدَّلِيلُ عَلَى كَوْنِ الْإِجْمَاعِ حُجَّةً فَمَأْخُوذٌ مِنْ جِهَةِ النَّقْلِ مِنَ الْكِتَابِ وَالسُّنَّةِ. فَمِنْ ذَلِكَ قَوْلُهُ تَعَالَى: {وَمَنْ يُشَاقِقِ الرَّسُولَ مِنْ بَعْدِ مَا تَبَيَّنَ لَهُ الْهُدَى وَيَتَّبِعْ غَيْرَ سَبِيلِ الْمُؤْمِنِينَ نُوَلِّهِ مَا تَوَلَّى} الْآيَةَ. وَهَذِهِ أَقْوَى آيَةٍ فِي التَّمَسُّكِ بِالْإِجْمَاعِ. وَمِنْهَا قَوْلُهُ تَبَارَكَ وَتَعَالَى: {وَكَذَلِكَ جَعَلْنَاكُمْ أُمَّةً وَسَطًا لِتَكُونُوا شُهَدَاءَ عَلَى النَّاسِ وَيَكُونَ الرَّسُولُ عَلَيْكُمْ شَهِيدًا}. وَقَوْلُهُ: {كُنْتُمْ خَيْرَ أُمَّةٍ أُخْرِجَتْ لِلنَّاسِ}. وَقَوْلُهُ تَعَالَى: {وَمِمَّنْ خَلَقْنَا أُمَّةٌ يَهْدُونَ بِالْحَقِّ وَبِهِ يَعْدِلُونَ}.

The proof that consensus is authoritative is drawn from transmitted revelation, the Book and the Sunna. Among its texts is God’s saying, ‘Whoever opposes the Messenger after guidance has become clear to him and follows a way other than that of the believers, We shall turn him toward what he has chosen,’ and the remainder of the verse. This is the strongest verse supporting reliance on consensus. There are also His sayings, blessed and exalted: ‘Thus We made you a community of the middle, so that you may be witnesses over humankind and the Messenger a witness over you’; ‘You are the best community brought forth for humankind’; and ‘Among those We have created is a community that guides by truth and acts justly by it.’

وَهَذِهِ الْآيَاتُ وَإِنْ لَمْ تَكُنْ وَاحِدَةٌ وَاحِدَةٌ مِنْهَا نَصًّا فِي كَوْنِ الْإِجْمَاعِ دَلِيلًا شَرْعِيًّا فَإِنَّهَا بِمَجْمُوعِهَا تَقْتَضِي لِهَذِهِ الْأُمَّةِ التَّعْظِيمَ وَالتَّشْرِيفَ وَاتِّبَاعَ سَبِيلِهِمْ وَمُوَافَقَتَهُمْ وَالنَّهْيَ عَنْ مُخَالَفَتِهِمْ وَالْخُرُوجِ عَنْ جَمَاعَتِهِمْ.

Although none of these verses taken separately is unambiguous wording (نص) establishing consensus as a revealed proof, together they require this community to be esteemed and honored, its way followed and agreement maintained with it, and they forbid opposing it and departing from its congregation.

وَبِالْجُمْلَةِ إِذَا أُضِيفَ إِلَى هَذِهِ الْآيَاتِ مَا وَرَدَ مِنْ أَحَادِيثِ الْأَخْبَارِ فِي وُجُوبِ الْعِصْمَةِ لِهَذِهِ الْأُمَّةِ، وَإِنْ لَمْ تَكُنْ تَوَاتَرَتْ فِي اللَّفْظِ فَهِيَ مُتَوَاتِرَةٌ فِي الْمَعْنَى، كَقَوْلِهِ عَلَيْهِ السَّلَامُ: «لَا تَجْتَمِعُ أُمَّتِي عَلَى الْخَطَأِ» وَقَوْلِهِ عَلَيْهِ السَّلَامُ «لَمْ يَكُنِ اللَّهُ لِيَجْمَعَ أُمَّتِي عَلَى الْخَطَأِ وَمَنْ سَرَّهُ بُحْبُوحَةُ الْجَنَّةِ فَلْيَلْزَمِ الْجَمَاعَةَ». وَقَوْلِهِ عَلَيْهِ السَّلَامُ «يَدُ اللَّهِ مَعَ الْجَمَاعَةِ»، إِلَى مَا سِوَى ذَلِكَ مِنَ الْأَحَادِيثِ، ثَبَتَ عَلَى الْقَطْعِ كَوْنُ الْإِجْمَاعِ دَلِيلًا شَرْعِيًّا.

In general, when these verses are joined to the transmitted reports affirming that this community is protected from error—reports mass-transmitted in meaning even if not in wording—consensus is established with certainty as a revealed proof. Such reports include his saying, peace be upon him: ‘My community does not agree upon error’; his saying, peace be upon him, ‘God would not bring my community into agreement upon error; whoever delights in the spacious heart of Paradise should keep to the congregation’; and his saying, peace be upon him, ‘God’s hand is with the congregation,’ together with the other reports of this kind.

N052 · translation. The Qurʾānic quotations, in order, are 4:115, 2:143, 3:110, and 7:181. Reports are translated as quoted on p. 91, without replacing them by the editor’s parallel wording from al-Mustaṣfā.

G-B2-0283 · grammar. الفاء الاستئنافية مع «إنَّ/إنْ/إنّما» — «دليلا شرعيا فإنها بمجموعها تقتضي لهذه الأمة التعظيم». [The initial فـ links the reasoning. Distinguish إنَّ (assertion), إنْ (condition) and إنّما (restriction) from the words and vowelled context.]

132. Why consensus is not merely a rational inference from numbers

R 132 · Bou Akl 158 · 1994 Arabic p. 91 · Bou Akl 2015 Arabic p. 222

وَأَمَّا مَنِ احْتَجَّ عَلَى كَوْنِ الْإِجْمَاعِ حُجَّةً بِدَلِيلِ الْعَقْلِ فَضَعِيفٌ، لِأَنَّهُ وَإِنْ كَانَ يَبْعُدُ اجْتِمَاعُ الْكَثِيرِ عَلَى الْكَذِبِ، فَغَيْرُ بَعِيدٍ اجْتِمَاعُهُمْ عَلَى الْخَطَأِ. بَلْ نَقُولُ لَوْ بَقِيَ مِنْ أَهْلِ الِاجْتِهَادِ اثْنَانِ أَوْ ثَلَاثَةٌ وَأَجْمَعُوا عَلَى رَأْيٍ وَقَعَ الْإِجْمَاعُ بِهِمْ لِشَهَادَةِ الشَّرْعِ لَهُمْ بِالْعِصْمَةِ، مِنْ حَيْثُ يَنْطَلِقُ عَلَيْهِمُ اسْمُ الْأُمَّةِ فِي ذَلِكَ الْوَقْتِ.

An argument establishing the authority of consensus through reason is weak. Although it is unlikely that many people would agree upon a lie, their agreeing upon an error is not unlikely. Indeed, we say that if only two or three practitioners of independent judgement remained and agreed on an opinion, consensus would be established through them, because the Law attests their protection from error insofar as the name ‘community’ applies to them at that time.

G-B2-0284 · grammar. الشرط بـ«لو» — «بل نقول لو بقي من أهل الاجتهاد اثنان». [Hypothetical or counterfactual condition; read the answer rather than treating لو as a simple past marker.]

G-B2-0285 · grammar. قيد الجهة بـ«من حيث» — «لهم بالعصمة، من حيث ينطلق عليهم اسم الأمة في». [Insofar as / in the respect that; limits the scope of the assertion.]

G-B2-0286 · grammar. الشرط الوصلي بـ«وإن كان» — «فضعيف، لأنه وإن كان يبعد اجتماع الكثير على الكذب». [Even if / although; the condition does not overturn the principal judgement.]

133. Why lay agreement adds no independent proof

R 133 · Bou Akl 159 · 1994 Arabic p. 91, 92 · Bou Akl 2015 Arabic p. 222

وَإِنَّمَا اشْتَرَطْنَا فِي حَدِّهِ الْمُجْتَهِدِينَ، لِأَنَّ الْعَوَامَّ وَإِنْ تُصُوِّرَ دُخُولُهُمْ فِي الْإِجْمَاعِ فَإِنَّمَا ذَلِكَ فِي الْأُمُورِ الَّتِي نُقِلَتْ نَقْلَ تَوَاتُرٍ كَالصَّلَوَاتِ الْخَمْسِ وَالصَّوْمِ وَالزَّكَاةِ، أَوْ فِيمَا كَانُوا فِيهِ مُسْتَصْحَبِينَ وَتَابِعِينَ لِإِجْمَاعِ الْمُجْتَهِدِينَ، فَلِذَلِكَ لَا غَنَاءَ لِإِجْمَاعِهِمْ فِي تَصْحِيحِ شَيْءٍ، بَلِ الْعَوَامُّ أَبَدًا مُتَّبِعُونَ لِلْمُجْتَهِدِينَ وَمُوَافِقُونَ لَهُمْ، إِذْ كَانَ ذَلِكَ فَرْضَهُمْ. فَإِنْ سُمِّيَ مِثْلُ هَذَا إِجْمَاعًا لَمْ يَمْتَنِعْ، لَكِنْ مِثْلُ هَذَا لَيْسَ بِأَصْلٍ يَسْتَعْمِلُهُ الْمُجْتَهِدُ.

We specified practitioners of independent judgement in its definition because, although ordinary people can be conceived as participating in consensus, this is only in matters transmitted by mass transmission, such as the five prayers, fasting, and almsgiving, or in matters in which they are included as followers of the consensus of those practitioners. Their agreement therefore adds nothing to establishing the correctness of anything. Ordinary people always follow practitioners of independent judgement and agree with them, since this is their duty. There is no objection to calling this consensus, but such consensus is not a source used by a practitioner of independent judgement.

N053 · grammar. مُسْتَصْحَبِينَ is vocalised passively, “included or brought along,” in contrast to the jurists whose agreement is independently probative. The coordinated تَابِعِينَ explains their subordinate participation. An active reading is linguistically possible, but must not suggest that lay agreement supplies an independent proof.

G-B2-0287 · grammar. أسلوب القصر بـ«إنّما» — «وإنما اشترطنا في حده المجتهدين، لأن». [Restriction: only / nothing but; identify what is being limited by the construction.]

G-B2-0289 · grammar. الفاء الرابطة مع «إنَّما» للحصر — «في الإجماع فإنما ذلك في الأمور التي نقلت». [The conjunction fāʾ links this point; innamā restricts the assertion (“only / rather”), rather than introducing a conditional.]

134. All qualified jurists of one age, not every age

R 134 · Bou Akl 160 · 1994 Arabic p. 92 · Bou Akl 2015 Arabic p. 222

فَأَمَّا عَدَدُ الْمُجْمِعِينَ فَلَيْسَ فِيهِ شَرْطٌ سِوَى أَنْ يَكُونُوا جَمِيعَ الْمُجْتَهِدِينَ مِنْ أَهْلِ الْعِلْمِ الْمَوْجُودِينَ فِي عَصْرٍ وَاحِدٍ، لِأَنَّا لَوِ اشْتَرَطْنَا إِجْمَاعَ أَهْلِ الْأَعْصَارِ، مَنْ سَلَفَ مِنْهُمْ وَمَنْ هُوَ حَاضِرٌ وَمَنْ سَيَأْتِي، لَمْ يَقَعْ إِجْمَاعًا.

As for the number of those agreeing, there is no condition except that they comprise all qualified practitioners of independent judgement existing in a single age. If we required the agreement of people of every age—past, present, and future—no consensus could occur.

G-B2-0290 · grammar. الشرط بـ«لو» — «واحد، لأنا لو اشترطنا إجماع أهل الأعصار، من». [Hypothetical or counterfactual condition; read the answer rather than treating لو as a simple past marker.]

135. Can later agreement override an earlier disagreement?

R 135 · Bou Akl 161 · 1994 Arabic p. 92 · Bou Akl 2015 Arabic p. 222

فَأَمَّا إِنْ أَجْمَعَ أَهْلُ عَصْرِنَا عَلَى أَمْرٍ لَمْ يُجْمِعْ عَلَيْهِ مَنْ سَبَقَهُمْ هَلْ يَنْعَقِدُ الْإِجْمَاعُ أَمْ لَا؟ فَفِيهِ مَوْضِعُ نَظَرٍ. أَمَّا مَا سَكَتَ عَلَيْهِ أَهْلُ الْعَصْرِ الْمُتَقَدِّمِ، وَلَمْ يُنْقَلْ عَنْهُمْ فِيهِ قَوْلٌ، فَإِجْمَاعُ مَنْ بَعْدَهُمْ مُنْعَقِدٌ ضَرُورَةً. وَأَمَّا إِذَا نُقِلَ فِيهِ عَنْ مَنْ سَلَفَ خِلَافٌ، فَهَا هُنَا مَوْضِعُ الْقَوْلِ. وَقَدِ اخْتَلَفَ النَّاسُ فِي ذَلِكَ، وَالْوُقُوفُ عَلَيْهِ يَكُونُ مِنْ جِهَةِ صِيَغِ الْأَلْفَاظِ الْوَارِدَةِ فِي مَعْنَى الْعِصْمَةِ لِهَذِهِ الْأُمَّةِ كَقَوْلِهِ عَلَيْهِ السَّلَامُ «لَنْ تَجْتَمِعَ أُمَّتِي عَلَى الضَّلَالِ»، وَسَائِرِ الْأَحَادِيثِ الَّتِي أَوْرَدْنَاهَا.

If the people of our age agree on something about which their predecessors did not agree, is consensus established? This requires examination. If the preceding generation was silent and no opinion on the matter has been transmitted from it, the consensus of later generations is necessarily established. Discussion arises when a disagreement has been transmitted from the predecessors. Opinions differ, and the question is determined through the verbal forms of the statements affirming this community's protection from error, such as his saying, peace be upon him, 'My community will not agree upon misguidance,' and the other reports we have cited.

فَإِنَّهَا وَإِنْ لَمْ يُمْكِنْ حَمْلُهَا عَلَى الْعُمُومِ، إِذْ هُوَ مِنَ الْمُمْتَنِعِ أَنْ يَتَنَاوَلَ هَهُنَا لَفْظُ الْأُمَّةِ مَنْ سَيَأْتِي، فَهُوَ حُجَّةٌ فِي عُمُومِ مَا بَقِيَ دَاخِلًا تَحْتَ تَنَاوُلِ اللَّفْظِ. فَبِأَيِّ جِهَةٍ لَيْتَ شِعْرِي يُخْرَجُ مِنْ شَرْطِ الْإِجْمَاعِ أَهْلُ الْعَصْرِ الْمُتَقَدِّمِ، وَعُمُومُ مَا بَقِيَ مِنْ دَلَالَةِ اللَّفْظِ يَتَنَاوَلُهُمْ، اللَّهُمَّ إِلَّا عِنْدَ مَنْ يَرَى أَنَّ الْعَامَّ إِذَا خُصِّصَ فَلَيْسَ بِحُجَّةٍ فِي عُمُومِ مَا بَقِيَ.

Although these cannot be understood with unrestricted generality, since the term 'community' cannot here include those yet to come, the term remains authoritative with respect to the generality of what remains within its scope. On what grounds, I wonder, can the preceding generation be excluded from the requirements of consensus, when the remaining general scope of the expression includes them? This is possible only for someone who holds that a general expression (العام), once specified, is no longer authoritative for the generality of what remains.

G-B2-0295 · grammar. للاستثناء النادر — «يتناولهم، اللهم إلا عند من يرى أن العام» «اللَّهُمَّ إِلَّا». ["Except perhaps / save for": introduces a narrowly qualified position in the argument, not an invocation or exclusive negation.]

136. Why the Ẓāhirīs restrict consensus to the Companions

R 136 · Bou Akl 162 · 1994 Arabic p. 92, 93 · Bou Akl 2015 Arabic p. 224

فَأَمَّا أَهْلُ الظَّاهِرِ فَلَيْسَ يَتَصَوَّرُ مَعَهُمْ هَذَا الْخِلَافُ لِأَنَّهُمْ يَرَوْنَ الْإِجْمَاعَ إِنَّمَا هُوَ اتِّفَاقُ الصَّحَابَةِ رَضِيَ اللَّهُ عَنْهُمْ عَلَى حُكْمِ مَا. وَذَلِكَ لَازِمٌ لِأُصُولِهِمْ. لِأَنَّهُمْ لَا يُجَوِّزُونَ الْإِجْمَاعَ بِالْقِيَاسِ. وَإِذَا كَانَ هَذَا هَكَذَا فَإِنَّمَا يَقَعُ الْإِجْمَاعُ عِنْدَهُمْ إِمَّا لِأَثَرٍ قَدْ عَفَا وَلَمْ يَصِلْ إِلَيْنَا، وَإِمَّا لِقَرَائِنَ وَأَحْوَالٍ مُشَاهَدَةٍ مِنْهُ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ، وَمِثْلُ هَذَا لَا يَتَصَوَّرُ فِي غَيْرِ الصَّحَابَةِ. وَأَمَّا مَنْ يُجَوِّزُ وُقُوعَ الْإِجْمَاعِ عَنِ الْقِيَاسِ فَيَلْزَمُهُ الْخِلَافُ الْمَذْكُورُ وَسَنُبَيِّنُ هَذَا فِي كِتَابِ الِاسْتِنْبَاطِ، إِذَا تَبَيَّنَ مَا هُوَ الْمَعْنَى الَّذِي يَعْنُونَهُ بِالْقِيَاسِ فِي هَذِهِ الصِّنَاعَةِ.

This disagreement cannot arise for the Ẓāhirīs, because they consider consensus to be solely the Companions' agreement on a ruling, may God be pleased with them. This follows necessarily from their principles, since they do not allow consensus based on analogy. On their view, consensus therefore arises either from a report that has disappeared and has not reached us, or from indications and circumstances witnessed in the Prophet, God bless him and grant him peace. Such a basis is conceivable only among the Companions. Those who permit consensus to arise from analogy must, however, confront the disagreement just mentioned. We shall explain this in the book on inference, when the meaning they intend by analogy in this discipline has become clear.

G-B2-0296 · grammar. «يرون الإجماع إنما هو اتفاق الصحابة رضي الله» — أسلوب القصر بـ«إنّما». [Restriction: only / nothing but; identify what is being limited by the construction.]

137. Unanimity, majority, and the evidential limits of silence

R 137 · Bou Akl 163–164 · 1994 Arabic p. 93 · Bou Akl 2015 Arabic p. 224

وَأَمَّا هَلْ يَتَنَاوَلُ أَيْضًا لَفْظُ الْأُمَّةِ جَمِيعَ الشُّخُوصِ الْمُجْتَهِدِينَ فِي ذَلِكَ الْعَصْرِ حَتَّى إِنْ شَذَّ مِنْهُمْ وَاحِدٌ لَمْ يَكُنْ إِجْمَاعًا، أَمْ يُرَادُ بِهِ الْأَكْثَرُ، فَالظَّاهِرُ مِنَ الصِّيَغِ الْوَارِدَةِ فِي ذَلِكَ تَنَاوُلُ جَمِيعِهِمْ. وَبِالْجُمْلَةِ فَالنَّظَرُ فِي هَذِهِ الْأَحْوَالِ الْمُشْتَرَطَةِ فِي الْإِجْمَاعِ يُشْبِهُ أَنْ يَكُونَ اجْتِهَادِيًّا. وَأَمَّا إِذَا نُقِلَ عَنْ أَكْثَرِهِمْ أَيْضًا قَوْلٌ، وَسَكَتَ الْبَاقُونَ فَمُخْتَلَفٌ فِيهِ. وَالْأَظْهَرُ كَمَا يَقُولُ الشَّافِعِيُّ أَلَّا يُنْسَبَ إِلَى سَاكِتٍ قَوْلُ قَائِلٍ، اللَّهُمَّ إِلَّا أَنْ يُعْلَمَ مِنْ قَرَائِنِ أَحْوَالِ السَّاكِتِينَ أَنَّ سُكُوتَهُمْ إنما كَانَ رِضًا مِنْهُمْ بِالْقَوْلِ وَاتِّفَاقًا عَلَيْهِ.

Does the term 'community' also include every individual practitioner of independent judgement in that age, so that a single dissenter prevents consensus, or does it mean the majority? The apparent sense of the transmitted formulas includes them all. In general, examination of these conditions of consensus seems to be a matter for independent judgement. There is also disagreement when an opinion is transmitted from most of them and the rest are silent. The more evident view, as al-Shāfiʿī says, is that a speaker's position should not be attributed to someone silent—unless the silent persons' circumstances indicate that their silence may have expressed approval of, and agreement with, that opinion.

فَإِنَّ الْإِنْسَانَ قَدْ يَسْكُتُ لِأَسْبَابٍ شَتَّى: إِمَّا أَنَّهُ لَيْسَ عِنْدَهُ فِي ذَلِكَ الْوَقْتِ فِي الشَّيْءِ رَأْيٌ، وَإِمَّا إِنْ كَانَ عِنْدَهُ رَأْيٌ فِي الشَّيْءِ فَقَدْ تَمْنَعُهُ عَنِ التَّصْرِيحِ بِهِ مَوَانِعُ: مِنْهَا أَنَّهُ لَعَلَّهُ يَرَى أَنَّ الْحُكْمَ فِي مَحَلِّ الِاجْتِهَادِ، أَوْ أَنَّ كُلَّ مُجْتَهِدٍ مُصِيبٌ، أَوْ هَيْبَةٌ مَا، أَوْ غَيْرُ ذَلِكَ مِنْ قَرَائِنَ تَقْتَرِنُ لَهُ.

A person may remain silent for many reasons: he may have no opinion on the matter at that time; or, if he has an opinion, obstacles may prevent him from stating it. He may think that the ruling is open to independent judgement, or that every practitioner of independent judgement is correct; he may be inhibited by awe, or by other accompanying circumstances.

BA-T089 · textual. قراءة الإسكوريال كما أثبتها بو عقل: «إنما»، مقابل «ربما» في طبعة العلوي. (Escorial reading as reported by Bou Akl, 2015, Arabic p. 226; variant against al-ʿAlawī.)

G-B2-0299 · grammar. «أن سكوتهم إنما كان رضا منهم بالقول واتفاقا» — «أسلوب القصر بـ«إنّما». [Restriction: only / nothing but; identify what is being limited by the construction.]

BA-F086 · textual. طبعة بو عقل، شاهد الإسكوريال [أ]: «لفظ الأمة جميع الشخوص»؛ مقابل قراءة العلوي [ع]: «لفظة الأمة جميع الشخوص». لفظ بغير تاء التأنيث؛ فرق صيغويّ لا يغيّر الحكم. [Bou Akl 2015, facing Arabic–French edition; this is a reported manuscript reading, not an independent examination of Escorial 1235.]

138. Medinan practice must be traced as transmission

R 138 · Bou Akl 165 · 1994 Arabic p. 93, 94 · Bou Akl 2015 Arabic p. 226

وَإِذَا كَانَ هَذَا هَكَذَا وَكَانَ مِنْ شَرْطِ الْإِجْمَاعِ اتِّفَاقُ جَمِيعِ الْمُجْتَهِدِينَ الْمَوْجُودِينَ فِي ذَلِكَ الْعَصْرِ، فَمَنْ رَأَى إِجْمَاعَ أَهْلِ الْمَدِينَةِ حُجَّةً لِأَنَّهُمُ الْأَكْثَرُ فِي أَوَّلِ الْإِسْلَامِ فَلَا مَعْنَى لَهُ.

Since this is so, and consensus requires agreement among all practitioners of independent judgement existing in the age, there is no basis for treating the agreement of the people of Medina as authoritative because they were the majority at the beginning of Islam.

لَكِنَّ حُذَّاقَ الْمَالِكِيِّينَ إِنَّمَا يَرَوْنَهُ حُجَّةً مِنْ جِهَةِ النَّقْلِ وَهَذَا إِذَا بُنِيَ فِيهِ أَنْ يُجْعَلَ حُجَّةً فِيمَا يَظْهَرُ لِي، فَيَنْبَغِي أَنْ يُصَرَّحَ فِيهِ بِنَقْلِ الْعَمَلِ قَرْنًا بَعْدَ قَرْنٍ حَتَّى يُوصَلَ بِذَلِكَ إِلَى زَمَنِ رَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ، فَيَكُونَ ذَلِكَ حُجَّةً بِإِقْرَارِهِ لَهُ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ. مِثْلَ أَنْ يَقُولُوا: هَكَذَا وَجَدْنَا آبَاءَنَا يَفْعَلُونَ، إِلَى أَنْ يَنْتَهِيَ ذَلِكَ إِلَى زَمَنِ رَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ.

The discerning Mālikīs, however, regard it as authoritative on the ground of transmission. If an argument for its authority is to be built on this, it seems to me that the transmission of the practice must be explicitly stated, generation after generation, until it reaches the Messenger of God's time, God bless him and grant him peace. It would then be authoritative through his approval, God bless him and grant him peace. For example, they would say, 'This is how we found our fathers acting,' tracing this back to the Messenger of God's time, God bless him and grant him peace.

مِثْلَ مَا اتَّفَقَ لِمَالِكٍ مَعَ أَبِي يُوسُفَ بِحَضْرَةِ الرَّشِيدِ فِي مَسْأَلَةِ الصَّاعِ. وَإِلَّا مَتَى لَمْ يُشْتَرَطْ هَذَا، وَلَمْ يُحْتَفَظْ بِهِ، لَمْ يَكُنْ مُمْتَنِعًا أَنْ يَكُونَ إِجْمَاعُهُمْ عَلَى أَمْرٍ حَمَلَهُمْ عَلَيْهِ بَعْضُ الْخُلَفَاءِ وَالْأُمَرَاءِ. وَبِالْجُمْلَةِ فَالْحُكْمُ فِي الشَّرْعِ بِمِثْلِ هَذَا الْحُكْمِ بَيِّنٌ أَنَّهُ لَيْسَ يَرْجِعُ إِلَى أَصْلٍ مَقْطُوعٍ بِهِ فِي الشَّرْعِ عَلَى مَا شَأْنُهَا أَنْ تَرْجِعَ إِلَيْهِ الْأَمَارَةُ الظَّنِّيَّةُ، اللَّهُمَّ إِلَّا أَنْ يُصَرَّحَ بِنَقْلِ الْعَمَلِ كَمَا قُلْنَا فَيَكُونَ مِنْ بَابِ النَّقْلِ.

Such was the encounter between Mālik and Abū Yūsuf in al-Rashīd's presence concerning the ṣāʿ measure. If this requirement is neither imposed nor carefully maintained, their agreement may concern a practice forced upon them by some caliph or governor. In general, it is clear that reaching a legal judgement on this basis does not refer back to a source established with certainty in the Law, as a probable indication ought to do—unless transmission of the practice is explicitly stated as we have described, in which case it belongs to transmitted evidence.

G-B2-0302 · grammar. «حذاق المالكيين إنما يرونه حجة من جهة النقل» — «أسلوب القصر بـ«إنّما». [Restriction: only / nothing but; identify what is being limited by the construction.]

139. Must an agreeing generation die out before consensus binds?

R 139 · Bou Akl 166 · 1994 Arabic p. 94, 95 · Bou Akl 2015 Arabic p. 228

وَأَمَّا مَنْ يَشْتَرِطُ فِي الْإِجْمَاعِ انْقِرَاضَ عَصْرِ الْمُجْتَهِدِينَ دُونَ أَنْ يقع بَيْنَهُمْ خِلَافٌ فَلَيْسَ تَقْتَضِيهِ صِيَغُ الْأَحَادِيثِ الْوَارِدَةِ بِكَوْنِ الْإِجْمَاعِ حُجَّةً، بَلْ مَنْ خَالَفَ مِنْ بَعْدِ وُقُوعِ الْإِجْمَاعِ فِي لَحْظَةٍ مَا فَغَيْرُ مُلْتَفَتٍ إِلَيْهِ وَمَقْطُوعٌ بِخَطَئِهِ.

The requirement that the generation of practitioners of independent judgement must die out without disagreement intervening is not entailed by the wording of the reports establishing the authority of consensus. Rather, anyone who dissents after consensus has existed for even a single moment is disregarded and is certainly in error.

BA-T092 · textual. قراءة الإسكوريال كما أثبتها بو عقل: «يقع»، مقابل «يقطع» في طبعة العلوي. (Escorial reading as reported by Bou Akl, 2015, Arabic p. 228; variant against al-ʿAlawī.)

140. The essential account is enough to understand further objections

R 140 · Bou Akl 167 · 1994 Arabic p. 95 · Bou Akl 2015 Arabic p. 228

فَهَذَا هُوَ الْقَوْلُ فِي الْإِجْمَاعِ مَا هُوَ، وَسَائِرِ مَا يُشْتَرَطُ فِيهِ بِأَوْجَزِ مَا أَمْكَنَنَا، وَسَائِرُ مَا يَلْحَقُهُ مِنَ الْمَسَائِلِ وَالِاعْتِرَاضَاتِ الَّتِي كَثَّرَ أَبُو حَامِدٍ بِذِكْرِهَا فَقَدْ يَقِفُ عَلَيْهَا بِسُهُولَةٍ مَنْ تَصَوَّرَ مِنَ الْإِجْمَاعِ هَذَا الْمِقْدَارَ الَّذِي كَتَبْنَاهُ.

This is our account, as concise as we could make it, of what consensus is and of its requirements. Someone who has grasped consensus to the extent set out here can readily understand the further questions and objections connected with it, which Abū Ḥāmid has discussed at such length.

141. Original freedom from liability and the burden of proof

R 141 · Bou Akl 168 · 1994 Arabic p. 96 · Bou Akl 2015 Arabic p. 228

وَهُوَ دَلِيلُ الْعَقْلِ فِي اسْتِصْحَابِ بَرَاءَةِ الذِّمَّةِ عَنِ الْوَاجِبَاتِ، وَسُقُوطِ الْحَرَجِ عَنِ الْخَلْقِ فِيمَا لَمْ يَأْتِ فِيهِ أَمْرٌ أَوْ نَهْيٌ، كَسُقُوطِ الصَّلَاةِ السَّادِسَةِ مَثَلًا، وَأَكْلِ شَوَّالٍ وَمَا أَشْبَهَ ذَلِكَ. وَبِالْجُمْلَةِ فَتَسْمِيَةُ هَذَا دَلِيلًا تَجُوزٌ فِيهِ الْعِبَارَةُ. وَالَّذِي أَصَارَهُمْ إِلَى هَذَا تَكَلُّفُهُمْ أَنْ يَجْعَلُوا السَّمْعِيَّاتِ فِي وُجُوبِ الدَّلِيلِ فِي حَالَتَيِ النَّفْيِ وَالْإِثْبَاتِ كَوُجُوبِ ذَلِكَ فِي الْعَقْلِيَّاتِ، حَتَّى تَرَاهُمْ يَضْطَرِبُونَ، فَمَرَّةً يَقُولُونَ: «عَدَمُ الدَّلِيلِ دَلِيلٌ»، وَمَرَّةً يَقُولُونَ: «ثَبَتَ بِالْقِيَاسِ أَوْ بِالْإِجْمَاعِ أَنَّ مَا لَمْ يُلْفَ دَلِيلٌ عَلَيْهِ فِي الشَّرْعِ فَتُسْتَصْحَبُ فِيهِ الْبَرَاءَةُ الْأَصْلِيَّةُ».

This is rational evidence for presuming the continuation (الاستصحاب) of freedom from obligations and the absence of blame for people where no command or prohibition has been received: for example, the absence of an obligation to perform a sixth prayer, eating during Shawwāl, and the like. In general, calling this a proof is a loose use of language. They were led to it by straining to make revealed matters require proof for both negation and affirmation, just as rational matters do. Thus you see them wavering: sometimes they say, ‘The absence of proof is proof’; sometimes, ‘It is established by analogy or consensus that anything for which no proof is found in the Law original freedom from liability is presumed to continue.’

وَالصَّوَابُ غَيْرُ هَذَا، لِأَنَّ مَا كَانَ طَرِيقُ وُجُودِهِ السَّمْعَ فَهُوَ عَلَى الْعَدَمِ مَحْمُولٌ حَتَّى يَرِدَ غَيْرُ ذَلِكَ، وَالْعَدَمُ فِيهِ أَشْهَرُ. وَمَا كَانَ هَذَا إِمَّا أَنْ لَا يُطْلَبَ مِنَ النافي دَلِيلٌ عَلَيْهِ أَصْلًا، وَأَمَّا إِنْ طُلِبَ فَدُونَ دَلِيلِ الْمُثْبِتِ، كَالْحَالِ فِي الْمُدَّعِي وَالْمُدَّعَى عَلَيْهِ.

The correct view is otherwise. Anything whose existence can be established only by revelation is presumed absent until something to the contrary is received; its absence is the better-known state. In such a case, either no proof at all should be demanded from people, or, if proof is demanded, it should be less than that demanded from someone affirming its existence, as with a claimant and a defendant.

N054 · translation. أكل شوال, p. 96, means eating in the month of Shawwāl, with no Ramadan-like fasting obligation presumed for it; the elliptical example is retained without silently changing أكل to صوم.

N055 · grammar. The printed تجوز فيه العبارة is read verbally, تَجُوزُ فِيهِ الْعِبَارَةُ: the expression permits an extended usage. The alternative nominal reading تَجَوُّزٌ would require a different construction, such as فِي الْعِبَارَةِ. The English “a loose use of language” conveys the argument without silently changing the consonants.

BA-T093 · textual. قراءة الإسكوريال كما أثبتها بو عقل: «النافي»، مقابل «الناس» في طبعة العلوي. (Escorial reading as reported by Bou Akl, 2015, Arabic p. 228; variant against al-ʿAlawī.)

BA-F091 · textual. طبعة بو عقل، شاهد الإسكوريال [أ]: «ثبت بالقياس أو بالإجماع أن ما لم يلف دليل عليه في الشرع»؛ مقابل قراءة العلوي [ع]: «ثبت بالقياس أو بالإجماع إن لم يلف دليل عليه في الشرع». أنّ ما موصولة مثبتة للمضمون المحكي، لا إن الشرطية. [Bou Akl 2015, facing Arabic–French edition; this is a reported manuscript reading, not an independent examination of Escorial 1235.]

142. Five forms of continuity and the problem of a changed subject

R 142 · Bou Akl 169–170 · 1994 Arabic p. 96, 97 · Bou Akl 2015 Arabic p. 230

وَالِاسْتِصْحَابُ فِي هَذِهِ الصِّنَاعَةِ يُطْلَقُ عَلَى وُجُوهٍ: أَحَدُهَا اسْتِصْحَابُ الْبَرَاءَةِ الْأَصْلِيَّةِ الَّذِي تَقَدَّمَ. وَالثَّانِي اسْتِصْحَابُ الْعُمُومِ حَتَّى يَرِدَ تَخْصِيصٌ. وَالثَّالِثُ اسْتِصْحَابُ النَّصِّ حَتَّى يَرِدَ نَسْخٌ. وَالرَّابِعُ اسْتِصْحَابُ حُكْمٍ عِنْدَ أَمْرٍ قَرَنَهُ الشَّرْعُ بِهِ لِتَكَرُّرِ ذَلِكَ الْأَمْرِ. وَالْخَامِسُ اسْتِصْحَابُ الْإِجْمَاعِ، أَوْ بِالْجُمْلَةِ الْحُكْمِ الشَّرْعِيِّ الثَّابِتِ بِالنَّقْلِ فِي مَوْضِعٍ يُظَنُّ أَنَّ الْمَحْكُومَ عَلَيْهِ قَدْ تَغَيَّرَ حُكْمُهُ لِتَغَيُّرِهِ فِي نَفْسِهِ، كَبَيْعِ أُمِّ الْوَلَدِ وَمَا أَشْبَهَ ذَلِكَ.

Presumption of continuity (الاستصحاب) has several applications in this discipline. First is the continuation of original freedom from liability (البراءة الأصلية), discussed earlier. Second is retaining general scope until a specification is received. Third is retaining the text until abrogation is received. Fourth is retaining a ruling when the circumstance to which the Law attached it recurs. Fifth is retaining consensus—or, more generally, a revealed ruling established by transmission—in a case where the subject’s ruling is thought to have changed because the subject itself has changed, as with selling a slave woman who has borne her master a child, and similar cases.

وَهَذَا الِاسْتِصْحَابَ يَرَاهُ أَهْلُ الظَّاهِرِ وَهُمْ لَازِمُونَ فِي ذَلِكَ لِأُصُولِهِمْ، لِأَنَّ مَنْ لَا يُجَوِّزُ فِي الشَّرْعِ النَّوْعَ مِنَ النَّظَرِ الَّذِي يُسَمَّى عِنْدَ أَهْلِ هَذِهِ الصِّنَاعَةِ بِالْقِيَاسِ، فَالْأَشْيَاءُ كَمَا أَنَّهَا عِنْدَهُمْ عَلَى الْبَرَاءَةِ الْأَصْلِيَّةِ حَتَّى يَرِدَ دَلِيلُ السَّمْعِ، كَذَلِكَ إِذَا وَرَدَ دَلِيلُ الشَّرْعِ بَقِيَ عَلَى حُكْمِهِ وَإِنْ تَغَيَّرَتْ أَوْصَافُهُ حَتَّى يَرِدَ دَلِيلُ الِارْتِفَاعِ.

The Ẓāhirīs accept this presumption of continuity and thereby remain consistent with their principles. Those who do not allow in the Law the kind of reasoning called analogy by practitioners of this discipline hold that things remain in their original freedom from liability until revealed evidence is received. Similarly, once revealed evidence is received, the subject retains its ruling even if its attributes change, until evidence removing the ruling is received.

وَكَأَنَّ الْحَالَ هَهُنَا بِالْعَكْسِ فِي اسْتِصْحَابِ الْبَرَاءَةِ الْأَصْلِيَّةِ لِأَنَّ هُنَاكَ كَانَ الْعَدَمُ أَظْهَرَ فَوَجَبَ الدَّلِيلُ عَلَى الْمُثْبِتِ، وَهَهُنَا الْوُجُودُ أَظْهَرُ فَوَجَبَ الدَّلِيلُ عَلَى النَّافِي. وَأَمَّا مَنْ يَرَى الْقِيَاسَ فِي الشَّرْعِ فَيَلْزَمُهُ أَلَّا يَقُولَ بِمِثْلِ هَذَا الِاسْتِصْحَابِ، لِأَنَّ لَهُ أَنْ يَقُولَ نَحْنُ مُكَلَّفُونَ بِالنَّظَرِ بِالْقِيَاسِ فِيمَا لَيْسَ فِيهِ نَصٌّ، وَهَذَا قَدْ تَغَيَّرَ وَصْفُهُ، فَلَهُ حُكْمُ مَا لَمْ يَرِدْ فِيهِ نَصٌّ، إِذْ تَغَيُّرُ الْوَصْفِ يُوجِبُ تَغَيُّرَ الْحُكْمِ.

It is as though the situation here were the reverse of presuming original freedom from liability. There, absence was more evident, so proof was required from whoever affirmed; here, existence is more evident, so proof is required from whoever denies. Someone who accepts analogy in the Law must reject this kind of continuity, since he can say: we are charged to reason by analogy where there is no text. This subject's attribute has changed, so it has the status of a case for which no text has been received, because a change of attribute requires a change of ruling.

G-B2-0314 · grammar. «بالقياس، فالأشياء كما أنها عندهم على البراءة الأصلية حتى — «كما أنّ» بـ«القياس أو الموازنة». [Just as / likewise: coordinates the two sides of the comparison.]

BA-F094 · textual. طبعة بو عقل، شاهد الإسكوريال [أ]: «وكأن الحال ههنا بالعكس»؛ مقابل قراءة العلوي [ع]: «وكان الحال ههنا بالعكس». كأنّ للتشبيه في قلب المقابلة بين الاستصحابين. [Bou Akl 2015, facing Arabic–French edition; this is a reported manuscript reading, not an independent examination of Escorial 1235.]

143. Conclusion of the four sources

R 143 · Bou Akl 171 · 1994 Arabic p. 97 · Bou Akl 2015 Arabic p. 230

وَهُنَا انْقَضَى الْقَوْلُ فِي الْأَصْلِ الرَّابِعِ وَهُوَ مُنْتَهَى الْكَلَامِ فِي الْجُزْءِ الثَّانِي مِنْ هَذَا الْكِتَابِ وَهُوَ الْمُشْتَمِلُ عَلَى أُصُولِ الْأَدِلَّةِ.

Here the discussion of the fourth source ends, and with it the discussion of the second part of this book, which comprises the sources of proofs.

N056 · textual. The paragraph beginning وهنا انقضى on p. 97 has no printed numeral. It is assigned §143 from the sequence between printed §§142 and 146; the next two unnumbered paragraphs are §§144–145.

144. A Companion's opinion attracts weight but is not infallible

R 144 · Bou Akl 172 · 1994 Arabic p. 97 · Bou Akl 2015 Arabic p. 232

وَقَدْ يُظَنُّ أَنَّ هَهُنَا أُصُولًا غَيْرَ هَذِهِ نَحْنُ ذَاكِرُوهَا: مِنْهَا قَوْلُ الصَّحَابِيِّ يُظَنُّ بِهِ أَنَّهُ حُجَّةٌ وَلَيْسَ بِحُجَّةٍ، لِأَنَّ مَنْ لَمْ تَثْبُتْ عِصْمَتُهُ لَمْ يَجُزْ تَقْلِيدُهُ، فَالْعِصْمَةُ إِنَّمَا تَثْبُتُ بِالْمُعْجِزَةِ أَوْ بِقَوْلِ صَاحِبِ الْمُعْجِزَةِ فِيهِ إِنَّهُ مَعْصُومٌ. وَقَدْ تَفَرَّقَ النَّاسُ فِي ذَلِكَ عَلَى أَقْوَالٍ: فَبَعْضُهُمْ خَصَّ بِذَلِكَ بَعْضَ الصَّحَابَةِ، وَبَعْضُهُمْ رَآهُ فِي كُلِّ صَاحِبٍ. وَبِالْجُمْلَةِ فَالصَّاحِبُ مُجْتَهِدٌ مِنَ الْمُجْتَهِدِينَ، لَكِنَّ النَّفْسَ أَمْيَلُ إِلَى أَقْوَالِهِمْ لِمَا انْضَافَتْ إِلَيْهِمْ مِنَ الْقَرَائِنِ، وَهِيَ الَّتِي أَوْقَعَتْ مَنْ رَأَى أَقْوَالَهُمْ حُجَّةً فِي ذَلِكَ.

Other sources may be supposed to exist, and we shall mention them. One is a Companion's statement, which is thought authoritative but is not. One may not follow uncritically someone whose protection from error has not been established; such protection is established only by a miracle, or by the bearer of a miracle declaring that the person is protected from error. Opinions differ: some confine this authority to particular Companions; others extend it to every Companion. In general, a Companion is one practitioner of independent judgement among others. The mind nevertheless inclines more readily to their opinions because of the indications accompanying them, and these indications led those who regard their statements as authoritative to that view.

N057 · textual. Unnumbered paragraph at p. 97; its place between §§142 and 146 identifies it as §144.

G-B2-0315 · grammar. «تقليده، فالعصمة إنما تثبت بالمعجزة أو بقول صاحب — «إنّما» بـ«أسلوب القصر». [Restriction: only / nothing but; identify what is being limited by the construction.]

G-B2-0317 · grammar. «أَمْيَلُ إِلَى أَقْوَالِهِمْ لِمَا انْضَافَتْ إِلَيْهِمْ مِنَ الْقَرَائِنِ — لام التعليل مع «ما» الموصولة». [Here لِمَا means "on account of what [indications] accompanied them": the lām is causal and mā is relative, not the temporal particle لَمَّا ("when").]

145. Earlier revealed laws are not an independent source

R 145 · Bou Akl 173 · 1994 Arabic p. 97, 98 · Bou Akl 2015 Arabic p. 232

وَمِنْهَا شَرْعُ مَنْ قَبْلَنَا، وَالدَّلِيلُ عَلَى أَنَّهُ لَيْسَ بِأَصْلٍ أَنَّهُ لَوْ كَانَ كَذَلِكَ لَكَانَ نَقْلُهُ مِنْ فُرُوضِ الْكِفَايَاتِ. وَلَيْسَ يَصِحُّ عَلَى الْأُمَّةِ أَنْ يَذْهَبَ عَلَيْهَا فِي وَقْتٍ مَا فَرْضٌ مِنْ فُرُوضِ الْكِفَايَةِ بِدَلِيلِ الْعِصْمَةِ لَهُمْ، وَلَوْ كَانَ فَرْضًا مِنْ فُرُوضِ الْكِفَايَاتِ لَأَخْبَرَ بِهِ الصَّحَابَةُ وَنُقِلَ إِلَى الْيَوْمِ. فَأَمَّا مَا مِنْهَا فِي الْكِتَابِ وَنَحْنُ مَأْمُورُونَ بِهِ فَإِنَّمَا نَحْنُ مَأْمُورُونَ بِهِ مِنْ جِهَةِ مَا هُوَ فِي الْكِتَابِ لَا مِنْ جِهَةِ مَا هُوَ شَرْعُ مَنْ قَبْلَنَا.

Another is the law of those before us. The proof that this is not a source is that, were it a source, transmitting it would be a collective obligation. It cannot be right that the community should, at any time, lose knowledge of a collective obligation, given the proof of its protection from error. Had its transmission been a collective obligation, the Companions would have reported it and it would have been transmitted down to the present. As for provisions of earlier laws contained in the Book and commanded of us, they are commanded of us insofar as they are in the Book, not insofar as they are the law of those before us.

N058 · textual. Earlier al-ʿAlawī 1994 text had a lacuna and suggested ويستحيل in a note. Bou Akl 2015 (BA §173, Arabic p.232, bottom apparatus) prints the surviving marginal manuscript words وليس يصح, explicitly contrasting [أ] with the [ع] conjecture يستحيل. We therefore restore a transmitted sentence rather than retaining the lacuna or silently adopting the conjecture. Bou Akl identifies this as the 1994 editor's proposed reading, not the manuscript wording.

BA15-V145 · textual. 2015 full-edition control completed for R §145 = Bou Akl §173, Arabic p.232, French p.233. Distinguish manuscript-attested changes as detailed in the preceding notes. See the source-verified change ledger for exact old and new Arabic/English strings.

G-B2-0318 · grammar. «مأمورون به فإنما نحن مأمورون به من جهة» — أسلوب القصر بـ«إنّما». [Restriction: only / nothing but; identify what is being limited by the construction.]

G-B2-0319 · grammar. «بأصل أنه لو كان كذلك لكان نقله من» — الشرط بـ«لو». [Hypothetical or counterfactual condition; read the answer rather than treating لو as a simple past marker.]

BA-F095 · textual. طبعة بو عقل، شاهد الإسكوريال [أ]: «في وقت ما فرض من فروض الكفاية بدليل»؛ مقابل قراءة العلوي [ع]: «في وقت ما فرض من فروض الكفايات بدليل». اسم الجنس المفرد في هذا الموضع الثاني، مع إبقاء الجمع في الموضع الأول. [Bou Akl 2015, facing Arabic–French edition; this is a reported manuscript reading, not an independent examination of Escorial 1235.]

146. Preference and welfare require a recognized legal warrant

R 146 · Bou Akl 174 · 1994 Arabic p. 98 · Bou Akl 2015 Arabic p. 232

وَمِنْهَا الِاسْتِحْسَانُ وَالِاسْتِصْلَاحُ وَهَذَانِ إِنْ أُرِيدَ بِهِمَا نَوْعٌ مِنْ أَنْوَاعِ الْقِيَاسِ، جَلِيٌّ أَوْ خَفِيٌّ مِمَّا يَجُوزُ فِي الشَّرْعِ عَلَى الْجِهَةِ الَّتِي يُجَوِّزُهُ الْقَائِلُونَ بِهِ، فَهُوَ عَلَى رَأْيِهِمْ أَصْلٌ، وَأَمَّا إِنْ لَمْ يُرَدْ بِهِ ذَلِكَ فَلَيْسَ بِأَصْلٍ. وَبِالْجُمْلَةِ النَّظَرُ فِي الْمَصَالِحِ قَدْ نَدَبَ إِلَيْهَا الشَّرْعُ لَكِنْ بِمِقْدَارٍ مَا وَبِحَدٍّ مَا، وَهُوَ مَا شَهِدَ لَنَا بِكَوْنِهَا أَوْ كَوْنِ جِنْسِهَا مَصْلَحَةً. وَأَمَّا هَلِ الْقِيَاسُ أَصْلٌ فَسَيَأْتِي الْقَوْلُ فِيهِ فِيمَا بَعْدُ.

Others are juristic preference and consideration of welfare. If these mean a kind of analogy, evident or subtle, permissible in the Law in the manner allowed by its proponents, then it is a source on their view. If they do not mean that, they are not a source. In general, the Law has encouraged consideration of benefits, but to a certain extent and within a certain limit: where it has attested that they, or their kind, constitute a benefit. Whether analogy itself is a source will be discussed later.

147. Conclusion of Part Two

R 147 · Bou Akl 175 · 1994 Arabic p. 98 · Bou Akl 2015 Arabic p. 234

وَهُنَا انْتَهَى النَّظَرُ فِي الْجُزْءِ الثَّانِي مِنْ هَذَا الْعِلْمِ وَالْحَمْدُ لِلَّهِ.

Here the examination of the second part of this science ends. Praise be to God.

Part III · Meaning and inference القسم الثالث: الألفاظ والاستدلال

Expressions, interpretation and analogy · Unambiguous and apparent wording, linguistic indication, commands, qiyās and prophetic conduct.

148. The distinctive task: understanding prophetic indications

R 148 · Bou Akl 176 · 1994 Arabic p. 99, 101 · Bou Akl 2015 Arabic p. 236

وَهَذَا الْجُزْءُ هُوَ الَّذِي النَّظَرُ فِيهِ أَخَصُّ بِهَذَا الْعِلْمِ عَلَى مَا قَدَّمْنَا فِيمَا سَلَفَ، وَهُوَ يَنْقَسِمُ بِحَسَبِ الْأَشْيَاءِ الَّتِي يَقَعُ بِهَا الْفَهْمُ عَنِ النَّبِيِّ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ، وَذَلِكَ إِمَّا لَفْظٌ أَوْ قَرِينَةٌ.

This part concerns the inquiry most distinctive of this science, as we explained earlier. It is divided according to the things through which the Prophet's meaning is understood, God bless him and grant him peace: either wording or an indication (قرينة).

149. Verbal form and intelligible import

R 149 · Bou Akl 176 · 1994 Arabic p. 101 · Bou Akl 2015 Arabic p. 236

وَاللَّفْظُ يَنْقَسِمُ إِلَى مَا يَدُلُّ عَلَى الْحُكْمِ بِصِيغَتِهِ، وَإِلَى مَا يَدُلُّ بِمَفْهُومِهِ وَمَعْقُولِهِ.

Wording is divided into what indicates a ruling through its verbal form, and what indicates it through its understood import and intelligible meaning.

BA002 · scholarship. In distinguishing verbal form from understood/intelligible import, read mafhūm and maʿqūl together here rather than treating them as two independently stipulated methods. Bou Akl highlights Ibn Rushd's compression of al-Ghazālī's three ways of indication (ṣīgha, mafhūm, maʿqūl) into an opposition between form and intended import. His revised-edition citation to this exact sentence is 2015 §176, not the §149 of this al-ʿAlawī-based reader. Source: Bou Akl, "Averroes on Juridical Reasoning," in Interpreting Averroes: Critical Essays (Cambridge UP, 2018), pp. 47–50.

BA15-I05 · interpretive. Linguistic rather than syllogistic inference. Bou Akl 2015 intro pp.50–76 stresses two categories of the indication of legal discourse: form (ṣīgha) and intelligible or understood import (mafhūm/maʿqūl), a significant reduction of al-Ghazālī's initial tripartite scheme.

150. Action and approval as nonverbal indications

R 150 · Bou Akl 176 · 1994 Arabic p. 101 · Bou Akl 2015 Arabic p. 236

وَالْقَرِينَةُ تَنْقَسِمُ إِلَى قِسْمَيْنِ: أَحَدُهُمَا فِعْلُهُ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ، وَالْآخَرُ إِقْرَارُهُ عَلَى الْحُكْمِ.

Indication is divided into two kinds: one is his action, God bless him and grant him peace; the other is his approval of a ruling.

151. Four classes of verbal indication

R 151 · Bou Akl 177 · 1994 Arabic p. 101 · Bou Akl 2015 Arabic p. 236

وَلْنَبْدَأْ مِنْ ذَلِكَ بِالنَّظَرِ فِي الْأَلْفَاظِ فَنَقُولُ: إِنَّ الْعَادَةَ قَدْ جَرَتْ عِنْدَهُمْ فِي هَذِهِ الصِّنَاعَةِ أَنْ يُقَسِّمُوا الْأَلْفَاظَ وَالْأَقَاوِيلَ إِلَى الْمُجْمَلِ وَالنَّصِّ وَالظَّاهِرِ وَالْمُؤَوَّلِ. وَيَنْبَغِي أَنْ نَنْظُرَ فِي وَاحِدٍ وَاحِدٍ مِنْ هَذِهِ الْأَقْسَامِ، وَنُبَيِّنَ الْمَعْنَى الَّذِي يَدُلُّونَ عَلَيْهِ فِي وَاحِدٍ وَاحِدٍ مِنْهَا، فَنَقُولُ:

Let us begin by examining wording. We say: practitioners of this discipline customarily divide expressions and statements into the indeterminate (المجمل), the unambiguous (النص), what has an apparent meaning (الظاهر), and what is interpreted beyond that apparent meaning (المؤول). We should examine each division and explain what they signify by each. We say:

152. Simple expressions, compounds, and complete utterances

R 152 · Bou Akl 178 · 1994 Arabic p. 101 · Bou Akl 2015 Arabic p. 236

إِنَّ الْأَلْفَاظَ مِنْهَا مُفْرَدَةٌ وَمِنْهَا مُرَكَّبَةٌ، وَالْمُفْرَدُ إِمَّا اسْمٌ وَإِمَّا فِعْلٌ وَإِمَّا حَرْفٌ. وَالْمُرَكَّبَةُ مَا تَرَكَّبَ مِنْ هَذِهِ وَكَانَ يَدُلُّ جُزْؤُهُ عَلَى جُزْءٍ مِنَ الْمَعْنَى. وَمِنْ هَذِهِ مَا هُوَ غَيْرُ مُسْتَقِلٍّ بِنَفْسِهِ فِي الْفَهْمِ، وَمِنْهَا مَا هُوَ مُسْتَقِلٌّ بِنَفْسِهِ. وَهَذَا يَنْقَسِمُ إِلَى مَا تَرْكِيبُهُ تَرْكِيبٌ يَدْخُلُهُ الصِّدْقُ وَالْكَذِبُ ⟨وَإِلَى مَا لَا يَدْخُلُ ذَلِكَ⟩ فِيهِ، وَهَذَا يَنْقَسِمُ إِلَى أَمْرٍ وَنَهْيٍ وَطَلِبَةٍ وَتَضَرُّعٍ وَنِدَاءٍ.

Expressions are either simple or compound. A simple expression is a noun, a verb, or a particle. A compound expression is composed of these, with a part of it signifying part of its meaning. Some compound expressions do not independently convey a complete meaning; others do. The latter divide into statements whose composition admits truth or falsehood, and ⟨utterances which do not⟩. The latter include commands, prohibitions, requests, entreaties, and calls.

N059 · lexical. طَلِبَة, "a request," is vocalized on the pattern كَلِمَة, following al-Fayyūmī, al-Miṣbāḥ al-munīr, s.v. طلب. This is not طَلَبَة, the plural "students." The same choice is used in §197. https://ar.wikisource.org/wiki/المصباح_المنير/كتاب_الطاء#طلب

BA15-R04 · textual. Logical speech acts. Restored distinction between compositions that admit truth/falsity and those that do not; commands, prohibitions, entreaties and calls are in the latter class. Bou Akl 2015 Arabic p.236, French p.237, commentary §178; compare Aristotle, De Interpretatione 4. The words between angles are conjectural.

153. Original assignment, transfer, and specialized legal usage

R 153 · Bou Akl 179–181 · 1994 Arabic p. 101, 102 · Bou Akl 2015 Arabic p. 238

وَالْأَلْفَاظُ، سَوَاءٌ كَانَتْ أَسْمَاءً أَوْ حُرُوفًا أَوْ أَفْعَالًا أَوْ مُفْرَدَةً أَوْ مُرَكَّبَةً، مِنْهَا مَا يُفْهَمُ عَنْهَا بِصِيَغِهَا فِي كُلِّ مَوْضِعٍ مَعْنًى وَاحِدٌ أَبَدًا، وَهَذِهِ بَعْضُ مَا يَعْنُونَ بِالنَّصِّ فِي هَذِهِ الصِّنَاعَةِ، وَلْنُسَمِّهِ نَحْنُ النَّصَّ مِنْ جِهَةِ الصِّيَغِ. وَمِنْهَا أَلْفَاظٌ يُمْكِنُ أَنْ يُفْهَمَ عَنْهَا أَكْثَرُ مِنْ مَعْنًى وَاحِدٍ، وَهَذِهِ إِذَا كَانَتْ دَلَالَتُهَا عَلَى جَمِيعِ الْمَعَانِي بِالسَّوَاءِ، حَتَّى لَا يُفْهَمَ أَحَدُهَا إِلَّا بِدَلِيلٍ أَوْ قَرِينَةٍ فَهُوَ أَيْضًا بَعْضُ مَا يَعْنُونَ بِالْمُجْمَلِ فِي هَذِهِ الصِّنَاعَةِ، وَلْنُسَمِّهِ نَحْنُ مُجْمَلًا مِنْ جِهَةِ الصِّيَغِ.

Among expressions—whether nouns, particles, or verbs, simple or compound—some invariably convey one meaning through their forms in every context. These constitute part of what is meant by unambiguous wording (النص) in this discipline; let us call it unambiguous wording in respect of form. Others can convey more than one meaning. If they signify all these meanings equally, so that one can be understood only through proof or an indication, they constitute part of what this discipline calls indeterminate wording (المجمل); let us call it indeterminate wording in respect of form.

وَمِنْ هَذِهِ الْأَلْفَاظِ مَا يُقَالُ مِنْ أَوَّلِ الْأَمْرِ عَلَى شَيْءٍ مِنْهَا وَيَكُونُ أَشْهَرَ فِي الدَّلَالَةِ عَلَيْهِ، ثُمَّ يُسْتَعَارُ حِينًا مَا لِشَيْءٍ آخَرَ لِشَبَهِهِ بِالْمَعْنَى الْأَوَّلِ، أَوْ يُبْدَلُ بَعْضُهَا مَكَانَ بَعْضٍ اتِّكَالًا فِي ذَلِكَ عَلَى قَرِينَةٍ تُفْهِمُ الْمَعْنَى الْمُسْتَعَارَ أَوِ الْمُبْدَلَ. وَهَذِهِ إِذَا وَرَدَتْ خِلْوًا مِنَ الْقَرَائِنِ حُمِلَتْ عَلَى وَضْعِهَا الْأَوَّلِ، وَهِيَ بَعْضُ مَا يَعْنُونَ فِي هَذِهِ الصِّنَاعَةِ بِالظَّاهِرِ، وَلْنُسَمِّهِ نَحْنُ عَلَى عَادَتِنَا الظَّاهِرَ مِنْ جِهَةِ الصِّيَغِ. وَإِذَا دَلَّتِ الْقَرَائِنُ عَلَى اسْتِعَارَتِهَا أَوْ تَبْدِيلِهَا فَهُوَ بَعْضُ مَا يُسَمَّى فِي هَذِهِ الصِّنَاعَةِ مُؤَوَّلًا، وَلْنُسَمِّهِ الْمُؤَوَّلَ مِنْ جِهَةِ الصِّيَغِ.

Some expressions originally apply to one thing and signify it more commonly, but are later transferred to something else because it resembles the original meaning; or one expression is substituted for another, relying on an indication to disclose the transferred or substituted meaning. When such expressions occur without accompanying indications, they are understood according to their original assignment. These constitute part of what this discipline calls apparent wording (الظاهر); following our practice, let us call it apparent wording in respect of form. When indications establish transfer or substitution, this constitutes part of what the discipline calls interpreted wording (المؤول); let us call it interpreted wording in respect of form.

وَفِي هَذَا الصِّنْفِ تَدْخُلُ الْأَسْمَاءُ الْعُرْفِيَّةُ، وَهِيَ أَسْمَاءٌ اسْتُعْمِلَتْ فِي الْوَضْعِ عَلَى أَشْيَاءَ ثُمَّ نُقِلَتْ فِي الشَّرْعِ إِلَى أَشْيَاءَ أُخْرَى لِشَبَهِهَا بِالْمَعَانِي الْأُوَلِ أَوْ لِتَعَلُّقِهَا بِهَا بِوَجْهٍ مِنْ أَوْجُهِ التَّعَلُّقِ. وَهَذِهِ إِذَا وَرَدَتْ فِي الشَّرْعِ كَانَتْ ظَاهِرَةً فِي الْمَعَانِي الشَّرْعِيَّةِ، وَلَمْ تُحْمَلْ عَلَى الْمَعَانِي اللُّغَوِيَّةِ إِلَّا بِالتَّأْوِيلِ.

This class includes terms established by specialised usage: terms originally assigned to certain things, then transferred in the Law to other things because of their resemblance to the original meanings or some relation to them. When these occur in the Law, their apparent meanings are the legal meanings; they are understood in their ordinary linguistic meanings only through interpretation.

G-B2-0328 · grammar. أسلوب التسوية — «والألفاظ، سواء كانت أسماء أو حروفا أو». [Whether one alternative or another; both possibilities fall under the same assessment.]

154. Omission, addition, and substitution in figurative speech

R 154 · Bou Akl 182 · 1994 Arabic p. 102 · Bou Akl 2015 Arabic p. 240

وَمِنْ هَذِهِ الْأَلْفَاظِ وَالْأَقَاوِيلِ مَا تَدُلُّ بِمَفْهُومَاتِهَا لَا بِصِيَغِهَا وَذَلِكَ لِتَغْيِيرِهَا بِالنَّقْصِ وَالْحَذْفِ أَوِ الزِّيَادَةِ، وَكَذَلِكَ أَيْضًا بِالتَّبْدِيلِ وَالِاسْتِعَارَةِ. وَهَذَا الصِّنْفُ مِنَ الْأَلْفَاظِ يُسَمَّى مَجَازًا.

Some expressions and statements signify through their understood imports, rather than through their verbal forms, because they have been altered by abridgement and omission or addition, and likewise by substitution and transfer. This class of expressions is called figurative usage (مجاز).

155. Clarity and obscurity arise from meaning as well as form

R 155 · Bou Akl 182 · 1994 Arabic p. 102, 103 · Bou Akl 2015 Arabic p. 240

وَهَذِهِ يُوجَدُ فِيهَا أَيْضًا مَا يُشْبِهُ النَّصَّ وَالْمُجْمَلَ وَالظَّاهِرَ وَالْمُؤَوَّلَ، وَإِنَّمَا يُوجَدُ ذَلِكَ فِيهَا مِنْ جِهَةِ الْقَرَائِنِ لَا مِنْ صِيَغِهَا. فَيَكُونُ إِذًا النَّصُّ الْمُسْتَعْمَلُ فِي هَذِهِ الصِّنَاعَةِ يُعْنَى بِهِ صِنْفَانِ: أَحَدُهُمَا مَا كَانَ نَصًّا مِنْ جِهَةِ الصِّيَغِ، وَالثَّانِي مَا كَانَ نَصًّا مِنْ جِهَةِ الْمَفْهُومِ. وَبِمِثْلِ هَذِهِ الْقِسْمَةِ يَنْقَسِمُ الظَّاهِرُ وَالْمُجْمَلُ وَالْمُؤَوَّلُ.

Within these, too, there are counterparts to the unambiguous, the indeterminate, the apparent, and the interpreted; but they possess these characteristics through accompanying indications, not through their forms. Thus ‘unambiguous wording’ as used in this discipline signifies two kinds: what is unambiguous in respect of form and what is unambiguous in respect of understood import. The apparent, the indeterminate, and the interpreted admit the same division.

G-B2-0330 · grammar. أسلوب القصر بـ«إنّما» — «والظاهر والمؤول، وإنما يوجد ذلك فيها من جهة». [Restriction: only / nothing but; identify what is being limited by the construction.]

156. A classification useful for legal inference

R 156 · Bou Akl 183 · 1994 Arabic p. 103 · Bou Akl 2015 Arabic p. 240

وَيُشْبِهُ أَنْ تَكُونَ قِسْمَةُ الْأَلْفَاظِ إِلَى هَذِهِ الْأَصْنَافِ هِيَ النَّافِعَةَ فِي هَذِهِ الصِّنَاعَةِ. وَيَنْبَغِي أَنْ نَنْظُرَ فِيهَا عَلَى عَادَتِهِمْ، وَنُبَيِّنَ فِي وَاحِدٍ وَاحِدٍ مِنْهَا كَوْنَهُ دَلِيلًا شَرْعِيًّا، وَنَفْحَصَ عَمَّا يُظَنُّ بِهِ مِنَ الْأَقَاوِيلِ أَنَّهُ مُتَرَدِّدٌ بَيْنَ أَكْثَرَ مِنْ صِنْفٍ وَاحِدٍ مِنْ هَذِهِ الْأَصْنَافِ. وَلْنَبْدَأْ مِنْ هَذِهِ الْأَقْسَامِ بِمَا يُوجَدُ لِلَّفْظِ مِنْ جِهَةِ صِيغَتِهِ وَمِنْ هَذِهِ فِي الْمُفْرَدَةِ وَالْمُرَكَّبَةِ تَرْكِيبَ إِخْبَارٍ.

This division of expressions into these classes seems to be the useful one in this discipline. We should examine them following the practitioners’ customary procedure, explain the authority of each as a revealed proof, and investigate statements thought to be uncertain between more than one of these classes. Let us begin with the divisions belonging to an expression by virtue of its form, and among these with simple expressions and expressions compounded as assertions.

157. Unambiguous expressions and determinate pronoun reference

R 157 · Bou Akl 184 · 1994 Arabic p. 103 · Bou Akl 2015 Arabic p. 240

وَاللَّفْظُ كَمَا قُلْنَا إِنَّمَا يَكُونُ نَصًّا إِذَا فُهِمَ عَنْهُ فِي كُلِّ مَوْضِعٍ مَعْنًى وَاحِدٌ، وَهَذَا يُوجَدُ فِي الْمُفْرَدِ وَالْمُرَكَّبِ. أَمَّا مِثَالُ الْمُفْرَدِ فَكَالْإِنْسَانِ وَالْفَرَسِ وَالْحَيَوَانِ، وَأَمَّا فِي الْمُرَكَّبِ فَمِثْلُ قَوْلِهِ تَعَالَى: {قُلْ هُوَ اللَّهُ أَحَدٌ} وَبِالْجُمْلَةِ كُلُّ مَا تَرَكَّبَ عَنِ الْمُفْرَدَاتِ النُّصُوصِ، وَلَمْ تَكُنِ الضَّمَائِرُ فِيهِ مُحْتَمِلَةً أَنْ تَعُودَ عَلَى مَعْنًى أَكْثَرَ مِنْ وَاحِدٍ.

As we have said, wording is unambiguous only when it conveys one meaning in every context. This occurs in both simple and compound expressions. Examples of simple expressions are ‘human being,’ ‘horse,’ and ‘animal.’ A compound example is God’s saying, ‘Say: He is God, One.’ In general, this includes every expression composed of unambiguous simple expressions, provided that its pronouns cannot refer to more than one meaning.

N060 · translation. The quotation is Qurʾān 112:1. ‘Every context’ translates في كل موضع within Ibn Rushd’s own account; it does not add a later hierarchy of degrees of textual clarity.

G-B2-0333 · grammar. أسلوب القصر بـ«إنّما» — «كما قلنا إنما يكون نصا إذا فهم عنه». [Restriction: only / nothing but; identify what is being limited by the construction.]

158. Equivocation: qurʾ, ʿayn, and the marriage bond

R 158 · Bou Akl 185 · 1994 Arabic p. 103 · Bou Akl 2015 Arabic p. 240

وَالْمُجْمَلُ مِنْ جِهَةِ الصِّيغَةِ فِي مُقَابَلَةِ هَذَا. أَمَّا فِي الْأَلْفَاظِ الْمُفْرَدَةِ فَكَمِثْلِ اسْمِ الْعَيْنِ الَّذِي يُقَالُ بِاشْتِرَاكٍ عَلَى عَيْنِ الْمَاءِ، وَعَلَى عَيْنِ الْمِيزَانِ، وَالْعَيْنِ الَّتِي يُبْصَرُ بِهَا، وَغَيْرِ ذَلِكَ. وَرُبَّمَا قِيلَ عَلَى الشَّيْءِ وَضِدِّهِ كَالْقُرْءِ الَّذِي يُعْنَى بِهِ مَرَّةً الطُّهْرُ وَمَرَّةً الْحَيْضُ. وَأَمَّا الْمُجْمَلُ مِنْ جِهَةِ التَّرْكِيبِ فَمَا تَرَكَّبَ عَنْ مِثْلِ هَذِهِ الْأَلْفَاظِ، أَوْ كَانَتِ الضَّمَائِرُ الَّتِي يَرْتَبِطُ بِهَا الْقَوْلُ مُحْتَمِلَةً، كَقَوْلِهِ تَبَارَكَ وَتَعَالَى: {أَوْ يَعْفُوَ الَّذِي بِيَدِهِ عُقْدَةُ النِّكَاحِ}. فَإِنَّ الضَّمِيرَ مُحْتَمِلٌ هَهُنَا أَنْ يَعُودَ عَلَى الْوَلِيِّ أَوِ النَّاكِحِ.

Indeterminate wording in respect of form is the opposite. Among simple expressions, an example is ʿayn, used equivocally for a spring of water, the eye of a balance, the eye with which one sees, and other things. A term may even signify a thing and its opposite, as qurʾ sometimes means a period of purity and sometimes menstruation. Indeterminacy in composition occurs in expressions compounded from such terms, or where the pronouns connecting the statement are ambiguous. An example is His saying, blessed and exalted, ‘Or the one in whose hand is the marriage bond remits it’: the pronoun here may refer either to the guardian or to the husband.

N061 · translation. The quotation is Qurʾān 2:237. ‘Eye of a balance’ preserves the technical example عين الميزان rather than replacing it with an unrelated modern meaning of ʿayn.

G-B2-0336 · grammar. الفاء الاستئنافية مع «إنَّ/إنْ/إنّما». فإن الضمير محتمل ههنا أن يعود — «عقدة النكاح}. [The initial فـ links the reasoning. Distinguish إنَّ (assertion), إنْ (condition) and إنّما (restriction) from the words and vowelled context.]

159. Clarification encompasses every valid means of understanding

R 159 · Bou Akl 186 · 1994 Arabic p. 103, 104 · Bou Akl 2015 Arabic p. 242

وَاسْمُ الْبَيَانِ يَقَعُ عِنْدَهُمْ فِي هَذِهِ الصِّنَاعَةِ عَلَى كُلِّ مَا يُمْكِنُ أَنْ تَثْبُتَ بِهِ الْأَحْكَامُ، وَيَقَعُ به الإفهام، مِنْ صِيغَةِ لَفْظٍ أَوْ مَفْهُومِهِ، وَمَا سِوَى ذَلِكَ مِمَّا عَدَدْنَاهُ قَبْلُ عَلَى مَرَاتِبِهِ فِي إِفَادَةِ التَّصْدِيقِ. وَسَنَقُولُ فِي كَوْنِ وَاحِدٍ وَاحِدٍ مِنْهَا دَلِيلًا شَرْعِيًّا.

In this discipline they apply the term ‘clarification’ to everything through which rulings may be established and understanding produced: an expression’s form, its understood import, and the other things enumerated earlier, according to their degrees in producing assent (التصديق). We shall discuss the authority of each as a revealed proof.

BA-T100 · textual. قراءة الإسكوريال كما أثبتها بو عقل: «به الإفهام»، مقابل «في الأفهام» في طبعة العلوي. (Escorial reading as reported by Bou Akl, 2015, Arabic p. 242; variant against al-ʿAlawī.)

160. May clarification be delayed when action is required?

R 160 · Bou Akl 187–188 · 1994 Arabic p. 104 · Bou Akl 2015 Arabic p. 242

فَأَمَّا الْمُجْمَلُ فَلَيْسَ بِبَيَانٍ بِإِجْمَاعٍ، وَلَا يَثْبُتُ بِهِ حُكْمٌ أَصْلًا. وَيَتَطَرَّقُ إِلَى هَذَا مَسْأَلَةٌ وَهِيَ: هَلْ تَجُوزُ الْمُخَاطَبَةُ عَلَى مَعْنَى الْأَمْرِ بِالْمُجْمَلِ حَتَّى يَرِدَ الْبَيَانُ، أَوْ بِالظَّاهِرِ حَتَّى يَرِدَ التَّخْصِيصُ، وَذَلِكَ فِي وَقْتِ الْحَاجَةِ؟ وَهَذِهِ الْمَسْأَلَةُ هِيَ الَّتِي يَرْسُمُونَهَا بِجَوَازِ تَأْخِيرِ الْبَيَانِ عَنْ وَقْتِ الْحَاجَةِ. وَقَدْ أَجَازَ ذَلِكَ قَوْمٌ، وَمَنَعَهُ آخَرُونَ. وَنَحْنُ نَقُولُ فِي ذَلِكَ:

Indeterminate wording is not clarification, by consensus, and establishes no ruling at all. A question arises here: may an instruction be addressed through indeterminate wording pending clarification, or through apparent wording pending specification, at the time when clarification is needed? This is the question they designate as the permissibility of delaying clarification beyond the time of need. Some permit it, while others forbid it. Our account is as follows.

N062 · textual. The print at p. 104 says عن وقت الحاجة (‘beyond the time of need’), whereas §163 repeatedly distinguishes delay إلى وقت الحاجة (‘until the time of need’) and ends by denying any dispute over delay beyond it. The translation preserves the edition’s distinct prepositions rather than silently regularising the problem’s label.

161. How speakers rely on context and hearers seek clarification

R 161 · Bou Akl 189 · 1994 Arabic p. 104, 105 · Bou Akl 2015 Arabic p. 242

وَهَذِهِ الْمَسْأَلَةُ الْفَحْصُ عَنْهَا لُغَوِيٌّ، فَلِذَلِكَ يَنْبَغِي أَنْ نَجْعَلَ نَظَرَنَا فِيهَا مِنَ الْجِهَةِ الَّتِي ننظر فِي اللُّغَةِ فَنَقُولُ: إِنَّهُ إِذَا اسْتُقْرِئَ كَلَامُ الْعَرَبِ ظَهَرَ مِنْ أَمْرِهِمْ أَنَّهُمْ لَا يُخَاطِبُونَ بِالِاسْمِ الْمُشْتَرَكِ إِلَّا حَيْثُ يَدُلُّ الدَّلِيلُ عَلَى الْمَعْنَى الْمَقْصُودِ مِنْ سَائِرِ مَا يُقَالُ عَلَيْهِ ذَلِكَ الِاسْمُ، إِمَّا لِقَرِينَةٍ حَاضِرَةٍ مُبْتَذَلَةٍ، أَوْ مَوْجُودَةٍ فِي نَفْسِ اللَّفْظِ. فَإِنَّ قَوْلَ اللَّهِ تَبَارَكَ وَتَعَالَى: {فَأَصْبَحَتْ كَالصَّرِيمِ} قَدْ تَقَدَّمَ مِنْ صِفَاتِ الْمُشَبَّهِ مَا يَدُلُّ عَلَى أَنَّ الصَّرِيمَ هَهُنَا اللَّيْلُ. وَكَذَلِكَ إِذَا أَرَادُوا بِالصَّرِيمِ الصُّبْحَ قَالُوا ضَوْءُ الصَّرِيمِ، وَمَا أَشْبَهَ ذَلِكَ.

Inquiry into this question is linguistic, so we should examine it from the standpoint appropriate to language. Surveying Arabic speech shows that Arabs address others with an equivocal term only where evidence indicates the intended meaning from among its other meanings, whether through a readily available contextual indication or something present in the wording itself. In God’s saying, blessed and exalted, ‘Then it became like al-ṣarīm,’ preceding descriptions of the thing compared indicate that al-ṣarīm here means night. Similarly, when they mean morning by al-ṣarīm, they say ‘the light of al-ṣarīm,’ or something comparable.

وَبِالْجُمْلَةِ فَالْمُخَاطَبَةُ بِالْأَلْفَاظِ الْمُجْمَلَةِ وَالْمُخَاطِبُ يَعْلَمُ قَطْعًا أَنَّهَا مُجْمَلَةٌ مِمَّا لَمْ يَقَعْ بَعْدُ، وَلَوْ وَقَعَ لَكَانَ هَذْرًا، اللَّهُمَّ إِلَّا أَنَّ الْمُخَاطِبَ بِالِاسْمِ الْمُجْمَلِ قَدْ يُخَاطِبُ بِهِ وَيَغْلِبُ عَلَى ظَنِّهِ فَهْمُ ذَلِكَ عَنْهُ اتِّكَالًا مِنْهُ عَلَى الْقَرَائِنِ وَلَا يَفْهَمُ ذَلِكَ عَنْهُ الْمُخَاطَبُ، فَهُنَا يَصْلُحُ الِاسْتِفْهَامُ مِنَ الْمُخَاطَبِ وَالْبَيَانُ مِنَ الْمُخَاطِبِ. وَإِنْ رَأَى الْمُخَاطَبُ أَنَّ اقْتِضَاءَ ذَلِكَ خُوطِبَ بِهِ لَمْ يُطْلَبْ مِنْهُ فِي ذَلِكَ الْوَقْتِ، أَخَّرَ السُّؤَالَ إِلَى وَقْتِ الْحَاجَةِ فَيَتَأَخَّرُ الْبَيَانُ.

In general, addressing someone with indeterminate expressions while knowing with certainty that they remain indeterminate has never occurred; if it did, it would be idle speech. A speaker may, however, use an indeterminate term believing it very likely that he will be understood, relying on accompanying indications, while the addressee fails to understand him. The addressee may then seek clarification, and the speaker provide it. If the addressee sees that fulfilment of what he was addressed with is not required at that moment, he postpones his question until the time of need, and clarification is correspondingly delayed.

فَأَمَّا أَنْ يَرِدَ الْخِطَابُ بِالْأَلْفَاظِ الْمُجْمَلَةِ، وَالْمُخَاطِبُ يَعْلَمُ قَطْعًا أَنَّهَا مُجْمَلَةٌ، وَأَنَّ الْمُخَاطَبَ لَا يَفْهَمُ عَنْهُ شَيْئًا تَعْوِيلًا مِنَ الْمُخَاطِبِ عَلَى أَنَّهُ سَيُبَيِّنُ ذَلِكَ الْمَعْنَى الْمَقْصُودَ عِنْدَ وَقْتِ الْحَاجَةِ، فَهُوَ شَيْءٌ كَمَا قُلْنَا لَمْ يَقَعْ مِنْ عَرَبِيٍّ قَطُّ وَلَا مِنْ غَيْرِهِ. وَبِالْجُمْلَةِ فَلَيْسَ تَقَعُ الْمُخَاطَبَةُ بِالْأَلْفَاظِ الْمُجْمَلَةِ اللَّهُمَّ إِلَّا أَنْ يُرَادَ بِهَا اللُّغْزُ وَالِاسْتِهْزَاءُ لِطَبِيعَةِ الْمُخَاطَبِ. وَكَذَلِكَ مَا كَانَ مُجْمَلًا مِنْ جِهَةِ مَفْهُومِهِ. وَأَمَّا الشَّرْعُ فَإِنَّهُ لَمْ يَتَصَرَّفْ فِي ذَلِكَ بِوَضْعٍ عُرْفِيٍّ.

But for a speaker to address someone in indeterminate expressions, knowing with certainty that they are indeterminate and that the addressee understands nothing by them, while relying on explaining the intended meaning when the time of need arrives—this, as we have said, has never occurred among Arabs or anyone else. In general, such indeterminate address occurs only when a riddle or mockery of the addressee's disposition is intended. The same holds of wording indeterminate in its understood import. The Law has introduced no specialised convention altering this.

N063 · grammar. The unvocalized المُخَاطَب can designate the speaker or addressee depending on its reading. The clause وَالْمُخَاطَبُ يَعْلَمُ قَطْعًا أَنَّهَا مُجْمَلَةٌ concerns knowledge that the expression is indeterminate; the translation assigns the roles according to the surrounding argument.

N064 · translation. The quotation is Qurʾān 68:20. Al-ṣarīm is retained because the example depends on a single Arabic expression having opposed temporal meanings.

BA15-I06 · interpretive. Communicative intention. Bou Akl 2015 intro pp.70–76 reads discussion of delaying clarification as a theory of ordinary speakers who intend their addressees to understand one determinate sense. The resulting disagreement concerns accessibility of a prior intended meaning, not a literal indeterminate divine volition.

BA-T101 · textual. قراءة الإسكوريال كما أثبتها بو عقل: «ننظر»، مقابل «تنظر» في طبعة العلوي. (Escorial reading as reported by Bou Akl, 2015, Arabic p. 242; variant against al-ʿAlawī.)

G-B2-0344 · grammar. «هذرا، اللهم إلا أن المخاطب بالاسم المجمل قد يخاطب — «إلّا أنّ» بـاستثناء أو استدراك». [Except that / however; the contextual function determines which qualification is intended.]

162. A figurative meaning needs an intelligible indication

R 162 · Bou Akl 190 · 1994 Arabic p. 105 · Bou Akl 2015 Arabic p. 244

وَأَمَّا الظَّاهِرُ أَيْضًا مِنْ جِهَةِ الصِّيغَةِ فَحُكْمُهُ عِنْدِي حُكْمُ الِاسْمِ الْمُشْتَرَكِ، وَذَلِكَ مِنْهُ فِيمَا قِيلَ مِنْ أَوَّلِ الْأَمْرِ عَلَى شَيْءٍ مَا، وَكَانَ ظَاهِرًا فِيهِ، ثُمَّ اسْتُعِيرَ وَقْتًا مَا لِشَيْءٍ مَا آخَرَ لِشَبَهِهِ بِالْمَعْنَى الْأَوَّلِ أَوْ لِتَعَلُّقِهِ بِهِ بِوَجْهٍ مِنْ أَوْجُهِ التَّعَلُّقِ. فَإِنَّ الْعَرَبِيَّ إِذَا أَطْلَقَ لَفْظَ السَّمَاءِ لَمْ يُفْهَمْ عَنْهُ أَبَدًا إِلَّا السَّمَاءُ الْمَكْوَكَبَةُ، فَإِذَا أَرَادَ بِذَلِكَ الْمَطَرَ دَلَّ عَلَى ذَلِكَ بِقَرِينَةٍ كَقَوْلِهِمْ: «مَا زِلْنَا نَطَأُ السَّمَاءَ حَتَّى أَتَيْنَاكُمْ»، وَكَقَوْلِهِمْ «إِذَا سَقَطَ السَّمَاءُ بِأَرْضِ قَوْمٍ».

Apparent wording in respect of form also has, in my view, the same status as an equivocal term. This concerns what originally applies to something and has its apparent meaning in it, but is later transferred to another thing because of resemblance to the first meaning or some relation to it. When an Arab uses the word ‘sky’ without qualification, he is invariably understood to mean the starry sky. If he means rain, he indicates this through a contextual clue, as in ‘We kept treading the sky until we reached you,’ or ‘When the sky falls upon a people’s land.’

وَإِلَّا مَتَى خُوطِبَ بِمِثْلِ هَذِهِ الْأَسْمَاءِ وَأُطْلِقَتْ إِطْلَاقًا، وَالْمُرَادُ بِهَا غَيْرُ مَا هِيَ رَاتِبَةٌ عَلَيْهِ، لَمْ يَقَعْ ذَلِكَ إِلَّا غَلَطًا، وَإِنْ قُصِدَ ذَلِكَ كَانَ تَغْلِيطًا. هَذَا إِذَا كَانَ وَقْتُ الْحَاجَةِ. وَأَمَّا إِنْ لَمْ يَكُنْ وَقْتُ الْحَاجَةِ فَأَيُّ فَائِدَةٍ لِمُخَاطَبَةٍ يَعْتَقِدُ الْإِنْسَانُ مِنْهَا خِلَافَ مَا يَأْتِي بِهِ الْبَيَانُ. وَيُشْبِهُ أَنْ تكون كَذَلِكَ الظَّاهِرُ مِنْ جِهَةِ الْمَفْهُومِ.

Otherwise, whenever such terms are used without qualification while something other than their established meaning is intended, this can occur only as an error; if deliberate, it is misleading. This concerns the time of need. If it is not yet the time of need, what benefit is there in speech that makes a person believe the opposite of what the subsequent clarification will convey? Apparent wording in respect of understood import seems to stand on the same footing.

BA-T103 · textual. قراءة الإسكوريال كما أثبتها بو عقل: «تكون»، مقابل «يكون» في طبعة العلوي. (Escorial reading as reported by Bou Akl, 2015, Arabic p. 246; variant against al-ʿAlawī.)

G-B2-0346 · grammar. «القصر بالنفي والاستثناء — «عنه أبدا إلا السماء المكوكبة، فإذا أراد بذلك». [Exclusivity through negation followed by an exception; not merely two independent clauses.]

163. Partial knowledge can precede a more specific explanation

R 163 · Bou Akl 191–194 · 1994 Arabic p. 105, 106, 107 · Bou Akl 2015 Arabic p. 246

وَأَمَّا الظَّاهِرُ مِنْ جِهَةِ الْإِبْدَالِ وَذَلِكَ مِنْهُ فِيمَا يَأْتِي مِنَ الْأَلْفَاظِ الْعَامَّةِ الَّتِي الْمُرَادُ بِهَا مَا تَحْتَهَا، فَالْمُخَاطَبَةُ بِهَا دُونَ أَنْ تُقَيَّدَ أَوْ تَقْتَرِنَ بِهَا قَرِينَةٌ تَدُلُّ عَلَى فَهْمِ ذَلِكَ الْمَعْنَى الْمُخَصَّصِ قَصْدًا بِتَأْخِيرِ الْبَيَانِ فِيهَا إِلَى وَقْتِ الْحَاجَةِ، وَاقِعٌ لُغَةً وَشَرْعًا، إِذَا فَهِمَ الْمُخَاطَبُونَ مِنْ قَرَائِنِ الْأَحْوَالِ أَنَّ هَهُنَا أَيْضًا مَوْضِعًا لِلسُّؤَالِ، وَأَنَّ الْمُخَاطِبَ لَمْ يَكُنْ قَصْدُهُ الِاقْتِصَارَ عَلَى مَا خَاطَبَ بِهِ.

As for apparent wording involving substitution (الإبدال)—general expressions by which something falling under them is intended—addressing people with these expressions without qualification or an accompanying indication identifying the specific meaning intended, deliberately postponing clarification until the time of need, does occur in language and in the Law. This is so when the addressees understand from contextual indications that there remains a question to ask, and that the speaker did not intend to confine himself to what he has already said.

وَعَلَى ذَلِكَ وَرَدَ قَوْلُهُ عَزَّ وَجَلَّ: {إِنَّ اللَّهَ يَأْمُرُكُمْ أَنْ تَذْبَحُوا بَقَرَةً} فَإِنَّهُمْ لَمْ يَزَالُوا يَسْأَلُونَ وَالْجَوَابُ يَرِدُ بِالتَّخْصِيصِ إِلَى أَنْ تَعَيَّنَتْ لَهُمُ الْبَقَرَةُ الْمَخْصُوصَةُ. فَأَمَّا إِذَا لَمْ يَعْلَمِ الْمُخَاطَبُونَ مِنْ قَرَائِنِ الْأَحْوَالِ أَنَّ هَهُنَا مَوْضِعًا لِلسُّؤَالِ فَذَلِكَ غَيْرُ وَاقِعٍ. وَإِنَّمَا سَاغَ مِثْلُ هَذَا فِي الْعَامِّ، وَلَمْ يَسُغْ فِي الْمُجْمَلِ، وَلَا فِي الْجِنْسِ الْأَوَّلِ مِنَ الظَّاهِرِ لِأَنَّ مَنْ عَرَفَ الشَّيْءَ بِأَمْرٍ كُلِّيٍّ فَقَدْ عَرَفَهُ بِوَجْهٍ مَا، مَعَ أَنَّهُ يَنْتَظِرُ مَعْرِفَتَهُ بِوَجْهٍ أَخَصَّ.

God's saying, mighty and majestic, 'God commands you to slaughter a cow,' was of this kind. They kept asking, and the answers supplied specifications until the particular cow was identified for them. If the addressees do not know from contextual indications that there is a question to ask, this does not occur. It is permissible with general wording, but not with indeterminate wording or the first kind of apparent wording, because someone who knows a thing through a universal description (كلي) knows it in some respect, while awaiting a more specific knowledge of it.

وَكَثِيرًا مَا تَكُونُ الْأَقَاوِيلُ الْمُؤَلَّفَةُ عَنْ مِثْلِ هَذِهِ أَبْيَنَ مِنَ الْأَسْمَاءِ أَوْ مُضْطَرًّا إِلَيْهَا فِيمَا لَمْ تَكُنْ لَهَا أَسْمَاءٌ، كَمَا اتَّفَقَ فِي الْبَقَرَةِ الْمَأْمُورِ بِذَبْحِهَا. وَعَلَى هَذَا تَجُوزُ الْمُخَاطَبَةُ بِالْأَسْمَاءِ الْعُرْفِيَّةِ قَبْلَ فَهْمِ الْمَعَانِي الَّتِي يَدُلُّ عَلَيْهَا بِتِلْكَ الْأَسْمَاءِ، اتِّكَالًا عَلَى أَنَّ الْمُخَاطَبِينَ يَعْلَمُونَ أَنَّ تِلْكَ الْأَسْمَاءَ تَدُلُّ عَلَى مَعَانٍ زَائِدَةٍ إِلَى مَا كَانَتْ تَدُلُّ عَلَيْهِ فِي الْوَضْعِ الْأَوَّلِ، وَفَائِدَةُ ذَلِكَ الْعَزْمُ عَلَى الْأَمْرِ بِتَأَخُّرِ الْبَيَانِ إِلَى وَقْتِ الْحَاجَةِ، كَالْأَمْرِ بِالزَّكَاةِ وَالْحَجِّ قَبْلَ وُجُوبِهِمَا.

Statements composed of such descriptions are often clearer than names, or indispensable for things that have no names, as with the cow they were commanded to slaughter. On this basis, terms established by specialised usage may be used before the meanings signified by them are understood, relying on the addressees' knowledge that those terms signify meanings additional to their original assignment. The benefit is to produce resolve to obey the command even while its detailed clarification is deferred until the time of need—as with commanding almsgiving and pilgrimage before they become obligatory.

وَإِذَا أَنْتَ تَصَفَّحْتَ الْأَشْيَاءَ الَّتِي يَحْتَجُّ بِهَا مَنْ يُجَوِّزُ تَأْخِيرَ الْبَيَانِ إِلَى وَقْتِ الْحَاجَةِ مِنْ غَيْرِ تَفْصِيلٍ وَجَدْتَهَا دَاخِلَةً تَحْتَ هَذِهِ الَّتِي عَدَدْنَاهَا، وَكَذَلِكَ إِذَا نَظَرْتَ إِلَى مَا يَحْتَجُّ بِهِ مَنْ ⟨لَا⟩ يُجَوِّزُهُ وَجَدْتَ ذَلِكَ إِنَّمَا هُوَ فِي الْمُجْمَلِ الْمَحْضِ الِاحْتِمَالِ، وَفِي الصِّنْفِ الْأَوَّلِ مِنَ الظَّاهِرِ. وَبِالْجُمْلَةِ فَكِلَا الرَّأْيَيْنِ إِذَا أُخِذَا بِإِطْلَاقٍ كَاذِبٌ بِالْجُزْءِ، عَلَى مَا مِنْ شَأْنِهَا أَنْ تَكْذِبَ الْآرَاءُ الْمُصَحَّحَةُ بِالِاسْتِقْرَاءِ الَّذِي لَا تُسْتَوْفَى فِيهِ جَمِيعُ الْجُزْئِيَّاتِ. فَأَمَّا أَنَّ الْبَيَانَ لَا يَتَأَخَّرُ عَنْ وَقْتِ الْحَاجَةِ فَذَلِكَ مَا لَا خِلَافَ فِيهِ.

If you examine the cases cited by those who permit delaying clarification until the time of need without distinguishing among cases, you will find them included in the classes we have enumerated. Likewise, if you examine the evidence cited by those who [do not] permit it, you will find that it concerns wholly indeterminate wording admitting alternatives, and the first kind of apparent wording. In general, both positions, taken without qualification, are partly false, as positions supported by an induction that does not exhaust all particulars are liable to be false. That clarification may not be delayed beyond the time of need, however, is undisputed.

وَإِذْ قُلْنَا فِي الْمُجْمَلِ وَالنَّصِّ، فَلْنَقُلْ فِي الظَّاهِرِ وَالْمُؤَوَّلِ.

Having discussed indeterminate and unambiguous wording, let us turn to apparent and interpreted wording.

N065 · textual. Bou Akl 2015 §194 (Arabic p.248, French p.249) restores the omitted negative (lā) in "those who do NOT permit postponing clarification". The earlier English supplied the negation in square brackets while the Arabic still lacked it; both columns now register the conjectural restoration.

N066 · translation. The quoted command is Qurʾān 2:67. Until the time of need (إلى) and beyond it (عن) are distinguished throughout, especially in the closing sentence on p. 107.

BA15-R05 · textual. The negative in the second contrasted view of postponed clarification is conjectural, but required for coherence. Bou Akl 2015 Arabic p.248, French p.249, commentary §194. Older English included a bracketed not; Arabic is now aligned.

G-B2-0348 · grammar. أسلوب القصر بـ«إنّما» — «غير واقع. وإنما ساغ مثل هذا في العام». [Restriction: only / nothing but; identify what is being limited by the construction.]

G-B2-0350 · grammar. «على أنَّ» بين التعلّق النحوي والاستدراك — «الأسماء، اتكالا على أن المخاطبين يعلمون أن تلك الأسماء». [The phrase may complete a preceding verb such as “argue that”, or introduce a qualification; check its governing clause rather than assuming “although”.]

SC2015-104 · textual. أ «وإذ قلنا في المجمل»؛ ع «وإذا قلنا في المجمل». إذ [temporal rationale for transition: now that we have discussed…] [Bou Akl 2015, Arabic p. 248, critical apparatus].

SC2015-105 · textual. أ «وفائدة ذلك العزم على الأمر بتأخر البيان إلى وقت الحاجة»؛ ع «وفائدة ذلك العزم على الأمر ويتأخر البيان إلى وقت الحاجة». باء الملابسة [resolve upon an obligation while its clarification is postponed], not a new independent statement [Bou Akl 2015, Arabic p. 248, critical apparatus].

164. Transfer through resemblance, relation, and indirect expression

R 164 · Bou Akl 196 · 1994 Arabic p. 107 · Bou Akl 2015 Arabic p. 250

وَالظَّاهِرُ كَمَا قُلْنَا مِنْ جِهَةِ الصِّيغَةِ قِسْمَانِ: أَحَدُهُمَا الْأَلْفَاظُ الْمَقُولَةُ مِنْ أَوَّلِ الْأَمْرِ عَلَى شَيْءٍ ثُمَّ اسْتُعِيرَتْ لِغَيْرِهِ لِتَشَابُهٍ بَيْنَهُمَا أَوْ لِتَعَلُّقٍ بِوَجْهٍ مِنْ أَوْجُهِ التَّعَلُّقِ. أَمَّا الَّذِي اسْتُعِيرَ لِتَشَابُهٍ بَيْنَهُمَا فَمِثْلُ تَسْمِيَتِهِمُ الْفِرَاشَ عُشًّا، وَأَمَّا الَّذِي اسْتُعِيرَ لِتَعَلُّقِهِ بِوَجْهٍ آخَرَ فَكَتَسْمِيَتِهِمُ النَّبْتَ نَدًى، لِأَنَّهُ عَنِ النَّدَى يَكُونُ. وَمِنْ هَذَا الصِّنْفِ الْكِنَايَةُ، كَتَعْبِيرِهِمْ عَنِ الرَّجِيعِ بِالْغَائِطِ وَعَنِ النِّكَاحِ بِالْمَسِيسِ.

As we have said, apparent wording in respect of form is of two kinds. The first comprises expressions originally applied to one thing, then transferred to another because of resemblance or some relation between them. Transfer through resemblance is exemplified by calling a bed a ‘nest’; transfer through another relation, by calling vegetation ‘dew,’ because it arises from dew. This class includes indirect expression, such as referring to excrement as ‘the low ground’ and sexual intercourse as ‘touching.’

SC2015-106 · textual. أ «أو لتعلق بوجه»؛ ع «أو تعلق بوجه». لام التعليل [on account of another connection between the two meanings] [Bou Akl 2015, Arabic p. 250, critical apparatus].

165. Substituting a universal for a particular, or the reverse

R 165 · Bou Akl 197 · 1994 Arabic p. 107 · Bou Akl 2015 Arabic p. 250

وَأَمَّا الْقِسْمُ الثَّانِي مِنْ أَقْسَامِ الْأَلْفَاظِ الظَّاهِرَةِ فَهِيَ الْمُبْدَلَةُ، وَنَعْنِي هَهُنَا بِالْمُبْدَلَةِ إِبْدَالَ الْكُلِّيِّ مَكَانَ الْجُزْئِيِّ، وَالْجُزْئِيِّ مَكَانَ الْكُلِّيِّ. وَعَلَى التَّحْقِيقِ فَالتَّبْدِيلُ يَلْحَقُ جَمِيعَ الْأَلْفَاظِ الْمُسْتَعَارَةِ، ثُمَّ تَنْقَسِمُ هَذِهِ الْأَقْسَامَ الَّتِي أَحْصَيْنَاهَا، لَكِنْ رَأَيْنَا أَنْ نَخُصَّ هَذَا الصِّنْفَ بِاسْمِ التَّبْدِيلِ، أَعْنِي الْكُلِّيَّ وَالْجُزْئِيَّ، وَإِنْ كَانَ فِي الْحَقِيقَةِ كُلُّ مُبْدَلٍ مُسْتَعَارٌ وَكُلُّ مُسْتَعَارٍ مُبْدَلٌ.

The second class of apparent expressions consists of substituted expressions. By substitution here we mean placing the universal (الكلي) in place of the particular (الجزئي), or the particular in place of the universal. Strictly speaking, substitution applies to all transferred expressions, which are then divided into the classes we have enumerated. We have nevertheless chosen to reserve the name ‘substitution’ (التبديل) for this class, namely the universal and the particular, although in reality everything substituted is transferred, and everything transferred is substituted.

N067 · translation. Ibdāl/tabdīl is translated “substitution” in accordance with the explicit definition at p. 107. The universal/particular relation is preserved throughout the following discussion.

G-B2-0352 · grammar. الشرط الوصلي بـ«وإن كان» — «الكلي والجزئي، وإن كان في الحقيقة كل مبدل مستعار». [Even if / although; the condition does not overturn the principal judgement.]

166. Why apparent meanings bind and interpretation needs proportionate proof

R 166 · Bou Akl 198–199 · 1994 Arabic p. 107, 108 · Bou Akl 2015 Arabic p. 250

وَهَذَانِ الصِّنْفَانِ إِذَا وَرَدَا بِإِطْلَاقٍ فِي الشَّرْعِ حُمِلَا عَلَى ظَاهِرِهِمَا حَتَّى يَدُلَّ الدَّلِيلُ عَلَى غَيْرِ ذَلِكَ، وَهُوَ حَمْلُهُمَا عَلَى الْمَعْنَى الْمُسْتَعَارِ، وَهُوَ الْمُسَمَّى تَأْوِيلًا. وَكَوْنُ هَذِهِ الْأَلْفَاظِ ظَاهِرَةً فِي هَذِهِ الدَّلَالَاتِ يُعْرَفُ ذَلِكَ ضَرُورَةً مِنَ اسْتِقْرَاءِ اللُّغَةِ. وَكَوْنُهَا دَلِيلًا شَرْعِيًّا يُعْرَفُ بِإِجْمَاعِ الصَّحَابَةِ عَلَى الْأَخْذِ بِالظَّوَاهِرِ، وَأَنَّ الشَّرْعَ لَمْ يَتَصَرَّفْ فِي ذَلِكَ بِوَضْعٍ عُرْفِيٍّ.

When these two classes occur without qualification in the Law, they are understood in their apparent meanings until evidence indicates otherwise—that is, indicates that they should be understood in a transferred meaning, which is what is called interpretation (تأويل). That these expressions have these apparent significations is known necessarily through a survey of language. Their authority as revealed proof is known through the Companions' consensus on adopting apparent meanings and through the fact that the Law has introduced no specialised convention altering this.

وَأَيْضًا فَلَوْ لَمْ نَصِرْ إِلَى الْأَخْذِ بِالظَّوَاهِرِ لَكَانَ سَيَبْطُلُ كَثِيرٌ مِنَ الْعِبَادَاتِ لِأَنَّ النُّصُوصَ مُعْوِزَةٌ جِدًّا. وَبِالْجُمْلَةِ الضَّرُورَةُ الدَّاعِيَةُ إِلَى الْعَمَلِ بِأَخْبَارِ الْآحَادِ هِيَ هَهُنَا الضَّرُورَةُ الدَّاعِيَةُ إِلَى الْعَمَلِ بِظَوَاهِرِ الْأَلْفَاظِ. وَهَذِهِ الْأَلْفَاظُ الظَّاهِرَةُ لَهَا مَرَاتِبُ فِي الظُّهُورِ. وَكُلَّمَا كَانَ اللَّفْظُ أَظْهَرَ احْتِيجَ فِي تَأْوِيلِهِ إِلَى دَلِيلٍ أَقْوَى، وَبِالْعَكْسِ مَتَى كَانَ اللَّفْظُ قَلِيلَ الظُّهُورِ انْصَرَفَ إِلَى التَّأْوِيلِ بِأَيْسَرِ دَلِيلٍ. وَلْنَضْرِبْ فِي ذَلِكَ ثَلَاثَةَ أَمْثِلَةٍ، وَاحِدًا فِي الرُّتْبَةِ الْأُولَى وَثَانِيًا فِي الرُّتْبَةِ الْوُسْطَى وَثَالِثًا فِي الْمَرْتَبَةِ الْأَخِيرَةِ، وَذَلِكَ فِي صِنْفَيِ الظَّاهِرِ جَمِيعًا.

Moreover, if we did not adopt apparent meanings, many acts of worship would lapse, because unambiguous texts (النصوص) are extremely scarce. The necessity calling for action upon solitary reports is here the necessity calling for action upon the apparent meanings of expressions. These expressions admit degrees of apparentness: the stronger an expression's apparent meaning, the stronger the evidence required to interpret it otherwise; conversely, the weaker its apparent meaning, the slighter the evidence sufficient for interpretation. Let us give three examples, one at the first degree, a second at the intermediate degree, and a third at the last degree, for both classes of apparent wording.

G-B2-0355 · grammar. «أداة شرط غير جازمة للتكرار — «في الظهور. وكلما كان اللفظ أظهر احتيج في». [Whenever / the more … the more …; recurrent conditional relation.]

SC2015-107 · textual. أ «وثالثا في المرتبة الأخيرة»؛ ع «وثالثا في الرتبة الأخيرة». المرتبة [source uses this fuller ordinal noun for the third example] [Bou Akl 2015, Arabic p. 252, critical apparatus].

167. Three degrees: clothing, the balance, and touching women

R 167 · Bou Akl 200–202 · 1994 Arabic p. 108 · Bou Akl 2015 Arabic p. 252

أَمَّا الَّذِي فِي الْمَرْتَبَةِ الْأُولَى مِنَ الْأَسْمَاءِ الْمُسْتَعَارَةِ فَمِثْلُ مَنْ حَمَلَ قَوْلَهُ عَزَّ وَجَلَّ: {يَا بَنِي آدَمَ قَدْ أَنْزَلْنَا عَلَيْكُمْ لِبَاسًا يُوَارِي سَوْءَاتِكُمْ} عَلَى أَنَّ اللِّبَاسَ هَهُنَا الْمَطَرُ، فَإِنَّ مِثْلَ هَذَا التَّأْوِيلِ يَحْتَاجُ إِلَى دَلِيلٍ فَإِنَّ اللِّبَاسَ ظَاهِرٌ جِدًّا فِيمَا يُوَارِي الْإِنْسَانَ. وَالثَّانِي مِثْلُ حَمْلِ قَوْلِهِ تَعَالَى: {لَقَدْ أَرْسَلْنَا رُسُلَنَا بِالْبَيِّنَاتِ وَأَنْزَلْنَا مَعَهُمُ الْكِتَابَ وَالْمِيزَانَ} عَلَى أَنَّ الْمِيزَانَ هَهُنَا الْعَدْلُ.

At the first degree among transferred terms is the interpretation of God's saying, mighty and majestic, 'Children of Adam, We have sent down upon you clothing to cover your nakedness,' as meaning rain by 'clothing.' Such an interpretation requires evidence, since 'clothing' very strongly signifies what covers a person. The second degree is exemplified by interpreting God's saying, 'We sent Our messengers with clear proofs and sent down with them the Book and the balance,' as meaning justice by 'the balance.'

وَالثَّالِثُ مِثْلُ قَوْلِهِ تَعَالَى: {أَوْ لَامَسْتُمُ النِّسَاءَ} فَإِنَّ بَعْضَ الْفُقَهَاءِ حَمَلَهُ عَلَى اللَّمْسِ الَّذِي بِالْيَدِ، وَحَمَلَهُ بَعْضُهُمْ عَلَى الْجِمَاعِ. وَهَذَا وَإِنْ كَانَ الظَّاهِرُ فِيهِ اللَّمْسَ بِالْيَدِ فَقَدْ يَحْتَمِلُ أَنْ يُرَادَ بِهِ الْجِمَاعُ احْتِمَالًا قَرِيبًا، إِذْ ذَلِكَ مِنْ عَادَةِ الْعَرَبِ، وَقَدْ كَنَى اللَّهُ تَعَالَى عَنِ الْجِمَاعِ بِالْمَسِيسِ، وَهُوَ فِي مَعْنَى اللَّمْسِ.

The third degree is exemplified by God's saying, 'Or you have touched women.' Some jurists understand this as touching with the hand; others as sexual intercourse. Although its apparent meaning is touching with the hand, it can quite plausibly mean intercourse, since this accords with Arab usage, and God Most High has referred indirectly to intercourse by massīs, which has the meaning of touching.

N068 · translation. The quotations are Qurʾān 7:26, 57:25, and 4:43/5:6. The three degrees concern the strength of an expression's apparent meaning and the evidence needed to depart from it.

G-B2-0358 · grammar. «على أنَّ» بين التعلّق النحوي والاستدراك — «يواري سوءاتكم} على أن اللباس ههنا المطر، فإن مثل». [The phrase may complete a preceding verb such as "argue that", or introduce a qualification; check its governing clause rather than assuming "although".]

G-B2-0359 · grammar. «الشرط الوصلي بـ«وإن كان» — «الجماع. وهذا وإن كان الظاهر فيه اللمس باليد فقد». [Even if / although; the condition does not overturn the principal judgement.]

G-B2-0360 · grammar. «الفاء الاستئنافية مع «إنَّ/إنْ/إنّما» — «ههنا المطر، فإن مثل هذا التأويل يحتاج إلى». [The initial فـ links the reasoning. Distinguish إنَّ (assertion), إنْ (condition) and إنّما (restriction) from the words and vowelled context.]

168. Established usage, ambiguity, and certain interpretation

R 168 · Bou Akl 203 · 1994 Arabic p. 108, 109 · Bou Akl 2015 Arabic p. 254

وَبِالْجُمْلَةِ فَمَرَاتِبُ الظُّهُورِ فِي الْأَلْفَاظِ إِنَّمَا هُوَ بِحَسَبِ كَثْرَةِ الِاسْتِعْمَالِ وَقِلَّتِهِ، فَإِنْ بَلَغَتْ كَثْرَةُ الِاسْتِعْمَالِ فِي الْمَعْنَى الَّذِي اسْتُعِيرَ لَهُ أَنْ يُعَادِلَ اسْتِعْمَالَهُ فِي الْمَعْنَى الْأَوَّلِ بَقِيَ اللَّفْظُ بَيْنَ الْأَوَّلِ وَالثَّانِي مُشْتَرَكًا وَمُجْمَلًا، وَمَهْمَا نَقَصَتْ كَثْرَةُ الِاسْتِعْمَالِ فِي الثَّانِي كَانَ أَظْهَرَ فِي الْأَوَّلِ.

In general, degrees of apparentness in expressions depend on frequency or rarity of use. If use in the transferred meaning becomes as frequent as use in the original meaning, the expression stands equivocally between the first and second meanings and is indeterminate. The less frequently it is used in the second meaning, the more apparent it is in the first.

وَرُبَّمَا كَانَ التَّأْوِيلُ فِي الظَّاهِرِ بَيِّنًا بِنَفْسِهِ، وَرُبَّمَا احْتِيجَ إِلَى تَبْيِينٍ، وَرُبَّمَا كَانَ ذَلِكَ ظَنًّا أَكْثَرِيًّا، وَرُبَّمَا كَانَ قَطْعًا. مِثَالُ مَا كَانَ مِنْ ذَلِكَ بَيِّنًا بِنَفْسِهِ وَكَانَ قَطْعًا قَوْلُهُمْ: «مَا زِلْنَا نَطَأُ السَّمَاءَ حَتَّى أَتَيْنَاكُمْ»، وَمِثَالُ مَا كَانَ مِنْ ذَلِكَ بَيِّنًا بِدَلِيلٍ قَطْعِيٍّ قَوْلُهُ تَعَالَى: {الرَّحْمَانُ عَلَى الْعَرْشِ اسْتَوَى} فَإِنَّهُ قَدْ عُلِمَ بِدَلِيلٍ قَطْعِيٍّ أَنَّ الِاسْتِوَاءَ هَهُنَا لَيْسَ هُوَ التَّمَكُّنَ.

Interpretation of apparent wording may be self-evident or may require an explanation; it may amount to predominant probability or to certainty. A self-evident and certain example is their saying, 'We kept treading the sky until we reached you.' An example made clear by decisive proof is God's saying, 'The All-Merciful is established over the Throne': decisive proof has established that 'being established' here is not occupying a place.

N069 · translation. The quotation is Qurʾān 20:5. Ibn Rushd states here what الاستواء is not—التمكن, occupying or being established in a place—without supplying a complete affirmative interpretation of the verse.

G-B2-0361 · grammar. «في الألفاظ إنما هو بحسب كثرة الاستعمال وقلته» — «أسلوب القصر بـ«إنّما». [Restriction: only / nothing but; identify what is being limited by the construction.]

169. General meaning is a real feature of language

R 169 · Bou Akl 204 · 1994 Arabic p. 109 · Bou Akl 2015 Arabic p. 254

وَأَمَّا الصِّنْفُ الثَّانِي مِنَ اللَّفْظِ الظَّاهِرِ، وَهُوَ الَّذِي سَمَّيْنَاهُ الْمُبْدَلَ، فَهُوَ أَيْضًا صِنْفَانِ: أَحَدُهُمَا اللَّفْظُ الْكُلِّيُّ، وَالثَّانِي اللَّفْظُ الْجُزْئِيُّ. وَلْنَجْعَلْ نَظَرَنَا مِنْ ذَلِكَ أَوَّلًا فِي الْكُلِّيِّ وَهُوَ الْعَامُّ. وَالْعَامُّ أَصْنَافُهُ كَثِيرَةٌ، وَقَدْ نَازَعَ قَوْمٌ فِي وُجُودِ مَعْنَى الْعُمُومِ فِي الْأَلْفَاظِ وَكَوْنِهِ إِذَا وَرَدَ مُطْلَقًا ⟨كَانَ⟩ ظَاهِرًا فِي حَصْرِ جَمِيعِ مَا يدخل تَحْتَهُ. وَلَا مَعْنَى لِمُنَازَعَتِهِمْ، فَإِنَّ الْأَمْرَ ظَاهِرٌ، بَلْ هُوَ شَيْءٌ مُشْتَرَكٌ لِجَمِيعِ الْأَلْسِنَةِ وَاللُّغَاتِ. وَالشَّرْعُ لَمْ يَتَصَرَّفْ فِي تَغْيِيرِهِ بِوَضْعٍ عُرْفِيٍّ. وَالْحُجَّةُ عَلَى كَوْنِهِ دَلِيلًا شَرْعِيًّا هِيَ الْحُجَّةُ عَلَى كَوْنِ الظَّاهِرِ بِمَا هُوَ ظَاهِرٌ دَلِيلًا شَرْعِيًّا. وَقَدْ تَقَدَّمَ ذَلِكَ.

The second class of apparent wording, which we called substituted wording, also has two kinds: universal wording (الكلي) and particular wording (الجزئي). Let us first examine the universal, which is the general (العام). General wording has many forms. Some dispute that expressions signify generality and that, when unqualified, they apparently encompass everything falling under them. Their objection has no basis: the matter is evident, and indeed shared by all tongues and languages. The Law has introduced no specialised convention changing it. The argument establishing its authority as revealed proof is the argument establishing the authority of apparent wording as such, which has already been given.

BA15-R06 · textual. Bou Akl 2015 Arabic p.254, French p.255 supplies a copula (kāna) in discussion of general wording whose unqualified use apparently encompasses its extension. This is predominantly grammatical rather than a new legal doctrine.

G-B2-0365 · grammar. الفاء الاستئنافية مع «إنَّ/إنْ/إنّما» — «معنى لمنازعتهم، فإن الأمر ظاهر، بل هو شيء». [The initial فـ links the reasoning. Distinguish إنَّ (assertion), إنْ (condition) and إنّما (restriction) from the words and vowelled context.]

BA-X108 · textual. قراءة [أ] عند بو عقل «يدخل» في موضع «يدل» من طبعة [ع]. [Escorial reading according to Bou Akl 2015, Arabic p. 254; the earlier edition reads differently.]

170. Forms of generality and their unequal apparent force

R 170 · Bou Akl 205–206 · 1994 Arabic p. 109 · Bou Akl 2015 Arabic p. 256

وَأَصْنَافُ هَذِهِ الْأَلْفَاظِ كَثِيرَةٌ: فَمِنْهَا أَسْمَاءُ الْجُمُوعِ، دَخَلَتْهَا الْأَلِفُ وَاللَّامُ أَوْ لَمْ تَدْخُلْهَا. وَمِنْهَا أَسْمَاءُ الْأَجْنَاسِ وَالْأَنْوَاعِ وَالْأَصْنَافِ إِذَا كَانَ فِيهَا الْأَلِفُ وَاللَّامُ وَلَمْ تَكُنْ فِي آخِرِهَا هَاءُ التَّأْنِيثِ مِثْلَ التَّمْرَةِ وَالنَّخْلَةِ وَالْمَرْأَةِ. وَمِنْهَا مَنْ وَمَا، إِذَا أُورِدَتْ ⟨لِلشَّرْطِ وَالْجَزَاءِ⟩، وَأَيْنَ وَمَتَى. وَمِنْهَا حُرُوفُ النَّفْيِ. وَمِنْهَا الْأَلْفَاظُ الْمُؤَكِّدَةُ كَقَوْلِهِمْ كُلُّهُمْ وَأَجْمَعُونَ.

These expressions have many forms. They include plural nouns, with or without the definite article; names of genera, species, and classes when they have the definite article and do not end in the feminine ending, such as ‘the fruit,’ ‘the date palm,’ and ‘the woman’; man and mā (‘whoever’ and ‘whatever’) when used ⟨in conditional and consequential clauses⟩, together with ayna and matā (‘wherever’ and ‘whenever’); negative particles; and emphatic expressions such as ‘all of them’ and ‘every one.’

وَهَذِهِ الْأَصْنَافُ إِذَا أُطْلِقَتْ إِطْلَاقًا حُمِلَتْ عَلَى الْأَكْثَرِ عَلَى عُمُومِهَا إِلَى أَنْ يَدُلَّ الدَّلِيلُ عَلَى تَخْصِيصِهَا، وَلَهَا أَيْضًا مَرَاتِبُ فِي الظُّهُورِ، كَمَا كَانَ الصِّنْفُ الْأَوَّلُ. وَلِأَدِلَّتِهَا أَيْضًا مَرَاتِبُ بِحَسَبِهَا لِأَنَّهُ أَبَدًا يُشْتَرَطُ فِي الدَّلِيلِ الْمُؤَوِّلِ أَنْ يَكُونَ أَقْوَى دَلَالَةً مِنْ صِيغَةِ اللَّفْظِ، مِثَالُ مَا مِنْهَا فِي:

When these forms are used without qualification, they are generally understood in their full generality until evidence establishes a specification. They, too, admit degrees of apparentness, as did the first class. Their interpretive proofs have corresponding degrees, because evidence for interpretation must always signify more strongly than the expression’s form. Examples at the respective degrees follow.

N070 · textual. The print at p. 109 excludes a final feminine ending, ولم تكن في آخرها هاء التأنيث, but immediately gives الثمرة والنخلة والمرأة, all with that ending. Both statement and examples are retained. The apparent internal inconsistency is not silently repaired by changing the examples or deleting the negative.

BA15-R07 · textual. The universality of man/mā here applies to their conditional-consequential construction; the 2015 text restores that specifying phrase. Arabic p.256, French p.257, commentary §205. A separate inherited problem concerning the examples of feminine endings is not resolved by this addition.

171. A remote restriction of the guardian-permission report

R 171 · Bou Akl 207 · 1994 Arabic p. 110 · Bou Akl 2015 Arabic p. 256

الْمَرْتَبَةِ الْأُولَى مِنَ الظُّهُورِ قَوْلُهُ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ «أَيُّمَا امْرَأَةٍ نَكَحَتْ بِغَيْرِ إِذْنِ وَلِيِّهَا فَنِكَاحُهَا بَاطِلٌ» حَمَلَهُ قَوْمٌ عَلَى الْأَمَةِ، فَلَمَّا لَمْ يَسُغْ لِقَوْلِهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ «فَلَهَا الْمَهْرُ وَإِنَّمَا مَهْرُ الْأَمَةِ لِسَيِّدِهَا» حَمَلُوهُ عَلَى الْمُكَاتَبَةِ، وَهَذَا يَبْعُدُ مِنْ جِهَةِ التَّأْوِيلِ.

At the first degree of apparentness is his saying, God bless him and grant him peace, ‘Any woman who marries without her guardian’s permission, her marriage is invalid.’ Some apply this to a slave woman. When that proved untenable because of his saying, God bless him and grant him peace, ‘She is entitled to the dower’—whereas a slave woman’s dower belongs to her master—they applied it to a slave woman under a contract for emancipation. This is a remote interpretation.

N071 · textual. On p. 110 the quotation marks run around فلها المهر وإنما مهر الأمة لسيدها. The English distinguishes the quoted ruling ‘She is entitled to the dower’ from the explanatory reason that follows, while retaining every clause.

G-B2-0368 · grammar. حملوه على «فلها المهر وإنما مهر الأمة لسيدها» — «إنّما» بـ«أسلوب القصر». [Restriction: only / nothing but; identify what is being limited by the construction.]

172. Restricting the requirement of a nightly fasting intention

R 172 · Bou Akl 208 · 1994 Arabic p. 110 · Bou Akl 2015 Arabic p. 256

الْمَرْتَبَةِ الثَّانِيَةِ قَوْلُهُ عَلَيْهِ السَّلَامُ: «لَا صِيَامَ لِمَنْ لَمْ يُبَيِّتِ الصِّيَامَ» حَمَلَهُ قَوْمٌ عَلَى الْقَضَاءِ وَالنَّذْرِ وَهَذَا التَّأْوِيلُ أَقْرَبُ مِنَ الْأَوَّلِ.

The second degree is his saying, peace be upon him, ‘There is no fasting for someone who has not resolved upon the fast during the night.’ Some apply this to a fast making up a missed obligation and to a vowed fast. This interpretation is closer than the first.

173. Does the tithe report include vegetables?

R 173 · Bou Akl 209 · 1994 Arabic p. 110 · Bou Akl 2015 Arabic p. 258

الْمَرْتَبَةِ الثَّالِثَةِ قَوْلُهُ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ: «فِيمَا سَقَتِ السَّمَاءُ الْعُشْرُ وَفِيمَا سُقِيَ بِالنَّضْحِ نِصْفُ الْعُشْرِ» حَمَلَهُ قَوْمٌ عَلَى كُلِّ شَيْءٍ حَتَّى أَخَذُوا الزَّكَاةَ مِنَ الْخُضَرِ، وَقَالَ آخَرُونَ هُوَ مَقْصُورٌ عَلَى سَائِرِ الْحُبُوبِ الَّتِي تُؤْخَذُ مِنْهَا الزَّكَاةُ.

The third degree is his saying, God bless him and grant him peace, ‘On what the sky waters, a tenth; on what is irrigated by drawing water, half a tenth.’ Some apply this to everything, even taking almsgiving from vegetables. Others say that it is confined to the various grains from which almsgiving is taken.

174. General wording with a known or unknown specific intention

R 174 · Bou Akl 210 · 1994 Arabic p. 110 · Bou Akl 2015 Arabic p. 258

فَهَذِهِ أَصْنَافُ أَلْفَاظِ الْعُمُومِ وَمَرَاتِبُهَا فِي الظُّهُورِ. وَرُبَّمَا وَرَدَ اللَّفْظُ الْعَامُّ وَالْمُرَادُ بِهِ الْخَاصُّ، وَيَكُونُ ذَلِكَ فِيهِ بَيِّنًا مِنْ أَوَّلِ الْأَمْرِ، كَقَوْلِ الْقَائِلِ عِنْدَمَا يَضْرِبُ وَلَدَهُ لَيْسَ فِي الْأَوْلَادِ خَيْرٌ. وَرُبَّمَا كَانَ ذَلِكَ ظَنًّا أَكْثَرِيًّا، وَرُبَّمَا كَانَ قَطْعِيًّا، وَذَلِكَ بِحَسَبِ قَرِينَةٍ قَرِينَةٍ. وَرُبَّمَا تَبَيَّنَ ذَلِكَ بِدَلِيلٍ. وَالدَّلِيلُ أَيْضًا إِمَّا قَطْعِيٌّ وَإِمَّا أَكْثَرِيٌّ، وَرُبَّمَا عَلِمْنَا أَنَّهُ عَامٌّ أُرِيدَ بِهِ الْخَاصُّ، وَلَمْ نَعْلَمْ أَيُّ خَاصٍّ هُوَ، وَرُبَّمَا كَانَتْ قُوَّتُهُ قُوَّةَ الْمُجْمَلِ.

These are the kinds of general expressions and their degrees of apparentness. Sometimes general wording (العام) occurs with a specific meaning (الخاص) intended, and this is clear from the outset—as when someone beating his child says, ‘There is no good in children.’ This understanding may be predominantly probable or certain, according to the particular indication. It may also become clear through proof, which itself may be decisive or predominantly probable. Sometimes we know that general wording is intended specifically without knowing which specific meaning is intended; its force may then be that of indeterminate wording (المجمل).

175. Disputed boundaries of generality

R 175 · Bou Akl 211 · 1994 Arabic p. 110 · Bou Akl 2015 Arabic p. 258

وَقَدْ بَقِيَ عَلَيْنَا أَنْ نَقُولَ فِيمَا يُظَنُّ بِهِ مِنْ أَصْنَافِ الْأَلْفَاظِ أَنَّ لَهَا عُمُومًا، وَلَيْسَ لَهَا عُمُومٌ، أَوْ فِيمَا يُظَنُّ مِنْهَا أَنْ لَيْسَ لَهَا عُمُومٌ وَلَهَا عُمُومٌ، وَنَرْسُمَ فِي ذَلِكَ مَسَائِلَ:

It remains to discuss kinds of expressions thought to have general scope when they do not, or thought not to have general scope when they do. We shall set out several questions on this.

176. A particular occasion does not confine a general answer

R 176 · Bou Akl 212 · 1994 Arabic p. 111 · Bou Akl 2015 Arabic p. 258

مَسْأَلَةٌ: الْعُمُومُ فِي الْأَلْفَاظِ إِنَّمَا يَتَصَوَّرُ إِذَا كَانَ مِنْ لَفْظِ الشَّارِعِ عَلَى سَبِيلِ الِابْتِدَاءِ، أَوْ وَرَدَ عِنْدَ السُّؤَالِ عَلَى سَبَبٍ خَاصٍّ فَأُخْرِجَ مَخْرَجَ الْعَامِّ. مِثْلَ قَوْلِهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ، وَقَدْ سُئِلَ عَنْ بِئْرِ بُضَاعَةَ فَقَالَ: «خَلَقَ اللَّهُ الْمَاءَ طَهُورًا لَا يُنَجِّسُهُ شَيْءٌ» فَإِنَّ هَذَا الْقَوْلَ لَيْسَ يُحْمَلُ عَلَى بِئْرِ بُضَاعَةَ وَحْدَهُ، بَلْ عَلَى جَمِيعِ الْمِيَاهِ. وَقَدْ رَأَى قَوْمٌ أَنَّ مِثْلَ هَذَا الْقَوْلِ خَاصٌّ وَيُقْتَصَرُ بِهِ عَنِ الشَّيْءِ الْمَسْؤُولِ عَنْهُ، وَإِنْ أُخْرِجَ مَخْرَجَ الْعُمُومِ. وَلَا مَعْنَى لِقَوْلِهِمْ، فَإِنَّ الْأَمْرَ فِي ذَلِكَ بَيِّنٌ.

Question. Generality in wording occurs when the Lawgiver uses it in an independent statement, or in reply to a question arising from a specific circumstance but frames the answer generally. For example, when asked about the well of Buḍāʿa, he said, God bless him and grant him peace, ‘God created water as purifying; nothing renders it impure.’ This statement is understood to concern all water, not only that well. Some regard such a statement as specific and confine it to the thing asked about, even when it is framed generally. Their position has no basis, for the matter is clear.

G-B2-0376 · grammar. أسلوب القصر بـ«إنّما» — «في الألفاظ إنما يتصور إذا كان من لفظ». [Restriction: only / nothing but; identify what is being limited by the construction.]

177. Equivocation is not the generality of a universal

R 177 · Bou Akl 213 · 1994 Arabic p. 111 · Bou Akl 2015 Arabic p. 260

مَسْأَلَةٌ: لَيْسَ لِلِاسْمِ الْمُشْتَرَكِ عُمُومٌ لِجَمِيعِ مَا يُقَالُ عَلَيْهِ، وَإِنْ كَانَ قَدْ يَرَى ذَلِكَ بَعْضُهُمْ مِثْلَ مَنْ حَمَلَ قَوْلَهُ تَعَالَى: {أَوْ لَامَسْتُمُ النِّسَاءَ} عَلَى الْأَمْرَيْنِ جَمِيعًا، أَعْنِي النِّكَاحَ وَاللَّمْسَ بِالْجَارِحَةِ الَّتِي هِيَ الْيَدُ. وَهَذَا يَتَبَيَّنُ خِلَافُهُ بِاسْتِقْرَاءِ كَلَامِ الْعَرَبِ، فَإِنَّهُمْ لَيْسَ يُطْلِقُونَ فِي مُخَاطَبَتِهِمُ اسْمَ الْعَيْنِ مَثَلًا وَيُرِيدُونَ بِهِ أَنْ يَفْهَمَ السَّامِعُ عَنْهُمْ جَمِيعَ الْمَعَانِي الَّتِي يُقَالُ عَلَيْهَا اسْمُ الْعَيْنِ. وَأَبْيَنُ مَا يَظْهَرُ ذَلِكَ فِي الْأَسْمَاءِ الْمَقُولَةِ عَلَى الْمُتَضَادَّاتِ، اللَّهُمَّ إِلَّا أَنْ يَدَّعِيَ مُدَّعٍ أَنَّ ذَلِكَ مَفْهُومٌ بِالْعُرْفِ الشَّرْعِيِّ، لَكِنْ إِنِ ادَّعَى ذَلِكَ فَعَلَيْهِ إِثْبَاتُهُ.

Question. An equivocal term does not have general scope encompassing everything to which it applies. Some hold otherwise, as do those who understand ‘Or you have touched women’ to cover both intercourse and touching with the bodily member, the hand. A survey of Arabic speech shows the contrary: Arabs do not use the term ʿayn, for example, intending their hearer to understand all the meanings to which it applies. This is clearest in terms used for opposites. Someone might claim that such an inclusive meaning is understood through a specialised legal convention, but anyone making that claim must establish it.

N072 · translation. The quotation is Qurʾān 4:43/5:6. The issue is whether equivocal meanings are jointly intended, distinguished from the extension of a universal term to the particulars under it.

G-B2-0380 · grammar. «المتضادات، اللهم إلا أن يدعي مدع أن ذلك مفهوم» — «إلّا أنّ» بـ«استثناء أو استدراك». [Except that / however; the contextual function determines which qualification is intended.]

G-B2-0381 · grammar. «يقال عليه، وإن كان قد يرى ذلك بعضهم مثل» — «وإن كان» بـ«الشرط الوصلي». [Even if / although; the condition does not overturn the principal judgement.]

178. Who is included by “people” and by a masculine plural?

R 178 · Bou Akl 214 · 1994 Arabic p. 111 · Bou Akl 2015 Arabic p. 260

مَسْأَلَةٌ: يَدْخُلُ تَحْتَ لَفْظِ النَّاسِ وَالْإِنْسَانِ الْعَبْدُ وَالْكَافِرُ وَالذَّكَرُ وَالْأُنْثَى. وَأَمَّا الْمُؤْمِنُونَ فَيَدْخُلُ تَحْتَهُ الْعَبْدُ وَلَا يَدْخُلُ تَحْتَهُ النِّسَاءُ، إِذْ هِيَ صِيغَةٌ خَاصَّةٌ بِالْجَمْعِ الْمُذَكَّرِ.

Question. The expressions ‘people’ and ‘human being’ include the slave, the unbeliever, the male, and the female. ‘The believers’ includes the slave but does not include women, since its form is specifically a masculine plural.

N073 · grammar. The expression خَاصَّةٌ بِجَمْعِ الْمُذَكَّرِ concerns the grammatical masculine plural as analysed here; it should not be generalized without qualification to every plural expression.

BA-T110 · textual. قراءة الإسكوريال كما أثبتها بو عقل: «بالجمع»، مقابل «بجمع» في طبعة العلوي. (Escorial reading as reported by Bou Akl, 2015, Arabic p. 260; variant against al-ʿAlawī.)

179. Can a plural be restricted below its minimum?

R 179 · Bou Akl 215 · 1994 Arabic p. 111 · Bou Akl 2015 Arabic p. 260

مَسْأَلَةٌ: صَرْفُ الْعُمُومِ إِلَى غَيْرِ الِاسْتِغْرَاقِ جَائِزٌ. وَأَمَّا رَدُّهُ إِلَى مَا دُونَ أَقَلِّ الْجَمْعِ عِنْدَ مَنْ يَرَى أَنَّ أَقَلَّ مَا يُدَلُّ بِلَفْظِ الْجَمْعِ عَلَيْهِ اثْنَانِ، فَزَعَمَ أَبُو حَامِدٍ أَنَّ ذَلِكَ مُمْتَنِعٌ، وَفِيهِ نَظَرٌ.

Question. General wording may be understood without exhaustive inclusion. Abū Ḥāmid claims, however, that it cannot be reduced to less than the minimum denoted by a plural, on the view that the least number a plural denotes is two. This requires examination.

N074 · textual. The print has الْجَمِيع in §§179–180 where the discussion concerns the grammatical plural (جَمْع), not merely the lexical expression “all.” Its consonants are retained; the English identifies the grammatical subject from the surrounding references to dual and plural forms.

BA-F111 · textual. طبعة بو عقل، شاهد الإسكوريال [أ]: «بلفظ الجمع عليه اثنان»؛ مقابل قراءة العلوي [ع]: «بلفظ الجميع عليه اثنان». الجمع مصطلح نحويّ لا «الجميع» بمعنى الجميع الكلّي. [Bou Akl 2015, facing Arabic–French edition; this is a reported manuscript reading, not an independent examination of Escorial 1235.]

180. Three is the normal plural; two or one requires a clue

R 180 · Bou Akl 216 · 1994 Arabic p. 112 · Bou Akl 2015 Arabic p. 260

مَسْأَلَةٌ: لَفْظُ الْجَمِيعِ إِذَا وَرَدَ مُطْلَقًا فَأَقَلُّ مَا يَتَنَاوَلُ الثَّلَاثَةُ فَمَا فَوْقَهَا، وَهُوَ فِيهَا أَظْهَرُ مِنْهُ فِي الِاثْنَيْنِ، وَإِنَّمَا يُحْمَلُ عَلَى الِاثْنَيْنِ بِقَرِينَةٍ. وَالْعَجَبُ مِمَّنْ يَحْمِلُ أَلْفَاظَ الْجُمُوعِ إِذَا وَرَدَتْ مُطْلَقَةً عَلَى الِاثْنَيْنِ، مَعَ أَنَّ لِلِاثْنَيْنِ صِيغَةً خَاصَّةً. فَأَمَّا أَنَّ لَفْظَ الْجَمْعِ قَدْ يُتَجَوَّزُ فِيهِ وَيُرَادُ بِهِ الِاثْنَانِ، فَذَلِكَ غَيْرُ مَدْفُوعٍ. لَكِنْ عَلَى جِهَةِ الْإِبْدَالِ وَالتَّجَوُّزِ عَلَى نَحْوِ مَا يُفْعَلُ فِي سَائِرِ الْأَلْفَاظِ الزَّاتِبَةِ عَلَى شَيْءٍ مَا. وَإِذَا أَنْتَ تَصَفَّحْتَ الْمَوَاضِعَ الَّتِي يَحْتَجُّ بِهَا مَنْ يُجَوِّزُ ذَلِكَ وَجَدْتَهَا مِنْ هَذَا الْقَبِيلِ.

Question. A plural expression, when unqualified, denotes at least three or more, and is more apparent in that sense than in the sense of two; it is understood as two only through an accompanying indication. It is remarkable that anyone should understand unqualified plural expressions as denoting two, when two has its own distinctive form. That a plural may be used figuratively to mean two is not denied, but this is substitution and extended usage, like what occurs with other expressions conventionally assigned to something. Examining the cases cited by those who permit this shows them to be of that kind.

لَكِنْ قَدْ جَرَتْ عَادَةُ النُّظَّارِ فِي هَذَا الشَّأْنِ عِنْدَمَا يَتَكَلَّمُونَ فِي دَلَالَاتِ الْأَلْفَاظِ أَلَّا يُفَرِّقُوا بَيْنَ مَا تَدُلُّ عَلَيْهِ الْأَلْفَاظُ دَلَالَةً رَاتِبَةً، وَبَيْنَ مَا تَدُلُّ عَلَيْهِ تَجَوُّزًا وَاسْتِعَارَةً. فَلِذَلِكَ نَرَاهُمْ يَقُولُونَ إِنَّ لَفْظَ الْجَمْعِ يَنْطَلِقُ عَلَى الِاثْنَيْنِ كَمَا يَنْطَلِقُ عَلَى الثَّلَاثَةِ فَمَا فَوْقَهَا. وَهَذَا هُوَ الَّذِي غَلَّطَ النَّاظِرِينَ فِي هَذِهِ الصِّنَاعَةِ فِي هَذِهِ الْمَسْأَلَةِ عِنْدَمَا يَحْتَجُّونَ فِي ذَلِكَ بِقَوْلِ سِيبَوَيْهِ وَغَيْرِهِ مِنَ النَّحْوِيِّينَ، وَبِمَا وَرَدَ مِنْ ذَلِكَ فِي كَلَامِ الْعَرَبِ.

Investigators in this field, however, customarily fail, when discussing verbal signification, to distinguish an expression's established signification from what it signifies by extended use and transfer. Thus we see them saying that a plural applies to two just as it applies to three or more. This is what has misled those investigating this question in this discipline when they appeal to Sībawayh and other grammarians, and to examples occurring in Arabic speech.

وَلَيْسَ هَذَا مَوْجُودًا وَحْدَهُ فِي كَلَامِهِمْ، أَعْنِي أَنْ يَدُلَّ عَلَى الِاثْنَيْنِ بِصِيغَةِ الْجَمْعِ. لَكِنْ قَدْ يَدُلُّ بِذَلِكَ عَلَى الْوَاحِدِ وَإِنَّمَا يُخْرِجُونَ ذَلِكَ مَخْرَجَ التَّعْظِيمِ كَمَا يَقُولُونَ هُوَ كُلُّ النَّاسِ، وَهُوَ الْفَتَى كُلُّ الْفَتَى.

Nor is this alone found in their speech—I mean using a plural form to signify two. They may also use it to signify one, but do so by way of magnification, as when they say, 'He is all people,' or 'He is the young man, the whole of a young man.'

G-B2-0383 · grammar. أسلوب القصر بـ«إنّما» — «في الاثنين، وإنما يحمل على الاثنين بقرينة. والعجب». [Restriction: only / nothing but; identify what is being limited by the construction.]

181. Specification or contradiction? The importance of chronology

R 181 · Bou Akl 217–218 · 1994 Arabic p. 112, 113 · Bou Akl 2015 Arabic p. 262

وَلِأَنَّ هَذِهِ الْأَلْفَاظَ الْعَامَّةَ كَمَا تَقَدَّمَ قَدْ تَرِدُ وَالْمُرَادُ بِهَا التَّخْصِيصُ، فَرُبَّمَا كَانَ ذَلِكَ فِيهَا بَيِّنًا مِنْ أَوَّلِ الْأَمْرِ، وَرُبَّمَا لَمْ يَكُنْ بَيِّنًا، بَلْ يُحْتَاجُ فِي ذَلِكَ إِلَى دَلِيلٍ، وَذَلِكَ إِمَّا لَفْظٌ وَإِمَّا فِعْلٌ وَإِمَّا إِقْرَارٌ أَوْ وَاحِدٌ مِنَ الْأَدِلَّةِ الْمُسْتَعْمَلَةِ فِي هَذِهِ الصِّنَاعَةِ فَيَنْبَغِي إِذَا أُرِيدَ الْمَصِيرُ إِلَى تَخْصِيصِ الْعَامِّ بِوَاحِدٍ وَاحِدٍ مِنْهَا أَنْ نَنْظُرَ إِلَى أَيِّهَا أَقْوَى رُتْبَةً فِي غَلَبَةِ الظَّنِّ إِلَيْهِ.

As explained earlier, these general expressions may occur with a specific meaning intended. Sometimes this is clear from the outset; sometimes it is not and requires evidence: wording, an action, an approval, or one of the other proofs used in this discipline. Accordingly, when one seeks to specify general wording through any of these, one must consider which has the stronger rank in producing predominant probability.

وَقَدِ اخْتَلَفَ النَّاسُ فِي تَخْصِيصِ الْعَامِّ بِغَيْرِهِ مِنْ هَذِهِ الْأَدِلَّةِ الشَّرْعِيَّةِ، فَذَهَبَ بَعْضُهُمْ أَنَّ الْعَامَّ إِذَا وَرَدَ فِي شَيْءٍ ثُمَّ وَرَدَ تَخْصِيصُهُ، وَذَلِكَ إِمَّا بِصِيغَةِ لَفْظٍ أَوْ مَفْهُومٍ أَوْ بِفِعْلٍ أَوْ إِقْرَارٍ، أَنَّ ذَلِكَ يَجْرِي مَجْرَى التَّعَارُضِ، لِأَنَّهُ جَائِزٌ مَثَلًا أَنْ يَرِدَ الْعَامُّ مُتَأَخِّرًا عَنِ الْمُخَصِّصِ، سَوَاءٌ كَانَ لَفْظًا أَوْ فِعْلًا أَوْ إِقْرَارًا، فَيَكُونَ وُرُودُ الْعَامِّ نَسْخًا لَهُ، إِلَّا أَنْ يُعْلَمَ أَنَّ التَّخْصِيصَ وَرَدَ بَعْدَ التَّعْمِيمِ عَلَى جِهَةِ تَأْخِيرِ الْبَيَانِ إِلَى وَقْتِ الْحَاجَةِ. وَإِلَى هَذَا ذَهَبَ دَاوُدُ وَأَصْحَابُهُ.

Opinions differ concerning the specification of general wording through these other revealed proofs. Some hold that when a general statement concerning something is received together with a specification—whether through verbal form, understood import, action, or approval—the two have the status of conflicting evidence. The general statement may, for example, have come later than the specifying evidence, whether wording, action, or approval, and thus abrogate it, unless it is known that the specification followed the general statement as clarification delayed until the time of need. This is the position of Dāwūd and his followers.

N075 · translation. The transition لِغَيْرِهِ مِنْ هَذِهِ الْأَدِلَّةِ الشَّرْعِيَّةِ، فَذَهَبَ بَعْضُهُمْ establishes that the following argument about conflicting evidence is a position being reported, not necessarily an assertion in Ibn Rushd's own voice.

BA-T112 · textual. قراءة الإسكوريال كما أثبتها بو عقل: «بغيره»، مقابل «لغيره» في طبعة العلوي. (Escorial reading as reported by Bou Akl, 2015, Arabic p. 262; variant against al-ʿAlawī.)

G-B2-0387 · grammar. «أسلوب التسوية — «عن المخصص، سواء كان لفظا أو فعلا أو. [Whether one alternative or another; both possibilities fall under the same assessment.]

G-B2-0388 · grammar. «استثناء أو استدراك بـ«إلّا أنّ» — «نسخا له، إلا أن يعلم أن التخصيص ورد بعد». [Except that / however; the contextual function determines which qualification is intended.]

182. Specific evidence can govern without a known chronological order

R 182 · Bou Akl 219 · 1994 Arabic p. 113 · Bou Akl 2015 Arabic p. 264

وَقَدِ احْتَجَّ مَنْ أَجَازَ تَخْصِيصَ الْعَامِّ بِمِثْلِ هَذِهِ الْأَدِلَّةِ دُونَ أَنْ يُعْلَمَ الْمُتَقَدِّمُ مِنْهَا وَالْمُتَأَخِّرُ بِمَصِيرِ الصَّحَابَةِ إِلَى ذَلِكَ، وَحُكْمِهِمْ بِالْخَاصِّ عَلَى الْعَامِّ، فَيَكُونُ عَلَى رَأْيِ هَؤُلَاءِ حَالَةُ الْعَامِّ مَعَ الْخَاصِّ إِحْدَى حَالَتَيْنِ: إِمَّا أَنْ يَرِدَ اللَّفْظُ الْعَامُّ وَقَدْ تَقَدَّمَهُ الْخَاصُّ، فَيَكُونَ ذَلِكَ قَرِينَةً يُخَصَّصُ بِهَا الْعَامُّ لِاحْتِمَالِ اللَّفْظِ لِذَلِكَ. وَإِمَّا أَنْ يَرِدَ الْخَاصُّ بَعْدَ الْعَامِّ فَيَكُونَ مَعْمُولًا عَلَيْهِ.

Those who permit specifying general wording through such proofs without knowing their chronological order appeal to the Companions' practice of doing so and of making the specific govern the general. On this view, the general and specific have one of two relations: either the general expression comes after the specific, which then serves as an indication specifying the general, since the wording admits this; or the specific comes after the general and is acted upon.

وَبِالْجُمْلَةِ كَمَا قُلْنَا فَيَنْبَغِي لِمَنْ يُجَوِّزُ التَّخْصِيصَ بِمِثْلِ هَذِهِ الْأَدِلَّةِ أَنْ يَصِيرَ إِلَى أَقْوَاهَا رُتْبَةً فِي غَلَبَةِ الظَّنِّ. وَهَذَا النَّوْعُ مِنْ غَلَبَةِ الظَّنِّ قَدْ يَقَعُ مِنْ جِهَةِ الْأَلْفَاظِ، وَمِنْ جِهَةِ النَّقْلِ، كَمَنْ يُجِيزُ تَخْصِيصَ الْعَامِّ بِالنَّصِّ وَيَمْنَعُهُ فِي الْقُرْآنِ لِكَوْنِ الْقُرْآنِ مِمَّا ثَبَتَ تَوَاتُرًا، هَذَا إِذَا كَانَ الْخَاصُّ وَارِدًا بِطُرُقِ الْآحَادِ.

In general, as we have said, whoever permits specification through such proofs should follow whichever ranks highest in predominant probability. This predominance may arise from the wording or from its transmission. Thus someone may permit specifying general wording through an unambiguous text, yet refuse this in the Qurʾān because the Qurʾān is established by mass transmission—when the specifying text is transmitted through solitary routes.

183. Why an exception must accompany its statement

R 183 · Bou Akl 220 · 1994 Arabic p. 113 · Bou Akl 2015 Arabic p. 264

وَلِأَنَّ الِاسْتِثْنَاءَ تَخْصِيصٌ مَا لِلْعَامِّ، إِلَّا أَنَّ الْفَرْقَ بَيْنَهُ وَبَيْنَ التَّخْصِيصِ أَنَّهُ لَا يَرِدُ مُنْفَرِدًا عَنِ الْمُسْتَثْنَى. وَلِذَلِكَ لَا مَعْنَى لِقَوْلِ مَنْ أَجَازَ تَأْخِيرَ الِاسْتِثْنَاءِ، فَقَدْ يَنْبَغِي أَنْ نَقُولَ فِي ذَلِكَ: وَصِيَغُ الِاسْتِثْنَاءِ مَعْرُوفَةٌ. فَأَمَّا أَصْنَافُهُ الَّتِي يَجِبُ أَنْ نَنْظُرَ فِيهَا هَهُنَا فَهِيَ هَذِهِ:

Exception is a kind of specification of general wording, but differs from specification in that it does not occur separately from the expression to which it belongs. There is therefore no basis for permitting an exception to be postponed. We should discuss this. The forms of exception are well known; the kinds that require examination here are the following.

N076 · textual. At p. 113 the edition prints عن المستثنى, without منه. ‘The expression to which it belongs’ renders the attachment required by the argument, without silently adding منه to the Arabic.

G-B2-0392 · grammar. «ما للعام، إلا أن الفرق بينه وبين التخصيص أنه — «إلّا أنّ» استثناء أو استدراك بـ». [Except that / however; the contextual function determines which qualification is intended.]

G-B2-0393 · grammar. «ما للعام، إلا أن الفرق بينه وبين التخصيص — «إِلَّا أَنَّ» الاستدراك بـ». [“Except that”: introduces the relevant difference between an exception and specification; it does not make the preceding claim universally exclusive.]

184. Connected and disconnected exceptions; one or several sentences

R 184 · Bou Akl 221 · 1994 Arabic p. 113, 114 · Bou Akl 2015 Arabic p. 264

الِاسْتِثْنَاءُ مِنْهُ مُتَّصِلٌ، وَهُوَ الَّذِي الْمُسْتَثْنَى فِيهِ مِنْ جِنْسِ الْمُسْتَثْنَى مِنْهُ، وَمِنْهُ مَقْطُوعٌ، وَهُوَ الَّذِي الْمُسْتَثْنَى فِيهِ مِنْ غَيْرِ جِنْسِ الْمُسْتَثْنَى مِنْهُ. وَهَذَا يُسَمِّيهِ أَهْلُ اللِّسَانِ بِالِاسْتِثْنَاءِ الْمُتَقَطِّعِ. وَأَيْضًا مِنَ الِاسْتِثْنَاءِ مَا يَرِدُ بَعْدَ جُمْلَةٍ وَاحِدَةٍ مُفِيدَةٍ، وَمِنْهُ مَا يَرِدُ بَعْدَ جُمَلٍ. وَنَحْنُ نَنْظُرُ فِي هَذَيْنِ الصِّنْفَيْنِ جَمِيعًا فَنَقُولُ:

An exception may be connected, where the thing excepted belongs to the same genus as that from which it is excepted; or disconnected, where it belongs to a different genus. Language specialists call the latter a discontinuous exception. An exception may also follow a single complete sentence, or several sentences. We shall examine both these divisions.

185. How can an exception belong to another genus?

R 185 · Bou Akl 222 · 1994 Arabic p. 114, 115 · Bou Akl 2015 Arabic p. 264

إِنَّ الِاسْتِثْنَاءَ الَّذِي مِنْ جِنْسِ الْمُسْتَثْنَى مِنْهُ مِمَّا لَا خِلَافَ فِيهِ. وَإِنَّمَا الْخِلَافُ فِي وُقُوعِ الْمُسْتَثْنَى مِنْ غَيْرِ جِنْسِ الْمُسْتَثْنَى مِنْهُ. وَهَذَا قَدْ مَنَعَهُ قَوْمٌ، وَقَالُوا لَا مَعْنَى لِاسْتِثْنَاءِ مَا لَمْ يَتَضَمَّنْهُ الْقَوْلُ الْمُتَقَدِّمُ، وَتَسْمِيَةُ مِثْلِ هَذَا اسْتِثْنَاءً هَذْرٌ. وَأَمَّا الَّذِينَ أَجَازُوهُ فَقَدْ تَمَسَّكُوا بِوُقُوعِ ذَلِكَ لُغَةً، مِنْ ذَلِكَ قَوْلُهُ تَعَالَى: {فَإِنَّهُمْ عَدُوٌّ لِي إِلَّا رَبَّ الْعَالَمِينَ}، وَقَوْلُهُ تَعَالَى: {وَلَا تَأْكُلُوا أَمْوَالَكُمْ بَيْنَكُمْ بِالْبَاطِلِ إِلَّا أَنْ تَكُونَ تِجَارَةً حَاضِرَةً}.

There is no disagreement over an exception belonging to the same genus as that from which it is excepted. Disagreement concerns an exception belonging to another genus. Some reject it, saying that there is no sense in excepting what the preceding statement did not include, and that calling such a thing an exception is idle speech. Those who permit it appeal to its occurrence in language, as in God's sayings, 'For they are enemies to me, except the Lord of the worlds,' and 'Do not consume your wealth among yourselves wrongfully, except that it be an immediate transaction.'

وَفِي مِثْلِ هَذَا قَوْلُ الشَّاعِرِ: «وَمَا بِالرَّبْعِ مِنْ أَحَدٍ إِلَّا الْأَوَارِيَّ». وَالْأَوَارِيُّ لَيْسَ يَنْطَلِقُ عَلَيْهَا اسْمُ أَحَدٍ، وَقَوْلُ الْآخَرِ: «وَبَلْدَةٍ لَيْسَ بِهَا أَنِيسٌ إِلَّا الْيَعَافِيرُ وَإِلَّا الْعِيسُ». وَمِنْ عَادَةِ الْعَرَبِ أَنْ تَقُولَ: مَا فِي الدَّارِ رَجُلٌ إِلَّا امْرَأَةٌ. وَبِالْجُمْلَةِ فَهُوَ فِي كَلَامِهِمْ مَشْهُورٌ وَمَوْجُودٌ كَثِيرًا.

A comparable instance is the poet's saying, 'No one is at the campsite except the horse tethering places.' The term 'anyone' does not apply to tethering places. Another poet says, 'And a land with no companion in it, except gazelles and except white camels.' Arabs also customarily say, 'There is no man in the house except a woman.' In general, this is well known and frequent in their speech.

وَالْفِرْقَةُ الْأُولَى دَفَعُوا ذَلِكَ مِنْ جِهَةِ النَّظَرِ، وَالثَّانِيَةُ تَمَسَّكُوا بِالْوُجُودِ وَلَمْ يَقْدِرُوا أَنْ يُعْطُوا الْجِهَةَ الَّتِي بِهَا يَصِحُّ ذَلِكَ فِي الْكَلَامِ بِمَا هُوَ مَعْرُوفٌ مِنْ عَادَةِ الْعَرَبِ وَيَنْحَلُّ بِهَا الشَّكُّ الْمُتَقَدِّمُ.

The first group rejects it on theoretical grounds; the second appeals to its actual occurrence, but has been unable to explain how it is valid in speech according to known Arab usage, and thereby resolve the difficulty raised earlier.

N077 · textual. The first scriptural quotation is Qurʾān 26:77. The second, as printed at p. 114, combines wording corresponding to 4:29 with تجارة حاضرة from 2:282; it is translated as printed rather than silently replaced by the standard wording of either verse. Both poetic excerpts are likewise translated in the forms actually quoted in the main text, not the longer parallel versions in the editor's notes.

N078 · translation. الأواري is rendered 'horse tethering places,' consistent with the edition's explanatory note at p. 114. اليعافير is rendered 'gazelles,' an attested sense in Ibn Manẓūr, Lisān al-ʿArab, s.v. عفر (https://www.islamweb.net/ar/library/content/122/5572/عفر); lexical alternatives include young wild cattle. This vocabulary lookup does not replace or expand the quoted poem.

G-B2-0396 · grammar. «خلاف فيه. وإنما الخلاف في وقوع المستثنى من أسلوب القصر بـ«إنّما» —». [Restriction: only / nothing but; identify what is being limited by the construction.]

G-B2-0398 · grammar. «بينكم بالباطل إلا أن تكون تجارة حاضرة}. وفي مثل استثناء أو استدراك بـ«إلّا أنّ» —». [Except that / however; the contextual function determines which qualification is intended.]

186. A disconnected exception belongs to the understood wider meaning

R 186 · Bou Akl 223 · 1994 Arabic p. 115 · Bou Akl 2015 Arabic p. 266

وَنَحْنُ نَقُولُ فِي ذَلِكَ: إِنَّ مِنْ عَادَةِ الْعَرَبِ، كَمَا تَقَدَّمَ، إِبْدَالَ الْكُلِّيِّ مَكَانَ الْجُزْئِيِّ، وَالْجُزْئِيِّ مَكَانَ الْكُلِّيِّ اتِّكَالًا عَلَى الْقَرَائِنِ وَتَجَوُّزًا. فَالْأَعْرَابِيُّ مَثَلًا إِذَا قَالَ: مَا فِي الدَّارِ رَجُلٌ أَمْكَنَ أَنْ يُفْهَمَ عَنْهُ فَمَا سِوَاهُ، فَلِذَلِكَ اسْتَثْنَى فَقَالَ: إِلَّا امْرَأَةً، وَكَذَلِكَ قَوْلُهُ: وَبَلْدَةٍ لَيْسَ بِهَا أَنِيسٌ. وَعَلَى هَذَا الْوَجْهِ الَّذِي قُلْنَاهُ لَيْسَ يَكُونُ الْمُسْتَثْنَى مِنْ غَيْرِ جِنْسِ الْمُسْتَثْنَى مِنْهُ.

Our account is this: as explained earlier, Arabs customarily substitute the universal for the particular and the particular for the universal, relying on accompanying indications and extended usage. If a Bedouin says, for example, ‘There is no man in the house,’ his negation may be understood to extend beyond men; hence he adds the exception, ‘except a woman.’ The same holds of ‘And a land with no companion in it.’ On the account we have given, the thing excepted does not belong to a genus different from that from which it is excepted.

لَكِنَّ الْفَرْقَ بَيْنَهُ وَبَيْنَ الْأَوَّلِ أَنَّ ذَلِكَ اسْتِثْنَاءٌ مِنْ عُمُومِ مَا اقْتَضَاهُ اللَّفْظُ بِصِيغَتِهِ، وَهَذَا مِنْ عُمُومِ مَا اقْتَضَاهُ اللَّفْظُ بِمَفْهُومِهِ لَا بِصِيغَتِهِ. وَإِذَا تَصَفَّحْتَ الْمَوَاضِعَ الْوَاقِعَ فِيهَا مِثْلُ هَذَا الِاسْتِثْنَاءِ وَجَدْتَهَا عَلَى مَا قُلْنَاهُ، وَإِلَّا كَانَ خُلْفًا مِنَ الْقَوْلِ وَهَذْرًا لَا تَصِحُّ بِمِثْلِهِ مُحَاوَرَةٌ.

The difference from the first kind is that the first excepts something from the general scope conveyed by the expression’s form, whereas this excepts it from the general scope conveyed by its understood import, not its form. If you examine the occurrences of such exceptions, you will find them to be as we have described; otherwise, the statement would be contradictory and idle, incapable of sustaining intelligible conversation.

G-B2-0401 · grammar. «الاستثناء المنقطع لفظًا والمتصل بالمفهوم — «استثنى فقال: إلا امرأة، وكذلك قوله: وبلدة ليس». [“Except a woman” after “no man is in the house”: Ibn Rushd explains its connection through the wider intended sense, rather than a simple exclusion from the literal class of men.]

BA-F113 · textual. طبعة بو عقل، شاهد الإسكوريال [أ]: «وإلا كان خلفا من القول وهذرا»؛ مقابل قراءة العلوي [ع]: «وإلا كان خلفا في القول وهذرا». من القول تفيد أن الكلام نفسه متناقض أو هذر. [Bou Akl 2015, facing Arabic–French edition; this is a reported manuscript reading, not an independent examination of Escorial 1235.]

187. How far does an exception reach over coordinated clauses?

R 187 · Bou Akl 224 · 1994 Arabic p. 116 · Bou Akl 2015 Arabic p. 268

وَأَمَّا الِاسْتِثْنَاءُ الَّذِي يَرِدُ بَعْدَ جُمْلَةٍ أَكْثَرَ مِنْ وَاحِدَةٍ مَنْسُوقَةٍ بِالْوَاوِ، فَإِنْ كَانَتِ الْوَاوُ أَعْطَتِ التَّشْرِيكَ بَيْنَهُمَا أَوِ الْجَمْعَ فِي مَعْنًى وَاحِدٍ، فَالْأَظْهَرُ فِيهِ أَنَّ الِاسْتِثْنَاءَ يَعُودُ عَلَى جَمِيعِ الْمَذْكُورِينَ. وَأَمَّا إِنْ كَانَتِ الْوَاوُ تَنْسُقُ مِنْ غَيْرِ أَنْ تُعْطِيَ التَّشْرِيكَ فِي مَعْنًى وَاحِدٍ، وَكَانَتِ الْمَعَانِي الْمَنْسُوقَةُ كَثِيرَةً، كَقَوْلِهِ تَعَالَى: {وَالَّذِينَ يَرْمُونَ الْمُحْصَنَاتِ ثُمَّ لَمْ يَأْتُوا بِأَرْبَعَةِ شُهَدَاءَ فَاجْلِدُوهُمْ ثَمَانِينَ جَلْدَةً وَلَا تَقْبَلُوا لَهُمْ شَهَادَةً أَبَدًا وَأُولَئِكَ هُمُ الْفَاسِقُونَ إِلَّا الَّذِينَ تَابُوا مِنْ بَعْدِ ذَلِكَ وَأَصْلَحُوا}.

If an exception follows several sentences joined by ‘and,’ and ‘and’ makes them share or combine in one meaning, the more evident reading is that the exception refers to everything mentioned. If ‘and’ joins them without making them share one meaning, and the joined meanings are multiple, the case is different. An example is God’s saying, ‘Those who accuse chaste women and then do not produce four witnesses: lash them eighty times, never accept their testimony, and they are the wrongdoers—except those who repent thereafter and make amends.’

وَكَقَوْلِهِ تَعَالَى: {فَكَفَّارَتُهُ إِطْعَامُ عَشَرَةِ مَسَاكِينَ مِنْ أَوْسَطِ مَا تُطْعِمُونَ أَهْلِيكُمْ أَوْ كِسْوَتُهُمْ أَوْ تَحْرِيرُ رَقَبَةٍ فَمَنْ لَمْ يَجِدْ فَصِيَامُ ثَلَاثَةِ أَيَّامٍ}. فَالْأَظْهَرُ فِي مِثْلِ هَذَا أَنْ يُتَوَقَّفَ حَتَّى يَدُلَّ الدَّلِيلُ مِنْ قَرِينَةِ حَالٍ أَوْ غَيْرِ ذَلِكَ عَلَى الَّذِي إِلَيْهِ يَعُودُ الِاسْتِثْنَاءُ.

Another example is His saying, ‘Its expiation is feeding ten needy people from the average of what you feed your families, or clothing them, or freeing a slave; whoever cannot find the means must fast three days.’ In such cases the more evident course is to suspend judgement until evidence, whether a contextual indication or something else, shows what the exception refers to.

N079 · translation. The quotations are Qur’ān 24:4–5 and 5:89. The second uses a conditional qualification, which Ibn Rushd includes here within his discussion of the scope of an exception; the examples are retained without silently replacing its conjunctions.

G-B2-0402 · grammar. «تنسق من غير أن تعطي التشريك في معنى واحد» — «مِنْ غَيْرِ أَنْ» مع المصدر المؤوَّل. [“Without” a further act, fact, or condition being present. The أَنْ-clause is a verbal-noun complement of غَيْر, not an adversative “nevertheless”.]

G-B2-0403 · grammar. «هم الفاسقون إلا الذين تابوا من بعد ذلك» — «مدى رجوع الاستثناء بعد أحكام معطوفة». [The exceptive phrase (“except those who repent”) raises the syntactic and legal question whether it qualifies one or several preceding coordinated rulings.]

188. An exception larger than the remainder

R 188 · Bou Akl 225 · 1994 Arabic p. 116 · Bou Akl 2015 Arabic p. 268

وَأَمَّا هَلْ يَكُونُ الْمُسْتَثْنَى مِنْهُ أَقَلَّ مِنَ الْمُسْتَثْنَى، فَهُوَ شَيْءٌ لَمْ يَقَعْ فِي كَلَامِ الْعَرَبِ بَعْدُ، لِأَنَّ وُقُوعَ مِثْلِ هَذَا يَكَادُ أَنْ يَكُونَ عِيًّا، فَإِنَّهُ مِنْ خُلْفِ الْقَوْلِ أَنْ يَقُولَ الْإِنْسَانُ رَأَيْتُ مِائَةً إِلَّا تِسْعَةً وَتِسْعِينَ.

As for whether the amount remaining after an exception may be smaller than the amount excepted, this is something that has not occurred in Arabic speech, since such an expression would almost amount to an inability to express oneself. It is an incongruous way of speaking to say, ‘I saw a hundred, except ninety-nine.’

N080 · translation. The comparison of المستثنى منه with المستثنى at p. 116 is understood of the remaining and excepted amounts, as required by the author’s example of a hundred minus ninety-nine.

G-B2-0405 · grammar. «رأيت مائة إلا تسعة وتسعين» — «الاستثناء العددي بـ«إِلَّا»». [“Except ninety-nine”: a numerical exception, here criticized as an artificial way of speaking; not an exclusivity construction.]

G-B2-0406 · grammar. «يكون عيا، فإنه من خلف القول أن يقول» — «الفاء الاستئنافية مع «إنَّ/إنْ/إنّما»». [The initial فـ links the reasoning. Distinguish إنَّ (assertion), إنْ (condition) and إنّما (restriction) from the words and vowelled context.]

189. Unqualified and qualified wording in the same or different contexts

R 189 · Bou Akl 226 · 1994 Arabic p. 116, 117 · Bou Akl 2015 Arabic p. 268

مَسْأَلَةٌ: إِذَا وَرَدَ الْعَامُّ مُقَيَّدًا بِصِفَةٍ أَوْ مُشْتَرَطًا فِيهِ شَرْطٌ مَا فَالْمَصِيرُ إِلَى الْعَمَلِ بِهِ عَلَى الْجِهَةِ الَّتِي اشْتُرِطَ فِيهِ مِمَّا لَا يَنْبَغِي أَنْ يَقَعَ فِيهِ خِلَافٌ. وَأَمَّا إِذَا وَرَدَ مُطْلَقًا فِي مَكَانٍ، ثُمَّ وَرَدَ مَرَّةً أُخْرَى فِي ذَلِكَ الْمَكَانِ مُقَيَّدًا، وَهُوَ الَّذِي يَعْرِفُونَهُ بِحَمْلِ الْمُطْلَقِ عَلَى الْمُقَيَّدِ، كَقَوْلِهِ عَلَيْهِ السَّلَامُ: «لَا نِكَاحَ إِلَّا بِشَاهِدَيْنِ» وَقَوْلِهِ عَلَيْهِ السَّلَامُ: «لَا نِكَاحَ إِلَّا بِشَاهِدَيْ عَدْلٍ»، فَقَدْ رَأَى أَكْثَرُ النَّاسِ فِي ذَلِكَ حَمْلَ الْمُطْلَقِ عَلَى الْمُقَيَّدِ.

Question. When general wording is qualified by an attribute or made conditional on something, there should be no disagreement about acting upon it subject to that condition. If it occurs unqualified in one context and then qualified in the same context —what they call construing the unqualified in light of the qualified—the majority adopt that construction. An example is his saying, peace be upon him, ‘There is no marriage without two witnesses,’ alongside his saying, peace be upon him, ‘There is no marriage without two witnesses of probity.’

وَرَأَى بَعْضُهُمْ أَنَّ الْمُطْلَقَ بَاقٍ عَلَى إِطْلَاقِهِ، وَأَنَّ التَّقْيِيدَ مَحْمُولٌ عَلَى التَّأْكِيدِ، وَأَنَّهُ لَيْسَ يُعَارِضُهُ إِلَّا مِنْ جِهَةِ دَلِيلِ الْخِطَابِ. وَالْعُمُومُ أَقْوَى مِنْ دَلِيلِ الْخِطَابِ، أَعْنِي الْعُمُومَ الَّذِي فِي الْمُطْلَقِ. وَأَمَّا إِذَا وَرَدَ الْعَامُّ مُقَيَّدًا فِي مَكَانٍ غَيْرِ الْمَكَانِ الَّذِي أُطْلِقَ فِيهِ فَلَا مَعْنَى لِحَمْلِهِ عَلَى التَّقْيِيدِ إِلَّا بِدَلِيلٍ أَوْ قَرِينَةِ حَالٍ.

Some hold that the unqualified statement retains its unqualified scope, that the qualification serves to emphasize, and that it conflicts with the unqualified statement only through contrary implication (دليل الخطاب). Generality is stronger than contrary implication—I mean the generality present in the unqualified statement. If, however, the general expression is qualified in a context different from the one in which it was unqualified, there is no basis for construing it as qualified without proof or a contextual indication.

G-B2-0410 · grammar. القصر بالنفي والاستثناء — «على التقييد إلا بدليل أو قرينة حال». [Exclusivity through negation followed by an exception; not merely two independent clauses.]

190. From general to specific expressions

R 190 · Bou Akl 227 · 1994 Arabic p. 117 · Bou Akl 2015 Arabic p. 270

فَهَذَا هُوَ الْقَوْلُ فِي الصِّيَغِ الْعَامَّةِ، وَفِي أَيِّ الْأَحْوَالِ تُحْمَلُ عَلَى عُمُومِهَا، وَفِي أَيِّهَا لَا. وَبَقِيَ عَلَيْنَا الْقَوْلُ فِي الصِّنْفِ الثَّانِي مِنَ الظَّاهِرِ، وَهُوَ الْأَلْفَاظُ الْخَاصَّةُ، فَلْنَقُلْ فِيهَا:

This is the account of general verbal forms, and of the circumstances in which they are understood generally and those in which they are not. It remains to discuss the second class of apparent wording, namely specific expressions. Let us turn to them.

191. Specific expressions may stand for an intended universal

R 191 · Bou Akl 228–233 · 1994 Arabic p. 117, 118 · Bou Akl 2015 Arabic p. 270

وَهَذِهِ مِنْهَا مَا هِيَ أَسْمَاءُ أَشْخَاصٍ، وَمِنْهَا مَا هِيَ أَسْمَاءُ أَجْنَاسٍ وَأَنْوَاعٍ. وَقَوْلُنَا فِي مِثْلِ هَذِهِ الْأَلْفَاظِ خَاصَّةٌ إِنَّمَا هُوَ بِالْإِضَافَةِ، فَإِنَّ الْخَاصَّ إِنَّمَا يُقَالُ بِالْإِضَافَةِ إِلَى الْعَامِّ الَّذِي فَوْقَهُ، وَالْعَامُّ بِالْإِضَافَةِ إِلَى الْخَاصِّ الَّذِي تَحْتَهُ.

Some of these are names of individuals, and others are names of genera and species. When we call such expressions “specific” (خاص), we do so relatively: something is called specific in relation to the general term above it, and general in relation to the specific term below it.

وَهَذِهِ الْأَلْفَاظُ إِذَا كَانَتْ أَسْمَاءَ أَشْخَاصٍ فَإِنَّهَا تُحْمَلُ عَلَى مَا تَقْتَضِيهِ صِيَغُهَا مِنَ الْمَعْنَى الْخَاصِّ دُونَ أَنْ تُحْمَلَ عَلَى مَا يَعُمُّ ذَلِكَ الْمَعْنَى الْخَاصَّ، وَهِيَ فِي ذَلِكَ ظَاهِرَةٌ، كَمَا كَانَتْ أَلْفَاظُ الْعُمُومِ ظَاهِرَةً فِي عُمُومِهَا، إِلَى أَنْ يَرِدَ دَلِيلُ التَّخْصِيصِ. وَكَذَلِكَ إِذَا كَانَتْ أَسْمَاءَ أَجْنَاسٍ وَأَنْوَاعٍ فَإِنَّهَا كَمَا كَانَتْ ظَاهِرَةً فِي تَعْمِيمِ مَا تَحْتَهَا، كَذَلِكَ هِيَ ظَاهِرَةٌ فِي تَخْصِيصِ مَعَانِيهَا الَّتِي دَلَّتْ عَلَيْهَا أَوَّلًا بِصِيَغِهَا عَمَّا هُوَ أَعَمُّ مِنْهَا إِلَى أَنْ يَدُلَّ دَلِيلُ التَّعْمِيمِ، وَهُنَا أَيْضًا مَرَاتِبُ فِي الظُّهُورِ.

When these expressions name individuals, they are construed as bearing the specific meaning required by their forms, rather than a meaning encompassing that specific meaning. This is their prima facie import (ظاهر), just as expressions of generality prima facie retain their general scope until evidence of restriction appears. Similarly, names of genera and species prima facie encompass what falls under them, while delimiting the meanings their forms initially signify from anything more general, until evidence requires generalization. Here too there are degrees of prima facie clarity.

وَكَمَا أَنَّ مِنْ عَادَتِهِمْ إِبْدَالَ الْكُلِّيِّ الْعَامِّ مَكَانَ الْجُزْئِيِّ الْخَاصِّ، كَذَلِكَ مِنْ عَادَتِهِمْ هَهُنَا إِبْدَالُ الْجُزْئِيِّ الْخَاصِّ مَكَانَ الْعَامِّ تَعْوِيلًا فِي ذَلِكَ عَلَى الْقَرَائِنِ. وَهَذَا أَيْضًا رُبَّمَا كَانَ بَيِّنًا بِنَفْسِهِ وَقَطْعًا، وَرُبَّمَا كَانَ ظَنِّيًّا أَكْثَرِيًّا، وَرُبَّمَا لَمْ يَكُنْ بَيِّنًا بِنَفْسِهِ. وَرُبَّمَا كَانَ بَيِّنًا بِنَفْسِهِ أَنَّهُ مُبْدَلٌ وَلَمْ يَكُنْ بَيِّنًا أَيُّ كُلِّيٍّ أُبْدِلَ الْجُزْئِيُّ مَكَانَهُ.

Just as speakers customarily substitute the general universal for the specific particular, so here they customarily substitute the specific particular for the general, relying on contextual indications (قرائن). This too may be evident in itself and certain, or it may rest on a preponderant probability, or it may not be evident in itself. Sometimes the occurrence of substitution is itself evident, while it remains unclear which universal the particular has been substituted for.

مِثَالُ مَا كَانَ مِنْ ذَلِكَ بَيِّنًا بِنَفْسِهِ وَقَطْعًا قَوْلُهُ تَعَالَى: «وَلَا تَقُلْ لَهُمَا أُفٍّ». وَقَوْلُهُ عَلَيْهِ السَّلَامُ: «أَدُّوا الْخَائِطَ وَالْمِخْيَطَ». ومثال مَا كَانَ مِنْ ذَلِكَ بَيِّنًا بِنَفْسِهِ وَلَمْ يَكُنْ قَطْعًا النَّهْيُ عَنْ دُخُولِ الْمَسْجِدِ بِرِيحِ الثُّومِ أَوْ عَنِ الشُّرْبِ بِآنِيَةِ الْفِضَّةِ. وَمِثَالُ مَا لَمْ يَكُنْ مِنْ ذَلِكَ بَيِّنًا بِنَفْسِهِ فَنَهْيُهُ عَلَيْهِ السَّلَامُ عَنْ بَيْعِ الْبُرِّ بِالْبُرِّ الْأَرْبَعَةِ الْمَذْكُورَةِ. فَإِنَّ قَوْمًا حَمَلُوهُ عَلَى الْمُقْتَاتِ وَآخَرُونَ عَلَى الْمَطْعُومِ، وَآخَرُونَ عَلَى الْمَكِيلِ، وَقَوْمٌ قَصَرُوا الْحُكْمَ عَلَى النَّصِّ.

An example evident in itself and certain is His exalted saying, “Do not say ‘Uff’ to the two of them,” and the Prophet’s saying, peace be upon him, “Hand over the thread and the needle.” Examples evident in themselves but not certain are the prohibition of entering the mosque smelling of garlic, and of drinking from silver vessels. An example not evident in itself is his prohibition, peace be upon him, concerning wheat exchanged for wheat —the four commodities mentioned. Some understood it as referring to staple nourishment, others to food, and others to goods measured by volume; others confined the ruling to the stated text.

N081 · translation. Ibdāl is the substitution of a particular expression for an intended universal meaning. The direction of substitution is retained throughout; it is not silently reversed into the direction in which a jurist extends a ruling.

N082 · textual. The edition quotes Qurʾān 17:23 with ولا; the standard verse has فلا. Arabic reproduces the quotation as printed. The wording about wheat and “the four mentioned” is elliptical in the printed text; compare §218. The editor’s separate hadith variant is not incorporated into Ibn Rushd’s text.

N083 · textual. The edition prints الخائط in §§191 and 215. The English “thread” reads the intended الخياط in this hadith; الخائط ordinarily means a person who sews. Ibn Manẓūr, Lisān al-ʿArab, root خيط, explicitly explains the hadith أدوا الخياط والمخيط as thread and needle: https://islamweb.net/ar/library/content/122/2404/خيط (displayed vol.5, p190). The printed Arabic is retained rather than silently standardized.

BA003 · scholarship. This discussion of how particular expressions can stand for the intended general class is basic to Ibn Rushd’s later separation of semantic inclusion from genuine particular-to-particular qiyās. Bou Akl tests the distinction through the ribā commodity cases, comparing al-Ḍarūrī with the Bidāya and al-Fārābī’s classification. Do not assume that all analogical reasoning concerning ribā transfers a rule without an implicit general meaning. Source: Bou Akl, “Averroes on Juridical Reasoning,” in Interpreting Averroes: Critical Essays (Cambridge UP, 2018), pp. 54–59.

G-B2-0411 · grammar. «الألفاظ خاصة إنما هو بالإضافة، فإن الخاص إنما» — «أسلوب القصر بـ«إنّما». [Restriction: only / nothing but; identify what is being limited by the construction.]

G-B2-0413 · grammar. «في الظهور. وكما أن من عادتهم إبدال الكلي العام» — «القياس أو الموازنة بـ«كما أنّ». [Just as / likewise: coordinates the two sides of the comparison.]

BA-X115 · textual. قراءة [أ] عند بو عقل «ومثال» في موضع «ومثل» من طبعة [ع]. [Escorial reading according to Bou Akl 2015, Arabic p. 272; the earlier edition reads differently.]

192. From verbal form to understood meaning

R 192 · Bou Akl 234 · 1994 Arabic p. 118 · Bou Akl 2015 Arabic p. 274

فَهَذَا هُوَ الْقَوْلُ فِي الْأَلْفَاظِ الْمُجْمَلَةِ وَالنُّصُوصِ والظاهرة وَالْمُؤَوَّلَةِ مِنْ جِهَةِ صِيَغِهَا، وَقَدْ بَقِيَ الْقَوْلُ فِي ذَلِكَ مِنْ جِهَةِ الْمَفْهُومِ.

This completes the discussion of indeterminate, unambiguous, prima facie, and interpreted expressions with respect to their forms. It remains to discuss them with respect to their understood meaning (مفهوم).

N084 · textual. The printed النصوص الظاهرة lacks the conjunction expected in this fourfold classification. The translation follows the four categories repeatedly distinguished by the author.

BA-T117 · textual. قراءة الإسكوريال كما أثبتها بو عقل: «والظاهرة»، مقابل «الظاهرة» في طبعة العلوي. (Escorial reading as reported by Bou Akl, 2015, Arabic p. 274; variant against al-ʿAlawī.)

193. Context determines the force of an implied meaning

R 193 · Bou Akl 235 · 1994 Arabic p. 118 · Bou Akl 2015 Arabic p. 274

وَاللَّفْظُ كَمَا تَقَدَّمَ مِنْ قَوْلِنَا إِنَّمَا يَصِيرُ دَالًّا بِمَفْهُومِهِ عِنْدَمَا تُحْذَفُ بَعْضُ أَجْزَائِهِ، أَوْ يُزَادُ فِيهِ أَوْ يُسْتَعَارُ وَيُبْدَلُ، وَلِذَلِكَ لَا تَكُونُ دَلَالَتُهُ عِنْدَ ذَلِكَ إِلَّا مِنْ جِهَةِ الْقَرَائِنِ، فَإِنْ كَانَتِ الْقَرِينَةُ غَيْرَ مُتَبَدِّلَةٍ وَقَاطِعَةً عَلَى مَفْهُومِهِ سُمِّيَ أَيْضًا هَهُنَا نَصًّا، وَإِنْ كَانَتْ ظَنِّيَّةً أَكْثَرِيَّةً سُمِّيَ أَيْضًا ظَاهِرًا، وَإِنْ كَانَتْ ظَنِّيَّةً غَيْرَ مُتَرَجِّحَةٍ سُمِّيَ مُجْمَلًا، وَطُلِبَ دَلِيلُهُ مِنْ مَوْضِعٍ آخَرَ.

As we said before, an expression signifies through its understood meaning when some of its parts are omitted, something is added to it, or it is used metaphorically or by substitution. In such cases its signification comes only through contextual indications. If the contextual indication is unvarying and decisive as to its understood meaning, the expression is again called unambiguous (نص). If it supplies a preponderant probability, it is called prima facie (ظاهر); if it supplies probability without preponderance, it is called indeterminate (مجمل), and evidence for it is sought elsewhere.

وَقَدْ تَقَدَّمَتْ أَمْثِلَةُ ذَلِكَ فِي الْمُسْتَعَارِ وَالْمُبْدَلِ، وَالَّذِي بَقِيَ عَلَيْنَا الْقَوْلُ فِيهِ هُنَا هُوَ مَا كَانَ كَذَلِكَ مِنْ أَجْلِ الْحَذْفِ فَنَقُولُ:

Examples involving metaphor and substitution have already been given. What remains for us here is the case in which this occurs through omission. We say:

G-B2-0414 · grammar. أسلوب القصر بـ«إنّما» — «من قولنا إنما يصير دالا بمفهومه عندما تحذف». [Restriction: only / nothing but; identify what is being limited by the construction.]

G-B2-0415 · grammar. الشرط الوصلي بـ«وإن كان» — «ههنا نصا، وإن كانت ظنية أكثرية سمي أيضا ظاهرا». [Even if / although; the condition does not overturn the principal judgement.]

G-B2-0416 · grammar. القصر بالنفي والاستثناء — «عند ذلك إلا من جهة القرائن، فإن كانت». [Exclusivity through negation followed by an exception; not merely two independent clauses.]

BA-F116 · textual. طبعة بو عقل، شاهد الإسكوريال [أ]: «والذي بقي علينا القول فيه هنا هو»؛ مقابل قراءة العلوي [ع]: «والذي بقي علينا القول فيه ها هنا هو». المخطوط يثبت «هنا» دون هاء التنبيه الأولى. [Bou Akl 2015, facing Arabic–French edition; this is a reported manuscript reading, not an independent examination of Escorial 1235.]

194. Omitted meanings: villagers, marriage, fasting, and a prayer cycle

R 194 · Bou Akl 236–239 · 1994 Arabic p. 118, 119 · Bou Akl 2015 Arabic p. 274

أَمَّا مِثَالُ مَا كَانَ مِنْ ذَلِكَ بِمَنْزِلَةِ النَّصِّ فَقَوْلُهُ تَعَالَى: «وَاسْأَلِ الْقَرْيَةَ الَّتِي كُنَّا فِيهَا». فَإِنَّهُ يُعْلَمُ قَطْعًا أَنَّهُ أَرَادَ أَهْلَ الْقَرْيَةِ، وَكَذَلِكَ قَوْلُهُ تَعَالَى: «حُرِّمَتْ عَلَيْكُمْ أُمَّهَاتُكُمْ». فَإِنَّ الْمَفْهُومَ هَهُنَا قَطْعًا إِنَّمَا هُوَ النِّكَاحُ.

An example having the status of an unambiguous expression is His exalted saying, “Ask the village in which we were.” It is known with certainty that He means the inhabitants of the village. Likewise, in His exalted saying, “Forbidden to you are your mothers,” what is certainly understood here is marriage.

وَمِثَالُ مَا هُوَ مِنْ هَذَا الْجِنْسِ كَالظَّاهِرِ قَوْلُهُ عَلَيْهِ السَّلَامُ: «لَا صِيَامَ لِمَنْ لَمْ يُبَيِّتِ الصِّيَامَ». فَإِنَّهُ مُحْتَمِلٌ أَنْ يُرِيدَ لَا صِيَامَ كَامِلٌ وَيَحْتَمِلُ أَنْ يُرِيدَ انْتِفَاءَ قَبُولِ الصِّيَامِ أَصْلًا وَهُوَ الْأَظْهَرُ. وَمِثَالُ مَا يُظَنُّ بِهِ مُجْمَلًا قَوْلُهُ عَلَيْهِ السَّلَامُ: «مَنْ أَدْرَكَ رَكْعَةً مِنَ الصَّلَاةِ فَقَدْ أَدْرَكَ الصَّلَاةَ» فَإِنَّهُ مُتَرَدِّدٌ بَيْنَ إِدْرَاكِ فَضِيلَةِ الصَّلَاةِ أَوْ حُكْمِهَا أَوْ وَقْتِهَا.

An example in this class resembling a prima facie expression is his saying, peace be upon him, “There is no fast for one who has not resolved upon the fast overnight.” This may mean that the fast is not complete, or that the fast is not accepted at all; the latter is more apparent. An example thought indeterminate is his saying, peace be upon him, “Whoever has caught one cycle of the prayer has caught the prayer.” It is undecided whether this means obtaining the prayer’s merit, its legal effect, or its appointed time.

وَمِنْ أَشْهَرِ مَا يَدْخُلُ فِي هَذَا الْجِنْسِ النَّوْعُ الَّذِي يَعْرِفُونَهُ بِدَلِيلِ الْخِطَابِ وَهُوَ أَنْ يَرِدَ الشَّيْءُ مُقَيَّدًا بِأَمْرٍ مَا، أَوْ مُشْتَرَطًا فِيهِ شَرْطٌ مَا، وَقَدْ عُلِّقَ بِهِ حُكْمٌ، فَيُظَنَّ أَنَّ ذَلِكَ الْحُكْمَ لَازِمٌ لِذَلِكَ الشَّيْءِ مِنْ جِهَةِ مَا هُوَ مُقَيَّدٌ وَمَوْصُوفٌ، وَأَنَّ الْحُكْمَ مُرْتَفِعٌ عَنْهُ بِارْتِفَاعِ تِلْكَ الصِّفَةِ وَلَازِمٌ نَقِيضُهُ.

A particularly well-known kind within this class is what they call inference from the discourse (دليل الخطاب). Something is mentioned subject to a qualification or condition, and a ruling is attached to it. It is then judged probable that the ruling belongs to it insofar as it bears that qualification or description, and that, when the description is absent, the ruling ceases to apply and its contradictory applies instead.

وَهَذَا الْجِنْسُ تَحْتَهُ أَصْنَافٌ. وَقَدِ اخْتَلَفُوا فِي كَوْنِهَا أَدِلَّةً شَرْعِيَّةً، فَبَعْضُهُمْ لَمْ يُجِزْ ذَلِكَ فِي جَمِيعِهَا أَصْلًا، وَبَعْضٌ أَجَازَ ذَلِكَ فِي كُلِّهَا، وَبَعْضٌ أَجَازَهُ فِي الْبَعْضِ وَنَفَاهُ عَنِ الْبَعْضِ، وَنَحْنُ نَقُولُ فِي ذَلِكَ:

This class has several kinds. They disagree over whether these constitute legal evidence. Some have allowed none of them as evidence at all; some have allowed all of them; others have allowed some and denied others. We say concerning this:

N085 · translation. The omitted object in Qurʾān 4:23 is supplied by Ibn Rushd himself as marriage; the contextual character of this certainty is central to his use of naṣṣ. The other Qurʾānic quotation is 12:82.

N086 · translation. Dalīl al-khiṭāb here is contrary implication: the ruling for the unmentioned case is inferred from the qualification of the stated case. It differs from the a fortiori faḥwā al-khiṭāb of §215.

G-B2-0417 · grammar. أسلوب القصر بـ«إنّما» — «ههنا قطعا إنما هو النكاح. ومثال ما هو». [Restriction: only / nothing but; identify what is being limited by the construction.]

G-B2-0418 · grammar. الفاء الاستئنافية مع «إنَّ/إنْ/إنّما» — «كنا فيها». فإنه يعلم قطعا أنه أراد أهل». [The initial فـ links the reasoning. Distinguish إنَّ (assertion), إنْ (condition) and إنّما (restriction) from the words and vowelled context.]

195. Description, condition, restriction, and endpoint

R 195 · Bou Akl 240–241 · 1994 Arabic p. 119, 120 · Bou Akl 2015 Arabic p. 276

أَمَّا أَصْنَافُهُ فَمِنْهَا أَنْ يَرِدَ الشَّيْءُ مُقَيَّدًا بِصِفَةٍ كَقَوْلِهِ عَلَيْهِ السَّلَامُ: «فِي سَائِمَةِ الْغَنَمِ الزَّكَاةُ». وَمِنْهَا أَنْ يَرِدَ مُشْتَرَطًا فِيهِ شَرْطٌ مَا بِأَحَدِ حُرُوفِ الشَّرْطِ، كَقَوْلِهِ: مَنْ دَخَلَ الدَّارَ فَاعْطِهِ دِرْهَمًا، وَهَذَا عِنْدَهُمْ أَقْوَى فِي الْمَرْتَبَةِ.

Its kinds include mentioning something qualified by a description, as in his saying, peace be upon him, “Zakāt is due on grazing sheep.” Another is to make something conditional through one of the conditional particles, as in “Whoever enters the house, give him a dirham.” This, in their view, occupies a stronger rank.

وَمِنْهَا أَنْ يَرِدَ الْحُكْمُ مَحْصُورًا بِأَحَدِ حُرُوفِ الْحَصْرِ، وَهِيَ إِنَّمَا وَالْأَلِفُ وَاللَّامُ، فِي مِثْلِ قَوْلِهِ عَلَيْهِ السَّلَامُ: «إِنَّمَا الْوَلَاءُ لِمَنْ أَعْتَقَ». وَفِي مِثْلِ قَوْلِهِ: الْمَالُ لِزَيْدٍ. وَمِنْهَا أَنْ يُقَيَّدَ الشَّيْءُ بِصِفَةٍ غَائِيَّةٍ، وَتِلْكَ هِيَ الَّتِي يُدَلُّ عَلَيْهَا بِحَتَّى وَإِلَى، وَهَذَا الصِّنْفُ كَأَنَّ جَمِيعَهُمْ قَدْ أَقَرَّ بِالْقَوْلِ بِهِ مِثْلَ قَوْلِهِ تَعَالَى: «وَلَا تَقْرَبُوهُنَّ حَتَّى يَطْهُرْنَ»، وَ«حَتَّى تَنْكِحَ زَوْجًا غَيْرَهُ». وَقَوْلِهِ تَعَالَى: «وَأَتِمُّوا الصِّيَامَ إِلَى اللَّيْلِ».

Another restricts a ruling through a restrictive particle: innamā or the definite article al-, as in his saying, peace be upon him, “The rights of clientage belong only to the emancipator,” or in “The property belongs to Zayd.” Another qualifies something by an endpoint, expressed by “until” or “up to.” It seems that everyone has accepted this kind. Examples are His exalted sayings, “Do not approach them until they become pure,” “until she marries a husband other than him,” and His exalted saying, “Complete the fast until nightfall.”

فَإِنَّهُ يَكَادُ أَنْ يُعْلَمَ أَنَّ اللَّيْلَ بِخِلَافِ النَّهَارِ فِي انْتِفَاءِ الصَّوْمِ عَنْهُ، وَكَذَلِكَ حَالُ الْحَائِضِ إِذَا طَهُرَتْ بِخِلَافِهَا قَبْلَ أَنْ تَطْهُرَ، وَكَذَلِكَ الْمُطَلَّقَةُ إِذَا نَكَحَتْ زَوْجًا. وَهَذَا النَّوْعُ مِنَ الْكَلَامِ وَجَمِيعُ أَصْنَافِهِ يَنْبَغِي أَنْ يُعْتَقَدَ أَنَّ فِيهِ مَا يُشْبِهُ النَّصَّ وَيَقْوَى قُوَّتَهُ، وَذَلِكَ حَيْثُ يُعْلَمُ أَنَّ ذَلِكَ الْحُكْمَ إِنَّمَا تَعَلَّقَ بِالشَّيْءِ مِنْ جِهَةِ مَا قُيِّدَ أَوِ اشْتُرِطَ فِيهِ ذَلِكَ الشَّرْطُ. وَفِيهِ مَا يُشْبِهُ الظَّاهِرَ، وَفِيهِ مَا يُشْبِهُ الْمُجْمَلَ، وَسَنُشِيرُ إِلَى مَرَاتِبِ الْقَرَائِنِ الَّتِي يَتَرَتَّبُ بِهَا هَذَا التَّرْتِيبُ فِي الدَّلَالَةِ فِي كِتَابِ الْقِيَاسِ.

It is virtually known that night differs from day in that fasting does not extend to it; likewise the menstruating woman's condition after purification differs from her condition beforehand, as does that of the divorced woman after marrying a husband. Within this manner of speaking and all its kinds, some cases must be recognised as resembling the unambiguous and possessing its force: those in which the ruling is known to depend on the qualification or condition. Others resemble the prima facie or the indeterminate. In the discussion of qiyās we shall indicate the ranks of contextual indications that establish these degrees of signification.

N087 · translation. The Qurʾānic citations are 2:222, 2:230, and 2:187. "Endpoint" renders غائية here; it does not mean a purposive or final cause.

G-B2-0420 · grammar. أسلوب القصر بـ«إنّما» — «الحصر، وهي إنما والألف واللام، في مثل قوله». [Restriction: only / nothing but; identify what is being limited by the construction.]

196. From assertions to prescriptions

R 196 · Bou Akl 242 · 1994 Arabic p. 120 · Bou Akl 2015 Arabic p. 278

وَهُنَا انْتَهَى الْكَلَامُ فِي الْأَخْبَارِ وَأَجْزَائِهَا، وَبَعْدَ ذَلِكَ فَلْنَنْظُرْ فِي الْأَوَامِرِ وَالنَّوَاهِي.

Here ends the discussion of assertions and their components. Let us now examine commands and prohibitions.

197. Command, request, and supplication depend on the relation of speakers

R 197 · Bou Akl 243 · 1994 Arabic p. 120 · Bou Akl 2015 Arabic p. 278

وَيَنْبَغِي أَنْ نَنْظُرَ أَيْضًا فِي هَذِهِ هَلْ تَنْقَسِمُ الْقِسْمَةَ الْمُتَقَدِّمَةَ، أَعْنِي هَلْ يُوجَدُ فِيهَا النَّصُّ وَالظَّاهِرُ وَالْمُجْمَلُ، وَإِنْ كَانَ ذَلِكَ مَوْجُودًا فِيهَا فَهَلْ ذَلِكَ مِنْ جِهَةِ صِيَغِهَا أَوْ مِنْ جِهَةِ مَفْهُومِهَا.

We must also examine whether these admit the preceding division: whether unambiguous, prima facie, and indeterminate cases occur among them; and, if so, whether this is through their forms or through their understood meaning.

وَالْكَلَامُ الْمُفِيدُ كَمَا قِيلَ يَنْقَسِمُ إِلَى خَبَرٍ وَأَمْرٍ وَطَلِبَةٍ وَنِدَاءٍ وَتَضَرُّعٍ. وَظَاهِرٌ أَنَّ الْأَمْرَ وَالطَّلِبَةَ وَالتَّضَرُّعَ لَيْسَ لِوَاحِدٍ وَاحِدٍ مِنْهَا فِي اللِّسَانِ الْعَرَبِيِّ صِيَغٌ خَاصَّةٌ، وَإِنَّمَا يتميز ذلك بِقَرَائِنِ الْأَحْوَالِ. فَإِذَا كَانَ مِنْ رَئِيسٍ إِلَى مَرْؤُوسٍ كَانَ أَمْرًا، وَإِنْ كَانَ مِنْ مَرْؤُوسٍ إِلَى رَئِيسٍ كَانَ تَضَرُّعًا، وَإِنْ كَانَ مِنْ مُسَاوٍ إِلَى مُسَاوٍ كَانَ طَلِبَةً. وَلِكُلِّ وَاحِدٍ مِنْ هَذِهِ الثَّلَاثَةِ مُقَابِلٌ. فَمُقَابِلُ الْأَمْرِ النَّهْيُ وَلَيْسَ لِمُقَابِلِ الطَّلَبِ وَالتَّضَرُّعِ اسْمٌ.

Meaningful speech, as has been said, divides into assertion, command, request, address, and supplication. Plainly, Arabic does not possess a distinct form for each of command, request, and supplication: they are distinguished by circumstantial indications. Addressed by a superior to a subordinate, it is a command; by a subordinate to a superior, a supplication; and by an equal to an equal, a request. Each of these three has an opposite. The opposite of command is prohibition, but the opposites of request and supplication have no names.

BA-T118 · textual. قراءة الإسكوريال كما أثبتها بو عقل: «يتميز ذلك»، مقابل «تتميز» في طبعة العلوي. (Escorial reading as reported by Bou Akl, 2015, Arabic p. 278; variant against al-ʿAlawī.)

G-B2-0423 · grammar. أسلوب القصر بـ«إنّما» — «صيغ خاصة، وإنما يتميز ذلك بقرائن الأحوال. فإذا». [Restriction: only / nothing but; identify what is being limited by the construction.]

198. Questions about obligation, timing, and repetition

R 198 · Bou Akl 244 · 1994 Arabic p. 121 · Bou Akl 2015 Arabic p. 280

وَقَصْدُنَا نَحْنُ هَهُنَا مِنْ هَذِهِ الْأَقْسَامِ أَنْ نَتَكَلَّمَ فِي الْأَمْرِ وَالنَّهْيِ، إِذِ الِاقْتِضَاءُ الشَّرْعِيُّ لَيْسَ يَتَصَوَّرُ وُقُوعُهُ عَلَى جِهَةِ الطَّلَبِ اللَّهُمَّ إِلَّا أَنْ نَجْعَلَ الطَّلَبَ هَهُنَا كَأَنَّهُ اسْمُ جِنْسٍ يَنْقَسِمُ إِلَى الْوَاجِبِ وَالنَّدْبِ، لَكِنَّ الْأَوْلَى أَنْ يَكُونَ الْأَمْرُ يَنْقَسِمُ هَذِهِ الْقِسْمَةَ.

Our purpose here is to discuss command and prohibition among these divisions. A legal demand (اقتضاء) cannot be conceived as taking the form of a request—unless "request" is taken here as a generic term divided into obligation and recommendation. It is preferable, however, that "command" should admit this division.

وَقَدِ اخْتَلَفُوا فِي مَعَانِي الْأَوَامِرِ الْعَامَّةِ بِالنَّفْسِ هَلْ لَهَا صِيَغٌ خَاصَّةٌ تَدُلُّ عَلَيْهَا بِالذَّاتِ وَأَوَّلًا، وَإِنْ كَانَ لَهَا صِيَغٌ فَهَلْ تَقْتَضِي الْإِيجَابَ أَوِ النَّدْبَ عَلَى جِهَةِ النَّصِّ، أَمْ هِيَ أَظْهَرُ فِي أَحَدِهِمَا وَمَصْرُوفَةٌ إِلَى الثَّانِي بِالتَّأْوِيلِ، عَلَى جِهَةِ مَا يُؤَوَّلُ الظَّاهِرُ، أَوْ هِيَ مُجْمَلَةٌ بَيْنَ الْإِيجَابِ وَالنَّدْبِ.

They have disagreed whether the meanings of commands [subsisting] in the soul have particular forms that signify them intrinsically and primarily. If they have forms, do these unambiguously require obligation or recommendation? Or is one of the two more apparent, with the form directed to the other by interpretation, in the manner of interpreting a prima facie expression? Or are the forms indeterminate between obligation and recommendation?

وَكَذَلِكَ اخْتَلَفَ الَّذِينَ رَأَوْا أَنَّ لَهَا صِيَغًا دَالَّةً فِي هَلْ تَقْتَضِي أَيْضًا بِصِيَغِهَا الْفَوْرَ، أَمِ التَّرَاخِيَ، أَمْ هِيَ مُتَرَدِّدَةٌ بَيْنَ ذَلِكَ. وَكَذَلِكَ أَيْضًا هَلْ تَقْتَضِي التَّكْرَارَ أَمِ الْفِعْلَ مَرَّةً وَاحِدَةً.

Those who hold that commands possess signifying forms also disagree whether those forms require immediate performance, allow delay, or remain undecided between these. Likewise, they disagree whether the forms require repetition or performance once.

N088 · textual. The printed reading العامة بالنفس is awkward. The English tentatively understands القائمة بالنفس, "subsisting in the soul," the familiar formulation of the issue whether an inward command has a distinct verbal form. The Arabic preserves the printed reading; this is a conjectural interpretation, not a verified manuscript correction.

G-B2-0427 · grammar. «الطلب اللهم إلا أن نجعل الطلب ههنا كأنه اسم — «إلّا أنّ» بـاستثناء أو استدراك». [Except that / however; the contextual function determines which qualification is intended.]

G-B2-0428 · grammar. «بالذات وأولا، وإن كان لها صيغ فهل تقتضي الإيجاب — «وإن كان» بـالشرط الوصلي». [Even if / although; the condition does not overturn the principal judgement.]

199. Linguistic convention and legal usage must be distinguished

R 199 · Bou Akl 244 · 1994 Arabic p. 121 · Bou Akl 2015 Arabic p. 280

وَنَحْنُ نَبْتَدِئُ بِالنَّظَرِ فِي ذَلِكَ بِأَنْ نَتَأَمَّلَ كَيْفَ حَالُهَا فِي الْوَضْعِ اللُّغَوِيِّ وَالْعُرْفِ الشَّرْعِيِّ فَنَقُولُ:

We begin this inquiry by considering how these forms stand in linguistic convention and in legal usage. We say:

200. The imperative's legal force must be learned from revelation

R 200 · Bou Akl 245–247 · 1994 Arabic p. 121, 122 · Bou Akl 2015 Arabic p. 280

أَمَّا أَنَّ لِلِاقْتِضَاءِ صِيَغًا فِي كَلَامِ الْعَرَبِ فَذَلِكَ مَا لَا يَدْفَعُهُ أَحَدٌ، كَقَوْلِهِمْ «اخْرُجْ انْطَلِقْ»، وَإِنْ كَانَ قَدْ تَأْتِي هَذِهِ الصِّيَغُ فِي كَلَامِهِمْ وَالْمَقْصُودُ بِهَا التَّهْدِيدُ وَالْكَفُّ عَنِ الْفِعْلِ، كَقَوْلِهِ تَعَالَى: «كُلُوا وَتَمَتَّعُوا قَلِيلًا». وَلَكِنْ بِالْجُمْلَةِ هِيَ أَظْهَرُ فِي الْإِذْنِ، وَإِنَّمَا تَدُلُّ عَلَى التَّهْدِيدِ بِاسْتِعَارَةٍ. وَكَذَلِكَ أَيْضًا إِذَا أَرَادُوا النَّهْيَ قَرَنُوا بِهَذِهِ الصِّيَغِ حَرْفَ لَا، فَصَارَ مَجْمُوعُهَا يَدُلُّ بِشَكْلِهِ وَصِيغَتِهِ عَلَى النَّهْيِ.

No one denies that Arabic has forms expressing a demand, such as "Go out! Depart!" These forms can nevertheless occur with the intention of threatening and deterring an action, as in His exalted saying, "Eat and enjoy yourselves a little." Generally, however, permission is their more apparent import; they signify threat only metaphorically. Likewise, when speakers intend prohibition, they combine the particle lā with these forms, and the resulting combination signifies prohibition through its structure and form.

فَأَمَّا هَلْ تَدُلُّ هَذِهِ الصِّيَغُ بِذَاتِهَا وَضْعًا لُغَوِيًّا عَلَى الْأَمْرِ فَذَلِكَ مِمَّا لَا يَتَبَيَّنُ فِيهَا، وَأَحْرَى مِنْ ذَلِكَ أَنْ تَكُونَ لَهَا صِيَغٌ تَدُلُّ بِهَا عَلَى الْوُجُوبِ أَوِ النَّدْبِ، لِأَنَّ هَذِهِ الْمَعَانِيَ هِيَ مَعَانٍ شَرْعِيَّةٌ وَلَيْسَتْ بِمَعَانٍ جُمْهُورِيَّةٍ. فَأَمَّا بِالْعُرْفِ الشَّرْعِيِّ فَهِيَ لَا شَكَّ مُتَضَمِّنَةٌ مَعْنَى الْأَمْرِ، وَأَمَّا هَلْ تَتَضَمَّنُ الْوُجُوبَ أَوِ النَّدْبَ فَقَدِ اخْتَلَفُوا فِي ذَلِكَ، فَذَهَبَ أَكْثَرُ الْفُقَهَاءِ إِلَى أَنَّ الْأَوَامِرَ ظَاهِرَةٌ فِي مَعْنَى الْإِيجَابِ فِي الشَّرْعِ وَمَصْرُوفَةٌ إِلَى النَّدْبِ بِدَلِيلٍ. وَذَهَبَ بَعْضُهُمْ إِلَى التَّوَقُّفِ فِي ذَلِكَ وَأَنَّهَا مُجْمَلَةٌ.

Whether these forms signify command intrinsically by linguistic convention is not evident from them; still less is it evident that there are forms signifying obligation or recommendation as such. These are legal meanings, not meanings of ordinary usage. By legal usage, however, the forms undoubtedly contain the meaning of command. Whether they contain obligation or recommendation is disputed. Most jurists hold that commands prima facie signify obligation in the Law, and are directed to recommendation by evidence. Some suspend judgement and regard them as indeterminate.

وَيَنْبَغِي أَنْ يُسْتَقْرَأَ ذَلِكَ فِي الشَّرْعِ، وَيُنْظَرَ كَيْفَ كَانَ قَبُولُ الصَّحَابَةِ رَضِيَ اللَّهُ عَنْهُمْ لِلْأَوَامِرِ إِذَا وَرَدَتْ مُجَرَّدَةً عَنِ الْقَرَائِنِ. وَيُشْبِهُ أَنْ يَكُونَ حَمْلُهَا عَلَى الْإِيجَابِ أَحْوَطَ، إِذْ قَدْ عُرِفَ مِنْ قَرَائِنِ أَحْوَالِ الشَّرْعِ أَنَّ الْأَوَامِرَ فِيهِ عَلَى جِهَةِ الْجَزْمِ وَالْقَطْعِ. وَأَمَّا مَنْ جَعَلَ ذَلِكَ عَلَى أَقَلِّ مَا يَدُلُّ عَلَيْهِ الْأَمْرُ وَهُوَ النَّدْبُ، لِأَنَّهُ زَعَمَ أَنَّ ذَلِكَ هُوَ الَّذِي يَلْزَمُ الْأَمْرَ دَائِمًا، فَلَا مَعْنَى لَهُ.

This should be investigated inductively in the Law, examining how the Companions, may God be pleased with them, received commands when they appeared without contextual indications. Construing them as obligatory seems more prudent, since the circumstances of the Law show that its commands have a firm and decisive character. There is no sense in assigning them what someone claims is the least that a command signifies—recommendation—on the alleged ground that this always accompanies command.

N089 · translation. Qur'ān 77:46. The contrast here is between ordinary linguistic usage (جمهورية) and legal usage, not between political regimes.

G-B2-0429 · grammar. «في الإذن، وإنما تدل على التهديد باستعارة. وكذلك» — «أسلوب القصر بـ«إنّما». [Restriction: only / nothing but; identify what is being limited by the construction.]

201. Neither timing nor repetition follows from the form alone

R 201 · Bou Akl 247–248 · 1994 Arabic p. 122 · Bou Akl 2015 Arabic p. 282

والوجوب وَالنَّدْبُ مَعْنَيَانِ اثْنَانِ، فَإِمَّا أَنْ يَكُونَ اللَّفْظُ مُشْتَرَكًا بَيْنَهُمَا، أَوْ أَظْهَرَ فِي أَحَدِهِمَا. وَإِمَّا إِنْ لَمْ يَصِحَّ فِيهَا وَضْعٌ شَرْعِيٌّ فَصِيَغُ الْأَوَامِرِ مُجْمَلَةٌ بَيْنَ النَّدْبِ وَالْإِيجَابِ حَتَّى يَدُلَّ الدَّلِيلُ عَلَى أَحَدِهِمَا.

Obligation and recommendation are two distinct meanings. Either the expression is equivocal between them or one is its more apparent meaning. If no established legal convention can be shown for these forms, commands remain indeterminate between recommendation and obligation until evidence indicates one of them.

وَأَمَّا هَلْ تَدُلُّ صِيَغُهَا عَلَى الْفَوْرِ أَوِ التَّرَاخِي فَلَيْسَ ذَلِكَ مَوْجُودًا فِيهَا، وَإِنَّمَا يَتَّكِلُ الْأَمْرُ فِي ذَلِكَ عَلَى قَرَائِنِ الْأَحْوَالِ. وَلِذَلِكَ إِذَا أَشْكَلَ عَلَى الْمَأْمُورِ حَسُنَ أَنْ يَسْتَفْهِمَ بِمَتَى، وَكَذَلِكَ لَا يُقْتَضَى تَكْرَارُ الْفِعْلِ، وَإِنَّمَا تَقْتَضِي أَقَلَّ ذَلِكَ مَرَّةً وَاحِدَةً وَهِيَ كَالظَّاهِرَةِ فِيهَا، وَتُحْمَلُ ⟨عَلَى التَّكْرَارِ⟩ بَعْدَ أَنْ تَرِدَ الزِّيَادَةُ.

As for whether their forms signify immediacy or delay, this is not contained in them: the determination depends upon circumstantial indications. Hence, when the person commanded is uncertain, it is appropriate to ask “When?” Nor is repetition of the act required merely by the imperative. It requires at least one performance, and is as it were prima facie in that sense, and it is construed ⟨as repeated⟩ only when a further indication is subsequently supplied.

BA15-R08 · textual. Bou Akl’s 2015 manuscript-based Arabic p.282 and French p.283 construe the later qualifying addition as indicating repetition, whereas the bare imperative requires only one performance. Read the latter as default, not as a necessary limit.

BA-T122 · textual. قراءة الإسكوريال كما أثبتها بو عقل: «والوجوب»، مقابل «والواجب» في طبعة العلوي. (Escorial reading as reported by Bou Akl, 2015, Arabic p. 282; variant against al-ʿAlawī.)

G-B2-0432 · grammar. أسلوب القصر بـ«إنّما» — «موجودا فيها، وإنما يتكل الأمر في ذلك على». [Restriction: only / nothing but; identify what is being limited by the construction.]

SC2015-120 · textual. أ «وكذلك لا يقتضى تكرار الفعل»؛ ع «وكذلك لا يقتضي تكرار الفعل». البناء للمجهول [passive: repetition of an act is not necessitated by the bare imperative] [Bou Akl 2015, Arabic p. 282, critical apparatus].

202. Further questions about command forms

R 202 · Bou Akl 249 · 1994 Arabic p. 122 · Bou Akl 2015 Arabic p. 282

وَقَدْ يَتَعَلَّقُ بِالْكَلَامِ فِي هَذَا مَسَائِلُ نَحْنُ نَرْسُمُهَا عَلَى عَادَتِهِمْ.

Several questions attach to this discussion; we shall set them out in their customary manner.

203. A command after prohibition may merely remove the restriction

R 203 · Bou Akl 250 · 1994 Arabic p. 122, 123 · Bou Akl 2015 Arabic p. 284

مَسْأَلَةٌ: إِذَا وَرَدَ الْأَمْرُ بِالشَّيْءِ بَعْدَ الْحَظْرِ، ذَهَبَ قَوْمٌ أَنَّ ذَلِكَ قَرِينَةٌ تَصْرِفُ الِاقْتِضَاءَ الَّذِي شَأْنُهُ أَنْ يَقَعَ لَوْ وَرَدَ مُجَرَّدًا، إِمَّا عَلَى جِهَةِ ⟨الْوُجُوبِ⟩ وَإِمَّا عَلَى جِهَةِ النَّدْبِ إِلَى الْإِبَاحَةِ. وَذَهَبَ قَوْمٌ إِلَى أَنَّ ذَلِكَ لَيْسَ بِقَرِينَةٍ بَلْ تَبْقَى صِيغَةُ الِاقْتِضَاءِ عَلَى مَفْهُومِهَا الْأَوَّلِ.

Question. When a command to do something follows a prohibition, some hold that this circumstance redirects the demand which, standing alone, would signify either [obligation] or recommendation, so that it now signifies permission. Others hold that this is not a contextual indication: the form of demand retains its original understood meaning.

قَالَ أَبُو حَامِدٍ وَالْمُخْتَارُ أَنَّهُ إِذَا كَانَ النَّهْيُ عَارِضًا لِعِلَّةٍ وَعُلِّقَتْ صِيغَةُ اِفْعَلْ بِزَوَالِهِ، كَقَوْلِهِ تَعَالَى: «وَإِذَا حَلَلْتُمْ فَاصْطَادُوا» فَعُرْفُ الِاسْتِعْمَالِ يَدُلُّ عَلَى أَنَّهُ لِرَفْعِ الْحَرَجِ، وَإِنِ احْتَمَلَ أَنْ يَكُونَ نَدْبًا أَوْ ⟨إِيجَابًا⟩، لَكِنَّهُ أَظْهَرُ فِيمَا ذَكَرْنَا.

Abū Ḥāmid says: The preferred view is that, when the prohibition arises for a particular ground and the imperative “Do!” is made conditional upon its cessation—as in His exalted saying, “When you leave the state of consecration, hunt”—customary usage indicates the removal of restriction. It may admit recommendation or [obligation], but the meaning just mentioned is more apparent.

N090 · textual. Bou Akl 2015, BA §250 (Arabic p.284; French p.285), records الاقتضاء as the Escorial [أ] reading against al-ʿAlawī’s الاقتصار [ع], now adopted. In the same sentence both [أ] and [ع] repeat الندب; Bou Akl conjectures الوجوب for the first occurrence, which the present text represents as ⟨الوجوب⟩, not as manuscript evidence. The bracketed “obligation” in English reproduces that conjecture; it was already recognized as a necessary alternative in the earlier English draft.

N091 · translation. Qurʾān 5:2. The critical crux is at the end of Abū Ḥāmid’s view: both Escorial [أ] and al-ʿAlawī [ع] read إباحةً (“permission”), whereas Bou Akl (2015, BA §250, Arabic p.284, apparatus citing the Mustaṣfā) conjectures إيجابًا (“obligation”). The new reading is therefore ⟨إيجابًا⟩ and [obligation], visibly editorial. The transmitted “permission” remains in the audit; the legal alternatives must not be misrepresented as securely transmitted.

N092 · grammar. The imperative paradigm is printed أفعل. Here it is normalized as اِفْعَلْ (“Do!”), with hamzat al-waṣl and fatḥa on the second radical, rather than the distinct form-IV command أَفْعِلْ. This is an explicitly recorded orthographic correction; it does not change the quoted command قَاصْطَادُوا.

BA15-V203 · textual. 2015 full-edition control completed for R §203 = Bou Akl §250, Arabic p.284, French p.285. Distinguish manuscript-attested plus conjectural changes as detailed in the preceding notes. See the source-verified change ledger for exact old and new Arabic/English strings.

G-B2-0435 · grammar. الشرط بـ«لو» — «أن يقع لو ورد مجردا، إما على جهة». [Hypothetical or counterfactual condition; read the answer rather than treating لو as a simple past marker.]

204. Does making up a timed observance need a new command?

R 204 · Bou Akl 251 · 1994 Arabic p. 123 · Bou Akl 2015 Arabic p. 284

مَسْأَلَةٌ: مَذْهَبُ الْفُقَهَاءِ أَنَّ وُجُوبَ الْقَضَاءِ لَا يَفْتَقِرُ إِلَى أَمْرٍ مجد د. وَمَذْهَبُ الْمُحَصِّلِينَ أَنَّ الْأَمْرَ بِعِبَادَةٍ فِي وَقْتٍ مُعَيَّنٍ لَا يَقْتَضِي الْقَضَاءَ، لِأَنَّ تَخْصِيصَ الْعِبَادَةِ بِالزَّمَانِ كَالصَّلَاةِ فِي وَقْتِ الزَّوَالِ وَالصِّيَامِ فِي رَمَضَانَ كَتَخْصِيصِ الْحَجِّ بِالْمَكَانِ وَالصَّلَاةِ بِالْجِهَةِ. وَإِذَا فُقِدَ الشَّرْطُ الْمَأْمُورُ بِهِ ارْتَفَعَ الْأَمْرُ إِذَا كَانَ وُرُودُ الْأَمْرِ بِالشَّيْءِ مِنْ جِهَتِهِ.

Question. The jurists’ position is that an obligation to make up a missed observance (قضاء) does not require a [renewed] command. Those who carefully distinguish the issues hold that a command to worship at a specified time does not require making it up. Specifying a time for worship—prayer at midday or fasting in Ramadan—is like specifying a place for pilgrimage or a direction for prayer. If the commanded condition is absent, the command ceases to apply, when it was on account of that condition that the command concerning the act was issued.

N093 · textual. Printed محدد (“specified”) is retained in Arabic. The English understands the customary issue as requiring an أمر مجدد, a renewed command; this is a conjectural correction of the printed reading.

BA-T124 · textual. قراءة الإسكوريال كما أثبتها بو عقل: «مجد د»، مقابل «محدد» في طبعة العلوي. (Escorial reading as reported by Bou Akl, 2015, Arabic p. 284; variant against al-ʿAlawī.)

205. Compliance discharges a duty only when all its conditions are met

R 205 · Bou Akl 252 · 1994 Arabic p. 123 · Bou Akl 2015 Arabic p. 284

مَسْأَلَةٌ: ذَهَبَ الْفُقَهَاءُ إِلَى أَنَّ الْأَمْرَ يَقْتَضِي وقوع الإجزاء بالمأمور به إِذَا امْتُثِلَ مِنْ غَيْرِ أَنْ يَلْزَمَ قَضَاءٌ. وَقَالَ آخَرُونَ لا يقتضي الإجزاء بِدَلِيلِ أَنَّ مَنْ أَفْسَدَ حَجَّهُ مَأْمُورٌ بِالْإِتْمَامِ وَلَا يُجْزِيهِ بَلْ يَلْزَمُهُ الْقَضَاءُ.

Question. The jurists hold that a command entails the sufficiency of the commanded act (إجزاء) when it is fulfilled, without an obligation to make it up. Others say that a command does not entail sufficiency: someone who has invalidated his pilgrimage is commanded to complete it, yet this does not suffice, and he must perform it again.

وَالصَّوَابُ أَنْ يُقَالَ إِنَّ الْأَمْرَ يَقْتَضِي إِجْزَاءَ الْمَأْمُورِ بِهِ إِذَا أُدِّيَ بِكَمَالِهِ وَوَصْفِهِ وَجَمِيعِ شُرُوطِهِ، وَأَمَّا إِنْ تَطَرَّقَ إِلَيْهِ خَلَلٌ كَالْحَجِّ الْفَاسِدِ فَلَا يَدُلُّ الْأَمْرُ عَلَى الْإِجْزَاءِ. فَهَذَا هُوَ الْقَوْلُ فِي صِيَغِ الْأَمْرِ.

The correct formulation is that a command entails the sufficiency of the commanded act when it is performed completely, with its prescribed character and all its conditions. If a defect affects it, as with an invalidated pilgrimage, the command does not indicate sufficiency. This completes the discussion of command forms.

N094 · textual. The first two occurrences of the technical term are printed الجزاء and إلا جزاء. Their sense is الإجزاء, "sufficiency/discharge," as the paragraph's final sentences make explicit. The second is read لا يقتضي الإجزاء, "does not entail sufficiency"; reading an exception ("nothing but recompense") would destroy the argument.

BA-M205-46 · textual. Escorial [أ] الإجزاء; al-ʿAlawī [ع] الجزاء. Technical ijzāʾ, not jazāʾ. (Bou Akl 2015, Arabic p. 284; §252.)

BA-M205-47 · textual. Escorial [أ] الإجزاء; al-ʿAlawī [ع] إلا جزاء. Restores negation of sufficiency in the competing view. (Bou Akl 2015, Arabic p. 284; §252.)

G-B2-0441 · grammar. «امتثل من غير أن يلزم قضاء. وقال آخرون لا» مع المصدر المؤوَّل «مِنْ غَيْرِ أَنْ». ["Without" a further act, fact, or condition being present. The أَنْ-clause is a verbal-noun complement of غَيْر, not an adversative "nevertheless".]

BA-F126 · textual. طبعة بو عقل، شاهد الإسكوريال [أ]: «ولا يجزيه بل يلزمه»؛ مقابل قراءة العلوي [ع]: «ولا يجزئه بل يلزمه». قراءة الرسم في المخطوط؛ المراد الإجزاء أي سقوط طلب القضاء، لا الجزاء بمعنى المكافأة. [Bou Akl 2015, facing Arabic–French edition; this is a reported manuscript reading, not an independent examination of Escorial 1235.]

206. Does prohibition entail invalidity?

R 206 · Bou Akl 253 · 1994 Arabic p. 123 · Bou Akl 2015 Arabic p. 286

وَيَنْبَغِي أَنْ تَعْلَمَ أَنَّ الْقَوْلَ فِي صِيَغِ النَّهْيِ كَالْقَوْلِ فِي الْأَمْرِ، وَأَنَّ مَسَائِلَهُ مُعَادِلَةٌ لِتِلْكَ. فَمَنْ يَحْمِلُ صِيغَةَ الْأَمْرِ عَلَى الْإِيجَابِ يَحْمِلُ صِيغَةَ النَّهْيِ عَلَى الْحَظْرِ وَالتَّحْرِيمِ وَعَلَى فَسَادِ الْمَنْهِيِّ. وَسَوَاءٌ كَانَ النَّهْيُ فِي الشَّيْءِ مُطْلَقًا أَوْ مُقَيَّدًا بِصِفَةٍ أَوْ شَرْطٍ، فَإِنَّهُ يَعُودُ النَّهْيُ بِفَسَادِ الْأَصْلِ مِنْ جِهَةِ مَا قُيِّدَ بِهِ وَاشْتُرِطَ.

Know that the discussion of prohibitive forms parallels that of commands, and its questions correspond to theirs. Whoever construes a command form as imposing obligation construes a prohibitive form as imposing interdiction, and prohibition as indicating the invalidity of the prohibited act. Whether the prohibition concerns the act without qualification or with a description or condition, it renders the underlying act invalid insofar as it bears that qualification or condition.

G-B2-0443 · grammar. «أسلوب التسوية — سواء كان النهي في الشيء مطلقا. وسواء كان المنهي» فساد. [Whether one alternative or another; both possibilities fall under the same assessment.]

G-B2-0444 · grammar. «الفاء الاستئنافية مع «إنَّ/إنْ/إنّما — «أو شرط، فإنه يعود النهي بفساد الأصل من». [The initial فـ links the reasoning. Distinguish إنَّ (assertion), إنْ (condition) and إنّما (restriction) from the words and vowelled context.]

BA-F128 · textual. طبعة بو عقل، شاهد الإسكوريال [أ]: «على الحظر والتحريم وعلى فساد المنهي»؛ مقابل قراءة العلوي [ع]: «على الحظر والتحريم على فساد المنهي». حرف العطف في [أ] يصل بطلان المنهي عنه بتحريمه. [Bou Akl 2015, facing Arabic–French edition; this is a reported manuscript reading, not an independent examination of Escorial 1235.]

207. Returning to the earlier account of the forbidden

R 207 · Bou Akl 253 · 1994 Arabic p. 123 · Bou Akl 2015 Arabic p. 286

وَهَذِهِ هِيَ الْمَسْأَلَةُ الَّتِي تَقَدَّمَ ذِكْرُهَا فِي الْجُزْءِ الْأَوَّلِ، وَقُلْنَا إِنَّ الْأَلْيَقَ بِالتَّكَلُّمِ فِيهَا هُوَ هَذَا الْمَوْضِعُ.

This is the question mentioned earlier in Part One, where we said that the present place would be more appropriate for discussing it.

208. Absolute prohibition and dislike: the need for an indication

R 208 · Bou Akl 254 · 1994 Arabic p. 124 · Bou Akl 2015 Arabic p. 286

وَأَمَّا مَنْ كَانَ عِنْدَهُ صِيغَةُ الْأَمْرِ مُتَرَدِّدَةً بَيْنَ الْإِيجَابِ وَالنَّدْبِ، فَإِنَّهُ يَلْزَمُهُ أَنْ يَكُونَ لَفْظُ النَّهْيِ أَيْضًا مُتَرَدِّدًا بَيْنَ الْحَظْرِ وَالْكَرَاهَةِ، وَسَوَاءٌ وَرَدَ فِي أَصْلِ الشَّيْءِ مُطْلَقًا أَوْ مُقَيَّدًا بِصِفَةٍ أَوْ سَبَبٍ خَارِجٍ عَنْهُ.

Anyone who considers a command form undecided between obligation and recommendation must likewise consider a prohibitive expression undecided between interdiction and disapproval. This holds whether it concerns the underlying act without qualification or with a description or a cause external to it.

اللَّهُمَّ إِلَّا أَنَّ بَعْضَ النَّاسِ مِمَّنْ يَرَى أَنَّ لِلْأَمْرِ وَالنَّهْيِ صِيغَةً تَقْتَضِي الْإِيجَابَ وَالْحَظْرَ يَجْعَلُ كَوْنَهَا إِذَا وَرَدَتْ فِي شَيْءٍ مُقَيَّدٍ بِسَبَبٍ مَا خَارِجٍ عَنِ الشَّيْءِ، قَرِينَةً تَخْرُجُ بِهَا الصِّيَغُ عَنْ كَوْنِهَا مُفِيدَةً لِلْإِيجَابِ وَالْحَظْرِ إِلَى النَّدْبِ وَالْكَرَاهِيَةِ. فَهَذَا هُوَ الْقَوْلُ فِي الْأَدِلَّةِ الْمُتَلَقَّاةِ مِنْ جِهَةِ الْأَلْفَاظِ.

Some who hold that commands and prohibitions have forms requiring obligation and interdiction nevertheless treat their application to an act qualified by an external cause as a contextual indication. On this account the forms cease to convey obligation and interdiction and instead convey recommendation and disapproval. This completes the discussion of evidence received through expressions.

G-B2-0448 · grammar. «أسلوب التسوية — الحظر والكراهة، وسواء ورد في أصل الشيء مطلقا». [Whether one alternative or another; both possibilities fall under the same assessment.]

G-B2-0449 · grammar. «استثناء أو استدراك بـ«إلّا أنّ» — عنه. اللهم إلا أن بعض الناس ممن يرى أن». [Except that / however; the contextual function determines which qualification is intended.]

209. From commands to the contextual indications called qiyās

R 209 · Bou Akl 255 · 1994 Arabic p. 124 · Bou Akl 2015 Arabic p. 286

وَقَدْ بَقِيَ عَلَيْنَا الْقَوْلُ فِي الْقَرَائِنِ الدَّالَّةِ كَسُكُوتِهِ وَإِقْرَارِهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ، لَكِنْ قَبْلَ ذَلِكَ يَجِبُ أَنْ نَنْظُرَ فِي الدَّلِيلِ الَّذِي يَعْرِفُونَهُ بِالْقِيَاسِ.

It remains for us to discuss signifying contextual indications, such as the Prophet’s silence and tacit approval, God bless him and grant him peace. Before that, however, we must examine the evidence they call qiyās.

210. The jurists’ definition of analogy: original, derivative and ground

R 210 · Bou Akl 256–257 · 1994 Arabic p. 124, 125 · Bou Akl 2015 Arabic p. 288

وَيَنْبَغِي أَنْ نَنْظُرَ فِيهِ هَلْ هُوَ دَلِيلٌ شَرْعِيٌّ أَمْ لَا، وَإِنْ كَانَ دَلِيلًا شَرْعِيًّا فَهَلْ هُوَ مِنْ جِنْسِ مَا تَقَدَّمَ أَمْ لَا، وَنَجْعَلَ سَبِيلَنَا فِي الْفَحْصِ عَنْ ذَلِكَ مِمَّا يَدُلُّ عَلَيْهِ اسْمُ الْقِيَاسِ عِنْدَهُمْ فِي هَذِهِ الصِّنَاعَةِ فَنَقُولُ:

We must examine whether qiyās is legal evidence and, if it is, whether it belongs to the kinds already discussed. Our approach will be to investigate what the term qiyās signifies for them in this discipline. We say:

إِنَّهُمْ يَرْسُمُونَ هَذَا الْمَعْنَى بِأَنَّهُ حَمْلُ شَيْئَيْنِ أَحَدِهِمَا عَلَى الْآخَرِ فِي إِثْبَاتِ حُكْمٍ أَوْ نَفْيِهِ، إِن كَانَ الْإِثْبَاتُ أَوِ النَّفْيُ فِي أَحَدِهِمَا أَظْهَرَ مِنْهُ فِي الْآخَرِ، وَذَلِكَ لِأَمْرٍ جَامِعٍ بَيْنَهُمَا مِنْ عِلَّةٍ أَوْ صِفَةٍ. وَالشَّيْءَ الَّذِي وُجُودُ الْحُكْمِ فِيهِ أَظْهَرُ يُسَمُّونَهُ الْأَصْلَ، وَالشَّيْءَ الَّذِي يُوجَبُ لَهُ الْحُكْمُ مِنْ أَجْلِ وُجُودِهِ فِي الْأَصْلِ يُسَمُّونَهُ الْفَرْعَ. وَالصِّفَةَ الْجَامِعَةَ بَيْنَهُمَا أَوِ السَّبَبَ يُسَمُّونَهُ الْعِلَّةَ.

They describe it as assimilating one of two things to the other in affirming or denying a ruling, when the affirmation or denial is more apparent in one than in the other, because they share a ground or attribute. They call the thing in which the ruling is more apparent the original case (أصل); the thing assigned the ruling because it holds in the original case, the derivative case (فرع); and the shared attribute or cause, the operative ground (علة).

BA004 · scholarship. The jurists' initial account names an original case (aṣl), a derivative case (farʿ), and a shared ʿilla. Ibn Rushd then subjects the extension of the term qiyās itself to analysis: the issue is what mental operation is really being performed, not merely which inference label jurists conventionally use. Compare Bou Akl's distinction between qiyās as juristic umbrella term and as syllogismos in strict logic: Bou Akl, "Averroes on Juridical Reasoning," in Interpreting Averroes: Critical Essays (Cambridge UP, 2018), pp. 45–48.

G-B2-0453 · grammar. الشرط الوصلي بـ«وإن كان» — «أم لا، وإن كان دليلا شرعيا فهل هو من». [Even if / although; the condition does not overturn the principal judgement.]

BA-X131 · textual. قراءة [أ] عند بو عقل «إن» في موضع «إذا» من طبعة [ع]. [Escorial reading according to Bou Akl 2015, Arabic p. 290; the earlier edition reads differently.]

211. Nonexistence, negation and the scope of the definition

R 211 · Bou Akl 258 · 1994 Arabic p. 125 · Bou Akl 2015 Arabic p. 288

وَيَنْبَغِي أَنْ لَا تَأْخُذَ عَلَيْنَا لِقَوْلِنَا حَمْلُ شَيْئَيْنِ، وَلَمْ نَقُلْ مَعْلُومَيْنِ عَلَى رَسْمِهِمْ، مِنْ قِبَلِ أَنَّ الشَّيْءَ — زَعَمُوا — لَا يَنْطَلِقُ عَلَى الْمَعْدُومِ، فَإِنَّ الْمَعْدُومَ يَكَادُ لَا يُقَاسُ عَلَيْهِ. وَأَيْضًا فَلَوْ سَلَّمْنَا لَهُمْ هَذَا لَمْ يَكُنْ مُمْتَنِعًا أَنْ يُسَمَّى الْمَعْدُومُ شَيْئًا إِذْ كَانَ لَهُ وُجُودٌ فِي النَّفْسِ، لِأَنَّا نَقُولُ مِنَ الْأَشْيَاءِ مَا هُوَ فِي النَّفْسِ كَحَالِهِ خَارِجَ النَّفْسِ، وَمِنْهَا مَا هُوَ فِي النَّفْسِ مِنْ غَيْرِ أَنْ يَكُونَ خَارِجَ النَّفْسِ. وَبِالْجُمْلَةِ فَقَدْ كَانَ يَنْبَغِي لِلْمُتَكَلِّمِينَ أَلَّا يُشَاحُّوا الْمُعْتَزِلَةَ فِي مِثْلِ هَذَا.

One should not object to our saying "two things" rather than, as in their description, "two objects of knowledge," on the alleged ground that "thing" does not apply to the nonexistent: the nonexistent is scarcely ever made a basis of comparison. Even granting their point, nothing prevents calling the nonexistent a thing insofar as it exists in the soul. Some things are in the soul as they are outside it; others are in the soul without existing outside it. In general, the theologians should not have quibbled with the Muʿtazila over this.

وَكَذَلِكَ أَيْضًا لَا يُلْتَفَتُ إِلَى قَوْلِهِمْ: لِأَمْرٍ جَامِعٍ بَيْنَهُمَا مِنْ صِفَةٍ أَوْ سَبَبٍ أَوْ نَفْيِهِمَا عَنْهُمَا. فَإِنَّ النَّفْيَ مِنْ جِهَةِ مَا هُوَ نَفْيٌ لَا يُوجِبُ حُكْمًا وَاحِدًا لِشَيْئَيْنِ، اللَّهُمَّ إِلَّا مِنْ جِهَةِ أَنَّ النَّفْيَ فِي مَوَاضِعَ قُوَّتُهُ قُوَّةُ الْعَدَمِ، وَالْعَدَمُ تَابِعٌ لِصِفَةٍ مَا تَقْتَضِي حُكْمًا لِشَيْئَيْنِ. وَقَدْ جَمَحَ بِنَا الْقَوْلُ عَمَّا كُنَّا قَصَدْنَا إِلَيْهِ مِنْ أَوَّلِ الْأَمْرِ فَلْنَرْجِعْ إِلَى حَيْثُ كُنَّا فَنَقُولُ:

Nor should one attend to their saying, "because of a common factor, whether an attribute or a cause, or the negation of these in both." Negation as negation does not require one ruling for two things—except where negation has the force of privation, and privation follows an attribute that requires a ruling for both things. Our discussion has carried us away from our initial purpose. Let us return to where we were and say:

N095 · translation. The contrast between نفي (negation) and عدم (privation/nonbeing) is retained. Here عدم functions as a privation associated with a positive attribute, not simply as the logical operation of negating.

G-B2-0455 · grammar. «مِنْ غَيْرِ أَنْ» مع المصدر المؤوَّل — «النفس من غير أن يكون خارج النفس. وبالجملة فقد». [“Without” a further act, fact, or condition being present. The أَنْ-clause is a verbal-noun complement of غَيْر, not an adversative “nevertheless”.]

G-B2-0456 · grammar. «اللَّهُمَّ إِلَّا مِنْ جِهَةِ» لقصر الاستثناء — «لشيئين، اللهم إلا من جهة أن النفي في». [“Except insofar as”: introduces a restricted qualification in the argument, not a standard negative-exceptive formula.]

G-B2-0457 · grammar. الفاء الاستئنافية مع «إنَّ/إنْ/إنّما» — «على المعدوم، فإن المعدوم يكاد لا يقاس عليه». [The initial فـ links the reasoning. Distinguish إنَّ (assertion), إنْ (condition) and إنّما (restriction) from the words and vowelled context.]

212. Most legal qiyās is substitution within an understood meaning

R 212 · Bou Akl 259–260 · 1994 Arabic p. 125, 126 · Bou Akl 2015 Arabic p. 290

إِنَّهُ إِذَا تُؤُمِّلَ هَذَا الْمَعْنَى الَّذِي يَعْنُونَهُ بِالْقِيَاسِ فِي هَذَا الْمَوْضِعِ ظَهَرَ أَنَّ ذَلِكَ لَيْسَ بِقِيَاسٍ، وَأَنَّهُ مِنْ جِنْسِ إِبْدَالِ الْجُزْئِيِّ مَكَانَ الْكُلِّيِّ. وَالدَّلِيلُ عَلَى ذَلِكَ أَنَّ الْأَصْلَ إِنَّمَا تَعَلَّقَ بِهِ الْحُكْمُ بِالنَّصِّ أَوْ بِالْإِجْمَاعِ، فَإِنْ صُرِّحَ بِالْعِلَّةِ الْمُوجِبَةِ لِلْحُكْمِ، وَكَانَتْ أَعَمَّ مِنَ الْأَصْلِ، فَهَذَا يَلْتَحِقُ بِالْعَامِّ، مِثْلَ قَوْلِهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ فِي سُؤْرِ الْهِرَّةِ: «إِنَّهَا لَيْسَتْ بِنَجَسٍ لِأَنَّهَا مِنَ الطَّوَّافِينَ عَلَيْكُمْ أَوِ الطَّوَّافَاتِ» وَلَهَا أَيْضًا مَرَاتِبُ، وَقَدْ أَجَازَ مِثْلَ هَذَا كَثِيرٌ مِمَّنْ نَفَى الْقِيَاسَ.

Examining what they mean by qiyās here shows that it is not a syllogism, but belongs to using a particular expression in place of the intended universal. The evidence is that the original case receives its ruling through a text or consensus. If the operative ground requiring the ruling is expressly stated and is more general than the original case, this belongs to general expression. An example is his saying, God bless him and grant him peace, concerning water left by a cat: “[The cat] is not impure, because it is among those that circulate around you, male or female.” This too has degrees; many who reject qiyās allow such cases.

وَأَمَّا إِذَا لَمْ يَكُنْ صَرَّحَ بِالْعِلَّةِ الْمُوجِبَةِ لِلْحُكْمِ وَاقْتَضَاهَا مَفْهُومُ اللَّفْظِ، وَكَانَتْ أَعَمَّ مِنَ الْأَصْلِ، كَانَ مِنْ بَابِ إِبْدَالِ الْجُزْئِيِّ مَكَانَ الْكُلِّيِّ. وَعِنْدَ ذَلِكَ أَيُّمَا صَحَّ بِالِاجْتِهَادِ أَوْ بِالْحِسِّ أَنَّهُ دَاخِلٌ تَحْتَ ذَلِكَ الْكُلِّيِّ أَلْحَقْنَا بِهِ ذَلِكَ الْحُكْمَ. وَمِثَالُهُ نَهْيُهُ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ عَنِ الشُّرْبِ فِي آنِيَةِ الْفِضَّةِ، فَإِنَّ الْمَفْهُومَ مِنْهُ السَّرَفُ، فَلِذَلِكَ أَلْحَقْنَا بِهِ آنِيَةَ الذَّهَبِ.

If the ground requiring the ruling is not expressly stated, but the expression’s understood meaning requires it and it is more general than the original case, this is using a particular expression in place of the intended universal. We then assign the ruling to anything shown, through independent inquiry or sense perception, to fall under that universal. An example is his prohibition of drinking from silver vessels, God bless him and grant him peace. Extravagance is understood from it; hence we extend the ruling to gold vessels.

N096 · translation. The Arabic قياس in the denial is rendered “syllogism,” preserving Ibn Rushd’s distinction between actual inference and the jurists’ broader use of qiyās. The editor’s suggestion on p126 that الكلي and الجزئي should be reversed is not adopted: the printed order agrees with §§191 and 221. The particular wording stands in for an intended universal meaning.

N097 · translation. سؤر is the liquid remaining after an animal has drunk. The cat hadith’s masculine/feminine alternatives are preserved rather than silently replaced with a different transmitted wording.

BA005 · scholarship. Here the particular expression stands in the discourse where the intended universal could have stood; the judge/reader recovers that universal through the indication of the expression or its recognized contextual sign. This is not the construction of an extra-textual universal from natural causality. Bou Akl describes the procedure as ibdāl, or substitution, and contrasts it with strict inferential qiyās. The corresponding reference in his 2015 numbering is §259; this reader’s §212 follows al-ʿAlawī 1994. Source: Bou Akl, “Averroes on Juridical Reasoning,” in Interpreting Averroes: Critical Essays (Cambridge UP, 2018), pp. 49–51.

BA15-I07 · interpretive. Strict vs broad analogy. Bou Akl 2015 intro pp.57–70 distinguishes deriving a ruling by recovering an intended universal from a case where a legal relation between two particulars cannot be supported by such an indicated universal. The narrow genuine qiyās is not denied; his reading is a scholarly argument and needs case-by-case Bidaya testing.

G-B2-0458 · grammar. أسلوب القصر بـ«إنّما» — «أن الأصل إنما تعلق به الحكم بالنص أو». [Restriction: only / nothing but; identify what is being limited by the construction.]

213. What warrants substitution: relevant contextual indications

R 213 · Bou Akl 261 · 1994 Arabic p. 126 · Bou Akl 2015 Arabic p. 290

وَإِذَا كَانَ هَذَا هَكَذَا، وَكَانَ مَا يَعْنُونَهُ بِالْقِيَاسِ فِي هَذِهِ الصِّنَاعَةِ فِي الْأَكْثَرِ رَاجِعًا إِلَى مَا تَقْتَضِيهِ الْأَلْفَاظُ بِمَفْهُومَاتِهَا، وَكَانَتِ الْأَلْفَاظُ إِنَّمَا تَقْتَضِي ذَلِكَ بِالْقَرَائِنِ الَّتِي تَقْتَرِنُ بِهَا، وَلَكِنْ لَيْسَ أَيَّ قَرِينَةٍ اتَّفَقَتْ لَكِنِ الْقَرَائِنَ الَّتِي يَشْهَدُ الشَّرْعُ بِالِالْتِفَاتِ إِلَى جِنْسِهَا، فَإِنَّ الْحَالَ فِي ذَلِكَ كَالْحَالِ فِي الْمُخَاطَبَةِ الْجُمْهُورِيَّةِ.

Since this is so, what they mean by qiyās in this discipline generally comes back to what expressions require through their understood meanings. Expressions require this only through accompanying contextual indications—not just any indications, but those whose kind the Law demonstrably takes into account. The situation is thus like that of ordinary communication.

فَكَمَا أَنَّ الْقَرَائِنَ الَّتِي يُعَوِّلُ عَلَيْهَا الْأَعْرَابِيُّ عِنْدَ مُخَاطَبَةِ غَيْرِهِ تَكُونُ مَعْلُومَةً عِنْدَ الْمُخَاطَبِ، وَقَدْ عَرَفَ الْتِفَاتَ الْمُخَاطِبِ فِي حِينِ مُخَاطَبَتِهِ إِلَيْهَا، كَذَلِكَ يَنْبَغِي أَنْ يَكُونَ فِي الشَّرْعِ. وَنَحْنُ نُشِيرُ إِلَى وَاحِدَةٍ وَاحِدَةٍ مِنْهَا، وَنُرَتِّبُهَا بِحَسَبِ مَرْتَبَتِهَا فِي الْبَيَانِ.

Just as the contextual indications on which a Bedouin relies when addressing another must be known to the addressee, and the speaker's attention to them in speaking must be known, so it must be in the Law. We shall indicate them individually and arrange them according to the rank of each in clarity.

BA006 · scholarship. The qualification "not just any contextual indication" is decisive. Ibn Rushd restricts extension to a class of qarāʾin whose relevance the Law itself witnesses. Thus interpreting implied legal meaning is neither private guesswork nor an unrestricted appeal to similarity. Bou Akl quotes and analyzes this passage as 2015 §261; current §213. Source: Bou Akl, "Averroes on Juridical Reasoning," in Interpreting Averroes: Critical Essays (Cambridge UP, 2018), pp. 49–50.

G-B2-0461 · grammar. أسلوب القصر بـ«إنّما» — «وكانت الألفاظ إنما تقتضي ذلك بالقرائن التي تقترن». [Restriction: only / nothing but; identify what is being limited by the construction.]

BA-F129 · textual. طبعة بو عقل، شاهد الإسكوريال [أ]: «ونرتبها بحسب مرتبتها في البيان»؛ مقابل قراءة العلوي [ع]: «ونرتبها بحسب مراتبها في البيان». رُتبة كل قرينة في البيان، لا «المراتب» جمعاً في هذا الموضع. [Bou Akl 2015, facing Arabic–French edition; this is a reported manuscript reading, not an independent examination of Escorial 1235.]

214. Certain, probable and indeterminate extensions

R 214 · Bou Akl 262 · 1994 Arabic p. 126, 127 · Bou Akl 2015 Arabic p. 292

وَلِأَنَّ الْقَرَائِنَ كَمَا تَقَدَّمَ مِنْ قَوْلِنَا أَحَدُ مَا يَجْعَلُ الْقَوْلَ كَالنَّصِّ بِمَفْهُومِهِ، وَذَلِكَ إِذَا كَانَتْ قَاطِعَةً فِي اسْتِعَارَتِهِ وَإِبْدَالِهِ، أَوْ كَالظَّاهِرِ بِمَفْهُومِهِ إِذَا لَمْ تَكُنْ قَاطِعَةً بَلْ أَكْثَرِيَّةً، أَوْ كَالْمُجْمَلِ إِذَا كَانَتْ مُتَرَدِّدَةً، فَقَدْ يَنْبَغِي هَهُنَا أَنْ نُشِيرَ إِلَى مَرَاتِبِهَا وَإِنْ كَانَتْ عَسِيرًا مَا تَنْضَبِطُ فَنَقُولُ:

As we said, contextual indications can make a statement unambiguous through its understood meaning, when they establish its metaphor or substitution decisively; or prima facie through its understood meaning, when they are preponderant rather than decisive; or indeterminate, when they remain undecided. We should therefore indicate their ranks here, although they are difficult to delimit precisely. We say:

G-B2-0465 · grammar. الشرط الوصلي بـ«وإن كان» — «إلى مراتبها وإن كانت عسيرا ما تنضبط فنقول». [Even if / although; the condition does not overturn the principal judgement.]

215. The stronger case: a fortiori indication

R 215 · Bou Akl 263 · 1994 Arabic p. 127 · Bou Akl 2015 Arabic p. 292

أَمَّا الْمَرْتَبَةُ الْأُولَى وَهِيَ فِي حُكْمِ النَّصِّ فَأَنْ يَكُونَ الْمَسْكُوتُ عَنْهُ أَحْرَى مِنَ الْمَنْطُوقِ بِهِ فِي تَعَلُّقِ الْحُكْمِ بِهِ كَقَوْلِهِ تَعَالَى: «إِنَّ اللَّهَ لَا يَظْلِمُ مِثْقَالَ ذَرَّةٍ»، وَقَوْلِهِ عَزَّ وَجَلَّ: «وَلَا تَقُلْ لَهُمَا أُفٍّ». وَمِثْلُ هَذَا قَوْلُهُ عَلَيْهِ السَّلَامُ: «أَدُّوا الْخَائِطَ وَالْمِخْيَطَ»، وَمَا أَشْبَهَهَا، وَلَهَذَا عَرْضٌ فِي الْبَيَانِ. وَهَذَا يُسَمُّونَهُ بِفَحْوَى الْخِطَابِ، وَأَكْثَرُهُمْ لَيْسَ يُسَمِّيهِ قِيَاسًا.

The first rank has the status of an unambiguous expression: the ruling applies with greater reason to the unmentioned case than to the stated one. Examples are His exalted saying, “God does not wrong anyone by an atom’s weight,” and His saying, mighty and exalted, “Do not say ‘Uff’ to the two of them”; likewise the Prophet’s saying, peace be upon him, “Hand over the thread and the needle,” and similar expressions. This has a range of clarity. They call it the purport of the discourse (فحوى الخطاب), and most do not call it qiyās.

N098 · translation. Qurʾān 4:40 and 17:23. The relation is a fortiori: forbidding the lesser harm indicates the graver harm with greater reason. عرض here means a range or breadth of degrees, not an accidental property.

N099 · textual. Printed الخائط is retained; English “thread” understands الخياط. See the lexical and textual note at §191.

BA007 · scholarship. The a fortiori treatment shows how a prohibition against a lesser case may semantically include a more serious unstated case. Bou Akl distinguishes this mode of apprehending the legislator’s intention from moving directly between two particular cases by an inferred resemblance. “No qiyās” in the strict sense here does not mean “no interpretive reasoning.” Source: Bou Akl, “Averroes on Juridical Reasoning,” in Interpreting Averroes: Critical Essays (Cambridge UP, 2018), pp. 47–50, 52–54.

216. Equal extension: the legal meaning beyond a named individual

R 216 · Bou Akl 264 · 1994 Arabic p. 127 · Bou Akl 2015 Arabic p. 292

الْمَرْتَبَةُ الثَّانِيَةُ: أَنْ يَكُونَ الْمَسْكُوتُ عَنْهُ فِي مَعْنَى الْمَنْطُوقِ بِهِ فِي الْحُكْمِ، كَقَوْلِهِ عَلَيْهِ السَّلَامُ: «مَنْ أَعْتَقَ شِرْكًا لَهُ فِي عَبْدٍ قُوِّمَ عَلَيْهِ الْبَاقِي»، فَإِنَّ الْأَمَةَ تَلْتَحِقُ بِالْعَبْدِ وَهِيَ فِي مَعْنَاهُ. وَهَذَا يُسَمُّونَهُ بِالْقِيَاسِ فِي مَعْنَى الْأَصْلِ. وَلَهَذَا أَيْضًا عَرْضٌ فِي الظُّهُورِ وَقِلَّةِ الظُّهُورِ.

The second rank is where the unmentioned case has the same relevant meaning as the stated case with respect to the ruling. An example is his saying, peace be upon him, “Whoever emancipates his share in a slave must have the remainder assessed against him.” The case of a female slave is included with that of a male slave, since it has the same relevant meaning. They call this analogy within the meaning of the original case (القياس في معنى الأصل). This too has a range of greater and lesser clarity.

G-B2-0468 · grammar. الفاء الاستئنافية مع «إنَّ/إنْ/إنّما» — «عليه الباقي»، فإن الأمة تلتحق بالعبد وهي في». [The initial فـ links the reasoning. Distinguish إنَّ (assertion), إنْ (condition) and إنّما (restriction) from the words and vowelled context.]

217. Suitable grounds, recognised goods and the limit of legislation

R 217 · Bou Akl 265–266 · 1994 Arabic p. 127, 128 · Bou Akl 2015 Arabic p. 292

الْمَرْتَبَةُ الثَّالِثَةُ: وَهَذِهِ الْمَرْتَبَةُ مِنْ جِنْسِ الثَّانِيَةِ، أَعْنِي أَنَّهَا ظَاهِرَةٌ، لَكِنَّهَا فِي أَكْثَرِ الْمَوَاضِعِ تَضْعُفُ عَنْ مرتبته فِي الْبَيَانِ، فَلِذَلِكَ جَعَلْنَاهَا ثَالِثَةً. وَهِيَ أَنْ يَكُونَ الْمَسْكُوتُ عَنْهُ يَلْتَحِقُ بِالْمَنْطُوقِ بِهِ لِمَصْلَحَةٍ جَامِعَةٍ قَدْ شَهِدَ الشَّرْعُ لِجِنْسِهَا بِأَنَّهُ مَصْلَحَةٌ. وَهَذَا يُسَمُّونَهُ الْقِيَاسَ الْمُخَيِّلَ وَالْمُنَاسِبَ.

The third rank is of the same kind as the second: it is prima facie. In most cases, however, its clarity is weaker, so we have placed it third. Here the unmentioned case is joined to the stated one because of a shared benefit (مصلحة), whose kind the Law has acknowledged as beneficial. They call this analogy from a plausible, suitable ground (القياس المخيل والمناسب).

وَلِهَذَا الْجِنْسِ مَرَاتِبُ فِي الْقُرْبِ وَالْبُعْدِ، فَمَتَى كَانَ قَرِيبًا جِدًّا سَمَّوْهُ الْمُنَاسِبَ الْمُلَائِمَ، وَهُنَا انْتَهَى كَثِيرٌ مِنَ الْقَائِلِينَ بِالْقِيَاسِ. وَمَتَى كَانَ مُتَوَسِّطًا فِي الْقُرْبِ وَالْبُعْدِ لَمْ يُطْلِقُوا عَلَيْهِ اسْمَ الْمُلَائِمِ، وَسَمَّوْهُ الْمُنَاسِبَ وَالْمُخَيِّلَ. وَمَتَى كَانَ بَعِيدًا جِدًّا وَأَعَمَّ شَيْءٍ، كَقَوْلِنَا مَصْلَحَةٌ، فَإِنَّ كَثِيرًا مِنَ الْقَائِلِينَ بِالْقِيَاسِ لَا يَقُولُ بِهِ. وَمِثْلُ هَذَا يَرَاهُ بَعْضُ الْفُقَهَاءِ فِي طَلَاقِ الْمَرِيضِ أَنَّهُ لَا يَقْطَعُ الْمِيرَاثَ.

This kind has degrees of proximity and remoteness. When it is very close, they call it a congruent suitable ground (المناسب الملائم); many proponents of qiyās stop here. When it is intermediate, they do not call it congruent, but suitable and plausible. When it is very remote and completely general, as when we simply say “benefit,” many proponents of qiyās reject it. Some jurists reason in this way when holding that divorce pronounced by a sick man does not cut off inheritance.

وَحَقٌّ لِهَذَا الصِّنْفِ أَنْ يُرْفَضَ وَلَا يُجْعَلَ دَلِيلًا شَرْعِيًّا لِأَنَّهُ كَثِيرًا مَا تَتَشَعَّبُ الْمَصَالِحُ وَتَخْتَلِفُ، وَذَلِكَ بِحَسَبِ وَقْتٍ وَقْتٍ وَحَالَةٍ حَالَةٍ. وَالْقَائِلُونَ بِمِثْلِ هَذَا لَيْسَ هُمْ فِي الْحَقِيقَةِ مُسْتَنْبِطِينَ عَنِ الشَّرْعِ، بَلْ هُمْ شَارِعُونَ. وَمِنْ هَذَا قَوْلُ بَعْضِهِمْ: يَحْدُثُ لِلنَّاسِ أَحْكَامٌ بِقَدْرِ مَا أَحْدَثُوا مِنَ الْفُجُورِ، أَوْ قَوْلٌ شَبِيهٌ بِهَذَا. وَقَدْ عُذِلَ مَالِكٌ رَحِمَهُ اللَّهُ عَلَى هَذَا، لِأَنَّهُ كَثِيرًا مَا يَلْتَفِتُ إِلَى هَذَا الْجِنْسِ.

This last kind rightly deserves rejection as legal evidence, since benefits often diverge and vary with each time and circumstance. Those who reason this way are in fact legislating, rather than deriving rulings from the Law. An example is someone’s saying, “New rulings arise for people in proportion to the new wickedness they introduce,” or words to that effect. Mālik, God have mercy upon him, has been reproached for this, because he often attends to this kind.

N101 · translation. The rejection concerns the last, remote and unrestricted appeal to benefit; it should not be expanded into rejection of every legally grounded consideration of maṣlaḥa. The inheritance example concerns the effect of a sick husband’s divorce on the wife’s claim.

BA008 · scholarship. The suitable ground or recognized maṣlaḥa in this section is restricted by the explicit condition that the Law acknowledges the relevant kind. Bou Akl’s analysis of semantic substitution cautions against treating an independently posited worldly benefit as a free-standing source of legal status. The passage also requires care: a jurist can reason about which general meaning the legal discourse indicates, without identifying this act with a demonstrative deduction. Source: Bou Akl, “Averroes on Juridical Reasoning,” in Interpreting Averroes: Critical Essays (Cambridge UP, 2018), pp. 49–52. This is a comparison, not a report of a passage-specific 2015 French translation variant.

G-B2-0471 · grammar. الفاء الاستئنافية مع «إنَّ/إنْ/إنّما» — «كقولنا مصلحة، فإن كثيرا من القائلين بالقياس لا». [The initial فـ links the reasoning. Distinguish إنَّ (assertion), إنْ (condition) and إنّما (restriction) from the words and vowelled context.]

BA-X133 · textual. قراءة [أ] عند بو عقل «مرتبتها» في موضع «مرتبته» من طبعة [ع]. [Escorial reading according to Bou Akl 2015, Arabic p. 292; the earlier edition reads differently.]

SC2015-134 · textual. أ «ومن هذا قول بعضهم»؛ ع «ومثل هذا قول بعضهم». من هذا [classifying an utterance as an instance of the criticised method] [Bou Akl 2015, Arabic p. 294, critical apparatus].

218. Resemblance and uncertainty about the operative ground

R 218 · Bou Akl 267 · 1994 Arabic p. 128, 129 · Bou Akl 2015 Arabic p. 294

الْمَرْتَبَةُ الرَّابِعَةُ: وَهِيَ الَّتِي يَعْرِفُونَهَا بِقِيَاسِ الشَّبَهِ وَهُوَ أَنْ يَلْحَقَ الْمَسْكُوتُ عَنْهُ بِالْمَنْطُوقِ بِهِ، لَا لِأَنَّهُ أَوْلَى، وَلَا لِأَنَّهُ فِي مَعْنَاهُ، وَلَا لِعِلَّةٍ مُنَاسِبَةٍ، بَلْ يَلْحَقُ الْمَسْكُوتُ عَنْهُ بِالْمَنْطُوقِ بِهِ لِشَبَهٍ بَيْنَهُمَا يُظَنُّ بِهِ أَنَّهُ يَحْتَوِي عَلَى عِلَّةٍ جَامِعَةٍ بَيْنَهُمَا مُنَاسِبَةٍ لِلْحُكْمِ مِنْ غَيْرِ أَنْ يُوقَفَ عَلَيْهَا.

The fourth rank is what they call analogy by resemblance (قياس الشبه). The unmentioned case is joined to the stated one neither because it has a stronger claim, nor because it shares the same relevant meaning, nor because of a suitable operative ground. Rather, a resemblance between them suggests that it contains a ground common to both cases and appropriate to the ruling, although that ground has not been identified.

وَيُشْبِهُ أَنْ يَكُونَ جُلُّ مَا يَقَعُ فِي هَذَا الْجِنْسِ مُجْمَلًا، إِلَّا أَنْ يَلْتَحِقَ بِالْمَرْتَبَةِ الثَّانِيَةِ وَهِيَ الَّتِي فِي مَعْنَى الْأَصْلِ. وَمِثْلُ هَذَا قَوْلُهُ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ: «لَا تَبِيعُوا الْبُرَّ بِالْبُرِّ الْأَرْبَعَةَ الْمَعْلُومَةَ إِلَّا هَاءَ بِهَاءَ»، فَإِنَّ قَوْمًا قَالُوا أَرَادَ بِذَلِكَ الْمُقْتَاتَ، وَقَوْمًا قَالُوا الْمَطْعُومَ، وَقَوْمًا قَالُوا الْمَكِيلَ. وَهَذَا كُلُّهُ ظَنٌّ مِنْهُمْ، فَإِنَّ الِاقْتِيَاتَ أَوِ الْكَيْلَ أَوِ الطَّعْمَ صِفَةٌ حَاصِرَةٌ لِلْأَمْرِ الْمُنَاسِبِ الْمُوجِبِ لِلتَّحْرِيمِ، وَهِيَ بِالْجُمْلَةِ فِيمَا يَظْهَرُ لِي أَبْعَدُ قَرِينَةٍ يُصَارُ إِلَيْهَا إِلَى أَنْ يُفْهَمَ عَنِ اللَّفْظِ الْجُزْئِيِّ الْمَعْنَى الْكُلِّيُّ، وَلِذَلِكَ كَثِيرٌ مِنَ النَّاسِ اقْتَصَرَ بِمِثْلِ هَذَا الْحَدِيثِ عَلَى مُقْتَضَى اللَّفْظِ.

Most cases of this kind seem indeterminate, unless they join the second rank, which is within the meaning of the original case. An example is his saying, God bless him and grant him peace, “Do not sell wheat for wheat—the four known commodities—except hand to hand.” Some say he intended staple nourishment, some food, and some goods measured by volume. All this is their probable judgement: nourishment, measure, or edibility circumscribes the suitable factor requiring prohibition. To me this seems the remotest contextual indication used to understand a universal meaning from a particular expression. Many therefore confine such a report to what its wording requires.

N102 · textual. Corrected against the critical apparatus at Bou Akl 2015, BA §267, Arabic p.294 (facing French p.295): the Escorial manuscript [أ] reads الثانية (“second”), while al-ʿAlawī 1994 [ع] prints الثالثة (“third”). The second rank is indeed the one Ibn Rushd called “within the meaning of the original case.” This is a substantive manuscript-attested correction, not merely a conjectural harmonization. The wheat report remains elliptical as witnessed.

N103 · textual. The editor reports that the manuscript read قياس السنة and emends it to قياس الشبه. The main text and translation follow the edited reading; the manuscript variant belongs to the editor’s apparatus.

N104 · lexical. الطَّعْم here denotes being consumable as food, not merely having a taste. Al-Fayyūmī expressly prefers fatḥa in the juristic phrase “al-ṭaʿm is the cause of ribā,” because it includes consumable liquids as well as solids; al-Miṣbāḥ al-munīr, s.v. طعم. https://ar.wikisource.org/wiki/المصباح_المنير/كتاب_الطاء#طعم

BA009 · scholarship. “Analogy by resemblance” is contested because the shared ground has not been specified: an apparent resemblance does not automatically supply a valid legal generalization. For Bou Akl, genuine analogical exemplum is the particular-to-particular operation whose universal middle is not independently extracted; the article reconstructs this in conversation with al-Fārābī’s logical works. It is Bou Akl’s historical thesis, not an explicit acknowledgment by Ibn Rushd of his source. Source: Bou Akl, “Averroes on Juridical Reasoning,” in Interpreting Averroes: Critical Essays (Cambridge UP, 2018), pp. 56–62.

BA15-E267 · textual. Bou Akl 2015, BA §267, Arabic p.294, manuscript [أ] versus 1994 [ع]: restores manuscript-attested مناسبة للحكم (the relative cause is “appropriate to the ruling”) omitted in al-ʿAlawī and corrects الثالثة to manuscript الثانية. Both changes have been explicitly applied to the Arabic and facing English. The nearby قياس الشبه vs manuscript قياس السنة editorial emendation is separately disclosed by N103.

BA15-V218 · textual. 2015 full-edition control completed for R §218 = Bou Akl §267, Arabic p.294, French p.295. Distinguish manuscript-attested changes as detailed in the preceding notes. See the source-verified change ledger for exact old and new Arabic/English strings.

G-B2-0473 · grammar. «مِنْ غَيْرِ أَنْ» مع المصدر المؤوَّل — «للحكم من غير أن يوقف عليها. ويشبه أن يكون». [“Without” a further act, fact, or condition being present. The أَنْ-clause is a verbal-noun complement of غَيْر, not an adversative “nevertheless”.]

G-B2-0474 · grammar. «إلّا أنّ» — «الجنس مجملا، إلا أن يلتحق بالمرتبة الثانية وهي التي استثناء أو استدراك». [Except that / however; the contextual function determines which qualification is intended.]

G-B2-0475 · grammar. «إِلَّا أَنْ» مع المضارع للشرط المستثنى — «الجنس مجملا، إلا أن يلتحق بالمرتبة الثانية وهي». [“Unless it joins / falls within”: introduces an exception to the preceding case, not a negation-plus-exception restriction.]

SC2015-136 · textual. أ «ولذلك كثير من الناس»؛ ع «ولهذا كثير من الناس». لذلك [inferential conclusion rather than demonstrative deixis] [Bou Akl 2015, Arabic p. 294, critical apparatus].

219. Analogy in fixed penalties and expiations

R 219 · Bou Akl 268–269 · 1994 Arabic p. 129 · Bou Akl 2015 Arabic p. 296

وَيَنْبَغِي أَنْ تَعْلَمَ أَنَّ أَجْنَاسَ الْمَفْرُوضَاتِ تَتَفَاوَتُ فِي ظُهُورِ هَذِهِ الْقَرَائِنِ فِيهَا، وَلِذَلِكَ لَمْ يُجِزْ أَبُو حَنِيفَةَ الْقِيَاسَ فِي الْحُدُودِ وَالْكَفَّارَاتِ وَهُوَ فِي الْأُمُورِ الضَّرُورِيَّةِ أَبْيَنُ كَالْبَيْعِ وَالنِّكَاحِ وَمَا شَاكَلَهُمَا. وَرُبَّمَا كَانَ اللَّفْظُ، كَمَا تَقَدَّمَ مِنْ قَوْلِنَا، أَوَّلَ مَا يَرِدُ لَا يُعْلَمُ هَلْ هُوَ خَاصٌّ أُبْدِلَ بَدَلَ الْعَامِّ، وَفِي بَعْضِهَا يُعْلَمُ ذَلِكَ، وَلَكِنْ لَا يُعْلَمُ أَيُّ كُلِّيٍّ أُبْدِلَ بَدَلَهُ.

Know that the classes of prescribed matters differ in how clearly these contextual indications appear within them. Hence Abū Ḥanīfa did not permit qiyās in fixed penalties and expiations. It is clearer in matters of necessity, such as sale, marriage, and the like. As we said before, when an expression first appears it may be unknown whether it is a specific expression substituted for a general one. In some cases that is known, but the universal for which it has been substituted is unknown.

BA010 · scholarship. Fixed penalties make the distinction especially consequential. Bou Akl uses the comparison of wine-drinking and slander punishments to explain a genuine weak particular-to-particular analogy, alongside the limits Abū Ḥanīfa imposes on analogy in ḥudūd. His note refers to 2015 §268, corresponding to this reader's §219. Do not confuse disallowing one kind of analogy with a global refusal of linguistic implications. Source: Bou Akl, "Averroes on Juridical Reasoning," in Interpreting Averroes: Critical Essays (Cambridge UP, 2018), pp. 52–55.

220. Testing, division and concomitance

R 220 · Bou Akl 269 · 1994 Arabic p. 129 · Bou Akl 2015 Arabic p. 296

وَالْقَائِلُونَ بِالْقِيَاسِ يَسْتَعْمِلُونَ فِي هَذَا الْمَوْضِعِ مِنْ أَجْنَاسِ الْقِيَاسِ النَّوْعَ الَّذِي يَعْرِفُونَهُ بِالسَّبْرِ وَالتَّقْسِيمِ وَرُبَّمَا اسْتَعْمَلَ بَعْضُهُمْ، لَكِنْ هُمُ الْأَقَلُّ، الطَّرْدَ وَالْعَكْسَ. وَيَنْبَغِي أَنْ نُبَيِّنَ كَيْفَ يَسْتَعْمِلُونَ ذَلِكَ.

Here proponents of qiyās employ the kind of inference called testing and division (السبر والتقسيم). Some, though fewer, also employ positive and negative concomitance (الطرد والعكس). We must explain how they use these.

221. Eliminating candidates for the universal meaning

R 221 · Bou Akl 270 · 1994 Arabic p. 130 · Bou Akl 2015 Arabic p. 296

أَمَّا السَّبْرُ وَالتَّقْسِيمُ فِيمَا لَمْ يُعْلَمْ هَلْ هُوَ لَفْظٌ جُزْئِيٌّ أُخْرِجَ مَخْرَجَ الْكُلِّيِّ أَمْ لَا، فَهُوَ أَنْ نَقُولَ: لَا يَخْلُو أَنْ يَكُونَ هَذَا اللَّفْظُ الْجُزْئِيُّ أُخْرِجَ مَخْرَجَ الْكُلِّيِّ أَمْ هُوَ عَلَى أَصْلِهِ، ثُمَّ نُبَيِّنَ أَنَّهُ لَيْسَ عَلَى أَصْلِهِ، فَيَنْبَغِي بَعْدَ ذَلِكَ أَنْ نَسْتَنْبِطَ أَيَّ كُلِّيٍّ أُرِيدَ بِهِ، وَذَلِكَ بِأَنْ نُقَسِّمَ جَمِيعَ الْمَعَانِي الْكُلِّيَّةِ الَّتِي يَغْلِبُ عَلَى الظَّنِّ أَنَّهُ أُرِيدَ بِذَلِكَ اللَّفْظِ الْجُزْئِيِّ، وَنُبْطِلَ وَاحِدًا وَاحِدًا مِنْهَا، حَتَّى يَبْقَى وَاحِدًا، فَنَحْكُمَ أَنَّ ذَلِكَ هُوَ الْكُلِّيُّ الْمُرَادُ بِذَلِكَ الْجُزْئِيِّ.

When it is unknown whether a particular expression has been used to express a universal meaning, testing and division proceeds as follows. We say: either this particular expression is used to express a universal meaning or it retains its original meaning. We then show that it does not retain that meaning. Next we must determine which universal is intended. We enumerate all the universal meanings probably intended by the particular expression, eliminate them one by one until only one remains, and judge that this is the universal intended by that particular.

وَإِنْ كَانَ ظَاهِرًا مِنْ أَوَّلِ الْأَمْرِ أَنَّهُ لَفْظٌ جُزْئِيٌّ أُبْدِلَ بَدَلَ الْكُلِّيِّ، وَلَمْ يَكُنْ ظَاهِرًا أَيُّ كُلِّيٍّ هُوَ، اسْتَعْمَلْنَا السَّبْرَ وَالتَّقْسِيمَ فِي اسْتِنْبَاطِهِ.

If it is apparent from the outset that a particular expression has been substituted for a universal, but not apparent which universal, we employ testing and division to determine it.

G-B2-0480 · grammar. «وإن كان» — الشرط الوصلي بـ«بذلك الجزئي. وإن كان ظاهرا من أول الأمر أنه». [Even if / although; the condition does not overturn the principal judgement.]

BA-SRC-139 · textual. مقابلة النص: «حتى يبقى واحدا» [أ] مقابل «حتى نبقي واحدا» [ع]. انتقال من فعل المتكلم إلى فعل لازم: «يبقى واحدٌ». [Bou Akl, printed Arabic p. 296, manuscript reading as reported in his apparatus, not a separate inspection of the Escorial manuscript.]

G-BA-270 · grammar. «حَتَّى» الغائية والفعل «يَبْقَى» — «حَتَّى يَبْقَى وَاحِدًا». [The clause marks the result of eliminating alternatives. The accusative printed by Bou Akl is retained; one syntactic reading understands يبقى as a defective verb with an implicit subject and “one” as its predicate.]

222. Positive and negative concomitance are not enough

R 222 · Bou Akl 271 · 1994 Arabic p. 130 · Bou Akl 2015 Arabic p. 296

فَأَمَّا الطَّرْدُ فَهُوَ أَنْ يَرِدَ الْحُكْمُ مُتَعَلِّقًا بِأَمْرٍ مَا فَنَحْكُمَ بِوُجُودِهِ لِأَمْرٍ آخَرَ لِلتَّشَابُهِ الَّذِي نَجِدُهُ بَيْنَهُمَا وَنَطْرُدَهُ فِيهِ، وَنَحْكُمَ لِأَجْلِ ذَلِكَ بِأَنَّهُ لَفْظٌ أُخْرِجَ مَخْرَجَ الْجُزْئِيِّ وَالْمُرَادُ بِهِ ذَلِكَ الْكُلِّيُّ الَّذِي تَشَابَهَا بِهِ.

Positive concomitance (طرد) occurs when a ruling is given concerning something and we assign it to another thing because of a resemblance we find between them, applying it uniformly to the latter. On this basis we judge that the expression has been cast in particular form while intending the universal in which the two resemble one another.

وَقَدْ يُشَدُّ هَذَا الْمَوْضِعُ بِأَنْ يُسْتَعْمَلَ فِيهِ الْوُجُودُ وَالِارْتِفَاعُ، وَذَلِكَ أَنَّ أَيَّ كُلِّيٍّ وُجِدَ الْحُكْمُ بِوُجُودِهِ وَارْتَفَعَ بِارْتِفَاعِهِ فَهُوَ مَنَاطُ الْحُكْمِ وَهَذَا هُوَ الَّذِي يُسَمُّونَهُ الْعَكْسَ، وَأَكْثَرُ الْقَائِلِينَ بِالْقِيَاسِ مُجْمِعُونَ عَلَى إِبْطَالِ اسْتِنْبَاطِ مَنَاطِ الْحُكْمِ بِالطَّرْدِ وَالْعَكْسِ.

This procedure may be strengthened by considering both presence and absence: any universal whose presence brings the ruling and whose absence removes it is taken as the ground on which the ruling depends (مناط الحكم). This is what they call negative concomitance (عكس). Most proponents of qiyās agree in rejecting the determination of a ruling’s ground through positive and negative concomitance.

N105 · translation. Ṭard and ʿaks here refer to alleged concomitance of a property and a ruling in presence and absence. They do not mean logical conversion of a categorical proposition in this passage. Ibn Rushd reports the rejection of using such correlation alone to identify the operative ground.

223. Why much juristic qiyās is not a syllogism

R 223 · Bou Akl 272–273 · 1994 Arabic p. 130, 131 · Bou Akl 2015 Arabic p. 298

وَبِالْجُمْلَةِ فَإِنَّهُ مِمَّا يَظْهَرُ أَنَّ أَكْثَرَ الْمَوَاضِعِ الَّتِي يَسْتَعْمِلُ الْقِيَاسَ فِيهَا الْقَائِلُونَ بِالْقِيَاسِ فِي الشَّرْعِ لَيْسَ يَسْتَعْمِلُونَهُ فِي اسْتِنْبَاطِ حُكْمٍ مَجْهُولٍ عَنْ مَعْلُومٍ، عَلَى جِهَةِ مَا يُسْتَنْبَطُ عَنِ الْمُقَدِّمَاتِ الْمَعْقُولَةِ مَطْلَبٌ مَجْهُولٌ، لَكِنْ فِي تَصْحِيحِ إِبْدَالِ الْأَلْفَاظِ فِي مَكَانِ مَكَانٍ وَنَازِلَةٍ نَازِلَةٍ، فَإِنَّ الْأَنْوَاعَ الَّتِي يُسَمُّونَهَا بِالْقِيَاسِ الْمُخَيِّلِ وَالْمُنَاسِبِ وَقِيَاسِ الشَّبَهِ هِيَ قَرَائِنُ تَدُلُّ عِنْدَهُمْ عَلَى إِبْدَالِ الْأَلْفَاظِ، وَلَيْسَتْ أَقْيِسَةً، وَلَا يُوجَدُ لَهَا فِعْلُ الْقِيَاسِ، وَإِنْ كَانَ لَمْ يَتَمَيَّزْ لِلنَّاظِرِينَ فِي هَذِهِ الصِّنَاعَةِ أَمْرُ هَذَا التَّمْيِيزِ،

In general, it appears that in most cases proponents of qiyās in the Law do not use it to derive an unknown ruling from a known one, in the way an unknown conclusion is derived from intellectually apprehended premises. They use it to establish the correctness of substituting expressions in each context and case. What they call analogy from a plausible, suitable ground and analogy by resemblance are contextual indications of verbal substitution. They are not syllogisms and perform no syllogistic operation, although those studying this discipline have not clearly recognised the distinction.

وَذَلِكَ ظَاهِرٌ مِنْ أَقَاوِيلِهِمُ الَّتِي يَسْتَعْمِلُونَهَا فِي مُنَاقَضَةِ الْقَائِلِينَ بِرَدِّ الْقِيَاسِ، وَهُمُ الْمُسَمَّوْنَ عِنْدَهُمْ أَهْلَ الظَّاهِرِ، لِأَنَّ هَؤُلَاءِ الْقَوْمَ أَلْزَمُوا الْقَائِلِينَ بِالْقِيَاسِ أَمْرًا لَمْ يَجِدُوا عَنْهُ مَحِيصًا، وَهُوَ أَنَّ مَا سَبِيلُ الْمَعْرِفَةِ بِهِ الْوَحْيُ وَالْأَمْرُ مِنَ اللَّهِ فَإِنَّهُ لَيْسَ لِلْعُقُولِ فِي إِثْبَاتِ شَيْءٍ مِنْ ذَلِكَ وَإِبْطَالِهِ مَدْخَلٌ، وَأَيْضًا فَإِنَّ الْأَحْكَامَ لَيْسَتْ صِفَاتِ ذَوَاتٍ فَتُدْرِكَهَا الْعُقُولُ. وَبِالْجُمْلَةِ كُلُّ مَا ثبوته التَّوْقِيفُ لَا مَدْخَلَ لِلْقِيَاسِ فِيهِ، وَإِنَّمَا طَرِيقُ الْمَعْرِفَةِ بِهِ السَّمْعُ كَاللُّغَاتِ وَغَيْرِ ذَلِكَ.

This is evident from their arguments against those who reject qiyās, whom they call the Ẓāhirīs (أهل الظاهر, "People of the Apparent"). The latter confronted them with a difficulty they could not escape: where knowledge comes through revelation and God's command, intellects have no part in affirming or denying anything of it. Moreover, rulings are not attributes of things' essences that intellects can apprehend. In general, qiyās has no part in whatever depends upon authoritative instruction (توقيف); its means of knowledge is transmitted communication (سمع), as with languages and similar things.

وَهَذَا إِنَّمَا هُوَ لَازِمٌ لِمَنْ يَقِيسُ عَلَى أَصْلٍ لَمْ يَتَضَمَّنْ بِاللَّفْظِ قَطُّ التَّنْبِيهَ عَلَى الْأَصْلِ، مِثْلَ قِيَاسِ حَدِّ الْخَمْرِ عَلَى الْقَذْفِ. وَأَمَّا مَنْ يَقِيسُ عَلَى أَصْلٍ يَتَضَمَّنُ بِمَفْهُومِهِ عِلَّةَ الْأَصْلِ، وَإِنْ لَمْ يَتَضَمَّنْ ذَلِكَ بِصِيغَةِ اللَّفْظِ، فَلَيْسَ يَلْزَمُهُ هَذَا الِاعْتِرَاضُ. وَأَكْثَرُ مَقَايِيسِ الشَّرْعِ هِيَ مِنْ هَذَا الْبَابِ، وَلِذَلِكَ لَوْ فَهِمُوا هَذَا الْمَعْنَى لَأَمْكَنَهُمُ الِانْفِصَالُ عَنْهُمْ.

This objection applies only to someone who reasons from an original case whose wording contains no indication pointing to the underlying ground—for example, analogising the penalty for wine drinking to that for an unsubstantiated accusation of illicit intercourse (قذف). It does not apply to someone whose original case includes its operative ground in the understood meaning, even if the verbal form does not contain it. Most legal instances of qiyās belong to this kind. Had they understood this point, they could have answered their opponents.

N106 · translation. The Arabic repeats الأصل in the phrase التنبيه على الأصل. "Underlying ground" conveys its function without silently supplying a new Arabic word. The relevant contrast is an extension indicated by the source's meaning versus a comparison unsupported by that source's signification.

BA011 · scholarship. Critical interpretive point: Ibn Rushd repeatedly says "in most cases" (akthar al-mawāḍiʿ), not "in every case." His denial that the familiar suitable/resemblance operations are aqyisa in the strict logical sense is compatible with accepting a narrower kind of genuine juristic analogy where no textual tanbīh gives the underlying ground. This is the distinction Bou Akl argues was already present here, and became clearer in the Bidāya. Article p. 50 cites this as 2015 §272; here it is §223. Source: Bou Akl, "Averroes on Juridical Reasoning," in Interpreting Averroes: Critical Essays (Cambridge UP, 2018), pp. 46, 49–55, 62–63. This remains an interpretive argument; not a silently adopted manuscript reading.

BA15-I08 · interpretive. Juristic inference and Farabi. Bou Akl 2015 pp.57–70 compares the classification with al-Fārābī's exemplum (mithāl) and the rhetorical particular-to-particular inference. Ibn Rushd's "in most cases" qualification matters: treating all legal qiyās as linguistic substitution would erase the limited residual genuine analogy.

BA-T140 · textual. قراءة الإسكوريال كما أثبتها بو عقل: «ثبوته»، مقابل «طريقه» في طبعة العلوي. (Escorial reading as reported by Bou Akl, 2015, Arabic p. 298; variant against al-ʿAlawī.)

G-B2-0484 · grammar. أسلوب القصر بـ«إنّما» — «للقياس فيه، وإنما طريق المعرفة به السمع كاللغات». [Restriction: only / nothing but; identify what is being limited by the construction.]

G-B2-0485 · grammar. الشرط بـ«لو» — «الباب، ولذلك لو فهموا هذا المعنى لأمكنهم الانفصال». [Hypothetical or counterfactual condition; read the answer rather than treating لو as a simple past marker.]

224. Meaning can be apparent without an apparent verbal form

R 224 · Bou Akl 273 · 1994 Arabic p. 131, 132 · Bou Akl 2015 Arabic p. 298

وَأَمَّا أَهْلُ الظَّاهِرِ وَمَنْ يُجَوِّزُ الِاسْتِدْلَالَ بِظَوَاهِرِ الْأَلْفَاظِ مِنْ جِهَةِ صِيَغِهَا، فَقَدْ يَنْبَغِي لَهُ أَلَّا يُنْكِرَ الْقِيَاسَ الَّذِي فِي مَعْنَى الْأَصْلِ، وَالْمُخَيِّلَ وَالْمُنَاسِبَ الْمُلَائِمَ إِذَا شَهِدَ الشَّرْعُ بِالِالْتِفَاتِ إِلَى جِنْسِهِ الْقَرِيبِ. فَإِنَّ هَذِهِ كُلَّهَا قَرَائِنُ نَظِيرَ الْأَلْفَاظِ ظَاهِرَةً بِمَفْهُومَاتِهَا، وَإِنْ لَمْ تَكُنْ بِصِيَغِهَا، وَلَا مَعْنَى لِقَوْلِ مَنْ لَا يَرَى الظَّاهِرَ إِلَّا فِي الصِّيغَةِ.

The Ẓāhirīs, and anyone allowing inference from expressions' prima facie forms, should therefore not deny analogy within the original case's meaning, or analogy from a plausible and congruently suitable ground, when the Law demonstrably attends to its proximate kind. These are all contextual indications that [make] expressions prima facie through their understood meanings, even when they are not so through their forms. There is no sense in recognising prima facie signification only in verbal form.

N107 · textual. The scan prints قرائن نظير الألفاظ ظاهرة. The syntax is defective. English tentatively reads نظير as تصير, "make," consistent with the repeated account of contextual indications making expressions prima facie through their understood meaning. The Arabic preserves نظير, and the supplied English verb is bracketed.

N108 · textual. The vowels on the retained defective phrase do not repair its syntax. The reading نظير remains a crux (†); the English's contextual supplement is not a recovered Arabic verb.

BA012 · scholarship. The objection to recognizing only a wording's surface form targets an overly narrow account of verbal signification. Intended import may be apparent through contextual indications although the overt expression is particular. In Bou Akl's account the Ẓāhirīs can dispute a genuine exemplum but cannot consistently exclude ordinary semantic substitution without rejecting recognized usages of speech. The 2015 article concordance is §273 = reader §224. Source: Bou Akl, "Averroes on Juridical Reasoning," in Interpreting Averroes: Critical Essays (Cambridge UP, 2018), pp. 51–54.

G-B2-0488 · grammar. القصر بالنفي والاستثناء — «يرى الظاهر إلا في الصيغة». [Exclusivity through negation followed by an exception; not merely two independent clauses.]

G-B2-0489 · grammar. الفاء الاستئنافية مع «إنَّ/إنْ/إنّما» — «جنسه القريب. فإن هذه كلها قرائن نظير الألفاظ». [The initial فـ links the reasoning. Distinguish إنَّ (assertion), إنْ (condition) and إنّما (restriction) from the words and vowelled context.]

225. The disputed claim of Companion consensus on qiyās

R 225 · Bou Akl 274 · 1994 Arabic p. 132 · Bou Akl 2015 Arabic p. 300

وَقَدْ رَامَ الْقَائِلُونَ بِالْقِيَاسِ أَنْ يُثْبِتُوهُ مِنْ جِهَةِ إِجْمَاعِ الصَّحَابَةِ عَلَى ذَلِكَ، فَنَقَلُوا عَنْ كَثِيرٍ مِنْهُمْ أَقَاوِيلَ تَدُلُّ فِيمَا زَعَمُوا عَلَى الْقَوْلِ بِالْقِيَاسِ، فَعَانَدَهُمْ أَهْلُ الظَّاهِرِ فِي مَوْضِعَيْنِ: أَحَدُهُمَا: فِي نَفْسِ الْإِجْمَاعِ، وَذَلِكَ أَنَّهُ لَمْ يُنْقَلْ ذَلِكَ عَنْ جَمِيعِهِمْ، وَلَيْسَ يُنْسَبُ إِلَى سَاكِتٍ قَوْلُ قَائِلٍ كَمَا تَقَدَّمَ. وَالثَّانِي: أَنَّهُ لَوْ وَقَعَ مِنْهُمْ فِي ذَلِكَ إِجْمَاعٌ لَمَا وَرَدَ عَنِ التَّابِعِينَ فِي ذَلِكَ خِلَافٌ. وَأَيْضًا فَقَدْ تَمَسَّكَ أَهْلُ الظَّاهِرِ بِأَحَادِيثَ نُقِلَتْ عَنِ الصَّحَابَةِ فِي دَفْعِ الْقِيَاسِ. وَبِالْجُمْلَةِ فَلَمْ يَقْدِرِ الْقَائِلُونَ بِالْقِيَاسِ أَنْ يُصَحِّحُوا الْإِجْمَاعَ الَّذِي ادَّعَوْهُ فِي ذَلِكَ.

Proponents of qiyās have sought to establish it through the Companions' consensus. They transmitted statements from many Companions which, they claimed, support qiyās. The Ẓāhirīs challenged them on two grounds. First, consensus itself was unestablished: such statements were not transmitted from all the Companions, and, as explained earlier, a speaker's statement cannot be attributed to someone silent. Second, had consensus occurred, disagreement would not have been transmitted from the Successors. They also cited reports from the Companions rejecting qiyās. In general, its proponents could not establish their claimed consensus.

وَأَيْضًا فَإِنَّ الْأَلْفَاظَ الْوَارِدَةَ عَنِ الصَّحَابَةِ فِي الْقِيَاسِ مُحْتَمِلَةٌ، وَيُشْبِهُ إِذَا تُؤُمِّلَتْ أَنْ يَظْهَرَ مِنْ أَمْرِهَا هَذَا الْمَعْنَى الَّذِي قُلْنَاهُ فِي الْقِيَاسِ، وَإِنَّ ذَلِكَ إِنَّمَا كَانَ مِنْهُمُ اجْتِهَادًا فِي مَفْهُومِ الْأَلْفَاظِ. وَالَّذِي يُشْبِهُ أَنْ يَكُونَ لِأَهْلِ الظَّاهِرِ فِيهِ مَدْفَعٌ اسْتِنْبَاطُ الْإِبْدَالِ أَوِ الِاسْتِعَارَةِ بِطَرِيقِ السَّبْرِ وَالتَّقْسِيمِ أَوْ بِغَيْرِهَا مِنَ الطُّرُقِ، إِذَا لَمْ يَكُنْ هُنَالِكَ إِحدى الْقَرَائِنِ الَّتِي عَدَدْنَاهَا.

Moreover, the Companions' transmitted expressions about qiyās admit several interpretations. On examination they seem likely to disclose the meaning we have assigned to qiyās: the Companions were exercising independent inquiry into expressions' understood meanings. What the Ẓāhirīs seem entitled to resist is deriving substitution or metaphor through testing and division, or through other procedures, when none of the contextual indications we have enumerated is present.

وَيَنْبَغِي لِمَنْ أَجَازَ ذَلِكَ أَنْ يُجِيزَهُ فِي جَمِيعِ الْأَلْفَاظِ الْمُبْدَلَةِ أَوِ الْمُسْتَعَارَةِ وَالْمَحْذُوفَةِ، وَبِالْجُمْلَةِ الْمُغَيَّرَةِ. وَكَمَا أَنَّ هَذِهِ الْقَرَائِنَ قَدْ يُعَمَّمُ بِهَا الْخَاصُّ كَذَلِكَ قَدْ يُخَصَّصُ بِهَا الْعَامُّ.

Anyone who permits that procedure should permit it for all expressions involving substitution, metaphor, omission, or, generally, alteration. Just as these contextual indications can generalise a specific expression, they can also restrict a general one.

BA013 · scholarship. This authorial qualification helps explain why the dispute is not disposed of by asserting consensus: what the Companions called qiyās may denote interpretation of intended sense, while an inference not grounded in the indicated class is still contestable. Bou Akl's reading addresses the resulting fault line between anti-analogists and proponents of qiyās rather than assuming the schools have only a terminological disagreement in every case. Source: Bou Akl, "Averroes on Juridical Reasoning," in Interpreting Averroes: Critical Essays (Cambridge UP, 2018), pp. 51–55.

BA-T144 · textual. قراءة الإسكوريال كما أثبتها بو عقل: «إحدى»، مقابل «بعض» في طبعة العلوي. (Escorial reading as reported by Bou Akl, 2015, Arabic p. 300; variant against al-ʿAlawī.)

G-B2-0490 · grammar. أسلوب القصر بـ«إنّما» — «وإن ذلك إنما كان منهم اجتهادا في مفهوم». [Restriction: only / nothing but; identify what is being limited by the construction.]

G-B2-0491 · grammar. الشرط بـ«لو» — «والثاني: أنه لو وقع منهم في ذلك إجماع». [Hypothetical or counterfactual condition; read the answer rather than treating لو as a simple past marker.]

BA-SRC-143 · textual. مقابلة النص: «إذا لم يكن هنالك إحدى القرائن» [أ] مقابل «إذا لم تكن هنالك إحدى القرائن» [ع]. التذكير مع الفصل بالظرف وكون المؤنث غير حقيقي: [Masculine verb with a separated, grammatically feminine, nonhuman subject.] [Bou Akl, printed Arabic p. 300, manuscript reading as reported in his apparatus, not a separate inspection of the Escorial manuscript.]

SC2015-145 · textual. أ «استنباط الإبدال أو الاستعارة بطريق»؛ ع «استنباط الإبدال والاستعارة بطريق». أو العاطفة للتقسيم [substitution or metaphor as alternative operations] [Bou Akl 2015, Arabic p. 300, critical apparatus].

226. The class and limits of qiyās; action and approval remain

R 226 · Bou Akl 275 · 1994 Arabic p. 132 · Bou Akl 2015 Arabic p. 300

فَقَدْ ظَهَرَ مِنْ هَذَا الْقَوْلِ مَا هُوَ الْمَعْنَى الْمَدْلُولُ عَلَيْهِ بِاسْمِ الْقِيَاسِ فِي هَذِهِ الصِّنَاعَةِ، وَفِي أَيِّ جِنْسٍ دُخُولُهُ مِنْ أَجْنَاسِ الْأَدِلَّةِ الشَّرْعِيَّةِ، وَفِي أَيِّ الْمَوَاضِعِ يُسْتَعْمَلُ، وَفِي أَيِّهَا لَا. وَقَدْ بَقِيَ عَلَيْنَا مِنْ طُرُقِ الْأَدِلَّةِ الشَّرْعِيَّةِ الدَّلِيلُ الَّذِي هُوَ فِعْلُهُ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ وَإِقْرَارُهُ. وَهَذَانِ الصِّنْفَانِ لَيْسَ هُمَا أَدِلَّةً مِنْ جِهَةِ صِيَغِ الْأَلْفَاظِ أَوْ مَفْهُومِهَا، بَلْ مِنْ جِهَةِ مَا هِيَ قَرَائِنُ. وَنَحْنُ نَقُولُ فِي وَاحِدٍ وَاحِدٍ مِنْهَا، وَمَا قُوَّتُهُ.

This discussion has shown what the term qiyās signifies in this discipline, which class of legal evidence it belongs to, and where it may and may not be used. Among the ways of legal evidence, there remain the Prophet's action and tacit approval, God bless him and grant him peace. These are evidence through their character as contextual indications, rather than through verbal forms or understood meanings. We shall discuss each of them and its force.

SC2015-142 · textual. أ «من جهة صيغ الألفاظ أو مفهومها»؛ ع «من جهة صيغ الألفاظ أو مفهوماتها». المفهوم [singular technical category of understood implication, in contrast to the expressions' form] [Bou Akl 2015, Arabic p. 300, critical apparatus].

227. What tacit approval establishes

R 227 · Bou Akl 276 · 1994 Arabic p. 133 · Bou Akl 2015 Arabic p. 302

أَمَّا إِقْرَارُهُ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ عَلَى فِعْلٍ فُعِلَ بِمُشَاهَدَتِهِ وَعُلِمَ قَطْعًا أَنَّهُ رَآهُ فَأَقَرَّهُ، فَإِنَّهُ يَدُلُّ عَلَى جَوَازِ وُقُوعِ ذَلِكَ الْفِعْلِ عَلَى تِلْكَ الصِّفَةِ وَإِيجَابِهِ إِنْ كَانَ حُكْمًا شَرْعِيًّا، أَوْ عَلَى إِبَاحَةِ ذَلِكَ إِنْ تُخُيِّلَ فِيهِ أَنَّهُ مَحْظُورٌ لِثُبُوتِ عِصْمَتِهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ فِيمَا دَعَا إِلَيْهِ، وَفِيمَا أَقَرَّ عَلَيْهِ.

As for his tacit approval, God bless him and grant him peace: when an act is done in his presence and it is certainly known that he saw and approved it, this shows that the act may occur in that manner and—if it is a legal judgement—that it is binding. Or it shows permissibility when the act had been supposed forbidden. This follows from his established protection from error in what he called people to and in what he approved, God bless him and grant him peace.

N109 · translation. The clause إن كان حكما شرعيا qualifies the reference to binding force; the passage is not translated as making every tacitly approved act obligatory.

G-B2-0495 · grammar. الفاء الاستئنافية مع «إنَّ/إنْ/إنّما» — «رآه فأقره، فإنه يدل على جواز وقوع ذلك». [The initial فـ links the reasoning. Distinguish إنَّ (assertion), إنْ (condition) and إنّما (restriction) from the words and vowelled context.]

228. Actions that explain a revealed command

R 228 · Bou Akl 277 · 1994 Arabic p. 133 · Bou Akl 2015 Arabic p. 302

وَأَمَّا أَفْعَالُهُ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ فَعَلَى ضُرُوبٍ: أَحَدُهَا مَا كَانَ بَيَانًا لِعَامٍّ أَوْ مُجْمَلٍ، فَذَلِكَ مِنْهُ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ مَحْمُولٌ عَلَى حُكْمِ ذَلِكَ الْعَامِّ، إِنْ كَانَ مَنْدُوبًا إِلَيْهِ فَالْفِعْلُ مَنْدُوبٌ إِلَيْهِ، وَإِنْ كَانَ وَاجِبًا فَوَاجِبٌ. وَذَلِكَ بِدَلِيلِ قَوْلِهِ عَلَيْهِ السَّلَامُ: «صَلُّوا كَمَا رَأَيْتُمُونِي أُصَلِّي وَخُذُوا عَنِّي مَنَاسِكَكُمْ».

His actions, God bless him and grant him peace, are of several kinds. One explains a general or indeterminate expression. Such an action by him, God bless him and grant him peace, bears the ruling of the general expression: if that is recommended, the action is recommended; if obligatory, the action is obligatory. The evidence is his saying, peace be upon him, “Pray as you have seen me pray, and take your pilgrimage rites from me.”

G-B2-0496 · grammar. الشرط الوصلي بـ«وإن كان» — «مندوب إليه، وإن كان واجبا فواجب. وذلك بدليل قوله». [Even if / although; the condition does not overturn the principal judgement.]

SC2015-146 · textual. أ «وأما أفعاله صلى الله عليه وسلم»؛ ع «أما أفعاله صلى الله عليه وسلم». واو الاستئناف [introducing the Prophet’s deeds after tacit approval] [Bou Akl 2015, Arabic p. 302, critical apparatus].

229. Peculiar, unexplained and conflicting Prophetic actions

R 229 · Bou Akl 278–279 · 1994 Arabic p. 133, 134 · Bou Akl 2015 Arabic p. 302

وَالثَّانِي فِي مُقَابِلِ هَذَا وَهُوَ أَنْ يُعْلَمَ بِقَرِينَةِ حَالٍ أَوْ لَفْظٍ ⟨أَنَّهُ مُخْتَصٌّ. وَالثَّالِثُ هُوَ⟩ كَالْمُتَوَسِّطِ بَيْنَ هَذَيْنِ، وَهُوَ مَا وَرَدَ مِنْ أَفْعَالِهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ مِنْ غَيْرِ أَنْ يُعْلَمَ أَنَّ ذَلِكَ تَفْسِيرٌ مِنْهُ لِمُجْمَلٍ أَوْ بَيَانٌ لِعَامٍّ أَوْ مُخْتَصٌّ بِهِ. وَهُنَا اخْتَلَفَ النَّاسُ فَقَوْمٌ رَأَوْا حَمْلَهَا عَلَى الْوُجُوبِ، وَقَوْمٌ عَلَى النَّدْبِ، وَقَوْمٌ رَأَوُا التَّوْقِيفَ، وَهُوَ الْمُخْتَارُ عِنْدَ أَبِي حَامِدٍ، لِأَنَّ الْفِعْلَ لَا صِيغَةَ لَهُ.

The second kind is the opposite: it is known through a circumstantial or verbal indicator ⟨that the action is peculiar to him. The third is⟩ intermediate between these two: actions of his, God bless him and grant him peace, for which it is unknown whether they explain an indeterminate expression, clarify a general one, or are peculiar to him. Here people disagree. Some construe them as obligatory, others as recommended, and others withhold judgement. This is Abū Ḥāmid’s preferred view, because an action has no verbal form.

وَأَمَّا مَنْ حَمَلَهُ عَلَى الْوُجُوبِ فَقَدِ اسْتَشْهَدَ عَلَى ذَلِكَ بِظَوَاهِرَ، لَكِنَّهَا مُحْتَمِلَةٌ، مِثْلَ قَوْلِهِ تَعَالَى: «لَقَدْ كَانَ لَكُمْ فِي رَسُولِ اللَّهِ أُسْوَةٌ حَسَنَةٌ». وَأَمَّا مَنْ رَأَى أَنَّهَا عَلَى النَّدْبِ فَتَمَسُّكًا بِاقْتِدَاءِ الصَّحَابَةِ بِهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ فِي أَفْعَالِهِ، لِخَلْعِهِمْ نِعَالَهُمْ فِي الصَّلَاةِ لَمَّا خَلَعَ، وَتَوَقُّفِهِمْ عَنِ الْحَلْقِ عَامَ الْحُدَيْبِيَةِ حَتَّى حَلَقَ. وَلِلْقَائِلِينَ بِالْوُجُوبِ أَيْضًا التَّمَسُّكُ بِمِثْلِ هَذَا مِنْ أَفْعَالِ الصَّحَابَةِ رَضِيَ اللَّهُ عَنْهُمْ.

Those construing the action as obligatory cite prima facie expressions that nevertheless admit other meanings, such as His exalted saying, “In God’s Messenger you have a good example.” Those construing it as recommended appeal to the Companions’ imitation of his actions, God bless him and grant him peace: removing their sandals in prayer when he removed his, and refraining from shaving in the year of al-Ḥudaybiyya until he shaved. Proponents of obligation can also appeal to these actions of the Companions, may God be pleased with them.

وَيُمْكِنُ أَنْ نَقُولَ رَدًّا عَلَى هَؤُلَاءِ مِمَّنْ لَا يَرَى لِلْفِعْلِ حُكْمًا بِأَنَّ هَذَا إِنَّمَا كَانَ مِنْ فِعْلِ الصَّحَابَةِ فِيمَا عَلِمُوا أَنَّهُ بَيَانٌ مِنْهُ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ لِلْمَفْرُوضَاتِ أَوِ الْمَنْدُوبَاتِ، وَذَلِكَ إِمَّا بِقَرَائِنِ أَحْوَالٍ أَوْ بِقَوْلٍ. وَبِالْجُمْلَةِ فَالْمَسْأَلَةُ اجْتِهَادِيَّةٌ. وَالْأَظْهَرُ أَلَّا يَكُونَ لِهَذَا النَّوْعِ مِنْ فِعْلِهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ حُكْمٌ لِتَرَدُّدِهِ بَيْنَ الْإِيجَابِ وَالنَّدْبِ وَالْإِبَاحَةِ، وَكَوْنِهِ مُخْتَصًّا بِهِ.

In reply, someone who holds that an action establishes no ruling may say: the Companions acted this way only where they knew, from either circumstantial indications or a statement, that he, God bless him and grant him peace, was explaining obligations or recommendations through his action. In general, the question admits independent judgement. The more apparent view is that no ruling can be assigned on the basis of this kind of action by him, God bless him and grant him peace, since it remains undecided between obligation, recommendation, permission, and being peculiar to him.

وَإِذَا وَرَدَتْ أَفْعَالُهُ عَلَيْهِ السَّلَامُ تَفْسِيرًا أَوْ بَيَانًا لِعَامٍّ وَتَعَارَضَتْ، كَانَ حُكْمُهَا حُكْمَ الْقَوْلَيْنِ إِذَا تَعَارَضَا، وَسَيَأْتِي الْقَوْلُ فِي هَذَا وَكَذَلِكَ إِذَا تَعَارَضَ الْفِعْلُ وَالْقَوْلُ. وَهُنَا انْتَهَى الْقَوْلُ فِي الْجُزْءِ الثَّالِثِ مِنْ هَذَا الْكِتَابِ.

When his actions, peace be upon him, explain [an indeterminate expression] or clarify a general one and conflict, they have the same status as two conflicting statements. We shall discuss this later, as also the conflict of an action with a statement. Here ends the discussion in Part Three of this book.

N110 · textual. The broken opening of the action taxonomy is restored with a marked conjecture from Bou Akl 2015 §278 (Arabic p.302, French p.303): second = action known to be exclusively prophetic; third = action of undetermined normative kind. The English no longer implies that the third kind belongs to the second.

N111 · translation. Qur’ān 33:21. “Withhold judgement” renders the printed التوقيف in this context.

BA15-R09 · textual. Proponent’s actions fall into (1) explanatory, (2) distinctly peculiar to the Prophet, and (3) unclassified acts; this context requires the conjectural words adopted by Bou Akl 2015 §278, Arabic p.302, French p.303, commentary §278. The lack of formula in the third class explains the dispute.

G-B2-0497 · grammar. أسلوب القصر بـ«إنّما». [Restriction: only / nothing but; identify what is being limited by the construction.]

G-B2-0499 · grammar. «مِنْ غَيْرِ أَنْ» مع المصدر المؤوَّل — «وسلم من غير أن يعلم أن ذلك تفسير منه». [“Without” a further act, fact, or condition being present. The أَنْ-clause is a verbal-noun complement of غَيْر, not an adversative “nevertheless”.]

SC2015-147 · textual. اللام لتعلّق الحكم بالفعل. أ «ممن لا يرى للفعل حكما»؛ ع «ممن لا يرى الفعل حكما» [the act has no independently determinate juridical ruling in this context] [Bou Akl 2015, Arabic p. 304, critical apparatus].

Part IV · Juristic reasoning القسم الرابع: الاجتهاد والترجيح

Ijtihād, taqlīd and evidential preference · The competence to reason independently, following authority and weighing transmission.

230. Inquiry, authority and weighing evidence

R 230 · Bou Akl 281 · 1994 Arabic p. 135, 137 · Bou Akl 2015 Arabic p. 306

وَهُوَ يَشْتَمِلُ عَلَى ثَلَاثَةِ فُصُولٍ: فَصْلٍ فِي الِاجْتِهَادِ، وَفَصْلٍ فِي التَّقْلِيدِ، وَفَصْلٍ فِي تَرْجِيحِ الْأَدِلَّةِ.

It comprises three chapters: one on independent juristic inquiry, one on following authority, and one on weighing the evidence.

231. The jurist, the question and the act of inquiry

R 231 · Bou Akl 282 · 1994 Arabic p. 137 · Bou Akl 2015 Arabic p. 306

وَيَنْقَسِمُ الْقَوْلُ فِيهِ إِلَى النَّظَرِ فِي الْمُجْتَهِدِ، وَالْمُجْتَهَدِ فِيهِ، وَنَفْسِ الِاجْتِهَادِ. أَمَّا الِاجْتِهَادُ فَهُوَ بَذْلُ الْمُجْتَهِدِ وُسْعَهُ فِي الطَّلَبِ بِالْآلَاتِ الَّتِي تُشْتَرَطُ فِيهِ.

Its discussion divides into examination of the independent jurist (مجتهد), the subject of his inquiry, and independent inquiry itself (اجتهاد). Independent inquiry is the jurist's exertion of his utmost capacity in seeking an answer by means of the instruments required of him.

وَأَمَّا حَدُّ الْمُجْتَهِدِ فَهُوَ أَنْ يَكُونَ عَارِفًا بِالْأُصُولِ الَّتِي يُسْتَنْبَطُ عَنْهَا، وَأَنْ تَكُونَ عِنْدَهُ الْقَوَانِينُ وَالْأَحْوَالُ الَّتِي بِهَا يَسْتَنْبِطُ. وَلِأَنَّ الْأُصُولَ ثَلَاثَةٌ الْكِتَابُ وَالسُّنَّةُ وَالْإِجْمَاعُ فَقَدْ يَنْبَغِي أَنْ نَقُولَ فِيمَا يَكْفِيهِ مِنْ مَعْرِفَةِ وَاحِدٍ وَاحِدٍ مِنْهَا.

The definition of the independent jurist is that he knows the sources from which he derives rulings and possesses the rules and requisite conditions by which he derives them. Since the sources are three—the Book, the Sunna, and consensus—we must state how much knowledge of each suffices for him.

232. How much Qurʾānic knowledge is required?

R 232 · Bou Akl 283 · 1994 Arabic p. 137 · Bou Akl 2015 Arabic p. 306

أَمَّا مَا يَكْفِيهِ مِنْ مَعْرِفَةِ الْكِتَابِ فَمَعْرِفَةُ الْآيَاتِ الْمُتَضَمِّنَةِ لِلْأَحْكَامِ، وَمَعْرِفَةُ النَّاسِخِ مِنْهَا مِنَ الْمَنْسُوخِ، وَهِيَ نَحْوُ خَمْسِ مِئَةِ آيَةٍ، هَذَا عَلَى وَجْهِ التَّخْفِيفِ، وَالْأَفْضَلُ لَهُ مَعْرِفَةُ الْكِتَابِ كُلِّهِ. وَقَدْ رُخِّصَ لَهُ فِي حِفْظِ الْآيَاتِ الْمُتَضَمِّنَةِ لِلْأَحْكَامِ إِذَا كَانَتْ مَوَاضِعُهَا مَعْلُومَةً عِنْدَهُ بِحَيْثُ إِذَا وَرَدَتْ مَسْأَلَةٌ فِي أَمْرِ مَا عَلِمَ أَيْنَ يَطْلُبُهَا.

Sufficient knowledge of the Book consists in knowing the verses containing rulings and distinguishing the abrogating from the abrogated among them; they number about five hundred verses. This is a concession: knowing the whole Book is preferable. He is also excused from memorising the verses containing rulings if he knows where they occur, so that when a question arises he knows where to look for them.

233. Hadith competence, collections and transmitter evaluation

R 233 · Bou Akl 284 · 1994 Arabic p. 137 · Bou Akl 2015 Arabic p. 306

وَأَمَّا مَا يَكْفِيهِ مِنْ مَعْرِفَةِ السُّنَّةِ، فَمَعْرِفَةُ الْأَحَادِيثِ الَّتِي تَتَضَمَّنُ الْأَحْكَامَ. وَقَدْ يُخَفَّفُ عَنْهُ فِي أَنْ لَا يَحْفَظَهَا، بَلْ يَكْفِيهِ أَنْ يَكُونَ عِنْدَهُ أَصْلٌ مُصَحَّحٌ لِجَمِيعِ الْأَحَادِيثِ الْمُتَضَمِّنَةِ لِلْأَحْكَامِ يَرْجِعُ إِلَيْهِ وَقْتَ الْحَاجَةِ إِلَى الْفَتْوَى، وَالْأَفْضَلُ لَهُ أَنْ يَحْفَظَهَا.

Sufficient knowledge of the Sunna consists in knowing the reports that contain rulings. He may be excused from memorising them: it is enough to possess a corrected collection of all the reports containing rulings, to which he can refer when a legal opinion is needed. Memorizing them is preferable.

وَأَمَّا مَعْرِفَةُ صِحَّةِ أَسَانِيدِهَا، فَإِنْ هُوَ عَوَّلَ فِي صِحَّتِهَا عَلَى مَنْ يُحْسِنُ ظَنَّهُ بِهِ كَالْبُخَارِيِّ وَمُسْلِمٍ كَانَ مُقَلِّدًا، وَإِنْ هُوَ أَيْضًا احْتَاجَ أَنْ يُعَدِّلَ الرُّوَاةَ وَيَتَّبِعَ سِيَرَهُمْ وَأَحْوَالَهُمْ وَأَوْقَاتَهُمْ طَالَ عَلَيْهِ وَتَشَعَّبَ جِدًّا، وَلَا سِيَّمَا مَا تَبَاعَدَ الزَّمَانُ. وَالتَّخْفِيفُ عَنْهُ فِي ذَلِكَ أَنْ يَكْتَفِيَ بِتَعْدِيلِ الْإِمَامِ فِي ذَلِكَ إِذَا عَلِمَ مَذْهَبَهُ فِي التَّجْرِيحِ وَالتَّعْدِيلِ، وَكَانَ ذَلِكَ مُوَافِقًا لِمَذْهَبِهِ.

As for knowing the soundness of their transmission chains, if he relies on someone he trusts, such as al-Bukhārī or Muslim, he is following authority. Yet if he must himself establish the transmitters' uprightness and investigate their biographies, circumstances, and dates, the task becomes protracted and immensely intricate, especially as time grows distant. The concession is to accept a leading scholar's accreditation, provided he knows that scholar's approach to discrediting and accrediting transmitters and it agrees with his own.

G-B2-0503 · grammar. الفاء الرابطة مع «إنْ» الشرطية — «صحة أسانيدها، فإن هو عول في صحتها على». [The fāʾ connects the argument, and in here introduces a condition (if it is said / if it is / if he does); read its response as the result, not as an assertion with إنَّ.]

SC2015-148 · textual. أ «في ذلك إذا علم مذهبه»؛ ع «في ذلك إن علم مذهبه». إذا الشرطية [accepting an authority's transmitter assessment where one knows his doctrine] [Bou Akl 2015, Arabic p. 308, critical apparatus].

234. Consensus and the indispensable knowledge of Arabic

R 234 · Bou Akl 285 · 1994 Arabic p. 138 · Bou Akl 2015 Arabic p. 308

وَأَمَّا الْإِجْمَاعُ فَأَنْ يَعْرِفَ جَمِيعَ الْمَسَائِلِ الْمُجْمَعِ عَلَيْهَا، وَقَدْ يَكْفِيهِ أَنْ يَعْلَمَ أَنَّ قَوْلَهُ فِي الْمَسْأَلَةِ الَّتِي يُفْتِي فِيهَا لَيْسَ هُوَ مُخَالِفًا لِلْإِجْمَاعِ بِأَنْ يَعْلَمَ أَنَّ قَوْلَهُ يُوَافِقُ قَوْلَ قَائِلٍ. وَقَبْلَ هَذَا كُلِّهِ فَيَنْبَغِي أَنْ يَكُونَ عِنْدَهُ مِنْ عِلْمِ اللُّغَةِ وَاللِّسَانِ مَا يَفْهَمُ بِهِ كِتَابَ اللَّهِ تَعَالَى وَسُنَّةَ نَبِيِّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ وَلَا يَلْحَنُ.

As for consensus, he should know all the questions on which consensus has been reached. It may suffice that he knows his opinion on the question he is answering does not oppose consensus, by knowing that it agrees with an opinion someone has held. Before all this, he must possess enough knowledge of vocabulary and language to understand the Book of God, exalted is He, and the Sunna of His Prophet, God bless him and grant him peace, without linguistic error.

235. Theology and detailed fiqh: what is actually required?

R 235 · Bou Akl 286 · 1994 Arabic p. 138 · Bou Akl 2015 Arabic p. 308

وَقَدِ اشْتَرَطُوا مَعَ هَذَا أَنْ يَكُونَ عَالِمًا بِعِلْمِ الْكَلَامِ، وَذَلِكَ أَنْ تَكُونَ عِنْدَهُ الْأَدِلَّةُ الْمُعَرِّفَةُ بِاللَّهِ وَبِصِفَاتِهِ، وَالْمُوصِلَةُ إِلَى الْعِلْمِ بِحَدَثِ الْعَالَمِ، وَغَيْرِ ذَلِكَ مِمَّا يَتَضَمَّنُ عِلْمُ الْكَلَامِ. وَهَذَا إِنَّمَا يَلْزَمُ عَلَى رَأْيِ مَنْ يَرَى أَنَّ أَوَّلَ الْوَاجِبَاتِ النَّظَرُ وَالِاسْتِدْلَالُ، وَأَمَّا مَنْ لَا يَرَى ذَلِكَ فَيَكْفِيهِ الْإِيمَانُ بِمُجَرَّدِ الشَّرْعِ دُونَ نَظَرِ الْعَقْلِ. وَأَمَّا تَفَارِيعُ الْفِقْهِ فَلَا حَاجَةَ بِهِ إِلَيْهَا، لِأَنَّ الْمُجْتَهِدَ هُوَ الَّذِي يُوَلِّدُهَا.

They also require knowledge of theology (علم الكلام): possession of the evidence giving knowledge of God and His attributes, leading to knowledge of the world's origination, and the other matters theology contains. This is required only on the view that the first obligation is rational examination and inference. On the other view, faith based simply on the Law suffices without rational examination. As for the derived details of jurisprudence, he has no need of them, because it is the independent jurist who generates them.

G-B2-0509 · grammar. أسلوب القصر بـ«إنّما» — «الكلام. وهذا إنما يلزم على رأي من يرى». [Restriction: only / nothing but; identify what is being limited by the construction.]

236. Issue-specific independent inquiry

R 236 · Bou Akl 287 · 1994 Arabic p. 138 · Bou Akl 2015 Arabic p. 308

وَهَذِهِ الشَّرَائِطُ بِالْجُمْلَةِ إِنَّمَا هِيَ فِي حَقِّ الْمُجْتَهِدِ بِإِطْلَاقٍ الَّذِي تُمْكِنُهُ الْفَتْوَى فِي كُلِّ نَازِلَةٍ، وَأَمَّا مَنْ لَمْ تَكُنْ عِنْدَهُ كُلُّ هَذِهِ الشَّرَائِطِ، وَكَانَ عِنْدَهُ بَعْضُهَا، وَكَانَتِ الْمَسْأَلَةُ الْمَنْظُورُ فِيهَا يَكْفِي فِيهَا مَا عِنْدَهُ مِنْ تِلْكَ الشَّرَائِطِ، جَازَ لَهُ الِاجْتِهَادُ فِيهَا، لِأَنَّ نِسْبَتَهُ إِلَى هَذِهِ الْمَسْأَلَةِ نِسْبَةُ الْمُجْتَهِدِ بِإِطْلَاقٍ إِلَى جَمِيعِ الْمَسَائِلِ.

These requirements as a whole apply to the independent jurist in the unrestricted sense, who can give a legal opinion in every case. Someone who possesses only some of them may exercise independent inquiry in a question for which the requirements he possesses are sufficient. His relation to that question is the same as that of the unrestricted independent jurist to all questions.

BA014 · scholarship. Qualifications for ijtihād are relative to the problem investigated, not merely an indivisible rank. Bou Akl emphasizes the analogy between domain-specific mujtahids in legal practice and competent specialists in theoretical inquiry; he invokes al-Ghazālī's al-Mustaṣfā alongside the present discussion. Source: Bou Akl, "Splitting the Process and the Result," in Philosophy and Jurisprudence in the Islamic World (De Gruyter, 2019), pp. 139–141.

G-B2-0512 · grammar. أسلوب القصر بـ«إنّما» — «الشرائط بالجملة إنما هي في حق المجتهد بإطلاق». [Restriction: only / nothing but; identify what is being limited by the construction.]

237. Is there a determinate ruling to be found?

R 237 · Bou Akl 288 · 1994 Arabic p. 138 · Bou Akl 2015 Arabic p. 310

وَأَمَّا الْمُجْتَهَدُ فِيهِ فَهُوَ كُلُّ حُكْمٍ شَرْعِيٍّ لَيْسَ فِيهِ دَلِيلٌ قَطْعِيٌّ. وَقَدْ يَنْبَغِي أَنْ نَنْظُرَ هَهُنَا فِي هَذَا الْحُكْمِ الْمَطْلُوبِ: هَلْ هُوَ مُتَعَيِّنٌ فِي نَفْسِهِ وَمُكَلَّفٌ إِصَابَتُهُ أَمْ لَيْسَ هَهُنَا حُكْمٌ مُتَعَيِّنٌ يَتَوَجَّهُ الطَّلَبُ إِلَيْهِ، وَإِنَّمَا مَنَاطُ التَّكْلِيفِ فِي طَلَبِهِ غَلَبَةُ الظَّنِّ، فَيَكُونَ عَلَى هَذَا كُلُّ مُجْتَهِدٍ مُصِيبًا، وَإِنْ تَضَادَّتْ آرَاؤُهُمْ فِي الشَّيْءِ الْوَاحِدِ، فَنَقُولُ:

The subject of independent inquiry is every legal ruling for which there is no decisive evidence. We must consider whether the ruling sought is determinate in itself and one is charged with attaining it, or whether no determinate ruling exists toward which the inquiry is directed, the obligation resting solely on attaining a preponderant judgement. On the latter account, every independent jurist would be correct, even when their opinions on the same thing contradict one another. We say:

N112 · grammar. The compressed phrase وَمُكَلَّفٌ إِصَابَتُهُ is vocalised as a passive nominal construction, with attainment itself treated as the thing required. The English makes the implicit responsible inquirer explicit. This does not settle a possible ellipsis in the source wording.

BA015 · scholarship. Distinguish two questions rather than collapsing both into "every mujtahid is correct": (a) is there a determinate true ruling independent of an individual judgement? and (b) is the mistaken, diligent jurist morally/legal culpable? Bou Akl calls these the alethic and juridical levels. His distinction provides a useful map of §§237–245, but the scheme is modern scholarly analysis, not vocabulary Ibn Rushd himself employs. Source: Bou Akl, "Splitting the Process and the Result," in Philosophy and Jurisprudence in the Islamic World (De Gruyter, 2019), pp. 140–143.

BA15-I09 · interpretive. Fallibilism with a determinate object. Bou Akl 2015 intro pp.88–99 argues that Ibn Rushd's consistent juristic fallibilism presupposes a determinate intended legal judgement even when evidence remains probable; this is different from a claim that the individual's knowledge is infallible.

G-B2-0514 · grammar. أسلوب القصر بـ«إنّما» — «الطلب إليه، وإنما مناط التكليف في طلبه غلبة». [Restriction: only / nothing but; identify what is being limited by the construction.]

238. Essential attributes, Ẓāhirī restraint and determinate rulings

R 238 · Bou Akl 289 · 1994 Arabic p. 138, 139 · Bou Akl 2015 Arabic p. 310

أَمَّا مَنْ يَرَى أَنَّ الْأَحْكَامَ صِفَاتُ ذَوَاتٍ، سَوَاءٌ عُلِمَتْ بِانْضِمَامِ الشَّرْعِ إِلَيْهَا أَوْ قَبْلَهُ، أَوْ كَانَ فِيهَا الصِّنْفَانِ جَمِيعًا عَلَى مَا تَرَاهُ الْمُعْتَزِلَةُ، فَلَيْسَ يُمْكِنُهُ تَصْوِيبُ كُلِّ مُجْتَهِدٍ. وَكَذَلِكَ يَلْزَمُ مَنْ لَا يَرَى الْقِيَاسَ فِي الشَّرْعِ، فَإِنَّ هَؤُلَاءِ أَيْضًا يَرَوْنَ أَنَّ مَا لَمْ يَرِدْ فِيهِ خِطَابٌ شَرْعِيٌّ فَهُوَ عَلَى الْبَرَاءَةِ الْأَصْلِيَّةِ مِنَ الْإِبَاحَةِ، وَمَا كَانَ بِهَذِهِ الصِّفَةِ، أَعْنِي مَا وَرَدَ فِيهِ خِطَابٌ شَرْعِيٌّ، فَفِيهِ حُكْمٌ مُتَعَيِّنٌ.

Whoever holds that rulings are attributes of things' essences—whether known when the Law is added, or beforehand, or with both kinds among them, as the Muʿtazila hold—cannot declare every independent jurist correct. The same applies to those rejecting qiyās in the Law. They too hold that whatever has received no legal discourse remains under original freedom from obligation, as permissible; whereas something receiving legal discourse has a determinate ruling.

G-B2-0518 · grammar. أسلوب التسوية — «صفات ذوات، سواء علمت بانضمام الشرع إليها أو». [Whether one alternative or another; both possibilities fall under the same assessment.]

G-B2-0519 · grammar. الفاء الاستئنافية مع «إنَّ/إنْ/إنّما» — «في الشرع، فإن هؤلاء أيضا يرون أن ما». [The initial فـ links the reasoning. Distinguish إنَّ (assertion), إنْ (condition) and إنّما (restriction) from the words and vowelled context.]

239. Ibn Rushd's answer: discourse determines the ruling

R 239 · Bou Akl 290 · 1994 Arabic p. 139 · Bou Akl 2015 Arabic p. 310

وَأَمَّا نَحْنُ فَقَدْ سَلَفَ مِنْ قَوْلِنَا أَنَّ مَدَارِكَ أَحْكَامِ الشَّرْعِ الْخِطَابُ، وَأَنَّ الْخِطَابَ مِنْهُ مَا يُوجِبُ الْحُكْمَ بِصِيغَتِهِ، وَمِنْهُ بِمَفْهُومِهِ. وَأَنَّ الَّذِي يَعْنُونَ بِالْقِيَاسِ دَاخِلٌ فِي هَذَا الْجِنْسِ، وَأَنَّ كِلَا هَذَيْنِ الصِّنْفَيْنِ يَنْقَسِمَانِ فِي وُجُوبِ الْعَمَلِ بِهِمَا إِلَى نَصٍّ وَإِلَى ظَاهِرٍ. وَإِذَا كَانَ هَذَا هَكَذَا لَمْ يَتَصَوَّرْ أَنْ يُقَالَ كُلُّ مُجْتَهِدٍ مُصِيبٌ، إِذْ كَانَتْ سَبِيلُ تَلَقِّي الْأَحْكَامِ الْخِطَابَ الْوَارِدَ، وَذَلِكَ فِي جَمِيعِ أَصْنَافِهِ الَّتِي عُدِّدَتْ مِنْ لَفْظٍ أَوْ قَرِينَةٍ.

Our own position has already been stated: legal rulings are apprehended through discourse, which sometimes requires a ruling through its form and sometimes through its understood meaning. What they mean by qiyās falls within this class. Both kinds divide, with respect to the obligation to act on them, into unambiguous and prima facie indications. Consequently, one cannot maintain that every independent jurist is correct, since rulings are received through the given discourse in all the kinds we have enumerated, whether verbal expression or contextual indication.

وَمَا كَانَ سَبِيلُ الْمَعْرِفَةِ بِهِ الْخِطَابَ فَثَمَّ لَا شَكَّ حُكْمٌ مُتَعَيِّنٌ، وَهُوَ الَّذِي تَعَلَّقَ بِهِ الْخِطَابُ. وَمَا لَمْ يَتَضَمَّنْهُ الْخِطَابُ الْوَارِدُ، وَلَا دَلَّتْ عَلَيْهِ قَرِينَةٌ، فَهُوَ عَلَى الْبَرَاءَةِ الْأَصْلِيَّةِ مَعْفُوٌّ عَنْهُ، وَهُوَ أَحَدُ أَصْنَافِ الْمُبَاحِ الْمَنْسُوبِ إِلَى الشَّرْعِ. وَهَذَا مَعْنَى قَوْلِهِ عَزَّ وَجَلَّ: «مَا فَرَّطْنَا فِي الْكِتَابِ مِنْ شَيْءٍ» كَانَ فِيهِ حُكْمٌ إِلَّا وَضَمَّنَّاهُ إِيَّاهُ وَمَا لَمْ يَتَضَمَّنْهُ بِأَحَدِ الْأَدِلَّةِ الشَّرْعِيَّةِ فَهُوَ مَصْفُوحٌ عَنْهُ.

Where knowledge comes through discourse, there is undoubtedly a determinate ruling: that to which the discourse relates. What the given discourse does not contain, and no contextual indication signifies, remains under original freedom from obligation and is excused. This is one kind of permission ascribed to the Law. This is the meaning of His saying, mighty and exalted, “We have neglected nothing in the Book”: nothing bearing a ruling is left uncontained there; whatever it does not contain through any of the forms of legal evidence is passed over.

N113 · translation. The quotation from Qurʾān 6:38 ends at “the Book” in the English translation of ما فرطنا في الكتاب من شيء. The following explanation about things bearing rulings is Ibn Rushd’s gloss, not additional Qurʾānic wording.

N114 · translation. “Original freedom from obligation” renders البراءة الأصلية. The paragraph distinguishes an issue on which the discourse determines a ruling from an issue left without an imposed obligation; it does not identify all legal certainty with literal wording alone.

BA016 · scholarship. The crux is the Lawgiver’s determinate intention and the meaningful difference between a decisive or probable indication and the absence of any applicable indication, which leaves original non-liability in place. Bou Akl locates Ibn Rushd against al-Ghazālī’s stronger “every mujtahid is correct” account; this must not be exaggerated into the assertion that the evidence is always certain. Source: Bou Akl, “Splitting the Process and the Result,” in Philosophy and Jurisprudence in the Islamic World (De Gruyter, 2019), pp. 141–143.

G-B2-0521 · grammar. أسلوب الاستثناء بعد تعميم النفي — «فيه حكم إلا وضمناه إياه وما لم يتضمنه». [“No ruling except that which has been included”: read the exception in the context of the preceding universal claim about what the Book omits; do not isolate it as an unrelated conjunction.]

240. Al-Ghazālī’s first argument for universal correctness

R 240 · Bou Akl 291–292 · 1994 Arabic p. 139, 140 · Bou Akl 2015 Arabic p. 312

وَأَبُو حَامِدٍ يَرَى هُنَا أَنَّ كُلَّ مُجْتَهِدٍ مُصِيبٌ، وَقَدْ عَدَّدَ الْأُمُورَ الَّتِي نُوقِضَ بِهَا أَنَّ كُلَّ مُجْتَهِدٍ مُصِيبٌ وَزَيَّفَهَا، إِلَّا أَنَّهُ لَمْ يُعَدِّدْ فِي ذَلِكَ هَذَا الَّذِي قُلْنَاهُ. وَقَدْ سَلَكَ هُوَ فِي تَثْبِيتِ أَنَّ كُلَّ مُجْتَهِدٍ مُصِيبٌ طَرِيقَيْنِ، وَنَحْنُ نُوقِفُ عَلَى أَنَّ مَا أَلْزَمَ مِنْ ذَلِكَ غَيْرُ لَازِمٍ:

Abū Ḥāmid holds here that every independent jurist is correct. He has enumerated and rejected the objections to that claim, but has not included the argument we have given. He follows two routes in establishing that every independent jurist is correct. We shall show that his alleged consequences do not follow.

إِحْدَاهُمَا أَنَّهُ قَالَ: لَوْ كَانَ هَهُنَا حُكْمٌ مُتَعَيِّنٌ فِيمَا طَرِيقُهُ الِاجْتِهَادُ لَكَانَ التَّكْلِيفُ مُتَعَلِّقًا بِإِصَابَتِهِ، وَلَوْ كَانَ ذَلِكَ لَكَانَ عَلَيْهِ دَلِيلٌ قَطْعِيٌّ يُفْضِي إِلَيْهِ، وَإِلَّا كَانَ مِنْ بَابِ تَكْلِيفِ مَا لَا يُطَاقُ، وَقَدْ تَقَدَّمَ امْتِنَاعُهُ.

His first route is this. He says: if there were a determinate ruling in matters whose path is independent inquiry, the obligation would concern attaining it. In that case there would be decisive evidence leading to it; otherwise this would impose an obligation beyond one’s capacity, which has already been shown impossible.

ثُمَّ أَخَذَ يُبَيِّنُ أَنَّ الدَّلَائِلَ الْمُسْتَعْمَلَةَ فِي الِاجْتِهَادِ ظَنِّيَّةٌ يَحْصُلُ عَنْهَا النَّقِيضَانِ بِالسَّوَاءِ، وَأَنَّ التَّرَجُّحَ فِيهَا إِنَّمَا هُوَ بِحَسَبِ مَا طُبِعَ عَلَيْهِ شَخْصٌ شَخْصٌ مِنَ الْمَيْلِ فِي حُكْمٍ حُكْمٍ، وَنَازِلَةٍ نَازِلَةٍ.

He then attempts to show that the indications used in independent inquiry are probable, yield the two contradictories equally, and acquire preponderance only according to each person’s natural inclination in each ruling and each case.

G-B2-0523 · grammar. أسلوب القصر بـ«إنّما» — «الترجح فيها إنما هو بحسب ما طبع عليه». [Restriction: only / nothing but; identify what is being limited by the construction.]

G-B2-0524 · grammar. الشرط بـ«لو» — «أنه قال: لو كان ههنا حكم متعين فيما». [Hypothetical or counterfactual condition; read the answer rather than treating لو as a simple past marker.]

G-B2-0525 · grammar. الجار والمجرور «بِالسَّوَاءِ» للدلالة على التساوي — «عنها النقيضان بالسواء، وأن الترجح فيها إنما هو». ["Equally / in equal measure" describes the supposed balance of opposed conclusions. It is not the "whether … or …" pattern introduced by سواء.]

241. Evidence signifies; inclination does not make a ruling

R 241 · Bou Akl 293 · 1994 Arabic p. 140, 141 · Bou Akl 2015 Arabic p. 312

وَالْقَوْلُ بِمِثْلِ هَذَا كَبِيرَةٌ وَمَصِيرٌ إِلَى التَّحَكُّمِ فِي الشَّرْعِ بِالْأَهْوَاءِ وَالْإِرَادَاتِ، نَعُوذُ بِاللَّهِ مِنْ ذَلِكَ. بَلِ الْأَدِلَّةُ الشَّرْعِيَّةُ، كَمَا تَقَدَّمَ مِنْ قَوْلِنَا، إِمَّا قَطْعِيَّةٌ، وَإِمَّا ظَنِّيَّةٌ أَكْثَرِيَّةٌ وَجَبَ الْعَمَلُ بِهَا بِالْأَصْلِ الْمَقْطُوعِ بِهِ. وَمَا كَانَ هَكَذَا فَالْحُكْمُ لَا شَكَّ يَحْصُلُ عَنْهَا بِذَاتِهَا، لَا بِحَسَبِ مَا طُبِعَ عَلَيْهِ إِنْسَانٌ إِنْسَانٌ، بَلْ بِحَسَبِ دَلَالَتِهَا،

To say such a thing is a grave offence and a resort to arbitrary judgement in the Law through desires and inclinations; we seek God's protection from it. Legal evidence, as we said, is either decisive or preponderantly probable, with action on the latter required by a certainly established principle. In either case the ruling undoubtedly follows from the evidence itself, according to its signification, not according to each person's natural disposition.

وَلِذَلِكَ مَا كَانَ مِنَ الْأَدِلَّةِ مُتَرَدِّدًا بَيْنَ النَّقِيضَيْنِ عَلَى السَّوَاءِ سُمِّيَ فِي هَذِهِ الصِّنَاعَةِ مُجْمَلًا، وَلَمْ يُجْعَلْ دَلِيلًا شَرْعِيًّا أَصْلًا. وَبِالْجُمْلَةِ الْقَوْلُ بِأَنْ لَيْسَ هُنَا أَدِلَّةٌ يَحْصُلُ عَنْهَا بِذَاتِهَا الطَّلَبُ، وَسَوَاءٌ كَانَتِ الْأَدِلَّةُ عَقْلِيَّةً أَوْ شَرْعِيَّةً، هُوَ قَوْلٌ سُوفَسْطَائِيٌّ جِدًّا، وَيَنْبَغِي أَنْ يُتَجَنَّبَ، فَإِنَّهُ عَظِيمُ الضَّرَرِ فِي الشَّرِيعَةِ. وَإِذَا كَانَ هَذَا هَكَذَا، وَكَانَ هَهُنَا أَدِلَّةٌ تُفْضِي إِلَى الْمَطْلُوبِ، لَمْ يَكُنْ تَكْلِيفُ إِصَابَتِهِ مِنْ بَابِ مَا لَا يُطَاقُ.

Hence an indication undecided equally between contradictories is called indeterminate in this discipline and is not accepted as legal evidence at all. In general, denying that evidence itself yields what is sought—whether the evidence is rational or legal—is a thoroughly sophistical claim, to be avoided because of its great harm to the Law. Since evidence leading to the object sought exists, requiring one to attain it is not an obligation beyond one's capacity.

N115 · translation. The author's sharp criticism is directed at the account of evidence just reported from Abū Ḥāmid. The editor's separate comparison with the more flexible treatment in Bidāyat al-mujtahid is not merged into Ibn Rushd's authorial voice.

N116 · textual. Printed الطلب is understood here as the result sought in inquiry, in light of المطلوب in the following sentence.

BA017 · scholarship. Ibn Rushd rejects treating an investigator's inclination as constitutive of the Law's judgement. This is a claim about the objectivity of evidential indication even when inquiry is probable, not a denial that jurists can reasonably disagree or be excused when they err. Bou Akl sets this within the distinction between alethic truth and legal responsibility. Source: Bou Akl, "Splitting the Process and the Result," in Philosophy and Jurisprudence in the Islamic World (De Gruyter, 2019), pp. 141–143.

G-B2-0528 · grammar. أسلوب التسوية بـ«سَوَاءٌ» — «وسواء كانت الأدلة عقلية أو شرعية». ["Whether the evidences are rational or revealed": both alternatives fall under the same judgement; the separate expression على السواء simply means "equally".]

SC2015-149 · textual. أ «الطلب، وسواء كانت الأدلة»؛ ع «الطلب، سواء كانت الأدلة». واو الاستئناف [reinforces application to both rational and legal proofs] [Bou Akl 2015, Arabic p. 312, critical apparatus].

242. Al-Ghazālī's second argument: absence of sin

R 242 · Bou Akl 294 · 1994 Arabic p. 141 · Bou Akl 2015 Arabic p. 314

وَأَمَّا الطَّرِيقَةُ الْأُخْرَى الَّتِي احْتَجَّ بِهَا فَأَخَذَهَا مِنَ الْوَاجِبِ، وَذَلِكَ أَنَّهُ كَمَا قِيلَ فِيهِ هُوَ مَا فِي تَرْكِهِ عِقَابٌ قَالَ: فَلَوْ كَانَ الْوَاجِبُ فِي الشَّيْءِ حُكْمًا مُتَعَيِّنًا لَكَانَ فِي تَرْكِ إِصَابَتِهِ إِثْمٌ، وَالْإِجْمَاعُ قَدِ انْعَقَدَ عَلَى سُقُوطِ التَّأْثِيمِ عَنِ الْمُجْتَهِدِينَ، فَلِذَلِكَ يَلْزَمُ عَنِ انْتِفَاءِ التَّأْثِيمِ انْتِفَاءُ الْخَطَإِ.

His other argument is drawn from obligation. Since the obligatory was defined as that whose omission incurs punishment, he argues: if the obligation concerning a thing were a determinate ruling, failure to attain it would incur sin. But consensus establishes that independent jurists are not charged with sin. Therefore, the absence of sin entails the absence of error.

243. An error can be pardoned without becoming correct

R 243 · Bou Akl 295 · 1994 Arabic p. 141 · Bou Akl 2015 Arabic p. 314

وَنَحْنُ نَقُولُ إِنَّهُ لَيْسَ يَلْزَمُ عَنْ سُقُوطِ التَّأْثِيمِ انْتِفَاءُ الْخَطَإِ، إِذِ الْخَطَأُ الغير متعم د مَصْفُوحٌ عَنْهُ فِي الشَّرْعِ، وَهُوَ يَقَعُ بالنسيان وَالْغَفْلَةُ وَالسَّهْوُ. وَقَدْ قُلْنَا غَيْرَ مَا مَرَّةٍ إِنَّ الْأَدِلَّةَ الشَّرْعِيَّةَ إِمَّا قَطْعِيَّةٌ، وَإِمَّا أَكْثَرِيَّةٌ. أَمَّا الْقَطْعِيَّةُ فَالطَّرِيقُ إِلَيْهَا مَهْيَعٌ، وَوُقُوعُ السَّهْوِ فِيهَا وَالْغَلَطِ يَقِلُّ، فَلِذَلِكَ يُشْبِهُ أَنْ يَلْزَمَ التَّأْثِيمُ فِيهَا بِلُزُومِ الْخَطَإِ. وَأَمَّا الظَّنِّيَّةُ فَالْغَلَطُ كَثِيرًا مَا يَقَعُ فِيهَا وَالسَّهْوُ، فَلِذَلِكَ لَمْ يَلْزَمْ مِنَ الْخَطَإِ فِيهَا التَّأْثِيمُ.

We say that exemption from sin does not entail absence of error. Unintentional error is pardoned in the Law; it occurs through forgetfulness, inattention, and inadvertence. We have repeatedly said that legal evidence is either decisive or preponderant. The path to decisive evidence is plainly accessible, and inadvertence and mistake are rare in it; hence error there seems to entail sin. With probable evidence, however, mistake and inadvertence occur often, so error does not entail sin.

وَالَّذِي أُخِذَ فِي حَدِّ الْوَاجِبِ بِأَنَّهُ الَّذِي فِي تَرْكِهِ عِقَابٌ، إِنَّمَا مَعْنَى ذَلِكَ أَنَّ الْعِقَابَ متعلق بِتَرْكِهِ بَعْدَ الْمَعْرِفَةِ بِوُجُوبِهِ، فِيمَا كَانَ إِلَى الْمَعْرِفَةِ بِوُجُوبِهِ دَلِيلٌ قَطْعِيٌّ. وَأَمَّا مَنْ غَلِطَ أَوْ سَهَا فِيمَا الْغَلَطُ فِيهِ مُعَرَّضٌ فَلَمْ يَكُنْ لَهُ سَبِيلٌ إِلَى مَعْرِفَةِ وُجُوبِهِ، فَكَيْفَ يَلْحَقُ بِمِثْلِ هَذَا تَأْثِيمٌ. وَقَدْ قَالَ عَلَيْهِ السَّلَامُ: «رُفِعَ عَنْ أُمَّتِيَ الْخَطَأُ وَالنِّسْيَانُ».

The definition of the obligatory as that whose omission incurs punishment means that punishment attaches to omission after its obligatory status has become known, where decisive evidence leads to that knowledge. If someone errs or is inadvertent in a matter liable to error and thus has no way to know its obligatory status, how could he incur sin? The Prophet, peace be upon him, has said, “Error and forgetfulness have been lifted from my community.”

N117 · textual. The compressed clause وهو يقع به النسيان والغفلة والسهو has an awkward pronoun/preposition sequence. Its contextual point is that forgetfulness and inadvertence belong to the pardoned class of unintentional error; the English expresses this relation without claiming a new Arabic reading.

BA018 · scholarship. Most important distinction: unintentional error (khaṭaʾ ghayr mutaʿammad) may be pardoned without becoming a correct judgement. Bou Akl cites this very argument as §295 of his 2015 edition, while the al-ʿAlawī-based reader numbers it §243. His 2019 reading distinguishes truth/error from an accusation of culpable error, applying the juristic distinction to philosophical inquiry in the Faṣl al-maqāl. Source: Bou Akl, “Splitting the Process and the Result,” in Philosophy and Jurisprudence in the Islamic World (De Gruyter, 2019), pp. 140–144, esp. p. 143 n. 26. The current Arabic wording remains that of al-ʿAlawī 1994, not a verified 2015 variant.

BA15-I10 · interpretive. Wrong vs blameworthy. Bou Akl 2015 intro pp.93–99 distinguishes an incorrect proposition from a culpable error. Unintentional error after qualified effort may be excused even though an objectively correct answer exists. The parallel with philosophy in the Decisive Treatise is explored in Bou Akl 2019.

BA-T150 · textual. قراءة الإسكوريال كما أثبتها بو عقل: «بالنسيان»، مقابل «به النسيان» في طبعة العلوي. (Escorial reading as reported by Bou Akl, 2015, Arabic p. 314; variant against al-ʿAlawī.)

BA-T151 · textual. قراءة الإسكوريال كما أثبتها بو عقل: «الغير متعم د»، مقابل «غير المتعمد» في طبعة العلوي. (Escorial reading as reported by Bou Akl, 2015, Arabic p. 314; variant against al-ʿAlawī.)

BA-T152 · textual. قراءة الإسكوريال كما أثبتها بو عقل: «متعلق»، مقابل «يتعلق» في طبعة العلوي. (Escorial reading as reported by Bou Akl, 2015, Arabic p. 314; variant against al-ʿAlawī.)

G-B2-0530 · grammar. أسلوب القصر بـ«إنّما» — «تركه عقاب، إنما معنى ذلك أن العقاب متعلق». [Restriction: only / nothing but; identify what is being limited by the construction.]

244. Degrees of culpability and the clarity of evidence

R 244 · Bou Akl 296 · 1994 Arabic p. 141, 142 · Bou Akl 2015 Arabic p. 314

فَإِنْ قِيلَ فَسَيَلْزَمُ عَلَى هَذَا أَنَّ مَا كَانَ عَلَيْهِ دَلِيلٌ قَطْعِيٌّ فَأَخْطَأَهُ الْمُجْتَهِدُ عَلَى غَيْرِ عَمْدٍ أَنَّهُ لَا يَأْثَمُ. قِيلَ فِي هَذَا نَظَرٌ. وَالْفَرْقُ بَيْنَهُمَا بَيِّنٌ. فَإِنَّ الدَّلِيلَ الْقَطْعِيَّ قَلَّمَا يَخْفَى عَلَى أَحَدٍ مِمَّنْ بَلَغَ رُتْبَةَ الِاجْتِهَادِ، وَإِنَّمَا يُتَصَوَّرُ خَفَاؤُهُ لِهَوًى أَوْ هَوَادَةٍ أَوْ لِشَيْءٍ عَلَى خِلَافِهِ أَوْ غَيْرِ ذَلِكَ مِنَ الْعَوَارِضِ النَّفْسِيَّةِ. وَلِهَذَا مَرَاتِبُ بِحَسَبِ مَرَاتِبِ الْأَدِلَّةِ، وَلِذَلِكَ يُكَفَّرُ فِي بَعْضِهَا، وَيُؤَثَّمُ فِي بَعْضٍ، وَمُدْرَكُ هَذَا التَّفَاوُتِ الشَّرْعُ.

If it is said that this entails freedom from sin even when a jurist unintentionally misses something established by decisive evidence, we reply: this requires examination. The difference is clear. Decisive evidence is seldom hidden from someone who has attained the rank of independent inquiry. Its being hidden is conceivable only through desire, partiality, something opposing it, or other psychological impediments. This has degrees corresponding to the degrees of evidence. Hence some cases incur a judgement of unbelief and others a charge of sin; the Law determines these differences.

BA019 · scholarship. Bou Akl argues that the relevant juristic differentiation turns in part on the relative accessibility of evidence: easy, conclusive matters differ from difficult, presumptive matters where an unwilled mistake is more likely. The legal consequences still depend on the Law; the claim is not that every sincere doctrinal mistake is excused. Source: Bou Akl, “Splitting the Process and the Result,” in Philosophy and Jurisprudence in the Islamic World (De Gruyter, 2019), pp. 142–143.

G-B2-0533 · grammar. «رتبة الاجتهاد، وإنما يتصور خفاؤه لهوى أو هوادة — «إنّما» بـأسلوب القصر». [Restriction: only / nothing but; identify what is being limited by the construction.]

G-B2-0534 · grammar. «فإن قيل فسيلزم على هذا أن — «إنْ» الشرطية مع «الفاء الرابطة». [The fāʾ connects the argument, and in here introduces a condition (if it is said / if it is / if he does); read its response as the result, not as an assertion with إنَّ.]

245. Attainable truth and merciful pardon

R 245 · Bou Akl 297 · 1994 Arabic p. 142 · Bou Akl 2015 Arabic p. 316

فَقَدْ تَبَيَّنَ مِنْ قَوْلِنَا أَنْ لَيْسَ كُلُّ مُجْتَهِدٍ مُصِيبًا، وَإِنَّهُ إِنْ أَخْطَأَ فَعَلَى أَيِّ جِهَةٍ لَا يَأْثَمُ، وَإِنَّ الْمُجْتَهِدَ كُلِّفَ إِصَابَةَ مَا هُوَ فِي نَفْسِهِ مُمْكِنُ الْإِصَابَةِ، وَعُفِيَ عَنْهُ عِنْدَ الْخَطَأِ رَحْمَةً لَهُ وَصَفْحًا عَنْهُ.

Our discussion has shown that not every independent jurist is correct, in what respect he is free from sin when he errs, and that he is charged with attaining something that is itself attainable. When he errs, he is forgiven out of mercy and pardon.

BA020 · scholarship. This conclusion preserves BOTH a truth one may miss and an excuse when a qualified jurist has diligently pursued it. Bou Akl stresses professional effort and methodology as grounds of exculpation, whereas the Arabic here still states that the jurist is charged with attaining what is in itself attainable. Keep the textual statement and record the interpretive tension rather than rewriting it as “only effort, never correctness, is obligatory.” Source: Bou Akl, “Splitting the Process and the Result,” in Philosophy and Jurisprudence in the Islamic World (De Gruyter, 2019), pp. 142–144.

246. Conflict: suspension, caution or free choice?

R 246 · Bou Akl 298 · 1994 Arabic p. 142 · Bou Akl 2015 Arabic p. 316

وَقَدْ بَقِيَ عَلَيْنَا مِنْ هَذَا الْبَابِ كَيْفَ حَالَةُ الْمُجْتَهِدِ، إِذَا تَعَارَضَتْ عِنْدَهُ الْأَدِلَّةُ فِي مَسْأَلَةٍ مَا، وَإِلَى أَيِّ شَيْءٍ يَصِيرُ فَنَقُولُ: إِنَّ الَّذِي حَكَى فِي ذَلِكَ أَبُو حَامِدٍ ثَلَاثَةُ آرَاءٍ: أَحَدُهَا رَأْيُ مَنْ يَرَى التَّوَقُّفَ وَالثَّانِي الْأَخْذُ بِالْأَحْوَطِ وَالثَّالِثُ رَأْيُ الْقَاضِي وَهُوَ أَنْ يَتَخَيَّرَ الْمُجْتَهِدُ، وَهَذَا رَأْيٌ ضَعِيفٌ لِأَنَّ التَّخْيِيرَ إِبَاحَةٌ، وَالْأَدِلَّةُ الْمُتَنَاقِضَةُ فِي الْأَمْرِ بِالشَّيْءِ الْوَاحِدِ هِيَ أَوْلَى أَنْ تُوقِعَ الشَّكَّ وَالْحَيْرَةَ مِنْ أَنْ يُظَنَّ بِهَا أَنَّهَا تُنْتِجُهُ.

It remains to consider the jurist’s position when evidence conflicts for him on a question, and what course he should take. Abū Ḥāmid reports three views: suspending judgement, adopting the more cautious course, and the Judge’s view that the jurist may choose. This last view is weak, because granting a choice is permission, whereas contradictory evidence concerning the command about a single matter is more apt to produce doubt and perplexity than to be thought to establish such permission.

وَكَذَلِكَ التَّوَقُّفُ لَا مَعْنَى لَهُ، فَإِنَّ فِي ذَلِكَ تَعْطِيلًا لِلْأَحْكَامِ. وَأَيْضًا فَإِنَّهُ غَيْرُ مُمْكِنٍ فِي الْأَشْيَاءِ الَّتِي لَيْسَ يُمْكِنُ الْإِنْسَانَ فِيهَا إِلَّا أَنْ يَأْتِيَ أَحَدَ الضِّدَّيْنِ، كَالْأَحَادِيثِ الْوَارِدَةِ مَثَلًا فِي الْغُسْلِ مِنَ الْمَاءِ، وَالْغُسْلِ مِنِ الْتِقَاءِ الْخِتَانَيْنِ، فَإِنَّ مِثْلَ هَذِهِ الْأَحَادِيثِ إِذَا تَعَارَضَتْ لَمْ يُمْكِنْ فِيهَا التَّوَقُّفُ، فَإِنَّهُ لَا بُدَّ مِنَ الْمَصِيرِ إِلَى أَحَدِهِمَا.

Suspending judgement likewise makes no sense, since it leaves rulings inoperative. It is also impossible where a person must do one of two opposite things. Consider the reports about ritual bathing because of the emission of fluid, and bathing because of the meeting of the circumcised parts. When such reports conflict, suspension is impossible: one must adopt one or the other.

وَفِي مِثْلِ هَذَا يُخَيَّلُ الْمَصِيرُ إِلَى الْأَخْذِ بِالْأَحْوَطِ. وَهُوَ وَإِنْ كَانَ يُخَيَّلُ فِيهِ أَنَّهُ أَوْلَى لِمَكَانِ النَّجَاةِ مِنَ الذَّمِّ، فَكَذَلِكَ يُخَافُ لُحُوقُ الذَّمِّ بِزِيَادَةِ مَا لَيْسَ مِنَ الشَّرْعِ فِي الشَّرْعِ.

In such a case, adopting the more cautious course appears plausible. Although it may seem preferable because it avoids blame, one must equally fear blame for adding to the Law something that does not belong to it.

N118 · translation. The compressed bathing examples concern whether emission is required or whether intercourse itself requires the ritual bath. The Arabic formulations are retained. The “Judge” is left as the author’s designation; no unsupported personal identification is inserted.

G-B2-0540 · grammar. استثناء أو استدراك بـ«إلّا أنّ» — «الإنسان فيها إلا أن يأتي أحد الضدين، كالأحاديث الواردة». [Except that / however; the contextual function determines which qualification is intended.]

247. The Ẓāhirī response: return to original nonliability

R 247 · Bou Akl 299 · 1994 Arabic p. 142, 143 · Bou Akl 2015 Arabic p. 318

وَلِلظَّاهِرِيَّةِ فِي هَذَا قَوْلٌ رَابِعٌ، وَهُوَ أَنْ يَرْجِعَ الْمُجْتَهِدُ عِنْدَ تَكَافُؤِ الْأَدِلَّةِ إِلَى الْبَرَاءَةِ الْأَصْلِيَّةِ، لِأَنَّ التَّكْلِيفَ بِالْأَدِلَّةِ الْمُتَنَاقِضَةِ تَكْلِيفُ مَا لَا يُطَاقُ، وَهُوَ فِي ذَلِكَ بِمَنْزِلَةِ التَّكْلِيفِ بِمَا لَيْسَ عَلَيْهِ دَلِيلٌ. فَكَمَا أَنَّ مَا لَيْسَ عَلَيْهِ دَلِيلٌ تُسْتَصْحَبُ فِيهِ الْبَرَاءَةُ الْأَصْلِيَّةُ، أَوْ مَا كَانَ عَلَيْهِ دَلِيلٌ إِلَّا أَنَّهُ لَمْ يُمْكِنْ بُلُوغُهُ، كَذَلِكَ مَا تَضَادَّتْ فِيهِ الدَّلَائِلُ، وَكَمَا أَنَّ مَا عَلَيْهِ دَلِيلٌ سَاقِطٌ فِي حَقِّ مَنْ لَمْ يَبْلُغْهُ، كَذَلِكَ مَنْ تَعَارَضَتْ عِنْدَهُ الْأَدِلَّةُ فِي شَيْءٍ مَا سَاقِطَةٌ فِي حَقِّهِ.

The Ẓāhirīs have a fourth view: when the evidence is equally balanced, the independent jurist returns to original freedom from obligation. An obligation imposed through contradictory evidence exceeds one’s capacity and is like an obligation lacking evidence. Just as original freedom from obligation is presumed to continue where there is no evidence—or where evidence exists but cannot be reached—it likewise continues where available proofs appear to conflict. And just as a ruling supported by evidence does not bind someone whom that evidence has not reached, so apparently opposed proofs cease to bind the person for whom they conflict.

وَإِنَّمَا يَقَعُ هَذَانِ الصِّنْفَانِ فِي حَقِّ قَوْمٍ وَأَهْلِ زَمَانٍ مَا مِمَّنْ لَمْ يَصِلْهُمُ الدَّلِيلُ الشَّرْعِيُّ، أَوْ مِمَّنْ لَمْ يَتَمَيَّزْ لَهُمُ النَّاسِخُ فِي ذَلِكَ وَالْمَنْسُوخُ وَغَيْرُ ذَلِكَ مِمَّا يُوجِبُ التَّعَارُضَ، إِذْ كَانَ لَيْسَ يَجُوزُ وُقُوعُ دَلَائِلَ مُتَضَادَّةٍ فِي الشَّرْعِ.

These two conditions occur only relative to particular people or people of a particular period: those whom the legal evidence has not reached, or who have not distinguished the abrogating from the abrogated, or other matters producing conflict. For contradictory evidence cannot occur within the Law itself.

N119 · translation. The opening explicitly reports a Ẓāhirī position. The final sentence distinguishes conflict as it appears to particular inquirers from contradiction in the Law itself; the translation does not erase that distinction.

BA15-I11 · interpretive. Contradictory evidence. Bou Akl 2015 intro pp.99–106 relates equal evidential balance (takāfuʾ) to preference (tarjīḥ). Ibn Rushd's view that unreconciled opposition can reflect missing historical information is not a license to choose arbitrary rulings.

BA15-T01 · translation. Bou Akl (2015), Arabic p. 318, §299, preserves «كذلك ما تضادت فيه الدلائل، وكما أن ما عليه دليل ساقط في حق من لم يبلغه» (Escorial reading [أ]), omitted by al-ʿAlawī [ع]. The first comparison concerns original nonliability where proof is absent, unreachable, or in apparent conflict; the second concerns the non-binding status of proof not received or of opposition not resolved. Ibn Rushd denies that contradictory proofs occur within the Law itself. The English already distinguished both comparisons.

G-B2-0541 · grammar. أسلوب القصر بـ«إنّما» — «في حقه. وإنما يقع هذان الصنفان في حق». [Restriction: only / nothing but; identify what is being limited by the construction.]

G-B2-0543 · grammar. استثناء أو استدراك بـ«إلّا أنّ» — «عليه دليل إلا أنه لم يمكن بلوغه، كذلك من». [Except that / however; the contextual function determines which qualification is intended.]

G-BA-299 · grammar. القياس بالموازنة: «فَكَمَا أَنَّ ... كَذَلِكَ ...، وَكَمَا أَنَّ ... كَذَلِكَ ...» — [Two distinct comparison structures ("just as … so …"): the first compares cases of unavailable evidence, the second compares who is bound by evidence. They must not be collapsed into a single premise.]

248. From independent inquiry to following authority

R 248 · Bou Akl 300 · 1994 Arabic p. 143 · Bou Akl 2015 Arabic p. 318

وَإِذْ قَدْ فَرَغْنَا مِنَ الْقَوْلِ فِي الِاجْتِهَادِ وَالْمُجْتَهِدِ فِيهِ، فَلْنَقُلْ فِي التَّقْلِيدِ وَالْمُقَلِّدِ.

Having completed the discussion of independent inquiry and its subject matter, let us discuss following authority and the person who does so.

249. Trust, probability and following the Prophet

R 249 · Bou Akl 301 · 1994 Arabic p. 143 · Bou Akl 2015 Arabic p. 318

وَالتَّقْلِيدُ هُوَ قَبُولُ قَوْلِ قَائِلٍ يَغْلِبُ عَلَى الظَّنِّ صِدْقُهُ لِحُسْنِ الثِّقَةِ فِيهِ. وَالْفَرْقُ بَيْنَ هَذَا وَبَيْنَ تَقْلِيدِهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ، أَنَّ تَقْلِيدَهُ هُوَ قَبُولُ قَوْلٍ يَقَعُ لِلْإِنْسَانِ الْيَقِينُ بِهِ لِدَلَالَةِ الْمُعْجِزَةِ عَلَى صِدْقِهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ.

Following authority (تقليد) is accepting someone's statement whose truth is judged preponderantly probable because of confidence in that person. It differs from following the Prophet, God bless him and grant him peace: following him is accepting a statement of which one attains certainty, because the miracle indicates his truthfulness, God bless him and grant him peace.

250. Why juristic expertise is a collective obligation

R 250 · Bou Akl 302 · 1994 Arabic p. 143, 144 · Bou Akl 2015 Arabic p. 318

وَأَمَّا مَنْ يَجُوزُ لَهُ التَّقْلِيدُ، فَهُمُ الْعَوَامُّ، بِدَلِيلِ أَنَّ النَّاسَ لَا يَخْلُونَ مِنْ ثَلَاثَةِ أَقْسَامٍ: إِمَّا أَنْ يَكُونُوا كُلُّهُمْ مُجْتَهِدِينَ، وَهَذَا مُحَالٌ وُقُوعُهُ وَالتَّكْلِيفُ بِهِ، لِأَنَّهُ كَانَ يُؤَدِّي إِلَى انْقِطَاعِ الْمَعَايِشِ لَوْ كَانَ مُمْكِنًا أَنْ تحصل لِكُلِّ أَحَدٍ رُتْبَةُ الِاجْتِهَادِ.

Those permitted to follow authority are ordinary people. The proof is that people must fall under one of three arrangements. Either all are independent jurists; this is impossible both in practice and as an obligation, since, even if everyone could attain that rank, it would bring the means of livelihood to a halt.

وَإِمَّا أَنْ تُفْقَدَ فِي جَمِيعِهِمْ شُرُوطُ الِاجْتِهَادِ، وَهَذَا أَيْضًا مُمْتَنِعٌ، لِأَنَّهُ كَانَ يُؤَدِّي إِلَى إِهْمَالِ أَكْثَرِ الْأَحْكَامِ، إِذْ أَكْثَرُ الْفَرَائِضِ وَالسُّنَنِ إِنَّمَا يَقُومُ بِفَرْضِ مَعْرِفَتِهَا وَتَعْلِيمِهَا لِلنَّاسِ الْمُجْتَهِدُونَ.

Or all lack the qualifications for independent inquiry. This too is impossible, because it would lead to the neglect of most rulings: independent jurists are those who discharge the obligation of knowing most prescribed duties and practices and teaching them to people.

وَإِمَّا أَنْ يُوجَدَ فِي النَّاسِ الصِّنْفَانِ جَمِيعًا، وَهُوَ أَنْ تَكُونَ فِيهِمْ طَائِفَةٌ تَقُومُ لِلْجُمْهُورِ بِضَبْطِ الْفَرَائِضِ وَالسُّنَنِ، وحفظها عَلَيْهِمْ، وَأَخْذِهِمْ بِهَا، وَاسْتِنْبَاطِ مَا شَأْنُهُ أَنْ يُسْتَنْبَطَ مِنْهَا فِي وَقْتٍ وَقْتٍ وَنَازِلَةٍ نَازِلَةٍ. وَتَكُونَ فِيهِمْ طَائِفَةٌ أُخْرَى، وَهُمُ الْعَوَامُّ، شَأْنُهُمْ تَقْلِيدُ هَؤُلَاءِ لِحُسْنِ الثِّقَةِ بِهِمْ، وَغَلَبَةِ الظَّنِّ فِي صِدْقِهِمْ.

Or both classes exist: one group preserves the prescribed duties and practices for the public, lays them upon people, requires their observance, and derives what may be derived from them at each time and in each case. Another group, ordinary people, follows the authority of the first because of confidence in them and a preponderant judgement of their truthfulness.

وَكَأَنَّ غَلَبَةَ الظَّنِّ لِحُسْنِ الثِّقَةِ جُعِلَتْ هَهُنَا أَمَارَةً لِلُزُومِ الْأَحْكَامِ لَهُمْ، كَمَا جُعِلَتْ غَلَبَةُ الظَّنِّ لِلْمُجْتَهِدِ أَمَارَةً لِلُزُومِ الْحُكْمِ لَهُ. وَبِالْوَاجِبِ مَا سُمِّيَ هَذَا فَرْضَ كِفَايَةٍ، إِذْ يَكْفِي فِي الْقِيَامِ بِهِ الْبَعْضُ عَنِ الْبَعْضِ.

Here it is as though preponderant judgement based on confidence has been made a sign that the rulings bind them, just as the independent jurist's preponderant judgement is a sign that a ruling binds him. This is rightly called a collective obligation (فرض كفاية), since its performance by some suffices on behalf of others.

BA021 · scholarship. The general public and trained interpreters occupy complementary positions because not everybody can devote themselves to the craft of legal inference. Bou Akl observes that the Decisive Treatise's philosopher/layperson distinction draws upon juridical mujtahid/muqallid relations; this is about relation to disciplinary competence, not an immutable caste classification. Source: Bou Akl, "Averroes on Juridical Reasoning," in Interpreting Averroes: Critical Essays (Cambridge UP, 2018), p. 63; Bou Akl, "Splitting the Process and the Result," in Philosophy and Jurisprudence in the Islamic World (De Gruyter, 2019), pp. 139–141.

BA-T155 · textual. قراءة الإسكوريال كما أثبتها بو عقل: «وحفظها»، مقابل «وجعلها» في طبعة العلوي. (Escorial reading as reported by Bou Akl, 2015, Arabic p. 320; variant against al-ʿAlawī.)

BA-T156 · textual. قراءة الإسكوريال كما أثبتها بو عقل: «تحصل»، مقابل «يحصل» في طبعة العلوي. (Escorial reading as reported by Bou Akl, 2015, Arabic p. 320; variant against al-ʿAlawī.)

G-B2-0545 · grammar. «الفرائض والسنن إنما يقوم بفرض معرفتها وتعليمها للناس» — «أسلوب القصر بـ«إنّما». [Restriction: only / nothing but; identify what is being limited by the construction.]

G-B2-0546 · grammar. «انقطاع المعايش لو كان ممكنا أن تحصل لكل» — «الشرط بـ«لو». [Hypothetical or counterfactual condition; read the answer rather than treating لو as a simple past marker.]

SC2015-154 · textual. «وأما من يجوز له التقليد»؛ ع «وأما من يجوز لهم التقليد». مَن موصولة مفردة اللفظ جمعية المعنى [singular pronominal agreement with an indefinite relative referring to the lay public] [Bou Akl 2015, Arabic p. 318, critical apparatus].

251. May a mujtahid follow a more knowledgeable jurist?

R 251 · Bou Akl 303–304 · 1994 Arabic p. 144 · Bou Akl 2015 Arabic p. 320

فَقَدْ تَبَيَّنَ مِنْ هَذَا أَنَّ النَّاسَ صِنْفَانِ: صِنْفٌ فَرْضُهُ التَّقْلِيدُ، وَهُمُ الْعَوَامُّ الَّذِينَ لَمْ يَبْلُغُوا رُتْبَةَ الِاجْتِهَادِ الَّتِي حُدِّدَتْ فِيمَا قَبْلُ. وَصِنْفٌ ثَانٍ وَهُمُ الْمُجْتَهِدُونَ الَّذِينَ كَمُلَتْ لَهُمْ شُرُوطُ الِاجْتِهَادِ.

It is therefore clear that people are of two classes. One is obliged to follow authority: ordinary people who have not attained the rank of independent inquiry defined earlier. The second comprises independent jurists who fully possess its qualifications.

وَأَمَّا هَلْ لِهَذَا الصِّنْفِ الثَّانِي وَهُمُ الْمُجْتَهِدُونَ أَنْ يُقَلِّدَ بَعْضُهُمْ بَعْضًا، فَفِيهِ نَظَرٌ. فَإِنَّ تَقْلِيدَ الْعَوَامِّ شَيْءٌ أَدَّتْ إِلَيْهِ الضَّرُورَةُ، وَوَقَعَ عَلَيْهِ الْإِجْمَاعُ. لَكِنْ يَنْبَغِي أَنْ يُقَالَ: يَجُوزُ لِلْمُجْتَهِدِ تَقْلِيدُ الْمُجْتَهِدِ إِذَا كَانَ أَعْلَمَ مِنْهُ، وَتَرَجَّحَ عِنْدَهُ حُسْنُ الظَّنِّ بِهِ تَرَجُّحًا يَفْضُلُ عِنْدَهُ الظَّنَّ الْوَاقِعَ لَهُ فِي الشَّيْءِ عَنِ اجْتِهَادِهِ.

Whether those in the second class may follow one another's authority requires examination. Ordinary people's following authority is required by necessity and established by consensus. Nevertheless, one should say that an independent jurist may follow another who is more knowledgeable than he, when his confidence in the other's judgement outweighs the probable judgement he himself reaches through independent inquiry into the matter.

G-B2-0549 · grammar. «ففيه نظر. فإن تقليد العوام شيء أدت إليه» — «الفاء الاستئنافية مع «إنَّ/إنْ/إنّما». [The initial فـ links the reasoning. Distinguish إنَّ (assertion), إنْ (condition) and إنّما (restriction) from the words and vowelled context.]

252. Memorised school doctrine is not an independent source

R 252 · Bou Akl 305 · 1994 Arabic p. 144, 145 · Bou Akl 2015 Arabic p. 322

وَلِأَنَّ هَهُنَا طَائِفَةً تُشْبِهُ الْعَوَامَّ مِنْ جِهَةٍ، وَالْمُجْتَهِدِينَ مِنْ جِهَةٍ، وَهُمُ الْمُسَمَّوْنَ فِي زَمَانِنَا هَذَا أَكْثَرَ ذَلِكَ بِالْفُقَهَاءِ، فَيَنْبَغِي أَنْ نَنْظُرَ فِي أَيِّ الصِّنْفَيْنِ أَوْلَى أَنْ نُلْحِقَهُمْ. وَهُوَ ظَاهِرٌ مِنْ أَمْرِهِمْ أَنَّ مَرْتَبَتَهُمْ مَرْتَبَةُ الْعَوَامِّ، وَأَنَّهُمْ مُقَلِّدُونَ.

There is a group resembling ordinary people in one respect and independent jurists in another: those mostly called jurists in our time. We should examine to which class they more properly belong. Their condition plainly shows that their rank is that of ordinary people and that they are followers of authority.

وَالْفَرْقُ بَيْنَ هَؤُلَاءِ وَبَيْنَ الْعَوَامِّ، أَنَّهُمْ يَحْفَظُونَ الْآرَاءَ الَّتِي لِلْمُجْتَهِدِينَ فَيُخْبِرُونَ عَنْهَا الْعَوَامَّ، مِنْ غَيْرِ أَنْ تَكُونَ عِنْدَهُمْ شُرُوطُ الِاجْتِهَادِ، فَكَأَنَّ مَرْتَبَتَهُمْ فِي ذَلِكَ مَرْتَبَةُ النَّاقِلِينَ عَنِ الْمُجْتَهِدِينَ. وَلَوْ وَقَفُوا فِي هَذَا لَكَانَ الْأَمْرُ أَشْبَهَ، لَكِنْ يَتَعَدَّوْنَ فَيَقِيسُونَ أَشْيَاءَ لَمْ يُنْقَلْ فِيهَا عَنْ مقلدهم حُكْمٌ عَلَى مَا نُقِلَ عَنْهُ فِي ذَلِكَ حُكْمٌ، فَيَجْعَلُونَ أَصْلًا مَا لَيْسَ بِأَصْلٍ، وَيُصَيِّرُونَ أَقَاوِيلَ الْمُجْتَهِدِينَ أُصُولًا لِاجْتِهَادِهِمْ، وَكَفَى بِهَذَا ضَلَالًا وَبِدْعَةً.

They differ from ordinary people by memorising independent jurists' opinions and reporting them to others, without themselves possessing the qualifications for independent inquiry. Their rank is thus like that of transmitters from independent jurists. Had they stopped there, matters would have been more fitting. Instead, they go beyond it, analogising cases for which no ruling has been transmitted from their authorities to cases for which one has. They make a source of what is not a source, turning independent jurists' statements into sources for their own inquiry. That is sufficient error and innovation!

BA-T158 · textual. قراءة الإسكوريال كما أثبتها بو عقل: «مقلدهم»، مقابل «مقلديهم» في طبعة العلوي. (Escorial reading as reported by Bou Akl, 2015, Arabic p. 322; variant against al-ʿAlawī.)

G-B2-0552 · grammar. «مِنْ غَيْرِ أَنْ» مع المصدر المؤوَّل — «العوام، من غير أن تكون عندهم شروط الاجتهاد، فكأن». ["Without" a further act, fact, or condition being present. The أَنْ-clause is a verbal-noun complement of غَيْر, not an adversative "nevertheless".]

253. Why inherited opinions cannot replace living inquiry

R 253 · Bou Akl 306 · 1994 Arabic p. 145 · Bou Akl 2015 Arabic p. 322

فَأَمَّا هَلْ تَجُوزُ لَهُمُ الْحَالُ الْأُولَى، وَهِيَ أَنْ يَكُونُوا فِي ذَلِكَ نَاقِلِينَ عَنْ مُجْتَهِدٍ غَلَبَ عَلَى ظَنِّهِمْ إِصَابَتُهُ وَيَتَحَرَّى ذَلِكَ خَلَفُهُمْ عَنْ سَلَفِهِمْ فِي النَّقْلِ حَتَّى يَكُونَ الْقَائِمُونَ بِفَرْضِ الِاجْتِهَادِ غَيْرَ مَوْجُودِينَ فِي زَمَانِنَا هَذَا مَثَلًا، إِلَّا مَا قَدْ سَلَفَ وَيَكْفِيَ فِي ذَلِكَ مَثَلًا أَنْ كَانَ فِي الصَّدْرِ الْأَوَّلِ مَنْ قَامَ بِهَذَا الْفَرْضِ وَلَوْ رَجُلٌ وَاحِدٌ أَوْ أَكْثَرُ مِنْ وَاحِدٍ، عَلَى مِثَالِ مَا أَدْرَكْنَا عَلَيْهِ هَذِهِ الطَّوَائِفَ، أَعْنِي الْمَالِكِيَّةَ وَالشَّافِعِيَّةَ وَالْحَنَفِيَّةَ،

May they, however, remain in the first condition: transmitting from an independent jurist whom they judge probably correct, with successors carefully transmitting from predecessors, so that, for example, no one in our time discharges the obligation of independent inquiry, apart from those of the past? Would it suffice that someone in the earliest period discharged it, even one man or more, as we find among these groups—the Mālikīs, Shāfiʿīs, and Ḥanafīs?

فَيَدُلُّ لَعَمْرِي عَلَى امْتِنَاعِ ذَلِكَ انْعِقَادُ الْإِجْمَاعِ عَلَى أَنَّ جَمِيعَ فُرُوضِ الْكِفَايَاتِ يَنْبَغِي أَنْ يَكُونَ فِي زَمَانٍ زَمَانٍ مَنْ يَقُومُ بِهَا، وَحِينَئِذٍ تَسْقُطُ عَنِ الْغَيْرِ. وَأَيْضًا فَإِنَّ النَّوَازِلَ الْوَاقِعَةَ غَيْرُ مُتَنَاهِيَةٍ، وَلَيْسَ يُمْكِنُ نَقْلُ قَوْلٍ قَوْلٍ عَنْ مَنْ سَلَفَ مِنَ الْمُجْتَهِدِينَ فِي نَازِلَةٍ نَازِلَةٍ، فَإِنَّ ذَلِكَ مُمْتَنِعٌ.

By my life, consensus proves that this is impermissible: for every collective obligation there must be someone in every period who performs it; only then does it cease to bind the others. Moreover, the cases that arise are without limit. It is impossible to transmit from earlier independent jurists a separate pronouncement for every case.

G-B2-0555 · grammar. «انعقاد الإجماع على أن جميع فروض الكفايات ينبغي أن» — بين التعلّق النحوي والاستدراك «على أنَّ». [The phrase may complete a preceding verb such as “argue that”, or introduce a qualification; check its governing clause rather than assuming “although”.]

G-B2-0556 · grammar. «هذا مثلا، إلا ما قد سلف ويكفي في» — الاستثناء بـ«إِلَّا مَا». [“Except what has preceded”: a simple exception from the stated situation, not exclusivity after an explicit negation.]

SC2015-157 · textual. تجوز «فأما هل تجوز لهم الحال الأولى»؛ ع «فأما هل يجوز لهم الحال الأولى». [feminine agreement with الحال] [Bou Akl 2015, Arabic p. 322, critical apparatus].

254. No period should lack an active mujtahid

R 254 · Bou Akl 307 · 1994 Arabic p. 145, 146 · Bou Akl 2015 Arabic p. 324

وَإِذَا كَانَ ذَلِكَ كَذَلِكَ فَلَمْ يَبْقَ إِلَّا وَاحِدٌ مِنْ ثَلَاثَةٍ: إِمَّا أَنْ نَجْعَلَ أَقَاوِيلَ مَنْ سَلَفَ مِنَ الْمُجْتَهِدِينَ فِيمَا أَفْتَوْا فِيهِ أُصُولًا يُسْتَنْبَطُ عَنْهَا. وَإِمَّا أَنْ يَتَعَطَّلَ كَثِيرٌ مِنَ الْأَحْكَامِ. وَكِلَا الْوَجْهَيْنِ مُمْتَنِعٌ، فَلَمْ يَبْقَ إِلَّا الْوَجْهُ الثَّالِثُ وَهُوَ أَلَّا يَخْلُوَ زَمَانٌ مِنْ مُجْتَهِدٍ.

This leaves only three possibilities: to make earlier independent jurists’ legal opinions into sources from which rulings are derived; to leave many rulings inoperative; or, since both alternatives are impermissible, to accept the third—that no period should be without an independent jurist.

وَأَنْتَ تَعْلَمُ أَنَّ الزَّمَانَ الَّذِي سَلَفَ هَكَذَا كَانَتْ حَالُهُ، أَعْنِي أَنَّهُ لَمْ يَكُنْ فِيهِ مُجْتَهِدٌ. وَإِنْ كَانَ لَا يُدْفَعُ أَنَّهُ قَدْ كَانَ فِيهِ مَنْ بَلَغَ رُتْبَةَ الِاجْتِهَادِ. لَكِنْ مَعَ هَذَا فَإِنَّمَا كَانَ مُقَلِّدًا.

You know that the period just past was in this condition: it had no practising independent jurist. Although it cannot be denied that someone in it had attained the rank of independent inquiry, he nevertheless acted only as a follower of authority.

N120 · translation. “Practicing” makes explicit the distinction in the Arabic between possessing the rank of ijtihād and actually exercising it. The criticism concerns the author’s own preceding period; it is not a claim that independent juristic inquiry historically ceased in every place.

BA022 · scholarship. The demand for available qualified juristic interpretation should be read with the preceding distinction between ijtihād and taqlīd. Bou Akl uses this institutional pattern to explain how Ibn Rushd frames expertise in the Decisive Treatise. That parallel does not prove that every social judgement in the philosophical work is explicitly stated in the present section. Source: Bou Akl, “Splitting the Process and the Result,” in Philosophy and Jurisprudence in the Islamic World (De Gruyter, 2019), pp. 139–144.

G-B2-0557 · grammar. «مع هذا فإنما كان مقلدا» — أسلوب القصر بـ«إنّما». [Restriction: only / nothing but; identify what is being limited by the construction.]

G-B2-0559 · grammar. «فيه مجتهد. وإن كان لا يدفع أنه قد كان» — الشرط الوصلي بـ«وإن كان». [Even if / although; the condition does not overturn the principal judgement.]

255. The valid and invalid uses of following authority

R 255 · Bou Akl 308 · 1994 Arabic p. 146 · Bou Akl 2015 Arabic p. 324

فَقَدْ تَبَيَّنَ مِنْ هَذَا الْقَوْلِ مَنِ الْمُقَلِّدُ، وَمَا التَّقْلِيدُ، وَفِي أَيِّ الْمَوَاضِعِ يَصِحُّ وَفِي أَيِّهَا لَا.

This discussion has clarified who follows authority, what following authority is, and where it is and is not valid.

256. Why an exhaustive catalogue of preferences is unnecessary

R 256 · Bou Akl 309 · 1994 Arabic p. 146 · Bou Akl 2015 Arabic p. 324

وَبَقِيَ الْقَوْلُ فِي الْفَصْلِ الثَّالِثِ وَهُوَ يَتَضَمَّنُ الْقَوْلَ فِي تَرْجِيحِ طُرُقِ النَّقْلِ، وَتَرْجِيحِ مَا تَدُلُّ عَلَيْهِ الْأَلْفَاظُ بِمَفْهُومَاتِهَا، وَذَلِكَ فِيمَا كَانَ مِنْ ذَلِكَ مِنْ نَوْعٍ وَاحِدٍ، لِأَنَّ الْأَدِلَّةَ الَّتِي أَنْوَاعُهَا مُخْتَلِفَةٌ قَدْ تَبَيَّنَ تَرَجُّحُ بَعْضِهَا عَلَى بَعْضٍ فِيمَا سَلَفَ، وَهِيَ قَوَانِينُ تَقْتَرِنُ بِدَلِيلٍ دَلِيلٍ وسند سند وَتَكَادُ لَا تَتَنَاهَى.

There remains the third chapter, concerning the comparative weight of transmission routes and of what expressions signify through their understood meanings. This concerns evidence of the same kind, since the relative weight of different kinds has already been established. The relevant rules attach to particular items of evidence and particular chains of transmission, and are virtually without limit.

وَقَدْ رَامَ أَهْلُ هَذِهِ الصِّنَاعَةِ حَصْرَهَا، لَكِنْ أَمَّا نَحْنُ فَلَا حَاجَةَ لَنَا إِلَى تَعْدِيدِهَا، إِذْ كَانَ الْإِنْسَانُ يُمْكِنُهُ مِنْ تِلْقَاءِ نَفْسِهِ الْوُقُوفُ عَلَى مَا فِيهَا يُفِيدُ غَلَبَةَ ظَنٍّ مِمَّا لَيْسَ يُفِيدُ. فَأَمَّا مَنْ كَانَ لَهُ فَرَاغٌ، وَأَحَبَّ أَنْ يُثْبِتَهَا هَهُنَا فَلْيَفْعَلْ، لَكِنْ يَجِبُ أَنْ تُثْبَتَ الْقَرَائِنُ الَّتِي يَقَعُ بِهَا تَرْجِيحُ طُرُقِ النَّقْلِ فِي كِتَابِ الْأَخْبَارِ، وَالَّتِي يَقَعُ بِهَا تَرْجِيحُ الْمَفْهُومِ فِي الْجُزْءِ الثَّالِثِ مِنْ هَذَا الْكِتَابِ.

Practitioners of this discipline have attempted to enumerate them. We have no need to do so, since a person can determine for himself which produce a preponderant judgement and which do not. Anyone with leisure who wishes to record them here may do so. However, the contextual indications establishing the superiority of transmission routes should be placed in the discussion of reports, and those establishing the superiority of an understood meaning in Part Three of this book.

BA-T160 · textual. قراءة الإسكوريال كما أثبتها بو عقل: «وسند سند»، مقابل «وسند وسند» في طبعة العلوي. (Escorial reading as reported by Bou Akl, 2015, Arabic p. 324; variant against al-ʿAlawī.)

SC2015-159 · textual. المبني للمجهول ورفع نائب الفاعل. أ «لكن يجب أن تثبت القرائن التي»؛ ع «لكن يجب أن يثبت القرائن التي»؛ [passive; the pertinent contextual indicators must be set out] [Bou Akl 2015, Arabic p. 324, critical apparatus].

257. The obligation to follow the stronger judgement

R 257 · Bou Akl 310 · 1994 Arabic p. 146 · Bou Akl 2015 Arabic p. 326

فَأَمَّا أَنَّ الْمَصِيرَ إِلَى الْعَمَلِ بِأَرْجَحِ الظَّنَّيْنِ دَلِيلٌ شَرْعِيٌّ، فَيَدُلُّ عَلَيْهِ إِجْمَاعُ الصَّحَابَةِ عَلَى ذَلِكَ، وَمَا يَجِدُهُ الْإِنْسَانُ فِي نَفْسِهِ مِنَ الْمَصِيرِ إِلَى أَرْجَحِ الظَّنَّيْنِ عِنْدَ تَعَارُضِهِمَا.

That adopting and acting upon the stronger of two probable judgements constitutes legal evidence is shown by the Companions' consensus on this, and by what a person finds in himself: he turns to the stronger of two probable judgements when they conflict.

258. An abridgement completed and supplemented: 552 AH

R 258 · Bou Akl 311 · 1994 Arabic p. 146 · Bou Akl 2015 Arabic p. 326

وَهُنَا انْتَهَى غَرَضُنَا فِي هَذَا الِاخْتِصَارِ. وَهُوَ يُشْبِهُ الْمُخْتَصَرَ مِنْ جِهَةِ حَذْفِ التَّطْوِيلِ، وَالْمُخْتَرَعَ مِنْ جِهَةِ التَّتْمِيمِ وَالتَّكْمِيلِ. وَذَلِكَ فِي الْعَشْرِ الْوُسْطِ مِنْ ذِي الْحِجَّةِ مِنْ سَنَةِ اثْنَتَيْنِ وَخَمْسِينَ وَخَمْسِ مِائَةٍ.

Here our purpose in this abridgement is complete. It resembles an abridgement in removing prolixity, and an original work in its additions and completions. This was during the middle ten days of Dhū al-Ḥijja in the year five hundred and fifty-two.

N121 · translation. This is Ibn Rushd's authorial conclusion and date, 552 AH. The following 606 AH copying notice and ownership statement belong to later manuscript voices and are presented separately.

N122 · lexical. الْوُسْط is retained with ḍamma and sukūn. This is an attested reading of the calendrical expression العشر الوسط: Ibn Ḥajar, Fatḥ al-bārī on the report about the middle ten nights (Bukhārī 2016), records al-Bājī's sukūn reading alongside other readings. No change to the date is intended. https://hadithprophet.com/hadith-32830.html

End of Ibn Rushd’s authorial text · 258 numbered editorial reading units.

Copyist’s colophon · 606 AH خَاتِمَةُ النَّاسِخِ

A later scribal notice and ownership inscription, not Ibn Rushd’s authorial completion in 552 AH

خَلَصَ الْمُخْتَصَرُ بِالنَّسْخِ فِي الْعَاشِرِ مِنْ رَجَبٍ الْفَرْدِ مِنْ سَنَةِ سِتٌّ وَسِتِّمِائَةٍ عَلَى يَدِ مُحَمَّدِ بْنِ عَلِيِّ بْنِ عَفِيفٍ وَالْحَمْدُ لِلَّهِ رَبِّ الْعَالَمِينَ وَالصَّلَاةُ عَلَى مُحَمَّدٍ خَاتَمِ النَّبِيِئِينَ.

The copying of the abridgement was completed on the tenth of Rajab, the solitary sacred month, in the year six hundred and six, by the hand of Muḥammad ibn ʿAlī ibn ʿAfīf. Praise belongs to God, Lord of the worlds, and blessings upon Muḥammad, the Seal of the Prophets.

مِلْكٌ لِعَبْدِ رَبِّهِ أَحْمَدَ بْنِ أَحْمَدَ الْمُطَرِّفِيِّ عَامَلَ اللَّهُ الْجَمِيعَ بِلُطْفِهِ الْخَفِيِّ.

Owned by the servant of his Lord, Aḥmad ibn Aḥmad al-Muṭarrifī. May God treat all with His hidden kindness.

N123 · textual These are a copyist’s colophon and an ownership note, not words attributed to Ibn Rushd. Their date is 606 AH, distinct from the author’s 552 AH date in §258. The owner’s unvocalized surname is printed المطرفي; its vocalization in English is provisional.

Applications in the *Bidāyat al-mujtahid*

Illustrative legal comparisons only. These are commentary, not part of the authorial *al-Ḍarūrī*.

18 · Marriage: one form of act, different legal rulings

Marriage · ch. 1, preliminaries, issue 1: the legal status of marriage

The majority recommend marriage; the Ẓāhirīs require it; later Mālikīs distinguish obligatory, recommended and permitted marriage according to the person's circumstances. Ibn Rushd identifies both the interpretation of imperative expressions and an appeal to welfare as causes of the disagreement. This illustrates the distinction between an act's general description and the ruling applicable to a situated agent. It does not prove that an imperative by itself encodes all those contextual differences. The welfare argument reported here should also be compared with the stricter controls of Darūrī §§146 and 217.

§197 · §200 · §217

23 · Wiping the head: a minimum performance and a contested particle

Purification from ritual impurity · Book of Wuḍūʾ, ch. 2, issue 6: the extent of wiping the head

Mālik requires the whole head, al-Shāfiʿī allows part, and Abū Ḥanīfa specifies a quarter. Ibn Rushd relates the disagreement to the bāʾ in Q 5:6—whether emphatic or partitive—and to reports describing the Prophet's wiping. Even on the emphatic reading, the amount satisfying the name of the act remains disputed. This is a representative application of the Darūrī's minimum-sufficiency problem, but one in which grammar and transmitted practice jointly determine the legally adequate minimum.

§165 · §205

28 · Proposing over another proposal: prohibition and contractual effect

Marriage · ch. 1, preliminaries, issue 3: proposing over another man's proposal

Jurists distinguish the prohibition of intervening in an existing proposal from the validity of the ensuing marriage. Ibn Rushd records invalidation by Dāwūd, validity according to al-Shāfiʿī and Abū Ḥanīfa, and differing Mālikī outcomes. The question is whether the forbidden preliminary act vitiates the contract or is an independently culpable circumstance. Read this alongside the Darūrī's distinctions of aspect and the later question whether prohibition entails invalidity; the note identifies a legal parallel, not an explicit cross-citation between the books.

§56 · §206

38 · Zakāt on a child's property: worship or a claim upon wealth?

Zakāt · first division: those liable; property belonging to minors

Mālik, al-Shāfiʿī and others impose zakāt on a minor's property; other views exempt it or distinguish agricultural produce. Ibn Rushd identifies the underlying question: is zakāt principally worship requiring adult responsibility, or a financial right of the poor in wealth? The latter need not depend on the owner's puberty. This demonstrates why exemption from direct moral obligation does not automatically remove every legal consequence affecting a child's property.

§42 · §55

43 · Intention in ablution: devotional act and intelligible cleansing

Purification from ritual impurity · Book of Wuḍūʾ, ch. 2, issue 1: intention as a condition of validity

Mālik, al-Shāfiʿī and others require intention; Abū Ḥanīfa and al-Thawrī do not. Ibn Rushd locates ablution between pure devotion and an act whose cleansing purpose is intelligible. The relevant inquiry is which resemblance governs its legal classification. Read beside Darūrī §43, this shows that intending obedience and performing an objectively effective act are distinguishable questions, and that a condition of worship cannot simply be transferred to every act associated with worship.

§56 · §218

47 · Coerced divorce: voluntary utterance is not sufficient freedom

Divorce · second division, ch. 2: the person whose divorce is legally effective; coerced divorce

Abū Ḥanīfa treats the coerced utterance as effective, whereas Mālik, al-Shāfiʿī and others do not. Ibn Rushd locates the dispute in the sense of choice: the speaker chooses the words, but the threat may still make him "coerced" in the Law's usage. He invokes Q 16:106 against identifying every chosen utterance with unqualified freedom. This sharpens Darūrī §47: physical possibility, intention, legal coercion and the effect of an act must be distinguished.

§43 · §45

55 · Financial maturity: an operative condition or its official recognition?

Interdiction · ch. 2: release of minors from interdiction; those under an executor

Some Mālikī positions continue to invalidate transactions until an executor or judge formally releases the ward. Ibn al-Qāsim gives decisive weight to actual maturity or improvidence. Ibn Rushd criticizes treating the continued formal status as controlling when maturity is established: the operative consideration is maturity, not the judge's declaration. This provides an institutional illustration of the difference between a condition's existence and a procedure which establishes or announces it, without reducing all judicial acts to mere factual reports.

§42 · §56

56 · A remoter guardian: invalidity, permission, or ratification

Marriage · ch. 2; conditions of contract; guardians, third topic, issue 1: a remoter guardian contracts while the nearer is present

For the cases under discussion, Mālik's transmitted positions include invalidity, validity and dependence on the nearer guardian's approval. Ibn Rushd explains the alternatives through three questions: is priority a rule of revelation at all; if so, is it the nearer guardian's right; or is it a right of God? These yield, respectively, validity, a ratifiable contract, or invalidity. The ruling is not produced simply by attaching the word "condition" to priority. The discussion excludes certain father–virgin-daughter and executor cases from that threefold variation.

§36 · §54

58 · A traveller who fasts: an implied condition in the verse

Fasting · ch. on those permitted to break the fast; the traveller's performance of the fast

A minority requires the travelling person to make up the days even if he fasts; the majority accepts his fast. Ibn Rushd connects the disagreement to whether Q 2:184 implicitly says "and breaks the fast" before requiring other days, alongside reports allowing travelling Companions to fast or refrain. This illustrates both the classification of a concession and the interpretation of an omitted condition. It must not be read as though the mere grammatical form settled the whole dispute.

§155 · §194

64 · The basmala: Qurʾānic wording and membership in a sūra

Prayer · third division, verbal constituents, issue 4: reciting the basmala

The practical disagreement concerns reciting the basmala and whether aloud or silently. Ibn Rushd separates uncertainty about its status as a verse of al-Fātiḥa from denying that the wording is Qurʾānic at all. He also analyses conflicting reports of the Companions' practice. This parallels Darūrī §64, while warning against an over-simple appeal to mass transmission: the identity of transmitted words and their structural membership in a particular sūra are distinct propositions.

§75 · §112

146 · An absent father: welfare within a structured legal situation

Marriage · ch. 2; guardians, third topic, issue 3: the father's absence

The Mālikī distinctions turn on distance, knowledge of the father's whereabouts, maintenance, protection and the woman's need to marry. Ibn Rushd then suggests that urgent risk might justify the ruler's intervention even when the father is relatively near. This is a concrete use of welfare-oriented reasoning, not an unrestricted power to legislate. Its relation to the Darūrī's demand for an acknowledged warrant remains a question of interpretation: the later case develops an existing institution's purpose, but does not expressly cite that earlier restriction.

§217

158 · Touching women: equivocation, generality and counterevidence

Purification from ritual impurity · Book of Wuḍūʾ, ch. 4, issue on touching women

Ibn Rushd explains that touching in Arabic can mean contact by the hand or signify intercourse. Among those taking bodily contact, some require pleasure and others do not; reports about contact between the Prophet and ʿĀʾisha enter the assessment. The first disagreement concerns competing meanings, the second the scope of a selected meaning. This clarifies why the Darūrī distinguishes equivocation from generality: collecting two possible meanings is not the same operation as including all instances under one universal.

§167 · §177

160 · Minimum dower: clarification cannot be postponed beyond need

Marriage · ch. 2; conditions of contract; dower, first topic, issue 2: its amount

In Sahl's marriage report, the request for even an iron ring is taken against a fixed minimum. Ibn Rushd expressly argues that a required threshold would have needed explanation at that moment. He also disputes the premises that dower is purely worship and that worship must always be quantitatively fixed. This is a direct application of the rule against delaying clarification beyond need, rather than a merely suggestive similarity supplied by the present editor.

§23 · §166

167 · The sales-session option: what counts as "separation"?

Sales · part 3, conditions of validity, ch. 1: the contract and the parties' option before separation

Mālik and Abū Ḥanīfa make the completed exchange binding without physical separation; al-Shāfiʿī and others retain the session option. Ibn Rushd examines whether the report concerns bodily separation or completion of bargaining. He weighs the strong Ibn ʿUmar report against Medinan practice, another report's weakness, analogies to other contracts, and the general command to fulfil contracts. The case joins semantic interpretation to evidential preference: a plausible lexical reinterpretation is not enough unless proportionate evidence supports it.

§138 · §166 · §256

171 · Guardianship: a disputed condition cannot be established by ambiguity alone

Marriage · ch. 2, conditions of validity; guardians, first topic: whether guardianship is a condition

In examining marriage guardianship, Ibn Rushd tests the scope of Qurʾānic expressions and the guardian-permission reports rather than treating every apparent address to guardians as a decisive condition of validity. He also considers whether such a widespread requirement could have remained insufficiently explained. The case exemplifies the evidential burden for a restrictive interpretation. It is especially pertinent to Darūrī §171, which rejects an excessively remote narrowing of the permission report; the Bidāya's fuller argument must not be reduced to that single objection.

§160 · §166

201 · Pilgrimage now or later: a control against a simplistic application

Pilgrimage · first kind of inquiry: when the pilgrimage obligation falls due

Ibn Rushd explicitly denies that the dispute is merely whether an unrestricted command demands immediacy. The competing arguments compare the first available pilgrimage season with the beginning or end of prayer-time, consider the interval when pilgrimage cannot be performed, and assess the risk of death before another year. This is a useful counterexample to a mechanical concordance: Darūrī §201 supplies distinctions, but the Bidāya warns that the applied dispute has additional temporal structure.

§21 · §25

204 · Completing ʿumra does not by itself prove an initial duty to begin it

Pilgrimage · first kind of inquiry: the legal status of ʿumra

One argument for obligation invokes Q 2:196's command to complete pilgrimage and ʿumra. The opposing reading takes completion to govern an observance once begun, whether its initiation was obligatory or voluntary. Ibn Rushd also records conflicting reports. The lesson is the distinct scope of commands: an obligation to complete an undertaking need not establish an obligation to undertake it. Compare the Darūrī's insistence that a further performance needs its own warrant, rather than extending a command beyond its demonstrated conditions.

§49 · §205

206 · Menstrual divorce: a forbidden act may still have legal effect

Divorce · first division, ch. 2: Sunnī and irregular divorce; divorce during menstruation

The majority count a divorce pronounced during menstruation, while another position does not. Ibn Rushd distinguishes conditions of validity from conditions of proper or complete performance and examines the command that Ibn ʿUmar take his wife back. This provides an especially clear application of the Darūrī's question about prohibition and invalidity. Whether an act is forbidden and whether it produces a legal consequence are different inquiries; their relation must be demonstrated from the relevant address and reports.

§28 · §56

211 · Foetal compensation: the identity of the right-holder matters

Offences and injuries · second part, compensation; accidental loss of a foetus, question “to whom is it due?”

Mālik, al-Shāfiʿī and Abū Ḥanīfa treat the compensation as inheritable by the foetus’s heirs. Rabīʿa and al-Layth assign it to the mother, comparing the foetus with one of her bodily parts. The dispute illustrates that identifying the legal subject precedes assigning a consequence. It is related to Darūrī §211’s caution about the original and derivative terms of an analogy, not a textual claim that the two passages explicitly cross-reference each other.

§218 · §238

214 · Jewellery: resemblance to usable possessions or to monetary wealth?

Zakāt · second division: assets subject to zakāt; gold and silver jewellery

The Ḥijāzī jurists exempt jewellery intended for adornment; Abū Ḥanīfa includes it. Ibn Rushd attributes the disagreement chiefly to its double resemblance: usable possessions on one side, gold and silver serving exchange on the other. Conflicting reports matter, but he regards them as weak, especially the exemption report. This is a particularly accessible example of competing analogical descriptions; disagreement about the case’s legally relevant likeness need not amount to disagreement about the underlying commodity itself.

§218 · §238

217 · Deathbed divorce: blocking an evasion without erasing doctrinal difficulty

Divorce · second division, ch. 2: irrevocable divorce during fatal illness

Some jurists preserve the divorced woman’s inheritance because the husband may be evading her entitlement; others apply divorce’s ordinary consequences. Ibn Rushd expressly identifies blocking the means (sadd al-dharāʾiʿ) as the issue, but also questions a hybrid status retaining only selected effects of marriage. He rejects a claim of Companion consensus because Ibn al-Zubayr’s disagreement is known. Thus purposive prevention and proof of consensus require distinct warrants; the case is not evidence that every welfare argument is self-validating. The Darūrī itself cites this case in §217 while rejecting excessively remote welfare arguments; the difference of framing is therefore substantive.

§135 · §137

218 · Ribā in foodstuffs: competing identifications of the operative feature

Sales · part 2, causes of invalidity; ribā in the named foodstuffs and their analogues

Mālikī analysis emphasizes staple, storable food; al-Shāfiʿī emphasizes edibility; Ḥanafī reasoning emphasizes weight or measure. Ibn Rushd treats the dispute as identifying the meaning behind the named commodities, while also evaluating the rival rationales. This corresponds closely to the Darūrī’s account of resemblance and uncertain grounds. Yet the Bidāya’s comparative assessment is more developed than a blanket dismissal: no uniform verdict on all “analogy” should be imported from either book into the other.

§212 · §214 · §238

223 · Dower and the theft threshold: verbal resemblance is not one legal meaning

Marriage · ch. 2; dower, first topic, issue 2: critique of the minimum-dower analogy

The proposed analogy sets the minimum dower by the monetary threshold for theft. Ibn Rushd objects that the shared description of bodily “authorization” masks different meanings: punishment and injury differ from lawful marital enjoyment and affection. The relevant similarity must be one in meaning, not merely words, and must ground the original ruling. He distinguishes using this weak analogy to select an amount from establishing that a minimum exists at all.

§158 · §218

227 · Triple divorce after mutual imprecation: the limits of tacit approval

Divorce · first division, ch. 2: whether three divorces may be pronounced together; the report of ʿUwaymir

One argument relies on the Prophet’s not objecting when ʿUwaymir pronounced three divorces after mutual imprecation (liʿān). The counterargument is that liʿān had already severed the marriage: the utterance then effected no further divorce. Silence cannot establish permissibility for an act whose legally relevant object was absent. This is a precise application of Darūrī §227’s contextual restriction: approval must concern the very act and circumstances for which authority is being claimed.

§150 · §229

237 · A mistaken qibla: required success or adequately conducted inquiry?

Prayer · second division, conditions; facing the qibla, second issue

Al-Shāfiʿī requires repetition when an error in direction becomes known; Mālik and Abū Ḥanīfa do not impose the same unconditional repetition after due inquiry. Ibn Rushd identifies disagreement about whether correct orientation or the act of inquiry is required, and weighs a report against analogy with prayer before its time. The case illuminates Darūrī §§237–245 without proving that every mujtahid's conclusion is true: excusing an error and making its conclusion correct remain different claims.

§204 · §243

243 · A physician's mistake: compensation need not imply moral wrongdoing

Offences and injuries · second part, compensation; accidental injury caused in medical treatment

Ibn Rushd reports compensation for a treatment error, while also recording a Mālikī exemption for a qualified practitioner and agreement on liability for an unqualified intruder. The analogy is with accidental injury; there is further disagreement about which fund bears payment. This is an illustrative legal parallel to the Darūrī's distinction between error and sin. It does not assimilate medical judgement to every form of juristic inquiry, nor does compensation alone establish culpability.

§38 · §244

246 · Cupping while fasting: three ways of treating conflicting reports

Fasting · ch. on acts from which the fasting person abstains; cupping

A report invalidating the fast of cupper and cupped is set beside the report that the Prophet was cupped while fasting. Ibn Rushd describes disagreement over prohibition, dislike and permissibility, and examines preference, reconciliation and relinquishing the conflicting proofs. This makes concrete the Darūrī's alternatives when evidence appears equipollent. Returning to an original rule is itself a reasoned response to evidential failure; it is not the same as choosing whichever report one happens to prefer.

§214 · §247

256 · Deferred animal barter: conflict can concern scope as well as authenticity

Sales · part 2, ribā; exchanging animals with deferred delivery

Reports allowing an animal to be exchanged for more animals with later delivery stand against a prohibition of deferred animal-for-animal exchange. Ibn Rushd records different evaluations and reconciliations, including Mālikī attention to whether the animals have distinct uses. The disagreement is not only over which chain is stronger: a proposed distinction of legal purposes may reconcile reports which otherwise conflict. This illustrates why Darūrī §§256–257 insist on a stronger judgement rather than an exhaustive mechanical list of preference rules.

§213 · §257

ARABIC–ENGLISH REFERENCE BACKMATTER

Historical dictionary articles

Complete selected entries · 153 glossary terms · 157 source articles

This appendix replaces the earlier excerpt register and nine-entry pilot. Each source article is reproduced with a full working English translation. Arabic is on the physical left; English is on the right. Shared articles are printed once and linked from each relevant term.

What "complete" means. It means the whole selected headword or root article in the identified digital witness—not all articles in every dictionary. The links distinguish exact headwords, derived forms, internal discussions and related lexical evidence. A root article is not mislabelled as a technical definition of a compound. All 153 glossary terms have a dossier; that is not a claim of 153 exact-headword matches.

Chronology. E = earlier than Ibn Rushd's 552 AH composition; L = later historical witness. Later evidence illuminates terminology but does not prove Ibn Rushd's usage. Source transcriptions and the new translations are not independently manuscript-collated. Unresolved readings are identified beside the affected articles.

Navigation. Select a term below. Its section references lead back to the main text in the integrated edition. The subject index and R/BA concordance are retained after this appendix. R and BA refer to printed editorial numbering systems, not two manuscripts.

Sources and editorial limits · Headword-relation audit

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1. ibāḥa إِبَاحَة

In the Darūrī: Permission: a legal allowing of alternatives, distinguished from obligation and from mere absence of an established prohibition.

Text: §16 · §17 · §27 · §203

الإباحة · ibāḥa

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 7. Source ↗

هي الإذن بإتيان الفعل كيف شاء الفاعل.

Permission to perform the act as the agent wishes.

↑ Term directory · Sources · Subject index

2. ibdāl / tabdīl إِبْدَال / تَبْدِيل

In the Darūrī: Substitution: expression of a universal through a particular or vice versa, central to Ibn Rushd’s account of semantic extension.

Text: §154 · §165 · §191 · §212 · §221

الإبدال · ibdāl

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 5. Source ↗

هو أن يجعل حرف موضع حرف آخر لدفع الثقل.

Placing one letter in the position of another in order to remove phonetic difficulty.

Editorial note. This is a grammatical definition of ibdāl. It is not itself a definition of legal substitution, and it must not be equated with Ibn Rushd’s technical use without an additional contextual argument.

↑ Term directory · Sources · Subject index

3. ijāza إِجَازَة

In the Darūrī: Authorization to transmit, distinguished from hearing a reading, reading before the teacher, and receiving a written text.

Text: §100 · §103 · §104

Complete article: al-Sharīf al-Jurjānī · munāwala (p. 229). related hadith-transmission procedure; not an ijāza headword.

الإجازة · ijāza

Attributed to Jalāl al-Dīn al-Suyūṭī [L] · *Muʿjam maqālīd al-ʿulūm fī al-ḥudūd wa-l-rusūm* · entry 55. Source ↗

إذن الشيخ لمعين، أو غير معين في الرواية عنه.

A teacher’s permission to a specified or unspecified person to transmit reports from him.

Editorial note. This is authorization to transmit, not permission in every legal sense.

↑ Term directory · Sources · Subject index

4. ijtihād اجْتِهَاد

In the Darūrī: Independent juristic inquiry: exertion of competent judgement concerning a ruling not already determined by conclusive evidence.

Text: §231 · §236 · §237 · §250

الاجتهاد · ijtihād

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 9. Source ↗

في اللغة بذل الوسع، وفي الاصطلاح: استفراغ الفقيه الوسع ليحصل له ظن بحكم شرعي.

In ordinary language: exerting one’s capacity. Technically: the jurist’s exerting his capacity to the utmost so as to arrive at a probable judgement concerning a legal ruling.

بذل المجهود في طلب المقصود من جهة الاستدلال.

Exerting effort in seeking the intended object by way of inference.

↑ Term directory · Sources · Subject index

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5. ijzā’ إِجْزَاء

In the Darūrī: Sufficiency or discharge: performance which fulfils the legally required act, including its relevant conditions.

Text: §23 · §56 · §204 · §205

جزأ · j-z-’

al-Muṭarrizī [L] · *al-Mughrib fī tartīb al-Muʿrib* · root جزأ. Source ↗

Relation to glossary term: complete root article explicitly treating sufficiency and discharge.

جزأت الإبل بالرطب عن الماء واجتزأت إذا اكتفت، ومنه لم تجتزئ بتلك الحيضة. وأجزأني الشيء كفاني، وهذا يجزئ عن هذا أي يقضي أو ينوب عنه، ومنه البدنة تجزئ عن سبعة. وأجزأت عنك مجزأ فلان أي كفيت كفايته ونبت منابه، وله في هذا غناء وجزاء أي كفاية. وقول محمد الفارس أجزأ من الراجل أي أكفى.

Jaza’at al-ibil bi-l-ruṭb ʿan al-mā’ and ijtaza’at mean that camels found fresh fodder sufficient in place of water. Hence: “She did not count that menstruation as sufficient.” Ajza’anī al-shay’ means that a thing sufficed for me; “this suffices in place of that” means that it discharges or substitutes for it. Hence: “A sacrificial camel suffices for seven people.” Ajza’tu ʿanka majza’a fulān means that I rendered the service that so-and-so would have rendered and took his place. “He has ghanā’ and jazā’ in this” means adequacy. Muḥammad’s statement that a horseman is ajza’ than a foot soldier means that he is more effective.

وتليين مثل هذه الهمزة شاذ على ما حكي عن علي بن عيسى أنه قال يقال هذا الأمر يجزئ عن هذا فيهمز ويلين. وعن الأزهري بعض الفقهاء يقول أجزى بمعنى قضى، وعلى ذلك قوله أجزى فيه الفرك أي الدلك والحك، وتقديره أجزأ الفرك عن الغسل أي ناب وأغنى، وأجزأك بمعنى كفاك على حذف المفعول. ومثله إذا صليت في السفينة قاعدا أجزأك على إضمار الفاعل لدلالة ما سبق عليه كأنه قيل أجزأك ما فعلت، ونظيره من كذب كان شرا له.

Softening a hamza of this kind is irregular. ʿAlī ibn ʿĪsā is reported to have said that one says, “This matter suffices in place of that,” either pronouncing the hamza or softening it. Al-Azharī reports that some jurists say ajzā in the sense of qaḍā, “discharged.” This explains the statement, “Rubbing sufficed in this,” meaning rubbing and scraping: its full construction is that rubbing sufficed instead of washing, taking its place and dispensing with it. Ajza’aka, meaning “it sufficed for you,” has its object omitted. Likewise, “When you pray sitting down in a ship, it suffices for you”: the subject is implicit, indicated by what precedes, as though one had said, “What you did suffices for you.” A comparable construction is, “Whoever lies—it is worse for him.”

وأما جزى عنه جزاء بمعنى قضى فهو بغير همز، ومنه ولا تجزي عن أحد بعدك أي لا تؤدي عنه ولا تقضي، ومنه الجزية لأنها تجزئ عن الذمي. وأما حديث ابن مسعود أنه اشترى من دهقان أرضا على أن يكفيه جزيتها فالمراد بها خراج الأرض على الاستعارة، والمعنى أنه شرط أن يؤدي عنه الخراج في السنة التي وقع فيها البيع. وقولهم صلاة مجزية إن كان من هذا فالصواب جازية وإلا فهي مجزئة بالهمزة أو تركه على ما ذكر آنفا.

As for jazā ʿanhu jazāʾan in the sense of "discharged on his behalf," it has no hamza. Hence: "It will not suffice for anyone after you," meaning that it neither performs nor discharges the duty on his behalf. From this comes jizya, since it discharges the protected non-Muslim's obligation. In the report that Ibn Masʿūd bought land from a dihqān on condition that the seller take care of its jizya for him, the word figuratively means the land tax. The meaning is that he stipulated that the seller pay the land tax for him in the year of the sale. In the expression "a sufficient prayer" (ṣalāh mujziya), if the adjective derives from this form, the correct form is jāziya; otherwise it is mujziʾa, with the hamza pronounced or omitted as just explained.

الإجزاء · ijzāʾ

Attributed to Jalāl al-Dīn al-Suyūṭī [L] · *Muʿjam maqālīd al-ʿulūm fī al-ḥudūd wa-l-rusūm* · entry 97. Source ↗

هو الأداء الكافي لسقوط التعبدية، وقيل: سقوط القضاء.

Performance sufficient to discharge the obligation of worship; alternatively, the falling away of the requirement of make-up performance.

↑ Term directory · Sources · Subject index

6. ijmāʿ إِجْمَاع

In the Darūrī: Consensus: agreement of those competent in the relevant inquiry. Mere majority, silence and unidentified Medinan practice are not equivalent to it.

Text: §130 · §133 · §134 · §137 · §138

الإجماع · ijmāʿ

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 9. Source ↗

في اللغة العزم والاتفاق، وفي الاصطلاح: اتفاق المجتهدين في أمة محمد -عليه الصلاة والسلام- في عصر على أمر ديني.

In ordinary language: resolve and agreement. Technically: the agreement, within an age, of the qualified jurists of Muḥammad's community—peace and blessings be upon him—on a religious matter.

العزم التام على أمر من جماعة أهل الحل والعقد.

The complete resolve upon a matter of a group of those possessing authority to bind and loose.

↑ Term directory · Sources · Subject index

7. adāʾ أَدَاء

In the Darūrī: Timely performance: discharging an act within its legally appointed time; distinguish repetition and make-up performance.

Text: §57 · §59

الأداء · adā’

al-Sharīf al-Jurjānī [L] · *Kitāb al-Ta‘rīfāt* · p. 14. Source ↗

هو تسليم العين الثابت في الذمة بالسبب الموجب، كالوقت للصلاة، والشهر للصوم، إلى من يستحق ذلك الواجب.

It is the delivery, to the one entitled to the obligation, of the very thing established as a liability by the obligating cause—for example, the appointed time in the case of prayer, or the month in the case of fasting.

عبارة عن إتيان عين الواجب في الوقت.

It consists in performing the very act that is obligatory within its appointed time.

↑ Term directory · Sources · Subject index

8. idhn إِذْن

In the Darūrī: Permission or authorization; its context matters in reports about guardianship and in a teacher’s authorization to transmit.

Text: §103 · §171

الإذن · idhn

al-Sharīf al-Jurjānī [L] · *Kitāb al-Ta‘rīfāt* · p. 15. Source ↗

في اللغة: الإعلام، وفي الشرع: فك الحجر وإطلاق التصرف لمن كان ممنوعا شرعا.

In ordinary language: making known. In revealed law: lifting an interdiction and allowing a person to transact who had been legally prevented from doing so.

↑ Term directory · Sources · Subject index

9. irāda إِرَادَة

In the Darūrī: Will or volition. Its relation to desire, assent and intending obedience is discussed in the account of voluntary action.

Text: §43 · §44

الإرادة · irāda

al-Sharīf al-Jurjānī [L] · *Kitāb al-Ta‘rīfāt* · p. 15. Source ↗

صفة توجب للحي حالا يقع منه الفعل على وجه دون وجه، وفي الحقيقة: هي ما لا يتعلق دائما إلا بالمعدوم، فإنها صفة تخصص أمرا لحصوله ووجوده، كما قال الله تعالى: {إنما أمره إذا أراد شيئا أن يقول له كن فيكون} .

An attribute that brings about, in a living being, a state in which an act proceeds from him in one manner rather than another. In its proper sense it is always directed only towards what is not yet existent, for it is an attribute that specifies something for realization and existence. As God, exalted is He, says: “His command, when He wills a thing, is only to say to it, ‘Be,’ and it is” [Q 36:82].

ميل يعقب اعتقاد النفع.

An inclination following a belief in benefit.

مطالبة القلب غذاء الروح من طيب النفس، وقيل: الإرادة حجب النفس عن مراداتها، والإقبال على أوامر الله تعالى والرضا، وقيل: الإرادة: جمرة من نار المحبة في القلب مقتضية لإجابة دواعي الحقيقة.

The heart’s seeking nourishment for the spirit through the goodness of the soul. It has also been said that will means withholding the lower self from its own desires, turning towards God’s commands, and being content; or that it is an ember of the fire of love within the heart, requiring one to answer the summons of reality.

↑ Term directory · Sources · Subject index

10. istithnāʾ اسْتِثْنَاء

In the Darūrī: Exception: exclusion related to a statement’s scope, with distinct problems of connection, reach and the genus excepted.

Text: §183 · §184 · §185 · §186 · §187 · §188

الاستثناء · istithnāʾ

‘**Abd al-Raʾūf al-Munāwī** [L] · *al-Tawqīf ʿalā muhimmāt al-taʿārīf* · s.v. الاستثناء. Source ↗

إيراد لفظ يقتضي دفع بعض ما يوجبه عموم لفظ متقدم أو يقتضي رفع حكم اللفظ كما هو، فالأول نحو {قُلْ لا أَجِدُ فِي مَا أُوحِيَ إِلَيَّ} الآية والثاني نحو لأفعلن إن شاء الله تعالى.

Introducing an expression which entails excluding some of what the generality of a preceding expression would otherwise require, or which entails lifting the expression’s ruling as it stands. The first is exemplified by ‘Say: I find nothing in what has been revealed to me …’ [Q 6:145]; the second by ‘I will certainly do it, God willing.’

Editorial note. The source itself cites only the opening of Q 6:145; its “the verse” refers onwards to the exception in that verse. The abbreviated citation is the author’s, not an omitted part of his dictionary article.

↑ Term directory · Sources · Subject index

11. istiḥsān اسْتِحْسَان

In the Darūrī: Juristic preference. A judgement so named needs a recognized evidential warrant; its name does not confer authority.

Text: §146

الاستحسان · istiḥsān

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 82. Source ↗

في اللغة هو عد الشيء واعتقاده حسنا واصطلاحا هو اسم لدليل من الأدلة الأربعة يعارض القياس الجلي ويعمل به إذا كان أقوى منه سموه بذلك لأنه في الأغلب يكون أقوى من القياس الجلي فيكون قياسا مستحسنا قال الله تعالى فبشر عبادي الذين يستمعون القول يتبعون أحسنه الزمر 18.

In ordinary language: regarding a thing, and believing it to be, good. Technically: the name of a proof belonging to the four kinds of proof that opposes an evident analogy and is acted upon when it is stronger. They called it this because it is generally stronger than the evident analogy, and so is an analogy judged preferable. God, exalted is He, says: “Give good tidings to My servants who listen to speech and follow the best of it” [Q 39:17–18].

وترك القياس والأخذ بما هو أرفق للناس.

Also: abandoning analogy and adopting what is easier for people.

↑ Term directory · Sources · Subject index

12. istidlāl اسْتِدْلَال

In the Darūrī: Inference or reasoning from an indication to what it establishes. It need not be a formal syllogism.

Text: §1 · §2 · §81 · §148

استدلال · istidlāl

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 87. Source ↗

تقرير الدليل لإثبات المدلول سواء كان ذلك من الأثر إلى المؤثر فيسمى استدلالا أنيا أو بالعكس ويسمى استدلالا لميا أو من أحد الأثرين إلى الآخر.

Setting out a proof to establish what it indicates, whether proceeding from an effect to its cause, in which case it is called a “that” inference; in the reverse direction, in which case it is called a “why” inference; or from one of two effects to the other.

↑ Term directory · Sources · Subject index

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13. istiṣḥāb اسْتِصْحَاب

In the Darūrī: Presumption of continuity: retaining an established judgement, subject to whether the relevant case or attribute has changed.

Text: §141 · §142

الاستصحاب · istiṣḥāb

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 89. Source ↗

عبارة عن إبقاء ما كان على ما كان عليه لانعدام المغير.

Maintaining what was in the state in which it was, because no changer is present.

وهو الحكم الذي يثبت في الزمان الثاني بناء على الزمان الأول.

It is a judgement established at a second time on the basis of the first time.

Editorial note. This article has its own headword and attribution. It is not printed as part of al-Rāghib’s barā’a article or as an exact dictionary entry for barā’a aṣliyya.

↑ Term directory · Sources · Subject index

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14. istiṣlāḥ اسْتِصْلَاح

In the Darūrī: Welfare-oriented reasoning. The Darūrī asks what makes a proposed benefit legally authoritative rather than merely attractive.

Text: §146 · §217

Complete article: Muḥammad ʿAlī al-Tahānawī · maṣlaḥa (p. 224). related technical article: unrestricted interests are expressly discussed under maṣlaḥa, not a separate istiṣlāḥ headword.

↑ Term directory · Sources · Subject index

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15. istiʿāra اسْتِعَارَة

In the Darūrī: Transfer or metaphorical borrowing of an expression, one way words can signify beyond their original assignment.

Text: §153 · §164 · §180

الاستعارة · istiʿāra

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 94. Source ↗

ادعاء معنى الحقيقة في الشيء للمبالغة في التشبيه مع طرح ذكر المشبه من البين كقولك لقيت أسدا وأنت تعني به الرجل الشجاع ثم إذا ذكر المشبه به مع ذكر القرينة يسمى استعارة تصريحية وتحقيقية نحو لقيت أسدا في الحمام.

Claiming that a thing possesses the literal meaning, in order to intensify a comparison, while omitting mention of the thing compared. For example, you say “I met a lion” while meaning a courageous man. When the object of comparison is mentioned together with a contextual indicator, this is called an explicit and realized metaphor, as in “I met a lion in the bathhouse.”

وإذا قلنا المنية أي الموت أنشبت أي علقت أظفارها بفلان فقد شبهنا المنية بالسبع في اغتيال النفوس أي هلاكها من غير تفرقة بين نفاع وضرار فأثبتنا لها الأظفار التي لا يكمل ذلك الاغتيال فيه بدونها تحقيقا للمبالغة في التشبيه فتشبيه المنية بالسبع استعارة بالكناية وإثبات الأظفار لها استعارة تخيلية.

When we say, “Death has fastened its claws upon so-and-so”—maniyya meaning death, and anshabat meaning fastened—we compare death to a beast of prey in its destroying lives, without distinguishing between the beneficial and the harmful. We attribute to death the claws without which the beast’s destruction would not be complete, to realize the force of the comparison. Comparing death to the beast is an implicit metaphor; attributing claws to it is an imaginative metaphor.

والاستعارة في الفعل لا تكون إلا تبعية كنطقت الحال.

Metaphor in a verb is always derivative, as in “The situation spoke.”

↑ Term directory · Sources · Subject index

16. istiqrāʾ اسْتِقْرَاء

In the Darūrī: Induction: discerning a pattern from cases, including the recovery of early jurists’ implicit methods from their decisions.

Text: §4 · §217

الاستقراء · istiqrāʾ

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 108. Source ↗

هو الحكم على كلي بوجوده في أكثر جزئياته وإنما قال في أكثر جزئياته لأن الحكم لو كان في جميع جزئياته لم يكن استقراء بل قياسا مقسما ويسمى هذا استقراء لأن مقدماته لا تحصل إلا بتتبع الجزئيات كقولنا كل حيوان يحرك فكه الأسفل عند المضغ لأن الإنسان والبهائم والسباع كذلك وهو استقراء ناقص لا يفيد اليقين لجواز وجود جزئي لم يستقرأ ويكون حكمه مخالفا لما استقرئ كالتمساح فإنه يحرك فكه الأعلى عند المضغ.

Judging concerning a universal on the basis of its presence in most of its particulars. He says “in most of its particulars” because, if the judgement concerned all its particulars, it would not be induction but a divided syllogism. It is called induction because its premises are obtained only by investigating particulars. For example: “Every animal moves its lower jaw when chewing,” because human beings, domestic animals, and beasts of prey do so. This is incomplete induction and does not yield certainty, since a particular may exist that has not been investigated and whose case differs from those investigated—as with the crocodile, which, according to the example, moves its upper jaw when chewing.

Editorial note. The crocodile example is reproduced as the author’s historical example, not as an independently verified claim about animal anatomy. The article’s restriction of “induction” is likewise this source’s terminology, not a universal convention of the logical tradition.

↑ Term directory · Sources · Subject index

17. ishtirāk اشْتِرَاك

In the Darūrī: Equivocation: one expression’s established use for distinct meanings, not the inclusion of many instances within a single general meaning.

Text: §158 · §177

المشترك · al-mushtarak

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · entry 1372. Source ↗

Relation to glossary term: derived adjectival headword for lexical sharedness.

ما وضع لمعنى كثير بوضع كثير كالعين لاشتراكه بين المعاني ومعنى الكثرة ما يقابل القلة فيدخل فيه المشترك بين المعنيين فقط كالقرء والشفق فيكون مشتركا بالنسبة إلى الجميع ومجملا بالنسبة إلى كل واحد.

A word assigned to several meanings through several acts of assignment, such as ʿayn, which is shared by different meanings. Multiplicity here is that which contrasts with paucity [so the transcription reads]; this includes a word shared by only two meanings, such as qurʾ and shafaq. It is thus equivocal in relation to all its meanings and indeterminate in relation to each one.

والاشتراك بين الشيئين إن كان بالنوع يسمى مماثلة كاشتراك زيد وعمرو في الإنسانية وإن كان بالجنس يسمى مجانسة كاشتراك إنسان وفرس في الحيوانية وإن كان بالعرض إن كان في الكم يسمى مادة كاشتراك ذراع من خشب وذراع من ثوب في الطول وإن كان في الكيف يسمى مشابهة كاشتراك الإنسان والحجر في السواد وإن كان بالمضاف يسمى مناسبة كاشتراك زيد وعمرو في بنوة بكر وإن كان بالشكل يسمى مشاكلة كاشتراك الأرض والهواء في الكرية وإن كان بالوضع المخصوص يسمى موازنة وهو ألا يختلف البعد بينهما كسطح كل فلك وإن كان بالأطراف يسمى مطابقة كاشتراك الإجانتين في الأطراف.

When two things share a species, this is called likeness in species (mumāthala), as Zayd and ʿAmr share humanity. When they share a genus, it is called common membership of a genus (mujānasa), as a human and a horse share animality. When their sharing is accidental: in quantity, it is called mādda [the transcription's reading], as a cubit of wood and a cubit of cloth share length; in quality, resemblance (mushābaha), as a human and a stone share blackness; in relation, proportional correspondence (munāsaba), as Zayd and ʿAmr are both sons of Bakr; in shape, conformity of shape (mushākala), as earth and air share sphericity; in a particular position, parallelism (muwāzana), meaning that the distance between them does not vary, as with the surface of each celestial sphere; and in extremities, coincidence (muṭābaqa), as with the edges of two basins.

Editorial note. Complete article, including the second, categorial sense of ishtirāk. Two doubtful digital readings are retained openly: "paucity" probably stands for "unity," and mādda for musāwāt, "equality." Neither conjecture is silently substituted. The second paragraph is not a further definition of lexical equivocity.

↑ Term directory · Sources · Subject index

18. aṣl أَصْل

In the Darūrī: Foundation, source, original case, or governing principle. In qiyās it is the case or meaning from which extension proceeds.

Text: §62 · §141 · §210 · §212

الأصل · aṣl

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 27. Source ↗

هو ما يبتنى عليه غيره.

It is that upon which something else is built.

↑ Term directory · Sources · Subject index

19. uṣūl al-fiqh أُصُول الْفِقْهِ

In the Darūrī: Principles of jurisprudence: in this abridgement, above all the disciplined understanding of revealed indications and the means of reaching rulings.

Text: §1 · §2 · §5 · §6 · §148

أصول الفقه · uṣūl al-fiqh

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 159. Source ↗

هو العلم بالقواعد التي يتوصل بها إلى الفقه والمراد من الأصول في قولهم هكذا في رواية الأصول الجامع الصغير والجامع الكبير والمبسوط والزيادات.

Knowledge of the rules by which jurisprudence is reached. By “the foundational works” in the expression “Thus in the transmission of the foundational works,” they mean al-Jāmiʿ al-ṣaghīr, al-Jāmiʿ al-kabīr, al-Mabsūṭ, and al-Ziyādāt.

Editorial note. The second sentence explains a different Ḥanafī bibliographical use of uṣūl, not the definition of the science itself.

↑ Term directory · Sources · Subject index

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20. iqrār إِقْرَار

In the Darūrī: Tacit approval: the Prophet’s non-objection in relevant circumstances, indicating permissibility rather than automatically establishing obligation.

Text: §150 · §227

الإقرار · iqrār

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 32. Source ↗

هو في الشرع إخبار بحق لآخر عليه.

In revealed law, a person’s acknowledging a right that another holds against him.

إخبار عما سبق.

Reporting something that has already occurred.

↑ Term directory · Sources · Subject index

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21. imkān إِمْكَان

In the Darūrī: Possibility: physical capacity to perform an act is not the same as the presence of every legal condition governing it.

Text: §45 · §49 · §50

الإمكان · imkān

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 35. Source ↗

عدم اقتضاء الذات الوجود والعدم.

The essence’s entailing neither existence nor non-existence.

↑ Term directory · Sources · Subject index

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22. bāṭil / buṭlān بَاطِل / بُطْلَان

In the Darūrī: Invalid / invalidity. In contracts, absence of the intended legal effect; invalidity is not interchangeable with moral prohibition.

Text: §28 · §56 · §206

الباطل · bāṭil

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 41. Source ↗

هو الذي لا يكون صحيحا بأصله.

That which is not valid in its very basis.

ما لا يعتد به، ولا يفيد شيئا.

That which is not legally counted and produces no effect.

ما كان فائت المعنى من كل وجه، مع وجود الصورة؛ إما لانعدام الأهلية أو المحلية، كبيع الحر، وبيع الصبي.

That in which the relevant substance or purpose is absent in every respect, although its outward form exists, whether because the requisite capacity or a legally eligible object is absent—for example, a sale of a free person or a sale made by a child.

Editorial note. The source headword is bāṭil, not a separate buṭlān article. The author's school-specific contrasts with fāsid are preserved in the independent fasād article. "A sale made by a child" translates بيع الصبي here in the context of deficient contracting capacity; it is not "the sale of a child."

↑ Term directory · Sources · Subject index

23. barā'a aṣliyya بَرَاءَة أَصْلِيَّة

In the Darūrī: Original freedom from liability: obligation requires a warrant; absence of such a warrant is not itself a newly revealed duty.

Text: §141 · §142 · §247

برأ · bara'a

al-Rāghib al-Iṣfahānī [E] · *al-Mufradāt fī gharīb al-Qur'ān* · s.v. برأ. Source ↗

Relation to glossary term: complete root article; technical compound is not an independent headword.

أصل البُرْءِ والبَرَاءِ والتَبَرِّي: التقصّي مما يكره مجاورته، ولذلك قيل: بَرَأْتُ من المرض وبَرِئْتُ من فلان وتبرّأتُ وبَرَّأْتُه من كذا، وبَرَّأْتُه، ورجل بَرِيءٌ، وقوم بُرَآء وبَرِيئُون.

The original sense of bur', barā' and tabarrī is to free oneself entirely from that whose proximity is disliked. Hence one says: "I recovered from illness"; "I dissociated myself from so-and-so"; "I disowned [something]"; "I released him from such-and-such"; and "I cleared him." One speaks of a man as barī', and of a group as burā' or barī'ūn.

قال عزّ وجلّ: بَرَاءَةٌ مِنَ اللَّهِ وَرَسُولِهِ [التوبة/1]، أَنَّ اللَّهَ بَرِيءٌ مِنَ الْمُشْرِكِينَ وَرَسُولُهُ [التوبة/3]، وقال: أَنْتُمْ بَرِيئُونَ مِمَّا أَعْمَلُ وَأَنَا بَرِيءٌ مِمَّا تَعْمَلُونَ [يونس/41]، إِنَّا بُرَآؤُا مِنْكُمْ وَمِمَّا تَعْبُدُونَ مِنْ دُونِ اللَّهِ [الممتحنة/4]، وَإِذْ قَالَ إِبْرَاهِيمُ لِأَبِيهِ وَقَوْمِهِ إِنَّنِي بَرَاءٌ مِمَّا تَعْبُدُونَ [الزخرف/26]، فَبَرَّأَهُ اللَّهُ مِمَّا قَالُوا [الأحزاب/69]، وقال: إِذْ تَبَرَّأَ الَّذِينَ اتُّبِعُوا مِنَ الَّذِينَ اتَّبَعُوا [البقرة/166].

God—mighty and majestic—says: "A declaration of release from God and His Messenger" [Q 9:1]; "God is free of the polytheists, and so is His Messenger" [Q 9:3]; "You are free of responsibility for what I do, and I am free of responsibility for what you do" [Q 10:41]; "We disown you and what you worship apart from God" [Q 60:4]; "When Abraham said to his father and his people: I am quit of what you worship" [Q 43:26]; "God cleared him of what they said" [Q 33:69]; and "When those who were followed disown those who followed them" [Q 2:166].

والبارئ خصّ بوصف الله تعالى، نحو قوله: الْبَارِئُ الْمُصَوِّرُ [الحشر/24]، وقوله تعالى: فَتُوبُوا إِلى بارِئِكُمْ [البقرة/54]، والبَرِيَّة: الخلق، قيل: أصله الهمز فترك، وقيل: بل ذلك من قولهم: بريت العود، وسمّيت بريّة لكونها مبريّة من البرى أي: التراب، بدلالة قوله تعالى: خَلَقَكُمْ مِنْ تُرابٍ [غافر/67]، وقوله تعالى: أُولئِكَ هُمْ خَيْرُ الْبَرِيَّةِ [البينة/7]، وقال: شَرُّ الْبَرِيَّةِ [البينة/6].

Al-Bāri' is reserved as a description of God, as in "the Originator, the Fashioner" [Q 59:24] and "Turn in repentance to your Originator" [Q 2:54]. Al-bariyya means created beings. It is said that the word originally had a hamza which was dropped. Another account derives it from "I pared the stick": creatures are called bariyya because they are fashioned out of barā, that is, earth. This is supported by "He created you from earth" [Q 40:67], "Those are the best of created beings" [Q 98:7], and "the worst of created beings" [Q 98:6].

Editorial note. This is the complete article برأ, including its theological and etymological senses. It is not an article headed براءة أصلية. The legal principle's contextual explanation remains in the Darūrī term register; al-Jurjānī's istiṣḥāb is a separately attributed article, never part of this one.

↑ Term directory · Sources · Subject index

24. burhān بُرْهَان

In the Darūrī: Demonstration or conclusive proof. Its logical analysis belongs to a different discipline from the present abridgement's immediate task.

Text: §9 · §15 · §75

بره · bariha / burhān

al-Rāghib al-Iṣfahānī [E] · *al-Mufradāt fī gharīb al-Qur'ān* · s.v. بره. Source ↗

Relation to glossary term: full lexical root article containing the exact technical noun burhān.

البُرْهَان: بيان للحجة، وهو فعلان مثل: الرّجحان والثنيان، وقال بعضهم: هو مصدر بَرِهَ يَبْرَهُ: إذا ابيضّ، ورجل أَبْرَهُ وامرأة بَرْهَاءُ، وقوم بُرْهٌ، وبَرْهَرْهَة: شابة بيضاء. والبُرْهة: مدة من الزمان، فالبُرْهَان أوكد الأدلّة، وهو الذي يقتضي الصدق أبدا لا محالة، وذلك أنّ الأدلة خمسة أضرب: دلالة تقتضي الصدق أبدا. ودلالة تقتضي الكذب أبدا. ودلالة إلى الصدق أقرب. ودلالة إلى الكذب أقرب. ودلالة هي إليهما سواء.

Burhān is the clarification of an argument. Its pattern is fu'lān, like rujḥān and thunyān. Some say it is a verbal noun of bariha, yabrahu, "to become white": one says abrah of a man, barhāʾ of a woman, and burh of a group. Barahraha is a young, fair-complexioned woman; burha is a period of time. Burhān is therefore the most certain of proofs, invariably requiring truth. For indications are of five kinds: one which always requires truth; one which always requires falsehood; one nearer to truth; one nearer to falsehood; and one equally related to the two.

قال تعالى: قُلْ: هاتُوا بُرْهانَكُمْ إِنْ كُنْتُمْ صادِقِينَ [البقرة/111]، قُلْ: هاتُوا بُرْهانَكُمْ هذا ذِكْرُ مَنْ مَعِيَ [الأنبياء/24]، قَدْ جاءَكُمْ بُرْهانٌ مِنْ رَبِّكُمْ [النساء/174].

God says: "Say: bring your proof, if you are truthful" [Q 2:111]; "Say: bring your proof; this is the reminder of those with me" [Q 21:24]; and "A proof has come to you from your Lord" [Q 4:174].

البرهان · burhān

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 43. Source ↗

هو القياس المؤلف من اليقينيات، سواء كانت ابتداء، وهي الضروريات، أو بواسطة، وهي النظريات. والحد الأوسط فيه لا بد أن يكون علة لنسبة الأكبر إلى الأصغر، فإن كان مع ذلك علة لوجود تلك النسبة في الخارج أيضا، فهو برهان لمي، كقولنا: هذا متعفن الأخلاط، وكل متعفن الأخلاط محموم، فهذا محموم، فتعفن الأخلاط، كما أنه علة لثبوت الحمى في الذهن، كذلك علة لثبوت الحمى في الخارج، وإن لم يكن كذلك كان لا يكون علة للنسبة إلا في الذهن، فهو برهان إني، كقولنا: هذا محموم، متعفن الأخلاط، فهذا متعفن الأخلاط، فالحمى، وإن كانت علة لثبوت تعفن الأخلاط في الذهن، إلا أنها ليست علة له في الخارج، بل الأمر بالعكس.

A syllogism composed of certain premises, whether they are certain immediately—in which case they are necessary truths—or through an intermediary—in which case they are conclusions of inquiry. Its middle term must be a cause of attributing the major term to the minor. If it is also a cause of that relation's existence outside the mind, the demonstration is a "why" demonstration. For example: "This person has putrefied humours; everyone with putrefied humours has a fever; therefore this person has a fever." The putrefaction of the humours is a cause of the fever's being established in the mind and also of its existence outside the mind. If the middle term causes the relation only in the mind, it is a "that" demonstration. For example: "This person has a fever; [the text's statement of the major premise is defective:] putrefied humours; therefore this person has putrefied humours." Although the fever is a cause of establishing the putrefaction of the humours in the mind, it is not its cause outside the mind; rather, the reverse is the case.

Editorial note. The second syllogism is defective in the digital witness: the major premise is not fully expressed. The translation marks the defect instead of silently inserting an allegedly original sentence. The humoral example is a historical illustration, not a contemporary medical claim.

↑ Term directory · Sources · Subject index

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25. bayān بَيَان

In the Darūrī: Clarification: whatever validly brings a meaning to understanding, including wording, context and explanatory action.

Text: §159 · §160 · §161 · §228

البيان · bayān

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 297. Source ↗

عبارة عن إظهار المتكلم المراد للسامع وهو بالإضافة خمسة.

The speaker's making the intended meaning manifest to the listener. In its subdivisions it is fivefold:

1 - بيان التبديل هو النسخ وهو رفع حكم شرعي بدليل شرعي متأخر.

1. Clarification by replacement is abrogation: removing a legal ruling through a later legal proof.

2 - بيان الضرورة هو نوع بيان يقع بغير ما وضع له لضرورة ما إذ الموضوع له النطق وهذا يقع بالسكوت مثل سكوت المولى عن النهي حين يرى عبده يبيع ويشتري فإنه يجعل إذنا له في التجارة ضرورة دفع الغرر عمن يعامله فإن الناس يستدلون بسكوته على إذنه فلو لم يجعل إذنا لكان إضرارا بهم وهو مدفوع.

2. Clarification by necessity occurs by something other than the appointed means because of a necessity. The appointed means is speech, but this occurs through silence: for example, a master refrains from prohibiting his slave when he sees him buying and selling. This is treated as permission to trade because of the need to remove the risk faced by those dealing with him. People infer permission from the master's silence; refusing to count it as permission would harm them, and that harm is averted.

3 - بيان التغيير هو تغيير موجب الكلام نحو التعليق والاستثناء والتخصيص.

3. Clarification by modification changes what speech entails, as with conditional attachment, exception, and specification.

4 - بيان التفسير وهو بيان ما فيه خفاء من المشترك أو المشكل أو المجمل أو الخفي كقوله تعالى وأقاموا الصلاة وآتو الزكاة البقرة 277 فإن الصلاة مجمل فلحق البيان بالسنة وكذا الزكاة مجمل في حق النصاب والمقدار ولحق البيان بالسنة.

4. Clarification by explanation explains what is obscure in the equivocal, problematic, indeterminate, or hidden, as in "They establish prayer and give alms" [Q 2:277]. Prayer is indeterminate and received its explanation through the Sunna; likewise alms is indeterminate concerning the threshold and amount, and was explained by the Sunna.

5 - وهو النطق الفصيح المعرب أي المظهر عما في الضمير وإظهار المعنى وإيضاح ما كان مستورا قبله وقيل هو الإخراج عن حد الإشكال والفرق بين التأويل والبيان أن التأويل ما يذكر في كلام لا يفهم منه معنى محصل في أول وهلة والبيان ما يذكر فيما يفهم ذلك لنوع خفاء بالنسبة إلى البعض.

5. It is eloquent, expressive speech—that is, speech making manifest what is in the mind—and the manifestation of meaning and clarification of what was previously concealed. It is also said to be removing something from the domain of difficulty. Interpretation differs from clarification: interpretation concerns speech from which no determinate meaning is understood at first encounter; clarification concerns speech from which such a meaning is understood, but which has a kind of obscurity for some people.

Editorial note. This witness's fivefold numbering is retained, although its fifth item shifts from a named legal subdivision to general definitions. This is not an editorial repair of the classification.

↑ Term directory · Sources · Subject index

26. taʾthīm تَأْثِيم

In the Darūrī: Attribution of sin. Its absence does not entail the absence of error; knowledge and the accessibility of evidence matter.

Text: §242 · §243 · §244 · §245

الإثم · al-ithm

ʿAbd al-Raʾūf al-Munāwī [L] · *al-Tawqīf ʿalā muhimmāt al-taʿārīf* · s.v. الإثم. Source ↗

Relation to glossary term: complete lexical headword underlying taʾthīm; not a substitute for the juristic doctrine.

والآثام اسم للأفعال المبطئة عن الثواب، وتسمية الكذاب إثما كتسمية الإنسان حيوانا لكونه من جملتهم، والآثم بالمد المتحمل للإثم. قال الراغب والإثم أعم من العدوان.

Ithm and āthām are names for actions that delay reward. Calling falsehood ithm is like calling a human an animal, since it belongs within that class. Āthim, with a long initial vowel, is someone who bears sin. Al-Rāghib says that ithm is more general than transgression (ʿudwān).

Editorial note. The digital text's al-kadhdhāb may also be read "the liar"; the translation follows the abstract comparison with a class of acts.

↑ Term directory · Sources · Subject index

27. taʾwīl تَأْوِيل

In the Darūrī: Interpretation supported by evidence, especially departure from an expression's apparent meaning to a less evident one.

Text: §164 · §166 · §171

التأويل · taʾwīl

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 313. Source ↗

في الأصل الترجيع وفي الشرع صرف اللفظ عن معناه الظاهر إلى معنى يحتمله إذا كان المحتمل الذي يراه موافقا للكتاب والسنة مثل قوله تعالى يخرج الحي من الميت الأنبياء 95 أن أراد به إخراج الطير من البيضة كان تفسيرا وإن أراد به إخراج المؤمن من الكافر أو العالم من الجاهل كان تأويلا.

Originally, bringing back. In revealed law: diverting an expression from its apparent meaning to another meaning it admits, provided that the possible meaning one adopts accords with the Book and the Sunna. For example, with God's saying "He brings the living out of the dead": taking it to mean bringing a bird out of an egg is explanation; taking it to mean bringing a believer out of an unbeliever, or a learned person out of an ignorant person, is interpretive redirection.

Editorial note. The verse reference printed in this electronic witness is wrong; the wording occurs, for example, at Q 6:95 and Q 30:19.

↑ Term directory · Sources · Subject index

28. takhṣīṣ تَخْصِيص

In the Darūrī: Specification: restricting a general expression's scope on adequate evidence; chronology helps distinguish it from abrogation.

Text: §174 · §181 · §182 · §190

التخصيص · takhṣīṣ

ʿAbd al-Raʾūf al-Munāwī [L] · *al-Tawqīf ʿalā muhimmāt al-taʿārīf* · s.v. التخصيص. Source ↗

تفرد بعض الشيء بما لا يشاركه فيه الجملة، ذكره الراغب. وعبر عنه الأصوليون بقولهم: التخصيص، قصر العام على افراده بدليل مستقل مقترن به واحترز ب المستقل عن الاستثناء والشرط والغاية والصفة فإنها وإن لحقت العام لا تسمى تخصيصا، وبمقترن به عن النسخ نحو {خَالِقُ كُلِّ شَيْءٍ} إذ يعلم ضرورة أن الباري تقدس مخصوص به منه.

Some part of a thing's being distinguished by what the whole does not share: this is al-Rāghib's account. The legal theorists express it as restricting a general expression to [some of] its instances by an independent proof accompanying it. 'Independent' excludes exception, condition, limit and attribute: although these attach to a general expression, they are not called specification in this terminology. 'Accompanying it' excludes abrogation. An example is 'Creator of every thing' [Q 6:102; 13:16], since it is necessarily known that the Creator, exalted is He, is excluded from its scope.

Editorial note. The digital reading قصر العام على افراده lacks "some". The bracketed words in English supply the restriction required by the definition and its following contrasts; no silent Arabic emendation is made. This restrictive use of takhṣīṣ is not shared by all legal theorists.

↑ Term directory · Sources · Subject index

29. tarjīḥ تَرْجِيح

In the Darūrī: Giving greater weight: preferring the stronger evidence or judgement on a relevant ground, not free personal choice.

Text: §96 · §246 · §256 · §257

الترجيح · tarjīḥ

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 352. Source ↗

إثبات مرتبة في أحد الدليلين على الآخر.

Establishing a superior rank for one of two proofs over the other.

↑ Term directory · Sources · Subject index

30. taṣdīq تَصْدِيق

In the Darūrī: Assent to an assertion. Its cause, necessity and degree are discussed especially in the analysis of mass transmission.

Text: §15 · §44 · §74 · §75 · §76

التصديق · taṣdīq

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 374. Source ↗

هو أن تنسب باختيارك الصدق إلى المخبر.

Your voluntarily attributing truthfulness to the informant.

Editorial note. This definition concerns crediting an informant. Other logical senses are not collapsed into it.

↑ Term directory · Sources · Subject index

31. taṣwīb تَصْوِيب

In the Darūrī: Declaring juristic conclusions correct; the debate asks whether every qualified conclusion is true or whether one determinate ruling is sought.

Text: §237 · §239 · §240 · §243

الصواب · al-ṣawāb

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · entry 883. Source ↗

Relation to glossary term: complete related headword, with the juristic correctness/error distinction.

خلاف الخطأ وهما يستعملان في المجتهدات والحق والباطل يستعملان في المعتقدات حتى إذا سئلنا في مذهبنا ومذهب من خالفنا في الفروع يجب علينا أن نجيب بأن مذهبنا صواب يحتمل الخطأ ومذهب من خالفنا خطأ يحتمل الصواب وإذا سئلنا عن معتقدنا ومعتقد من خالفنا في المعتقدات يجب علينا أن نقول الحق ما عليه نحن والباطل ما عليه خصومنا.

The opposite of error. The two terms are used concerning matters subject to juristic reasoning, whereas “true” and “false” are used concerning matters of belief. Thus, when asked about our school and that of those who differ from us concerning derivative legal questions, we must answer: our school’s position is correct but admits the possibility of error, and the position of those who differ from us is erroneous but admits the possibility of correctness. When asked about our belief and the belief of those who differ from us concerning doctrinal matters, we must say: what we hold is true, and what our opponents hold is false.

هكذا نقل عن المشايخ وتمام المسألة في أصول الفقه ولغة السداد واصطلاحا هو الأمر الثابت الذي لا يسوغ إنكاره وقيل الصواب إصابة الحق والفرق بين الصواب والصدق والحق أن الصواب هو الأمر الثابت في نفس الأمر الذي يسوغ إنكاره والصدق هو الذي يكون ما في الذهن مطابقا لما في الخارج والحق هو الذي يكون ما في الخارج مطابقا لما في الذهن.

This is what has been transmitted from the masters; the full discussion belongs to legal theory. In language, ṣawāb means soundness; technically, it is an established matter whose denial is not admissible. It is also said to mean attaining the truth. The distinction between correctness (ṣawāb), truthfulness (ṣidq), and truth (ḥaqq) is that correctness is a matter established in itself whose denial is admissible [as the text here reads]; truthfulness is the correspondence of what is in the mind with what is outside it; and truth is the correspondence of what is outside the mind with what is in it.

Editorial note. The article itself changes from “denial is not admissible” to “denial is admissible”; both readings are translated, not harmonized. This is an attributed later discussion, not a statement that Ibn Rushd adopts the author’s doctrinal contrast.

↑ Term directory · Sources · Subject index

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32. taʿāruḍ تَعَارُض

In the Darūrī: Conflict of evidence: an apparent opposition requiring assessment of reconciliation, chronology, preference or suspension.

Text: §96 · §181 · §229 · §246

al-muʿāraḍa · المعارضة

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · entry 1402. Source ↗

Relation to glossary term: complete related headword: dialectical counter-opposition.

لغة هي المقابلة على سبيل الممانعة واصطلاحا هي إقامة الدليل على خلاف ما أقام الدليل عليه الخصم ودليل المعارض إن كان عين دليل المعلل يسمى قلبا وإلا فإن كانت صورته كصورته يسمى معارضة بالمثل وإلا فمعارضة بالغير وتقديرها إذا استدل على المطلوب بدليل فالخصم إن منع مقدمة من مقدماته أو كل واحدة منها على التعيين فذلك يسمى منعا مجردا ومناقضة ونقضا تفصيليا ولا يحتاج في ذلك إلى شاهد فإن ذكر شيئا يتقوى به يسمى سندا للمنع وإن منع مقدمة غير معينة بأن يقول ليس دليلك بجميع مقدماته صحيحا ومعناه أن فيها خللا فذلك يسمى نقضا إجماليا ولا بد هاهنا من شاهد على الاختلال وإن لم يمنع شيئا من المقدمات لا معينة ولا غير معينة بأن أورد دليلا على نقض مدعاه فذلك يسمى معارضة.

In language, counter-opposition is confrontation by way of resistance. Technically, it is establishing a proof for the opposite of what the opponent has established by proof. If the counter-arguer’s proof is identical with the original arguer’s proof, it is called reversal (qalb). Otherwise, if its form is the same as the other’s, it is counter-opposition by a like proof; if not, counter-opposition by a different proof. Its analysis is as follows. When someone argues for a conclusion by a proof, if the opponent challenges one of its premises—or each one, specifically—this is called bare denial, contradiction, or detailed refutation; no supporting witness is required. If the opponent mentions something strengthening the challenge, it is called a support for the denial. If an unspecified premise is challenged by saying, “Your proof is not sound in all its premises,” meaning that there is a flaw in them, this is called summary refutation; here a witness to the flaw is required. If no premise is challenged, whether specifically or nonspecifically, but a proof is produced overturning the claim, this is called counter-opposition.

Editorial note. Muʿāraḍa in disputation is not automatically identical with the uṣūl problem of apparently conflicting proofs (taʿāruḍ). The original glossary’s contextual meaning is retained separately.

↑ Term directory · Sources · Subject index

33. ta‘dīl تَعْدِيل

In the Darūrī: Attestation of probity, distinct from criticism and from an automatic guarantee of every report.

Text: §94 · §95 · §96 · §97

التعادل · al-ta‘ādul

‘Abd al-Ra’ūf al-Munāwī [L] · *al-Tawqīf ‘alā muhimmāt al-ta‘ārīf* · s.v. التعادل. Source ↗

Relation to glossary term: complete related headword containing an explicit definition of witness accreditation.

التساوي بين الشيئين، ومنه قسمة التعديل وهي قسمة الشيء باعتبار القيمة والمنفعة لا باعتبار العدل، فيجوز كون الجزء الأقل يعادل الأعظم في قيمته ومنفعته. وتعديل الشاهد نسبته إلى العدالة ووصفه بها.

Equality between two things. From this comes division by equalization: dividing a thing with regard to value and benefit, not with regard to “justice” [the transmitted reading]. Thus the smaller portion may equal the larger in value and benefit. The accreditation (ta‘dīl) of a witness is attributing probity to him and describing him as possessing it.

Editorial note. The digital text reads al-‘adl, “justice,” where al-‘adad, “number,” is contextually expected; the printed reading has not been silently supplied.

↑ Term directory · Sources · Subject index

34. taqlīd تَقْلِيد

In the Darūrī: Following another’s authority. Trustworthy expert reliance is distinguished from treating memorized school opinions as independent evidence.

Text: §249 · §250 · §251 · §252 · §255

التقليد · taqlīd

al-Sharīf al-Jurjānī [L] · *Kitāb al-Ta‘rīfāt* · online entry 410. Source ↗

عبارة عن إتباع الإنسان غيره فيما يقول أو يفعل معتقدا للحقيقة فيه من غير نظر وتأمل في الدليل كأن هذا المتبع جعل قول الغير أو فعله قلادة في عنقه وعبارة عن قبول قول الغير بلا حجة ولا دليل.

A person’s following another in what the latter says or does, believing it to be true without investigating or reflecting upon the proof—as though the follower had placed the other’s statement or action as a necklace around his neck. Also: accepting another’s statement without an argument or proof.

↑ Term directory · Sources · Subject index

35. taklīf تَكْلِيف

In the Darūrī: Legal responsibility or imposition of a duty, directed to an agent under conditions of comprehension and capacity.

Text: §17 · §38 · §42 · §45

التكليف · taklīf

al-Sharīf al-Jurjānī [L] · *Kitāb al-Ta‘rīfāt* · online entry 414. Source ↗

إلزام الكلفة على المخاطب.

Imposing a burden upon the addressee.

↑ Term directory · Sources · Subject index

36. tamthīl تَمْثِيل

In the Darūrī: Exemplification or reasoning by a comparable particular; do not assume that every legal extension has this structure.

Text: §1 · §210 · §212 · §223

التمثيل · tamthīl

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 423. Source ↗

إثبات حكم واحد في جزأين لثبوته في جزئي الآخر لمعنى مشترك بينهما والفقهاء يسمونه قياسا والجزئي الأول فرعا والثاني أصلا والمشترك علة وجامعا كما يقال العالم مؤلف فهو حادث كالبيت يعني البيت حادث لأنه مؤلف وهذه العلة موجودة في العالم فيكون حادثا.

Establishing a single judgement in two particulars because it is established in the other particular, on account of a meaning they share. Jurists call this analogy, the first particular the derivative case, the second the original case, and the shared feature the cause and connecting feature. Thus: “The world is composite, so it is originated, like a house.” That is, a house is originated because it is composite, and this cause exists in the world, which is therefore originated.

Editorial note. The opening is awkward in this witness (جزأين … جزئي الآخر). The translation makes its comparison between particulars explicit without changing the Arabic.

↑ Term directory · Sources · Subject index

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37. tanbīh تَنْبِيه

In the Darūrī: Indication or directing attention to an unstated meaning, often through the relation between a named particular and an intended universal.

Text: §191 · §209 · §212 · §215

التنبيه · tanbīh

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 433. Source ↗

إعلام ما في ضمير المتكلم للمخاطب وفي اللغة هو الدلالة عما غفل عنه المخاطب وفي الاصطلاح ما يفهم من مجمل بأدنى تأمل إعاما بما في ضمير المتكلم للمخاطب وقيل التنبيه قاعدة تعرف بها الأبحاث الآتية بجملة.

Making what is in the speaker’s mind known to the addressee. In ordinary language, indicating what the addressee has overlooked. Technically, what is understood from an indeterminate expression with the least reflection, thus making the speaker’s intention known to the addressee. It is also said to be a rule through which subsequent investigations are known in outline.

Editorial note. The witness’s إعاما is treated as a typographical loss in إعلاما in translation.

↑ Term directory · Sources · Subject index

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38. tawātur تَوَاتُر

In the Darūrī: Mass transmission producing certainty, whose conditions are contextual and not captured by a single numerical threshold.

Text: §74 · §75 · §76 · §78

التواتر · tawātur

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 440. Source ↗

هو الخبر الثابت على ألسنة قوم لا يتصور تواطؤهم على الكذب.

A report established on the tongues of a group whose collusion in falsehood cannot be conceived.

الخبر المتواتر · khabar mutawātir

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 643. Source ↗

Relation to glossary term: expanded named report-type article.

هو الذي نقله جماعة عن جماعة والفرق بين المتواتر والمشهور أن جاحد الخبر المتواتر كافر بالاتفاق وجاحد الخبر المشهور مختلف فيه والأصح أنه يكفر وجاحد خبر الواحد لا يكفر بالاتفاق.

That which a group transmits from a group. The difference between the massively and the widely transmitted report is that denying the former constitutes unbelief by agreement, whereas the status of one who denies the latter is disputed, the view here called sounder being that it constitutes unbelief. Denying a solitary report does not constitute unbelief by agreement.

وهو الخبر الثابت على ألسنة قوم لا يتصور تواطؤهم على الكذب والخبر نوعان مرسل ومسند فالمرسل منه ما أرسله الراوي إرسالا من غير إسناد إلى راو آخر وهو حجة عندنا كالمسند خلافا للشافعي في إرسال سعيد بن المسيب فقد روى عن أبي بكر مرسلا والمسند ما أسنده الراوي إلى راو آخر إلى أن يصل إلى النبي صلى الله عليه وسلم.

It is a report established on the tongues of people whose collusion in falsehood is inconceivable. Reports are of two kinds: mursal and musnad. A mursal report is one the transmitter sends forth without assigning it to another transmitter. According to us it is a proof, like the musnad, in disagreement with al-Shāfiʿī; the passage then mentions the mursal transmission of Saʿīd b. al-Musayyab, who transmitted from Abū Bakr without a connected chain. A musnad report is one assigned by a transmitter to another transmitter until it reaches the Prophet, peace and blessings be upon him.

ثم المسند أنواع متواتر ومشهور وآحاد فالمتواتر منه ما نقله قوم عن قوم لا يتصور تواطؤهم على الكذب فيه وهو الخبر المتصل إلى رسول الله صلى الله عليه وسلم وحكمه يوجب العلم والعمل قطعا حتى يكفر جاحده.

Musnad reports are then of several types: massively transmitted, widely transmitted, and solitary. The massively transmitted is what one body of people transmits from another in circumstances where their collusion in falsehood is inconceivable. It is a report connected to God’s Messenger, peace and blessings be upon him. Its evidential effect is decisively to require knowledge and action, such that its denier is judged an unbeliever.

فالمشهور منه هو ما كان من الآحاد في العصر الأول ثم اشتهر في العصر الثاني حتى رواه جماعة لا يتصور تواطؤهم على الكذب وتلقته العلماء بالقبول وهو أحد قسمي المتواتر وحكمه يوجب طمأنينة القلب لا علم يقين حتى يضل جاحده ولا يكفر وهو الصحيح وخبر الآحاد هو ما نقله واحد عن واحد وهو الذي لم يدخل في حد الاشتهار وحكمه يوجب العمل دون العلم ولهذا لا يكون حجة في المسائل الاعتقادية.

The widely transmitted is what was solitary in the first generation but became widespread in the second, until it was transmitted by a group whose collusion in falsehood was inconceivable and was accepted by the scholars. It is one of the two divisions of massive transmission. Its effect is to produce reassurance of the heart, not certain knowledge; consequently, its denier is held to be astray but not an unbeliever—and this is the correct view. A solitary report is what one person transmits from one person, without its entering the category of wide transmission. Its effect is to require action rather than knowledge, and for this reason it is not a proof in matters of belief.

Editorial note. The article contains both a stricter opening judgement and the later qualification “and this is the correct view” concerning denial of a widely transmitted report. Both are retained. The wording about al-Shāfiʿī and Saʿīd b. al-Musayyab is compressed in this digital witness and is not used here to establish al-Shāfiʿī’s doctrine independently.

↑ Term directory · Sources · Subject index

39. tawaqquf تَوَقُّف

In the Darūrī: Suspension of judgement when the evidence does not justify a determinate conclusion; distinct from arbitrary choice.

Text: §229 · §246

وقف · waqf

Aḥmad b. Muḥammad al-Fayyūmī [L] · *al-Miṣbāḥ al-munīr fī gharīb al-Sharḥ al-kabīr* · Kitāb al-wāw, root w-q-f. Source ↗

Relation to glossary term: full root article expressly defining tawaqqafa and deferred judgement, not a separate technical tawaqquf article.

وَقَفَتِ الدَّابَّةُ تَقِفُ وَقْفًا وَوُقُوفًا سَكَنَتْ وَوَقَفْتُهَا أَنَا يَتَعَدَّى وَلَا يَتَعَدَّى وَوَقَفْتُ الدَّارَ وَقْفًا حَبَسْتُهَا فِي سَبِيلِ اللَّهِ وَشَيْءٌ مَوْقُوفٌ وَوَقْفٌ أَيْضًا تَسْمِيَةً بِالْمَصْدَرِ وَالْجَمْعُ أَوْقَافٌ مِثْلُ ثَوْبٍ وَأَثْوَابٍ وَوَقَفْتُ الرَّجُلَ عَنِ الشَّيْءِ وَقْفًا مَنَعْتُهُ عَنْهُ وَأَوْقَفْتُ الدَّارَ وَالدَّابَّةَ بِالْأَلِفِ لُغَةُ تَمِيمٍ وَأَنْكَرَهَا الْأَصْمَعِيُّ وَقَالَ الْكَلَامُ وَقَفْتُ بِغَيْرِ أَلِفٍ

Waqafat al-dābbatu, taqifu, waqfan and wuqūfan: the animal stood still. “I stopped it” is waqaftuhā; the verb is both transitive and intransitive. Waqaftu al-dāra waqfan means that I placed the house in inalienable dedication in God’s path. A thing so dedicated is mawqūf, and also waqf, the verbal noun being used as its name. The plural is awqāf, like thawb and athwāb. Waqaftu al-rajula ʿan al-shay’i waqfan means that I prevented the man from it. Awqaftu al-dāra wa-l-dābbata, with alif, is the usage of Tamīm. Al-Aṣmaʿī rejected it and said that the expression is waqaftu, without alif.

وَأَوْقَفْتُ عَنِ الْكَلَامِ بِالْأَلِفِ أَقْلَعْتُ عَنْهُ وَكَلَّمَنِي فُلَانٌ فَأَوْقَفْتُ أَيْ أَمْسَكْتُ عَنِ الْحُجَّةِ عِيًّا وَحَكَى بَعْضُهُمْ مَا يُمْسَكُ بِالْيَدِ يُقَالُ فِيهِ أَوْقَفْتُهُ بِالْأَلِفِ وَمَا لَا يُمْسَكُ بِالْيَدِ يُقَالُ وَقَفْتُهُ بِغَيْرِ أَلِفٍ وَالْفَصِيحُ وَقَفْتُ بِغَيْرِ أَلِفٍ فِي جَمِيعِ الْبَابِ إِلَّا فِي قَوْلِكَ مَا أَوْقَفَكَ هَهُنَا وَأَنْتَ تُرِيدُ أَيُّ شَأْنٍ حَمَلَكَ عَلَى الْوُقُوفِ فَإِنْ سَأَلْتَ عَنْ شَخْصٍ قُلْتَ مَنْ وَقَفَكَ بِغَيْرِ أَلِفٍ

Awqaftu ʿan al-kalām, with alif, means that I ceased speaking. “So-and-so spoke to me, and I awqaftu” means that I refrained from giving an argument because I could not express myself. Some have reported that, for what is held in the hand, one says awqaftuhu with alif, and for what is not held in the hand one says waqaftuhu without alif. The eloquent usage is waqaftu without alif throughout this class, except when one says mā awqafaka hāhunā, meaning “What circumstance made you stop here?” If you ask about a person, you say man waqafaka, without alif.

وَوَقَفْتُ بِعَرَفَاتٍ وُقُوفًا شَهِدْتُ وَقْتَهَا وَتَوَقَّفَ عَنِ الْأَمْرِ أَمْسَكَ عَنْهُ وَوَقَّفْتُ الْأَمْرَ عَلَى حُضُورِ زَيْدٍ عَلَّقْتُ الْحُكْمَ فِيهِ بِحُضُورِهِ وَوَقَفْتُ قِسْمَةَ الْمِيرَاثِ إِلَى الْوَضْعِ أَخَّرْتُهُ حَتَّى تَضَعَ وَالْمَوْقِفُ مَوْضِعُ الْوُقُوفِ.

Waqaftu bi-ʿArafātin wuqūfan means that I was present there at its appointed time. Tawaqqafa ʿan al-amr means that he held back from the matter. “I made the matter waqf on Zayd’s arrival” means that I made judgement on it conditional upon his arrival. “I deferred the division of the inheritance until the birth” means that I delayed it until she gave birth. Mawqif is the place of standing or stopping.

↑ Term directory · Sources · Subject index

40. tawqīf تَوْقِيف

In the Darūrī: Dependence on revealed instruction; in §229 the printed term is understood contextually as withholding judgement. Note the distinct usages.

Text: §49 · §229

وقف · w-q-f

al-Muṭarrizī [L] · *al-Mughrib fī tartīb al-Muʿrib* · root وقف. Source ↗

Relation to glossary term: complete lexical root article with explicit tawqīf as instruction.

وقفه حبسه وقفا ووقف بنفسه وقوفا يتعدى ولا يتعدى وهو واقف وهم وقوف. ومنه وقف داره أو أرضه على ولده لأنه يحبس الملك عليه، وقيل للموقوف وقف تسمية بالمصدر ولذا جمع على أوقاف كوقت وأوقات. قالوا ولا يقال أوقفه إلا في لغة رديئة، وقيل يقال وقفه فيما يحبس باليد وأوقفه فيما لا يحبس بها. ومنه أوقفته على ذنبه أي عرفته إياه والمشهور وقفته. وما روي أنه صلى الله عليه وآله وسلم قال: من وهب هبة ثم أراد أن يرجع فيها فليوقف وليعرف قبح فعله، يحتمل أن يكون من البابين. وقوله قلت لها قفي فقالت لي قاف أي وقفت فاختصره. وقوله حين وقفه أي عرفه إياه من قولهم وقفت القارئ توقيفا إذا علمته مواضع الوقوف.

Waqafahu means “he detained it,” with the verbal noun waqf; waqafa by itself means “he stopped,” with the verbal noun wuqūf. The verb is both transitive and intransitive; its active participle is wāqif, plural wuqūf. Hence, “He endowed his house or land for his children,” since he restricts ownership to their benefit. The endowed property itself was called waqf, using the verbal noun as its name; hence the plural awqāf, like waqt and awqāt. They say that awqafahu is used only in an inferior dialect. It is also said that waqafahu is used for what is restrained by the hand, and awqafahu for what is not so restrained. Hence, “I apprised him of his sin,” meaning that I made it known to him; the well-known form is waqaftuhu. The reported saying of the Prophet—God bless him and his family and grant them peace—“Whoever gives a gift and then wishes to reclaim it should be stopped/apprised and made to know the ugliness of his action,” may belong to either construction. In “I said to her, ‘Stop!’ and she replied, ‘Qāf,’” qāf abbreviates “I have stopped.” And “when he waqqafahu” means “when he made it known to him,” from the expression “I instructed the reciter” (waqqaftu al-qāriʾa tawqīfan), meaning that I taught him the places at which to pause.

Editorial note. The instruction sense provides lexical evidence only. The article does not define the technical dependence of a ruling on revelation. Waqf as an endowment, stopping, and instruction remain distinct senses, not interchangeable definitions.

↑ Term directory · Sources · Subject index

41. jarḥ جَرْح

In the Darūrī: Criticism of a narrator’s credibility or probity; the grounds and relative force of such criticism require assessment.

Text: §94 · §95 · §96

الجرح · jarḥ

ʿAbd al-Raʾūf al-Munāwī [L] · *al-Tawqīf ʿalā muhimmāt al-taʿārīf* · s.v. الجرح. Source ↗

أثر دم في الجلد، ويسمى القدح في الشاهد جرحا تشبيها به، وتسمى الصائدة من الكلاب والفهود والطير جارحة وجمعها جوارح أيضًا لأنها تجرح أو تكسب، وتسمى الأعضاء الكاسبة جوارح تشبيها بها لأحد هذين. وفي المصباح: جرحه بلسانه عابه وتنقصه، ومنه جرحت الشاهد إذا أظهرت فيه ما ترد به شهادته. والاجتراح اكتساب الإثم أصله من الجراحة.

A trace of blood in the skin. Impugning a witness is called jarḥ by analogy with this. Hunting dogs, cheetahs and birds are called jāriḥa, plural jawāriḥ, because they wound or acquire prey; the bodily organs by which one acquires are likewise called jawāriḥ by analogy, for one of these two reasons. In al-Miṣbāḥ: ‘He wounded him with his tongue’ means that he disparaged and belittled him. Hence ‘I impugned the witness’ means that I disclosed something in him on account of which his testimony is rejected. Ijtirāḥ is the acquisition of sin; its original sense comes from wounding.

↑ Term directory · Sources · Subject index

42. juzʾī جُزْئِيّ

In the Darūrī: Particular: an individual case or more restricted meaning relative to a universal. It is not simply a grammatical “specific expression.”

Text: §2 · §165 · §191 · §212

الجزئي الإضافي · juzʾī iḍāfī

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 488. Source ↗

Relation to glossary term: specified technical headword.

عبارة عن كل أخص تحت الأعم كالإنسان بالنسبة إلى الحيوان يسمى بذلك لأن جزئيته بالإضافة إلى شيء آخر وبإزائه الكلي الإضافي وهو الأعم من شيء والجزئي الإضافي أعم من الجزئي الحقيقي فجزء الشيء ما يتركب ذلك الشيء منه ومن غيره كما أن الحيوان جزء زيد وزيد مركب من الحيوان وغيره وهو ناطق وعلى هذا التقدير زيد يكون كلا والحيوان جزءا فإن نسب الحيوان إلى زيد يكون الحيوان كليا وإن نسب زيد إلى الحيوان يكون زيد جزئيا.

Every narrower item falling under a broader one, as the human being falls under animal. It is called this because its particularity is relative to something else. Its counterpart is the relative universal, which is broader than something. The relative particular is broader in extension than the real particular. A part of a thing is that from which, together with something else, the thing is composed. Thus animal is a part of Zayd, and Zayd is composed of animal and something else, namely rational. On this account Zayd is a whole and animal a part. When animal is related to Zayd, animal is universal; when Zayd is related to animal, Zayd is particular.

الجزئي الحقيقي · juzʾī ḥaqīqī

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 489. Source ↗

Relation to glossary term: specified technical headword.

ما يمنع نفس تصوره من وقوع الشركة كزيد ويسمى جزئيا لأن جزئية الشيء إنما هي بالنسبة إلى الكلي والكلي جزء الجزئي فيكون منسوبا إلى الجزء والمنسوب إلى الجزء جزئي وبإزائه الكلي الحقيقي.

That whose very conception prevents its being shared, as with Zayd. It is called a particular because a thing’s particularity is relative to the universal, and the universal is a part of the particular; the particular is thus related to a part, and what is related to a part is called juzʾī. Its counterpart is the real universal.

Editorial note. The source’s derivation of the terminology is translated as given; it should not be mistaken for a claim that an individual is merely a physical portion of a universal.

↑ Term directory · Sources · Subject index

43. jins جِنْس

In the Darūrī: Genus or kind: a grouping by an intelligible common feature, important in classification and in recognized suitable grounds.

Text: §185 · §217 · §224

الجنس · jins

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 514. Source ↗

اسم دال على كثيرين مختلفين بأنواع.

A name indicating many things that differ in species.

وكلي مقول على كثيرين مختلفين بالحقيقة في جواب ما هو من حيث هو كذلك فالكلي جنس وقوله مختلفين بالحقيقة يخرج النوع والخاصة والفصل القريب وقوله في جواب ما هو يخرج الفصل البعيد والعرض العام وهو قريب إن كان الجواب عن الماهية وعن بعض ما يشاركها في ذلك الجنس هو الجواب عنها وعن كل ما يشاركها فيه كالحيوان بالنسبة إلى الإنسان وبعيد إن كان الجواب عنها وعن بعض ما يشاركها فيه غير الجواب عنها وعن البعض الآخر كالجسم النامي بالنسبة إلى الإنسان.

Also: a universal predicated of many things differing in their realities, in answer to “What is it?”, considered precisely in that respect. “Universal” supplies the genus of the definition. “Differing in their realities” excludes species, property, and proximate differentia. “In answer to ‘What is it?’” excludes remote differentia and common accident. A genus is proximate when the answer concerning a quiddity and some of what shares that genus is the same as the answer concerning it and everything that shares the genus—for example, “animal” in relation to the human being. It is remote when the answer concerning the quiddity and some of what shares it differs from the answer concerning it and the remainder—for example, “growing body” in relation to the human being.

↑ Term directory · Sources · Subject index

44. ḥākim حَاكِم

In the Darūrī: One who determines or commands; in the account of legal judgement, ultimately God, with derivative human authority distinguished.

Text: §36 · §37

الحاكم · ḥākim

Muḥammad ʿAlī al-Tahānawī [L] · *Kashshāf iṣṭilāḥāt al-funūn wa-l-ʿulūm* · s.v. الحاكم. Source ↗

Relation to glossary term: exact ḥākim article, which expressly defines maḥkūm fīhi, maḥkūm ʿalayhi and mukallaf; not three invented separate articles.

عند الأصوليين والفقهاء هو الله تعالى والمحكوم عليه هو من وقع له الخطاب أي المخاطب بالفتح وهو المكلّف والمحكوم به هو ما يتعلّق به الخطاب وهو فعل المكلّف ويسمّى بالمحكوم فيه. فإذا قيل الصلاة واجبة، فالمحكوم عليه هو المكلّف والمحكوم به هو الصلاة، وهذا كما يقال حكم الأمير على زيد بكذا، وهذا بخلاف اصطلاح المنطقيين فإنهم يطلقون المحكوم عليه وبه على طرفي القضية.

For legal theorists and jurists, the one who rules is God, exalted is He. The person ruled upon is the one to whom the address comes—that is, its addressee—and is the legally responsible person. What is ruled about is that to which the address relates: the act of the legally responsible person. This is also called the matter in which the ruling is made. Thus, when one says ‘Prayer is obligatory’, the person ruled upon is the legally responsible person, and what is ruled about is prayer. This is like saying ‘The ruler adjudged such-and-such against Zayd’. This differs from the terminology of logicians, who apply ‘what is judged upon’ and ‘what is judged’ to the two terms of a proposition.

فالمحكوم عليه في المثال المذكور عندهم الصلاة والمحكوم به هو الوجوب لا فعل المكلّف وهذا ظاهر فيما هو صفة فعل المكلّف كالوجوب ونحوه، وفيما هو حكم تعليقي كالسببية ونحوها، فإنه خاطب المكلّف بأنّ فعله سبب لشيء أو شرطه أو غير ذلك. وأما فيما هو أثر لفعل المكلّف كملك الرقبة أو المتعة أو المنفعة أو ثبوت الدّين في الذمة فكون المحكوم به فعل المكلّف ليس بظاهر، بل إذا جعلنا الملك نفس الحكم فليس هاهنا ما يصلح محكوما به كذا في التلويح.

In the example just given, for logicians the subject judged upon is prayer, and the predicate judged is obligatoriness, not the legally responsible person’s act. The jurists’ account is clear where the ruling is an attribute of that person’s act, such as obligatoriness, and where it is a conditional ruling, such as causal status: the person is addressed to the effect that his act is a cause of something, a condition of it, or the like. But where the ruling is an effect of the person’s act—such as ownership of the thing itself, entitlement to conjugal enjoyment or usufruct, or the establishment of a debt as a liability—it is not evident that what is ruled about is the person’s act. Indeed, if ownership itself is taken to be the ruling, there is nothing here suitable to serve as what is ruled about. Thus in al-Talwīḥ.

↑ Term directory · Sources · Subject index

45. ḥujja حُجَّة

In the Darūrī: Authoritative evidence or argument capable of supporting a legal conclusion; its authority and degree of certainty are separate questions.

Text: §1 · §81 · §130 · §144

الحجة · ḥujja

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 81. Source ↗

ما دل به على صحة الدعوى، وقيل: الحجة والدليل واحد.

That by which the correctness of a claim is indicated. It has also been said that ḥujja and dalīl are one and the same.

↑ Term directory · Sources · Subject index

46. ḥadd حَدّ

In the Darūrī: Definition or boundary. In another context, a prescribed penalty; these senses must not be collapsed into one English rendering.

Text: §10 · §11 · §219

الحد · ḥadd

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 82. Source ↗

قول دال على ماهية الشيء، وعند أهل الله: الفصل بينك وبين مولاك، كتعبدك وانحصارك في الزمان والمكان المحدودين.

A statement indicating a thing’s quiddity. Among the people of God, it is the boundary between you and your Lord, such as your condition of servanthood and your confinement within limited time and place.

في اللغة: المنع، وفي الاصطلاح: قول يشتمل على ما به الاشتراك، وعلى ما به الامتياز.

In ordinary language: prevention or restraint. Technically: a statement comprising that in virtue of which things share a feature and that in virtue of which they are distinguished.

↑ Term directory · Sources · Subject index

47. ḥadīth حَدِيث

In the Darūrī: A transmitted report, especially one attributed to the Prophet. The discussion distinguishes its wording, content, chain and resulting degree of assent.

Text: §66 · §80 · §109 · §233

Complete article: ʿAbd al-Raʾūf al-Munāwī · ṣaḥīḥ (p. 193). complete adjacent ṣaḥīḥ articles: legal, grammatical and hadith senses, individually distinguished.

↑ Term directory · Sources · Subject index

48. ḥarām حَرَام

In the Darūrī: Forbidden: subject to legal prohibition. Whether a forbidden act is also invalid is a further issue.

Text: §17 · §28 · §206

الحرام · ḥarām

ʿ**Abd al-Raʾūf al-Munāwī** [L] · *al-Tawqīf ʿalā muhimmāt al-taʿārīf* · s.v. الحرام. Source ↗

الممنوع منه إما بتسخير إلهي أو بشري وإما بمنع من جهة العقل أو البشرية أو من جهة من يرتسم أمره.

That from which one is prevented, either through divine or human constraint, or through a prohibition arising from reason, from human nature, or from one whose command is obeyed.

Editorial note. A broad lexical definition, not a definition confined to the juristic category of prohibition. The digital witness reads البشرية; the translation preserves this as human nature rather than silently replacing it with الشريعة.

↑ Term directory · Sources · Subject index

49. ḥaraj حَرَج

In the Darūrī: Restriction, difficulty or legal impediment; removing a prohibition need not itself issue a positive recommendation.

Text: §60 · §203

الحرج · ḥaraj

ʿ**Abd al-Raʾūf al-Munāwī** [L] · *al-Tawqīf ʿalā muhimmāt al-taʿārīf* · s.v. الحرج. Source ↗

محركا، أصله مجتمع الشيء، وتصور منه الضيق فقيل للضيق حرج وللإثم حرج.

With both consonants vowelled: its original sense is the place where something gathers densely. Constriction was conceived from this; hence constriction is called ḥaraj, and sin is also called ḥaraj.

↑ Term directory · Sources · Subject index

50. ḥiss حِسّ

In the Darūrī: Sense perception. Actual sensory apprehension, not mere perceptibility, matters in the account of transmitted certainty.

Text: §15 · §45 · §77 · §78

الإحساس · iḥsās

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 49. Source ↗

Relation to glossary term: corresponding act, not identical faculty headword.

إدراك الشيء بإحدى الحواس فإن كان الإحساس للحس الظاهر فهو المشاهدات وإن كان للحس الباطن فهو الوجدانيات.

Apprehending a thing through one of the senses. When sensation belongs to an external sense, it belongs to observations; when to an internal sense, to inner awarenesses.

↑ Term directory · Sources · Subject index

51. ḥusn / qubḥ حُسْن / قُبْح

In the Darūrī: Goodness / badness: evaluative terms whose intrinsic, relational and revealed senses are distinguished at the beginning of the book.

Text: §11 · §12 · §13

الحسن · ḥusn

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 86. Source ↗

هو كون الشيء ملائما للطبع، كالفرح، وكون الشيء صفة كمال، كالعلم، وكون الشيء متعلق المدح، كالعبادات.

A thing’s being congenial to natural disposition, as with joy; its being a perfection, as with knowledge; or its being an object of praise, as with acts of worship.

وهو ما يكون متعلق المدح في العاجل والثواب في الآجل.

That which is an object of praise in the present life and of reward in the life to come.

Editorial note. These are the complete definitions under ḥusn in this witness. Qubḥ is the paired glossary term, not an additional Arabic paragraph supplied under this source attribution.

↑ Term directory · Sources · Subject index

52. ḥaṣr حَصْر

In the Darūrī: Restriction or exclusive limitation, conveyed by expressions such as innamā; its contrary implication is assessed contextually.

Text: §195

الحصر · ḥaṣr

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 87. Source ↗

عبارة عن إيراد الشيء على عدد معين.

Presenting something within a specified number of alternatives.

إما عقلي، وهو الذي يكون دائرا بين النفي والإثبات، ومنه الاحتمال العقلي فضلا عن الوجودي، كقولنا: الدلالة إما لفظي وإما غير لفظي. وإما استقرائي، وهو الذي لا يكون دائرا بين النفي والإثبات، بل يحصل بالاستقراء والتتبع، ولا يضره الاحتمال العقلي، بل يضره الوقوعي، كقولنا: الدلالة اللفظية إما وضعية وإما طبعية.

It is either rational, revolving around negation and affirmation—[the digital witness is defective at this point concerning the exclusion of further rational, and hence actual, alternatives]—as when we say that indication is either verbal or non-verbal; or inductive, which does not revolve around negation and affirmation but is obtained by induction and investigation. A merely rational possibility does not impair the latter, but an actual counter-instance does. The example given is: “Verbal indication is either conventional or natural.”

Editorial note. The reading ومنه الاحتمال العقلي فضلا عن الوجودي is problematic; it is not silently translated as an established corrected reading. The final example, as transmitted, lists only two divisions. No missing category is attributed to this witness.

↑ Term directory · Sources · Subject index

53. ḥaqīqa حَقِيقَة

In the Darūrī: Proper or literal usage, opposed to transferred or figurative usage; context determines which sense is established.

Text: §65 · §153 · §162 · §164

الحقيقة · ḥaqīqa

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 594. Source ↗

اسم أريد به ما وضع له فعيلة من حق الشيء إذا ثبت بمعنى فاعلة أي حقيق والتاء فيه للنقل من الوصفية إلى اسمية كما في العلامة لا للتأنيث وفي الاصطلاح هي الكلمة المستعملة فيما وضعت له في اصطلاح به التخاطب.

A name by which what it was assigned to is intended. It is a faʿīla form from “a thing was established,” with an active meaning, “established”; its final tā’ marks the transfer from adjectival to nominal use, as in ʿallāma, not feminine gender. Technically, it is a word used for what it was assigned to in the convention governing the discourse.

واحترز به عن المجاز الذي استعمل فيما وضع له في اصطلاح آخر غير اصطلاح التخاطب كالصلاة إذا استعملها المخاطب بعرف الشرع في الدعاء فإنها تكون مجازا لكون الدعاء غير ما وضعت هي له في اصطلاح الشرع لأنها في اصطلاح الشرع وضعت للأركان والأذكار المخصوصة مع إنها موضوعة للدعاء في اصطلاح اللغة.

This excludes figurative usage in which a word is used for what it was assigned to in a convention other than that governing the discourse. For example, when someone speaking according to revealed-law convention uses ṣalāh for supplication, it is figurative: supplication is not what the word was assigned to in that convention, where it denotes specified integral acts and recollections, even though in ordinary language it was assigned to supplication.

وكل لفظ يبقى على موضوعه. وقيل ما اصطلح الناس على التخاطب به.

Also: every expression remaining with its assigned meaning; or what people have conventionally agreed to use in addressing one another.

والشيء الثابت قطعا ويقينا يقال حق الشيء إذا ثبت وهو اسم للشيء المستقر في محله فإذا أطلق يراد به ذات الشيء الذي وضعه واضع اللغة في الأصل كاسم الأسد للبهيمة وهو ما كان قارا في محله والمجاز ما كان قارا في غير محله.

Also: a thing established decisively and certainly. One says “the thing is true” when it is established. It names a thing settled in its place; when used without qualification it means the very thing for which the institutor of language originally assigned the name, such as “lion” for the animal. Literal usage remains in its own place; figurative usage rests elsewhere.

Editorial note. This complete witness supplies the words lost in the earlier digital extract’s prayer example. The article’s separate senses remain identifiable.

↑ Term directory · Sources · Subject index

54. ḥukm حُكْم

In the Darūrī: Judgement or ruling: the legal determination concerning an act, with its author, addressee and object analysed separately.

Text: §10 · §11 · §17 · §36 · §239

الحكم · ḥukm

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 91. Source ↗

إسناد أمر إلى آخر إيجابا أو سلبا، نخرج بهذا ما ليس بحكم، كالنسبة التقييدية.

Attributing one thing to another affirmatively or negatively. This excludes what is not a judgement, such as a restrictive, non-predicative relation.

↑ Term directory · Sources · Subject index

55. khāṣṣ خَاصّ

In the Darūrī: Specific expression: wording directly designating a restricted subject, which may nevertheless indicate an intended universal through context.

Text: §165 · §191

الخاص · khāṣṣ

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 634. Source ↗

هو كل لفظ وضع لمعنى معلوم على الانفراد المراد بالمعنى الذي وضع له اللفظ عينا كان أو عرضا وبانفراد اختصاص اللفظ بذلك المعنى وإنما قيده بالانفراد ليتميز عن المشترك.

Every expression assigned to a known meaning individually. “Meaning” here is that to which the expression was assigned, whether a concrete entity or an accident; “individually” signifies the expression’s restriction to that meaning. The qualification “individually” distinguishes it from an equivocal expression.

عبارة عن التفرد يقال فلان خص بكذا أي أفرد به ولا شركة للغير فيه.

Also: singleness or exclusive possession. One says that a person was singled out for something, meaning that it was allotted to him alone and no one else shares it.

↑ Term directory · Sources · Subject index

56. khabar خَبَر

In the Darūrī: Report: a communicated assertion assessed through its source, wording and evidential consequences.

Text: §66 · §74 · §80 · §109

الخبر · khabar

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 638. Source ↗

لفظ مجرد عن العوامل اللفظية مسند إلى ما تقدمه لفظا نحو زيد قائم أو تقديرا نحو أقائم زيد وقيل الخبر ما يصح السكوت عليه وهو الكلام المحتمل للصدق والكذب.

An expression free of overt verbal governors, predicated of something that precedes it either in utterance, as in “Zayd is standing,” or in the underlying construction, as in “Is Zayd standing?” It has also been said that a khabar is something after which one may appropriately fall silent. It is discourse admitting truth or falsehood.

وخبر إن وأخواتها هو المسند بعد دخول إن وأخواتها والخبر على ثلاثة أقسام خبر متواتر وخبر مشهور وخبر واحد.

The predicate of inna and its sisters is what is predicated after the introduction of inna or one of its sisters. Reports are of three kinds: massively transmitted, widely transmitted, and solitary.

أما الخبر المتواتر فهو كلام يسمعه من رسول الله جماعة ومنها جماعة أخرى إلى أن ينتهي إلى المتمسك.

A massively transmitted report is discourse heard from God’s Messenger by a group, and from that group by another group, continuing until it reaches the person relying upon it.

وأما الخبر المشهور فهو كلام يسمعه من رسول الله صلى الله عليه وسلم واحد ويسمعه من الواحد جماعة ومن تلك الجماعة أيضا جماعة إلى أن ينتهي إلى المتمسك والفرق هو أن جاحد الخبر المتواتر يكون كافرا بالاتفاق وجاحد الخبر المشهور مختلف فيه والأصح أن يكفر وجاحد خبر الواحد لا يكون كافرا بالاتفاق.

A widely transmitted report is discourse heard from God’s Messenger, peace and blessings be upon him, by one person, from whom a group hears it, and from that group another group, continuing until it reaches the person relying upon it. The difference, according to this passage, is that denying a massively transmitted report constitutes unbelief by agreement; the status of one who denies a widely transmitted report is disputed, the view here called sounder being that it constitutes unbelief; denying a solitary report does not constitute unbelief by agreement.

Editorial note. These judgements are the historical source’s formulation, not declarations about any living person. The separate article “massively transmitted report” below preserves a different qualification regarding denial of a widely transmitted report; the difference is not harmonized away.

↑ Term directory · Sources · Subject index

57. khabar al-wāḥid خَبَر الْوَاحِد

In the Darūrī: Solitary report: a report not attaining the certainty of mass transmission; “solitary” does not necessarily mean only one transmitter at every stage.

Text: §79 · §81 · §83 · §112

خبر الواحد · khabar al-wāḥid

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 644. Source ↗

هو الحديث الذي يرويه الواحد أو الاثنان فصاعدا ما لم يبلغ الشهرة والتواتر.

A report transmitted by one person, two, or more, provided that it has not reached the level of wide transmission or massive transmission.

↑ Term directory · Sources · Subject index

58. khaṭa’ خَطَأ

In the Darūrī: Error: failure to attain the true ruling or perform correctly. It can be pardoned without becoming correctness.

Text: §237 · §243 · §244 · §245

الخطأ · khaṭa’

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 659. Source ↗

هو ما ليس للإنسان فيه قصد وهو عذر صالح لسقوط حق الله تعالى إذا حصل عن اجتهاد ويصير شبهة في العقوبة حتى لا يؤثم الخاطئ ولا يؤاخذ بحد ولا قصاص ولم يجعل عذرا في حق العباد حتى وجب عليه ضمان العدوان ووجبت به الدية كما إذا رمى شخصا ظنه صيدا أو حربيا فإذا هو مسلم أو غرضا فأصاب آدميا وما جرى مجراه كنائم ثم انقلب على رجل فقتله.

That in which a person has no intention. When it arises from conscientious judgement, it is an excuse capable of removing a claim belonging to God, exalted is He, and introduces doubt concerning punishment, so that the mistaken person is not held sinful or subjected to a prescribed penalty or retaliation. It is not made an excuse with respect to the rights of created persons: compensation for the injury remains due, and blood-money is required. For example, someone shoots at a person whom he supposes to be game or an enemy combatant, but who turns out to be a Muslim; or shoots at a target but hits a human being. Comparable cases include a sleeping person who rolls over upon a man and kills him.

Editorial note. A historical legal definition, not advice for deciding a contemporary criminal or compensation case.

↑ Term directory · Sources · Subject index

59. khiṭāb خِطَاب

In the Darūrī: Address or discourse: the Lawgiver’s communication as directed to an addressee concerning an act; context is constitutive of understanding.

Text: §11 · §36 · §38 · §239

خطب · khaṭaba

al-Rāghib al-Iṣfahānī [E] · *al-Mufradāt fī gharīb al-Qur’ān* · s.v. خطب. Source ↗

Relation to glossary term: complete root article; technical compound is not an independent headword.

الخَطْبُ والمُخَاطَبَة والتَّخَاطُب: المراجعة في الكلام، ومنه: الخُطْبَة والخِطْبَة لكن الخطبة تختصّ بالموعظة، والخطبة بطلب المرأة قال تعالى: وَلا جُناحَ عَلَيْكُمْ فِيما عَرَّضْتُمْ بِهِ مِنْ خِطْبَةِ النِّساءِ [البقرة/235]، وأصل الخطبة: الحالة التي عليها الإنسان إذا خطب نحو الجلسة والقعدة، ويقال من الخُطْبَة: خاطب وخطيب، ومن الخِطْبَة خاطب لا غير، والفعل منهما خَطَبَ.

Khaṭb, mukhāṭaba and takhāṭub mean an exchange of speech. From this come khuṭba and khiṭba: khuṭba is specifically an admonitory address, while khiṭba is seeking a woman in marriage. God says: “There is no blame upon you for what you intimate concerning proposals to women” [Q 2:235]. The original sense of khiṭba is the state of a person when proposing, like jalsa and qaʿda [a manner of sitting]. For khuṭba one says khāṭib or khaṭīb; for khiṭba one says only khāṭib. The verb in both cases is khaṭaba.

والخَطْبُ: الأمر العظيم الذي يكثر فيه التخاطب، قال تعالى: فَما خَطْبُكَ يا سامِرِيُّ [طه/95]، فَما خَطْبُكُمْ أَيُّهَا الْمُرْسَلُونَ [الذاريات/31]، وفصل الخِطَاب: ما ينفصل به الأمر من الخطاب.

Khaṭb also means a momentous affair concerning which much discussion occurs. God says: “What is your affair, O Sāmirī?” [Q 20:95] and “What is your affair, O messengers?” [Q 51:31]. Faṣl al-khiṭāb is speech by which an affair is decisively resolved.

Editorial note. Khuṭba (address) and khiṭba (marriage proposal) are distinguished in the translation even where the digital text leaves the repeated spelling unvowelled. This lexical root article does not itself supply Ibn Rushd’s complete legal definition of divine address.

↑ Term directory · Sources · Subject index

60. dalāla دَلَالَة

In the Darūrī: Indication or signification: the relation by which words, understood meanings, acts or approval make a ruling intelligible.

Text: §148 · §149 · §150 · §193

الدلالة · dalāla

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 103. Source ↗

هي كون الشيء بحالة يلزم من العلم به العلم بشيء آخر، والشيء الأول هو الدال، والثاني هو المدلول، وكيفية دلالة اللفظ على المعنى باصطلاح علماء الأصول محصورة في عبارة النص، وإشارة النص، ودلالة النص، واقتضاء النص. ووجه ضبطه أن الحكم المستفاد من النظم إما أن يكون ثابتا بنفس النظم، أو لا، والأول: إن كان النظم مسوقا له، فهو العبارة، وإلا فالإشارة، والثاني: إن كان الحكم مفهوما من اللفظ لغة فهو الدلالة، أو شرعا فهو الاقتضاء، فدلالة النص عبارة عما ثبت بمعنى النص لغة لا اجتهادا. فقوله: لغة، أي يعرفه كل من يعرف هذا اللسان بمجرد سماع اللفظ من غير تأمل، كالنهي عن التأفيف في قوله تعالى: {فلا تقل لهما أف} ، يوقف به على حرمة الضرب وغيره مما فيه نوع من الأذى بدون الاجتهاد.

A thing’s being in such a state that knowing it entails knowing something else. The first thing is the indicator, and the second is what is indicated. In the terminology of the scholars of legal theory, the ways in which an expression indicates a meaning are confined to the text’s direct expression, its allusion, its implication, and its required presupposition. The classification is controlled as follows: a ruling understood from the wording is either established by the wording itself or is not. In the first case, if the wording is directed towards it, this is direct expression; otherwise it is allusion. In the second case, if the ruling is understood from the expression through language, this is implication; if through revealed law, it is a required presupposition. The text’s implication thus denotes what is established by its meaning linguistically, not by juristic exertion. “Linguistically” means that anyone who knows the language recognizes it merely by hearing the expression, without reflection. For example, the prohibition of saying “uff” in His statement, “Do not say ‘uff’ to them” [Q 17:23], makes one aware, without juristic exertion, of the prohibition of striking them and of other forms of injury.

Editorial note. The fourfold classification is the author’s later technical scheme. It must not be substituted without argument for Ibn Rushd’s own arrangement of indication.

↑ Term directory · Sources · Subject index

61. dalīl دَلِيل

In the Darūrī: Evidence, indicator or proof. Its strength may be conclusive or probable; “proof” does not always mean logical demonstration.

Text: §62 · §74 · §81 · §241

الدليل · dalīl

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 103. Source ↗

في اللغة هو المرشد، وما به الإرشاد، وفي الاصطلاح: هو الذي يلزم من العلم به العلم بشيء آخر. وحقيقة الدليل، هو ثبوت الأوسط للأصغر، واندراج الأصغر تحت الأوسط.

In ordinary language it means a guide, or that by which guidance is given. Technically, it is that whose being known entails knowledge of something else. The reality of a proof is the establishment of the middle term for the minor term and the inclusion of the minor under the middle.

↑ Term directory · Sources · Subject index

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62. dalīl al-khiṭāb دَلِيل انْخِطَاب

In the Darūrī: Contrary implication inferred from a restriction, condition or qualification. Its force depends on context, not form alone.

Text: §193 · §195

مفهوم المخالفة · mafhūm al-mukhālafa

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1444. Source ↗

Relation to glossary term: named technical counterpart.

هو ما يفهم منه بطريق الالتزام وقيل هو أن يثبت الحكم في المسكوت على خلاف ما ثبت في المنطوق.

What is understood by implication. It is also said to be establishing a ruling concerning what is unmentioned contrary to the ruling established concerning what is expressed.

Editorial note. The first formulation is broader than the second. Both are the dictionary’s formulations. Dalīl al-khiṭāb is an editorial cross-reference to this actual headword.

↑ Term directory · Sources · Subject index

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63. rāwī رَاوٍ

In the Darūrī: Narrator or transmitter. Reception, retention, probity, attribution and denial are separate aspects of assessment.

Text: §83 · §85 · §94 · §107

روي · r-w-y

al-Muṭarrizī [L] · *al-Mughrib fī tartīb al-Muʿrib* · root روى. Source ↗

Relation to glossary term: complete root article, including the report-transmitter sense.

الري بالكسر خلاف العطش يقال روي من الماء فهو ريان وهي ريا وهم وهن رواء. والراوية المزادة من ثلاثة جلود، ومنها قوله اشترى راوية فيها ماء وشق راوية لرجل، وفي السير ظفروا بروايا فيها ماء، وأصلها بعير السقاء لأنه يروي الماء أي يحمله. ومنه راوي الحديث وراويته والتاء للمبالغة، يقال روى الحديث والشعر رواية ورويته إياه حملته على روايته، ومنه إنا روينا في الأخبار.

Riyy, with kasra, is the opposite of thirst. One says rawiya min al-māʾ, “he drank his fill of water”; the masculine adjective is rayyān, the feminine rayyā, and the masculine and feminine plural riwāʾ. A rāwiya is a waterskin made of three hides. Hence the statements “He bought a rāwiya containing water,” “He slit a man’s rāwiya,” and, in al-Siyar, “They captured rawāyā containing water.” Originally it meant the water-carrier’s camel, because it yarwī the water—that is, carries it. From this comes “transmitter of a report,” rāwī al-ḥadīth, and its intensive form rāwiya, whose tāʾ marks intensity. One says rawā al-ḥadītha wa-l-shiʿra riwāyatan, “he transmitted the report and poetry”; rawwaytuhu iyyāhu means “I caused him to transmit it.” Hence: “We were given to transmit in the reports” (innā ruwwīnā fī l-akhbār).

↑ Term directory · Sources · Subject index

64. rukhṣa رُخْصَة

In the Darūrī: Concession: a legally warranted relaxation under an impediment or need; not mere indulgence outside the Law.

Text: §58 · §60

الرخصة · rukhṣa

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 719. Source ↗

في اللغة اليسر والسهولة وفي الشريعة اسم لما شرع متعلقا بالعوارض أي ما استبيح بعذر مع قيام الدليل المحرم وقيل هي ما بني أعذار العباد عليه.

In ordinary language: ease and facility. In revealed law: the name of what is legislated in relation to incidental circumstances—that is, what is permitted because of an excuse despite the continuing presence of the prohibiting proof. It is also said to be that upon which people’s excuses are founded.

↑ Term directory · Sources · Subject index

65. ziyāda زِيَادَة

In the Darūrī: Addition: extra wording in a report, an added legal requirement, or linguistic surplus; these distinct contexts have different rules.

Text: §108 · §118 · §154

الزيادة · al-ziyāda

ʿAbd al-Raʾūf al-Munāwī [L] · *al-Tawqīf ʿalā muhimmāt al-taʿārīf* · s.v. الزيادة. Source ↗

استحداث أمر لم يكن في موجود الشيء، قاله الحرالي. وقال الراغب: أن ينضم إلى ما عليه الشيء في نفسه شيء آخر، وذلك قد تكون تارة مذمومة كالزيادة على الكفاية كزائد الأصابع أو قوائم الدابة، وقد تكون محمودة نحو {للذين أحسنوا الحسنى وزيادة}، وهي النظر إلى وجه الله تعالى.

The introduction of something that was not present in the thing’s existing state, according to al-Ḥarāllī. Al-Rāghib says: the joining of something else to what the thing already has in itself. This can sometimes be blameworthy, as with an addition beyond sufficiency, such as extra fingers or extra legs on an animal. It can also be praiseworthy, as in “For those who do good there is the fairest reward and an increase” [Q 10:26]; the increase is beholding the face of God Most High.

↑ Term directory · Sources · Subject index

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66. sibār سِبَار

In the Darūrī: Probe or testing instrument: the opening image for a discipline that guides the mind. It is not the name of a separate metaphysical science.

Text: §2

سبر · sabr / sibr / sibār

Ibn Manẓūr [L] · *Lisān al-ʿArab* · 7:108–109. Source ↗

Relation to glossary term: full root article; includes sibār explicitly.

السبر: التجربة سبر الشيء سبرا حزره وخبره. واسبر لي ما عنده أي اعلمه، والسبر: استخراج كنه الأمر. والسبر: مصدر سبر الجرح يسبره ويسبره سبرا نظر مقداره وقاسه ليعرف غوره، ومسبرته: نهايته. وفي حديث الغار: قال له أبو بكر: لا تدخله حتى أسبره قبلك أي أختبره وأعتبره وأنظر هل فيه أحد أو شيء يؤذي. والمسبار والسبار ما سبر به وقدر به غور الجراحات؛ قال يصف جرحها: ترد السبار على السابر. التهذيب: والسبار فتيلة تجعل في الجرح؛ وأنشد: ترد على السابري السبارا.

Sabr means testing. Sabara al-shayʾa sabran means that he estimated and examined a thing. Usbur lī mā ʿindahu means: ascertain for me what he has. Sabr also means bringing out the innermost nature of a matter. It is the verbal noun of sabara al-jurḥa, with either yasburu or yasbiru: he examined and measured a wound to discover its depth. Its masbara is its farthest extent. In the report about the cave, Abū Bakr said to him, “Do not enter it until I have examined it before you”: that is, tested and inspected it, looking to see whether it contained anyone or anything harmful. Misbār and sibār are instruments used to probe and measure the depth of wounds. A poet, describing her wound, says: “It sends the probe back against the one probing.” Al-Tahdhīb says that sibār is a wick placed in a wound, and quotes: “It sends the probe back against the prober.”

وكل أمر زرته فقد سبرته وأسبرته. يقال: حمدت مسبره ومخبره. والسبر والسبر: الأصل واللون والهيئة والمنظر. قال أبو زياد الكلابي: وقفت على رجل من أهل البادية بعد منصرفي من العراق فقال: أما اللسان فبدوي، وأما السبر فحضري؛ قال: السبر، بالكسر، الزي والهيئة. قال: وقالت بدوية أعجبنا سبر فلان أي حسن حاله وخصبه في بدنه، وقالت: رأيته سيئ السبر إذا كان شاحبا مضرورا في بدنه، فجعلت السبر بمعنيين، ويقال: إنه لحسن السبر إذا كان حسن السحناء والهيئة؛ والسحناء: اللون.

Any matter you have visited [the digital witness reads zurtahu] you have probed or investigated. One says: “I approved what testing and examination disclosed about him.” Sibr and sabr mean origin, complexion, appearance, and outward aspect. Abū Ziyād al-Kilābī said: “After returning from Iraq I stopped beside a Bedouin, who said: ‘Your speech is Bedouin, but your appearance is urban.’” Sibr, with kasra, means dress and appearance. A Bedouin woman said: “We admired so-and-so’s sibr,” meaning his good condition and bodily flourishing; she said, “I saw him with poor sibr,” when he was pale and physically afflicted. Thus she used sibr in two senses. Someone is said to have good sibr when his complexion and appearance are good; saḥnāʾ means complexion.

وفي الحديث: يخرج رجل من النار وقد ذهب حبره وسبره؛ أي هيئته. والسبر: حسن الهيئة والجمال؛ وفلان حسن الحبر والسبر إذا كان جميلا حسن الهيئة؛ قال الشاعر: أنا ابن أبي البراء، وكل قوم لهم من سبر والدهم رداء / وسبري أنني حر نقي وأني لا يزايلني الحياء.

In a report: “A man will emerge from the Fire after his ḥibr and sibr have disappeared”—that is, his appearance. Sibr means beauty and a fine appearance. A person has good ḥibr and sibr when he is handsome and well-looking. The poet says: “I am the son of Abū al-Barāʾ; every people wears a cloak of its father’s character. / My character is that I am free-born and unstained, and modesty never leaves me.”

والمسبور: الحسن السبر. وفي حديث الزبير أنه قيل له: مر بنيك حتى يتزوجوا في الغرائب فقد غلب عليهم سبر أبي بكر ونحوله؛ قال ابن الأعرابي: السبر هاهنا الشبه، قال: وكان أبو بكر دقيق المحاسن نحيف البدن فأمره الرجل أن يزوجهم الغرائب ليجتمع لهم حسن أبي بكر وشدة غيره. ويقال: عرفته بسبر أبيه أي بهيئته وشبهه؛ وقال الشاعر: أنا ابن المضرحي أبي شليل وهل يخفى على الناس النهار؟ / علينا سبره، ولكل فحل على أولاده منه نجار.

Masbūr means someone of fine sibr. In the report about al-Zubayr, he was told: “Tell your sons to marry outside their kin, for Abū Bakr’s appearance and slenderness have become predominant in them.” Ibn al-Aʿrābī explained that sibr here means resemblance. Abū Bakr had delicate features and a slender body; the man therefore told him to have his sons marry outsiders, so that their descendants might combine Abū Bakr’s beauty with others’ strength. One says: “I recognized him by his father’s sibr,” meaning his appearance and resemblance. The poet says: “I am the son of the noble Abū Shulayl; can daylight be hidden from people? / His appearance is upon us: every sire leaves upon his offspring a stamp of his own stock.”

والسبر أيضا: ماء الوجه، وجمعها أسبار. والسبر والسبر: حسن الوجه. والسبر: ما استدل به على عتق الدابة أو هجنتها. أبو زيد: السبر ما عرفت به لؤم الدابة أو كرمها أو لونها من قبل أبيها. والسبر أيضا: معرفتك الدابة بخصب أو بجدب. والسبرات: جمع سبرة وهي الغداة الباردة بسكون الباء، وقيل: هي ما بين السحر إلى الصباح، وقيل: ما بين غدوة إلى طلوع الشمس.

Sibr also means the lustre of the face; its plural is asbār. Sibr and sabr mean facial beauty. Sibr is an indication by which an animal's pure breeding or mixed breeding is inferred. Abū Zayd says it is what enables one to recognize an animal's inferior or noble breeding, or its colour as inherited from its sire. It also means recognizing whether an animal is well-fed or undernourished. Sabarāt is the plural of sabra—with the bā' unvowelled—a cold morning. Some say it is the interval between the last part of the night and morning; others, between early morning and sunrise.

وفي الحديث: فيم يختصم الملأ الأعلى يا محمد؟ فسكت ثم وضع الرب تعالى يده بين كتفيه فألهمه إلى أن قال: في المضي إلى الجمعات وإسباغ الوضوء في السبرات، وقال الحطيئة: عظام مقيل الهام غلب رقابها يباكرن حد الماء في السبرات. يعني شدة برد الشتاء والسنة.

In a report: "Over what does the highest assembly dispute, Muḥammad?" He remained silent; then the Lord Most High placed His hand between his shoulders and inspired him, until he said: "Over going to the Friday congregations and completing ablution on cold mornings." Al-Ḥuṭay'a said: "Large at the resting-place of their heads, thick-necked, they meet the water's cutting cold early on chilly mornings." He means the severity of the cold in winter and a year of hardship.

وفي حديث زواج فاطمة عليها السلام فدخل عليها رسول الله، صلى الله عليه وسلم، في غداة سبرة، وسبرة بن العوال مشتق منه، والسبر من أسماء الأسد، وقال المؤرج في قول الفرزدق: بجنبي خلال يدقع الضيم منهم خوادر في الأخياس، ما بينها سبر. قال: معناه ما بينها عداوة. قال: والسبر العداوة، قال: وهذا غريب.

In the report of Fāṭima's marriage, peace be upon her: the Messenger of God, God bless him and grant him peace, entered her room on a cold morning. The name Sabra ibn al-ʿAwwāl is derived from this. Sibr is also a name for the lion. Al-Mu'arrij, discussing al-Farazdaq's verse, "On the two sides of Khilāl, lions concealed in thickets repel oppression from among them; there is no sibr between them," said that this means there is no hostility between them. Sibr means hostility; he added that this usage is rare.

وفي الحديث: لا بأس أن يصلي الرجل وفي كمه سبورة، قيل: هي الألواح من الساج يكتب فيها التذاكير، وجماعة من أصحاب الحديث يروونها ستورة، قال: وهو خطأ. والسبرة: طائر تصغيره سبيرة، وفي المحكم السبر: طائر دون الصقر، وأنشد الليث: حتى تعاوره العقبان والسبر.

In a report: there is no harm in a man praying with a sabbūra in his sleeve. These are said to be teak tablets on which memoranda are written. A number of transmitters read it as sattūra; he says this is an error. Sabra is a bird, whose diminutive is subayra. In al-Muḥkam, sibr is a bird smaller than a falcon. Al-Layth quotes: "Until the eagles and the sibr took turns assailing it."

والسابري من الثياب الرقاق؛ قال ذو الرمة: فجاءت بنسج العنكبوت كأنه على عصويها، سابري مشبرق. وكل رقيق: سابري. وعرض سابري: رقيق، ليس بمحقق، وفي المثل عرض سابري؛ يقوله من يعرض عليه الشيء عرضا لا يبالغ فيه لأن السابري من أجود الثياب يرغب فيه بأدنى عرض؛ قال الشاعر: بمنزلة لا يشتكي السل أهلها وعيش كمثل السابري رقيق.

Sābirī is a kind of fine cloth. Dhū al-Rumma says: “She brought a spider’s weaving, as though on her two little sticks it were a sābirī fabric torn to shreds.” Anything fine is called sābirī. An ʿarḍ sābirī is a slight offer, not one made insistently. In the proverb, “a sābirī offer,” the speaker is someone to whom a thing is offered without much insistence: sābirī is among the finest fabrics and attracts desire with the slightest offer. The poet says: “In a dwelling whose people do not complain of consumption, with a life as delicate as sābirī cloth.”

وفي حديث حبيب بن أبي ثابت: رأيت على ابن عباس ثوبا سابريا أستشف ما وراءه. كل رقيق عندهم: سابري، والأصل فيه الدروع السابرية منسوبة إلى سابور. والسابري: ضرب من التمر؛ يقال: أجود تمر الكوفة النرسيان والسابري. والسبرور: الفقير كالسبروت؛ حكاه أبو علي؛ وأنشد: تطعم المعتفين مما لديها من جناها والعائل السبرورا. قال ابن سيده: فإذا صح هذا فتاء سبروت زائدة.

Ḥabīb ibn Abī Thābit reported: “I saw Ibn ʿAbbās wearing a sābirī garment through which I could see.” They call anything fine sābirī. The original expression is “Sāburian shirts of mail,” named after Sābūr. Sābirī is also a kind of date: it is said that the finest dates of Kufa are narsiyān and sābirī. Sabrūr means a poor person, like sabrūt. Abū ʿAlī records it and cites: “She feeds those who seek her gifts from the fruit she has gathered, and the needy, destitute man.” Ibn Sīda says: if this is sound, the tāʾ in sabrūt is additional.

وسابور: موضع أعجمي معرب؛ وقوله: ليس بجسر سابور أنيس يؤرقه أنينك، يا معين. يجوز أن يكون اسم رجل وأن يكون اسم بلد. والسبارى: أرض؛ قال لبيد: درى بالسبارى حبة إثر مية مسطعة الأعناق بلق القوادم.

Sābūr is a foreign place-name adapted into Arabic. In the verse, “At Sābūr’s bridge there is no companion whom your groaning keeps awake, Muʿīn,” it can be a man’s name or a town’s name. Al-Subārā is a tract of land. Labīd says: “[Birds] at al-Subārā, a grain after a hundred [the opening words are textually uncertain], their necks raised, their foremost flight-feathers variegated.”

Editorial note. This is the complete root article, not a selected medical or methodological excerpt. The instrument sibār, the act sabr, bodily appearance, cold mornings and other senses remain distinct. The witness reads zurtahu (“visited it”) where lexical context suggests ruztahu (“tested it”); no unmarked emendation is made. The final verse’s first hemistich is textually uncertain: the literal English rendering is provisional. The reported traditions are translated as lexical witnesses, without a separate authentication judgement. Sabr wa-taqsīm as a technical inferential procedure requires its own technical entry and is not identified with every root sense.

↑ Term directory · Sources · Subject index

67. sabab سَبَب

In the Darūrī: Cause, occasion or sign. A legal cause may manifest a ruling without producing it as a physical cause produces an effect.

Text: §54 · §55 · §176

السبب · sabab

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 769. Source ↗

في اللغة اسم لما يتوصل به إلى المقصود وفي الشريعة عبارة عما يكون طريقا للوصول إلى الحكم غير مؤثر فيه والسبب التام هو الذي يوجد المسبب بوجوده فقط والسبب الثقيل هو حرفان متحركان نحو لك ولم والسبب الخفيف هو متحرك بعده ساكن نحو قم ومن والسبب الغير التام هو الذي يتوقف وجود المسبب عليه لكن لا يوجد المسبب بوجوده فقط.

In ordinary language: the name of what enables an intended end to be reached. In revealed law: what constitutes a route to a ruling without itself producing it. A complete cause is one through whose existence alone the caused thing exists. In prosody, a heavy sabab comprises two vowelled letters, as in laka and lima; a light sabab comprises a vowelled letter followed by a quiescent one, as in qum and min. An incomplete cause is something upon which the caused thing's existence depends, although the latter does not exist through its presence alone.

↑ Term directory · Sources · Subject index

68. sabr wa-taqsīm سَبْر وَتَقْسِيم

In the Darūrī: Testing and division: enumerating and examining candidates for a relevant ground, then eliminating those not warranted.

Text: §220 · §221

Complete article: Ibn Manẓūr · sabr / sibr / sibār (p. 187). full root article; includes sibār explicitly.

↑ Term directory · Sources · Subject index

69. sunna سُنَّة

In the Darūrī: Prophetic normative teaching and practice; "it is Sunna" as a transmission formula must be assessed for its source and scope.

Text: §66 · §71 · §114

السنة · sunna

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 805. Source ↗

في اللغة الطريقة مرضية كانت أو غير مرضية والعادة وفي الشريعة هي الطريقة المسلوكة في الدين من غير افتراض وجوب فالسنة ما واظب النبي ص - عليها مع الترك أحيانا فإن كانت المواظبة المذكورة على سبيل العبادة فسنن الهدى وإن كانت على سبيل العادة فسنن الزوائد.

In ordinary language: a way, whether approved or not, and a habit. In revealed law: a way followed in religion without an imposed obligation. A sunna is what the Prophet practised regularly while sometimes omitting it. If that regular practice was devotional, these are the practices of guidance; if habitual, they are supplementary practices.

فسنة الهدى ما يكون إقامتها تكميلا للدين وهي التي تتعلق بتركها كراهة أو إساءة وسنة الزوائد هي التي أخذها هدى أي إقامتها حسنة ولا يتعلق بتركها كراهة ولا إساءة كسير النبي ص - في قيامه وقعوده ولباسه وأكله.

A practice of guidance is one whose observance completes religion and whose omission involves disapproval or blame. A supplementary practice is one whose adoption is guidance—that is, whose observance is good—but whose omission involves neither disapproval nor blame, such as the Prophet's manner of standing, sitting, dressing, and eating.

وهي مشترك بين ما صدر عن النبي ص - من قول أو فعل أو تقرير وبين ما واظب النبي ص - عليه بلا وجوب وهي نوعان.

The word is shared between what proceeds from the Prophet as statement, action, or approval, and what he regularly performed without obligation. It is of two kinds:

سنة هدى ويقال لها السنة المؤكدة كالأذان والإقامة والسنن والرواتب والمضمضة والاستنشاق على رأي وحكمه كالواجب المطالبة في الدنيا إلا أن تاركه يعاقب وتاركها لا يعاقب وسنن الزوائد كأذان المنفرد والسواك والأفعال المعهودة في الصلاة وفي خارجها وتاركها غير معاقب.

A practice of guidance, also called an emphasized sunna, such as the call to prayer, the commencement call, regular supererogatory prayers, and—according to one view—rinsing the mouth and nose. Its ruling resembles the obligatory in being demanded in this world, except that one who omits the obligatory is punished whereas one who omits it is not. Supplementary practices include the call to prayer by someone praying alone, using the tooth-stick, and familiar acts within and outside prayer; their omission is not punished.

Editorial note. These are the dictionary's school-specific formulations, not a universal statement of every madhhab's classification.

↑ Term directory · Sources · Subject index

70. shubha شُبْهَة

In the Darūrī: Ground of uncertainty or apparent likeness. Its exact force varies between evidential doubt and a proposed analogy.

Text: §92 · §218 · §238

الشبهة · shubha

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 815. Source ↗

هو ما لم يتيقن كونه حراما أو حلالا.

That of which it is not certain whether it is prohibited or lawful.

↑ Term directory · Sources · Subject index

71. sharṭ شَرْط

In the Darūrī: Condition: a qualification for a legal ruling or valid performance; not every legal condition is a condition of physical possibility.

Text: §23 · §49 · §50 · §56 · §195

الشرط · sharṭ

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 822. Source ↗

تعليق شيء بشيء بحيث إذا وجد الأول وجد الثاني وقيل الشرط ما يتوقف عليه وجود الشيء ويكون خارجا عن ماهيته ولا يكون مؤثرا في وجوده وقيل الشرط ما يتوقف ثبوت الحكم عليه.

Making one thing depend upon another so that, when the first exists, the second exists. It is also said to be that upon which a thing's existence depends, while lying outside its quiddity and not producing its existence; or that upon which establishment of a ruling depends.

وفي اللغة عبارة عن العلامة ومنه أشراط الساعة والشروط في الصلاة وفي الشريعة عبارة عما يضاف الحكم إليه وجودا عند وجوده لا وجوبا.

In ordinary language: a sign, whence the signs of the Hour and the conditions of prayer. In revealed law: that to which a ruling is related in respect of its occurring when the condition occurs, not as something that necessitates it.

Editorial note. These distinct formulations should not be compressed into one modern necessary-and-sufficient-condition definition.

↑ Term directory · Sources · Subject index

72. shar‘ شَرْع

In the Darūrī: Revealed Law or revelation as normative authority; distinguish its address from the jurist’s reconstruction of a ruling.

Text: §11 · §13 · §37 · §239

الشرع · shar‘

al-Sharīf al-Jurjānī [L] · *Kitāb al-Ta‘rīfāt* · online entry 824. Source ↗

في اللغة عبارة عن البيان والإظهار يقال شرع الله كذا أي جعله طريقا ومذهبا ومنه المشرعة.

In ordinary language: clarification and making manifest. One says “God legislated such-and-such,” meaning that He made it a path and a way. From the same root comes mashra‘a, an access to water.

↑ Term directory · Sources · Subject index

73. ṣaḥīḥ / ṣiḥḥa صَحِيح / صِحَّة

In the Darūrī: Valid / validity; also soundness of a report in transmission. The intended legal or hadith sense must be specified.

Text: §56 · §93 · §205

الصحة · ṣiḥḥa

‘**Abd al-Raʾūf al-Munāwī** [L] · *al-Tawqīf ‘alā muhimmāt al-ta‘ārīf* · s.v. الصحة. Source ↗

حالة أو ملكة بها تصدر الأفعال عن موضعها سليمة. وعند الفقهاء: موافقة الفعل ذي الوجهين وقوعا الشرع وأن تسقط القضاء. وقيل الصحة في العبادة: إسقاط القضاء وفي المصباح: الصحة في البدن حالة طبيعية تجري أفعاله على المجرى الطبيعي، وقد استعيرت الصحة للمعاني فقيل صحت الصلاة إذا أسقطت القضاء، وصح العقد إذا ترتب عليه أثره وصح القول إذا طابق الواقع.

A state or settled capacity by which actions issue soundly from their proper seat. For jurists, it is an act capable of occurring in either of two ways conforming to the Law, and its removing the requirement of make-up performance. It is also said that validity in worship means removal of make-up performance. In al-Miṣbāḥ: health in the body is a natural state in which its functions follow their natural course. Soundness has been extended metaphorically to meanings: a prayer is said to be valid when it removes the requirement of make-up performance; a contract is valid when its legal effect follows from it; and a statement is sound when it corresponds to reality.

Editorial note. The juristic sentence is syntactically compressed in this digital witness; “either of two ways” refers to conformity or nonconformity to the Law. The article reports several definitions rather than declaring them interchangeable.

الصحيح · ṣaḥīḥ

‘**Abd al-Raʾūf al-Munāwī** [L] · *al-Tawqīf ‘alā muhimmāt al-ta‘ārīf* · s.v. الصحيح. Source ↗

Relation to glossary term: complete adjacent ṣaḥīḥ articles: legal, grammatical and hadith senses, individually distinguished.

عند أهل الأصول: ما يتعلق به النفوذ ويعتد به.

For the legal theorists, that to which legal efficacy attaches and of which account is taken.

الصحيح عند النحاة: اسم ليس في آخره حرف علة.

For grammarians, a sound noun is a noun whose final letter is not a weak letter.

الصحيح لذاته من الحديث: هو ما يشتمل من صفات القبول على أعلاها بأن ينقله عدل تمام الضبط متصل السند غير معلل ولا شاذ. وتتفاوت رتبه بسبب تفاوت هذه الأوصاف في القوة فإن خف الضبط وتكثرت طرقه فهو الصحيح لغيره.

A report sound in itself is one possessing the highest conditions of acceptance: it is transmitted by an upright narrator of complete precision, with a continuous chain, without a hidden defect and without anomalous opposition. Its grades differ according to the differing strength of these characteristics. Where precision is lighter but its transmission routes are numerous, it is sound through corroboration.

↑ Term directory · Sources · Subject index

74. ṣalāḥ صَلَاح

In the Darūrī: Welfare, right ordering or fitness; its appearance in a proposed rationale must be disciplined by the Law’s recognition.

Text: §19 · §146 · §217

الصلاح · ṣalāḥ

ʿAbd al-Raʾūf al-Munāwī [L] · *al-Tawqīf ʿalā muhimmāt al-taʿārīf* · s.v. الصلاح. Source ↗

ضد الفساد، ويختصان في أكثر الاستعمال بالأفعال، وقوبل في القرآن تارة بالفساد وأخرى بالتشبيه.

The contrary of corruption. In most usage both are particularly applied to actions. In the Qurʾān, it is contrasted at one time with corruption and at another with [bad action].

Editorial note. The digital witness reads بالتشبيه (“with comparison”), which does not fit the stated Qurʾānic contrast. The translation follows the contextual reading بالسيئة (“with bad action”), as supported by the parallel in al-Rāghib under ṣalaḥa and Q 9:102. The transmitted Arabic remains visible.

↑ Term directory · Sources · Subject index

75. ṣināʿa صِنَاعَة

In the Darūrī: Craft or disciplined art: an organized competence governed by methods and standards, not modern industrial production.

Text: §1 · §2 · §6 · §9

الصناعة · ṣināʿa

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 880. Source ↗

ملكة نفسانية تصدر عنها الأفعال الاختيارية من غير روية وقيل المتعلق بكيفية العمل.

A disposition of the soul from which voluntary actions proceed without deliberation; or, it is said, what concerns the manner of acting.

↑ Term directory · Sources · Subject index

76. ṣīgha صِيغَة

In the Darūrī: Verbal form: grammatical or conventional expression as distinct from the meaning understood in context.

Text: §149 · §151 · §197 · §223

صوغ · ṣawgh

Aḥmad b. Muḥammad al-Fayyūmī [L] · *al-Miṣbāḥ al-munīr fī gharīb al-Sharḥ al-kabīr* · Kitāb al-ṣād, root ṣ-w-gh. Source ↗

Relation to glossary term: full root article expressly defining ṣīgha and ṣīghat al-qawl.

صَاغَ الرَّجُلُ الذَّهَبَ يَصُوغُهُ صَوْغًا جَعَلَهُ حَلْيًا فَهُوَ صَائِغٌ وَصَوَّاغٌ وَهِيَ الصِّيَاغَةُ وَصَاغَ الْكَذِبَ صَوْغًا اخْتَلَقَهُ وَالصِّيغَةُ أَصْلُهَا الْوَاوُ مِثْلُ الْقِيمَةِ وَصِيغَةُ اللَّهِ خَلْقُهُ وَالصِّيغَةُ الْعَمَلُ وَالتَّقْدِيرُ وَهَذَا صَوْغُ هَذَا إِذَا كَانَ عَلَى قَدْرِهِ وَصِيغَةُ الْقَوْلِ كَذَا أَيْ مِثَالُهُ وَصُورَتُهُ عَلَى التَّشْبِيهِ بِالْعَمَلِ وَالتَّقْدِيرِ.

Ṣāgha al-rajulu al-dhahaba, yaṣūghuhu, ṣawghan: the man fashioned gold into jewellery. He is a ṣā'igh or ṣawwāgh, and the craft is ṣiyāgha. Ṣāgha al-kadhiba ṣawghan means that he fabricated a lie. The original radical of ṣīgha is wāw, as in qīma. Ṣīghat Allāh means His creation or fashioning. Ṣīgha also means workmanship and determining a form or measure. "This is the ṣawgh of that" is said when it corresponds to its measure. "The ṣīgha of the utterance is such-and-such" means its pattern and form, by analogy with workmanship and determining a form or measure.

↑ Term directory · Sources · Subject index

77. ḍidd ضِدّ

In the Darūrī: Contrary: opposed acts or qualities. Whether alternatives exhaust the possibilities is crucial to the argument about commands and prohibitions.

Text: §26 · §32 · §33 · §34 · §52

الضدان · ḍiddān

al-Sharīf al-Jurjānī [L] · *Kitāb al-Ta'rīfāt* · online entry 894. Source ↗

Relation to glossary term: dual form of headword.

صفتان وجوديتان يتعاقبان في موضع واحد يستحيل اجتماعهما كالسواد والبياض والفرق بين الضدين والنقيضين أن النقيضين لا يجتمعان ولا يرتفعان كالعدم والوجود والضدين لا يجتمعان ولكن يرتفعان كالسواد والبياض.

Two positive attributes that alternate in one subject and cannot coexist, such as blackness and whiteness. Contraries differ from contradictories: contradictories can neither coexist nor both be absent, as with nonexistence and existence; contraries cannot coexist but can both be absent, as with blackness and whiteness.

↑ Term directory · Sources · Subject index

78. ḍarūra ضَرُورَة

In the Darūrī: Necessity or constraint. In practical law it can ground a concession; this is distinct from the epistemic sense of necessary knowledge.

Text: §53 · §60

الضرورة · ḍarūra

al-Sharīf al-Jurjānī [L] · *Kitāb al-Ta'rīfāt* · p. 137. Source ↗

مشتقة من الضرر، وهو النازل مما لا مدفع له.

Derived from ḍarar ("harm"): an affliction that descends upon someone and cannot be averted.

↑ Term directory · Sources · Subject index

79. ḍarūrī ضَرُورِيّ

In the Darūrī: Necessary; in knowledge, immediately or inevitably known rather than acquired through a consciously constructed argument. In the title, what is indispensable to the craft.

Text: §1 · §2 · §15 · §76

البديهي · badīhī

'Abd al-Raʾūf al-Munāwī [L] · *al-Tawqīf 'alā muhimmāt al-ta'ārīf* · s.v. البديهي. Source ↗

Relation to glossary term: separate related headword explicitly distinguishing senses of necessary knowledge.

ما لا يتوقف حصوله على نظر وكسب سواء احتاج لشيء آخر من نحو حدس أو تجربة أو لا فيرادف الضروري، وقد يراد به ما لا يحتاج بعد توجه العقل إلى شيء أصلا فيكون أخص من الضروري كتصور الحرارة والبرودة والتصديق بأن النفي والإثبات لا يجتمعان ولا يرتفعان.

That whose acquisition does not depend on inquiry and acquisition, whether or not it needs something else, such as intuition or experience. In this sense it is synonymous with necessary knowledge. It may instead mean that which, once the intellect has attended to it, needs nothing further at all; it is then narrower than the necessary. Examples are conceiving heat and cold, and assenting that negation and affirmation can neither both hold nor both fail to hold.

الضروري · ḍarūrī

ʿAbd al-Raʾūf al-Munāwī [L] · *al-Tawqīf ʿalā muhimmāt al-taʿārīf* · s.v. الضروري. Source ↗

ما اتصلت الحاجة إليه إلى حد الضرورة كحفظ الدين فالنفس فالعقل فالنسب، فالمال فالعرض.

That for which need reaches the degree of necessity, such as preserving religion, then life, then intellect, then lineage, then property, then honour.

Editorial note. This is the necessities-of-welfare sense, not a claim that the author has here defined immediately evident knowledge.

↑ Term directory · Sources · Subject index

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80. ḍamīr ضَمِير

In the Darūrī: Pronoun: an expression whose referent can be determinate or ambiguous; reference is one component of verbal indication.

Text: §152 · §157 · §158

المضمر · muḍmar

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1393. Source ↗

Relation to glossary term: alternative grammatical headword.

ما وضع لمتكلم أو مخاطب أو غائب تقدم ذكره لفظا نحو زيد ضربت غلامه أو معنى بأن ذكر مشتقه كقوله تعالى اعدلوا هو أقرب للتقوى المائدة 9 أي العدل أقرب لدلالة اعدلوا عليه أو حكما أي ثابتا في الذهن كما في ضمير الشأن نحو هو زيد قائم.

An expression assigned to a speaker, an addressee, or an absent person previously mentioned: either expressly, as in “Zayd—I struck his servant”; by implication, through mention of a derivative, as in God’s saying “Act justly: it is nearer to godfearingness”—that is, justice is nearer, because “act justly” indicates it; or by an assumed presence in the mind, as with the pronoun introducing a state of affairs, “It is: Zayd is standing.”

وعبارة عن اسم يتضمن الإشارة إلى المتكلم أو المخاطب أو غيرهما بعدما سبق ذكره إما تحقيقا أو تقديرا.

Also: a noun involving reference to the speaker, the addressee, or another, following an actual or understood prior mention.

والمضمر المتصل ما لا يستقل بنفسه في التلفظ. والمضمر المنفصل ما يستقل بنفسه.

A conjunct pronoun cannot stand independently in pronunciation; a disjunct pronoun can.

Editorial note. The actual headword is muḍmar, not ḍamīr. The Qur’anic verse is Q 5:8; the electronic witness prints “9”. This grammatical article does not establish every legal use of an implicit element.

↑ Term directory · Sources · Subject index

81. ṭaliba طَلِبَة

In the Darūrī: Request or petition, one of the forms of complete discourse. This is the noun for a request, not the plural ṭalaba, “students.”

Text: §152 · §197

ṭalab · طلب

Aḥmad b. Muḥammad al-Fayyūmī [L] · *al-Miṣbāḥ al-munīr fī gharīb al-Sharḥ al-kabīr* · Kitāb al-ṭāʾ, root ṭ-l-b. Source ↗

Relation to glossary term: full root article expressly distinguishing singular ṭaliba from plural ṭalaba.

طَلَبْتُهُ أَطْلُبُهُ طَلَبًا فَأَنَا طَالِبٌ وَالْجَمْعُ طُلَّابٌ وَطَلَبَةٌ مِثْلُ كَافِرٍ وَكُفَّارٍ وَكَفَرَةٍ وَطَالِبُونَ وَامْرَأَةٌ طَالِبَةٌ وَنِسَاءٌ طَالِبَاتٌ وَطَوَالِبُ وَاطَّلَبْتُ عَلَى افْتَعَلْتُ بِمَعْنَى طَلَبْتُ وَبِاسْمِ الْفَاعِلِ سُمِّيَ عَبْدُ الْمُطَّلِبِ وَيُنْسَبُ إِلَى الثَّانِي وَالْمَطْلَبُ يَكُونُ مَصْدَرًا وَمَوْضِعَ الطَّلَبِ وَالطِّلَابُ مِثْلُ كِتَابٍ مَا تَطْلُبُهُ مِنْ غَيْرِكَ وَهُوَ مَصْدَرٌ فِي الْأَصْلِ تَقُولُ طَالَبْتُهُ مُطَالَبَةً وَطِلَابًا مِنْ بَابِ قَاتَلَ وَالطَّلِبَةُ وِزَانُ كَلِمَةٍ وَالْجَمْعُ طَلِبَاتٌ مِثْلُهُ وَتَطَلَّبْتُ الشَّيْءَ تَبَغَّيْتُهُ وَأَطْلَبْتُ زَيْدًا بِالْأَلِفِ أَسْعَفْتُهُ بِمَا طَلَبَ وَأَطْلَبْتُهُ أَحْوَجْتُهُ إِلَى الطَّلَبِ.

Ṭalabtuhu, aṭlubuhu, ṭalaban: I sought it; I am a ṭālib. Its plurals are ṭullāb and ṭalaba, like kāfir, kuffār and kafara, and also ṭālibūn. A woman is ṭāliba; women are ṭālibāt or ṭawālib. Iṭṭalabtu, on the pattern iftaʿaltu, has the meaning of ṭalabtu. The active participle supplied the name ʿAbd al-Muṭṭalib; the relational adjective is formed from the second component. Maṭlab can be a verbal noun or the place of seeking. Ṭilāb, on the pattern kitāb, is what you request from another; it is originally a verbal noun. You say ṭālabtuhu, muṭālabatan and ṭilāban, in the conjugational class of qātala. Ṭaliba, on the pattern kalima, has the same meaning, and its plural is ṭalabāt. Taṭallabtu al-shayʾa means that I sought the thing. Aṭlabtu Zaydan, with initial alif, means that I supplied Zayd with what he requested; aṭlabtuhu can also mean that I made him need to ask.

Editorial note. The witness has ṭaliba on the pattern kalima. It is not the immediately preceding plural ṭalaba. The article supplies lexical evidence for the request noun, not an independent classification of forms of discourse.

↑ Term directory · Sources · Subject index

82. ẓāhir ظَاهِر

In the Darūrī: Apparent or prima-facie indication: the meaning more readily warranted, though another remains possible. It can arise from understood import as well as verbal form.

Text: §164 · §166 · §193 · §224

ẓāhir · الظاهر

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 926. Source ↗

هو اسم لكلام ظهر المراد منه للسامع بنفس الصيغة ويكون محتملا للتأويل والتخصيص.

The name of speech whose intended meaning is apparent to the listener through its form itself, while admitting interpretive redirection and specification.

وما ظهر المراد منه للسامع بنفس الكلام كقوله تعالى وأحل الله البيع البقرة 275 وقوله تعالى فأنكحوا ما طاب لكم النساء 3 وضده الخفي وهو ما لا ينال المراد إلا بالطلب كقوله تعالى وحرم الربا البقرة 275.

Also: that whose intended meaning is apparent to the listener through the speech itself, as in “God has permitted sale” [Q 2:275] and “Marry those who seem good to you” [Q 4:3]. Its opposite is the obscure: that whose intended meaning is reached only through investigation, as in “and prohibited usury” [Q 2:275].

وظاهر العلم عبارة عند أهل التحقيق عن أعيان الممكنات وظاهر الممكنات هو تجلي الحق بصور أعيانها وصفاتها وهو المسمى بالوجود الإلهي وقد يطلق عليه ظاهر الوجود وظاهر المذهب وظاهر الرواية المراد بهما ما في المبسوط والجامع الكبير والجامع الصغير والسير الكبير والمراد بغير ظاهر المذهب والرواية الجرجانيات والكيسانيات والهارونيات.

Among the people of realization, the outward aspect of knowledge means the entities of possible things. The outward aspect of possible things is the Real’s self-disclosure in the forms of their entities and attributes, called divine existence; it may also be called the outward aspect of existence. By the manifest doctrine and manifest transmission they mean what is in al-Mabsūṭ, al-Jāmiʿ al-kabīr, al-Jāmiʿ al-ṣaghīr, and al-Siyar al-kabīr; by what is outside the manifest doctrine and transmission they mean al-Jurjāniyyāt, al-Kaysāniyyāt, and al-Hārūniyyāt.

وظاهر الوجود عبارة عن تجليات الأسماء فإن الإمتياز في ظاهر العلم حقيقي والوحدة نسبية وأما في ظاهر الوجود فالوحدة حقيقية والامتياز نسبي.

The outward aspect of existence means the self-disclosures of the names. In the outward aspect of knowledge, distinction is real and unity relative; in the outward aspect of existence, unity is real and distinction relative.

Editorial note. Legal-semantic, spiritual, and Ḥanafī bibliographical usages remain distinct, though this electronic witness groups them in one numbered article.

↑ Term directory · Sources · Subject index

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83. ẓann ظَنّ

In the Darūrī: Probable judgement: an evidentially grounded but nonconclusive assent, not necessarily a pejorative “guess.”

Text: §74 · §79 · §90 · §237 · §257

الظن · ẓann

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 934. Source ↗

هو الاعتقاد الراجح مع احتمال النقيض ويستعمل في اليقين والشك.

Predominant belief that still admits its contrary. The word is also used for certainty and doubt.

وقيل الظن أحد طرفي الشك بصفة الرجحان.

It is also said to be one of the two sides of doubt characterized by predominance.

الظن · ẓann

ʿAbd al-Raʾūf al-Munāwī [L] · *al-Tawqīf ʿalā muhimmāt al-taʿārīf* · s.v. الظن. Source ↗

Relation to glossary term: exact ẓann article explicitly discussing preponderance; not an independent compound ghalabat al-ẓann headword.

الاعتقاد الراجح مع استعمال النقيض، ويستعمل في اليقين والشك. وفي المفردات: الظن اسم لما يحصل عن أمارة ومتى قويت أدت إلى العلم، ومتى ضعفت جدا لم يتجاوز حد الوهم، ومتى قوي أو تصور بصورة القوي استعمل معه أن المشددة والمخففة، ومتى ضعف استعمل بعد أن المختصة بالمعدومين من القول والفعل.

A preponderant belief while [allowing] its contrary. The word is also used for certainty and doubt. In al-Mufradāt: ẓann names what is obtained from an indication. When the indication becomes strong, it leads to knowledge; when very weak, it does not exceed the level of supposition. When it is strong, or is represented as strong, anna in its doubled or lightened form is used with it. When weak, it is followed by an, the form associated with what has not occurred, whether speech or action.

Editorial note. The witness reads استعمال النقيض (“using the contrary”), where احتمال النقيض (“allowing the contrary”) is expected. The English brackets mark that contextual reading. Its final grammatical clause is likewise imperfectly transmitted; no additional Arabic wording is invented.

↑ Term directory · Sources · Subject index

84. ʿāmm عَامّ

In the Darūrī: General expression: wording embracing the instances of a meaning. Do not confuse this linguistic scope with several equivocal meanings.

Text: §169 · §170 · §174 · §177

ʿāmm · العام

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 144. Source ↗

لفظ وضع وضعا واحدا لكثير غير محصور مستغرق جميع ما يصلح له، فقوله: "وضعا واحدا" يخرج المشترك، لكونه بأوضاع، ولكثير يخرج ما يوضع لكثير، كزيد وعمرو، وقوله: "غير محصور" يخرج أسماء العدد فإن المائة مثلا وضعت وضعا واحدا لكثير، وهو مستغرق جميع ما يصلح له لكن الكثير محصور، وقوله: "مستغرق جميع ما يصلح له" الجمع المنكر، نحو: رأيت رجالا، لأن جميع الرجال غير مرئي له، وهو إما عام بصفته، ومعناه كالرجال، وإما عام بمعناه فقط، كالرهط والقوم.

An expression assigned, by a single act of linguistic institution, to an unrestricted plurality, embracing everything to which it is applicable. The words “by a single act of institution” exclude an equivocal expression, since its meanings arise through several acts of institution. “To a plurality” excludes what is [not] assigned to a plurality, such as Zayd and ʿAmr. “Unrestricted” excludes number-words: “one hundred,” for example, is assigned through a single institution to a plurality and embraces everything to which it applies, but that plurality is restricted in number. “Embracing everything to which it is applicable” [excludes] the indefinite plural, as in “I saw men,” since he has not seen all men. The expression is general either in its form and meaning, as with al-rijāl (“the men”), or in its meaning alone, as with al-raht̤ and al-qawm (“the group” and “the people”).

Editorial note. The digital witness has ما يوضع لكثير where the example and the exclusion require a negation; the translation supplies [not]. It also omits the verb before الجمع المنكر; [excludes] makes the grammatical connection explicit. Neither intervention is presented as an independently verified manuscript reading.

↑ Term directory · Sources · Subject index

85. ʿibāda عِبَادَة

In the Darūrī: Worship or devotional observance. Its valid performance, intention and timing are analysed without identifying all legal consequences with worship.

Text: §43 · §56 · §57

ʿibāda · العبادة

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 145. Source ↗

هو فعل المكلف على خلاف هوى نفسه، تعظيما لربه.

The act of the legally responsible person, contrary to the inclination of his lower self, in magnification of his Lord.

↑ Term directory · Sources · Subject index

86. ʿadāla عَدَالَة

In the Darūrī: Probity: a disposition supporting a transmitter’s reliability, not a claim that every lapse destroys credibility.

Text: §86 · §87 · §90 · §98

العدالة · ʿadāla

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 146. Source ↗

في اللغة: الاستقامة، وفي الشريعة: عبارة عن الاستقامة على طريق الحق بالاجتناب عما هو محظور دينا.

In ordinary language: uprightness. In the revealed law: remaining upright upon the path of truth by avoiding what religion prohibits.

↑ Term directory · Sources · Subject index

87. عُرْف ʿurf

In the Darūrī: Established usage or convention, linguistic or legal; a command's force must be learned in its relevant convention.

Text: §153 · §199 · §200 · §203

العرف · ʿurf

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 964. Source ↗

ما استقرت النفوس عليه بشهادة العقول وتلقته الطبائع بالقبول وهو حجة أيضا لكنه أسرع إلى الفهم وكذا العادة هي ما استمر الناس عليه على حكم العقول وعادوا إليه مرة أخرى.

What souls have settled upon with the testimony of reason and natural dispositions have received with acceptance. It is also a proof, but is quicker to be understood. Likewise, custom is what people have continued to do in accordance with reason's judgement and returned to again.

↑ Term directory · Sources · Subject index

88. عَزِيمَة / عَزْم ʿazīma / ʿazm

In the Darūrī: Original legal requirement, contrasted with a concession. The text uses the vocabulary of the unrelaxed requirement in defining the contrast.

Text: §60

العزيمة · ʿazīma

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 149. Source ↗

في اللغة عبارة عن الإرادة المؤكدة، قال الله تعالى: {ولم نجد له عزما} أي لم يكن له قصد مؤكد في الفعل بما أمر به. وفي الشريعة: اسم لما هو أصل المشروعات، غير متعلق بالعوارض.

In ordinary language it denotes firm resolve. God, exalted is He, says, "We found no firm resolve in him" [Q 20:115]: that is, he lacked a firmly established intention to perform what he had been commanded. In revealed law it is the name for the original legal prescriptions, without dependence upon supervening circumstances.

↑ Term directory · Sources · Subject index

89. عَقْل ʿaql

In the Darūrī: Intellect or reason; its relation to goodness, obligation and revealed authority is discussed without making theology the whole of uṣūl.

Text: §11 · §13 · §37 · §45

العقل · ʿaql

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · pp. 150–151. Source ↗

هو حذف الحرف الخامس المتحرك من "مفاعلتن"، وهي اللام، ليبقى: "مفاعلتن"، فينقل إلى "مفاعلن"، ويسمى: معقولا.

[In prosody,] it is the removal of the fifth, vowelled letter of mufāʿalatun—namely, the lām. The remaining pattern is then transferred to mufāʿilun and is called maʿqūl.

جوهر مجرد عن المادة في ذاته، مقارن لها في فعله، وهي النفس الناطقة التي يشير إليها كل أحد بقوله: أنا، وقيل: العقل: جوهر روحاني خلقه الله تعالى متعلقا ببدن الإنسان، وقيل: العقل: نور في القلب يعرف الحق والباطل، وقيل: العقل: جوهر مجرد عن المادة يتعلق بالبدن تعلق التدبير

A substance immaterial in its essence but associated with matter in its activity: the rational soul to which each person refers when saying “I.” It has also been said that intellect is a spiritual substance which God, exalted is He, created in relation to the human body; that it is a light in the heart through which truth and falsehood are known; or that it is an immaterial substance related to the body as its governor.

ما يعقل به حقائق الأشياء، قيل: محله الرأس، وقيل: محله القلب.

That by which the realities of things are apprehended intellectually. Its seat has been said to be the head, and it has been said to be the heart.

مأخوذ من عقال البعير، يمنع ذوي العقول من العدول عن سواء السبيل، والصحيح أنه جوهر مجرد يدرك الفانيات بالوسائط والمحسوسات بالمشاهدة.

The word is taken from the camel’s tether: it prevents those endowed with intellect from departing from the straight path. The correct view [according to the author] is that it is an immaterial substance which apprehends transient things through intermediaries and sensible things through direct observation.

Editorial note. The opening definition concerns the prosodic operation called ʿaql, not intellect. The digital witness repeats the unchanged metrical spelling after the deletion; the translation describes the stated operation without inventing a manuscript correction. Its final paragraph reads الفانيات (“transient things”); that reading is retained rather than silently replaced by a philosophical conjecture.

↑ Term directory · Sources · Subject index

90. ʿilla عِلَّة

In the Darūrī: Effective ground or explanatory feature connecting a ruling with a case. It must be distinguished from a general benefit or an accidental concomitant.

Text: §210 · §213 · §217 · §218 · §222

ʿilla · العلة

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · pp. 153–154. Source ↗

لغة: عبارة عن معنى يحل بالمحل فيتغير به حال المحل بلا اختيار، ومنه يسمى المرض علة؛ لأنه بحلوله يتغير حال الشخص من القوة إلى الضعف، وشريعة: عبارة عما يجب الحكم به معه، والعلة في العروض: التغيير في الأجزاء الثمانية، إذا كان في العروض والضرب.

In ordinary language: a feature that enters a subject and changes its condition without choice. Illness is therefore called an ʿilla, since its presence changes a person’s condition from strength to weakness. In revealed law: that together with which a ruling necessarily follows on its account. In prosody: a change in the eight metrical feet when it occurs in the final foot of the first or second hemistich.

هي ما يتوقف عليه وجود الشيء ويكون خارجا مؤثرا فيه.

That upon which the existence of something depends, which is external to it and exerts an effect upon it.

الصورية: ما يوجد الشيء بالفعل، والمادية: ما يوجد الشيء بالقوة، والفاعلية: ما يوجد الشيء بسببه، والغائية: ما يوجد الشيء لأجله.

The formal cause: that through which a thing exists in actuality. The material cause: that through which a thing exists potentially. The efficient cause: that because of which a thing exists. The final cause: that for the sake of which a thing exists.

↑ Term directory · Sources · Subject index

91. ʿilm عِلْم

In the Darūrī: Knowledge, sometimes certain cognition and sometimes a discipline. Its theoretical, practical and instrumental ends are distinguished.

Text: §2 · §8 · §74 · §75

العلم · ʿilm; ʿalam (homograph)

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · pp. 154–155. Source ↗

هو الاعتقاد الجازم المطابق للواقع، وقال الحكماء: هو حصول صورة الشيء في العقل، والأول أخص من الثاني، وقيل: العلم هو إدراك الشيء على ما هو به، وقيل: زوال الخفاء من المعلوم، والجهل نقيضه، وقيل: هو مستغن عن التعريف، وقيل: العلم: صفة راسخة تدرك بها الكليات والجزئيات، وقيل: العلم، وصول النفس إلى معنى الشيء، وقيل: عبارة عن إضافة مخصوصة بين العاقل والمعقول، وقيل: عبارة عن صفة ذات صفة.

Knowledge is firm belief corresponding to reality. The philosophers say that it is the presence of a thing’s form in the intellect; the first definition is narrower than the second. It has also been defined as apprehending a thing as it is; as the removal of obscurity from the known, ignorance being its contrary; as something that needs no definition; as an established attribute through which universals and particulars are apprehended; as the soul’s reaching the meaning of a thing; as a particular relation between the intellective subject and the intelligible object; or as “an attribute of something possessing an attribute.”

ينقسم إلى قسمين: قديم، وحادث، فالعلم القديم هو القائم بذاته تعالى، ولا يشبه بالعلوم المحدثة للعباد، والعلم المحدث ينقسم إلى ثلاثة أقسام: بديهي، وضروري، واستدلالي. فالبديهي: ما لا يحتاج إلى تقديم مقدمة، كالعلم بوجود نفسه، وأن الكل أعظم من الجزء، والضروري، ما لا يحتاج فيه إلى تقديم مقدمة، كالعلم بثبوت الصانع وحدوث الأعراض.

Knowledge is divided into eternal and originated. Eternal knowledge subsists in His essence, exalted is He, and is not comparable to the originated knowledge of created servants. Originated knowledge is divided into three kinds: self-evident, necessary, and inferential. The self-evident requires no prior premise, as with knowing one’s own existence and that the whole is greater than the part. The necessary, according to the wording transmitted here, likewise requires no prior premise, as with knowledge that the Maker exists and that accidents originate.

ما وضع لشيء، وهو العلم القصدي، أو غلب وهو العلم اللازم لشيء بعينه خارجا أو ذهنا، ولم تتناوله السببية.

[ʿAlam, a proper name:] that which has been assigned to a thing—an intentionally instituted name—or has become prevalent—a name inseparably attached to a particular thing, externally or mentally, and which is not encompassed by causality [as the digital wording reads].

Editorial note. The third paragraph concerns ʿalam (“proper name”), a distinct word sharing the unvowelled spelling of ʿilm. It is not a definition of knowledge. The digital witness’s last phrase السببية and its duplicated definition of “necessary” knowledge are retained and marked; no corrected printed or manuscript reading is claimed.

↑ Term directory · Sources · Subject index

92. ʿumūm عُمُوم

In the Darūrī: Generality: inclusion of the instances falling within a meaning. Its force differs across forms and contexts.

Text: §169 · §170 · §174 · §178

العموم · ʿumūm

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1016. Source ↗

في اللغة عبارة عن إحاطة الأفراد دفعة وفي اصطلاح أهل الحق ما يقع به الاشتراك في الصفات سواء كان في صفات الحق كالحياة والعلم أو صفات الخلق كالغضب والضحك وبهذا الاشتراك يتم الجمع وتصح نسبته إلى الحق والإنسان.

In ordinary language: encompassing individuals all at once. In the terminology of the people of spiritual truth: that through which sharing in attributes occurs, whether in divine attributes such as life and knowledge or creaturely attributes such as anger and laughter. Through this sharing, combination is completed and its attribution to God and the human being becomes valid.

Editorial note. The second sense is the source's spiritual terminology, not a substitute for legal generality.

↑ Term directory · Sources · Subject index

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93. ʿumūm al-balwā عُمُوم الْبَلْوَى

In the Darūrī: Widespread practical need: a consideration in assessing whether a solitary report plausibly preserves a generally required observance.

Text: §112 · §113

Coverage qualification. Exact-compound dictionary article not verified. The complete b-l-y/b-l-w article supplies lexical evidence only; it does not establish the technical rule governing widely required observances and solitary reports.

بلي · baliya / balāʾ

Aḥmad b. Muḥammad al-Fayyūmī [L] · *al-Miṣbāḥ al-munīr fī gharīb al-Sharḥ al-kabīr* · Kitāb al-bāʾ, root b-l-y / b-l-w. Source ↗

Relation to glossary term: complete lexical root article defining balwā; NOT an exact headword for the compound ʿumūm al-balwā.

بَلِيَ الثَّوْبُ يَبْلَى مِنْ بَابِ تَعِبَ بِلًى بِالْكَسْرِ وَالْقَصْرِ وَبَلَاءً بِالْفَتْحِ وَالْمَدِّ خَلَقَ فَهُوَ بَالٍ وَبَلِيَ الْمَيِّتُ أَفْنَتْهُ الْأَرْضُ.

Baliya al-thawbu, yablā, in the conjugational class of taʿiba, with the verbal nouns bilan, with kasra and short final alif, and balāʾan, with fatḥa and long final vowel: the garment became worn out, so it is bālin. Baliya al-mayyitu means that the earth consumed the dead person.

وَبَلَاهُ اللَّهُ بِخَيْرٍ أَوْ شَرٍّ يَبْلُوهُ بَلْوًا وَأَبْلَاهُ بِالْأَلِفِ وَابْتَلَاهُ ابْتِلَاءً بِمَعْنًى امْتَحَنَهُ وَالِاسْمُ بَلَاءٌ مِثْلُ سَلَامٍ وَالْبَلْوَى وَالْبَلِيَّةُ مِثْلُهُ.

Balāhu Allāhu bi-khayrin aw sharrin, yablūhu, balwan; ablāhu with alif; and ibtalāhu ibtilāʾan all mean that God tested him with good or evil. The noun is balāʾ, on the pattern salām; balwā and baliyya have the same meaning.

وَبَلَى حَرْفُ إيجَابٍ فَإِذَا قِيلَ مَا قَامَ زَيْدٌ وَقُلْتَ فِي الْجَوَابِ بَلَى فَمَعْنَاهُ إثْبَاتُ الْقِيَامِ وَإِذَا قِيلَ أَلَيْسَ كَانَ كَذَا وَقُلْتَ بَلَى فَمَعْنَاهُ التَّقْرِيرُ وَالْإِثْبَاتُ وَلَا تَكُونُ إلَّا بَعْدَ نَفْيٍ إمَّا فِي أَوَّلِ الْكَلَامِ كَمَا تَقَدَّمَ وَإِمَّا فِي أَثْنَائِهِ كَقَوْلِهِ تَعَالَى {أَيَحْسَبُ الْإِنْسَانُ أَنْ لَنْ نَجْمَعَ عِظَامَهُ بَلَى} وَالتَّقْدِيرُ بَلَى نَجْمَعُهَا وَقَدْ يَكُونُ مَعَ النَّفْيِ اسْتِفْهَامٌ وَقَدْ لَا يَكُونُ كَمَا تَقَدَّمَ فَهُوَ أَبَدًا يَرْفَعُ حُكْمَ النَّفْيِ وَيُوجِبُ نَقِيضَهُ وَهُوَ الْإِثْبَاتُ.

Balā is a particle of affirmation. If someone says, "Zayd did not stand," and you answer balā, it affirms that he did stand. If someone asks, "Was it not such-and-such?" and you say balā, it means confirmation and affirmation. It occurs only after a negation, whether at the beginning of the utterance, as above, or within it, as in His saying: "Does man think that We shall not gather his bones? Yes indeed!" The understood wording is: "Yes indeed, We shall gather them." The negation may or may not be accompanied by a question, as above. The particle always cancels the negation and establishes its contrary, namely affirmation.

وَقَوْلُهُمْ لَا أُبَالِيهِ وَلَا أُبَالِي بِهِ أَيْ لَا أَهْتَمُّ بِهِ وَلَا أَكْتَرِثُ لَهُ وَلَمْ أُبَالِ وَلَمْ أُبَلِ لِلتَّخْفِيفِ كَمَا حَذَفُوا الْيَاءَ مِنَ الْمَصْدَرِ فَقَالُوا لَا أُبَالِيهِ بَالَةً وَالْأَصْلُ بَالِيَةٌ مِثْلُ عَافَاهُ مُعَافَاةً وَعَافِيَةً قَالُوا وَلَا تُسْتَعْمَلُ إِلَّا مَعَ الْجَحْدِ وَالْأَصْلُ فِيهِ قَوْلُهُمْ تُبَالِي الْقَوْمُ إِذَا تَبَادَرُوا إِلَى الْمَاءِ الْقَلِيلِ فَاسْتَقَوْا فَمَعْنَى لَا أُبَالِي: لَا أُبَادِرُ إِهْمَالًا لَهُ وَقَالَ أَبُو زَيْدٍ مَا بَالَيْتُ بِهِ مُبَالَاةً وَالِاسْمُ الْبِلَاءُ وِزَانُ كِتَابٍ وَهُوَ الْهَمُّ الَّذِي تُحَدِّثُ بِهِ نَفْسَكَ.

Their expressions lā ubālīhi and lā ubālī bihi mean “I do not concern myself with it or pay it any heed.” They say lam ubāli and, in a shortened form, lam ubal, just as they remove the yā’ from the verbal noun and say lā ubālīhi bālatan; its original form is bāliya, like ‘āfāhu, mu‘āfātan and ‘āfiyatan. They say that it is used only with a negation. Its origin is their expression tubālī al-qawmu, when people hasten to a small quantity of water and draw it. Thus lā ubālī means “I do not hasten to it, because I disregard it.” Abū Zayd said: mā bālaytu bihi, mubālātan; the noun is al-bilā’, on the pattern kitāb, meaning the concern about which you converse with yourself.

Editorial note. This is a lexical witness for balwā, not a technical definition of ‘umūm al-balwā. No complete historical dictionary article under that exact compound has been verified in this release. The distinction is retained in the term register. The digital witness’s unusual tubālī al-qawmu is retained rather than silently vocalized differently.

↑ Term directory · Sources · Subject index

94. ghāya غَايَة

In the Darūrī: End or limit. In a temporal expression such as “until night,” it means an endpoint, not a purposive final cause.

Text: §2 · §195

الغاية · ghāya

al-Sharīf al-Jurjānī [L] · *Kitāb al-Ta‘rīfāt* · p. 160. Source ↗

ما لأجله وجود الشيء.

That for the sake of which a thing exists.

↑ Term directory · Sources · Subject index

95. ghalabat al-ẓann غَلَبَة الظَّنّ

In the Darūrī: Preponderant judgement: the balance of probable evidence which guides action; it does not create truth merely through preference.

Text: §90 · §237 · §241 · §257

Complete article: ‘Abd al-Ra’ūf al-Munāwī · ẓann (p. 198). exact ẓann article explicitly discussing preponderance; not an independent compound ghalabat al-ẓann headword.

↑ Term directory · Sources · Subject index

96. farḍ فَرْض

In the Darūrī: Obligatory requirement. The discussion records a distinction from wājib made by some jurists and its evidential basis.

Text: §17

الفرض · farḍ

al-Sharīf al-Jurjānī [L] · *Kitāb al-Ta‘rīfāt* · p. 164. Source ↗

ما ثبت بدليل قطعي لا شبهة فيه، ويكفر جاحده ويعذب تاركه.

That which is established by a conclusive proof containing no doubt. Its denier is judged an unbeliever, and the person who omits it is subject to punishment.

Editorial note. This is a historical, school-specific technical definition, not an editorial judgement about any person. Its distinction between farḍ and wājib must not be assumed to be shared by every jurist.

↑ Term directory · Sources · Subject index

97. far‘ فَرْع

In the Darūrī: Derivative case or branch of law; in qiyās, the case whose ruling is sought through a relation to the original.

Text: §2 · §210 · §211

الفرع · far‘

al-Sharīf al-Jurjānī [L] · *Kitāb al-Ta‘rīfāt* · p. 165. Source ↗

خلاف الأصل، وهو اسم لشيء يبنى على غيره.

The counterpart of the foundation: a name for something that is built upon something else.

Editorial note. The source headword is the singular far‘. Furū‘ is its plural; that grammatical relationship is an editorial cross-reference, not a separate dictionary article attributed to al-Jurjānī.

↑ Term directory · Sources · Subject index

98. furū‘ فُرُوع

In the Darūrī: Branches or derivative rulings, distinguished from sources and the general method for understanding their indications.

Text: §2 · §235 · §252

Complete article: al-Sharīf al-Jurjānī · far‘ (p. 205). singular headword underlying the plural glossary form.

↑ Term directory · Sources · Subject index

99. fasād فَسَاد

In the Darūrī: Corruption or invalidity; in legal use, failure of an act or contract in the respect relevant to its ruling.

Text: §28 · §29 · §56 · §206

الفساد · fasād

al-Sharīf al-Jurjānī [L] · *Kitāb al-Ta‘rīfāt* · p. 165. Source ↗

زوال الصورة عن المادة بعد أن كانت حاصلة، والفساد عند الفقهاء ما كان مشروعا بأصله غير مشروع بوصفه، وهو مرادف للبطلان عند الشافعي، وقسم ثالث مباين للصحة والبطلان عندنا.

The disappearance of a form from matter after it had been present. Among jurists, fasād is what is lawful in its basis but not lawful in its qualification. According to al-Shāfi‘ī it is synonymous with invalidity; according to us it is a third category, distinct from both validity and invalidity.

Editorial note. The first sentence uses fasād in natural philosophy. “According to us” belongs to the dictionary author’s juridical voice and is not Ibn Rushd’s or the editor’s school affiliation.

↑ Term directory · Sources · Subject index

100. fi‘l فِعْل

In the Darūrī: Act: voluntary human performance or Prophetic action. An act has no imperative grammatical form of its own.

Text: §43 · §150 · §228 · §229

الفعل · fi‘l

al-Sharīf al-Jurjānī [L] · *Kitāb al-Ta‘rīfāt* · p. 167. Source ↗

هو الهيئة العارضة للمؤثر في غيره بسبب التأثير، أولا كالهيئة الحاصلة للقاطع بسبب كونه قاطعا، وفي اصطلاح النحاة: ما دل على معنى في نفسه مقترن بأحد الأزمنة الثلاثة، وقيل: الفعل كون الشيء مؤثرا في غيره، كالقاطع ما دام قاطعا.

The state accruing to something that acts upon another because of its acting—for example, the state belonging to a cutter by virtue of its cutting. In the terminology of grammarians, it is a word indicating a meaning in itself that is connected with one of the three tenses. It has also been said that action is a thing’s exercising an effect upon another, as with a cutter for as long as it is cutting.

Editorial note. The digital text inserts أولا (“first”) before the example without an evident continuation; no substantive additional sense is inferred from it. The philosophical category of action and the grammatical verb are distinct uses of the same spelling.

↑ Term directory · Sources · Subject index

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101. fiqh فِقْه

In the Darūrī: Understanding of practical legal rulings. Detailed branch-law learning is related to, but not identical with, the requirements of independent inquiry.

Text: §2 · §235 · §252

الفقه · fiqh

al-Sharīf al-Jurjānī [L] · *Kitāb al-Ta‘rīfāt* · p. 167. Source ↗

هو في اللغة عبارة عن فهم غرض المتكلم من كلامه، وفي الاصطلاح: هو العلم بالأحكام الشرعية العملية المكتسب من أدلتها التفصيلية، وقيل: هو الإصابة والوقوف على المعنى الخفي الذي يتعلق به الحكم، وهو علم مستنبط بالرأي والاجتهاد، ويحتاج فيه إلى النظر والتأمل، ولهذا لا يجوز أن يسمى الله تعالى فقيها، لأنه لا يخفى عليه شيء.

In ordinary language it means understanding the speaker’s purpose from what he says. Technically, it is knowledge of practical legal rulings acquired from their detailed proofs. It has also been defined as reaching and discerning the concealed meaning to which a ruling attaches. It is knowledge derived by reasoned judgement and juristic exertion, requiring inquiry and reflection. For this reason God, exalted is He, may not be called a faqīh, since nothing is concealed from Him.

↑ Term directory · Sources · Subject index

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102. qurʾ قُرْء

In the Darūrī: An equivocal legal expression for a menstrual period or a period of purity, used as an example of indeterminate wording.

Text: §158

قرأ · qaraʾa

al-Rāghib al-Iṣfahānī [E] · *al-Mufradāt fī gharīb al-Qurʾān* · s.v. قرأ. Source ↗

Relation to glossary term: complete root article; technical compound is not an independent headword.

قَرَأَت المرأة: رأت الدّم، وأَقْرَأَتْ: صارت ذات قُرْءٍ، وقَرَأْتُ الجارية: استبرأتُها بالقُرء. والقُرْءُ في الحقيقة: اسم للدّخول في الحيض عن طهر.

Qaraʾat al-marʾa means that the woman saw menstrual blood; aqraʾat, that she became one who experiences a qurʾ. Qaraʾtu al-jāriya means that I ascertained her freedom from pregnancy by means of a qurʾ. Qurʾ, properly speaking, names the transition from a state of purity into menstruation.

ولمّا كان اسما جامعا للأمرين الطّهر والحيض المتعقّب له أطلق على كلّ واحد منهما، لأنّ كلّ اسم موضوع لمعنيين معا يطلق على كلّ واحد منهما إذا انفرد، كالمائدة: للخوان وللطّعام، ثم قد يسمّى كلّ واحد منهما بانفراده به. وليس القُرْءُ اسما للطّهر مجرّدا، ولا للحيض مجرّدا بدلالة أنّ الطّاهر التي لم تر أثر الدّم لا يقال لها: ذات قرء. وكذا الحائض التي استمرّ بها الدّم والنّفساء لا يقال لها ذلك. وقوله: يَتَرَبَّصْنَ بِأَنْفُسِهِنَّ ثَلاثَةَ قُرُوءٍ [البقرة/228] أي: ثلاثة دخول من الطّهر في الحيض.

Because the name embraces both things—purity and the menstruation which follows it—it is applied to either of them. Every name instituted for two meanings together can be applied to either separately: māʾida denotes both the table and the food, and each may then be called by that name independently. Qurʾ is not a name for purity alone or for menstruation alone. The evidence is that a woman in purity who has not seen any trace of blood is not called “one having a qurʾ”; neither is a menstruating woman whose bleeding continues uninterruptedly, nor a woman with postnatal bleeding. “They shall wait by themselves for three qurūʾ” [Q 2:228] thus means three transitions from purity into menstruation.

وقوله عليه الصلاة والسلام: «اقعدي عن الصّلاة أيّام أَقْرَائِكَ» أي أيّام حيضك، فإنما هو كقول القائل: افعل كذا أيّام ورود فلان، وروده إنما يكون في ساعة وإن كان ينسب إلى الأيّام. وقول أهل اللّغة: إنّ القُرْءَ من: قَرَأَ، أي: جمع، فإنّهم اعتبروا الجمع بين زمن الطّهر وزمن الحيض حسبما ذكرت لاجتماع الدّم في الرّحم، والقِرَاءَةُ: ضمّ الحروف والكلمات بعضها إلى بعض في التّرتيل، [وليس يقال ذلك لكلّ جمع].

His saying—blessings and peace be upon him—“Refrain from prayer during the days of your aqrāʾ”, meaning the days of your menstruation, is like saying “Do such-and-such during the days of so-and-so’s arrival”: the arrival occurs in a single moment, though it is ascribed to days. When lexicographers say that qurʾ derives from qaraʾa, “to gather”, they consider the combination of the time of purity and the time of menstruation, as I have explained, because blood gathers in the womb. Qirāʾa is the joining of letters and words to one another in ordered recitation; [the expression is not used for every kind of gathering].

لا يقال: قرأت القوم: إذا جمعتهم، ويدلّ على ذلك أنه لا يقال للحرف الواحد إذا تفوّه به قراءة، والْقُرْآنُ في الأصل مصدر، نحو: كفران ورجحان. قال تعالى: إِنَّ عَلَيْنا جَمْعَهُ وَقُرْآنَهُ فَإِذا قَرَأْناهُ فَاتَّبِعْ قُرْآنَهُ [القيامة/17-18] قال ابن عباس: إذا جمعناه وأثبتناه في صدرك فاعمل به، وقد خصّ بالكتاب المنزّل على محمد صلّى الله عليه وسلم، فصار له كالعلم كما أنّ التّوراة لما أنزل على موسى، والإنجيل على عيسى صلّى الله عليهما وسلم.

One does not say “I read the people” to mean “I gathered them”. This is also shown by the fact that uttering a single letter is not called reading. Qurʾān is originally a verbal noun, like kufrān and rujḥān. God says: “Upon Us are its gathering and its recitation; when We have recited it, follow its recitation” [Q 75:17–18]. Ibn ʿAbbās explains: when We have gathered it and established it in your breast, act upon it. The word has become restricted to the Book sent down to Muḥammad—God bless him and grant him peace—and has become like its proper name, just as Torah names what was sent down to Moses and Gospel what was sent down to Jesus—God bless them both and grant them peace.

قال بعض العلماء: «تسمية هذا الكتاب قُرْآناً من بين كتب الله لكونه جامعا لثمرة كتبه» بل لجمعه ثمرة جميع العلوم، كما أشار تعالى إليه بقوله: وَتَفْصِيلَ كُلِّ شَيْءٍ [يوسف/111]، وقوله: تِبْياناً لِكُلِّ شَيْءٍ [النحل/89]، قُرْآناً عَرَبِيًّا غَيْرَ ذِي عِوَجٍ [الزمر/28]، وَقُرْآناً فَرَقْناهُ لِتَقْرَأَهُ [الإسراء/106]، فِي هذَا الْقُرْآنِ [الروم/58]، وَقُرْآنَ الْفَجْرِ [الإسراء/78] أي: قراءته، لَقُرْآنٌ كَرِيمٌ [الواقعة/77] وأقرأت فلانا كذا. قال: سَنُقْرِئُكَ فَلا تَنْسى [الأعلى/6]، وتَقَرَّأْتُ: تفهّمت، وقَارَأْتُه: دارسته.

Some scholars say: “This Book, among God’s books, is called Qur’ān because it gathers together the fruit of His books”—indeed, because it gathers the fruit of all the sciences. God indicates this in “an exposition of everything” [Q 12:111] and “a clarification of everything” [Q 16:89]. Other occurrences are “an Arabic Qur’ān without crookedness” [Q 39:28]; “a Qur’ān which We have divided so that you may recite it” [Q 17:106]; “in this Qur’ān” [Q 30:58]; “the recitation of dawn” [Q 17:78], meaning its reading; and “a noble Qur’ān” [Q 56:77]. Aqra’tu fulānan kadhā means “I taught so-and-so to recite such-and-such”. He says: “We shall teach you to recite, and you shall not forget” [Q 87:6]. Taqara’tu means “I sought to understand”; qāra’tuhu means “I studied it together with him”.

Editorial note. The full root article is retained, including its discussion of reading and the Qur’ān after the menstrual terminology. Square brackets around the sentence on gathering are retained from the consulted edition, whose editor identifies an older parallel in al-Zarkashī. Al-Rāghib’s analysis is his own account, not a neutral ruling resolving the juristic disagreement. The source’s brief ḥadīth quotations are translated as quotations, without certifying their transmission.

↑ Term directory · Sources · Subject index

103. qarīna قَرِينَة

In the Darūrī: Contextual indication: verbal or circumstantial evidence that guides meaning, interpretation or an extension beyond the named case.

Text: §161 · §166 · §193 · §213

القرينة · qarīna

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1132. Source ↗

بمعنى الفقرة.

In the sense of a segment of discourse.

وفي اللغة فعلية بمعنى المفاعلة مأخوذ من المقارنة وفي الاصطلاح أمر يشير إلى المطلوب.

In ordinary language it is a faʿīla form with a reciprocal meaning, derived from accompaniment. Technically: something pointing to what is intended.

وهي إما حالية أو معنوية أو لفظية نحو ضرب موسى عيسى وضرب من في الغار من على السطح فإن الإعراب منتف فيه بخلاف ضربت موسى حبلى وأكل موسى الكمثرى فإن في الأول قرينة لفظية وفي الثانية قرينة حالية.

It may be situational, semantic, or verbal. Consider “Mūsā struck ʿĪsā” and “The one in the cave struck the one on the roof”: visible case inflection is absent. Contrast “Ḥublā struck Mūsā,” with a feminine verb, and “Mūsā ate the pear”: in the first there is a verbal indicator, and in the second a situational indicator.

Editorial note. Unvowelled ضربت permits more than one reading in isolation. The example’s function requires the feminine third-person verb; Ḥublā is the illustrative feminine subject. This is editorial explanation, not an added dictionary paragraph.

↑ Term directory · Sources · Subject index

104. qaḍāʾ قَضَاء

In the Darūrī: Make-up performance outside the appointed time; also judgement in other contexts. Whether it needs a distinct command is a central question.

Text: §51 · §57 · §204

القضاء · qaḍāʾ

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1141. Source ↗

لغة الحكم وفي الاصطلاح عبارة عن الحكم الكلي الإلهي في أعيات الموجودات على ما هي عليه من الأحوال الجارية في الأزل إلى الأبد.	In ordinary language: judgement. Technically: the universal divine judgement concerning the entities of existents and their states proceeding from beginninglessness to endlessness.
وفي اصطلاح الفقهاء القضاء تسليم مثل الواجب بالسبب.	In jurists' terminology: delivering the equivalent of what is obligatory by virtue of its occasion.
والقضاء على الغير إلزام أمر لم يكن لازما قبله.	Judgement against another is imposing something that was not binding before it.
والقضاء في الخصومة هو إظهار ما هو ثابت.	Adjudication in a dispute is making manifest what is established.
والقضاء يشبه الأداء هو الذي لا يكون إلا بمثل معقول بحكم الاستقراء كقضاء الصوم والصلاة لأن كل واحد منهما مثل الآخر صورة ومعنى.	Make-up performance resembling timely performance is what, as induction shows, occurs only through an intelligible equivalent, such as making up fasting and prayer: each corresponds to the other in form and meaning.

Editorial note. أعيات in the electronic witness is treated as a typographical reading for أعيان in translation. The last sentence concerns a make-up act and its original, not an assertion that fasting and prayer are the same act.

↑ Term directory · Sources · Subject index

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105. qaṭʿī قَطْعِيّ

In the Darūrī: Conclusive: an indication or judgement not merely probable. Degrees of evidential clarity remain important for culpability.

Text: §74 · §125 · §237 · §244

اليقينيات · yaqīniyyāt

Attributed to Jalāl al-Dīn al-Suyūṭī [L] · *Muʿjam maqālīd al-ʿulūm fī al-ḥudūd wa-l-rusūm* · entry 954. Source ↗

Relation to glossary term: related epistemic category, not the adjective qaṭʿī.

قضايا يكون الحكم فيها جازما مطابقا ثابتا.	Propositions in which the judgement is decisive, conforms to reality, and is stable.

Editorial note. This supplies the complete entry for the logical category of certainties. It is not represented as an exact dictionary article headed qaṭʿī, nor as a full definition of legally decisive transmission or signification.

↑ Term directory · Sources · Subject index

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106. qiyās قِيَاس

In the Darūrī: Analogy or syllogistic inference, depending on context. Much juristic qiyās is analysed here as substitution within an understood meaning rather than a syllogism.

Text: §210 · §212 · §223 · §226

القياس · qiyās

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1160. Source ↗

قول مؤلف من قضايا إذا سلمت لزم عنها لذاتها قول آخر كقولنا العالم متغير وكل متغير حادث فإنه قول مركب من قضيتين إذا سلمتا لزم عنهما لذاتهما العالم حادث هذا عند المنطقيين وعند أهل الأصول القياس إبانة مثل حكم المذكورين بمثل علته في الآخر واختيار لفظ الإبانة دون الإثبات لأن القياس مظهر للحكم لا مثبت وذكر مثل الحكم ومثل العلة احتراز عن لزوم القول بانتقال الأوصاف واختيار لفظ المذكورين ليشمل القياس بين الموجودين وبين المعدومين.

A discourse composed of propositions which, when conceded, entail another discourse through themselves. For example, “The world changes; everything that changes is originated”: this consists of two propositions which, when conceded, themselves entail “The world is originated.” That is the logicians’ usage. For legal theorists, analogy discloses the like of a ruling concerning the things mentioned, through the like of its cause in the other. “Disclosure” is chosen rather than “establishment” because analogy manifests a ruling rather than creating it. “The like of the ruling” and “the like of the cause” avoid committing one to a transfer of attributes. “The things mentioned” includes analogy between existing things and between nonexistent things.

وأعلم أن القياس إما جلي وهو ما تسبق إليه الأفهام وإما خفي وهو ما يكون بخلافه ويسمى الاستحسان لكنه أعم من القياس الخفي فإن كل قياس خفي استحسان وليس كل استحسان قياسا خفيا لأن الاستحسان قد يطلق على ما ثبت بالنص والاجماع والضرورة لكن في الأغلب إذا ذكر الاستحسان يراد به القياس الخفي.

Analogy is either evident, which understandings readily apprehend, or hidden, which is otherwise and is called juristic preference. Juristic preference is nevertheless broader than hidden analogy: every hidden analogy is juristic preference, but not every juristic preference is hidden analogy, for the former may also denote what is established by text, consensus, or necessity. Usually, however, hidden analogy is intended when juristic preference is mentioned.

والقياس الاستثنائي ما يكون عين النتيجة أو نقيضها مذكورا فيه بالفعل كقولنا إن كان هذا جسما فهو متحيز لكنه جسم ينتج أنه متحيز وهو بعينه مذكور من القياس أو لكنه ليس بمتحيز ينتج أنه ليس بجسم ونقيضه قولنا إنه جسم مذكور في القياس.

An exceptive syllogism actually mentions its conclusion or its contradictory: “If this is a body, it occupies space; but it is a body,” yielding “It occupies space,” which is itself mentioned in the syllogism. Alternatively, “But it does not occupy space” yields “It is not a body,” whose contradictory, “It is a body,” is mentioned there.

والقياس الاقتراني نقيض الاستثنائي وهو ما لا يكون عين النتيجة ولا نقيضها مذكورا فيه بالفعل كقولنا الجسم مؤلف وكل مؤلف محدث ينتج الجسم محدث فليس هو ولا نقيضه مذكورا في القياس بالفعل.

A conjunctive syllogism is the opposite of an exceptive one: neither the conclusion itself nor its contradictory is actually mentioned. “A body is composite; every composite is originated” yields “A body is originated”; neither it nor its contradictory is actually stated in the syllogism.

وقياس المساواة هو الذي يكون متعلق محمول صغراه موضوعا في الكبرى فإن استلزامه لا بالذات بل بواسطة مقدمة أجنبية حيث تصدق بتحقق الاستلزام كما في قولنا أ مساو ب و ب مساو ج و أ مساو ج إذ المساوي للمساوي للشيء مساو لذلك الشيء وحيث لا يصدق ولا يتحقق كما في قولنا أ نصف ب وب نصف ل ج فلا يصدق أ نصف ل ج لأن نصف النصف ليس بنصف بل ربع.

An equality syllogism is one in which the correlate of the minor premise's predicate is the major premise's subject. Its entailment is not intrinsic but proceeds through an external premise. Where that premise is true, the entailment holds: "A equals B; B equals C; therefore A equals C," since what equals the equal of something equals that thing. Where it is not true, the entailment fails: "A is half of B; B is half of C" does not yield "A is half of C," because half of a half is not a half but a quarter.

Editorial note. The legal definition's "حكم المذكورين ... في الآخر" is compressed or defective; the wording of this witness is preserved. The paragraph's argument indicates two compared cases, not an invented single merged case.

القياس · qiyās

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1161. Source ↗

ما يمكن أن يذكر فيه ضابطة عند وجود تلك الضابطة يوجد هو.

That for which a rule can be stated such that, whenever the rule obtains, it obtains.

Editorial note. A second, separately numbered definition in the same witness.

↑ Term directory · Sources · Subject index

107. qiyās al-shabah قِيَاس الشَّبَه

In the Darūrī: Analogy of resemblance: extending a ruling because a likeness is thought to contain a shared ground, without identifying that ground securely.

Text: §218 · §224

الشبه · shabah

Muḥammad ʿAlī al-Tahānawī [L] · *Kashshāf iṣṭilāḥāt al-funūn wa-l-ʿulūm* · vol. 1, pp. 1004–1005; digital page positions 1058–1059. Source ↗

Relation to glossary term: complete technical shabah article explicitly treating analogy of resemblance.

بالكسر وسكون الموحدة وبفتحتين أيضا المثل كما في المنتخب. وعند الأصوليين هو من مسالك إثبات العلية.

With kasra and a quiescent bā', or with two fatḥas, it means a likeness, as stated in al-Muntakhab. Among legal theorists it is one of the methods for establishing causal relevance.

قالوا الوصف إما أن تعلم مناسبته بالنظر إلى ذاته أو لا، والأول المناسب، والثاني إما أن يكون مما اعتبره الشرع في بعض الأحكام والتفت إليه أو لا، والأول الشبه والثاني الطرد. وعلية الشبه تثبت بجميع المسالك من الإجماع والنص والسبر، وهل تثبت بمجرد المناسبة أي تخريج المناط؟ فيه نظر، وإلا يخرج عن كونه شبيها إلى كونه مناسبا مع أن ما بينهما من التقابل.

They say: either the appropriateness of an attribute is known by considering it in itself, or it is not. The first is the appropriate attribute (al-munāsib). In the second case, either the revealed law has recognized it in some rulings and taken it into account, or it has not. The first is resemblance (al-shabah), and the second is mere concomitance (al-ṭard). The causal relevance of resemblance is established by all the methods, including consensus, explicit text and examination [see the textual note]. Whether it is established by appropriateness alone—that is, by eliciting the operative ground (takhrīj al-manāṭ)—requires consideration; otherwise it would cease to be a resemblance and become an appropriate attribute, notwithstanding the opposition between the two.

ومن أجل أنه لا تثبت بمجرد المناسبة قيل في تعريف الشبه تارة هو الذي لا تثبت مناسبته إلا بدليل منفصل. وقيل تارة هو ما يوهم المناسبة وليس بمناسب. فبناء كلا التعريفين على أن الشبه لا يثبت بمجرد المناسبة بل لا بد في مناسبته للحكم من دليل زائد عليه، إذ لو ثبت بالنظر إلى ذاته لما كان شبيها بل مناسبا.

Because it is not established by appropriateness alone, resemblance has sometimes been defined as that whose appropriateness is established only by separate evidence. At other times it has been defined as that which suggests appropriateness without being appropriate. Both definitions rest on the position that resemblance is not established by appropriateness alone: additional evidence is needed for its appropriateness to the ruling. If that were established by considering the attribute in itself, it would be an appropriate attribute rather than a resembling one.

وقيل إثباته بتخريج المناط مبني على تفسيره فمن فسره بما يوهم المناسبة منعه لأن تخريج المناط يوجب المناسبة، ومن فسره بالمناسب الذي مناسبته لذاته جوزه لجواز أن يكون الوصف الشبهي مناسبا يتبع المناسب بالذات وهذا فاسد لأن تخريج المناط يقتضي كون الوصف مناسبا بالنظر إلى ذاته.

It has also been said that establishing it by eliciting the operative ground depends on how it is explained. Those who explain it as what suggests appropriateness disallow this, because eliciting the operative ground establishes appropriateness. Those who explain it as the appropriate attribute whose appropriateness belongs to it intrinsically permit it, on the ground that the resembling attribute may be appropriate by following what is intrinsically appropriate. This is unsound, because eliciting the operative ground requires the attribute to be appropriate when considered in itself.

مثاله أن يقال في عدم جواز إزالة الخبث بالمائع أن إزالة الخبث طهارة تراد للصلاة فلا تجوز بغير الماء، كطهارة الحدث بجامع الطهارة، وهو وصف شبهي لأن مناسبتها لتعيين الماء فيها بعد البحث التام غير ظاهرة، لكن الشارع لما أثبت الحكم وهو تعيين الماء في بعض الصور وجودها كالصلاة والطواف ومس المصحف أوهم ذلك مناسبتها. ثم الشبه حجة عند جماعة وهو مذهب الشافعي.

An example is the argument against removing physical impurity with a liquid other than water: removal of impurity is a purification intended for prayer, and therefore is not permissible with anything other than water, by comparison with purification from ritual impurity; the common feature is purification. This is an attribute of resemblance, because, even after exhaustive inquiry, its appropriateness to requiring water is not evident. Yet when the Lawgiver established the ruling—that water is required—in some instances of its occurrence, such as prayer, circumambulation and touching the Qur'anic codex, this suggested its appropriateness. Resemblance is an authoritative proof according to a group of scholars, and this is al-Shāfiʿī's position.

وليس بحجة عند الحنفية وجماعة كالقاضي أبي بكر الباقلاني لأنه إما مطلع على المناسب المؤثر فيكون حاكما به أو لا، وهو حكم بغير دليل. اعلم أن لفظ الشبه يقال على معان أخر أيضا بالاشتراك، حتى قال إمام الحرمين: لا تتحرر في الشبه عبارة مستمرة في صناعة الحدود.

It is not an authoritative proof according to the Ḥanafīs and a group including al-Qāḍī Abū Bakr al-Bāqillānī: either the reasoner has discerned the causally effective appropriate attribute, in which case he judges by it, or he has not, in which case the judgement is without evidence. Know that the word resemblance also applies equivocally to other meanings. Indeed, the Imām al-Ḥaramayn said that no consistently applicable formulation of resemblance can be established within the art of definitions.

فمنهم من فسره بما تردد فيه الفرع بين الأصلين يشاركهما في الجامع إلا أنه يشارك أحدهما في أوصاف أكثر فيسمى إلحاقه به شبها كإلحاق العبد المقتول بالحر فإن له شبها بالفرس من حيث المالية وشبها بالحر، لكن مشابهته بالحر في الأوصاف والأحكام أكثر، فألحق بالحر لذلك. وحاصل هذا المعنى تعارض مناسبتين ترجح إحداهما.

Some have explained it as a case in which a derivative case lies between two original cases and shares the common feature with both, but shares more attributes with one. Assimilating it to that one is called resemblance. An example is assimilating an enslaved person who has been killed to a free person. The former resembles a horse in respect of being property, and also resembles a free person; but the resemblance to the free person in attributes and rulings is greater, so the case is assimilated to that of the free person. In essence, this meaning involves two conflicting relations of appropriateness, one of which is preferred.

ومنهم من فسره بما يعرف فيه المناط قطعا إلا أنه يفتقر في آحاد الصور إلى تحقيقه كما في طلب المثل في جزاء الصيد بعد العلم بوجوب المثل. ومنهم من فسره بما اجتمع فيه مناطان لحكمين لا على سبيل الكمال، لكن أحدهما أغلب، فالحكم به حكم بالأشبه كالحكم في اللعان بأنه يمين لا شهادة وإن وجدا فيه.

Some have explained it as a case in which the operative ground is known with certainty, but its presence in individual instances needs to be ascertained: for example, seeking an equivalent in compensation for hunted game after the obligation of an equivalent has been established. Others explain it as a case containing two operative grounds for two rulings, neither completely present, but one predominating; to judge by it is to judge by the closer resemblance. An example is ruling that mutual imprecation (liʿān) is an oath rather than testimony, although both features are present in it.

وقال القاضي هو الجمع بين الأصل والفرع بما لا يناسب الحكم، لكن يستلزم المناسب وهو قياس الدلالة فليس شيء من تلك المعاني معنى من الشبه المعدود في مسالك العلة. هكذا يستفاد من العضدي وحاشيته للمحقق التفتازاني وغيرهما.

Al-Qāḍī said that it consists in joining the original and derivative cases by something that is not appropriate to the ruling but entails what is appropriate; this is analogy by an indication (qiyās al-dalāla). None of these meanings is therefore the meaning of resemblance counted among the methods for establishing the effective cause. This is gathered from al-ʿAḍudī and the gloss on it by the investigator al-Taftāzānī, and from other works.

Editorial note. Continues on the following digital page, ending before shibh al-fiʿl. The witness prints al-sayr (السير) where its reported variant is al-sabr (السبر); “examination” follows the latter and the former is retained in the Arabic. The clause “whose appropriateness belongs to it intrinsically” is textually awkward in the consulted witness; it has not been silently rewritten. Modern English/French labels and editorial footnotes are not attributed to al-Tahānawī.

↑ Term directory · Sources · Subject index

108. karāha كَرَاهَة

In the Darūrī: Dislike or disapproval, sometimes distinguished from strict prohibition; the required contextual indication must be examined.

Text: §17 · §29 · §208

Complete article: al-Sharīf al-Jurjānī · makrūh (p. 228). derived adjectival headword for the legal category.

↑ Term directory · Sources · Subject index

109. kasb / iktisāb كَسْب / اكْتِسَاب

In the Darūrī: Acquisition: the disputed account of human agency, choice and voluntary action. The reported theological positions are not all Ibn Rushd’s own.

Text: §43 · §44 · §45

الكسب · kasb

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1174. Source ↗

هو المفضي إلى اجتلاب نفع أو دفع ضر ولا يوصف فعل الله بأنه كسب لكونه منزها عن جلب نفع أو دفع ضر.

That which leads to obtaining a benefit or averting a harm. God’s act is not described as acquisition, since He is exalted above obtaining a benefit or averting a harm.

↑ Term directory · Sources · Subject index

110. kalām كَلَام

In the Darūrī: Speech; also rational theology. Which sense applies depends on the argument, and the latter is not the whole subject of uṣūl.

Text: §9 · §41 · §63 · §235

الكلام · kalām

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1184. Source ↗

ما تضمن كلمتين بالإسناد.

That which contains two words connected by predication.

وعلم يبحث فيه عن ذات الله تعالى وصفاته وأحوال الممكنات من المبدأ والمعاد على قانون الإسلام والقيد الأخير لإخراج العلم الإلهي للفلاسفة وفي اصطلاح النحويين هو المعنى المركب الذي فيه الإسناد التام وعلم باحث عن أمور يعلم منها المعاد وما يتعلق به من الجنة والنار والصراط والميزان والثواب والعقاب وقيل الكلام هو العلم بالقواعد الشرعية الاعتقادية المكتسبة عن الأدلة.

Also: the science in which inquiry concerns God’s essence, exalted is He, His attributes, and the conditions of contingent things in their origin and return, according to the rule of Islam. The last qualification excludes the philosophers’ metaphysics. In the terminology of grammarians, it is a composite meaning containing complete predication. It is also a science investigating matters through which the return and what pertains to it are known: Paradise, Hell, the Bridge, the Balance, reward, and punishment. It has also been defined as knowledge of the doctrinal principles of revealed law acquired through proofs.

Editorial note. Kalām as connected discourse and kalām as theology are separately recognizable senses in this complete article; neither should erase the other.

↑ Term directory · Sources · Subject index

111. kullī كُلِّيّ

In the Darūrī: Universal: a meaning under which particulars fall, crucial to understanding legal extension beyond a named example.

Text: §2 · §165 · §191 · §212 · §221

الكلي الإضافي · kullī iḍāfī

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1190. Source ↗

Relation to glossary term: specified technical headword.

هو الأعم من شيء.

That which is broader than something else.

واعلم أنه إذا قلنا الحيوان مثلا كلي فهناك أمور ثلاثة الحيوان حيث هو ومفهوم الكلي والحيوان من حيث إنه يعرض له الكلية والمجموع المركب منهما أي من الحيوان والكلي والتغاير بين هذه المفهومات ظاهر فإن مفهوم الكلي ما لا يمنع نفس تصوره عن وقوع الشركة فيه ومفهوم الحيوان الجسم النامي الحساس المتحرك بالإرادة فالأول يسمى كليا طبيعيا لأنه موجود في الطبيعة أي في الخارج والثاني كليا منطقيا لأن المنطق إنما يبحث عنه والثالث كليا عقليا لعدم تحقيقه إلا في العقل.

Know that when we say, for example, “Animal is universal,” three things are involved: animal as such; the concept of the universal; and animal insofar as universality accrues to it—the combination composed of animal and universal. The difference between these concepts is evident. The concept of the universal is that whose very conception does not prevent sharing in it; the concept of animal is a growing, sentient body moving by will. The first is called the natural universal, since it exists in nature, that is, outside the mind; the second, the logical universal, because logic investigates it; and the third, the intellectual universal, since it is realized only in the intellect.

والكلي إما ذاتي وهو الذي يدخل في حقيقة جزئياته كالحيوان بالنسبة إلى الإنسان والفرس وإما عرضي وهو الذي لا يدخل في حقيقة جزئياته بألا يكون جزءا أو بأن يكون خارجا كالضاحك بالنسبة إلى الإنسان.

A universal is either essential, entering into the reality of its particulars, as animal does in relation to the human being and the horse; or accidental, not entering into their reality, by not being a part or by being external to it, as “capable of laughter” is in relation to the human being.

الكلي الحقيقي · kullī ḥaqīqī

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1191. Source ↗

Relation to glossary term: specified technical headword.

ما لا يمنع نفس تصوره من وقوع الشركة فيه كالإنسان وإنما سمي كليا لأن كلية الشيء إنما هي بالنسبة إلى الجزئي والكلي جزء الجزئي فيكون ذلك الشيء منسوبا إلى الكل والمنسوب إلى الكل كلي.

That whose very conception does not prevent its being shared, as with “human being.” It is called universal because a thing’s universality is relative to the particular, and the universal is a part of the particular; the thing is thus related to the whole, and what is related to the whole is called kullī.

↑ Term directory · Sources · Subject index

112. kināya كِنَايَة

In the Darūrī: Indirect expression: signifying by an associated meaning rather than simply naming the referent directly.

Text: §164 · §167

الكناية · kināya

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1194. Source ↗

كلام استتر المراد منه بالاستعمال وإن كان معناه ظاهرا في اللغة سواء كان المراد به الحقيقة أو المجاز فيكون تردد فيما أريد به فلا بد من النية أو ما يقوم مقامها من دلالة الحال كحال مذاكرة الطلاق ليزول التردد ويتعين ما أريد منه.

Discourse whose intended meaning is concealed in its use, although its linguistic meaning is apparent, whether the intended meaning is literal or figurative. There is therefore uncertainty about what is intended, and intention—or what takes its place, such as a contextual indication, for example the circumstance of discussing divorce—is required to remove the uncertainty and determine the intended meaning.

والكناية عند علماء البيان هي أن يعبر عن شيء لفظا كان أو معنى بلفظ غير صريح من الدلالة عليه لغرض من الأغراض كالإبهام على السامع نحو جاء فلان أو لنوع فصاحة نحو فلان كثير الرماد أي كثير القرى.

Among the scholars of rhetoric, kināya is expressing something, whether a word or a meaning, by an expression that does not indicate it explicitly, for some purpose: for example, leaving it unspecified to the hearer, as in “So-and-so came”; or for an eloquent effect, as in “So-and-so has abundant ashes,” meaning that he is abundantly hospitable.

وما استتر معناه لا يعرف إلا بقرينة زائدة ولهذا سموا التاء في قولهم أنت والهاء في قولهم إنه حرف كناية وكذا قولهم هو وهو مأخوذ من قولهم كنوت الشيء وكنيته أي سترته.

Also: that whose meaning is concealed and is known only through an additional indicator. For this reason they call the tāʾ in anta (“you”) and the hāʾ in innahu (“indeed he”) a letter of kināya, and likewise the expression huwa (“he”). The term is taken from their expressions kanawtu al-shayʾ and kanaytuhu, meaning “I concealed it.”

↑ Term directory · Sources · Subject index

113. lafẓ لَفْظ

In the Darūrī: Expression or wording; its verbal form is distinguished from the meaning indicated in the whole discourse.

Text: §109 · §148 · §149 · §153

اللفظ · lafẓ

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1225. Source ↗

ما يتلفظ به الإنسان أو من في حكمه مهملا كان أو مستعملا.

What a human being, or something treated as equivalent, utters, whether it is without an assigned meaning or is in established linguistic use.

↑ Term directory · Sources · Subject index

114. mubāḥ مُبَاح

In the Darūrī: Permitted: not demanded or forbidden in the respect being considered. Its status as “commanded” is itself disputed.

Text: §16 · §17 · §27

المباح · mubāḥ

ʿAbd al-Raʾūf al-Munāwī [L] · *al-Tawqīf ʿalā muhimmāt al-taʿārīf* · s.v. المباح. Source ↗

ما لا يثاب على فعله، ولا يعاقب على تركه.

That for whose performance one is not rewarded and for whose omission one is not punished.

Editorial note. The qualification “insofar as the act is permitted” belongs to contextual interpretation; it is not an additional sentence in this short historical article.

↑ Term directory · Sources · Subject index

115. mutawātir مُتَوَاتِر

In the Darūrī: Mass-transmitted: a mode of communication yielding certainty through the circumstances of its transmission, not a universally fixed count.

Text: §75 · §76 · §78

Complete article: al-Sharīf al-Jurjānī · khabar mutawātir (p. 171). expanded named report-type article.

المتواتر · mutawātir

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1271. Source ↗

هو الخبر الثابت على ألسنة قوم لا يتصور تواطؤهم على الكذب لكثرتهم أو لعدالتهم كالحكم بأن النبي صلى الله عليه وسلم ادعى النبوة وأظهر المعجزة على يده سمي بذلك لأنه لا يقع دفعة بل على التعاقب والتوالي.

A report established on the tongues of people whose collusion in falsehood is inconceivable because of their number or their probity. An example is the judgement that the Prophet, peace and blessings be upon him, claimed prophethood and that a miracle appeared through him. It is called mutawātir because it does not occur all at once, but successively and continuously.

↑ Term directory · Sources · Subject index

116. mithāl مِثَال

In the Darūrī: Example or illustrative case; its relation to a universal meaning must be distinguished from a merely verbal likeness.

Text: §1 · §6 · §212

المثال · mithāl

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1275. Source ↗

ما اعتل فاؤه كوعد ويسر وقيل ما يذكر لإيضاح القاعدة بتمام إشارتها.

[In morphology,] a verb whose first root letter is weak, as with waʿada and yasara. It has also been defined as what is mentioned to clarify a rule with its full indication.

↑ Term directory · Sources · Subject index

117. majāz مَجَاز

In the Darūrī: Figurative or transferred usage. It includes omission, addition and substitution, not merely literary metaphor.

Text: §65 · §153 · §154 · §162 · §164

المجاز · majāz

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1278. Source ↗

اسم لما أريد به غير ما وضع له لمناسبة بينهما كتسمية الشجاع أسدا وهو مفعل بمعنى فاعل من جاز إذا تعدى كالمولى بمعنى الوالي سمي به لأنه متعد من محل الحقيقة إلى محل المجاز قوله لمناسبة بينهما احترز به عما استعمل في غير ما وضع له لا لمناسبة فإن ذلك لا يسمى مجازا بل كان مرتجلا أو خطأ.

A name for an expression by which something other than its assigned meaning is intended, because of a relation between the two, as when a courageous man is called a lion. It has the pattern mafʿal with an active meaning, from jāza, “to pass beyond,” just as mawlā can mean wālī. It is so called because it passes from the domain of literal usage into the domain of figurative usage. “Because of a relation between the two” excludes an expression used outside its assigned meaning without such a relation: that is not figurative usage but a newly coined usage or a mistake.

والمجاز إما مرسل أو استعارة لأن العلاقة المصححة له إما أن تكون مشابهة المنقول إليه بالمنقول عنه في شيء وإما أن تكون غيرها فإن كان الأول يسمى المجاز استعارة كلفظ الأسد إذا استعمل في الشجاع وإن كان الثاني فيسمى مرسلا كلفظ اليد إذا استعمل في النعمة كما يقال جلت أياديه عندي أي كثرت نعمه لدي واليد في اللغة العضو المخصوص والعلاقة كون ذلك العضو مصدرا للنعمة فإنها تصل إلى المنعم عليه من اليد.

Figurative usage is either unrestricted transfer or metaphor. The relation validating it is either a resemblance, in some respect, between the transferred-to and transferred-from meanings, or another relation. In the first case it is called metaphor, as when “lion” is used for a courageous man. In the second it is called unrestricted transfer, as when “hand” is used for a favour: “His hands towards me are great,” meaning that his favours to me are many. In language “hand” denotes the particular bodily member; the relation is that this member is the source of a favour, which reaches its recipient from the hand.

والفرق بين المعنيين أن الاستعارة في الأول اسم للفظ المنقول وفي الثاني للنقل وعلى الثاني يسمى المشبه به وهو الحيوان المفترس مستعارا منه والمشبه وهو الشجاع مستعارا له واللفظ وهو لفظ الأسد مستعارا والمتلفظ وهو المستعمل للفظ الأسد في الشجاع مستعيرا ووجه الشبه وهو الشجاعة ما به الاستعارة ولا تصح هذه الاشتقاقات في الاستعارة بالمعنى الأول وهو ظاهر.

The difference between the two senses [of istiʿāra] is that in the first it names the transferred expression and in the second the transfer itself. In the second sense, the object of comparison—the predatory animal—is “that from which the borrowing is made”; the subject compared—the courageous person—is “that for which it is made”; the expression “lion” is “what is borrowed”; the speaker using “lion” for the courageous person is “the borrower”; and the point of resemblance, courage, is “that through which the borrowing occurs.” These derivatives do not apply to metaphor in the first sense, as is evident.

والمجاز ما جاوز وتعدى عن محله الموضوع له إلى غيره لمناسبة بينهما إما من حيث الصورة أو من حيث المعنى اللازم المشهور أو من حيث القرب والمجاورة كاسم الأسد للرجل الشجاع وكألفاظ يكنى بها الحديث.

Figurative usage is also that which goes beyond and passes from the place assigned to it into another because of a relation between them—in form, in a well-known concomitant meaning, or in proximity and adjacency—as with the name “lion” for the courageous man and with expressions by which discourse is conveyed indirectly.

والمجاز العقلي ويسمى مجازا حكميا ومجازا في الإثبات وإسنادا مجازيا وهو إسناد الفعل أو معناه إلى ملابس له غير ما هو له أي غير الملابس الذي ذلك الفعل أو معناه له يعني غير الفاعل فيما بني للفاعل وغير المفعول فيما بني للمفعول بتأول متعلق بإسناده.

Intellectual figurative usage—also called figurative judgement, figurative affirmation, or figurative predication—is attributing an act, or its meaning, to something associated with it other than that to which it properly belongs: that is, other than the agent in an active construction or the patient in a passive construction, by an interpretive transfer affecting the attribution.

وحاصله أن تنصب قرينة صارفة للإسناد عن أن يكون إلى ما هو له كقوله في عيشة راضية فيما بني للفاعل وأسند إلى المفعول به إذ العيشة مرضية وسيل مفعم في عكسه اسم مفعول من أفعمت الإناء ملأته وأسند إلى الفاعل.

In sum, one establishes an indicator diverting the attribution from its proper subject. For example, “in a contented life” [Q 69:21; 101:7] uses an active form but attributes it to what is properly the object, since the life is that with which one is content. Conversely, “a filled torrent” uses a passive participle from “I filled the vessel,” but attributes it to the agent that does the filling.

والمجاز اللغوي هو الكلمة المستعملة في غير ما وضعت له بالتحقيق في اصطلاح به التخاطب مع قرينة مانعة عن إرادته أي إرادة معناها في ذلك الاصطلاح.

Linguistic figurative usage is a word used for other than what it was actually assigned to denote in the convention governing the discourse, together with an indicator preventing that meaning from being intended—that is, its meaning within that convention.

والمجاز المركب هو اللفظ المستعمل فيما شبه بمعناه الأصلي أي بالمعنى الذي يدل عليه ذلك اللفظ بالمطابقة للمبالغة في التشبيه كما يقال للمتردد في أمر إني أراك تقدم رجلا وتؤخر أخرى.

Composite figurative usage is an expression used for something compared with its original meaning—the meaning it indicates by complete correspondence—in order to intensify the comparison. For example, one says to someone hesitating over a matter: “I see you putting one foot forward and drawing the other back.”

Editorial note. This complete numbered article includes the source’s subordinate discussions of intellectual, linguistic, and composite figurative usage. They are not reduced to its opening definition.

↑ Term directory · Sources · Subject index

118. mujtahid مُجْتَهِد

In the Darūrī: One qualified to undertake independent juristic inquiry; competence may concern a determinate question rather than every branch of law.

Text: §231 · §232 · §233 · §234 · §236

المجتهد · mujtahid

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1281. Source ↗

من يحوي علم الكتاب ووجوه معانيه وعلم السنة بطرقها ومتونها ووجوه معانيها ويكون مصيبا في القياس عالما بعرف الناس.

One who possesses knowledge of the Book and the aspects of its meanings, and of the Sunna in its transmission routes, wording, and aspects of meaning; who reasons correctly by analogy; and who knows people’s customary practice.

↑ Term directory · Sources · Subject index

119. mujmal مُجْمَل

In the Darūrī: Indeterminate wording or indication, insufficient by itself to select the required meaning; clarification can come through several kinds of evidence.

Text: §151 · §155 · §158 · §214 · §218

المجمل · mujmal

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1289. Source ↗

هو ما خفي المراد منه بحيث لا يدرك بنفس اللفظ إلا ببيان من المجمل سواء كان ذلك لتزاحم المعاني المتساوية الإقدام كالمشترك أو لغرابة اللفظ كالهلوع أو لإنتقاله من معناه الظاهر إلى ما هو غير معلوم فترجع إلى الاستفسار ثم الطلب ثم التأمل كالصلاة والزكاة والربا فإن الصلاة في اللغة الدعاء وذلك غير مراد وقد بينها النبي ص - بالفعل فتطلب المعنى الذي جعلت الصلاة لأجله صلاة أهو التواضع والخشوع أو الأركان المعلومة ثم نتأول أي نتعدى إلى صلاة - الجنازة فيمن يخلفه ويصلي أم لا.

An expression whose intended meaning is hidden so that it cannot be grasped from the wording itself without explanation from the one who left it indeterminate. This may result from competing senses with equal claims, as with an equivocal word; unfamiliarity, as with halū‘; or transfer from its apparent sense to an unknown one. One consequently turns to requesting explanation, then investigation, then reflection: examples include prayer, alms, and usury. Prayer ordinarily means supplication, but that is not what is intended here, and the Prophet explained it by action. One investigates what makes prayer prayer: humility and reverence, or the known integral acts? One then interprets—that is, extends the consideration—to funeral prayer, concerning someone who replaces him and whether he prays or not.

Editorial note. The final phrase “فيمن يخلفه” is unclear in this witness; it is translated cautiously rather than silently reconstructed. The article is retained complete up to the next numbered headword.

↑ Term directory · Sources · Subject index

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120. maḥkūm ʿalayhi مَحْكُوم عَلَيْهِ

In the Darūrī: The person to whom the ruling applies; understanding, capacity and other conditions affect the nature of the address.

Text: §36 · §38 · §42

Complete article: Muḥammad ʿAlī al-Tahānawī · ḥākim (p. 176). exact ḥākim article, which expressly defines maḥkūm fīhi, maḥkūm ʿalayhi and mukallaf; not three invented separate articles.

↑ Term directory · Sources · Subject index

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121. maḥkūm fīhi مَحْكُوم فِيهِ

In the Darūrī: The act or matter about which a legal judgement is made; distinguish the person addressed by it.

Text: §36 · §43

Complete article: Muḥammad ʿAlī al-Tahānawī · ḥākim (p. 176). exact ḥākim article, which expressly defines maḥkūm fīhi, maḥkūm ʿalayhi and mukallaf; not three invented separate articles.

↑ Term directory · Sources · Subject index

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122. mukhayyil مُخَيِّل

In the Darūrī: A ground presenting a plausible rationale for a ruling, often considered with suitability. Not “imaginal” in the metaphysical sense.

Text: §217 · §224

الإخالة · ikhāla

Attributed to Jalāl al-Dīn al-Suyūṭī [L] · *Muʿjam maqālīd al-ʿulūm fī al-ḥudūd wa-l-rusūm* · entry 308. Source ↗

Relation to glossary term: related technical headword.

ملاءمة الحكم للمصلحة ومناسبة العلة.

The ruling’s fitting the benefit, and the appropriateness of the cause.

Editorial note. This is the uṣūlī technical sense relevant to mukhayyil, separately attributed from the logical article on mukhayyilāt.

المخيلات · mukhayyilāt

Attributed to Jalāl al-Dīn al-Suyūṭī [L] · *Muʿjam maqālīd al-ʿulūm fī al-ḥudūd wa-l-rusūm* · entry 970. Source ↗

Relation to glossary term: plural headword; logical/poetic sense.

قضايا إذا وردت على النفس أثرت فيها تأثيرا عجيبا من قبض، وبسط.

Propositions which, when presented to the soul, affect it strikingly through contraction or expansion.

Editorial note. This is the logical and poetic sense of imaginative propositions. It must not be substituted for the uṣūlī use of mukhayyil for a feature that suggests the appropriateness of a legal cause.

Complete article: Muḥammad ʿAlī al-Tahānawī · maṣlaḥa (p. 224). related technical discussion of ikhāla and mukhayyila within the complete maṣlaḥa article.

↑ Term directory · Sources · Subject index

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123. mudrak مُدْرَك

In the Darūrī: Source or means of apprehension: where or how a judgement is known. The lexical vocalization has an initial ḍamma.

Text: §13 · §47

درك · d-r-k

al-Rāghib al-Iṣfahānī [E] · *al-Mufradāt fī gharīb al-Qur'ān* · s.v. درك. Source ↗

Relation to glossary term: complete root article on reaching and apprehension; not an exact technical mudrak headword.

الدرك كالدرج، لكن الدرج يقال اعتبارا بالصعود، والدرك اعتبارا بالحدور، ولهذا قيل: درجات الجنة، ودركات النار، ولتصور الحدور في النار سميت هاوية، وقال تعالى: إن المنافقين في الدرك الأسفل من النار [النساء/145]، والدرك أقصى قعر البحر. ويقال للحبل الذي يوصل به حبل آخر ليدرك الماء درك، ولما يلحق الإنسان من تبعة درك كالدرك في البيع. قال تعالى: لا تخاف دركا ولا تخشى [طه/77]، أي: تبعة.

Dark resembles daraj, but daraj is used with regard to ascent and dark with regard to descent. Hence one speaks of the ascending degrees of Paradise and the descending levels of the Fire; because descent is conceived in the Fire it is called Hāwiya, the abyss. God Most High says: “The hypocrites are in the lowest level of the Fire” [Q 4:145]. Darak also means the deepest bottom of the sea. The rope joined to another rope to reach water is called darak, as is a liability that catches up with a person, such as liability in a sale. God says: “Fearing neither pursuit nor harm” [Q 20:77], that is, being overtaken.

وأدرك: بلغ أقصى الشيء، وأدرك الصبي: بلغ غاية الصبا، وذلك حين البلوغ، قال: حتى إذا أدركه الغرق [يونس/90]، وقوله: لا تدركه الأبصار وهو يدرك الأبصار [الأنعام/103]، فمنهم من حمل ذلك على البصر الذي هو الجارحة، ومنهم من حمله على البصيرة، وذكر أنه قد نبه به على ما روي عن أبي بكر رضي الله عنه في قوله: يا من غاية معرفته القصور عن معرفته، إذ كان غاية معرفته تعالى أن تعرف الأشياء فتعلم أنه ليس بشيء منها، ولا بمثلها بل هو موجد كل ما أدركته.

Adraka means to reach a thing’s furthest point. “The boy adraka” means that he reached the limit of childhood, at puberty. God says: “Until drowning overtook him” [Q 10:90]. As for “Eyes do not encompass Him, but He encompasses eyes” [Q 6:103], some interpret this as bodily sight and others as inner perception. It has been said that this points to the saying reported from Abū Bakr, God be pleased with him: “O You, the limit of whose knowledge is falling short of knowing You!” For the utmost knowledge of Him Most High is to know things and thereby know that He is neither any of them nor like them, but is the bringer-into-existence of everything one apprehends.

والتدارك في الإغاثة والنعمة أكثر، نحو قوله تعالى: لولا أن تداركه نعمة من ربه [القلم/49]، وقوله: حتى إذا اداركوا فيها جميعا [الأعراف/38]، أي: لحق كل بالآخر. وقال: بل ادارك علمهم في الآخرة [النمل/66]، أي: تدارك، فأدغمت التاء في الدال، وتوصل إلى السكون بألف الوصل، وعلى ذلك قوله تعالى: حتى إذا اداركوا فيها [الأعراف/38]، ونحوه: اثاقلتم إلى الأرض [التوبة/38]، واطيرنا بك [النمل/47]، وقرئ: بل أدرك علمهم في الآخرة، وقال الحسن: معناه جهلوا أمر الآخرة، وحقيقته انتهى علمهم في لحوق الآخرة فجهلوها. وقيل معناه: بل يدرك علمهم ذلك في الآخرة، أي: إذا حصلوا في الآخرة، لأن ما يكون ظنونا في الدنيا، فهو في الآخرة يقين.

Tadāruk is most often used for aid and favour, as in “Had not a favour from his Lord reached him” [Q 68:49]. “Until, when they have all caught up with one another in it” [Q 7:38] means that each joined the other. He also says: “Rather, their knowledge concerning the Hereafter has reached its limit” [Q 27:66]: iddāraka here represents tadāraka, with the tā’ assimilated into dāl and a connecting alif permitting pronunciation of the initial consonant cluster. The same applies to iddārakū in Q 7:38, and similarly to iththāqaltum, “you clung heavily to the earth” [Q 9:38], and iṭṭayyarnā bika, “we take you as an evil omen” [Q 27:47]. The reading “bal adraka ʿilmuhum fī l-ākhira” is also transmitted. Al-Ḥasan says it means that they were ignorant of the Hereafter: strictly, their knowledge ended when it came to reaching the Hereafter, so they were ignorant of it. Another interpretation is that their knowledge will apprehend it in the Hereafter—when they arrive there—because what is conjectural in this world is certain in the Hereafter.

Editorial note. The inherited glossary’s technical contextual gloss is not claimed to be a dictionary definition of this exact vocalization. The root article distinguishes sensory and intellectual apprehension.

↑ Term directory · Sources · Subject index

124. mursal مُرْسَل

In the Darūrī: A report whose chain leaves an intermediary unmentioned; acceptance is discussed separately from connected transmission.

Text: §111

المرسل · mursal

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1333. Source ↗

من الحديث ما أسنده التابعي أو تبع التابعي إلى النبي ص - من غير أن يذكر الصحابي الذي روى الحديث عن النبي ص - كما يقول قال رسول الله صلى الله عليه و سلم.

A report that a Successor or a Successor’s successor attributes to the Prophet without mentioning the Companion who transmitted it from the Prophet, as when he says, “The Messenger of God said.”

↑ Term directory · Sources · Subject index

125. musnad مُسْنَد

In the Darūrī: A report with an articulated connected attribution; its comparative force still depends on the relevant transmitters and circumstances.

Text: §111

المسند · musnad

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1366. Source ↗

من الحديث خلاف المرسل وهو الذي اتصل إسناده إلى رسول الله صلى الله عليه وسلم وهو ثلاثة أقسام المتواتر والمشهور والآحاد.

Among reports, the counterpart of mursal: a report whose attribution is connected to God’s Messenger, peace and blessings be upon him. It has three divisions: massively transmitted, widely transmitted, and solitary.

والمسند قد يكون متصلا ومنقطعا والمتصل مثل ما روى مالك عن نافع عن ابن عمر عن رسول الله صلى الله عليه وسلم والمنقطع مثل ما روى مالك عن الزهري عن ابن عباس عن رسول الله صلى الله عليه وسلم فهذا مسند لأنه قد أسند إلى رسول الله صلى الله عليه وسلم ومنقطع لأن الزهري لم يسمع من ابن عباس رضي الله عنه.

A musnad report may have a connected or an interrupted chain. A connected example is Mālik’s transmission from Nāfiʿ, from Ibn ʿUmar, from God’s Messenger, peace and blessings be upon him. An interrupted example is Mālik’s transmission from al-Zuhrī, from Ibn ʿAbbās, from God’s Messenger, peace and blessings be upon him. This is musnad because it is attributed to God’s Messenger, but interrupted because, according to the source, al-Zuhrī did not hear from Ibn ʿAbbās, God be pleased with him.

Editorial note. The apparent tension between the opening definition and the subsequent acceptance of an interrupted musnad is preserved: attribution to the Prophet and continuity of every link are not silently conflated.

↑ Term directory · Sources · Subject index

126. mashhūrāt مَشْهُورَات

In the Darūrī: Widely accepted propositions; general acceptance alone does not establish rational necessity or demonstrative truth.

Text: §12

المشهورات · mashhūrāt

Attributed to Jalāl al-Dīn al-Suyūṭī [L] · *Muʿjam maqālīd al-ʿulūm fī al-ḥudūd wa-l-rusūm* · entry 964. Source ↗

ما يحكم بها لاعتراف الناس جميعا بها لمصلحة عامة، أو رقة، أو حمية، أو انفعالات من عبادات، وشرائع، وآداب.

Propositions accepted in judgement because all people acknowledge them: on account of a general benefit, compassion, zeal, or responses produced by acts of worship, religious laws, and cultivated manners.

Editorial note. The witness reads ʿibādāt (acts of worship), not ʿādāt (customs); the translation retains that reading. This is a definition of accepted propositions, not a claim that their popularity makes them demonstratively certain.

↑ Term directory · Sources · Subject index

127. maṣlaḥa مَصْلَحَة

In the Darūrī: Benefit or welfare. Its legal authority depends on its relation to recognized purposes or evidence, not on attractiveness alone.

Text: §146 · §217

المصلحة · maṣlaḥa

Muḥammad ʿAlī al-Tahānawī [L] · *Kashshāf iṣṭilāḥāt al-funūn wa-l-ʿulūm* · vol. 2, p. 1559. Source ↗

هي ما يترتّب على الفعل وقد ذكر في لفظ الغاية في الناقص اليائي، وجمع المصلحة المصالح. والمصالح المرسلة عند الأصوليين هي الأوصاف التي تعرف عليّتها أي بدون شهادة الأصول بمجرّد الإخالة أي بمجرّد كونها مخيّلة أي موقعة في القلب خيال العلّية والصّحة فلم يشهد لها الشرع بالاعتبار ولا بالإبطال، وهي مقبولة عند الغزالي إذا كانت المصلحة ضرورية قطعية كلّية.

It is what results from an act; it has been discussed under ghāya in the section for roots whose final radical is yā'. The plural of maṣlaḥa is maṣāliḥ. Among the legal theorists, unrestricted interests (al-maṣāliḥ al-mursala) are attributes whose causal relevance is recognized —that is, without testimony from the established sources—merely through their appearing appropriate (ikhāla): merely through their suggesting, or producing in the mind an impression of, causal relevance and soundness. The revealed law has therefore testified neither to their recognition nor to their invalidation. Al-Ghazālī accepts them when the interest is necessary, certain and universal.

ثم قال الغزالي: وهذه أي المصلحة التي لم يشهد لها الشرع بالاعتبار ولا بالإبطال وإن سمّيناها مصلحة مرسلة، لكنها راجعة إلى الأصول الأربعة لأنّ مرجع المصلحة إلى حفظ مقاصد الشرع المعلومة بالكتاب والسّنّة والإجماع، فهي ليست بقياس إذ القياس له أصل معيّن.

Al-Ghazālī then said: this—that is, an interest to whose recognition or invalidation the revealed law has not testified—even though we call it an unrestricted interest, nevertheless goes back to the four sources. For interest ultimately consists in preserving the purposes of the revealed law that are known through the Book, the Sunna and consensus. It is not analogy, since analogy has a particular original case.

والمصالح الحاجية هي التي في محلّ الحاجة، والمصالح التحسينية هي التي لا تكون في محلّ الضرورة ولا الحاجة بل هي تقرير الناس على مكارم الأخلاق ومحاسن الشّيم، هكذا يستفاد من التوضيح والتلويح والحلبي ويجيء في لفظ المناسبة أيضا.

Interests pertaining to needs (al-maṣāliḥ al-ḥājiyya) are those arising where there is a need. Refining interests (al-maṣāliḥ al-taḥsīniyya) arise neither at the level of necessity nor at that of need; rather, they establish people in noble character and praiseworthy dispositions. This is what is gathered from al-Tawḍīḥ, al-Talwīḥ and al-Chalabī. It will also be discussed under munāsaba.

Editorial note. The historical Arabic article is reproduced in full up to the following headword, al-muṣmat. The modern English/French labels of the 1996 edition are not part of al-Tahānawī's article. "Universal" translates kulliyya in the quoted condition; this is the dictionary's report of al-Ghazālī, not an assertion that Ibn Rushd adopts that condition.

↑ Term directory · Sources · Subject index

128. muṭlaq مُطْلَق

In the Darūrī: Unqualified: wording without a stated restriction in the relevant respect. Unqualified and general are not simply interchangeable categories.

Text: §189 · §201 · §203

المطلق · muṭlaq

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1398. Source ↗

ما يدل على واحد غير معين.

What indicates one unspecified instance.

↑ Term directory · Sources · Subject index

129. maʿqūl مَعْقُول

In the Darūrī: Intelligible meaning or object of understanding. In legal interpretation it contrasts with reliance upon verbal form alone.

Text: §149 · §193 · §212

المعقول · maʿqūl

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1418. Source ↗

الكلي الذي يطابق صورة في الخارج كالإنسان والحيوان والضاحك.

The universal that corresponds to a form externally, such as human being, animal, and capable of laughter.

المعقولات الأولى · maʿqūlāt ūlā

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1416. Source ↗

Relation to glossary term: explicitly specified kind of headword.

ما يكون بإزائه موجود في الخارج كطبيعة الحيوان والإنسان فإنهما يحملان على الموجود الخارجي كقولنا زيد إنسان والفرس حيوان.

Those to which something existing externally corresponds, such as the nature of animal or human being. They are predicated of an external existent, as in “Zayd is a human being” and “The horse is an animal.”

المعقولات الثانية · maʿqūlāt thāniya

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1417. Source ↗

Relation to glossary term: explicitly specified kind of headword.

ما لا يكون بإزائه شيء فيه كالنوع والجنس والفصل فإنها لا تحمل على شيء من الموجودات الخارجية.

Those to which no thing in external existence corresponds, such as species, genus, and differentia. These are not predicated of any external existent.

↑ Term directory · Sources · Subject index

130. maʿlūl مَعْلُول

In the Darūrī: That explained or grounded by an ʿilla; correspondence with a feature does not by itself establish explanatory dependence.

Text: §210 · §220 · §222

المعلول الأخير · maʿlūl akhīr

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1421. Source ↗

Relation to glossary term: specified kind, not exact unqualified headword.

هو ما لا يكون علة لشيء أصلا.

That which is not a cause of anything at all.

Editorial note. This is specifically the final effect, not an unqualified definition of every effect.

↑ Term directory · Sources · Subject index

131. maʿnā مَعْنَى

In the Darūrī: Meaning, intelligible content or relevant feature. Translating it uniformly as “cause” would conceal important distinctions.

Text: §149 · §158 · §193 · §212

المعاني · maʿānī

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1404. Source ↗

Relation to glossary term: plural headword; explicit internal discussion.

هي الصورة الذهنية من حيث انه وضع بإزائها الألفاظ والصور الحاصلة في العقل فمن حيث إنها تقصد باللفظ سميت مفهوما ومن حيث انه مقول في جواب ما هو سميت ماهية ومن حيث ثبوته في الخارج سميت حقيقة ومن حيث امتيازه عن الأغيار سميت هوية.

They are the mental form considered insofar as expressions are assigned to it. The forms present in the intellect are called a concept insofar as they are intended by an expression; a quiddity insofar as they are predicated in answer to “What is it?”; a reality insofar as they are established externally; and an identity insofar as they are distinguished from other things.

Editorial note. The plural maʿānī is the source headword. Its discussion of mafhūm is retained within that article and separately cross-referenced, not relabeled.

المعنى · maʿnā

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1426. Source ↗

ما يقصد بشيء.

What is intended by a thing.

↑ Term directory · Sources · Subject index

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132. mafhūm مَفْهُوم

In the Darūrī: Understood import: the meaning apprehended through an expression and its context, including but not limited to contrary implication.

Text: §149 · §193 · §194 · §195

Complete article: al-Sharīf al-Jurjānī · maʿānī (p. 225). plural headword; explicit internal discussion.

Complete article: al-Sharīf al-Jurjānī · mafhūm al-mukhālafa (p. 185). named technical counterpart.

مفهوم الموافقة · mafhūm al-muwāfaqa

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1445. Source ↗

Relation to glossary term: specified kind of concept.

هو ما يفهم من الكلام بطريق المطابقة.

What is understood from speech by direct correspondence.

Editorial note. This source’s concise use of muṭābaqa is reproduced as written; it should not be silently assimilated to another school’s definition.

Complete article: ʿAbd al-Raʾūf al-Munāwī · manṭūq (p. 230). exact manṭūq article, including its explicit contrast with mafhūm.

↑ Term directory · Sources · Subject index

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133. muqaddima مُقَدِّمَة

In the Darūrī: Premise, or an introductory discussion. Premises can contribute to assent without being consciously arranged as a syllogism.

Text: §9 · §75 · §76

المقدمة · muqaddima

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1456. Source ↗

تطلق تارة على ما يتوقف عليه الأبحاث الآتية وتارة تطلق على قضية جعلت جزء القياس وتارة تطلق على ما يتوقف عليه صحة الدليل.

Sometimes applied to what subsequent investigations depend upon, sometimes to a proposition made a constituent of a syllogism, and sometimes to what the validity of a proof depends upon.

والمقدمة الغريبة هي التي لا تكون مذكورة في القياس لا بالفعل ولا بالقوة كما إذا قلنا أ مساو ل ب و ب مساو ل ج ينتج أ مساو ل ج بواسطة مقدمة غريبة وهي كل مساو لشيء مساو لذلك الشيء.

An extraneous premise is one mentioned in a syllogism neither actually nor potentially. Thus, “A equals B; B equals C” yields “A equals C” by an extraneous premise, here worded: “Everything equal to a thing is equal to that thing.”

ومقدمة الكتاب ما يذكر فيه قبل الشروع في المقصود لارتباطها ومقدمة العلم ما يتوقف عليه الشروع فمقدمة الكتاب أعم من مقدمة العلم بينهما عموم وخصوص مطلق والفرق بين المقدمة والمبادىء أن المقدمة أعم عن المبادىء فالمبادىء يتوقف عليها المسائل بلا واسطة والمقدمة ما يتوقف عليه المسائل بواسطة أو لا واسطة.

A book’s introduction is what is mentioned before commencing the intended subject because of its connection with it. A science’s introduction is what commencing that science depends upon. The former is therefore broader than the latter, their relation being unrestricted generality and particularity. An introduction is also broader than principles: problems depend immediately on principles, whereas they may depend on an introduction either mediately or immediately.

Editorial note. The extraneous premise is abbreviated or defective in this witness: transitivity requires equality to the equal of a thing. The translation preserves the transmitted wording rather than silently supplying it.

↑ Term directory · Sources · Subject index

134. maqṣūd مَقْصُود

In the Darūrī: What is intended: the intelligible aim of the address, recovered through indications rather than supplied by arbitrary preference.

Text: §161 · §191 · §217 · §239

قصد · qaṣada

al-Rāghib al-Iṣfahānī [E] · *al-Mufradāt fī gharīb al-Qur’ān* · s.v. قصد. Source ↗

Relation to glossary term: complete root article; technical compound is not an independent headword.

القَصْدُ: استقامة الطريق، يقال: قَصَدْتُ قَصْدَهُ، أي: نحوت نحوه، ومنه: الاقْتِصَادُ، والاقْتِصَادُ على ضربين: أحدهما محمود على الإطلاق، وذلك فيما له طرفان: إفراط وتفريط كالجود، فإنه بين الإسراف والبخل، وكالشّجاعة فإنّها بين التّهوّر والجبن، ونحو ذلك، وعلى هذا قوله: وَاقْصِدْ فِي مَشْيِكَ [لقمان/19] وإلى هذا النحو من الاقتصاد أشار بقوله: وَالَّذِينَ إِذا أَنْفَقُوا [الفرقان/67].

Qaṣd is straightness of a path. “I directed myself towards his direction” means “I went where he was going.” From this comes iqtiṣād, moderation. Moderation is of two kinds. The first is unconditionally praiseworthy: it concerns things with two extremes, excess and deficiency. Generosity, for example, lies between extravagance and stinginess, and courage between recklessness and cowardice, and similarly in other cases. Such is “Be moderate in your walking” [Q 31:19]. God also indicates this kind of moderation in “Those who, when they spend …” [Q 25:67].

والثاني يكنّى به عمّا يتردّد بين المحمود والمذموم، وهو فيما يقع بين محمود ومذموم، كالواقع بين العدل والجور، والقريب والبعيد، وعلى ذلك قوله: فَمِنْهُمْ ظالِمٌ لِنَفْسِهِ وَمِنْهُمْ مُقْتَصِدٌ [فاطر/32]، وقوله: وَسَفَراً قاصِداً [التوبة/42] أي: سفرا متوسّط غير متناهي هي البعد، وربما فسّر بقريب.

The second is an indirect expression for something intermediate between the praiseworthy and the blameworthy: it lies between something praised and something blamed, as between justice and injustice, or the near and the far. Such is “Among them are those who wrong themselves, and among them are those who take a middle course” [Q 35:32]. “And a journey of moderate length” [Q 9:42] means an intermediate journey, not extremely distant; it is sometimes explained as a short journey.

والحقيقة ما ذكرت، وأَقْصَدَ السّهم: أصاب وقتل مكانه، كأنه وجد قَصْدَهُ قال: فأصاب قلبك غير أن لم تقصد. وانْقَصَدَ الرّمحُ: انكسر، وتَقَصَّدَ: تكسّر، وقَصَدَ الرّمح: كسره، وناقة قَصِيدٌ: مكتنزة ممتلئة من اللّحم، والقَصِيدُ من الشّعر: ما تمّ شطر أبنيته.

The true sense is what I have explained. Aqṣada al-sahm means that the arrow struck and killed on the spot, as though it had found its mark. The poet says: “It struck your heart, though you were not killed outright.” Inqaṣada al-rumḥ means that the spear broke; taqaṣṣada, that it broke into pieces; and qaṣada al-rumḥ, that he broke it. A camel called qaṣīd is compact and full-fleshed. Qaṣīd in poetry is that in which one half of its metrical structures is complete.

Editorial note. The digital witness has هي البعد where في البعد is required by the sense; the translation reads “in distance”. The final prosodic definition is translated as transmitted, without silently replacing it with a modern definition of qaṣīda.

↑ Term directory · Sources · Subject index

135. muqayyad مُقَيَّد

In the Darūrī: Qualified: wording limited by a condition or attribute. Moving a qualification between contexts requires a warrant.

Text: §189 · §195

المقيد · muqayyad

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1461. Source ↗

ما قيد لبعض صفاته.

What is qualified with respect to some of its attributes.

↑ Term directory · Sources · Subject index

136. makrūh مَكْرُوه

In the Darūrī: Disapproved or disliked, one of the fivefold legal classifications; use in context can require distinction from outright forbiddance.

Text: §17 · §208

المكروه · makrūh

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1469. Source ↗

ما هو راجح الترك فإن كان إلى الحرام تكون كراهته تحريمية وإن كان إلى الحل أقرب تكون تنزيهية ولا يعاقب على فعله.

That which it is preferable to leave. If it is on the side of the prohibited, its disapproval is prohibitory; if it is nearer to the permissible, its disapproval is non-prohibitory, and doing it is not punished.

Editorial note. The source distinguishes two kinds in a Ḥanafī idiom. Karāha is linked as the corresponding abstract noun, not presented as this article’s printed headword.

↑ Term directory · Sources · Subject index

137. mukallaf مُكَلَّف

In the Darūrī: A person subject to legal responsibility; physical action, comprehension and the relevant legal conditions must be distinguished.

Text: §38 · §42 · §45 · §50

Complete article: Muḥammad ʿAlī al-Tahānawī · ḥākim (p. 176). exact ḥākim article, which expressly defines maḥkūm fīhi, maḥkūm ʿalayhi and mukallaf; not three invented separate articles.

↑ Term directory · Sources · Subject index

138. mulāʾim مُلَائِم

In the Darūrī: Congruent or fitting: a proposed ground related to a kind of consideration which revelation has recognized.

Text: §217 · §224

الملائم · mulāʾim

Attributed to Jalāl al-Dīn al-Suyūṭī [L] · *Muʿjam maqālīd al-ʿulūm fī al-ḥudūd wa-l-rusūm* · entry 311. Source ↗

ما أثر جنس العلة في جنس الحكم.

That in which the genus of the cause has an established effect upon the genus of the ruling.

Complete article: ʿAbd al-Raʾūf al-Munāwī · munāsib (p. 229). exact munāsib headword; mulāʾim occurs in the definition, not as an independent article.

↑ Term directory · Sources · Subject index

139. munāsib مُنَاسِب

In the Darūrī: Suitable: a proposed ground connected intelligibly with a legally recognized benefit or prevention of harm.

Text: §217 · §224

المناسب · munāsib

ʿAbd al-Raʾūf al-Munāwī [L] · *al-Tawqīf ʿalā muhimmāt al-taʿārīf* · s.v. المناسب. Source ↗

Relation to glossary term: exact munāsib headword; mulāʾim occurs in the definition, not as an independent article.

الملائم لأفعال العقلاء عادة. وقيل ما يجلب نفعا أو يدفع ضرا. وقيل ما لو عرض على العقول تلقته بالقبول.

What ordinarily accords with the actions of rational people. It is also said to be what brings benefit or averts harm; or that which, were it presented to intellects, they would receive with acceptance.

↑ Term directory · Sources · Subject index

140. munāwala مُنَاوَلَة

In the Darūrī: Handing over a written text with authorization to transmit; distinct from direct hearing and a bare written attribution.

Text: §104 · §105

المناولة · munāwala

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1492. Source ↗

هي أن يعطيه كتاب سماعه بيده ويقول أجزت لك أن تروي عني هذا الكتاب ولا يكفي مجرد إعطاء الكتاب.

To hand someone the book of what one has heard and say, “I authorize you to transmit this book from me.” Merely handing over the book is insufficient.

Editorial note. The ijāza cross-reference concerns the authorization expressly included in this munāwala article; it is not an independent ijāza entry.

↑ Term directory · Sources · Subject index

141. mandūb مَنْدُوب

In the Darūrī: Recommended: an act commended without being obligatorily demanded. Its contrary does not acquire a ruling by a purely verbal inversion.

Text: §17 · §32 · §208

المندوب · mandūb

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1494. Source ↗

هو المتفجع عليه ب يا أو وا وعند الفقهاء هو الفعل الذي يكون راجحا على تركه في نظر الشارع ويكون تركه جائزا.

In grammar: the person lamented with yā or wā. Among jurists: an act whose performance is preferable to its omission in the Lawgiver’s assessment, while its omission remains permissible.

Editorial note. The grammatical sense is a separate homographic usage. Nadb is linked as the corresponding abstract noun.

↑ Term directory · Sources · Subject index

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142. manṭūq مَنْطُوق

In the Darūrī: What is explicitly expressed, contrasted with the unmentioned case or the meaning understood beyond verbal form.

Text: §149 · §191 · §210 · §212

المنطوق · manṭūq

ʿAbd al-Raʾūf al-Munāwī [L] · *al-Tawqīf ʿalā muhimmāt al-taʿārīf* · s.v. المنطوق. Source ↗

Relation to glossary term: exact manṭūq article, including its explicit contrast with mafhūm.

ما دل عليه اللفظ في محل النطق كتحريم التأفيف الدال عليه {فَلَا تَقُلْ لَهُمَا أُفٍّ وَلَا تَنْهَرْهُمَا}، والمفهوم ما دل عليه اللفظ لا في محل النطق.

What the expression signifies at the locus of its utterance: for example, the prohibition of saying ‘uff’ signified by ‘Do not say “uff” to them, and do not rebuke them’ [Q 17:23]. The implied meaning, by contrast, is what the expression signifies outside the locus of its utterance.

↑ Term directory · Sources · Subject index

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143. muʾawwal مُؤَوَّل

In the Darūrī: Interpreted wording: an expression taken in a less immediately apparent sense because an adequate indication supports that reading.

Text: §151 · §164 · §166

المؤول · muʾawwal

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1516. Source ↗

ما ترجح من المشترك بعض وجوهه بغالب الرأي لأنك متى تأملت موضع اللفظ وصرفت اللفظ عما يحتمله من الوجوه إلى شيء معين بنوع رأي فقد أولته إليه قوله من المشترك قيد اتفاقي وليس بلازم إذ المشكل والخفي إذا علم بالرأي كان مؤولا أيضا وإنما خصه ب غالب الرأي لأنه لو ترجح بالنص كان مفسرا لا مؤولا.

An equivocal expression for which one of its senses has been preferred by predominant judgement. Whenever you consider an expression’s position and, by a kind of judgement, direct it from its several possible senses to a particular one, you have interpreted it accordingly. “Of an equivocal expression” is an incidental qualification, not a necessary one: the problematic and the obscure are also interpreted when known through judgement. Predominant judgement is specified because, were the preference established by an explicit text, the expression would be explained rather than interpreted.

↑ Term directory · Sources · Subject index

144. nadb نَدْب

In the Darūrī: Recommendation, distinct from obligation; its establishment depends on the relevant usage and indication.

Text: §17 · §200 · §208

Complete article: al-Sharīf al-Jurjānī · mandūb (p. 230). derived adjectival headword for the legal category.

↑ Term directory · Sources · Subject index

145. naskh نَسْخ

In the Darūrī: Abrogation: termination of an earlier legal ruling by later revelation; not identical with specification or additional explanation.

Text: §114 · §115 · §118 · §126 · §181

النسخ · naskh

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1547. Source ↗

في اللغة عبارة عن التبديل والرفع والإزالة يقال نسخت الشمس الظل إذا أزالته وفي الشرع هو أن يرد دليل شرعي متراخيا عن دليل شرعي مقتضيا خلاف حكمه فهو تبديل بالنظر إلى علمنا وبيان لمدة الحكم بالنظر إلى علم الله تعالى.

In ordinary language: replacement, removal, and elimination. One says “The sun removed the shade” when it eliminates it. In revealed law: a legal proof arrives later than another legal proof and requires a ruling contrary to it. It is replacement relative to our knowledge, but clarification of the ruling’s duration relative to God’s knowledge.

وفي الشريعة هو بيان انتهاء الحكم الشرعي في حق صاحب الشرع وكان انتهاؤه عند الله تعالى معلوما إلا أن في علمنا كان استمراره ودوامه وبالناسخ علمنا انتهاءه وكان في حقنا تبديلا وتغييرا.

Also in revealed law: clarifying the termination of a legal ruling from the Lawgiver’s standpoint. Its termination was known to God, whereas in our knowledge it continued and endured. Through the abrogating proof we learn its termination; for us this is replacement and change.

↑ Term directory · Sources · Subject index

146. naṣṣ نَصّ

In the Darūrī: Unambiguous indication: a determinate meaning, not simply any “text.” The book admits unambiguity through understood import as well as wording.

Text: §151 · §157 · §193 · §215

النص · naṣṣ

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1549. Source ↗

ما ازداد وضوحا على الظاهر لمعنى في المتكلم وهو سوق الكلام لأجل ذلك المعنى فإذا قيل أحسنوا إلى فلان الذي يفرح بفرحي ويغتم بغمي كان نصا في بيان محبته.

What possesses greater clarity than the apparent expression because of something in the speaker’s intention: the speech is directed towards that meaning. Thus, “Be good to so-and-so, who rejoices when I rejoice and grieves when I grieve” is explicit in expressing love for him.

وما لا يحتمل إلا معنى واحدا وقيل ما لا يحتمل التأويل.

Also: what admits only one meaning; or, it is said, what does not admit interpretive redirection.

↑ Term directory · Sources · Subject index

147. naẓar نَظَر

In the Darūrī: Inquiry or reflective consideration, including the disciplined examination of evidence; more specific than casual “looking.”

Text: §1 · §13 · §45 · §148

النظر · naẓar

ʿAbd al-Raʾūf al-Munāwī [L] · *al-Tawqīf ʿalā muhimmāt al-taʿārīf* · s.v. النظر. Source ↗

طلب المعنى بالقلب من جهة الذكر، كما يطلب إدراك المحسوس بالعين، ذكره الحرالي، قال: وأول موقع العين على الصورة نظر، ومعرفة خبرتها الحسية بصر، ونفوذه إلى حقيقتها رؤية. فالبصر متوسط بين النظر والرؤية كما قال تعالى {وَتَرَاهُمْ يَنْظُرُونَ إِلَيْكَ وَهُمْ لَا يُبْصِرُونَ}. وقال غيره: تقليب البصر أو البصيرة لإدراك الشيء ورؤيته، وقد يراد به التأمل والفحص، وقد يراد به المعرفة الحاصلة بعد الفحص، واستعمال النظر في البصر أكثر عند العامة، وفي البصيرة أكثر عند الخاصة.

Seeking a meaning with the heart through recollection, just as one seeks to apprehend something sensible with the eye: this is al-Ḥarāllī’s account. He says: the eye’s first encounter with a form is looking; acquaintance with its sensible character is sight; and penetration to its reality is vision. Sight thus lies between looking and vision, as in God’s saying, ‘You see them looking towards you, but they do not see’ [Q 7:198]. Another account is: directing sight or insight about in order to apprehend and see a thing. It may mean reflection and examination, or the knowledge obtained after examination. Ordinary people more often use naẓar for bodily sight; the select more often use it for insight.

ونظر الله إلى عباده إحسانه إليهم وإفاضة نعمه عليهم. والنظير: المثل، واصله المناظر كأنه ينظر كل منهما إلى صاحبه فيناديه. والمناظرة: المباحثة والمباراة في النظر. والنظر: البحث، وهو أعم من القياس لأن كل قياس نظر ولا عكس.

God’s looking towards His servants means His beneficence towards them and His pouring out blessings upon them. Naẓīr means a counterpart; its origin is munāẓir, as though each looks towards the other and calls to him. Munāẓara is mutual investigation and competing in inquiry. Naẓar also means investigation: it is more general than syllogistic reasoning, since every syllogism is inquiry, but not conversely.

النظر عند أهل الأصول: الفكر المؤدي إلى علم أو ظن.

For the specialists in legal theory, naẓar is thought leading to knowledge or probable judgement.

↑ Term directory · Sources · Subject index

148. naql نَقْل

In the Darūrī: Transmission; also a word’s transfer from one usage to another. Context distinguishes the two technical senses.

Text: §66 · §153 · §256

المنقول · al-manqūl

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · entry 1507. Source ↗

Relation to glossary term: complete related headword: lexical transfer, not report transmission.

هو ما كان مشتركا بين المعاني وترك استعماله في المعنى الأول ويسمى به لنقله من المعنى الأول والناقل إما الشرع فيكون منقولا شرعيا كالصلاة والصوم فإنهما في اللغة للدعاء ومطلق الإمساك ثم نقلهما الشرع إلى الأركان المخصوصة والإمساك المخصوص مع النية وإما غير الشرع وهو إما العرف العام فهو المنقول العرفي ويسمى حقيقة عرفية كالدابة فإنها في أصل اللغة لكل ما يدب على الأرض ثم نقله العرف العام إلى ذات القوائم الأربع من الخيل والبغال والحمير أو العرف الخاص ويسمى منقولا اصطلاحيا كاصطلاح النحاة والنظار أما اصطلاح النحاة فكالفعل فإنه كان موضوعا لما صدر عن الفاعل كالأكل والشرب والضرب ثم نقله النحويون إلى كلمة دلت على معنى في نفسها مقترنة بأحد الأزمنة الثلاثة وأما اصطلاح النظار فكالدوران فإنه في الأصل للحركة في السكك ثم نقله النظار إلى ترتب الأثر على ما له صلوح العلية كالدخان فإنه أثر يترتب على النار وهي تصلح أن تكون علة للدخان وإن لم يترك معناه الأول بل يستعمل فيه أيضا يسمى حقيقة إن استعمل في الأول وهو المنقول عنه ومجازا إن استعمل في الثاني وهو المنقول إليه كالأسد فإنه وضع أولا للحيوان المفترس ثم نقل إلى الرجل الشجاع لعلاقة بينهما وهي الشجاعة.

A transferred expression is one shared between meanings whose use in its first meaning has been abandoned. It is so named because it has been transferred from that first meaning. The transferring agency may be the revealed law: it is then a legally transferred expression, such as ṣalāh and ṣawm. In ordinary language these mean supplication and unrestricted abstention, respectively; the law then transferred them to the specified ritual components and to the specified abstention accompanied by intention. Alternatively, the agency is something other than the law. If it is general custom, the expression is customarily transferred and is called a customary literal usage: for example, dābba originally means anything that moves upon the earth, but general custom transferred it to four-footed horses, mules, and donkeys. If it is a particular custom, it is called a technically transferred expression, as in the terminology of grammarians and speculative investigators. In grammar, fi'l was assigned to what proceeds from an agent, such as eating, drinking, and striking; grammarians then transferred it to a word signifying a meaning in itself together with one of the three tenses. Among speculative investigators, dawarān originally meant movement through streets; they transferred it to an effect's following something capable of being its cause. Smoke, for example, is an effect following fire, which is capable of being its cause. If the first meaning has not been abandoned and the word is still also used in it, its use in the first, original meaning is called literal, and its use in the second, transferred meaning is called figurative. Thus asad was first assigned to the predatory animal and then transferred to a courageous man through a relationship between the two, namely courage.

الأثر · al-athar

'Abd al-Ra'ūf al-Munāwī [L] · *al-Tawqīf 'alā muhimmāt al-ta'ārīf* · s.v. الأثر. Source ↗

Relation to glossary term: complete related headword explicitly defining report transmission.

حصول ما يدل على وجود الشيء والنتيجة، وأثرت الحديث نقلته.

The occurrence of something that indicates a thing's existence; also, a result. "I transmitted the report" (athartu al-ḥadīth) means "I conveyed it" (naqaltuhu).

↑ Term directory · Sources · Subject index

149. nahy نَهْي

In the Darūrī: Prohibition or prohibitive address. Its force, contextual restriction and possible effect on validity need separate analysis.

Text: §28 · §197 · §206 · §208

النهي · nahy

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1575. Source ↗

ضد الأمر وهو قول القائل لمن دونه لا تفعل.

The opposite of command: a speaker’s saying to someone beneath him, “Do not do it.”

↑ Term directory · Sources · Subject index

150. niyya نِيَّة

In the Darūrī: Intention: aiming at obedience or distinguishing a particular performance; not every legal effect depends on such an intention.

Text: §22 · §43 · §47

النية · niyya

Attributed to Jalāl al-Dīn al-Suyūṭī [L] · *Muʿjam maqālīd al-ʿulūm fī al-ḥudūd wa-l-rusūm* · entry 82. Source ↗

الإرادة المتوجهة نحو الفعل ابتغاء لمرضاة الله وامتثالا لأمره.

The will directed towards an act in seeking God’s good pleasure and complying with His command.

↑ Term directory · Sources · Subject index

151. wājib وَاجِب

In the Darūrī: Obligatory: legally demanded. Alternative duties, extended times, necessary means and culpability prevent a merely schematic definition from doing all the work.

Text: §17 · §18 · §21 · §23 · §243

الواجب · wājib

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1596. Source ↗

في اللغة عبارة عن السقوط قال الله تعالى فإذا وجبت جنوبها الجمع 36 أي سقطت وهو في عرف الفقهاء عبارة عما ثبت وجوبه بدليل فيه شبهة العدم نخبر الواحد وهو ما يثاب بفعله ويستحق بتركه عقوبة لولا العذر حتى يضلل جاحده ولا يكفر به في العمل اسم لما لزم علينا بدليل فيه شبهة نخبر الواحد والقياس والعام المخصوص والآية المؤولة كصدقة الفطر والأضحية.

In ordinary language it denotes falling: God’s saying “When their sides have fallen” means that they have fallen. In jurists’ convention it is that whose obligation is established by a proof admitting a possibility of non-establishment, such as a solitary report. Its performance is rewarded and its omission merits punishment in the absence of an excuse, so that its denier is judged mistaken but not an unbeliever. As a practical obligation it names what binds us through a proof admitting uncertainty, such as a solitary report, analogy, a specified general expression, or an interpreted verse; examples include the end-of-Ramaḍān alms and the sacrificial offering.

والواجب لذاته هو الموجود الذي يمتنع عدمه امتناعا ليس الوجود له من غيره بل من نفس ذاته فإن كان وجوب الوجود لذاته سمى واجبا لذاته وإن كان لغيره سمي واجبا لغيره.

The intrinsically necessary is an existent whose nonexistence is impossible, and whose existence is not from another but from its own essence. When the necessity of existence belongs to it through itself, it is called intrinsically necessary; when through another, necessary through another.

Editorial note. The legal definition is Ḥanafī in orientation and distinguishes wājib from farḍ. The Qurʾanic verse is Q 22:36, not the erroneous sūra label in the witness. The metaphysical paragraph is a distinct technical sense.

↑ Term directory · Sources · Subject index

152. waḍʿ وَضْع

In the Darūrī: Assignment or institution of a word’s meaning; distinguish original linguistic assignment from subsequent transfer and specialized legal usage.

Text: §153 · §199

الوضع · waḍʿ

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1619. Source ↗

في اللغة جعل اللفظ بإزاء المعنى وفي الاصطلاح تخصيص شيء بشيء متى أطلق أو أحسن الشيء الأول فهم منه الشيء الثاني والمراد بالإطلاق استعمال اللفظ وإرادة المعنى.

In ordinary language: setting an expression in correspondence with a meaning. Technically: assigning one thing to another such that whenever the first is uttered or perceived, the second is understood from it. Utterance here means using the expression and intending the meaning.

والإحساس استعمال اللفظ أعم من أن يكون فيه إرادة المعنى أولا وفي اصطلاح الحكماء هو هيئة عارضة للشيء بسبب نسبتين نسبة أجزاء بعضها إلى بعض ونسبة أجزائه إلى الأمور الخارجية عنه كالقيام والقعود فإن كلا منهما هيئة عارضة للشخص بسبب نسبة أعضائه بعضها إلى بعض و إلى الأمور الخارجية عنه.

Perception means use of the expression more generally, whether or not the meaning is intended. In the philosophers’ terminology, position is a configuration occurring to a thing because of two relations: the relation of its parts to one another, and their relation to things external to it. Standing and sitting are each a configuration occurring to a person through the relations of the limbs to one another and to external things.

Editorial note. The witness reads aḥsana (أحسن) where its following explanation requires aḥassa, “perceived”. The translation follows that evident reading; the Arabic witness is preserved.

↑ Term directory · Sources · Subject index

153. yaqīn يَقِين

In the Darūrī: Certainty: assent not merely outweighed probability. Its sources and possible degrees are discussed without reducing it to a transmitter count.

Text: §74 · §75 · §78 · §125

اليقين · yaqīn

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1644. Source ↗

في اللغة العلم الذي لا شك معه وفي الاصطلاح اعتقاد الشيء بأنه كذا مع اعتقاد أنه لا يمكن إلا كذا مطابقا للواقع غير ممكن الزوال والقيد الأول جنس يشتمل على الظن أيضا والثاني يخرج الظن والثالث يخرج الجهل والرابع يخرج اعتقاد المقلد المصيب وعند أهل الحقيقة رؤية العيان بقوة الإيمان لا بالحجة والبرهان وقيل بمشاهدة الغيوب بصفاء القلوب وملاحظة الأسرار بمحافظة الأفكار.

In ordinary language: knowledge accompanied by no doubt. Technically: believing a thing to be thus, together with believing that it can only be thus, in conformity with reality and incapable of cessation. The first qualification is a genus also including opinion; the second excludes opinion; the third excludes ignorance; and the fourth excludes the belief of an imitator who happens to be correct. Among the people of spiritual realization, it is immediate vision through the strength of faith, not through argument and demonstration; or, it is said, witnessing unseen things through purity of hearts and observing mysteries through watchfulness over thoughts.

وقيل هو طمأنينة لقلب على حقيقة الشيء يقال يقن الماء في الحوض إذا استقر فيه.

It is also said to be the heart’s tranquillity regarding a thing’s reality. Water is said to yaqina in a basin when it settles there.

وقيل اليقين رؤية العيان وقيل تحقيق التصديق بالغيب بإزالة كل شك وريب وقيل اليقين نقيض الشك وقيل اليقين رؤية العيان بنور الإيمان.

Other definitions are: immediate vision; realizing assent to the unseen through removing every doubt and uncertainty; the opposite of doubt; and immediate vision through the light of faith.

وقيل اليقين ارتفاع الريب في مشهد الغيب وقيل اليقين العلم الحاصل بعد الشك.

Also: the disappearance of uncertainty in witnessing the unseen; or knowledge acquired after doubt.

↑ Term directory · Sources · Subject index

PROVENANCE AND EDITORIAL LIMITS

Dictionary sources

al-Rāghib al-Iṣfahānī [E]

al-Mufradāt fī gharīb al-Qurʾān المفردات في غريب القرآن

before Ibn Rushd; traditionally d. 502 AH / 1108 CE (date disputed) · 6 selected complete articles.

Al-Rāghib al-Iṣfahānī, al-Mufradāt fī gharīb al-Qurʾān, in the digital transcription of the edition edited by Ṣafwān ʿAdnān al-Dāwūdī, reproduced at Arabic-keyboard.info. Exact root headwords identify the articles. Modern editorial introductions, footnotes and verse-number labels are distinguished from the historical author's wording; the English translations here are new.

Full historical root articles in a digital transcription, not a new manuscript collation.

al-Muṭarrizī [L]

al-Mughrib fī tartīb al-Muʿrib المغرب في ترتيب المعرب

d. 610 AH / 1213 CE · 3 selected complete articles.

Al-Muṭarrizī, al-Mughrib fī tartīb al-Muʿrib; digital transcription cited by root. A print pagination is not asserted where absent from the consulted transcription.

Complete root articles checked to the following headword in the continuous digital text; not independently collated against a manuscript.

Ibn Manẓūr [L]

Lisān al-ʿArab لسان العرب

d. 711 AH / 1311 CE · 1 selected complete articles.

Ibn Manẓūr, Lisān al-ʿArab, root s-b-r, vol. 7, pp. 108–109 in the pagination displayed by Islamweb. The online article is reproduced once, not twice from its unvowelled and vowelled display variants. A particular printed imprint is not asserted from that web pagination alone.

Complete root article, including non-technical senses, reports and poetic witnesses; a difficult final verse remains explicitly marked.

Aḥmad b. Muḥammad al-Fayyūmī [L]

al-Miṣbāḥ al-munīr fī gharīb al-Sharḥ al-kabīr المصباح المنير في غريب الشرح الكبير

d. c. 770 AH / 1368–69 CE · 4 selected complete articles.

Al-Fayyūmī, al-Miṣbāḥ al-munīr fī gharīb al-Sharḥ al-kabīr; Wikisource transcription, cited by letter and root. Printed pagination and a particular imprint are not asserted where the consulted transcription supplies neither. Each selected root is reproduced through the next root heading.

Full root articles in a digital transcription, with new English translations. Vocalization follows that witness; no independent manuscript collation is claimed.

al-Sharīf al-Jurjānī [L]

Kitāb al-Taʿrīfāt كتاب التعريفات

d. 816 AH / 1413 CE · 113 selected complete articles.

ʿAlī b. Muḥammad al-Sharīf al-Jurjānī, Kitāb al-Taʿrīfāt. Beirut: Dār al-Kutub al-ʿIlmiyya, first edition, 1403/1983. Digital witness: OpenITI, Shamela0007312-ara1. The separate JK000768-ara1 witness and Wikisource reproduction are comparison controls where expressly noted. Entries identified by an online entry number instead of a printed page use the separately cited Islamicbook transcription. Their numbering is that witness's numbering, not an invented page reference. Punctuation and spacing are editorially regularized.

Historical Arabic source; digital transcription, not fresh manuscript collation.

Attributed to Jalāl al-Dīn al-Suyūṭī [L]

Muʿjam maqālīd al-ʿulūm fī al-ḥudūd wa-l-rusūm معجم مقاليد العلوم في الحدود والرسوم

attributed to al-Suyūṭī (d. 911 AH / 1505 CE) · 8 selected complete articles.

Muʿjam maqālīd al-ʿulūm fī al-ḥudūd wa-l-rusūm, attributed to al-Suyūṭī. Cairo: Maktabat al-Ādāb, 1424/2004. Digital witness: OpenITI, Shamela0007039-ara1. Articles are cited by their numbered entries; the historical attribution is reported, not independently established. Folio markers and modern editorial notes are not part of the quoted definitions.

Complete numbered definitions checked to the following numbered article in the digital witness.

ʿAbd al-Raʾūf al-Munāwī [L]

al-Tawqīf ʿalā muhimmāt al-taʿārīf التوقيف على مهمات التعاريف

d. 1031 AH / 1622 CE · 19 selected complete articles.

ʿAbd al-Raʾūf al-Munāwī, al-Tawqīf ʿalā muhimmāt al-taʿārīf. Cairo: ʿĀlam al-Kutub, first edition, 1410/1990. Digital full-text reproduction at Arabic-keyboard.info; articles identified by their exact headwords. Modern introductory matter and modern editorial bibliographical footnotes are not represented as the author’s articles.

Historical Arabic text in a modern digital transcription; individual transcription difficulties are marked.

Muḥammad ʿAlī al-Tahānawī [L]

Kashshāf iṣṭilāḥāt al-funūn wa-l-ʿulūm كشاف اصطلاحات الفنون والعلوم

compiled in the 12th AH / 18th CE century · 3 selected complete articles.

Muḥammad ʿAlī al-Tahānawī, Kashshāf iṣṭilāḥāt al-funūn wa-l-ʿulūm, ed. ʿAlī Daḥrūj. Beirut: Maktabat Lubnān Nāshirūn, 1996. Historical Arabic articles as transcribed by The Arabic Lexicon; modern English/French headword labels and modern editorial footnotes are excluded from the historical article, not silently attributed to al-Tahānawī. Exact article URLs identify the witnesses used.

Historical technical dictionary; full selected Arabic headword articles with new English translations.

Text and translation

The running Darūrī text and notes are retained from the preceding scholarly reading edition: the al-ʿAlawī 1994 base, compared with Bou Akl’s printed 2015 edition, French translation and apparatus. The Escorial codex has not been independently inspected. The authorial completion in 552 AH and copyist’s notice of 606 AH are distinct.

The historical authors’ definitions, examples and doctrinal positions are translated as evidence, not endorsed as universally accepted accounts. A Ḥanafī distinction is not silently generalized to every school. Multiple senses and apparently extraneous examples remain where part of the selected article. Modern website labels, menus, editorial bibliographical footnotes and translations into other European languages are not attributed to the historical authors.

Scope remains selected-source coverage, not an exhaustive concordance of every relevant lexicon. In particular, this release does not supply a complete Tāj al-ʿArūs article set, nor all Kashshāf or Lisān articles for all 153 terms. Some compounds have only clearly marked related-headword evidence. The audit below records those relations so that numerical coverage cannot conceal them.

Headword-relation audit

The 153 dossiers are listed in Arabic alphabetical order. “Exact” refers to the source headword, not to an assertion that all of its senses occur in Ibn Rushd. Any other relation is stated explicitly. Full texts are printed once; links may legitimately point to an article elsewhere in the appendix.

Glossary term	Complete articles and relation
ibāḥa	J-ibaha · ibāḥa: exact headword
ibdāl / tabdīl	J-ibdal · ibdāl: exact headword
ijāza	J-munawala · munāwala: related hadith-transmission procedure; not an ijāza headword S-ijaza · ijāza: exact headword
ijtihād	J-ijtihad · ijtihād: exact headword
ijzāʾ	U-jaza · j-z-ʾ: complete root article explicitly treating sufficiency and discharge S-ijza · ijzāʾ: exact headword
ijmāʿ	J-ijma · ijmāʿ: exact headword
adāʾ	J-ada · adāʾ: exact headword
idhn	J-idhn · idhn: exact headword
irāda	J-irada · irāda: exact headword
istithnāʾ	M-istithna · istithnāʾ: exact headword
istiḥsān	J-istihsan · istiḥsān: exact headword
istidlāl	J-istidlal · istidlāl: exact headword
istiṣḥāb	J-istishab · istiṣḥāb: exact headword
istiṣlāḥ	K-maslaha · maṣlaḥa: related technical article: unrestricted interests are expressly discussed under maṣlaḥa, not a separate istiṣlāḥ headword
istiʿāra	J-istiara · istiʿāra: exact headword
istiqrāʾ	J-istiqra · istiqrāʾ: exact headword
ishtirāk	J-mushtarak · al-mushtarak: derived adjectival headword for lexical sharedness
aṣl	J-asl · aṣl: exact headword
uṣūl al-fiqh	J-usul-fiqh · uṣūl al-fiqh: exact headword
iqrār	J-iqrar · iqrār: exact headword
imkān	J-imkan · imkān: exact headword
bāṭil / buṭlān	J-batil · bāṭil: exact headword
barāʾa aṣliyya	R-bara · baraʾa: complete root article; technical compound is not an independent headword
burhān	J-burhan · burhān: exact headword R-burhan · bariha / burhān: full lexical root article containing the exact technical noun burhān
bayān	J-bayan · bayān: exact headword
taʾthīm	M-ithm · al-ithm: complete lexical headword underlying taʾthīm; not a substitute for the juristic doctrine
taʾwīl	J-tawil · taʾwīl: exact headword
takhṣīṣ	M-takhshis · takhṣīṣ: exact headword
tarjīḥ	J-tarjih · tarjīḥ: exact headword
taṣdīq	J-tasdiq · taṣdīq: exact headword
taṣwīb	J-sawab · al-ṣawāb: complete related headword, with the juristic correctness/error distinction
taʿāruḍ	J-muarada · al-muʿāraḍa: complete related headword: dialectical counter-opposition
taʿdīl	M-taadul · al-taʿādul: complete related headword containing an explicit definition of witness accreditation
taqlīd	J-taqlid · taqlīd: exact headword
taklīf	J-taklif · taklīf: exact headword
tamthīl	J-tamthil · tamthīl: exact headword
tanbīh	J-tanbih · tanbīh: exact headword

tawātur	J-khabar-mutawatir · khabar mutawātir: expanded named report-type article J-tawatur · tawātur: exact headword
tawaqquf	F-waqf · waqf: full root article expressly defining tawaqqafa and deferred judgement, not a separate technical tawaqquf article
tawqīf	U-waqafa · w-q-f: complete lexical root article with explicit tawqīf as instruction
jarḥ	M-jarh · jarḥ: exact headword
juz’ī	J-juzi-haqiqi · juz’ī ḥaqīqī: specified technical headword J-juzi-idafi · juz’ī iḍāfī: specified technical headword
jins	J-jins · jins: exact headword
ḥākim	K-hakim · ḥākim: exact ḥākim article, which expressly defines maḥkūm fīhi, maḥkūm ʿalayhi and mukallaf; not three invented separate articles
ḥujja	J-hujja · ḥujja: exact headword
ḥadd	J-hadd · ḥadd: exact headword
ḥadīth	M-sahih · ṣaḥīḥ: complete adjacent ṣaḥīḥ articles: legal, grammatical and hadith senses, individually distinguished
ḥarām	M-haram · ḥarām: exact headword
ḥaraj	M-haraj · ḥaraj: exact headword
ḥiss	J-ihsas · iḥsās: corresponding act, not identical faculty headword
ḥusn / qubḥ	J-husn · ḥusn: exact headword
ḥaṣr	J-hasr · ḥaṣr: exact headword
ḥaqīqa	J-haqiqa · ḥaqīqa: exact headword
ḥukm	J-hukm · ḥukm: exact headword
khāṣṣ	J-khass · khāṣṣ: exact headword
khabar	J-khabar · khabar: exact headword
khabar al-wāḥid	J-khabar-wahid · khabar al-wāḥid: exact headword
khaṭa’	J-khata · khaṭa’: exact headword
khiṭāb	R-khutb · khaṭaba: complete root article; technical compound is not an independent headword
dalāla	J-dalala · dalāla: exact headword
dalīl	J-dalil · dalīl: exact headword
dalīl al-khiṭāb	J-mafh-mukhalafa · mafhūm al-mukhālafa: named technical counterpart
rāwī	U-rawa · r-w-y: complete root article, including the report-transmitter sense
rukhṣa	J-rukhsa · rukhṣa: exact headword
ziyāda	M-ziyada · al-ziyāda: exact headword
sibār	L-sabr · sabr / sibr / sibār: full root article; includes sibār explicitly
sabab	J-sabab · sabab: exact headword
sabr wa-taqsīm	L-sabr · sabr / sibr / sibār: full root article; includes sibār explicitly
sunna	J-sunna · sunna: exact headword
shubha	J-shubha · shubha: exact headword
sharṭ	J-shart · sharṭ: exact headword
sharʿ	J-shar · sharʿ: exact headword
ṣaḥīḥ / ṣiḥḥa	M-sihha · ṣiḥḥa: exact headword M-sahih · ṣaḥīḥ: complete adjacent ṣaḥīḥ articles: legal, grammatical and hadith senses, individually distinguished
ṣalāḥ	M-salah · ṣalāḥ: exact headword
ṣināʿa	J-sinaa · ṣināʿa: exact headword
ṣīgha	F-sawgh · ṣawgh: full root article expressly defining ṣīgha and ṣīghat al-qawl
ḍidd	J-diddan · ḍiddān: dual form of headword
ḍarūra	J-darura · ḍarūra: exact headword

ḍarūrī	M-daruri · ḍarūrī: exact headword M-badihi · badīhī: separate related headword explicitly distinguishing senses of necessary knowledge
ḍamīr	J-mudmar · muḍmar: alternative grammatical headword
ṭaliba	F-talab · ṭalab: full root article expressly distinguishing singular ṭaliba from plural ṭalaba
ẓāhir	J-zahir · ẓāhir: exact headword
ẓann	J-zann · ẓann: exact headword M-zann · ẓann: exact ẓann article explicitly discussing preponderance; not an independent compound ghalabat al-ẓann headword
ʻāmm	J-amm · ʻāmm: exact headword
ʻibāda	J-ibada · ʻibāda: exact headword
ʻadāla	J-adala · ʻadāla: exact headword
ʻurf	J-urf · ʻurf: exact headword
ʻazīma / ʻazm	J-azima · ʻazīma: exact headword
ʻaql	J-aql · ʻaql: exact headword
ʻilla	J-illa · ʻilla: exact headword
ʻilm	J-ilm · ʻilm; ʻalam (homograph): exact headword
ʻumūm	J-umum · ʻumūm: exact headword
ʻumūm al-balwā	F-baliya · baliya / balāʾ: complete lexical root article defining balwā; NOT an exact headword for the compound ʻumūm al-balwā
ghāya	J-ghaya · ghāya: exact headword
ghalabat al-ẓann	M-zann · ẓann: exact ẓann article explicitly discussing preponderance; not an independent compound ghalabat al-ẓann headword
farḍ	J-fard · farḍ: exact headword
farʻ	J-far · farʻ: exact headword
furūʻ	J-far · farʻ: singular headword underlying the plural glossary form
fasād	J-fasad · fasād: exact headword
fiʻl	J-fil · fiʻl: exact headword
fiqh	J-fiqh · fiqh: exact headword
qurʾ	R-qara · qaraʾa: complete root article; technical compound is not an independent headword
qarīna	J-qarina · qarīna: exact headword
qaḍāʾ	J-qada · qaḍāʾ: exact headword
qaṭʻī	S-yaqiniyyat · yaqīniyyāt: related epistemic category, not the adjective qaṭʻī
qiyās	J-qiyas · qiyās: exact headword J-qiyas-dabita · qiyās: exact headword
qiyās al-shabah	K-shabah · shabah: complete technical shabah article explicitly treating analogy of resemblance
karāha	J-makruh · makrūh: derived adjectival headword for the legal category
kasb / iktisāb	J-kasb · kasb: exact headword
kalām	J-kalam · kalām: exact headword
kullī	J-kulli-haqiqi · kullī ḥaqīqī: specified technical headword J-kulli-idafi · kullī iḍāfī: specified technical headword
kināya	J-kinaya · kināya: exact headword
lafẓ	J-lafz · lafẓ: exact headword
mubāḥ	M-mubah · mubāḥ: exact headword
mutawātir	J-khabar-mutawatir · khabar mutawātir: expanded named report-type article J-mutawatir · mutawātir: exact headword
mithāl	J-mithal · mithāl: exact headword
majāz	J-majaz · majāz: exact headword
mujtahid	J-mujtahid · mujtahid: exact headword

mujmal	J-mujmal · mujmal: exact headword
maḥkūm ʿalayhi	K-hakim · ḥākim: exact ḥākim article, which expressly defines maḥkūm fīhi, maḥkūm ʿalayhi and mukallaf; not three invented separate articles
maḥkūm fīhi	K-hakim · ḥākim: exact ḥākim article, which expressly defines maḥkūm fīhi, maḥkūm ʿalayhi and mukallaf; not three invented separate articles
mukhayyil	S-mukhayyilat · mukhayyilāt: plural headword; logical/poetic sense S-ikhala · ikhāla: related technical headword K-maslaha · maṣlaḥa: related technical discussion of ikhāla and mukhayyila within the complete maṣlaḥa article
mudrak	R-darak · d-r-k: complete root article on reaching and apprehension; not an exact technical mudrak headword
mursal	J-mursal · mursal: exact headword
musnad	J-musnad · musnad: exact headword
mashhūrāt	S-mashhurat · mashhūrāt: exact headword
maṣlaḥa	K-maslaha · maṣlaḥa: exact headword
muṭlaq	J-mutlaq · muṭlaq: exact headword
maʿqūl	J-maqulat-ula · maʿqūlāt ūlā: explicitly specified kind of headword J-maqulat-thaniya · maʿqūlāt thāniya: explicitly specified kind of headword J-maqul · maʿqūl: exact headword
maʿlūl	J-malul-akhir · maʿlūl akhīr: specified kind, not exact unqualified headword
maʿnā	J-maani · maʿānī: plural headword; explicit internal discussion J-mana · maʿnā: exact headword
mafhūm	J-maani · maʿānī: plural headword; explicit internal discussion J-mafh-mukhalafa · mafhūm al-mukhālafa: named technical counterpart J-mafh-muwafaqa · mafhūm al-muwāfaqa: specified kind of concept M-mantuq · manṭūq: exact manṭūq article, including its explicit contrast with mafhūm
muqaddima	J-muqaddima · muqaddima: exact headword
maqṣūd	R-qasd · qaṣada: complete root article; technical compound is not an independent headword
muqayyad	J-muqayyad · muqayyad: exact headword
makrūh	J-makruh · makrūh: exact headword
mukallaf	K-hakim · ḥākim: exact ḥākim article, which expressly defines maḥkūm fīhi, maḥkūm ʿalayhi and mukallaf; not three invented separate articles
mulā’im	M-munasib · munāsib: exact munāsib headword; mulā’im occurs in the definition, not as an independent article S-mulaim · mulā’im: exact headword
munāsib	M-munasib · munāsib: exact munāsib headword; mulā’im occurs in the definition, not as an independent article
munāwala	J-munawala · munāwala: exact headword
mandūb	J-mandub · mandūb: exact headword
manṭūq	M-mantuq · manṭūq: exact manṭūq article, including its explicit contrast with mafhūm
mu’awwal	J-muawwal · mu’awwal: exact headword
nadb	J-mandub · mandūb: derived adjectival headword for the legal category
naskh	J-naskh · naskh: exact headword
naṣṣ	J-nass · naṣṣ: exact headword
naẓar	M-nazar · naẓar: exact headword
naql	J-manqul · al-manqūl: complete related headword: lexical transfer, not report transmission M-athar · al-athar: complete related headword explicitly defining report transmission
nahy	J-nahy · nahy: exact headword
niyya	S-niyya · niyya: exact headword
wājib	J-wajib · wājib: exact headword
waḍʿ	J-wad · waḍʿ: exact headword
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